

Kitāb al-Tawḥeed

كِتَابُ التَّوْحِيدِ

*The Basis of Islam
and the Reality of Monotheism*

Vol. 4

By Professor Muḥammad ibn Abdullah al-Massari

Volume 4

Tawheed - Fundamental Principles and Maxims

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Part IX

Tawheed - Legislation and Ruling

Introduction

Tawḥeed, as it pertains to legislation and ruling – *Tawḥeed al-Tashriḥ’ wal’ Ḥākimiyyah*, is the belief that Allah the Exalted alone, with no partner whatsoever possesses the exclusive right over legislation, independently and originally. Stated differently, He alone has prerogative of command. He the Exalted and Majestic, retains the ultimate and supreme authority as it relates to commandment and prohibition; He is the sole sovereign in all matters of judgement and governance. There is no delegation of authority in this respect to any other, in any manner, be that to a celestial being, such as angel, nor even to a commissioned Prophet. Allah the Exalted and Glorified, alone, without any partner whatsoever, retains the sole right to obedience due to His divine essence. Apart from Him, none has the prerogative of command, namely the right to command or prohibit, nor to be deserving in obedience, except by way of His express permission, which has been set out in definitive explicit textual evidence. He the Almighty is the ultimate judge, and there is no judgement or higher form of appeal beyond Him.

يَحْكُمُ لَا مُعَقَّبَ لِحُكْمِهِ

*No one can reverse His decision.*¹

لَا يُسْأَلُ عَمَّا يَفْعَلُ وَهُمْ يُسْأَلُونَ

*He cannot be called to account for anything He does.*²

¹ *Qur’ān*, 13: 41

² *Qur’ān*, 21: 23

Here it can be observed that the nature of *Ḥākimiyyah*, the exclusive right of Allah to the prerogative of command is an attribute of entitlement. Unlike the attribute of *al-Khāliqiyyah* (Creatorship), which is an attribute of existence; He has the power to create from absolutely nothing, inherently and independently. Indeed there is no creator inherently independent except Allah, and the attribution of such power to any other is falsehood and delusion. It can only be constructed as a theoretical assumption or conjecture, having no actual existence in reality. That contrasts though with the matter of legislation. There are many that are engaged in legislating – setting the boundaries of the lawful and unlawful. Yet this is a matter where those engaged in this have exceeded their limits and bounds, resulting in an encroachment upon Allah's exclusive prerogative of command. Those engaged in legislating are *Ṭawāgheet* (pl. *Ṭāghut*), evil despicable transgressors.

Often this reality is expressed with the phrasing, *Tawḥeed al-Ḥākimiyyah*, the branch of *Tawḥeed* outlining that Allah is alone, with no partner whatsoever; He possesses the exclusive right over legislation, independently and originally. Stated differently, He alone has prerogative of command. It could also be expressed with the phrasing of 'Sovereignty belongs to the *Sharī'ah*,' in other words, the divine law revealed by Allah has supreme and ultimate authority over all human actions. That wording may seem more practical given that it clarifies the method for realising this aspect of *Tawḥeed*, entailing a return to the divine revelation, namely, the revealed law as embodied in the texts of the Qur'ān and the authentic Prophetic *Sunnah*, along with what is definitively indicated by secondary subsidiary evidences whether explicitly stated in the texts or correctly derived from them, along with other principles established by clear and authoritative evidence.

1. What is *al-Ḥukm* and the meaning of the term *Ḥakam*?

As a term, *al-Ḥukm* [الْحُكْم] in general, is the attribution of one thing to another. So, when we say: 'This rose is beautiful,' or 'fragrant,' this constitutes the attribution of something, namely, beauty or a pleasant fragrance, which are aesthetic perceptual concepts apprehended through the senses, taste, and reason to something else, namely the 'rose,' which is a tangible, material, and a perceptible object. And when we say: 'Theft is *ḥarām*,' then we are attributing *ḥurmah* (prohibition), which is a *ḥukm shar'ī* derived through a particular method, to the matter of *theft*, which is a perceptible human action, though not necessarily tangible. If a particular individual, let us name him: Zayd ibn 'Amr, confesses to theft before a qualified judge, in a formally recognised court of adjudication, and it becomes clear to the judge that all conditions are fulfilled and all impediments are absent, then the judge *yahkum* (rules) that 'his hand is to be severed,' in a specific manner. In this instance, the judge has attributed the 'obligation of severing the hand' to this particular individual: Zayd ibn 'Amr. As for the actual act of severing, that might be carried out by an executioner or a medical surgeon who had previously amputated other hands due to cancer and such amputation might have been based on a *ḥukm* (decision or ruling) issued by a panel of expert physicians, deeming the severing necessary in order to save the patient's life before the cancer spreads.

Our statement that 'lying is abhorrent,' is a *ḥukm 'aqlī 'amalī* - i.e. a practical rational ruling, which is to say, a moral and evaluative judgment. However, our statement that 'lying is *ḥarām*, except in three cases,' this would constitute a *ḥukm shar'ī*. From the foregoing examples and others of a similar

kind, we may observe that *al-ḥukm* belongs to the category of assertions, declarations, or beliefs, and not to the category of actions per se.

The trilateral root and its variant derived meanings

In the Arabic language, the word derives from the trilateral root ḥ/k/m [ح ك م]. Taken together with the texts of revelation, the Qur’ān and the Prophetic *Sunnah*, several meanings can be outlined for this including:

1. Placing matters in their proper context, this is *ḥikmah* (wisdom), and the one who possesses or exhibits it is described as *ḥakīm* (wise).
2. Mastery of a craft and the completion of an action to its perfection, this is *ihkām*, and the one who performs it is called *muḥkim* (proficient), and perhaps also *ḥakīm*.
3. Judgment concerning human deeds on the Day of Resurrection, and the ultimate resolution of disputes in a final and eternal manner; this is a prerogative belonging exclusively to Allah alone, and there are many well-known and oft-cited Qur’ānic verses affirming this.
4. Legal pronouncement, *fatwā* and the issuance of an opinion that the one issuing it believes to be correct, that is, the act of judgment concerning religious, sensory, rational, aesthetic, ethical, and other matters. For instance, we *judge* the doctrine of transmigration of souls to be invalid, as well as the Trinity to be false. We *judge* lying to be morally abhorrent from a rational standpoint, and religiously prohibited except in a few explicitly stated circumstances. In this connection is the statement of the Exalted: ‘*Should We treat those who submit to Us as We treat those who do evil? What is the matter with you? On what basis do you judge?*’¹
5. Arbitration and adjudication in disputes, in a binding and enforceable manner, that is, *qaḍā’* (juridical authority), which is one of the central powers of the state (alongside the legislative and executive powers).

¹ Qur’ān, 63: 35/36

A judge is also called *ḥākim*, and the pronouncement issued is a *ḥukm*.

6. Governance, administration of affairs, and execution of decisions, that is, the executive authority of the state. The one who exercises this role is referred to as *ḥākim*, and may also be called *wālī* (governor), *wālī al-amr* (guardian of authority), or *sulṭān*. In more recent eras, the term *ḥukūmah* (government) has become widely used to refer to the summit of the executive branch, that is, the *majlis al-wuzarā’* or cabinet, as well as to the apparatus of governance more generally. This usage is accurate, as will be clarified shortly. There are, however, certain complexities and subtle distinctions between those who rightfully deserve the designation of *ḥākim* — i.e., those who possess decision-making authority and sovereignty and those who are merely functionaries of administration and executive implementation, and thus not from the people of *al-ḥukm* in the essential sense. But this is not the topic under discussion here.
7. Legislation and the enactment of constitutions, laws, regulations, and procedural codes, that is, the domain of the legislative authority in the state. Included within this seventh category is also the establishment of principles of ethics, conduct, etiquette, and social norms, for this is in reality a form of legislation and value-definition. Though temporal authorities in states and governments do not typically exercise this function directly, it may in fact be exercised collectively by the people themselves, in their capacity as a *society*, that is, as a community in which enduring relationships exist among its members.

As for the notion that execution of authority, that is, the administration of affairs and the governance of the people, it constitutes a form of *ḥukm* (judgment or rule), and that the one who exercises it rightfully deserves to be called a *ḥākim* (ruler), despite the customary usage in Arabic discourse and in the textual sources of the *Sharī’ah* of the terms *wilāyat al-amr* (custodianship of authority), *sulṭān*, *siyāsah* (political governance) or even *mulukiyyah* (kingship), this meaning is drawn from the saying of the Almighty and Sublime:

إِنَّا أَنْزَلْنَا التَّوْرَةَ فِيهَا هُدًى وَنُورٌ يَحْكُمُ بِهَا النَّبِيُّونَ الَّذِينَ أَسْلَمُوا لِلَّذِينَ هَادُوا وَالرَّبَّانِيُّونَ وَالْأَحْبَارُ بِمَا اسْتُخْفِظُوا مِنْ كِتَابِ اللَّهِ وَكَانُوا عَلَيْهِ شُهَدَاءَ فَلَا تَخْشَوُا النَّاسَ وَاخْشَوُا اللَّهَ وَلَا تَشْتَرُوا بِآيَاتِي ثَمَنًا قَلِيلًا وَمَنْ لَمْ يَحْكَمْ بِمَا أَنْزَلَ اللَّهُ فَأُولَئِكَ هُمُ الْكَافِرُونَ

We revealed the Torah with guidance and light, and the Prophets, who had submitted to Allah, judged according to it for the Jews. So did the rabbis and the scholars in accordance with that part of Allah's Scripture which they were entrusted to preserve, and to which they were witnesses. So [rabbis and scholars] do not fear people, fear Me; do not barter away My messages for a small price; those who do not judge according to what Allah has sent down are rejecting [Allah's teachings].²

Thus, the Prophets sent to the Children of Israel during their earlier era served as *hukkām* (judges or rulers). This understanding is corroborated by the Prophet's statement, peace and blessings be upon him and his family:

كانت بنو إسرائيل تسوسهم الأنبياء، كلما هلك نبي خلفه نبي، وإنه لا نبي بعدي وسيكون خلفاء فيكثرون

'The Children of Israel were governed by their Prophets. Whenever a Prophet perished, another succeeded him. There will be no Prophet after me; there will be successors – khulafā', and they will be many.'

In response, the Companions enquired, 'What do you command us [to do]?' And he, peace and blessings be upon him replied: '*Fulfil allegiance to the first, then the next. Give them their due, for Allah will question them concerning what they were entrusted with.*'³ Hence, the Prophets of the Children of Israel in their early era were *yusūsūn*, exercising governance, and thus the one who governs is necessarily a *ḥākim* (ruler). We specify 'in their earlier era' because this was before they demanded a hereditary kingship, that cursed institution which later turned against them and brought upon them

² *Qur'ān*, 5: 44

³ Almost a dozen additional references are provided for this famous narration. The *isnād* which al-Bukhārī details in his *Ṣaḥīḥ* [Vol. 3, no. 3268] is 'Muḥammad ibn Bashār narrated to us Muḥammad ibn Ja'far narrated to us Shu'ba narrated to us from Furāt al-Qazzāz, he said I heard Abu Ḥāzim say, "I accompanied Abu Hurayrah for five-years and heard him narrate from the Prophet that he said". Other notable references include: *Ṣaḥīḥ* Muslim [Vol. 3, no. 1842], *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 10, no. 4555] and *Musnad* Aḥmad [Vol. 2, no. 7947].

misfortune, as we have expounded upon in another context. Further supporting the position that execution and governance, that is, *wilāyat al-amr* or *sulṭān* are forms of *ḥukm* (rulership or adjudication), is the statement of the Exalted in Majesty:

وَلَا تَأْكُلُوا أَمْوَالَكُمْ بَيْنَكُمْ بِالْبَاطِلِ وَتُدُلُّوا بِهَا إِلَى الْحُكَّامِ لِتَأْكُلُوا فَرِيقًا مِّنْ أَمْوَالِ النَّاسِ بِالْإِثْمِ وَأَنْتُمْ تَعْلَمُونَ

Do not consume your property wrongfully, nor use it to bribe judges, intending sinfully and knowingly to consume parts of other people's property.⁴

This verse indicates that the term *hukkām* (those who exercise judgment) here is broader than *quḍāt* (judges), for people, both then and now, have brought their disputes not only before judicial authorities but also before *wulāt al-amr* (holders of executive authority) and influential officials of various kinds, across a wide spectrum of contentious matters. It should also be noted that, in earlier times, including during the period of Qur'anic revelation *judicial* and *executive* functions were not institutionally separated. The distinction between *qaḍā'* (judicial authority) and *tanfīdh* (execution of rule) is a feature of modern constitutional and procedural frameworks, introduced as a measure to safeguard the independence and impartiality of the judiciary, and to shield it from the tumult of daily political life and the entanglements of competing interests - in which executive figures and powerholders are often deeply immersed. These four aforementioned meanings: namely: *fatwā* (legal opinion), *qaḍā'* (judicial adjudication), *tanfīdh* (execution of authority), and *tashrī'* (legislation), are those which concern us in this present inquiry. These are likewise the categories to which all relevant legal texts ought to be referred and interpreted, unless a specific textual indicator stipulates otherwise. Thus, when the Messenger of Allah, peace and blessings be upon him said: '*When the ḥākim exercises ijtihād and is correct, he will receive two rewards,*' narrated in the well-known tradition of Abdullah ibn 'Amr,⁵ it is impermissible to assert that this narration applies exclusively to the *qāḍī* (judge) or to the *walī al-amr* (holder of executive authority). Rather, it applies generally to every individual who seeks to ascertain Allah's judgment in a given case for one of the following purposes:

⁴ *Qur'ān*, 2: 188

⁵ As reported across the corpus of *aḥādīth*, including the *Ṣaḥīḥ* collections of al-Bukhārī and Muslim.

1. For the purpose of *identifying the ruling itself* through scholarly inquiry, such as the *mujtahid* or *mufti*, such a person is a *ḥākim*.
2. For the purpose of *applying the ruling to a dispute*, such as the *qāḍī*, this individual is likewise a *ḥākim*.
3. For the purpose of *administering public affairs*, such as the *Imām* (leader of the polity), and this may occur in two capacities:
 - (a) As executor of a specific ruling in a particular, concrete circumstance, in this capacity, he is a *ḥākim*.
 - (b) As legislator, i.e., by adopting a specific *ḥukm sharʿī* in a disputed matter and codifying it into binding public policy, in this capacity also, he is a *ḥākim*.

Accordingly, *al-Iḥtikām* or *al-Taḥākum*, that is, the act of seeking judgment refers to requesting a *ḥukm* (ruling) in any of its aforementioned forms: whether through *fatwā*, *qāḍāʾ*, *tanfīdh*, or *tashrīʿ*. The Arabic term *al-Ḥākimiyyah* [الحاكمية] is one of the *alfāz muwalladah* (neologisms), that is, a generated expression not derived from any established precedent in classical Arabic usage. It is akin to other similarly constructed terms such as *al-Khāliqiyyah* [الخلقية], ‘Creatorship’ and *al-Rāziqiyyah* [الرازية], ‘providership.’ The first to employ this term within a political discourse grounded in Islamic doctrine was the late renowned scholar Abu al-ʿAlā al-Mawdūdī, may Allah have mercy upon him. He was the founder of *al-Jamāʿah al-Islāmiyyah* in the Indian subcontinent. Thereafter, it was adopted by the distinguished teacher and martyred thinker, Sayyid Quṭb, may Allah have mercy upon him, who disseminated it widely in his writings, presenting it as a defining marker of the Islamic movement to which he devoted his life. He emphasised its centrality and gave his life in its cause, thus attaining martyrdom and divine honour, may Allah elevate his rank.

Hence, *al-Ḥākimiyyah* signifies the exclusive divine authority of Allah, Exalted is He, as the ultimate sovereign and ruler, just as *al-Khāliqiyyah* signifies that Allah, Glorified and Exalted is He, is the sole Creator. Stated or expressed differently, He and He alone has the ultimate prerogative of command. *Shirk* in legislation and *al-Ḥākimiyyah* then is self-evidently defined as any statement or belief that contradicts the doctrine of divine exclusivity in legislation and rule, that is, the negation of *Tawḥeed al-Tashrīʿ wa-l-Ḥākimiyyah* (divine unity in lawmaking and governance). This form of

Shirk is the most widespread in the modern Western world, due to the adoption of secularism, erroneously referred to as *al-ʿIlmāniyyah*. Secularism assigns the right of legislation to human beings, claiming that sovereignty resides with the people.⁶ Given that the modern Western world is in this age, the most advanced in the fields of science and technology and that it exercises hegemonic control over the destinies of nations and peoples, its civilisation, along with its culture, has become dominant and normative, regarded as the benchmark against which all other civilisations and cultures are measured.

Meanwhile, the Islamic world has long since fallen from the position of global pre-eminence, intellectually, civilisationally, and politically for several centuries now. This decline reached its nadir with the dismantling of the final Islamic Caliphate in Istanbul after the First World War. Alongside this material and institutional collapse, the Muslim masses, and even many among their elites, experienced a profound psychological defeat in the face of Western expansion and dominance. As a result of all this, this idolatrous, polytheistic, and unbelieving ideology, namely, the ideology of secularism and the rejection of *al-Ḥākimiyyah*, has spread widely among Muslims, particularly among those who are Western-educated. Many among them have apostatised from Islam, renounced its civilisation and its cultural legacy, and become disbelievers and apostates, *lā dīniyyīn* (irreligious), *dunyāwiyyīn* (worldly materialist), and *ʿilmāniyyīn* (secularists). When we say that ‘many among the intellectuals of the Muslim world have apostatised from Islam,’ we do not say so metaphorically, nor as rhetorical exaggeration, nor for purposes of eloquence or stylistic embellishment, by Allah, no. We mean it in the precise, juridical sense: a true apostasy from Islam, by which they have become *kuffār* and *mushrikeen* having abandoned the *Deen*, and separated themselves from the community and the *Ummah*.

This blind apostasy and the mortal danger, coupled with the particular importance of the principle of ‘sovereignty of the *Sharīʿah*,’ from both the doctrinal perspective for each individual Muslim and the constitutional perspective for the community, that is, for the Muslim *Ummah* and the Islamic state necessitate a comprehensive and thorough discussion. We must

⁶ Theoretically this may well remain the case for many Western constitutions. In practice though, the old ‘divine right of kings’ seems to have morphed into the ‘divine right of the State,’ with the notion that the modern state is some sort of semi-divine hybrid which remains sacrosanct.

decisively refute the doubts raised about it by the enemies of Allah, namely the traitorous jurists of the rulers, upon whom the wrath of Allah and His curses will continuously fall until the Day of Judgment. Such a refutation cannot be adequately accomplished by general books on *Tawḥeed* or general works on ‘*Aqeedah*’; rather, its fulfilment requires an independent book or series of books dedicated entirely to this pressing matter.

2. Understanding the nature of sovereignty

The term *Siyādah* [السيادة], or ‘sovereignty,’ is a Western legal construct. Its intended meaning, as deduced from the perspective of scholars of positive law, is that it refers to the entity that exercises will and directs it across all types of relations, including with regard to material objects. From this vantage point, the most precise formulation that describes the reality of *Siyādah* according to this concept from the perspective of Islamic law is as follows: ‘An absolute supreme authority that alone possesses the right to issue judgments regarding entities and actions.’ Or, expressed differently: ‘An original, absolute, general, singular, and unlimited authority that exercises hegemony over both individuals and collectives.’

Accordingly, the meaning of *Siyādat al-Ummah* (the sovereignty of the nation), for example, is that the nation alone possesses the right to exercise will, and to direct it in determining rulings upon things and actions, particularly in the form of legislating laws that regulate life, based on what reason dictates. Whatever the legal or jurisprudential debates may be surrounding the precise definition of *Siyādah*, it remains indisputable that there exists a set of defining features and characteristics which are widely accepted as essential to the concept of sovereignty. These constitute a common denominator among all juristic and legal views regarding the nature of *Siyādah*.

Sovereignty is a supreme will distinguished by qualities that are absent from all other wills. The unifying trait among these characteristics is that it is a self-defining will: the possessor of sovereignty cannot be compelled by any will that is external to itself to act in a particular manner. It only binds itself

to a course of action if it so wills. This implies that the authority in question is absolute, for if it were not, it would be subject to another will that determines or limits it - which would contradict the claim that it is an original authority, meaning it does not derive its sovereign status from a prior or superior will. This supreme will is characterised by the following attributes:

1. *al-Itlāq* (absoluteness). The sovereign is not subject to law; rather, the law is an expression of its own will. No external will can compel it to act in a given way, for no will exists that is its equal or superior. Its will is always commanding, and no one precedes it in rights. Its relation to others is that of a master to a slave, or a leader to a follower. The slave or follower must execute the commands of the sovereign, not due to their content or rationale, but simply because they emanate from a will that is, by its very nature, superior to theirs.
2. *al-Sumū* (supremacy). Within its domain, the sovereign will stands above all other wills, and its authority surpasses all other authorities. There is no higher or even equivalent authority within the realm it governs.
3. *al-Waḥdāniyyah wa-l-Taḥarrud* (oneness and exclusivity). There can be only one sovereignty within a given domain. If two sovereigns were to exist in the same domain, disorder would ensue. The reasoning is as follows, if both issue contradictory directives, it becomes:
 - a) Impossible to implement both, which is an impossibility in practice.
 - b) Or, if both are ignored, their sovereignties are thereby nullified.
 - c) Or, if only one is followed, then that one alone is the true sovereign, and the other's claim is invalidated.

The perceptive reader may recognise in this the full logical form of the *Burhān al-Tamānu* (The proof underpinning that of Mutual Hindrance) for the Oneness of Allah, Exalted is He, which we have elaborated in its detailed matters in Volume 2 of this series.

4. *al-Aṣālah* (originality). Sovereignty exists independently; it has not received its supremacy from any prior or higher will.
5. *‘Ismah* (infallibility). The theory of sovereignty tends to presume that the will of the sovereign is inherently legitimate, and that its law is by default in conformity with the standards of truth and justice — not for any reason other than that it proceeds from the sovereign's will. Thus, the theory attributes to the sovereign a form of infallibility in judgment.

These then are the features of sovereignty, a supreme and commanding authority that:

- Rules exclusively, associating no one in its rule; its will is law, and its directives are binding legislation.
- Reigns supremely, acknowledging no authority above or equal to it.
- Exists independently, deriving its legitimacy from no other will.
- Possesses sacrosanct rights, which are not subject to forfeiture or statute of limitations.
- Is infallible, such that whatever issues from it is taken as truth and justice.

Can any Muslim truly doubt that these attributes are *fitting only* for Allah, Exalted and Sublime is He, and that the term *Siyādah* (sovereignty) in fact corresponds precisely with certain meanings connoted by the term *Rububiyyah* (Lordship)? A clear majority of Islamic thinkers, among the scholars of *Uṣul al-Fiqh* and others have explicitly affirmed that sovereignty is restricted exclusively and absolutely to the *Sharī'ah*, with no exceptions whatsoever. Some among them have even stated that no *ḥukm* exists prior to the coming of the *Sharī'ah* and that the rational intellect possesses no independent legislative authority whatsoever, and this is indeed the truth, firmly established by decisive rational and scriptural proofs such that it is impermissible to believe otherwise. Among those who upheld this position from the early tradition are Ibn Ḥazm especially in his major work on legal theory, *al-Iḥkām fī Uṣul al-Aḥkām*; al-Āmidī, Abu Bakr ibn al-‘Arabī; al-

Asnawī, al-Shawkānī, and Ibn al-Qayyim.¹ We have previously established decisive proofs for the doctrine of *Tawḥeed al-Tashrī‘ wa-l-Ḥākimiyyah*, that is, the affirmation that ultimate and supreme sovereignty belongs solely to the *Sharī‘ah*. Nevertheless, there exist additional proofs that further reinforce the certainty and conclusiveness of this principle and illuminate its deeper details and finer dimensions.

¹ Regarding the approach and thought of al-Āmidī, readers in English can consult: Bernad Weiss (2010), *The Search for God’s Law* (University of Utah Press: Salt Lake City). Separately, we have translated *al-Nubdtha al-Kafiyyah fi-Uṣul al-Ahkām al-Deen* by Ibn Ḥazm into English - ‘The Sufficient Summary on the Rules Derived from the Sources of *Deen*.’ This shorter treatise or primer, encapsulates the central arguments which are outlined in the four-volume Arabic edition of the *Iḥkām*.

3. The *Ḥukm* only belongs to Allah

Definitive evidences from the Qur’ān, the Prophetic *Sunnah*, the consensus of the Companions, and even sound reasoning, all affirm that sovereignty belongs solely and absolutely to the *Sharī‘ah*. In the Qur’ān, there are numerous verses indicating that *siyādah muṭlaqah* - absolute sovereignty, in the cosmos, in life, and in the human being, is the exclusive right of the revealed law. Among these texts is the saying of the Exalted, blessed are His names and Exalted are His attributes, relating the infallible, comprehensive, and definitive statement of the Prophet Yusuf, peace be upon him:

مَا تَعْبُدُونَ مِنْ دُونِهِ إِلَّا أَسْمَاءَ سَمَّيْتُمُوهَا أَنْتُمْ وَآبَاؤُكُمْ مَا أَنْزَلَ اللَّهُ بِهَا مِنْ سُلْطَانٍ إِنْ الْخُكْمُ إِلَّا لِلَّهِ أَمَرَ أَلَّا تَعْبُدُوا إِلَّا إِيَّاهُ ذَلِكَ الدِّينُ الْقَيِّمُ وَلَكِنَّ أَكْثَرَ النَّاسِ لَا يَعْلَمُونَ

*All those you worship instead of Him are mere names you and your forefathers have invented, names for which Allah has sent down no sanction. The Ḥukm belongs to Allah alone, and He orders you to worship none but Him: this is the true faith, though most people do not realise it.*¹

If the intended meaning of the phrase: ‘*He orders you to worship none but Him*,’ is to be narrowly and restrictively understood as ‘Do not direct any acts of (ritual) worship or devotional rites except to Allah,’ then such an understanding would be consistent with the rudimentary, backward, and limited comprehension of Yusuf’s two prison companions, and likewise with

¹ *Qur’ān*, 12: 40. Translations of the verse tend to vary, as does the rendering of the word ‘*Ḥukm*’ in the context of the verse here and that which will be quoted. For ease, we’ve inserted the transliteration of the word.

the degenerate and primitive interpretation of the Wahhābi sect, which has effectively consigned its intellect to retirement. According to such an interpretation, ‘*Ibādah* (worship) refers *solely* to a limited collection of ritual acts: bowing, prostration, prayer, fasting, erecting places of prayer, offering sacrifices and oblations, lighting candles, burning incense, and dispensing alms and vows, and the like. These acts are to be directed exclusively to Allah, without any partner; they are not to be directed to any other. And this is because He has commanded it, in His capacity as the sole possessor of *ḥukm*, that is, as the exclusive sovereign; He has the sole prerogative of command and ‘*He orders you to worship none but Him.*’

Thus, His worship, even in this narrowly defined sense, the directing of those rites and ritual acts to Him, and His monotheisation by restricting those acts to Him, is not the original basis, but rather a branch that stems from His exclusive sovereignty and authority in judgment. If He had commanded that some of those acts be directed to another, insofar as they are abstract actions, obedience to that command would have been obligatory. Indeed, this did occur in some instances, such as when He commanded the angels to prostrate before the father of mankind, Adam. Obedience is the foundation, while the acts and rites of worship, or what are designated as ‘acts of worship’ and the exclusivity of Allah in receiving them, constitute the branch. The directing of these actions to Him, and their restriction to Him alone, is not necessitated by empirical perception or rational necessity, but is an act of obedience to His command. Had He not issued a command regarding them, none of it would have been obligatory; and if He had commanded that any part of it be directed to another, obedience to that command would have been obligatory. Similarly, if He had permitted that any portion of it be directed to another, then nothing of it would have been prohibited. In such a case, those acts would not be acts of *Ibādah* at all, nor would it be permissible in principle to refer to them as worship directed to that other. Rather, they would be categorically something else, for example, if He commands or permits prostration to another, then such prostration would be a gesture of honour or greeting, not an act of worship. This is the truth indicated by the verse, and no other understanding can possibly be derived from it.

And if what is intended by *Ibādah* is its broad and comprehensive meaning, that is, obedience, submission, humility, and subjugation, then the phrase: ‘*He orders you to worship none but Him,*’ may be understood in two

ways. Firstly, as a logical consequence, application, and clarification of the practical, operative dimension of the phrase: *In al-ḥukmu illā li-Llāh* (The *ḥukm* belongs to Allah alone), which constitutes the epistemological and theoretical dimension. For obedience is the natural, almost reflexive and automatic, response to the belief that *al-ḥukm* belongs exclusively to Allah. Second, as a transformation of the necessity of obedience to Allah, Majestic is His glory, from being a rational and conceptual necessity, anterior to any specific command or prohibition, into a *ḥukm shar‘ī* (juridical ruling) whose observance or neglect entails reckoning, followed by reward or punishment. Thus, obedience to Allah is not only obligatory by the necessity of reason, and good by the judgment of reason, it is also obligatory by the address of the Lawgiver, and subject to divine commendation and reward for compliance, or divine censure and punishment for failure. The statement of the Exalted: ‘*Obey Allah,*’ (e.g., in 4:59), though it appears in the imperative form in many places throughout the Qur’ān, is not in reality, a true command. Otherwise, it could be asked: how does one come to know that obedience to Allah is obligatory? Is it due to a prior command? But that would necessitate another prior command, and so on *ad infinitum*. The truth is that this expression contains two implicit declarations, such that it is as though He, Majestic is His glory and exalted is His station has said: ‘You already know, by the necessity of reason, that My obedience which is obedience that is absolute and unconditional and it is rationally obligatory and inherently good, as befits those who possess reason. I am merely reminding you of this.’ Furthermore, ‘Now I inform you that, in addition to this rational necessity, I am requesting that obedience from you explicitly. For I created you for that purpose, and I shall hold you accountable for it. And there shall be: praise, divine approval, and reward for obedience, in the form of absolute felicity, everlasting bliss, and eternal delight - all of which are sought by every rational being; reproach, condemnation, and punishment for disobedience, from which there is no escape nor deliverance: an eternal Fire and everlasting misery, from which every rational soul should strive to be spared.’

Thus, the ultimate, absolute foundational truth is the exclusive *Rabbāniyyah* (lordship) of the Lord, Majestic is His glory in the *ḥukm*, and His uniqueness in *siyādah*, that is, His being characterised by *Ḥākimiyyah*. It necessarily follows, by sensory perception and rational necessity, that every servant who affirms and acknowledges this, that is, who affirms *Ḥākimiyyah*,

must devote to Him exclusive worship in its comprehensive sense, namely, complete submission and surrender. Or, if you prefer, you may say: obedience and subjugation. for that is the pinnacle of *Ubūdiyyah* (servitude), its essence, and the reality of its meaning. Then came the *Sharī'ah*, which rendered this not merely a rational necessity, but a binding legal obligation that admits no compromise. Indeed, it is the foremost of all obligations and the pivot around which they revolve.

عبادة الله = الشهادة بالحاكمية لله = طاعة الله

Worshipping Allah = Testifying to the *Hākimiyyah* of Allah = Obeying Allah

The critical equation has already been established and proven. Thus, the worship of Allah, understood in *its expansive sense* as obedience and submission founded upon love, reverence, and veneration, ultimately returns to, and is grounded in, its primary root and origin: the acknowledgment, assent, and surrender to Allah's *Hākimiyyah*. Or to put it in another way: it is the testimony to Allah's *Hākimiyyah*. This testimony is, in and of itself, the only rational and acceptable manifestation available to the created servant in relation to the Creator-Lord, that is, toward the Supreme Absolute Ontological Reality: *In al-ḥukmu illā li-llāh* (The *ḥukm* belongs to Allah alone); or, if one prefers: *Lā ilāha illā Allāh* (There is no god/deity but Allah). There is no substantive difference between the two formulations: they are mutually explanatory synonyms, each elucidating the other, and one necessarily follows from the other by both rational and categorical *Sharī'ah* necessity. Allah, the Exalted, has said:

إِنَّ الْحُكْمَ إِلَّا لِلَّهِ يَفْضُ الْحَقُّ وَهُوَ خَيْرُ الْفَاضِلِينَ

*The Ḥukm is for Allah alone: He tells the truth, and He is the best of judges.*²

This is a construction of exclusivity: *al-ḥukm* belongs to Him alone, with no partner whatsoever. His declaration, as in His narratives, is the truth, truth that conforms with reality in absolute certainty. He is the One who adjudicates every dispute and rules in every disagreement with a definitive, conclusive judgment, one that is neither subject to appeal nor to questioning. In the

² *Qur'ān*, 6: 57

worldly realm, this includes the definition of lawful and unlawful, of good and evil, and of the criteria for moral and ethical values. In the Hereafter, it includes the final, absolute, and just judgment between His servants. There is no goodness, nor justice, nor truth except in His judgment; there is no 'other god' except Him, and no Lord besides Him. Altogether, these three declarations: That the *ḥukm* belongs exclusively to Allah, with no peer or partner; that He declares the truth, and that He adjudicates in every dispute, and that He is the best of those who adjudicate - are all eternally and perpetually true reports about Allah, Blessed and Exalted is He.

It is inconceivable rationally that their opposites could be imagined. Nor is it permissible or even possible for these declarations to be *naskh* (abrogated) for *akhbār* (reports) cannot be subject to abrogation. And we may observe that the verse affirms that *ḥukm* is exclusive to Allah, with no rival or associate, when it states: *In al-ḥukmu illā li-llāh* - the very same expression employed in *Surah al-Yusuf* in the report of Yusuf ibn Ya'qub, peace and blessings be upon him and upon his father. That remarkable, comprehensive, and definitive statement has already been cited and discussed above. Yet, it is true that truthful reports and narratives may also come from others. Reporting what is true and factual is not restricted to Allah, Majestic is His glory. However, what comes from others in terms of truth and accuracy is necessarily limited, originating from acquired, created, and finite knowledge, whereas the knowledge of Allah is essential, infinite, and absolute. So vast is the disparity between one true report and another, and between one knowledge and another!

There are indeed *others* besides Allah who judge between disputants and adjudicate disagreements but how vast the difference between a created, contingent, finite, and temporal judge, and the One who is eternal, infinite, and absolute, the Best of Judges. But what is the nature of the statement that the *ḥukm* belongs to Allah alone, without rival or partner, what, precisely, is the *mahiyyah* (essential character) of this exclusivity? Is it a *khbar* (report) concerning an actual existing reality? Or is it an informative declaration concerning what ought to be, that is, a normative assertion of what is due and proper, regardless of what has been, is now, or will be the case in empirical reality? Upon reflecting on observed reality, known through direct sensory experience and through historically verified transmission, it becomes evident that the *ḥukm*, in all four senses relevant to our discussion and previously

outlined has, in fact, been exercised by others besides Allah, Blessed and Exalted is He. It continues to be exercised by others even now. Therefore, it is logically and textually impossible for the statement *In al-ḥukmu illā li-Llāh* to be both a truthful report from Allah and, at the same time, a report about a presently existing factual condition.

The phrase '*In al-ḥukmu illā li-Llāh*' must, then, necessarily be understood as a declaration of *what ought to be*, not a description of what has actually occurred, is occurring now, or will occur in future times. Its meaning, therefore, must be rendered as: The '*ḥukm ought to belong to Allah alone*,' without rival or partner, even if in actuality, something contrary to that has taken place. Or, in other words: The *ḥukm* is among the exclusive prerogatives of Allah, and He alone ought to possess it, without associate, even if there has been a transgression by others upon this divine prerogative. As a result, whoever appropriates the *ḥukm* for himself, even in a single matter, has committed the crime of trespassing upon a prerogative that belongs exclusively to the Divine Essence. He has violated the sanctity of Lordship and the domain of Divine Sovereignty. That is: he has made himself a *Rabb* and *Ilāh* besides Allah, whether or not he explicitly declares this, whether or not he openly proclaims it by saying, for instance: '*I am your Lord Most High*.'³

If this is indeed the case, and it is definitively the case if the Qur'ān is truly from Allah, then whoever grants such a one that prerogative has, without doubt, ascribed to him lordship and divinity *besides* Allah. He is, thereby, a *mushrik* and *kāfir*, and a *murtadd* from Islam, if he had previously held a valid contract of Islam. It is not possible for the matter to be otherwise. That is one aspect. From another aspect, the phrase itself requires further specification regarding the meaning of *ḥukm*, that exclusive prerogative of command for Allah, Glorified and Exalted be He. Does it encompass *all four meanings* previously mentioned, or only some of them? Through an inductive examination of the noble Qur'ān, the *mutawātir* reports from the *Sunnah*, the Prophetic biography, and even the narratives of former Prophets, we find that the Prophet, peace and blessings be upon him and his family, practiced *ḥukm* in several senses: in the sense of governance and the administration of public affairs, in the sense of *qaḍā'* - adjudication, and in the sense of *fatwā*, that is,

³ Qur'ān, 79: 24

the communication of a ruling without binding enforcement by the authority of the sovereign. His Companions, may Allah be pleased with them, likewise engaged in these forms of *ḥukm* by his command and under his supervision, and all of this was, without doubt, by the command and permission of Allah. It is therefore inconceivable that any of this could constitute even the slightest infringement upon, or transgression of, Allah's exclusive right to *ḥukm*. For this reason, it is necessary that the meaning of *ḥukm* intended in the verses that declare its exclusive belonging to Allah, Glorified and Exalted be He, is limited solely to: *tashrī'*, legislation in its essence and foundational meanings, as an act of origination and creation. We say: 'in its essence and foundational meanings' in anticipation of what might arise in certain feeble minds and shallow defective understandings: namely, a confusion between legislation in its essence and meanings and the act of expressing legislation, articulating legislation, or conveying legislation. To clarify further, the statements, actions, and tacit approvals of the Prophet peace and blessings be upon him and his family, are infallible revelation from Allah. Thus, the essence and meaning of the legislation is exclusively from Allah, but its articulation came through the Prophet's utterance and expression, or through his action or approval, all of which necessarily originate from the Prophet and not directly from Allah. This is the meaning of the established principle that the *Sunnah* is infallible revelation from Allah, conveyed by the Prophet through his words, deeds, or silent endorsement.

Likewise, the writings of the Muslim legal jurists are nothing more than commendable efforts to formulate divine legislation within the limits of the author's personal scholarly reasoning and knowledge. What distinguishes the works of the jurists from the texts of the Prophetic *Sunnah* is that the latter are infallible, while the former are not. Therefore, there is no guarantee that what is contained within them, in terms of the essence and meaning of legislation, is truly from Allah in accordance with His intended will. The same applies to what states enact in the form of constitutions, laws, and regulations. Such enactments may, in some cases, merely represent the adoption of divine legislation in its essence, even if formulated in the framework of constitutions, regulations, or codified law, as is the case in a state that is, in truth, an Islamic state. In that case, this would in reality fall under the category of '*riyāsat al-shu'ūn*' (administration of affairs), and not legislation by way of origination and creation. Hence, it would not constitute a transgression against Allah's

exclusive right to *ḥukm*, even if those adopted enactments are not infallible. However, the enactment by states and nations of constitutions, laws, and regulations may also take the form of legislation by origination, and this would indeed be a transgression upon the *Rububiyyah* and *siyādah* of Allah, and a violation of the sacred sanctum of Exalted *Uluhiyyah*. Whoever engages in this is a *Ṭāghut*, an arrogant disbeliever, accursed in both this world and the Hereafter. And whoever affirms such legislation or submits to it is, thereby, a *mushrik* and a *kāfir*. Such a system is itself a *kufr*-based system, not an Islamic system.

From all of the foregoing discussion, the gravity of the crime committed by the *Khawārij al-Ḥarūriyyah* against the religion of Allah becomes manifest, when they rejected arbitration between the Imām of Guidance, the Commander of the Faithful, Ali ibn Abi Ṭālib, may Allah's good pleasure and peace be upon him, and Mu'āwiyah ibn Abu Sufyān, on the claim that it contradicted the statement of the Exalted: *Inn-al-ḥukmu illā li-Llāh*. They alleged that Ali, who was the Imām of Guidance and the Gate of the Prophetic City of Knowledge, had delegated judgment to men in the *Deen* of Allah. Such indeed are the effects of shallow, defective understanding and degenerate, dull-minded reasoning, just as we see plainly today among the adherents of the Wahhābī sect. And Allah, the Exalted, has said confirming what has been previously established:

أَلَا لَهُ الْخُكْمُ وَهُوَ أَسْرَعُ الْحَاسِبِينَ

*The Judgement truly belongs to Him, and He is the swiftest of reckoners.*⁴

This too is another formulation of exclusivity, *ṣeeghat ḥaṣr*, for the word *al-ḥukm* appears with the definite article (*al-*), thereby encompassing the entire genus of *ḥukm*, that is, every form and type of judgment. His exclusivity and singularity, Glorified and Exalted is He, are further reinforced in the verse by the syntactic placement of the prepositional phrase (*lahu*) before the subject, and using the emphatic particle (*alā*), both of which denote emphasis and restriction. However, there are many who reckon and take account, yet He the Exalted is the best, the wisest, and the swiftest among those who reckon. And Allah, the Exalted, has said:

⁴ *Qur'ān*, 6: 62

أَلَا لَهُ الْخَلْقُ وَالْأَمْرُ تَبَارَكَ اللَّهُ رَبُّ الْعَالَمِينَ

*All creation and command belong to Him. Exalted be Allah, Lord of all the worlds!*⁵

This too is a formulation of exclusivity, as previously noted. Just as He alone is the Creator and the Provider in truth, by way of origination, independence, and ultimate causation, so too is He alone the One who commands and forbids. That is to say, He alone is the Sovereign, singular in His exclusive right to *ḥukm*, that is, to legislation in its essence and foundational meanings, by way of origination and initiation. Allah, the Exalted, has said:

وَمَا اخْتَلَفْتُمْ فِيهِ مِنْ شَيْءٍ فَحُكْمُهُ إِلَى اللَّهِ ذَلِكُمُ اللَّهُ رَبِّي عَلَيْهِ تَوَكَّلْتُ وَإِلَيْهِ أُنِيبُ

*Whatever you may differ about is for Allah to judge. [Say], 'Such is Allah, my Lord. In Him I trust and to Him I turn.'*⁶

This is not merely an exclusive attribution of Allah's right to *ḥukm* in matters over which people differ. Rather, He is the Judge absolutely and without restriction. Humanity has agreed only upon the necessary first principles of reason, those implanted within the very structure and nature of the intellect. Or, if you prefer, you may say: they are part of reason insofar as it is reason. And it is Allah, Glorified and Exalted be He, who created it thus, having decreed and judged by a *qaḍā' taqḍīrī kawnī* - preordained ontological determination, that it should be so. There is nothing beyond Allah, rather, He is *al-Awwal* (the First) and *al-Ākhir* (the Last), *al-Zāhir* (the Manifest) and *al-Bāṭin* (the Hidden), and to Him is the ultimate return. And He the Exalted has said:

وَاللَّهُ يَحْكُمُ لَا مُعَقِّبَ لِحُكْمِهِ؛ وَهُوَ سَرِيعُ الْحِسَابِ

*Allah decides— no one can reverse His decision - and He is swift in reckoning.*⁷

How could it be conceived that there exists anything in all of existence capable of contesting the judgment of Allah? Is He not the First and the Last? Is the

⁵ *Qur'ān*, 7: 54

⁶ *Qur'ān*, 42: 10

⁷ *Qur'ān*, 13: 41

origin not from Him? And is not the final return unto Him? Should anyone object to the judgment of Allah under the pretext that it conflicts with ‘reason,’ by his false and baseless assertion, it may rightly be said to him: ‘Did not your own reason affirm to you that you are limited in essence, that you are not infinite? That you are contingent in existence, not necessary, nor self-sufficient in your being? That you are created, not eternal or pre-existent? That your intellect is created by Allah, and not an independent or absolute intellect? That your knowledge is acquired, temporal, and limited—not intrinsic, absolute, eternal, or unbounded?’ What Allah possesses is absolute, intrinsic knowledge, complete awareness of His creation, and comprehensive capacity for perception and judgment, thus, His *ḥukm* is, by necessity, prior and superior to your judgment. Your supposition that Allah’s ruling is in conflict with reason is a false supposition. It is a case of ‘optical illusion’ of the inner sight, just as there is ‘optical illusion’ in outward vision. No matter how many times you repeat the act of looking, the eye remains deceived—yet you recognise, by rational evidence and its testimony, that it is indeed illusion and delusion.

So too in this case, reason must rule that such a supposition is false and illusory, for its contrary is logically impossible. This is the illusion of the intellect, and it stems from the whisperings of *Shayṭān*, may Allah curse him, for *Shayṭān* knows well that you are limited, and that you possess the potential for delusion. Thus, he performs his deception, hoping to escape with his crime. The human intellect, that marvellous creation, is, by Allah’s enablement and His honouring of it, capable of exposing these satanic whisperings and uncovering the illusion of the inner sight. To Allah belongs all praise and bounty. The origin of your intellect is from Allah by His act of creation, bringing-into-being, and composition - so how can the branch return to its source in repudiation? If the root is nullified, then all that branches from it is nullified. You yourself would be void, and your intellect rendered invalid. Confidence in it would vanish altogether, so how could you accept as authoritative a judgment that is founded upon the illusion of inner sight from the outset? It is precisely like the foolish imbecile who sat upon a branch of a tall and lofty tree, and then instructed a passerby to cut the trunk of the very tree itself, so the branch fell with him, and his neck was broken. How can the branch remain when the root is severed? And He, blessed are His names has said:

لَا يُسْأَلُ عَمَّا يَفْعَلُ وَهُمْ يُسْأَلُونَ

*He cannot be called to account for anything He does, whereas they will be called to account.*⁸

Questioning is a form of objection and review, and we have already established above that it is logically and ontologically impossible for there to be any objection to Allah’s judgment. Such a notion would entail the collapse and destruction of reason itself, the invalidation of its judgments, and the impossibility of speech and language altogether. Whoever reaches such a pathological condition one of utter sophistic nihilism, should endure with patience until it passes, for such states do not persist. Otherwise, let him perish, that he may relieve himself and be a source of relief to others. And Allah, the Exalted, has said:

مَا لَهُمْ مِنْ دُونِهِ مِنْ وَلِيٍّ؛ وَلَا يُشْرِكُ فِي حُكْمِهِ أَحَدًا

*And they have no one to protect them other than Him; He does not allow anyone to share His *Ḥukm*.*⁹

Thus, His possession of *ḥukm* and sovereignty is not merely by virtue of His being the *Wājib al-Wujūd*, the Necessarily Existent, eternal without beginning, everlasting without end, but also because: He does not permit anyone, absolutely or under any circumstance, to share with Him in judgment, that is, in legislation, in its essence and foundational meanings, as an act of origination and creation. In this single verse alone lies the most decisive refutation of the claims of secularism which seek to assign creation to Allah while denying that command belongs to Him. Yet He, Exalted are His names and lofty is His station, does not permit any partnership in His *ḥukm*, His command, or His prohibitions. He has not delegated this to anyone, nor has He authorised anyone in this matter whatsoever. He retains, forever, the ultimate prerogative of command.

This is the reading adopted by the majority. However, Ibn Aāmīr al-Shāmi recited: ‘*Wa-lā tushrik fī ḥukmihi aḥadan*,’ in the form of a prohibition: ‘Do not associate anyone with Him in His *ḥukm*.’ That is, do not appoint for

⁸ *Qur’ān*, 21: 23

⁹ *Qur’ān*, 18: 26

Allah any partner in judgment. And this meaning is already subsumed within the reading of the majority, which is, namely, Qur'ān transmitted through *mutawātir* and verified with absolute certainty. Thus, if He blessed are His names, does not Himself associate anyone in His *ḥukm*, nor delegate any portion of judgment to another, nor authorise anyone therein, then how much more impermissible it is for anyone else to assign a partner to Him in *ḥukm*. The truth is that most secularists and especially their leaders, make such statements as a matter of political expediency and hypocrisy intended to deceive the common people. For in reality, the majority of them are materialists and atheists: they deny the existence of the Creator, or they doubt it, or they suspend judgment concerning it. Yet they are too cowardly to declare such views openly, or to call others to them explicitly, out of fear of the wrath of the simple masses who believe in the existence of Allah, and in caution against the public backlash that might ensue.

4. Legislation which would constitute tyranny and usurpation

The matter of undertaking or issuing legislation without reference to Allah the Exalted, not only constitutes tyranny and usurpation, but it is also a matter of disputing with Allah concerning his Lordship, *al-Rububiyyah*. Allah the Mighty and Sublime says:

أَمْ لَهُمْ شُرَكَاءُ شَرَعُوا لَهُمْ مِّنَ الدِّينِ مَا لَمْ يَأْذَنَ بِهِ اللَّهُ وَلَوْلَا كَلِمَةُ الْفَصْلِ لَفُصِّلَ بِهِ إِنَّ الظَّالِمِينَ لَهُمْ عَذَابٌ أَلِيمٌ

*Or have they partners who have prescribed for them any Deen that Allah does not sanction? And were it not for the word of judgment, decision would have certainly been given between them; and surely the unjust shall have a painful punishment.*¹

It is well known that the *mushrikeen* who ascribe divinity to their objects of worship - those who associate other deities alongside Allah, necessarily believe that these deities possess the right of sovereignty: namely, the authority to command and prohibit, even if only in certain matters. It is therefore inconceivable that this alone is the intended meaning of the verse, for that would be a foregone conclusion and far be it from the speech of Allah to contain such triviality or meaningless redundancy. Thus, the verse expressed in the form of a rhetorical question serves in fact to censure them for having accepted legislation in religion from other than Allah, whereby they made such entities, by virtue of their acceptance and assent, partners with Allah. This holds true even if they believed nothing of them beyond this

¹ Qur'ān, 42: 21. Here we have opted for Shakir's translation of the verse.

particular aspect, and even if they vehemently denied having associated them with Allah, owing to their primitive mindset and limited perspective. An example of this will be presented in the account of ‘Adi ibn Ḥātim, may Allah be pleased with him. Legislation from *other* than Allah is *ṭughyān* - tyranny, and the one who engages in it seeks to contest Allah’s exclusive right of *Rububiyyah*, that is, His sovereignty and supreme authority, setting himself up as a lord, a rival, a deity, a partner, and a judge besides Allah, by necessity and without doubt, regardless of his attempts at evasion or self-justification. Whoever legislates any matter of religion from his own self has thereby made himself a partner with Allah, Exalted is He. He has overstepped his bounds, and has thus become a *Tāghut* - a rebel against Allah’s *Rububiyyah* and *Hākimiyyah*, contesting His majesty and greatness.

Whoever affirms the right of legislation to other than Allah, or accepts religious legislation from other than Him, has thereby made that other a partner to Allah - taking him as a deity, a lord, and a judge besides Allah. By this, he is a *mushrik* and *kāfir*, who has apostatised from Islam, if he had previously entered into its fold validly. We hasten to affirm and to remind that the term *al-Deen* [الدِّين] in this verse refers definitively to the comprehensive *Sharī‘ah*, that is, the designated path of life which encompasses civilisation and culture, as previously mentioned, and not merely to rulings related to spirituality, ritual acts of devotion, and morality. Indeed, the Almighty and Exalted said:

اتَّخَذُوا أَحْبَارَهُمْ وَرُهْبَانَهُمْ أَرْبَابًا مِنْ دُونِ اللَّهِ

‘They take their rabbis and their monks as lords besides Allah.’²

Regarding the *Tafsir* of this verse, the following is what has been reported upon the authority of ‘Adi ibn Ḥātim, he narrates:

أتيت رسول الله صلى الله عليه وعلى آله وسلم وفي عنقي صليب من ذهب، فقال يا عدي، اطرح هذا الوثن من عنقك! قال فطرحته؛ وانتهيت إليه وهو يقرأ في سورة براءة فقرأ هذه الآية اتَّخَذُوا أَحْبَارَهُمْ وَرُهْبَانَهُمْ أَرْبَابًا مِنْ دُونِ اللَّهِ قال قلت يا رسول الله، إنا لسنا نعبدهم! قال ليس يحرمون ما أحل الله فتحرمونه؟ ويحلون ما حرم الله فتحلونه؟ قال قلت بلى، قال فتلك عبادتهم

² *Qur’ān*, 9: 31

I came upon the Messenger of Allah, peace and blessings be upon him, sporting a gold cross around my neck. So he (the Prophet) said: *O ‘Adi, remove this wathn from your neck.* I removed it, then I approached him while he was reciting from *Surah al-Barā’ah*, the verse: *‘They take their rabbis and their monks as lords besides Allah.’* In reply I said – O Messenger of Allah, we don’t worship them! He replied, *Do they not forbid what Allah has made lawful, and you then forbid it? Do they not permit what Allah has forbidden, and you then permit it?* Yes I replied. He said: *That is the worship of them.*

Specifically the narration has been reported in the *Tafsir* of Imām al-Ṭabari.³ In terms of its wording, the *ḥadith* is based upon that of Imām Abu Kareeb Muḥammad ibn al-Alā’ al-Hamdāni, and it has other pathways of reporting as per Imām al-Ṭabari, whether extended or abbreviated. Moreover, al-Bukhārī mentions this too in his *Tārīkh al-Kabir* from the channel of Mālik ibn Ismā’il, it is also recorded by al-Bayhaqy in his *Sunan*.⁴ Similarly, al-Tirmidhi records this in his collection of *Sunan*.⁵ After citing the narration Abu Esa said: ‘This *ḥadith* is *ḥasan ghareeb*, we do not know of it except as a narration of ‘Abd al-Salām ibn Ḥarb; Ghutaṭayf ibn Ayan is not well known in *ḥadith*.’ Despite his strictness Ibn Ḥazm judged this narration to be *ṣaḥīḥ*.⁶

There has been some scholarly errors made in the weakening of the narrator Ghutaṭayf ibn Ayan. For example, Imām al-Dāraquṭni declared him *daef* (weak) but in fact had confused him with Rawḥ ibn Ghutaṭayf ibn Ayan

³ *Tafsir* al-Ṭabari [Vol. 6, p. 354 (print edition)]. The *isnād* is Abu Kareeb and Ibn Waki’ narrated to us they said Mālik ibn Ismā’il narrated to us (*ḥawala*) and Aḥmad ibn Ishāq narrated to us he said Abu Aḥmad narrated to us, all of them (narrating) from ‘Abd al-Salām ibn Ḥarb; he said Ghutaṭayf ibn Ayan narrated to us from Mus’ab ibn Sa’d from ‘Adi ibn Ḥātim. The verse quoted is from (9: 31), in full it reads: *‘They take their rabbis and their monks as lords besides Allah, as well as Christ, the son of Mary. But they were commanded to serve only one God: there is no god but Him; He is far above whatever they set up as His partners.’*

⁴ See: al-Bukhārī *Tārīkh al-Kabir* [Vol. 6, p. 408 (print edition, 2008)], al-Bayhaqy *Sunan al-Kubra* [Vol. 10, no. 20351 (print edition)].

⁵ As recorded in the *Sunan* of al-Tirmidhi: al-Ḥussain ibn Yazeed al-Kufi narrated to us ‘Abd al-Salām ibn Ḥarb narrated to us from Ghutaṭayf ibn Ayan from Mus’ab ibn Sa’d from ‘Adi ibn Ḥātim. He said, ‘I came to the Prophet, peace and blessings be upon him, whilst wearing a gold cross around my neck. He (the Prophet) said: *O ‘Adi, remove this Wathn from your neck.* And I heard him reciting from *Surah al-Barā’ah*: *They take their rabbis and their monks as lords besides Allah.* He said: *As for them, they did not worship them, but when they made something lawful for them, they considered it lawful, and when they made something unlawful for them, they considered it unlawful.*’

⁶ Ibn Ḥazm *al-Iḥkām* [Vol. 2, p. 302]

who is *matrook* and *sāqit*.⁷ Regretfully, al-Ḥāfiẓ Ibn Ḥajar also followed al-Dāraquṭni in this error.⁸ Yet the truth of the matter is that the *isnād* is *ḥasan li-dhātihi*, and the *matn* of the *ḥadith*, sound and upright, concurring with established historical reality. In any event, it is *Ṣaḥīḥ* as per the criteria of Ibn Ḥibbān. Overall at a minimum, the *ḥadith* is *ḥasan* upon which evidence can be built. It is definitely *Ṣaḥīḥ* when viewed with the following attestations that support it. These include what Imām al-Ṭabari cited in his seminal *Tafsir*, narrated from Ḥudhayfah ibn al-Yamān, may Allah be pleased with him; the *isnād* here contains well-established and renowned Imām's all of which are reliable:

حدثنا محمد بن بشار قال حدثنا عبد الرحمن بن مهدي قال حدثنا سفيان عن حبيب بن أبي ثابت عن أبي البختري عن حذيفة أنه سئل عن قوله تعالى (اتَّخَذُوا أَوْلِيَاءَهُمْ مِنْ دُونِ اللَّهِ) أكانوا يعبدونهم؟ قال لا، (وفي رواية: أما إنهم لم يكونوا يصومون لهم، ولا يصلون لهم، ولكنهم) كانوا إذا أكلوا لهم شيئاً استحلوه، وإذا حرّموا عليهم شيئاً حرّموه

Muḥammad ibn Bashār narrated to us he said 'Abd al-Raḥman ibn Mahdi narrated to us he said Sufyān narrated to us from Ḥabīb ibn Abi Thābit from Abul-Bakhtari from Ḥudhayfah that he asked about where He the Almighty said: 'They take their rabbis and their monks as lords besides Allah,' (inquiring) did they worship them? He replied 'No. (and in another narration: 'They did not fast for them, nor did they pray for them, but) if they permitted something for them, they permitted it, and if they prohibited something for them, they prohibited it.'⁹

The *isnād* is extremely authentic, particularly if Abul-Bakhtari heard it directly from Ḥudhayfah, which is our preferred view. Thus it should be accepted as certain unless there is evidence to the contrary. Imām al-Ṭabari narrated this tradition by way of several *Ṣaḥīḥ* and *ḥasan* channels of transmission, narrated through Ḥabīb ibn Abi Thābit. Something similar was also recorded by al-Bayhaqy. There is another channel that al-Ṭabari has from Ḥudhayfah that carries the wording 'They didn't worship them, but they

⁷ For example see: Ibn Abi Ḥātim *al-Jarḥ wa Ta'deel* [Vol. 3, p. 292, no. 2245]

⁸ For example see: Ibn Ḥajar *Taqreeb* [p. 516, no. 5364 (print edition)] and al-Dāraquṭni *al-Du'afā' wal-Matrukin* [p. 202, no. 432]. The entry which al-Mizzi has is in *Tahzeeb* [Vol. 8, p. 178, no. 5322, (print edition, 2008)].

⁹ *Tafsir* al-Ṭabari [Vol. 6, p. 354 (print edition)].

obeyed them in committing sins!' Imām al-Ṭabari recorded other lines of transmission from the earliest exegetes regarding the interpretation of the verse [9: 31]. Among the various lines, in summary, are the following reports:

- From Ibn 'Abbās who said of the verse 'They adorned them with their obedience.'
- From al-Suddi narrating from Ibn 'Abbās, 'They didn't command them to bow-down before them, but they commanded them to disobey Allah, so they obeyed them (in that) and for that reason, Allah referred to them as *Arbāb* (lords).'
- From al-Ḥasan al-Baṣri who commented, 'It is in relation to obedience.'
- From al-Rabi' ibn Anas from Abul-Āliyah, regarding the *Tafsir* of the *ayah*, he mentions, 'I said to Abul-Āliyah – what was *al-Rububiyyah* (the lordship) which existed in relation to the Children of Israel?' He said: '(They didn't criticise our rabbis for anything that had passed); whatever they commanded us, we obeyed, and whatever they forbade us, we refrained from it out of deference to their word. Yet they found in the Book of Allah what they had been commanded and forbidden, but they sought counsel from men and cast the Book of Allah behind their backs.'¹⁰

There may seem some ambiguity regarding the phrase as it appears above, and in the manuscripts from which the *Tafsir* is drawn - 'They didn't criticise our rabbis for anything that had passed,' [لم يسبوا أئبانا بشيء مضي]. This could be a corruption of the phrase 'We wouldn't precede our rabbis in anything,' [لن نسبق أئبانا بشيء] and Allah ultimately knows best. Crucially though for the purposes of our discussion here, Imām al-Ṭabari didn't find an alternate interpretation for the phrase as it appears in the Qur'ānic text [9: 31], namely '*lords besides Allah*,' [أرباباً من دُونِ اللَّهِ]. What he related was that which was previously agreed upon by way of unanimity of the *mufasireen*, 'They took them as lords besides Allah, meaning, they treated them as masters besides Allah, obeying them in disobedience to Allah, so they made lawful for them what they had declared lawful, even though Allah had forbidden it; they

¹⁰ *Tafsir* al-Ṭabari [Vol. 6, pp. 354/355 (print edition)].

prohibited for them what those men had declared forbidden, even though Allah had made it lawful for them.’¹¹

Reflect upon the statement of the Prophet peace and blessings be upon him and his family: ‘Do they not forbid what Allah has made lawful, and so you deem it forbidden? And do they not permit what Allah has made unlawful, and so you deem it permitted?’ The phrase *fa-tuḥarrimūnahu* [فَتَحَرِّمُونَهُ], ‘so you deem it forbidden’ cannot, by necessity, in this context, mean anything other than: ‘you believe it to be forbidden.’ Likewise, precisely the same *fa-tuḥillūnahu* [فَتَحِلُّونَهُ] ‘so you deem it permitted,’ means: ‘you believe it to be permitted.’ And such a belief cannot be conceived in the case of these individuals except on the basis of their belief that the rabbis and monks possessed the authority to declare things lawful and unlawful, that is, the authority to legislate. In other words, this amounts to *ascribing al-Ḥākimiyyah* or *al-Rububiyyah*, or supreme and final authority - call it what you will, to the rabbis and monks.

Now reflect upon his words peace and blessings be upon him and his family: ‘That was their worship of them.’ The ascription of *al-Ḥākimiyyah* to the rabbis and monks is precisely what constitutes ‘*Ibādah*’ (worship) of them. ‘Adi may Allah be pleased with him had understood *al-‘Ibādah* in the primitive and deficient sense, equating it with *al-‘Ibādāt* (i.e., ritual acts of humility and submission, and pure rites of sanctification, such as supplication, seeking aid, invocation; bowing, prostration, prayer and fasting; the erection of sanctuaries; the offering of sacrifices and oblations; the lighting of candles, the burning of incense and perfumes; and the giving of alms and vows). This was precisely the same deficient understanding held by the Wahhābi sect, fourteen centuries after the revelation of the Qur’ān. Such was the understanding of ‘Adi may Allah be pleased with him, until the unlettered Prophet, peace and blessings be upon him and his family, taught him that the ascription of *al-Ḥākimiyyah* to the rabbis and monks, that is, the acknowledgment of their right to legislate constituted the act of making them *Arbāb* – lords, possessed of sovereignty. And this, in truth, is *al-‘Ibādah* rendered unto them. Or, if you will, say: they believed that the rabbis and monks possessed *al-Ḥākimiyyah*, not that they prayed to them, or fasted for

¹¹ *Tafsir* al-Ṭabari [Vol. 6, p. 355 (print edition)].

them, or prostrated to them, or offered sacrifices to them, or sought from them benefit or protection from harm.

Indeed, were you to ask the rabbis and monks, ‘Are you lords besides Allah?’ they would leap back in alarm, vehemently denying the accusation, and would charge you with slander and fearmongering, alleging that you are misleading the masses and turning them away from their religious authority and leadership. Yet none of this would avail them or suffice in their defence: for in usurping Allah’s exclusive right to legislate and judge, they have in reality made themselves lords besides Allah. They have thereby become *ṭawāgheet* - disbelieving enemies of Allah, who must be disbelieved in and renounced, regardless of their cries, excuses, and justifications. And whoever grants them this right is likewise a *mushrik kāfir*, no matter what pretexts or rationalisations he may offer. For the issue is not one of labels, names, or terminology, but rather one of the realities of speech, and the essence of beliefs and conceptualisations. Nor does it benefit the people in question to claim that Allah delegated to them the *right of legislation*, as they allege, invoking, by way of interpretation, the statement attributed to the noble Messiah, Jesus son of Mary, peace be upon him and his mother, which was addressed to Peter: ‘You are my solid rock, and upon you I shall build my Church; whatsoever you bind on earth shall be bound in heaven, and whatsoever you loose on earth shall be loosed in heaven,’ or words to that effect, assuming its authenticity in the first place.¹² The most that can be said of such a claim is that it may serve as a pretext to withhold *taḳfīr* of those who held such a view *in their individual persons*, due to their being excused by interpretive error, prior to the advent of the Muḥammad’s message, while the statement itself, in its essence, remains among the statements of disbelief, without dispute.

This understanding is most certainly the correct one; it is the very interpretation held by Ḥudhayfah may Allah be pleased with him regarding this verse [9: 31]. It is also the interpretation of Ibn ‘Abbās, al-Ḥasan al-Baṣri, and Abu al-‘Aliyah. For this reason, al-Alūsī stated in his *Tafsir*: ‘The majority of the exegetes have said the intended meaning of *Arbāb* (lords) is not that they believed them to be creators or deities over the universe, but

¹² Reference to this can be seen in the Biblical passage at Mathew [16: 18/19].

rather that they obeyed them in their commands and prohibitions.¹³ This is corroborated as well by the following Qur'ānic verses set out here by way of testimonials to what has been presented thus far.

First testimonial

Allah Majestic is His Glory and Exalted His Station says:

قُلْ يَا أَهْلَ الْكِتَابِ تَعَالَوْا إِلَى كَلِمَةٍ سَوَاءٍ بَيْنَنَا وَبَيْنَكُمْ أَلَّا نَعْبُدَ إِلَّا اللَّهَ وَلَا نُشْرِكَ بِهِ شَيْئًا وَلَا يَتَّخِذَ بَعْضُنَا بَعْضًا أَرْبَابًا مِنْ دُونِ اللَّهِ فَإِنْ تَوَلَّوْا فَقُولُوا اشْهَدُوا بِأَنَّا مُسْلِمُونَ

Say, 'People of the Book, let us arrive at a statement that is common to us all: we worship Allah alone, we ascribe no partner to Him, and none of us takes others beside Allah as lords.' If they turn away, say, 'Witness our devotion to Him.'¹⁴

It is self-evident by the necessity of human observation and experience, especially in relation to the condition of the People of the Book in our own time, as well as by the *mutawātir* historical accounts of former ages that they did not believe, neither concerning themselves nor concerning one another, in *Uluhiyyah* in the sense of: being eternal and immortal, untouched by death; or of being composed of a divine substance, essence, or element (as is the belief of Trinitarian Christians concerning the Messiah, son of Mary); or of being creators in an independent sense; or of being autonomous managers and disposers of affairs in the cosmos apart from Allah's will and decree; or of being able to escape Allah or overpower Him by fleeing; or anything of that sort. What then is this *Rububiyyah* that they were prohibited from ascribing to one another? This *Rububiyyah* is, therefore most certainly and exclusively the recognition of their right to legislate, in its essential meaning and implications, by way of origination and authorship; that is, *siyādah* - sovereignty, whereby they are consequently deemed to possess the right to be obeyed.

Second testimonial

¹³ *Tafsir al-Alūsī* [Vol. 3, p. 436]. The wording is also found in *Tafsir al-Rāzi* [Vol. 14, p. 38].

¹⁴ *Qur'ān*, 3: 64

Allah the Exalted and Majestic says:

وَإِنَّ الشَّيَاطِينَ لَيُوحُونَ إِلَى أَوْلِيَائِهِمْ لِيُجَادِلُوكُمْ وَإِنْ أَطَعْتُمُوهُمْ إِنَّكُمْ لَمُشْرِكُونَ

The evil ones incite their followers to argue with you: if you listen to them, you too will become mushrikeen.¹⁵

That is, if you obey them and follow them in declaring carrion to be lawful, then you have become disbelievers and *mushrikeen* affirming for other than Him the right of sovereignty, *al-Hākimiyyah*, and legislation. And this verse is, by consensus, originating in Mecca, wherein the term *Shirk* was used exclusively to refer to the *Shirk al-Kufr* (the *Shirk* of disbelief), *al-Shirk al-Akhbar* – the major *Shirk* which expels one from the *Deen* and stands in direct contradiction to Islam. Rulings as they related to *al-Shirk al-Aṣghar*, minor *Shirk*, and hidden *Shirk*, *al-Khafi*, the etiquettes of pure *Tawḥeed*, such as the prohibition against swearing by one's forefathers, or saying: 'By the will of Allah and your will,' only came later, in Medina, without any disagreement. And since *Shirk*, the major *Shirk* that contradicts Islam entirely and expels one from the fold of the Islamic faith, if one had previously entered it, is defined exclusively as: 'to set up another god/deity alongside Allah,' as stated explicitly in the Qur'ān:

لَا تَجْعَلْ مَعَ اللَّهِ إِلَهًا آخَرَ فَتَقْعَدَ مَذْمُومًا مَخْذُولًا

Set up no other god beside Allah, or you will end up disgraced and forsaken.¹⁶

Moreover, confirmed by the following:

ذَلِكَ مِمَّا أَوْحَى إِلَيْكَ رَبُّكَ مِنَ الْحِكْمَةِ، وَلَا تَجْعَلْ مَعَ اللَّهِ إِلَهًا آخَرَ فَتُلْقَى فِي جَهَنَّمَ مَلُومًا مَذْهُورًا

This is some of the wisdom your Lord has revealed to you: do not set up another god beside Allah, or you will be thrown into Hell, blamed and rejected.¹⁷

The consequences of which are confirmed here:

¹⁵ *Qur'ān*, 6: 121

¹⁶ *Qur'ān*, 17: 22

¹⁷ *Qur'ān*, 17: 39

أَلْقَيْنَا فِي جَهَنَّمَ كُلَّ كَفَّارٍ عَنِيدٍ، مَنَّاعٍ لِلْخَيْرِ مُعْتَدٍ مُّرِيبٍ، الَّذِي جَعَلَ مَعَ اللَّهِ إِلَهًا آخَرَ فَأَلْقَيْنَاهُ فِي الْعَذَابِ الشَّدِيدِ، قَالَ قَرِينُهُ رَبَّنَا مَا أَطْعَمْتُهُ وَلَكِنْ كَانَ فِي ضَلَالٍ بَعِيدٍ

‘Hurl every obstinate disbeliever into Hell, everyone who hindered good, was aggressive, caused others to doubt, and set up other gods alongside Allah. Hurl him into severe punishment!’ – and his [evil] companion will say, ‘Lord, I did not make him transgress; he had already gone far astray himself.’¹⁸

In addition to that, we have the testimony of Abu Bakr al-Ṣadeeq, may Allah be pleased with him, in the presence of the Prophet, peace and blessings be upon him, where he said: ‘Is *Shirk* anything other than attributing another god besides Allah?’ Also in the same manner, the dialogue which Ibn Umar, may Allah be pleased with him undertook with a man, apparently from the *Khawārij*, the extremist asked him a series of repeating questions upon what is *Shirk* in which he replied:

I was sitting with Ibn Umar, when a man entered upon us and he said: ‘O Abu ‘Abd al-Raḥman, what is associating partners with Allah?’ In reply, Ibn Umar said: ‘That you make another god alongside Allah.’ (The man) also asked: ‘O Abu ‘Abd al-Raḥman, what is associating partners with Allah?’ Ibn Umar replied, ‘That you take besides Allah rivals.’ (The man) asking again said: ‘O Abu ‘Abd al-Raḥman, what is associating partners with Allah?’ At this juncture Ibn Umar then said: ‘I urge you, if you are a Muslim, to leave me at once!’¹⁹

Then it follows: since the *one who obeys* in matters of declaring the lawful and the unlawful is thereby a *mushrik* - a polytheist whose act constitutes *kufir* and expels him from the *Deen*, the *one obeyed* must necessarily have been taken as a *Rabb* (lord), and a god/deity besides Allah, or a rival unto Him, this, by necessity and without exception. This reality is also clearly demonstrated, for example, in the account of ‘Adi ibn Ḥātim, and made manifest in a manner that leaves no room for doubt.

¹⁸ *Qur’ān*, 50: 24/27

¹⁹ This paragraph draws upon the narratives from the previous volume in this series [Vol. 3, pp. 105/107]. One can refer to that for the complete wording and channels. By way of reference, in short, for the narration of Abu Bakr, that is recorded by al-Bukhārī in *‘Adab al-Mufrad* [Vol. 1, no. 716]; the Ibn Umar narrative is from *Muṣṣanaḥ* ‘Abd al-Razzāq [Vol. 2, no. 4364].

Third testimonial

Allah the Almighty said:

وَمِنَ النَّاسِ مَنْ يَتَّخِذُ مِنْ دُونِ اللَّهِ أَنْدَادًا يُحِبُّونَهُمْ كَحُبِّ اللَّهِ وَالَّذِينَ آمَنُوا أَشَدُّ حُبًّا لِلَّهِ وَلَوْ يَرَى الَّذِينَ ظَلَمُوا إِذْ يَرَوْنَ الْعَذَابَ أَنَّ الْقُوَّةَ لِلَّهِ جَمِيعًا وَأَنَّ اللَّهَ شَدِيدُ الْعَذَابِ

Even so, there are some who choose to worship others besides Allah as rivals to Him, loving them with the love due to Allah, but the believers have greater love for Allah. If only the idolaters could see – as they will see when they face the torment – that all power belongs to Allah, and that Allah punishes severely.²⁰

Here ‘*al-Andād*,’ sometimes translated as ‘rivals’ or ‘peers,’ relates to the leaders who are followed, they are obeyed in committing sin and disobedience to, or against, Allah. Indeed this was said by some of the Companions of the Prophet, peace and blessings be upon him, such as Ibn ‘Abbas and Ibn Mas’ud, as well as other early exegetes. That much has been noted already in the *Tafsir* of Imām al-Ṭabari:

Musa ibn Hārūn narrated to me he said ‘Amr narrated to us he said Asbāṭ narrated to us from al-Suddi in the report he mentioned from Abu Mālik and from Abu Ṣāliḥ from Ibn ‘Abbās, and another time from Ibn Mas’ud and from the Companions of the Prophet, peace and blessings be upon him, (regarding the verse) ‘*Do not, knowing this, set up rivals to Allah*,’ he said: ‘Equals among men whom you follow in disobedience to Allah.’²¹

²⁰ *Qur’ān*, 2: 165

²¹ The full length citation regarding the verse [2: 22] has already been set out in the previous volume to this series, see [Vol. 2, pp. 537/539]. By way of a reminder, al-Ṭabari writes: ‘Regarding the interpretation of where He, the Almighty said: ‘*Do not, knowing this, set up rivals to Allah*,’ [2: 22]. Abu Ja’far said: ‘*al-Andād*’ (rivals) is the plural of (the word) *nidd* and *al-nidd*; which means an equal, a like. As has been said by (the poet) Ḥassān ibn Thābit: ‘Do you mock him, yet you are not his *nidd* (equal)?’ That is to say, he says that you have something akin to this. And it is everything which is the like of something else, and similar to it, it is its ‘*nidd*.’ As it (has been) narrated by: Bishr ibn Mu’adh narrated to us he said Yazeed narrated to us from Sa’eed from Qatādah (regarding the verse) ‘*Do not, knowing this, set up rivals to Allah*,’ (he said): ‘Any equals.’ See: *Tafsir* al-Ṭabari, [Vol. 1, pp. 368/369 (print edition)].

With this interpretation, it is evident that it is not far removed in meaning from the previous one. This interpretation is necessarily correct, as the entire context says, as per the Qur'ānic verses:

وَمِنَ النَّاسِ مَنْ يَتَّخِذُ مِنْ دُونِ اللَّهِ أَنْدَادًا يُحِبُّونَهُمْ كَحُبِّ اللَّهِ وَالَّذِينَ آمَنُوا أَشَدُّ حُبًّا لِلَّهِ وَلَوْ يَرَى الَّذِينَ ظَلَمُوا إِذْ يَرُونَ الْعَذَابَ أَنَّ الْقُوَّةَ لِلَّهِ جَمِيعًا وَأَنَّ اللَّهَ شَدِيدُ الْعَذَابِ، إِذْ تَبَرَّأَ الَّذِينَ اتَّبَعُوا مِنَ الَّذِينَ اتَّبَعُوا وَرَأَوْا الْعَذَابَ وَتَقَطَّعَتْ بِهِمُ الْأَسْبَابُ، وَقَالَ الَّذِينَ اتَّبَعُوا لَوْ أَنَّ لَنَا كَرَّةً فَنَتَبَرَّأَ مِنْهُمْ كَمَا تَبَرَّءُوا مِنَّا كَذَلِكَ يُرِيهِمُ اللَّهُ أَعْمَالَهُمْ حَسَرَاتٍ عَلَيْهِمْ وَمَا هُمْ بِخَارِجِينَ مِنَ النَّارِ

Even so, there are some who choose to worship others besides Allah as rivals to Him, loving them with the love due to Allah, but the believers have greater love for Allah. If only the idolaters could see— as they will see when they face the torment— that all power belongs to Allah, and that Allah punishes severely. When those who have been followed disown their followers, when they all see the suffering, when all bonds between them are severed, the followers will say, 'If only we had one last chance, we would disown them as they now disown us.' In this way, Allah will make them see their deeds as a source of bitter regret: they shall not leave the Fire.²²

As we have previously stated, the matter is not one of *mere obedience*, but rather one of *submission to them in the right to legislate*, in its essence and implications, by way of origination and authorship, that is, *siyādah* (sovereignty), or in other terms, *Rububiyyah* (lordship), such that on this basis they are accorded the right to be obeyed.

Fourth testimonial

This is where Allah the Exalted says:

مَا كَانَ لِبَشَرٍ أَنْ يُؤْتِيَهُ اللَّهُ الْكِتَابَ وَالْحُكْمَ وَالنَّبُوءَ ثُمَّ يَقُولَ لِلنَّاسِ كُونُوا عِبَادًا لِي مِنْ دُونِ اللَّهِ وَلَكِنْ كُونُوا رَبَّانِيِّينَ بِمَا كُنْتُمْ تُعَلِّمُونَ الْكِتَابَ وَبِمَا كُنْتُمْ تَدْرُسُونَ وَلَا يَأْمُرُكُمْ أَنْ تَتَّخِذُوا الْمَلَائِكَةَ وَالنَّبِيِّينَ أَرْبَابًا: أَيَأْمُرُكُمْ بِالْكُفْرِ بَعْدَ إِذْ أَنْتُمْ مُسْلِمُونَ

No person to whom Allah had given the Scripture, wisdom, and Prophethood would ever say to people, 'Be my servants, not God's.' [He would say], 'You should be devoted to Allah because you have taught the Scripture and studied it closely.' He would never command you to take angels and Prophets as lords.

²² Qur'ān, 2: 165/167

*How could he command you to be disbelievers after you had devoted yourselves to Allah?*²³

This verse also pertains to the same principle, for the *Rabb* (lord) is defined as, firstly, the sovereign who is obeyed, the ruling legislator, the commander and the forbidding authority, the one possessing supreme and ultimate *siyādah* (sovereignty); that is, the one who holds the right of legislation in its essence and meaning. This may be assumed on two possible grounds, a), that he is of divine substance, lineage, or origin. This is impossible, for there exists nothing in the created order that is of divine genus or essence; there is but one, unique Divine Being. Next, b) that he is a created, contingent being, yet Allah has delegated to him *al-Hākimiyyah*, that is, granted him final and supreme sovereignty. This is a falsehood which has never occurred, for Allah has said:

لَا يُشْرِكْ فِي حُكْمِهِ أَحَدًا

He does not allow anyone to share His rule.²⁴

Secondly, the disposer and manager, the overseer of affairs and the rectifier of conditions. This too is impossible, for there exists none in creation who disposes or governs the affairs of the cosmos by their own power, independently and autonomously, save Allah alone. Thirdly, the owner – *mālik*, that is, the one who possesses the very substance or object in a manner that entitles him to dispose of it such as consuming bread, or the flesh of a slaughtered animal, or enjoying its utility, such as riding a beast of burden, as well as the right to sell, gift, or lease the object or its utility accordingly. Thus, ownership necessarily entails the right of disposition, governance, and oversight. Therefore, the owner is, by necessity, a disposer and governor. Yet this too is impossible, for there is none in existence who possesses true, independent ownership save Allah.

It is thus inconceivable and utterly impossible that any true Prophet, divinely protected from error, should issue a command to hold any of these beliefs concerning angels or Prophets. For such a command would necessarily entail attributing to them i.e., to the angels and the Prophets, the status of

²³ Qur'ān, 3: 79/80

²⁴ Qur'ān, 18: 26

Arbāb (lords), whether in part or in whole, as per the definitions set forth above. But such a report would be a falsehood, contrary to reality. And Allah, Majestic is His Glory, is exalted above falsehood by necessity of reason. Attributing falsehood to Allah is tantamount to the destruction of reason itself and constitutes manifest disbelief by the standard of revealed law. Thus, if such a thing is falsely ascribed to a true Prophet, it is a clear lie upon him; and if it is definitively established from someone who claims prophethood, then it is certain proof that he is a false claimant and an imposter. Accordingly, when we refer to Muḥammad, peace and blessings be upon him and his family as a *musharriʿ* - legislator, or to Musa peace be upon him as a legislator, or when we speak of *al-Sharīʿah al-Mūsawiyyah* 'the Mosaic Law,' or *al-Sharīʿah al-Muḥammadiyyah*, the *Sharīʿah* of Muḥammad, it is merely a figurative expression and a concise formulation. In reality, they are solely conveyors of the Divine Law. The attribution of legislation to them, and to the other messengers, is only by way of transmission and conveyance, not by way of origination or authorship.

Fifth testimonial

Allah Majestic is His Glory and Exalted His Station said:

أَرَأَيْتَ مَنِ اتَّخَذَ إِلَهُهُ هَوَاهُ أَفَأَنْتَ تَكُونُ عَلَيْهِ وَكِيلًا

*Think of the man who has taken his own passion as a god - are you to be his guardian?*²⁵

أَفَرَأَيْتَ مَنِ اتَّخَذَ إِلَهُهُ هَوَاهُ وَأَضَلَّهُ اللَّهُ عَلَىٰ عِلْمٍ وَخَتَمَ عَلَىٰ سَمْعِهِ وَقَلْبِهِ وَجَعَلَ عَلَىٰ بَصَرِهِ غِشَاوَةً فَمَنْ يَهْدِيهِ مِنْ بَعْدِ اللَّهِ أَفَلَا تَذَكَّرُونَ

*Consider the one who has taken his own desire as a god, whom Allah allows to stray in the face of knowledge, sealing his ears and heart and covering his eyes - who can guide such a person after Allah [has done this]? Will you [people] not take heed?*²⁶

This is inconceivable, and cannot be rationally understood, except on the basis that such a person has made his own opinion and desire the source of

²⁵ *Qurʾān*, 25: 43

²⁶ *Qurʾān*, 45: 23

legislation and judgment. What is deemed obligatory, according to him, is what *he* sees to be obligatory not what the revealed law has declared obligatory. Likewise with what is deemed recommended, permissible, disliked, or forbidden: all of these categories are, in his reckoning, defined according to his reason and opinion, or his desire and whim. He thus considers himself or his intellect the one possessed of *siyādah* (sovereignty) and *Hākimiyyah*. He is the legislator for himself, the one who determines what is good and evil, pure and impure. He has thus made his desire a master and lord, endowed with sovereignty and judgment. But *siyādah* and *Hākimiyyah* are among the exclusive attributes and entitlements of *Uluhiyyah* (divinity); indeed, they are among its most defining features and its highest summit. This, therefore, is necessarily the meaning of his having taken his desire as his god. And by doing so, he has become a *mushrik* and *kāfir*, one who has either never entered Islam to begin with, or has apostatised from it after once entering. We have never heard of any human being, nor has any report reached us, of one who erects for himself altars, offers to them sacrifices and oblations, kindles candles before them, stands before a mirror, and bows or prostrates to himself. There is no *shaʿīrah* (ritual act) or *Ibādah* here other than *obedience*. Thus, the *Ibādah* in this context is *necessarily* the ascription of the right to obedience, that is, *Hākimiyyah*, or *al-siyādah al-nihāʾiyyah al-ʿulyā* – the ultimate sovereign authority.

Sixth testimonial

Allah the Mighty and Sublime says:

أَلَمْ أَعْهَدْ إِلَيْكُمْ يَا بَنِي آدَمَ أَنْ لَا تَعْبُدُوا الشَّيْطَانَ إِنَّهُ لَكُمْ عَدُوٌّ مُبِينٌ، وَأَنْ اعْبُدُونِي هَذَا صِرَاطٌ مُسْتَقِيمٌ، وَلَقَدْ أَضَلَّ مِنْكُمْ جِبِلًّا كَثِيرًا أَفَلَمْ تَكُونُوا تَعْقِلُونَ

*Children of Adam, did I not command you not to serve Satan, for he was your sworn enemy, but to serve Me? This is the straight path. He has led great numbers of you astray. Did you not use your reason?*²⁷

This is a reproachful address from Allah, Majestic is His Glory and Exalted His Station, to all the children of Adam, each and every one of them, on the Day of Resurrection, after the veils have been lifted and realities have become

²⁷ *Qurʾān*, 36: 60/62

plainly manifest, after having previously remained unseen. And we know necessarily that the majority of the progeny of Adam did not offer to Satan acts of ritual devotion such as prostration, bowing, the erection of altars, the offering of sacrifices and oblations, the burning of incense, the lighting of candles, or the like as a matter of course. Indeed, among them are considerable numbers who deny the unseen altogether, explicitly and categorically, including the very existence of Satan himself. At the same time, we know necessarily that the speech of Allah is true and just, eternally and perpetually. It is therefore necessary that ‘*Ibādah*’ here signifies *ṭā‘ah* – obedience; the worship of Satan is obedience to him, and the worship of Allah is obedience to Him. And what is meant by ‘obedience’ in this context is that which is necessarily connected to the ascription of *Hākimiyyah* or *ultimate sovereign authority*.

5. Rendering judgement

Allah the Exalted says:

أَلَمْ تَرَ إِلَى الَّذِينَ يَزْعُمُونَ أَنَّهُمْ آمَنُوا بِمَا أُنْزِلَ إِلَيْكَ وَمَا أُنْزِلَ مِنْ قَبْلِكَ يُرِيدُونَ أَنْ يَتَحَاكَمُوا إِلَى الطَّاغُوتِ وَقَدْ أُمِرُوا أَنْ يَكْفُرُوا بِهِ وَيُرِيدُ الشَّيْطَانُ أَنْ يُضِلَّهُمْ ضَلَالًا بَعِيدًا

*Do you not see those who claim to believe in what has been sent down to you, and in what was sent down before you, yet still want to turn to Tāghut (unjust tyrants) for judgement, although they have been ordered to reject them? Shayṭān wants to lead them far astray.*¹

In terms of the *Tafsir* of this verse, Imām al-Ṭabari records the following in his seminal work, *al-Jāmi’ al-Bayān fī Ta’weel al-Qur’ān*:

Muḥammad ibn al-Muthanna narrated to me he said ‘Abd al-Wahhāb narrated to us he said Dāwud narrated to us from ‘Aāmir in relation to this verse: *Have you not seen those who assert that they believe in what has been revealed to you and what was revealed before you? They desire to summon one another to the judgment of the Tāghut* – he said: ‘A dispute arose between a man from among the Jews and a man from among the *munāfiqeen* (hypocrites). The *munāfiq* was calling for judgment by the Jews because he knew they accepted *Rashwa*

¹ *Qur’ān*, 4: 60. For a closer rendition of the wording, we have slightly modified Abdel Haleem’s rendition of the translation. In the footnote he provides of his translation regarding the word ‘*Tāghut*’ (p. 56), he says: ‘The Arabic *taghut* is variously interpreted to refer to idols, a specific tyrant, an oracle, or an opponent of the Prophet.’ See also: Elsaid M. Badawi and Muhammad Abdel Haleem (2008), *Arabic-English Dictionary of Qur’anic Usage*, (Brill: Leiden), [pp. 565/567] which covers the entries for the word, its root and derivations.

(bribery), while the Jew was calling for judgment by the Muslims because he knew they didn't. So they agreed to take settlement of their dispute to a soothsayer from the tribe of Juhaynah, thus Allah revealed this verse concerning them: '*Do you not see those who claim to believe in what has been sent down to you...*' until (the verse) '*accepting them totally*,' [4: 65].²

Ibn al-Muthanna narrated to us he said 'Abd al-'Alā narrated to us he said Dāwud narrated to us from 'Aāmir in relation to this verse: *Have you not seen those who assert that they believe in what has been revealed to you*; thereafter he mentioned the details of that. He added that Allah revealed – '*Do you not see those who claim to believe*,' regarding the *munāfiqeen*, and '*and in what was sent down before you*,' concerning the Jews, '*to summon one another to the judgment of the Ṭāghut*.' He says, to the soothsayer. '*although they have been ordered to disbelieve in it*,' each being commanded in their respective books to disbelieve in the soothsayer.

Ya'qub ibn Ibrāhīm narrated to me he said Ibn 'Ulayyah narrated to us from Dāwud from al-Sha'bi, he said: 'There was a dispute between a man who claimed to be a Muslim and a man from among the Jews. The Jew said, "Let me take you to the people of your Deen," or he said, "to the Prophet," because he knew that the Messenger of Allah peace and blessings be upon him did not accept bribery in levelling judgement. Given the dispute, they agreed to approach a soothsayer from the tribe of Juhaynah.' Thereafter he said: 'Then the verse was revealed - Have you not seen those who assert that they believe in what has been revealed to you – referring to the man from the Anṣār, and in what was sent down before you? Regarding the Jew. (Then) They desire to summon one another to the judgment of the Ṭāghut, meaning the soothsayer, although they have been ordered to disbelieve in it. Namely, this was commanded in each (revealed) book.' Then he recited (the verse): '*By your Lord, they will not be true believers until they let you decide between them in all matters of*

² The full wording of the verse at [4: 65] to be mentioned shortly, being: '*By your Lord, they will not be true believers until they let you decide between them in all matters of dispute, and find no resistance in their souls to your decisions, accepting them totally*.'

dispute, and find no resistance in their souls to your decisions, accepting them totally,' [4: 65].³

Moreover, al-Qurṭubi said:

Reported by Yazeed ibn Zurayh' from Dāwud ibn Abi Hind from al-Sha'bi he said: 'A dispute occurred between a man from the *munāfiqeen* and a man from among the Jews. The Jew called the *munāfiq* to (judgment) by the Prophet peace and blessings be upon him, because he knew that he didn't accept bribery (in ruling). The *munāfiq* called the Jew to their judges knowing that they accepted bribery in (judicial) ruling. When they agreed to refer the dispute to a soothsayer from (the tribe of) Juhaynah, Allah the Almighty revealed the verse: '*Do you not see those who claim to believe in what has been sent down to you*,' referring to the *munāfiq*; '*and in what was sent down before you*,' referring to the Jew, '*yet still want to turn to Ṭāghut for judgement*.' Until where He says: '*accepting them totally*,' [4: 65]. Al-Ḍaḥḥāk said: 'The Jew had called the *munāfiq* to (judgement by) the Prophet, peace and blessings be upon him, and the *munāfiq* called him to Ka'b ibn al-Ashraf, who was the Ṭāghut.'⁴

In light of the above, I would argue that all of these *isnāds* are strong and excellent, throughout the reporting line, but they are *marāseel* (pl. *mursal*), and as we know, definitive proof cannot be established upon reports that are *mursal* by themselves. Rather, they can only be utilised by way of additional support and/or corroboration. Despite that being said, the *mursal* narratives from al-Sha'bi are close in grading to reports which are *ṣaḥīḥ*, and established as evidence. There is another narrative upon this which is purportedly narrated by al-Kalbi from Abu Ṣāliḥ from Ibn 'Abbās, which is as follows:

A dispute occurred between a man from the *munāfiqeen*, his name being Bishr, and a Jew. The Jew had said: 'Let us go to Muḥammad (for ruling),' but the *munāfiq* replied, 'Nay, (let us go to) Ka'b ibn al-

³ *Tafsir al-Ṭabari (al-Jāmi' al-Bayān fī Ta'weel al-Qur'ān)* [Vol. 4, pp. 155/156 (print edition) *Dar al-Kotob al-Ilmiyyah*, 2013].

⁴ Not included in the Arabic edition, the reference for this is: *Tafsir al-Qurṭubi* [Vol. 3, p. 170 (print edition, *Dar al-Kotob al-Ilmiyyah*, 2013)]

Ashraf, and he is the individual Allah named as the *Ṭāghut*, namely, *Tughyān* - one excessive in tempting [others] to falsehood.⁵ The Jew though refused to take the matter to other than the Messenger of Allah, peace and blessings be upon him. When the *munāfiq* observed that, he accompanied him to the Messenger of Allah who ruled in favour of the Jew. Upon departing, the *munāfiq* said 'I don't accept this ruling; let us go to Abu Bakr.' But Abu Bakr (too) ruled in favour of the Jew. Still unsatisfied, the *munāfiq* said: 'Let us go to Umar.' They went to Umar and the Jew said 'We went to the Messenger of Allah, peace and blessings be upon him, thereafter, to Abu Bakr, but he wasn't satisfied.' Umar said to the *munāfiq*, 'Is that the case,' he replied yes. Umar said: 'Wait here for a moment, I will come back to you.' He went inside, took hold of his sword and struck the *munāfiq* until he died. He said: 'This is how I judge against one who isn't satisfied with the judgment of Allah and His Messenger.' The Jew departed and the verse was revealed. The Messenger of Allah peace and blessings be upon him said (to Umar): *You are al-Fāruq*. Thereafter, Jibreel descended and said - 'Umar has distinguished between truth and falsehood, so he is called *al-Fāruq*. All the verses were revealed regarding that up until (where) He says: '*accepting them totally*,' [4: 65].⁶

Although favoured by some in the contemporary era for sensationalism, in actuality, this is a fabrication and should be denounced as such. If it were true, having actually occurred, it would have been widely relayed, narrated by the trustworthy authorities, transmitted from one generation to the next. Regarding the channel of reporting - al-Kalbi from Abu Ṣāliḥ from Ibn 'Abbās, it is from among the *weakest* of all *isnāds* in this temporal world. It is either a lie or *tadlees* (misrepresentation in reporting) by itself. It has been established by way of a *Ṣaḥīḥ isnād* upon the authority of the Imām, al-Ḥāfiẓ, al-Ḥujjah, Sufyān al-Thawri, who, by Allah, is *al-Thiqa al-Ma'mun al-Qudra* (the exemplary, resolutely trustworthy one) that al-Kalbi had said to him: 'Abu Ṣāliḥ said to me everything that I narrated to you upon the authority of

⁵ See the reference contained in footnote (1), among the inclusive meanings: 'Transgressing, acting wickedly, tyranny.'

⁶ The Arabic edition doesn't carry a reference citation for this, but it is found in numerous works of *Tafsir*, including: *Tafsir* al-Qurtubī [Vol. 3, pp. 170/171] and al-Wāhidi *Asbāb al-Nuzul* [p. 162 (*Shamela* edition)].

Ibn 'Abbās is a lie, so do not narrate it.'⁷ Concluding this matter, Ibn Kathir provided the following comment explaining this noble verse:

Allah chastises those who claim to believe in what Allah has sent down to His Messenger, peace and blessings be upon him and to the earlier Prophets, yet they refer to other than the Book of Allah and the *Sunnah* of His Messenger, peace and blessings be upon him for judgement in various disputes. It was reported that the reason behind revealing this verse was that a man from the Anṣār and a Jew had a dispute, and the Jew had said 'Let's go to Muḥammad to judge between us.' However the man replied 'Let us refer to Ka'b ibn al-Ashraf to determine the matter between us.' It was also reported that the verse was revealed about some hypocrites who pretended to be Muslims, yet they sought to refer to the judgement of *Jāhiliyya*. Other reasons were also reported behind the revelation of this verse. However, the verse has a general meaning, as it chastises all those who refrain from referring to the Qur'ān and *Sunnah* for judgement and prefer the judgement of whatever they choose of falsehood, which befits the description of *Ṭāghut* in this context. That is why He said: '*Yet still want to turn to the to Ṭāghut for judgement*,' [4: 60].⁸

⁷ Although not included in the Arabic edition, this is recorded in - Ibn Abi Ḥātim *al-Jarḥ wa' Ta'deel* [Vol. 7, p. 271 (*Shamela* edition)].

⁸ Here, we have utilised a modified version of the current English translation [Vol. 2, p. 500] produced by *Dar-us-Salam* (1st edition, March 2000). Arabic edition references are numerous, including [Vol. 4, p. 138], although again, this wasn't recorded in the present Arabic edition of *Tawḥeed*.

6. The obligation to respond in obedience

The general obligation outlines that it is incumbent to refer matters back to Allah and His Messenger, coupled with the absolute obedience to them. Verses which outline this are indeed numerous throughout the text of the Qur'ān. He the Exalted and Majestic says:

وَأَنْزَلْنَا إِلَيْكَ الْكِتَابَ بِالْحَقِّ مُصَدِّقًا لِمَا بَيْنَ يَدَيْهِ مِنَ الْكِتَابِ وَمُهَيْمِنًا عَلَيْهِ فَاحْكُم بَيْنَهُمْ بِمَا أَنْزَلَ اللَّهُ وَلَا تَتَّبِعْ أَهْوَاءَهُمْ عَمَّا جَاءَكَ مِنَ الْحَقِّ لِكُلِّ جَعَلْنَا مِنْكُمْ شِرْعَةً وَمِنْهَاجًا

*We sent to you [Muhammad] the Scripture with the truth, confirming the Scriptures that came before it, and with final authority over them: so judge between them according to what Allah has sent down. Do not follow their whims, which deviate from the truth that has come to you. We have assigned a law and a path to each of you.*¹

This blessed final book is authoritative, since it is originating from Allah the Exalted, and it abrogates all what has come before it regarding the divine laws. Consequently, it is fitting that it has precedence and authority over any other legislation and ruling. Allah the Mighty and Sublime says:

وَلَنْ تَرْضَى عَنْكَ الْيَهُودُ وَلَا النَّصَارَى حَتَّى تَتَّبِعَ مِلَّتَهُمْ قُلْ إِنَّ هُدَى اللَّهِ هُوَ الْهُدَى وَلَئِنَّ اتِّبَعَتْ أَهْوَاءَهُمْ

The Jews and the Christians will never be pleased with you unless you follow their ways. Say, 'Allah's guidance is the only true guidance.' If you were to

¹ Qur'ān, 5: 48

*follow their desires after the knowledge that has come to you, you would find no one to protect you from Allah or help you.*²

إِنَّمَا كَانَ قَوْلَ الْمُؤْمِنِينَ إِذَا دُعُوا إِلَى اللَّهِ وَرَسُولِهِ لِيَحْكُمَ بَيْنَهُمْ أَنْ يَقُولُوا سَمِعْنَا وَأَطَعْنَا وَأُولَئِكَ هُمُ الْمُفْلِحُونَ

*When the true believers are summoned to Allah and His Messenger in order for him to judge between them, they say, 'We hear and we obey.' These are the ones who will prosper.*³

وَمَنْ يُشَاقِقِ الرَّسُولَ مِنْ بَعْدِ مَا تَبَيَّنَ لَهُ الْهُدَى وَيَتَّبِعْ غَيْرَ سَبِيلِ الْمُؤْمِنِينَ نُوَلِّهِ مَا تَوَلَّى وَنُصْلِهِ جَهَنَّمَ وَسَاءَتْ مَصِيرًا

*If anyone opposes the Messenger, after guidance has been made clear to him, and follows a path other than that of the believers, We shall leave him on his chosen path - We shall burn him in Hell, an evil destination.*⁴

فَلْيَحْذَرِ الَّذِينَ يُخَالِفُونَ عَنْ أَمْرِهِ أَنْ تُصِيبَهُمْ فِتْنَةٌ أَوْ يُصِيبَهُمْ عَذَابٌ أَلِيمٌ

*Those who go against his order should beware lest a trial afflict them or they receive a painful punishment.*⁵

Imām Aḥmad said:

قال الإمام أحمد عجبت لقوم عرفوا الإسناد وصحته يذهبون إلى رأي سفيان، والله تعالى يقول فَلْيَحْذَرِ الَّذِينَ يُخَالِفُونَ عَنْ أَمْرِهِ أَنْ تُصِيبَهُمْ فِتْنَةٌ أَوْ يُصِيبَهُمْ عَذَابٌ أَلِيمٌ أتدري ما الفتنة؟ الفتنة الشرك، لعله إذا رد بعض قوله أن يقع في قلبه شيء من الزيف فيهلك. وقد اشتهر قول ابن عباس يوشك أن تنزل عليكم حجارة من السماء، أقول قال رسول الله صلى الله عليه وسلم، وتقولون قال أبو بكر وعمر

'I am amazed by people who know the *isnād* and its authenticity yet they following the *Ra'y* (opinion) of Sufyān, while Allah the Exalted says: 'Those who go against his order should beware lest a trial afflict them or they receive a painful punishment,' [24: 63]. Do you know what *Fitnah* is? *Fitnah* is *Shirk*. Perhaps if one rejects some of what his words are, deviation enters into his heart and he is destroyed. And

² Qur'ān, 2: 120

³ Qur'ān, 24: 51

⁴ Qur'ān, 4: 115

⁵ Qur'ān, 24: 63

the famous statement of Ibn ‘Abbās is – ‘Stones are about to rain down upon you from the heavens! I say, ‘The Messenger of Allah, peace and blessings be upon him said,’ and you (all) retort, (But) Abu Bakr and Umar said!’

Its reporting has been mentioned by way of variant wordings as per *Ahkām al-Qur’ān* by al-Ṭaḥāwī.⁶ Moreover, al-Ṭaḥāwī cites this in *Sharḥ Ma’ni al-Athār*, with a *Ṣaḥīḥ isnād*:

حَدَّثَنَا الرَّبِيعُ الْمُرَادِيُّ الْمُؤَدَّبُ قَالَ حَدَّثَنَا أَسَدٌ قَالَ حَدَّثَنَا حَمَّادُ بْنُ سَلَمَةَ عَنْ أَيُّوبَ عَنْ ابْنِ أَبِي مُلَيْكَةَ، أَنَّ غُرُوهَ قَالَ لِابْنِ عَبَّاسٍ أَضَلَّ النَّاسَ يَا ابْنَ عَبَّاسٍ قَالَ وَمَا ذَلِكَ يَا غُرُوهُ؟ قَالَ تُفْتِي النَّاسَ أَنْهُمْ إِذَا طَافُوا بِالْبَيْتِ فَقَدْ حَلُّوا وَكَانَ أَبُو بَكْرٍ وَعُمَرُ رَضِيَ اللَّهُ عَنْهُمَا يَجِيبَانِ مُلْتَبِئِينَ بِالْحَجِّ فَلَا يَزَالَانِ مُحْرَمِينَ إِلَى يَوْمِ النَّحْرِ؟ فَقَالَ ابْنُ عَبَّاسٍ بِهَذَا ضَلَلْتُمْ، أُحَدِّثُكُمْ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَتُحَدِّثُونِي عَنْ أَبِي بَكْرٍ وَعُمَرَ؟ فَقَالَ غُرُوهُ إِنَّ أَبَا بَكْرٍ وَعُمَرَ، كَانَا أَعْلَمَ بِرَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِنْكَ

al-Rabih’ al-Murādi al-Mu’wadthin narrated to us he said Asad narrated to us he said Ḥammād ibn Salama narrated to us from Ayub from Ibn Abi Mulayka that ‘Urwa said to Ibn ‘Abbās – ‘O Ibn ‘Abbās, you have misled the people.’ Ibn ‘Abbās said: ‘And what is that (concerning) O ‘Urwa?’ (‘Urwa) replied: ‘You issue rulings to the people that once they perform *Tawāf* (circumambulation) of the House, they are released (from the state) of *Ihrām*, while Abu Bakr and Umar, may Allah be pleased with them, would arrive in *Ihrām* for Ḥajj, remaining so until the day of Nahar? So, Ibn ‘Abbās said ‘This is your misguidance. I narrate to you from the Messenger of Allah, peace and blessings be upon him, and you narrate to me from Abu Bakr and Umar?’ ‘Urwa replied, ‘Abu Bakr and Umar were more knowledgeable of the Messenger of Allah, peace and blessings be upon him, than you.’⁷

Cited in the *Musnad* of Aḥmad is the following too:

⁶ al-Ṭaḥāwī *Ahkām al-Qur’ān* [Vol. 2, no. 1249]

⁷ al-Ṭaḥāwī *Sharḥ Ma’ni al-Athār* [Vol. 2, no. 3589]. Here the Arabic edition notes that a secondary pathway of transmissions exists for this with similar import, as per *al-Mu’jam al-Kabir* of al-Ṭabarānī [Vol. 1, no. 21]. Regarding this, al-Haythami said in his *Majmu’ al-Zawā’id* ‘al-Ṭabarānī narrates it in *al-Awsaṭ*, and its *isnād* is *ḥasan*.’

حدثنا حجاج حدثنا شريك عن الأعمش عن الفضيل بن عمرو قال أراه عن سعيد بن جبيرة عن ابن عباس قال تمتع النبي صلى الله عليه وسلم؛ فقال عروة بن الزبير نهى أبو بكر وعمر عن المتعة! فقال بن عباس ما يقول عروة؟ قال يقول نهى أبو بكر وعمر عن المتعة! فقال بن عباس أراهم سيهلكون أقول قال النبي صلى الله عليه وسلم ويقول نهى أبو بكر وعمر

Ḥajjāj narrated to us Shareek narrated to us from al-‘Amash from al-Fadl ibn ‘Amr he said I saw it from Sa’eed ibn Jubayr from Ibn ‘Abbās he said: ‘The Prophet peace and blessings be upon him performed *Tamattu*.’ ‘Urwa ibn al-Zubayr said: ‘Abu Bakr and Umar forbade doing *Tamattu*!’ Ibn ‘Abbās replied, ‘What does ‘Urayyah say?’ He said: ‘Abu Bakr and Umar forbade doing that.’ Ibn ‘Abbās said: ‘I think they are going to be doomed! I say “The Prophet peace and blessings be upon him said,” and he says – “Abu Bakr and Umar said!”’⁸

Once again, the general theme is outlined in multiple texts throughout the text of the Qur’ān. Consider the following, where He the Exalted and Majestic says:

يَا أَيُّهَا الَّذِينَ آمَنُوا أَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ وَأُولِي الْأَمْرِ مِنْكُمْ فَإِنْ تَنَازَعْتُمْ فِي شَيْءٍ فَرُدُّوهُ إِلَى اللَّهِ وَالرَّسُولِ إِنْ كُنْتُمْ تُؤْمِنُونَ بِاللَّهِ وَالْيَوْمِ الْآخِرِ ذَلِكَ خَيْرٌ وَأَحْسَنُ تَأْوِيلًا

*O you who believe, obey Allah and the Messenger, and those in authority among you. If you are in dispute over any matter, refer it to Allah and the Messenger, if you truly believe in Allah and the Last Day: that is better and fairer in the end.*⁹

فَلَا وَرَبِّكَ لَا يُؤْمِنُونَ حَتَّى يُحَكِّمُوكَ فِيمَا شَجَرَ بَيْنَهُمْ ثُمَّ لَا يَجِدُوا فِي أَنْفُسِهِمْ حَرَجًا مِمَّا قَضَيْتَ وَيُسَلِّمُوا تَسْلِيمًا

*By your Lord, they will not be true believers until they let you decide between them in all matters of dispute, and find no resistance in their souls to your decisions, accepting them totally.*¹⁰

إِنَّا أَنْزَلْنَا إِلَيْكَ الْكِتَابَ بِالْحَقِّ لِتَحْكُمَ بَيْنَ النَّاسِ بِمَا أَرَاكَ اللَّهُ وَلَا تَكُنْ لِلْخَائِنِينَ خَصِيمًا

We have sent down the Scripture to you [Prophet] with the truth so that you can judge between people in accordance with what Allah has shown you. Do not be

⁸ *Musnad Aḥmad* [Vol. 1, no. 3121].

⁹ *Qur’ān*, 4: 59

¹⁰ *Qur’ān*, 4: 65

*an advocate for those who betray trust.*¹¹

وَمَا كَانَ لِمُؤْمِنٍ وَلَا مُؤْمِنَةٍ إِذَا قَضَى اللَّهُ وَرَسُولُهُ أَمْرًا أَنْ يَكُونَ لَهُمُ الْخِيَرَةُ مِنْ أَمْرِهِمْ وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ فَقَدْ ضَلَّ ضَلَالًا مُبِينًا

*When Allah and His Messenger have decided on a matter that concerns them, it is not fitting for any believing man or woman to claim freedom of choice in that matter: whoever disobeys Allah and His Messenger is far astray.*¹²

يَا أَيُّهَا الَّذِينَ آمَنُوا لَا تَقْدَمُوا بَيْنَ يَدَيِ اللَّهِ وَرَسُولِهِ وَاتَّقُوا اللَّهَ إِنَّ اللَّهَ سَمِيعٌ عَلِيمٌ

*O you who believe, do not push yourselves forward in the presence of Allah and His Messenger, be mindful of Allah, He hears and knows all.*¹³

أَفَحُكْمَ الْجَاهِلِيَّةِ يَنْفَعُونَ وَمَنْ أَحْسَنُ مِنَ اللَّهِ حُكْمًا لِقَوْمٍ يُوقِنُونَ

*Do they want judgement according to the time of Jāhillya (pagan ignorance)? Is there any better judge than Allah for those of firm faith?*¹⁴

مَنْ يُطِيعِ الرَّسُولَ فَقَدْ أَطَاعَ اللَّهَ

*Whoever obeys the Messenger obeys Allah.*¹⁵

قُلْ إِنْ كُنْتُمْ تُحِبُّونَ اللَّهَ فَاتَّبِعُونِي يُحْبِبْكُمُ اللَّهُ وَيَغْفِرْ لَكُمْ ذُنُوبَكُمْ وَاللَّهُ غَفُورٌ رَحِيمٌ قُلْ أَطِيعُوا اللَّهَ وَالرَّسُولَ فَإِنْ تَوَلَّوْا فَإِنَّ اللَّهَ لَا يُحِبُّ الْكَافِرِينَ

*Say, 'If you love Allah, follow me, and Allah will love you and forgive you your sins; Allah is most forgiving, most merciful.' Say, 'Obey Allah and the Messenger,' but if they turn away, [know that] Allah does not love those who ignore [His commands].*¹⁶

وَمَا آتَاكُمُ الرَّسُولُ فَخُذُوهُ وَمَا نَهَاكُمْ عَنْهُ فَانْتَهُوا وَاتَّقُوا اللَّهَ إِنَّ اللَّهَ شَدِيدُ الْعِقَابِ

*So accept whatever the Messenger gives you, and abstain from whatever he forbids you. Be mindful of Allah - Allah is severe in punishment.*¹⁷

¹¹ Qur'ān, 4: 105

¹² Qur'ān, 33: 36

¹³ Qur'ān, 49: 1

¹⁴ Qur'ān, 5: 50

¹⁵ Qur'ān, 4: 80

¹⁶ Qur'ān, 3: 31/32

¹⁷ Qur'ān, 59: 7

وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ فَإِنَّ لَهُ نَارَ جَهَنَّمَ خَالِدًا فِيهَا أَبَدًا

*Whoever disobeys Allah and His Messenger will have Hell's Fire as his permanent home.*¹⁸

تِلْكَ حُدُودُ اللَّهِ وَمَنْ يُطِيعِ اللَّهَ وَرَسُولَهُ يُدْخِلْهُ جَنَّاتٍ تَجْرِي مِنْ تَحْتِهَا الْأَنْهَارُ خَالِدِينَ فِيهَا ذَلِكَ الْفَوْزُ الْعَظِيمُ

وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ وَيَتَعَدَّ حُدُودَهُ يُدْخِلْهُ نَارًا خَالِدًا فِيهَا وَلَهُ عَذَابٌ مُهِينٌ

*These are the bounds set by Allah. Allah will admit those who obey Him and His Messenger to Gardens graced with flowing streams, and there they will stay— that is the supreme triumph! But those who disobey Allah and His Messenger and overstep His limits will be consigned by Allah to the Fire, and there they will stay - a humiliating torment awaits them!*¹⁹

¹⁸ Qur'ān, 72: 23

¹⁹ Qur'ān, 4: 13/14

7. The verses of ruling

The verses of ruling, are set out in chapter five, *Surah al-Mā'idā* of the Qur'ān, where Allah the Exalted says:

41. Messenger, do not be grieved by those who race to surpass one another in disbelief, those who say with their mouths, 'We believe,' but have no faith in their hearts, and the Jews who listen eagerly to lies and to those who have not even met you, who distort the meanings of [revealed] words and say [to each other], 'If you are given this ruling, accept it, but if you are not, then beware!' if Allah intends some people to be so misguided, you will be powerless against Allah on their behalf. These are the ones whose hearts Allah does not intend to cleanse - a disgrace for them in this world, and then a heavy punishment in the Hereafter -

42. They listen eagerly to lies and consume what is unlawful. If they come to you [Prophet] for judgement, you can either judge between them, or decline— if you decline, they will not harm you in any way, but if you do judge between them, judge justly: Allah loves the just –

43. But why do they come to you for judgement when they have the Torah with Allah's judgement, and even then still turn away? These are not believers.

44. We revealed the Torah with guidance and light, and the prophets, who had submitted to Allah, judged according to it for the Jews. So did the rabbis and the scholars in accordance with that part of Allah's Scripture which they were entrusted to preserve, and to which they were witnesses. So [rabbis and scholars] do not fear people, fear Me; do not barter away My messages for a

small price; those who do not judge according to what Allah has revealed are the disbelievers [وَمَنْ لَّمْ يَحْكَمْ بِمَا أَنزَلَ اللَّهُ فَأُولَئِكَ هُمُ الْكَافِرُونَ]

45. In the Torah We prescribed for them a life for a life, an eye for an eye, a nose for a nose, an ear for an ear, a tooth for a tooth, an equal wound for a wound: if anyone forgoes this out of charity, it will serve as atonement for his bad deeds. Those who do not judge according to what Allah has revealed are the oppressors. [وَمَنْ لَّمْ يَحْكَمْ بِمَا أَنزَلَ اللَّهُ فَأُولَئِكَ هُمُ الظَّالِمُونَ]

46. We sent Jesus, son of Mary, in their footsteps, to confirm the Torah that had been sent before him: We gave him the Gospel with guidance, light, and confirmation of the Torah already revealed - a guide and lesson for those who take heed of Allah.

47. So let the followers of the Gospel judge according to what Allah has sent down in it. Those who do not judge according to what Allah has revealed are the evil doers [وَمَنْ لَّمْ يَحْكَمْ بِمَا أَنزَلَ اللَّهُ فَأُولَئِكَ هُمُ الْفَاسِقُونَ]

48. We sent to you [Muhammad] the Scripture with the truth, confirming the Scriptures that came before it, and with final authority over them: so judge between them according to what Allah has sent down. Do not follow their whims, which deviate from the truth that has come to you. We have assigned a law and a path to each of you. If Allah had so willed, He would have made you one community, but He wanted to test you through that which He has given you, so race to do good: you will all return to Allah and He will make clear to you the matters you differed about.

49. So [Prophet] judge between them according to what Allah has sent down. Do not follow their whims and take good care that they do not tempt you away from any of what Allah has sent down to you. If they turn away, remember that Allah intends to punish them for some of the sins they have committed: a great many people are lawbreakers.

50. Do they want judgement according to the time of pagan ignorance? Is there any better judge than Allah for those of firm faith?¹

¹ *Qur'ān*, 5: 41/50. Here the Arabic text has been omitted given the breadth of the verses quoted. To provide a cleaner delineation between the verses, we've kept the verse numbering included. In part, we've modified Abdel Haleem's translation placing this more in line with the literal wording of the verses.

These are the famous *Ayāt al-Ḥukm* [آيات الحكم] - the verses of ruling/judgment taken from chapter five, *Surah al-Mā'idah*. There are several *aḥādith* which have been reported concerning the *Asbāb al-Nuzul*, or circumstances behind revelation, together with varying interpretations about the meaning, particularly that of the wording as per verse 44, *al-Kāfiroon*. In our previous book, *Ḥākimiyyah wa Siyādat al-Sharḥ*,² we undertook a detailed discussion on this matter, in particular, the reader may refer to the chapter covering the matter of *Takfir* and how it interacts with those who don't rule by what Allah has revealed.

Determining the precise meaning of the word *Ḥukm* as expressed in the verses cannot be limited only to relate to legislation, in other words, the fundamental matter of determining the nature of legislating, its essence and requirements, which ultimately belong in any event to Allah the Exalted. The scope is in fact wider than that. Within this context it has to be understood within the parameters of the four-key meanings of the word '*Ḥukm*' that have already thus enumerated. In particular these are, firstly, the matter of legal edict, or *Fatwa*. That relates to expressing an opinion that the one issuing it believes to be correct, without enforcing it, meaning a judgment as it relates to matters of *Deen*. Issuance of the *Fatwa* is only permissible according to what Allah has revealed, and whoever does otherwise has disbelieved in Allah.

Second, comes the matter of legal judgement within a judicial context. Here this relates to the resolution of disputes and matters arising; adjudicating upon conflicts with the issuance of a decree that takes binding effect. From the vantage point of the modern-state, that is considered to be one of the central powers, together with legislative and executive function. The judge can also be called '*Ḥākim*,' pronouncing judgment upon matters before him. It is not lawful to apply and implement judgement within this field except by what Allah has revealed.

Thirdly, comes the management and administration within the executive function of ruling, or in the parlance of the modern-state, what is often termed executive function or power. Use of the word 'government' is also commonplace as it relates to the highest-executive features or governing bodies, but there is also 'Cabinet,' 'Council of Ministers,' etc. Previous terms from the Islamic epoch also still appear, such as the term ruler - '*Ḥākim*,'

Sulṭān, or even *Wali al-'Amr*. Within this broad category it is only lawful to judge/rule by what Allah has revealed without equivocation or derogation.

Lastly, there is the management of public affairs by way of the adopt of rulings. In terms of scope, this would cover matters related to constitutions, laws, regulations and the role in which legislative matters are adopted for the society/state. Here, this can't be limited only to legislation per se, in other words, formulating laws from inception. Its scope is wider. It relates to the processes of *Ijtihād*, adoption, the formulation of regulations at various levels, their public proclamation, and similar actions. Such matters must only be done according to what Allah has revealed, those who do not do so have disbelieved in Allah! Some have erroneously assumed that the word '*Ḥukm*' as mentioned in the verses of the Qur'ān is limited to that within a judicial setting. That is incorrect unless there is specific evidence to substantiate it. Rather, the meaning covers all of these meanings in their absolute sense. However, to the best of my knowledge there is no further limitations to the scope as expressed in the verses. Coupled with the evidences as established, there are some additional narrative channels which are worthy of consideration in the context of the present discussion. To begin, we have the famous comments by the Companion, Abdullah ibn Mas'ud, may Allah be pleased with him:

حدثني محمد حدثنا عثمان بن عمر حدثنا فطر بن خليفة عن منصور عن سالم بن أبي الجعد عن مسروق قال كنت جالسا عند عبد الله، فقال له رجل ما السحت؟ قال الرشأ! فقال في الحكم؟ قال ذاك الكفر! ثم قرأ وَمَنْ لَمْ يَحْكَمْ بِمَا أَنزَلَ اللَّهُ فَأُولَئِكَ هُمُ الْكَافِرُونَ

Muḥammad narrated to me Uthmān ibn 'Amr narrated to us Fiṭr ibn Khalifa narrated to us from Mansur from Sālim ibn Abi al-Ja'd from Masruq he said: 'I was sitting with Abdullah (Ibn Mas'ud) when a man asked him, 'What is *al-Suht*?'² He replied, 'Bribery!' The man then asked, '(And) in matters of *al-Ḥukm*?' Abdullah said: 'That is *kufir*!' Then he recited (the verse): '*Those who do not judge according to what Allah they are the disbelievers*,' [5: 44].³

² From the root [س/ح/ت], the word '*Suht*' - ill-gotten / illicit gains, appears in the Qur'ānic text, notably at [5: 42]: '*They listen eagerly to falsehood and greedily consuming ill-gotten gains*.'

³ *Musnad* Abu Ya'la [Vol. 9, no. 5266 (*Shamela* edition)]. Referencing for the print edition is slightly different [Vol. 4, no. 5244, pp. 437/438].

Commenting on this, Shaykh Ḥussein Asad said: ‘Its *isnād* is *Ṣaḥīḥ*.’⁴ Indeed he was correct in that judgement as the report from Ibn Mas’ud is undoubtedly established as *Ṣaḥīḥ*, especially when taken with the corroborating reports, multiple channels of reporting and corroborative evidences. In *Mu’jam al-Kabir*, al-Ṭabarānī has the following with an *isnād* that is *ḥasan*:

حدثنا علي بن عبد العزيز حدثنا أبو نعيم حدثنا شريك عن السدي عن أبي الضحى عن مسروق عن عبد الله أنه سئل عن السحت قال الرشاء، قيل في الحكم؟ قال ذاك الكفر

Ali ibn ‘Abd al-Aziz narrated to us Abu Nu’aym narrated to us Shareek narrated to us from al-Suddi from Abu Duḥa from Masruq from Abdullah (Ibn Mas’ud) that he was asked about *al-Suht* to which he said: ‘Bribery.’ Asked about the matter in *al-Ḥukm*? He said: ‘That is *kufir*.’⁵

It is further reported in the *Tafsir* of al-Ṭabari:

حدثني يعقوب بن إبراهيم قال حدثنا هشيم قال أخبرنا عبد الملك بن أبي سليمان عن سلمة بن كهيل، عن علقمة ومسروق أنهما سألا ابن مسعود عن الرشوة، فقال من السحت. قال فقلا أفي الحكم؟ قال ذاك الكفر! ثم تلا هذه الآية وَمَنْ لَمْ يَحْكَمْ بِمَا أَنْزَلَ اللَّهُ فَأُولَئِكَ هُمُ الْكَافِرُونَ

Ya’qub ibn Ibrāhīm narrated to me he said Hushaym narrated to us he said ‘Abd al-Malik ibn Abi Sulaymān reported to us from Salama ibn Khuhayl from ‘Alqama and Masruq that the two of them asked Ibn Mas’ud about the matter of *al-Rashwa* (bribery). He said: ‘(It is) from *al-Suht* (ill-gotten gains).’ They further asked this in relation to the *Ḥukm*. He (Abdullah) said: ‘That is *kufir*!’ Then he recited the verse: ‘Those who do not judge according to what Allah they are the disbelievers,’ [5: 44].⁶

Moreover, the statement and actions of Masruq are set out in the *Ṭabaqāt al-Kubra* of Ibn Sa’d with an *isnād* that is *Ṣaḥīḥ*:

أن مسروقاً شفع لرجل بشفاعة فأهدى له جارية فغضب وقال لو علمت أن هذا في نفسك ما تكلمت فيها ولا أتكلم فيما بقي منها أبداً! سمعت عبد الله بن مسعود يقول من شفع شفاعة ليرد

⁴ Ibid. Carried in the footnote to the online *Shamela* edition.

⁵ al-Ṭabarānī, *Mu’jam al-Kabir* [Vol. 9, no. 9098]

⁶ *Tafsir* al-Ṭabari [Vol. 4, p. 597 (print edition, 2013)]

بها حقاً، أو يدفع بها ظلماً، فأهدي له، فقبل فذلك السحت، قالوا ما كنا نرى السحت إلا الأخذ على الحكم؟! قال الأخذ على الحكم كفر!

That Masruq interceded on behalf of a man who offered him a slave-girl as a gift. Angered by this Masruq said: ‘If I’d known this was in your heart, I wouldn’t have spoken on your behalf, nor will I do so again.’ Thereafter he said: ‘I heard Abdullah ibn Mas’ud say - Whoever intercedes to restore a right or to prevent an injustice, and is then offered a gift and accepts it, that is *al-Suht*.’ They said: ‘We used to think *al-Suht* only applied to taking bribes in judgment?’ Ibn Mas’ud said: ‘Taking that in relation to the *Ḥukm*, is *kufir*!’⁷

Something similar has also been reported in the work entitled *al-Duā* by al-Ṭabarānī, but reported on the authority Umar ibn al-Khaṭṭāb, may Allah be pleased with him:

حدثنا أبو يزيد حدثنا أسد بن موسى، حدثنا يزيد بن عطاء، عن أبان عن سعيد بن جبيرة عن مسروق، أنه سأل عمر بن الخطاب، رضي الله عنه، فقال يا أمير المؤمنين السحت الرشوة في الحكم؟ فقال ويلك ذلك كفر، قال قلت: يا أمير المؤمنين فما السحت؟ قال أن تطلب الحاجة للرجل إلى ذي سلطان ثم تأكل ماله

Abu Yazeed narrated to us Asad ibn Musa narrated to us Yazeed ibn ‘Aṭā narrated to us from Abbān from Sa’eed ibn Jubayr from Masruq that he asked Umar ibn al-Khaṭṭāb, may Allah be pleased with him, he said: ‘O *Ameer al-Mu’mineen* (is) bribery in the *Ḥukm* (considered) *al-Suht* (ill-gotten gains)? He thus replied: ‘Woe to you, that is *kufir*.’ He replied: ‘I said, O *Ameer al-Mu’mineen*, what is *al-Suht*? He (Umar) replied: ‘When you seek to fulfil a man’s need with those in authority and then take his wealth (as a reward for it).’⁸

⁷ Ibn Sa’d *Ṭabaqāt al-Kubra* [Vol. 6, p. 143 (print edition, 2017)]. The *isnād* recorded by Ibn Sa’d for this is: ‘Amr ibn al-Haytham Abu Qaṭṭan reported to us he said al-Masudi narrated to us from Bukeer ibn Abi Bakir from Abu Duḥa.

⁸ al-Ṭabarānī *al-Duā* [p. 581, no. 2106 (print edition, 2001)]

8. Categorising the terms *kufr*, *fisq* and *dhulm*

How do we interpret the terms as raised by the noble verses, be that *kufr*, *fisq* or *dhulm*? Specifically to whom do the terms apply and when can it be reasonably argued that those individuals are deserving or within scope of those labels? Before moving on to other topics, emphasis needs to be made with regards to the verses of ruling and the descriptive titles mentioned, be they some or all of them, notwithstanding any scholarly differences, happens by the abandonment of ruling by what Allah has revealed, even if one doesn't rule by something other than that. As set out in the previous chapter, Allah the Exalted and Majestic emphatically stated: '*Those who do not judge according to what Allah has revealed.*'¹

It can't be said that abandoning ruling by what Allah has revealed necessarily means that the ruler judges by other than what Allah has revealed. By way of example consider the case of a judge, who after thoroughly examining a given case and being obligated to issue a ruling, becomes certain that Allah's judgment in that specific dispute is a particular ruling. However, he does not issue that correct verdict at the allocated time, either to enable the party at fault, to seek redress in terms of wealth, retribution etc. Should he flee without properly recusing himself from the case after recognising the truth and being obligated to issue a ruling, simply to avoid pronouncing a verdict that contradicts his own whims and desires. Here, the example of this theoretical judge, by merely refusing to issue the ruling after it became obligatory and incumbent upon him, has committed the crime of abandoning judgment by what Allah has revealed. Thus, he did '*not judge according to*

¹ As per the verse from the previous chapter, *Qur'ān*, 5: 41/50

what Allah has revealed,' within that specific instance or case, and has become worthy of the descriptive labels of *kufr*, *fisq* or *dhulm*, be that some or all of them, according to differing scholarly views, even though what he has done is evade issue or pronouncing a verdict and didn't rule by way of anything at all.

Perhaps worse than this example, would be of the case of a judge who after thorough deliberation arrives at what the ruling of Allah is in a given matter or dispute. But he manipulates the evidence before him, concealing some of it, inappropriately disregarding other aspects of evidence; casts doubt by way of invalid objections on portions of the evidence, and even distorts the factual matrix so that the ruling he is to give aligns more with his own persuasion or even desires. Whilst this may be exceedingly rare as an example for judges in a judicial setting, it is far more common among those who occupy positions of political power. Fabrication of charges, evidence, including false witness testimony is often utilised as part of the elaborate scheme against political opponents, either seeking to crush them under the weight of judicial proceedings or should the matter fall short of court, to discredit them totally.

It may well be the case that the aforementioned example, even others like it, is what sprang to mind for those who said '*kufr duna kufr*,' or sought to refrain somewhat from levelling the charge of *kufr* itself to the very act, instead utilising the other terms like *fisq* or *dhulm*.² This could be because it bears a resemblance to other areas of sinfulness which may be committed by a Muslim out of desire, and not on par with *istihlāl* [استحلال] (turning the matter of a prohibition into something lawful) or even denying the obligation itself, let alone the matter of mockery, hatred, disdain or aversion to Allah the Exalted, His Messenger(s) or His signs. Despite this, it can reasonably be argued that it bears in fact a stronger similarity to who one who refrains from uttering the declaration of faith, the *Kalimāt al-Tawhīd*, despite not being under direct coercion and having the ability to do so. The matter of *kufr* for such an individual is not something a Muslim would doubt, and it is a matter upon which there is a scholarly consensus. Even if a *kāfir* acknowledges the Prophethood of Muḥammad, peace and blessings be upon him, stating so with his tongue, he doesn't fully enter into Islam unless the additional requirements

² The next chapter covers this matter of '*kufr duna kufr*.'

of the declarations or testimonies of faith are made and he commits to the rulings as stipulated by Islam.

Much the same was noted by al-Ḥāfiẓ Ibn Ḥajar in *Fath al-Bāri*. There he argued similarly after giving the explanation of the *ḥadith* about the refusal of the leaders of Najrān to partake in the *mubāhalah* with the Messenger of Allah, peace and blessings be upon him.³ Their words implied acknowledging the Prophethood which was bestowed upon Muḥammad, peace and blessings be upon him, yet despite this, they didn't enter into the fold of Islam, nor did they submit to its rulings and remained within the fold of *kufr*. Similar can be said of the Jewish rabbis at the time of the Prophet, who readily acknowledged he bore all the signs of Prophethood but adamantly refused to accept and follow him, peace and blessings be upon him. Such people were held back by the pull of worldly desire, be that the love of positions of leadership, fear of being excommunicated by their compatriots or other such motives. None of this was accepted as being a valid excuse, nor did absolve them from remaining within the darkness of *kufr*. Except in matters of extreme duress there is really no valid excuse. This ruling is not limited to the *Shahadāt al-Tawḥeed* – the testimonial of monotheism – alone but it would also extend to every true statement that is inherently linked to that testimony, thereby becoming one of its necessary implications.

Fundamentally there isn't a difference between a person declaring 'There is no god except Allah,' and the statement, 'Mary, the daughter of 'Imran, was absolved by Allah of any notion of immorality; she was favoured above the women of this world.' Or indeed declaring, 'Allah has power over all things; He encompasses all by way of His knowledge,' or even 'In this matter, the ruling of Allah, is X or Y.' Taken in the round, all of these statements are matters of truth, the one who utters them believing in them as such, and upholding them as a part of 'Imān in Allah. Altogether it has to be accepted, acknowledged, submitted to and where required, proclaimed; it must be taken as being *Deen* by which one worships Allah, except of course in cases of genuine coercion. If this example and only this example bears some resemblance to the situation of a Muslim who is sinful or guilty of wrongdoing, then it bears an even stronger resemblance and closer kinship to

³ Ibn Ḥajar *Fath al-Bāri* [Vol. 10, pp. 116/117 (print edition, 2011)]

the situation of a disbeliever who turns away, denies, or acts arrogantly. So let every rational person take appropriate heed of these matters.

By way of another example, but stated in a different way, it can be seen from a Muslim man who has been caught while under the influence of intoxication. If apprehended and brought before a judge sitting in a court governed by man-made laws, the individual would in all likelihood be released without any penalty because, according to that framework of law, he had not committed a crime and would not be liable for any form of punishment. In fact, many would point out that the *mere fact* of being under the influence of intoxication wouldn't be a valid basis for any detention or summons to court. But within the *Sharī'ah*, this has mandated the enforcement of the requisite punishment for the consumption of alcohol, which would carry the penalty of flogging. Abandoning the rule of what Allah has revealed in this given example, and indeed in other similar examples, has nothing to do with succumbing to desire, weakness in the face of the whisperings of *Shayṭān*, or providing undue favour for a friend or relative. More to the point, it is an application of non-Islamic *kufir* laws that are at complete odds with Islam. At the bare minimum, it is a flagrant disregard for the final divine revealed law; turning away from that divine revealed law is an act of *kufir*, which would take one outside the fold of Islam.

More reprehensible would be doubting the divine revealed law itself, outright rejection, obstinate denial or even the arrogance of not wishing to formally submit to it, like the example of *Iblees* refusing to prostrate. Other such reprehensible notions are showing contempt and mockery toward it, or harbouring hatred, hostility, and enmity against it – all of this clearly constitutes open *kufir* against divine revealed law and is among the types of *kufir* that expel one totally from the fold of Islam. Can any rational person with even an atom's weight of Islam, 'Imān, reverence, and love for Allah, His Messenger, and His *Deen*, doubt that such a judge has left the fold of Islam and is no longer under its protection? However, if a Muslim man is caught driving whilst under the influence of alcohol, secular-judges would have no haste in applying the full range of penalties that can be invoked for this, including the possibility of a custodial sentence. In this example it would be clear that a judge has not ruled by what Allah has revealed and has instead opted for referral and judgement to laws not divinely sanctioned.

From an Islamic viewpoint, a custodial sentence *could in theory* be applied as a discretionary penalty for violating public order and endangering others, applied to both Muslim and non-Muslim citizens. That would of course be on the proviso that it was enacted by a properly constituted Islamic authority ruling by what Allah has revealed. Again, in theory that form of custodial punishment could be enacted and applied to non-Muslim citizens specifically, because in general, their religions do not level this as an outright prohibition. But here, the ruling would be contrary to what Allah the Almighty has revealed, and the judge would thereby have committed two acts of *kufir* not just one. Consequently, he would more rightly be labelled a *kāfir*, *dhālim* and a *fāsiq*. Undoubtedly, he would be worse than his counterparts in the previous examples, going deeper in *kufir*, straying far from the correct righteous path. Similarly, in terms of sin, *munkar* and *kufir*, is the obedience to those who legislate without Allah's law, those who rule by other than what Allah has revealed, as He the Exalted says:

وَلَا تَأْكُلُوا مِمَّا لَمْ يُذَكَّرْ اسْمُ اللَّهِ عَلَيْهِ وَإِنَّهُ لَفِسْقٌ وَإِنَّ الشَّيَاطِينَ لَيُوحُونَ إِلَى أَوْلِيَائِهِمْ لِيُجَادِلُوكُمْ وَإِنْ أَطَعْتُمُوهُمْ إِنَّكُمْ لَمُشْرِكُونَ

And do not eat anything over which Allah's name has not been pronounced, for that is breaking the law. The evil ones incite their followers to argue with you: if you listen to them, you too will become mushrikeen.⁴

Namely, the verse is outlining clearly that if you were to follow them in this respect and obey them in permitting the carrion, you would therefore become *kuffār* and *mushrikeen*, as it entails affirming for other than Allah the right of sovereignty, authority and legislation. Stated differently, it would be assigning the prerogative of command to *other than* Allah. As set out elsewhere in this work, the verse is Meccan in origin by unanimous agreement. *Shirk* referred exclusively to the *Shirk* of disbelief, in other words, the major *Shirk* that expels one from the domain of Islam and utterly is at odds with its essence. Rulings that were related to minor *Shirk*, hidden or concealed *Shirk*, the etiquettes as they pertain to *Tawḥeed* were revealed later at Medina. These included the matter of swearing oaths by one's forefathers, or uttering

⁴ *Qur'ān*, 6: 121

the statement 'Whatever Allah wills and what you will.' These matters were uniquely established by the Prophetic *Sunnah*.

In terms of the matter of obedience, one who obeys following this matter of permitting and prohibiting would be guilty of *Shirk*, to the level that this takes one outside of the fold of Islam. From this, the *one being obeyed*, has been construed as being a 'lord,' a false 'god' besides Allah; inevitably this is an unavoidable conclusion as the narratives stemming from 'Adi ibn Ḥātim demonstrably shows. Without a shadow of doubt, the far more heinous and deeper into the realms of *kufir* and *Shirk* is the legal authority which legislates constitutions, laws and other such legal instruments that are in flagrant contradiction and opposition to the *Sharī'ah* of Islam, not being derived from the sources based in revelation or according to the correct Islamic legal methodology of derivation. Without question this constitutes another category of *Shirk* altogether. He, the Almighty and Exalted says:

أَمْ لَهُمْ شُرَكَاءُ شَرَعُوا لَهُمْ مِّنَ الدِّينِ مَا لَمْ يَأْذَنَ بِهِ اللَّهُ وَلَوْلَا كَلِمَةُ الْفَصْلِ لَفُصِّى بَيْنَهُمْ وَإِنَّ الظَّالِمِينَ لَهُمْ عَذَابٌ أَلِيمٌ

Or have they partners who have prescribed for them any Deen that Allah does not sanction? And were it not for the word of judgment, decision would have certainly been given between them; and surely the unjust shall have a painful punishment.⁵

An individual who legislates, by engagement within the process of legislation, seeks to try and become a contender with Allah in His *Siyādah* (sovereignty) and *al-Rububiyyah* (Lordship); the audacity of the challenger to the Almighty and Exalted, who has said, as reported in the famous *ḥadith Qudsi*: 'Pride is my cloak and greatness My robe, and he who competes with Me in respect of either of them I shall cast into hellfire.'⁶ This legislator speaks, whether that is explicitly or even implicitly, with the statement that they are 'Your supreme Lord.' It is a call for people to worship him, that worship being by way of obedience and following. Hence he becomes one of the *Tawāgheet* (pl. of *Tāghut*), one of their leaders. By way of acknowledgement, whomsoever does

⁵ *Qur'ān*, 42: 21. Here we have opted for Shakir's translation of the verse.

⁶ Although the Arabic edition doesn't cite a reference for this, the tradition is widely reported across all major collections, including those of forty-*ḥadith*; narrated upon the authority of Abu Hurayrah.

that makes him a ‘lord,’ a false ‘god’ and a legislator *besides* Allah, which naturally means that he has associated a partner with Allah, the Exalted and Majestic. Woe to all of them from the impending doom; the warning of a severe punishment that He the Almighty promises will come to pass.

9. The reality of those who say ‘*kufṛ duna kufṛ*’

At this juncture we should not leave the verses of *Hukm* to move on to another topic except after pointing out that most of those who would retort with the statement ‘*kufṛ duna kufṛ*,’¹ or restrict themselves to labels of *fisq* and *dhulm* in the absence of an additional cause relating to *Takfīr*, as we have explained above, are apparently defenders of the existing status quo and political leadership, who all govern by other than what Allah has revealed. They try to take them out of the blaze of *riddah* and *kufṛ* and argue on their behalf falsely in a desperate attempt to seek to stabilise the illegitimate regimes, all the while seeking to tirelessly work to prevent anything near their overthrow.

Naturally, there are but a few sincere scholars, those seeking truth and have a genuine fear of declaring someone a *kafīr* except upon the basis of conclusive evidence. But the majority of those who argue in our time belong to the first type, the sycophants of the current political regimes. If that is the

¹ Literally being ‘disbelief lesser than disbelief,’ but often referred into English as being ‘minor disbelief.’ Analysis of the channels of reporting as it relates to this statement, mistakenly attributed to Ibn ‘Abbās is covered in a separate standalone book that the Professor wrote entitled: *al-Ḥākimiyyah wa Siyadāt al-Shar’* (2002), [pp. 177/180]. Al-Ḥākim records the narrative in his *Mustadrak* [Vol. 2, no. 3219] with the wording, purportedly from Ibn ‘Abbās as being: ‘It is not the *kufṛ* they are taking it to. It is not *kufṛ* which takes one outside the *Millah*; “And those who do not judge according to what Allah has revealed are the disbelievers,” [5: 44], it is *kufṛ duna kufṛ* (disbelief lesser than disbelief).’ However the *isnād* has the narrator Hishām ibn Ḥujayr who is judged as *daef* (weak) by major scholars in this field including Aḥmad and Yahya ibn Ma’een, and he is the only one narrating this from the Successor Ṭāwus. Even the channel which is mentioned in the *Tafsīr* of Ibn Abi Ḥātim [Vol. 4, p. 1143], doesn’t attribute the saying or wording as being with Ibn ‘Abbās. The limited wording which appears as just ‘*kufṛ duna kufṛ*,’ is attributed to the Successor Aṭā, as per the reporting channels which are mentioned in the *Tafsīr* of al-Ṭabari regarding the verses of ruling in *Surah al-Mā’idah* [Vol. 4, pp. 595/597].

case, we give them the glad tidings that this does not benefit them at all, and that the authority of their ‘masters’ among the rulers of the world is totally invalid. Opposition to them, including their removal from office is legitimate, irrespective of the statement ‘*kufir duna kufir*,’ regardless of whether they are more deserving of the labels *fisq* and *dhulm*. The reason for this, is that Allah the Exalted has spared us this burden because he has informed the final Prophet, Muḥammad peace and blessings be upon him, to provide us with a clear directive. He directed his Companions not to dispute with those in authority ‘*except if you see manifest kufir concerning which you have a clear proof from Allah*.’ To begin consideration of the evidence in this respect, we start with the *ḥadith* which is recorded in the *Ṣaḥīḥ* of al-Bukhārī:

حَدَّثَنَا إِسْمَاعِيلُ حَدَّثَنِي ابْنُ وَهْبٍ عَنْ عَمْرِو عَنْ بَكْرِ عَنْ بُسْرِ بْنِ سَعِيدٍ عَنْ جُنَادَةَ بْنِ أَبِي أُمَيَّةَ قَالَ دَخَلْنَا عَلَى عَبْدِ اللَّهِ بْنِ الصَّامِتِ وَهُوَ مَرِيضٌ فَلَمَّا أَصْلَحَ اللَّهُ حَدَّثَ بِحَدِيثٍ يَنْفَعُكَ اللَّهُ بِهِ سَمِعْتَهُ مِنَ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، قَالَ دَعَانَا النَّبِيُّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَبَايَعَنَا فَقَالَ فِيمَا أَخَذَ عَلَيْنَا أَنْ بَايَعَنَا عَلَى السَّمْعِ وَالطَّاعَةِ فِي مَنْشَطِنَا وَمَكْرَهِنَا وَعُسْرِنَا وَيُسْرِنَا وَأَثَرَةٍ عَلَيْنَا وَأَنْ لَا نُنَازِعَ الْأَمْرَ أَهْلَهُ إِلَّا أَنْ تَرَوْا كُفْرًا يَوَاحَا عِنْدَكُمْ مِنَ اللَّهِ فِيهِ بُرْهَانٌ

Ismā’il narrated to us Ibn Wahb narrated to me from ‘Amr from Bukeer from Busr ibn Sa’eed from Junāda ibn Abi Umayya, he said: ‘We entered upon Ubādah ibn al-Ṣāmit and he was ill. We said, “May Allah grant you health; will you tell us a *ḥadith* you heard from the Prophet peace and blessings be upon him and by which Allah may make you benefit?” He said, “The Prophet peace and blessings be upon him called us and we gave him the Pledge of Allegiance for Islam, and among the conditions on which he took the Pledge from us, was that we were to listen and obey (those in authority) in times of ease and hardship, in matters that we liked and disliked, even if others were given preference over us. And that we wouldn’t dispute with the authority of people unless we see clear manifest *kufir*, for which we would have a clear proof with us from Allah.”²

Cited in the *Musnad* of Imām Aḥmad:

² *Ṣaḥīḥ* al-Bukhārī [Vol. 9, no. 7055]

حَدَّثَنَا الْوَلِيدُ قَالَ حَدَّثَنِي ابْنُ ثَوْبَانَ لَعَلَّهُ عَبْدُ الرَّحْمَنِ بْنُ ثَابِتٍ بْنُ ثَوْبَانَ، عَنْ عُمَيْرِ بْنِ هَانِيٍّ حَدَّثَهُ عَنْ جُنَادَةَ بْنِ أَبِي أُمَيَّةَ عَنْ عَبْدِ اللَّهِ بْنِ الصَّامِتِ عَنْ رَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِثْلَ ذَلِكَ قَالَ مَا لَمْ يَأْمُرْوكَ بِإِثْمٍ يَوَاحَا

al-Waleed narrated to us he said Ibn Thawbān narrated to me, perhaps he’s ‘Abd al-Raḥman ibn Thābit ibn Thawbān from Umayr ibn Hāni, narrated it from Junāda ibn Abi Umayya from Ubādah ibn al-Ṣāmit, from the Messenger of Allah, peace and blessings be upon him, similar to that, he said: *Provided they don’t order you to commit a clear sin*.³

Prior to the citation of this, the following is recorded in the *Musnad* also:

حَدَّثَنَا الْوَلِيدُ بْنُ مُسْلِمٍ حَدَّثَنِي الْأَوْزَاعِيُّ عَنْ عُمَيْرِ بْنِ هَانِيٍّ أَنَّهُ حَدَّثَ عَنْ جُنَادَةَ بْنِ أَبِي أُمَيَّةَ عَنْ عَبْدِ اللَّهِ بْنِ الصَّامِتِ قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَلَيْكَ السَّمْعُ وَالطَّاعَةُ فِي عُسْرِكَ وَيُسْرِكَ، وَمَنْشَطِكَ وَمَكْرَهِكَ، وَأَثَرَةٍ عَلَيْكَ، وَلَا تَنْتَازِعَ الْأَمْرَ أَهْلَهُ، وَإِنْ رَأَيْتَ أَنْ لَكَ

al-Waleed ibn Muslim narrated to us al-Awzā’i narrated to me from Umayr ibn Hāni, that he narrated it from Junāda ibn Abi Umayya from Ubādah ibn al-Ṣāmit, he said the Messenger of Allah, peace and blessings be upon him said: *You must listen and obey (be that) in hardship or ease; in what you like and what you dislike, even when others are given preference over you. Do not dispute the authority of those in charge, even if you think you have a right (to it)*.⁴

Next, the following is recorded in *Musnad al-Shāmīyīn* by al-Ṭabarānī. While the intersecting channel of reporting largely remains the same together with the reported initial wording, there are some additional matters reported which are of note:

حَدَّثَنَا مُحَمَّدُ بْنُ أَبِي رُزْعَةَ الدِّمَشْقِيُّ حَدَّثَنَا هِشَامُ بْنُ عَمَّارٍ (ح) وَحَدَّثَنَا ابْنُ دُحَيْمٍ، حَدَّثَنَا أَبِي، قَالَا حَدَّثَنَا الْوَلِيدُ بْنُ مُسْلِمٍ، حَدَّثَنَا ابْنُ ثَوْبَانَ، حَدَّثَنِي عُمَيْرُ بْنُ هَانِيٍّ، عَنْ جُنَادَةَ بْنِ أَبِي أُمَيَّةَ، عَنْ عَبْدِ اللَّهِ بْنِ الصَّامِتِ قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَلَيْكَ بِالسَّمْعِ وَالطَّاعَةِ، فِي عُسْرِكَ وَيُسْرِكَ، وَمَنْشَطِكَ وَمَكْرَهِكَ وَأَثَرَةٍ عَلَيْكَ، وَلَا تَنْتَازِعَ الْأَمْرَ أَهْلَهُ وَإِنْ رَأَيْتَ أَنَّهُ لَكَ؛ قَالَ عُمَيْرٌ فَحَدَّثَنِي خُضَيْرٌ أَوْ خُضَيْرُ السُّلَمِيِّ أَنَّهُ سَمِعَ مِنْ عَبْدِ اللَّهِ بْنِ الصَّامِتِ عَنِ النَّبِيِّ، صَلَّى

³ *Musnad* Aḥmad [Vol. 16, no. 22637]

⁴ Ibid [no. 22634]. The Arabic edition also records the following narration, [no. 22635] which is: ‘al-Waleed ibn Muslim narrated to us Sa’eed ibn ‘Abd al-Aziz narrated to us from Ḥayyān ibn Abi al-Naḍr that he heard it from Junāda who narrated it to him, from Ubādah, narrating similarly.’

الله عليه وسلم وَرَادَ إِلَّا أَنْ يَأْمُرَكَ بِأَمْرٍ يَأْخُذُ بِكَ تَأْوِيلُهُ مِنَ الْكِتَابِ قَالَ خُصِّيرٌ أَوْ خُصِيرٌ
قُلْتُ لِعِبَادَةِ فَإِنْ أَنَا أَطَعْتُهُ؟ قَالَ يُؤْخَذُ بِقَوَائِمِكَ فَتُلْقَى فِي النَّارِ وَلَيَجِيءُ هُوَ فَلْيَنْقِذْكَ

Muḥammad ibn Abi Zur’ah al-Dimishqi narrated to us Hishām ibn ‘Ammār narrated to us (*ḥawala*), and Ibn Duḥaym narrated to us my father narrated to us, they said: al-Waleed ibn Muslim narrated to us Ibn Thawbān narrated to us Umayr ibn Hāni narrated to us from Junāda ibn Abi Umayya from Ubādah ibn al-Ṣāmit, he said the Messenger of Allah, peace and blessings be upon him said: ‘*You must listen and obey (be that) in hardship or ease; in what you like and what you dislike, even when others are given preference over you. Do not dispute the authority of the people, even if you think you have a right (to it).*’ Umayr said: After which Khudayr or Ḥudayr al-Sulami narrated to me that he heard from Ubādah ibn al-Ṣāmit from the Prophet, peace and blessings be upon him, and he added: ‘*Except if he commands you to commit a clear sin, for which you have evidence from the Book.*’ Khudayr or Ḥudayr said: ‘I asked Ubādah, “What if I obey him (in that)?” He said: “You will be seized by your legs and thrown into the Fire. Let him come and save you then!”⁵

The next tradition is recorded in the *Ṣaḥīḥ* of Ibn Ḥibbān:

أَخْبَرَنَا الصُّوفِيُّ بِبَغْدَادَ قَالَ حَدَّثَنَا الْهَيْثَمُ بْنُ خَارِجَةَ، قَالَ حَدَّثَنَا مُدْرِكُ بْنُ سَعْدٍ الْفَرَارِيُّ أَبُو سَعْدٍ
عَنْ حَيَّانَ أَبِي النَّضْرِ سَمِعَ جُنَادَةَ بْنَ أَبِي أُمَيَّةَ سَمِعَ عِبَادَةَ بْنَ الصَّامِتِ يَقُولُ قَالَ رَسُولُ اللَّهِ
صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَا عِبَادَةَ قُلْتُ لَبَّيْكَ قَالَ اسْمِعْ وَأَطِعْ فِي عُسْرِكَ وَيُسْرِكَ، وَمَكْرَهِكَ وَأَنْزَرَةٍ
عَلَيْكَ، وَإِنْ أَكَلُوا مَالَكَ، وَضَرَبُوا ظَهْرَكَ، إِلَّا أَنْ تَكُونَ مَعْصِيَةً لِلَّهِ يَأْخُذُ

al-Ṣufi reported to us in Baghdad, he said al-Haytham ibn Khārīja narrated to us he said Mudrik ibn Sa’d al-Fazzārī Abu Sa’d narrated to us from Ḥayyān Abi al-Naḍr that he heard from Junāda ibn Umayya who heard from Ubādah ibn al-Ṣāmit saying the Messenger of Allah, peace and blessings be upon him said: ‘*O Ubādah,*’ I replied “At your service.” He said, ‘*Listen and obey in times of ease and difficulty, when you are forced or when they prefer you over them, even if they consume your wealth and strike your back, unless it is an open disobedience to Allah.*’⁶

⁵ al-Ṭabarānī, *Musnad al-Shāmīyīn* [Vol. 1, p. 141, no. 665 (Shamela edition)]

⁶ *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 2, no. 904 (Shamela edition)]

‘*Unless they establish the prayer*’

Initially this was the case as per the Pledge taken at al-Aqabah, when the Companions gave their allegiance to the Prophet, peace and blessings be upon him. That allegiance entailed that they would support him as they would support their wives and children, even in war. Then the Prophet expanded upon this and forbade rebellion, saying: ‘*No, as long as they establish prayer among you.*’ Examples of this being reported are numerous, and are set out across the nine *aḥādīth* which will be quoted as evidence. We begin with that recorded in the *Ṣaḥīḥ* of Imām Muslim, narrated upon the authority of ‘Auf ibn Mālīk, which has the most complete and best reported wording:

حدثنا إسحاق بن إبراهيم الحنظلي أخبرنا عيسى بن يونس حدثنا الأوزاعي عن يزيد بن يزيد
بن جابر عن رزيق بن حيان عن مسلم بن قرظة عن عوف بن مالك عن رسول الله، صلى
الله عليه وسلم، قال خيار أئمتكم الذين تحبونهم ويحبونكم، ويصلون عليكم وتصلون عليهم،
وشرار أئمتكم الذين تبغضونهم، ويبغضونكم وتلعنونهم ويلعنونكم، قيل يا رسول الله أفلا
ننابذهم بالسيف؟ فقال لا ما أقاموا فيكم الصلاة. وإذا رأيتم من ولايتكم شيئا تكرهونه فاكرهوا
عمله، ولا تنزعوا يدا من طاعة!

Ishāq ibn Ibrāhīm al-Ḥanzālī narrated to us Esa ibn Yunus reported to us al-Awzā’ī narrated to us from Yazeed ibn Yazeed ibn Jābir from Razeeq ibn Ḥayyān from Muslim ibn Qirṣa from ‘Auf ibn Mālīk, from the Messenger of Allah, peace and blessings be upon him, he said: ‘*The best of your rulers are those whom you love and who love you, who invoke Allah’s blessings upon you and you invoke His blessings upon them. And the worst of your rulers are those whom you hate and who hate you and whom you curse and who curse you.*’ It was asked – “O Messenger of Allah, shouldn’t we overthrow them by the sword?” He replied, ‘*No, as long as they establish the Ṣalāh among you. If you then find anything detestable in them, you should hate their administration, but do not withdraw yourselves from their obedience.*’⁷

The second tradition is narrated upon the authority of the mother of the believers, Umm Salamah, with a dazzlingly authentic *isnād*, as recorded in the *Musnad* of Aḥmad:

⁷ *Ṣaḥīḥ* Muslim [Kitāb al-Imārāh, no. 1855]

حَدَّثَنَا يَزِيدُ حَدَّثَنَا هِشَامُ بْنُ حَسَّانَ، عَنِ الْحَسَنِ عَنْ صَبَّاءَ بِنِ مُحَصِّنٍ عَنْ أُمِّ سَلَمَةَ قَالَتْ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ إِنَّهُ سَتَكُونُ أُمَرَاءُ تَعْرِفُونَ وَتُنْكِرُونَ، فَمَنْ أَنْكَرَ، فَقَدْ بَرَأَ، وَمَنْ كَرِهَ، فَقَدْ سَلِمَ، وَلَكِنْ مَنْ رَضِيَ وَتَابَعَ قَالُوا يَا رَسُولَ اللَّهِ، أَفَلَا نُقَاتِلُهُمْ؟ قَالَ لَا، مَا صَلَّوْا لَكُمْ الْخُمْسَ

Yazeed narrated to us Hishām ibn Ḥassān narrated to us from al-Ḥasan from Ḍabba ibn Muḥsin from Umm Salamah, she said the Messenger of Allah, peace and blessings be upon him said: ‘*There will be rulers over you; some of whom you will approve, others not. You will recognise (some things they do as good) and deny (some as evil). Whoever rejects (the bad), he is innocent; and whoever hates (the bad), he is saved. But whoever is pleased with it and follows (them), then he isn’t.*’ They said: “O Messenger of Allah, should we not fight them?” He replied, ‘*No, provided they establish five-prayers upon you.*’⁸

Although included in the *Ṣaḥīḥ* of Imām Muslim, it is in an abbreviated form, limited to the wording ‘*No, as long as they pray.*’⁹ Another version of this narration appears in *Mu’jam al-Awsat* by al-Ṭabarānī with a *Ṣaḥīḥ isnād*:

إِنَّهُ سَيَكُونُ عَلَيْكُمْ أَيْمَةٌ، تَعْرِفُونَ وَتُنْكِرُونَ فَمَنْ أَنْكَرَ فَقَدْ بَرَأَ، وَمَنْ كَرِهَ فَقَدْ سَلِمَ، وَلَكِنْ مَنْ رَضِيَ أَوْ تَابَعَ. قَالَتْ يَا رَسُولَ اللَّهِ أَوْ لَا نُقَاتِلُهُمْ؟ قَالَ لَا، مَا أَقَامُوا الصَّلَاةَ

‘*Indeed, there will be leaders over you who do things you recognise (as good) and things you reject. Whoever rejects (their misdeeds) is free of blame, and whoever hates (their actions) is safe. But (save those who) follows or approves of them.*’ They said: “O Messenger of Allah, should we not fight them?” He replied: ‘*No, as long as they establish the Salāh.*’¹⁰

⁸ *Musnad* Aḥmad [no. 26528 (*Shamela* edition)]. Also cited in the *Musnad* of Abu Ya’la [Vol. 12, no. 6980 (*Shamela* edition)], with the *isnād*: ‘Abu Khaythama narrated to us Yazeed ibn Harun narrated to us Hishām narrated to us exactly the same by way of reporting in full, transmission and text.’ Commenting upon this, Shaykh Ḥussein Asad said ‘Its *isnād* is *Ṣaḥīḥ*.’

⁹ *Ṣaḥīḥ* Muslim [*Kitāb al-Imārah*]

¹⁰ al-Ṭabarānī *Mu’jam al-Awsat* [Vol. 5, no. 4745]. The *isnād* for this *ḥadīth* is: ‘Abd al-Raḥman ibn Salm narrated to us he said Zunayj Abu Ghassān narrated to us he said Muḥammad ibn al-Mu’alla al-Rāzi narrated to us from Ash’ath ibn ‘Abd al-Malik from Hishām ibn Ḥassān from al-Ḥasan from Ḍabba ibn Muḥsin al-Asdi from Umm Salamah, from the Prophet, peace and blessings be upon him.’ After citing this al-Ṭabarānī said: ‘This *ḥadīth* wasn’t narrated from Ash’ath ibn ‘Abd al-Malik except by way of Muḥammad ibn al-Mu’alla.’ After which, the Professor states that the narration is extremely authentic.

The third narration is reported from Abu Sa’eed al-Khudri, may Allah be pleased with him and is recorded in the *Musnad* of Aḥmad. There is a slight variance in the wording reported setting the overall context:

يَكُونُ عَلَيْكُمْ أُمَرَاءُ تَطْمَئِنُّ إِلَيْهِمُ الْقُلُوبُ، وَتَلِينُ لَهُمُ الْجُلُودُ، ثُمَّ يَكُونُ عَلَيْكُمْ أُمَرَاءُ تَتَمَنَّى مِنْهُمْ الْقُلُوبُ، وَتَقْشَعِرُ مِنْهُمْ الْجُلُودُ فَقَالَ رَجُلٌ أَتَقَاتِلُهُمْ يَا رَسُولَ اللَّهِ؟ قَالَ لَا مَا أَقَامُوا الصَّلَاةَ

‘*There will be rulers over you to whom the hearts will incline and the skin will soften. Then there will be rulers over you from whom the hearts will recoil and the skin will shudder.*’ A man asked: “*Shall we not fight them, O Messenger of Allah?*” He replied, ‘*No, as long as they establish the Salāh.*’¹¹

There is also the narration as reported by Khabbāb ibn al-‘Arat which has the reported text from the Prophet peace and blessings be upon him as: ‘*No, as long as they establish the Salāh.*’¹² Two further narrations are have a slight variance, ‘*No, not as long as they pray - no, not as long as they pray,*’ which is narrated upon the authority of Abdullah ibn ‘Amr ibn al-‘Aās,¹³ and ‘*No,*

¹¹ *Musnad* Aḥmad [no. 11224 (*Shamela* edition)] with the *isnād*: ‘Abd al-Ṣamad narrated to us my father and ‘Affān narrated to us from Abdullah al-Bahi from Abu Sa’eed al-Khudri, he said the Messenger of Allah peace and blessings be upon him said.’ It also appears in other collections too, such as *al-Sunnah* by Ibn Abi Aāsīm [Vol. 2, no. 1077].

¹² *Musnad* al-Bazzār [Vol. 6, no. 2123]. Prior to this, the contextual wording differs slightly, beginning with: ‘There will be rulers over you who lie and act unjustly. Whoever denounces them is absolved (of blame), and whoever hates (their actions) is safe. But whoever is pleased with them and follows them (is blameworthy).’ The *isnād* recorded by al-Bazzār is: ‘Muḥammad ibn Ma’mar narrated to us he said Rawḥ ibn Ubādah narrated to us he said Abu Yunus, his name is Ḥātim ibn Abi Ṣaghira narrated to us from Simmāk ibn Ḥarb from Abdullah ibn Khabbāb from his father, that the Prophet, peace and blessings be upon him said.’ After this, al-Bazzār comments by saying: ‘We don’t know of this *ḥadīth* reported by Khabbāb except by this channel of transmission.’

¹³ *Majmu’ fihi Muṣṣanaḥāt Abul-‘Abbās al-Aṣam wa Ismā’il al-Ṣaffār* [p. 88]. Here, the Arabic edition quotes an *isnād* from this work, without the reported text. This is numbered after the main narration, the *isnād* for which is: ‘Bakr ibn Sahl narrated to us Abdullah ibn Yusuf narrated to us Umar ibn al-Mughria al-Maṣīṣi narrated to us Hishām ibn Urwa narrated to us from his father from Abdullah ibn ‘Amr ibn al-‘Aas, from the Prophet, peace and blessings be upon him, similar to it. This is how it was in our Shaykh’s copy.’ The *isnād* for the earlier narration which has the *matn* is: ‘Bakr ibn Sahl al-Dimiyāṭi narrated to us Abdullah ibn Yusuf narrated to us Esa ibn Yunus narrated to us from Hishām from al-Ḥasan from Ḍabba ibn Miḥṣan from Umm Salamah, she said, the Messenger of Allah peace and blessings be upon him said: ‘*There will be rulers over you whose actions you will recognise (as good) and (others) you will reject. Whoever denounces (the wrong) is absolved (of blame), and whoever hates (it) is safe. But whoever is pleased with it and follows (accordingly) is blameworthy.*’ They said: ‘Shall we not fight them?’ He replied, ‘*No, not as long as they pray - no, not as long as they pray.*’

leave them as long as they fast and pray,’ which is narrated upon the authority of ‘Uqbah ibn ‘Aāmir.¹⁴

The next three-narrations are reported on the authority of different Companions, Abu Hurayrah, Ibn ‘Abbās and Umar ibn al-Khaṭṭāb, may Allah be pleased with them all. Taken in the round, these traditions support much of the contextual background as already highlighted, but they don’t carry the wording which has been highlighted thus far about the Prophetic response when asked about opposing the rulers.¹⁵

¹⁴ al-Ṭabarānī *Mu’jam al-Kabir* [Vol. 17, no. 808 (Shamela edition)]. The *isnād* is: ‘Muḥammad ibn Yaḥya ibn Minda al-Aṣḥabānī narrated to us Abu Kureeb narrated to us Bakr ibn Yunus ibn Bukeer from Musa ibn Ali from his father from ‘Uqbah ibn ‘Aāmir, he said the Messenger of Allah said.’ The contextual wording is slightly different here. Prior to the wording as mentioned above, the *matn* reads: ‘*Shall I not tell you about the best of your leaders and the worst of them?*’ They said: ‘Yes, O Messenger of Allah.’ He said: ‘*The best of your leaders are those whom you love and they love you, you supplicate to Allah for them and they supplicate to Allah for you. And the worst of your leaders are those whom you hate and they hate you, and you curse them and they curse you.*’ They said: ‘Should we not fight them, O Messenger of Allah?’ Furthermore it is also cited by al-Ṭabarānī in *Mu’jam al-Awsaṭ* [Vol. 7, no. 7238], after which he comments with: ‘This *ḥadīth* was not narrated from Musa ibn Ali except by Bakr ibn Yunus. It was narrated by Abu Kurayb alone, and it is not narrated from Uqbah ibn Aāmir except by way of this *isnād*.’

¹⁵ The tradition of Abu Hurayrah, as recorded in the *Ṣaḥīḥ* of Ibn Ḥibbān [Vol. 15, no. 6660], according to the conditions of the two-Shaykhs is: Abdullah ibn Muḥammad al-Azdi reported to us he said Ishāq ibn Ibrāhīm narrated to us he said al-Waleed reported to us he said al-Awzā’i narrated to me he said al-Zuhri narrated to me from Abu Salamah from Abu Hurayrah, from the Messenger of Allah, peace and blessings be upon him, he said: ‘*There will be Caliphs after me who act according to what they know and do as they are commanded. Then there will come after them Caliphs who act without knowledge and do what they are not commanded. So whoever denounces them is absolved (of blame), and whoever refrains is safe. But the one who is pleased with them and follows them (is blameworthy).*’ The narration of Ibn ‘Abbās is recorded in *Muṣṣanaḥ* Ibn Abi Shayba [Vol. 7, no. 37743]: Yaḥya ibn Abi Bukeer narrated to us he said al-Hiyāj ibn Bisṭām al-Hanzali narrated to us he said Layth ibn Abi Sulaym narrated to us from Ṭāwus from Ibn ‘Abbās, he said the Messenger of Allah, peace and blessings be upon him said: ‘*There will be rulers (over you), some of whose actions you will recognise (as good) and others you will reject. Whoever opposes them will be saved, and whoever keeps away from them will be safe, or nearly so, but whoever mixes with them will be ruined.*’ Lastly, the narration from Umar ibn al-Khaṭṭāb is recorded in the *Sunan* of al-Tirmidhi [Vol. 4, no. 2264]: Muḥammad ibn Bashār narrated to us he said Abu Aāmir al-Aqadi narrated to us he said Muḥammad ibn Abi Ḥumayd narrated to us from Zayd ibn Aslam from his father from Umar ibn al-Khaṭṭāb from the Prophet, peace and blessings be upon him, he said: ‘*Shall I not inform you of the best of your leaders and the worst of them; the best of them are those whom you love and they love you, you supplicate for them, and they supplicate for you. And the vilest of your leaders are those who hate you, and you hate them, and they curse you and you curse them.*’ After citing this, Imām al-Tirmidhi said: ‘This *ḥadīth* is *ghareeb*; we only from it (by way of) Muḥammad ibn Abi Ḥumayd and his memorisation is considered weak.’

Analysis

How is the phrasing as expressed in the narrations of ‘*Iqamātus Ṣalāh*,’ [إقامة الصلاة] ‘*establishing the Ṣalāh*’ to be understood? In this context here, it is related to ‘*Iqamāt al-Deen*, the establishment of the *Deen* as is supported and reinforced by the following evdeinces. Firstly, there is the *ḥadīth* of Umm al-Ḥuṣayn, may Allah be pleased with her, which was narrated concerning the requirement to hear and obey the legitimate ruler, even if it is an Abyssinian slave with a mutilated head, upon the proviso that he rules by the book of Allah. The narration is recorded in the *Ṣaḥīḥ* of Muslim but also within the collections of most scholars with the most authentic channels of transmission:

حَدَّثَنَا مُحَمَّدُ بْنُ الْمُثَنَّى حَدَّثَنَا مُحَمَّدُ بْنُ جَعْفَرٍ حَدَّثَنَا شُعْبَةُ عَنْ يَحْيَى بْنِ حُصَيْنٍ قَالَ سَمِعْتُ جَدِّي تُحَدِّثُ أَنَّهَا سَمِعَتْ النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَخْطُبُ فِي حَجَّةِ الْوَدَاعِ وَهُوَ يَقُولُ وَلَوْ اسْتُعْمِلَ عَلَيْكُمْ عَبْدٌ يَقُودُكُمْ بِكِتَابِ اللَّهِ فَاسْمَعُوا لَهُ وَأَطِيعُوا

Muḥammad ibn al-Muthanna narrated to us Muḥammad ibn Ja’far narrated to us Shu’ba narrated to us from Yaḥya ibn Ḥuṣayn, he said I heard my grandmother narrate it, that she heard the Prophet peace and blessings be upon him saying in his final sermon on the occasion of the last pilgrimage: *Even if a slave is appointed over you who leads you according to the Book of Allah, then you are all to listen to him and obey him.*¹⁶

Secondly, there are the *aḥādīth* which outline the command to fight the tribe of the Quraysh and to destroy their ‘green,’ in other words their elite and flourishing status, should they not remain upright upon the *Deen*. These points are outlined in four-*ḥadīth*, which are reported upon the authority of several different Companions. We begin with the *ḥadīth* which has an *isnad* that is *Ṣaḥīḥ*, narrated upon the authority of Thawbān:

حَدَّثَنَا أَحْمَدُ بْنُ مَنْصُورٍ الْمُعَدَّلِيُّ الْأَصْبَهَانِيُّ حَدَّثَنَا يُوسُفُ بْنُ حَبِيبٍ حَدَّثَنَا أَبُو دَاوُدَ حَدَّثَنَا شُعْبَةُ عَنْ الْأَعْمَشِ (ومَنْصُورٍ)، عَنْ سَالِمِ بْنِ أَبِي الْجَعْدِ عَنْ ثَوْبَانَ قَالَ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَآلِهِ وَسَلَّمَ اسْتَقِيمُوا لِقُرَيْشٍ مَا اسْتَقَامُوا لَكُمْ، فَإِنْ لَمْ يَفْعَلُوا فَضَعُوا سُبُوفَكُمْ عَلَى عَوَاتِقِكُمْ فَأَبِيدُوا حَضَرَاهُمْ، فَإِنْ لَمْ تَفْعَلُوا فَكُونُوا حِينَنِي زَارِ عَيْنَ أَشْقِيَاءَ تَأْكُلُوا مِنْ كَدِّ أَيْدِيكُمْ

¹⁶ *Ṣaḥīḥ* Muslim [Kitāb al-Imārah, Vol. 3, no. 1838]

Aḥmad ibn Maṣṣūr al-Mu'addil al-Aṣḥabāni narrated to us Yunus ibn Ḥabīb narrated to us Abu Dāwūd narrated to us Shu'ba narrated to us from al-Amash (and Maṣṣūr) from Sālim ibn Abi al-Ja'd from Thawban, he said the Messenger of Allah, peace and blessings be upon him and his family said: *Remain upright with Quraysh as long as they remain upright with you. But if they do not, then place your swords on your shoulders and annihilate their elite (or flourishing part). And if you do not do that, then be miserable farmers, eating from the toil of your own hands.*¹⁷

Next, there is the narration reported upon the authority of Anas ibn Mālīk, which is recorded in *Tārikh Wasiṭ*:

حدثنا أسلم قال حدثنا محمد بن عبد الملك، قال حدثنا مَعْلَى بْنُ عَبْدِ الرَّحْمَنِ قَالَ حَدَّثَنَا شَرِيكَ بْنُ عَبْدِ اللَّهِ عَنْ عُمَرَ بْنِ عَبْدِ اللَّهِ عَنْ أَنَسِ بْنِ مَالِكٍ قَالَ أَتَانَا رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ وَنَحْنُ فِي بَيْتٍ مُجْتَمِعُونَ، فَتَهَانَا أَنْ نُوسِعَ لَهُ. فَقَالَ وَهُوَ قَائِمٌ الْأَيْمَةُ مِنْ قُرَيْشٍ (ثَلَاثًا) إِلَّا وَلِي عَلَيْكُمْ حَقٌّ وَلَهُمْ مِثْلُهُ مَا اسْتَزَجَمُوا فَرَجَمُوا، وَعَاهَدُوا فَوَفَّوْا، وَحَكَمُوا فَعَدَلُوا؛ فَمَنْ لَمْ يَفْعَلْ ذَلِكَ فَعَلَيْهِ لَعْنَةُ اللَّهِ وَالْمَلَائِكَةِ وَالنَّاسِ جَمِيعِينَ

Aslam narrated to us he said Muḥammad ibn 'Abd al-Malik narrated to us he said Mu'alla ibn 'Abd al-Raḥman narrated to us he said Shareek ibn Abdullah narrated to us from Umar ibn Abdullah from Anas ibn Mālīk, he said: The Messenger of Allah peace and blessings be upon him came to us while we were gathered in a house, and he forbade us from making room for him. Then while standing, he said: *The leaders are from Quraysh (say that three times), indeed, they have a right over you and you have a right over them - if they show mercy when asked for it, fulfil their covenants, and judge justly, then they deserve obedience. But whoever does not do that, upon him is the curse of Allah, the angels, and all people.*¹⁸

A follow-on tradition is also recorded immediately after this in the same work which carries the additional wording: *'Allah will accept neither exchange nor justice from him. So if they (the leaders) do not do so, then place your swords upon your shoulders and destroy their flourishing (elite); and do not become*

¹⁷ al-Ṭabarāni *Mu'jam al-Ṣaḡhir* [Vol. 1, no. 201]. Separately the Professor notes that an additional study has been done to refute claims arising that this channel is weak or interrupted.

¹⁸ *Tārikh Wasiṭ* [p. 63 (*Shamela* edition)]

*miserable farmers.*¹⁹ The next narration is reported upon the authority of Umm Hāni bint Abi Ṭālib, may Allah be pleased with her:

قال (المتكلم هو مهني) وَسَأَلْتُ أَحْمَدَ عَنْ عَلِيِّ بْنِ عَابِسٍ يُحَدِّثُ عَنْهُ الْجَمَانِيُّ عَنْ أَبِي فَرَاةَ عَنْ أَبِي صَالِحٍ مَوْلَى أُمِّ هَانِيٍّ عَنْ أُمِّ هَانِيٍّ قَالَتْ قَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ مِثْلَ حَدِيثِ ثَوْبَانَ اسْتَقِيمُوا لِقُرَيْشٍ فَقَالَ لَيْسَ بِصَحِيحٍ، هُوَ مُنْكَرٌ

He (the speaker is Mihna) said: I asked Aḥmad about Ali ibn 'Ābis, who narrated from him (i.e., al-Ḥimmāni), from Abu Fazārah, from Abu Ṣāliḥ, the freedman of Umm Hāni, from Umm Hāni, who said that the Messenger of Allah peace and blessings be upon him said something similar to the *ḥadith* of Thawbān: *'Remain upright with Quraysh...'* So in reply he (Aḥmad) said: "It is not *Ṣaḥīḥ*, it is *munkar*."²⁰

Indeed there are proofs to demonstrate that the assessment of Imām Aḥmad here is incorrect. Broadly, the channel is *ḥasan*, and there is nothing untoward with it. Lastly, there is the narration which is reported from al-Nu'mān ibn Bashir:

حدثنا محمد بن خالد الراسبي حدثنا مَهْلَبُ بْنُ الْعَلَاءِ حَدَّثَنَا شُعَيْبُ بْنُ بَيَّانٍ حَدَّثَنَا شُعَيْبَةُ قَالَ سَمِعْتُ سِمَاكًا يَقُولُ سَمِعْتُ النُّعْمَانَ ابْنَ بَشِيرٍ يَقُولُ سَمِعْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَقُولُ اسْتَقِيمُوا لِقُرَيْشٍ مَا اسْتَقَامُوا لَكُمْ، فَإِنْ لَمْ يَسْتَقِيمُوا لَكُمْ فَضَعُوا سِوْفَكُمْ عَلَى عَوَاتِقِكُمْ فَأَبِيدُوا خَضِرَاءَهُمْ

Muḥammad ibn Khālīd al-Rāsibi narrated to us Muhallab ibn al-'Alā narrated to us Shu'ayb ibn Bayyān narrated to us Shu'ba narrated to us he said, I heard Simmāk saying, I heard al-Nu'mān ibn Bashir saying – I heard the Messenger of Allah peace and blessings be upon him saying: *Remain upright with Quraysh as long as they remain upright with you. But if they do not, then place your swords upon your shoulders and destroy their flourishing (elite).*²¹

¹⁹ Ibid. The *isnād* recorded for this is: 'Aslam narrated to us he said Sa'eed ibn Yaḥya narrated to us he said Marwān ibn Mu'āwiyah narrated to us he said Umar ibn Abdullah narrated to us from Anas ibn Mālīk from the Prophet, peace and blessings be upon him.'

²⁰ Abu Bakr ibn Khilāl al-Sunnah [Vol. 1, no. 82, p. 127 (*Shamela* edition)]

²¹ al-Ṭabarāni *Mu'jam al-Kabir* [Vol. 21, no.140 (print edition)].

This is a message from Allah the Mighty and Sublime, which has been conveyed upon the tongue of the most eloquent of His noble creation, the one protected by His infallibility, granted *Jawāmi' al-Kalim*. However there is a pressing need for a thorough discussion upon these matters, with a detailed explanation borne from illumination by the texts of revelation, namely, the Qur'ān and the Prophetic *Sunnah*. That must be accompanied by diligence to prevent a distortion of words from their proper places, or turning the Qur'ān into fragments, parts which are divided and disparate, or even worse than that, believing in one part while disbelieving in another. Undoubtedly that is the approach adopted by government scholars, the sycophants who are blameworthy and ultimately forsaken. For a further in-depth discussion upon these matters, the esteemed reader can refer to the separate works that were written to cover these areas, entitled *Hākimiyyah wa Siyadāt al-Shar'* and *Munābathat-ul-Hukām* (Opposition to the Rulers).

The text of the Qur'ān has used the terms for those who don't judge by what Allah has revealed, the specific terms of *kāfir*, *dhālim* and *fāsiq*, just as it has used them in other contexts too. One such example is where He the Almighty said:

وَلَنْ يَجْعَلَ اللَّهُ لِلْكَافِرِينَ عَلَى الْمُؤْمِنِينَ سَبِيلًا

*He will give the disbelievers no means of overcoming the believers.*²²

Evidently this provides cogent proof to the matter of the invalidity of a *kāfir* having authority over a *Mu'min*, and the absolute eternal prohibition of his leadership over Muslims or Presidency over their political domain, based upon the certain consensus of the Muslims on this matter. Here, among the relevant verses is what Allah the Almighty said:

لَا يَتْلُو عَهْدِي الظَّالِمِينَ

*My pledge does not hold for those who do evil.*²³

That nullifies the authority of the *fāsiq*. This is the correct view held by the majority of scholars, as we have detailed in a standalone chapter upon this

²² Qur'ān, 4: 141

²³ Qur'ān, 2: 124

matter from our book: *Tā'ah Ulil'Amr, Hududuhā wa Qayuduhā*.²⁴ It is established beyond doubt that whomsoever 'does not judge by what Allah has revealed,' is certainly a *kāfir*, *fāsiq*, or *dhālim*, based on the text of the Qur'ān and the conclusive, certain consensus. Accordingly, his *wilāyah* (authority in governance) is also thereby invalidated, absolutely. This matter is regardless of whether he only deserves the labels of wrongdoing and sinfulness. Here, I hasten to argue that this is a false opinion, contradicting the consensus of the Companions, as demonstrated clearly in a bespoke chapter on this matter from our book, *Hākimiyyah wa Siyadāt al-Shar'*. Secondly, whether he is deserving of having the label of 'kufr' marshalled against him, with his *kufr* being somewhat short of or less than outright *kufr*, in the parlance of that discourse, 'kufr duna kufr,' which is not like one who disbelieves in Allah, His angels, His Books, and His Messengers, or a disbelief that does not expel from the fold of Islam. Even if we were to concede all of this hypothetically, and taking the narration attributed to Ibn 'Abbas as being authentic, which it is not. In conclusion, we say to the enemies of Allah, the sycophantic government scholars – 'Do not rejoice; your arguments are totally refuted. All the supposed proof you marshal is weak. You have neither doubt nor evidence left. Hurry to repent before death and departure; that departure, if not preceded by repentance, will inevitably be a fall with your heads into the abyss, to eternal and utter damnation:

وما أدراك ما هيه نار حامية

*What will explain to you what that is? A blazing fire.*²⁵

In any event, it is reiterated to the esteemed reader to review these matters thoroughly and refer to the additional books as mentioned herein to obtain a proper grasp of these pressing issues.

²⁴ 'Obedience to Those in Authority: Its Limits and Conditions.' An open access version of this work in Arabic (circa 2002), is available via the *Internet Archive*.

²⁵ Qur'ān, 101: 10/11

10. Invalidation of political rule

Retaining the position of political office or rulership is not textually without bounds. Any notion held that once an individual occupies a position of ruling or power that they can act with limitless authority must be dispelled. Indeed, the authentic textual evidences show not only that there are boundaries, but occupying a position of authority becomes invalidated once an individual traverses into areas that the Prophet peace and blessings be upon him has clearly specified. Here, we will detail the evidences which outline this in considerable detail. To begin, the following has been narrated on the authority of Abdullah ibn Mas'ud where he reported that the Prophet peace and blessings be upon him said:

سيلي أموركم بعدي رجال يطفنون السنة ويعملون بالبدعة ويؤخرون الصلاة عن مواقيتها
قلت يا رسول الله إن أدركتهم كيف أفعل؟ قال تسألني يا ابن أم عبد كيف تفعل؟ لا طاعة لمن
عصى الله

Among those in charge of you, after I am gone, will be men who extinguish the Sunnah and follow innovation. They will delay the prayer from its proper time. I said: 'O Messenger of Allah, if I live to see them, what should I do?' He replied: You ask me, O Ibn 'Abd, what you should do? There is no obedience to whoever disobeys Allah.

The aforementioned tradition is recorded by Ibn Mājah in his *Sunan* with this wording, as well as in other collections.¹

¹ *Sunan* Ibn Mājah [Vol. 2, no. 2865]. Also in *al-Kabir* of al-Ṭabarāni [Vol. 1, no. 3889] and *Sunan al-Kubra* of al-Bayhaqy [Vol. 3, no. 5097].

Cited in the *Musnad* of Aḥmad there is the following:

حدثنا محمد بن الصباح حدثنا إسماعيل بن زكريا عن عبد الله بن عثمان بن خثيم عن القاسم بن عبد الرحمن عن أبيه عن عبد الله قال قال رسول الله صلى الله عليه وسلم إنه سيلي أمركم من بعدي رجال يطفون السنة، ويحدثون بدعة، ويؤخرون الصلاة عن مواقيتها قال بن مسعود يا رسول الله كيف بي إذا أدركتهم؟ قال ليس يا ابن أم عبد طاعة لمن عصى الله، قالها ثلاث مرات وقال عبد الله بن أحمد وسمعت أنا من محمد بن الصباح مثله

Muḥammad ibn al-Ṣabbāḥ narrated to us Ismā'il ibn Zakariyā narrated to us from Abdullah ibn Uthmān ibn Khaytham from al-Qāsim ibn 'Abd al-Raḥman from his father from Abdullah, he said the Messenger of Allah peace and blessings be upon him said: *There will be men in charge of your affairs after me who will extinguish the Sunnah and introduce bid'ah (innovation); they will delay the prayer from its proper time.* Ibn Mas'ud said 'O Messenger of Allah, what should I do if I live to see them?' He replied: *O Ibn Umm 'Abd, there is no obedience to whoever disobeys Allah.* And he said it three-times.²

Abdullah ibn Ahmad said: 'I heard similarly from Muḥammad ibn al-Ṣabbāḥ.' From the same pathway of reporting it is cited also by al-Bayhaqy in *Sunan al-Kubra* as well as *Dalā'il al-Nabuwah*.³ This *ḥadith* is *Ṣaḥīḥ* upon which definitive proof is to be built. Others too have concurred upon its authenticity, Shaykh Aḥmad Shākir judged it to be *Ṣaḥīḥ* and al-Albāni argued in *al-Silsilah al-Ṣaḥīḥat* 'Its *isnād* is *jayyid* upon the conditions of Muslim.' A separate study has been undertaken where the channels of transmission together with scholarly statements upon this have been thoroughly analysed.

Invalidating the position of one holding political office

From the wording the aforementioned Prophetic tradition, '*There is no obedience to the one who disobeys Allah*,' we can decisively conclude that this provides cogent evidence to invalidate the authority of one who holds political office. Primarily there are two reasons for this. Firstly, the wording as it relates to *Ṭā'ah* [طاعة] 'obedience,' is indefinite in the context of negation. Thus by the *ijmā'* of the scholars of *Uṣul*, it covers *all types* of

² *Musnad* Aḥmad [Vol. 1, no. 3790]

³ al-Bayhaqy *Sunan al-Kubra* [Vol. 3, no. 5119]

obedience included within the meaning of the given word in the Arabic language, the language in which the Qur'ān was revealed. Irrespective of whether that obedience is good, great, small or otherwise, it lapses in its entirety except where a legal proof can be established by way of legitimate exception to that rule. Secondly, the phrasing of the latter part of the *ḥadīth* 'to whoever disobeys Allah,' is generic covering all who disobey Allah. This is because it begins with the conditional particle of *man* [من] – 'whoever, whomsoever,' which as per the scholars of *Uṣūl* demonstrates the most emphatic form of generality. In this respect, the same was stated by Ibn Taymiyyah in his *Majmu' al-Fatāwa*.⁴

This rule would have applied to all who have disobeyed Allah, irrespective of the level of sin. However, definitive texts do exist to provide for the exemption of those who have undertaken lesser or minor sins, provided they aren't doing so brazenly, from blame. If it were not for that, this would be overarching covering both major and minor or lesser sins. In tandem with this, there are also various texts that outline proof regarding the absolution which arises from repentance. Those who sincerely repent do return to uprightness, with their testimony being accepted and the lawfulness for them to hold political authority and leadership. Textually this is decisive in confirming that obedience lapses to every *fāsiq* - evil doer, but it also means that his authority too lapses. It is not simply a matter of the restriction of obedience to what is just, good and reasonable, as per the Prophetic statement 'Obedience is only in what is good, reasonable,' or in the statement 'There is no obedience to the creation in disobedience to the Creator.'⁵ Those *Ṣaḥīḥ aḥādīth*, as well as many others like them, are mass transmitted, *mutawātir*. Collectively they establish that obedience is forbidden in every matter that involves disobedience, in other words, any command or order to undertake something prohibited or disregard something obliged, regardless of the condition of the one issue that command.

Irrespective of whether the Imām is just or unjust, pious or sinful, or anything else in between. These *Ṣaḥīḥ aḥādīth* must be applied generally, and that includes with respect to ones parents, towards ones spouse or any others who may hold a legitimate right to obedience. Taken in the round, they all

⁴ Ibn Taymiyyah *Majmu' al-Fatāwa* [Vol. 15, p. 82, also in Vol. 24]

⁵ For the first narration, see the opening *ḥadīth* from the next chapter (footnote 1), the latter narrations are covered in a standalone chapter in this present volume.

prohibit obedience in any specific matter that is opposed to what is right, just and reasonable. However specifically for this *ḥadīth* being considered, it removes the right of obedience for one that is *fāsiq*, meaning that their authority in exercising office is invalidated. The truth of this matter must be articulated clearly and plainly, despite the opposition of the *munāfiqeen*, the hypocrites, who obsess over slavish obedience to the most monstrous of anti-Islamic tyrants. Imām Abdullah ibn Aḥmad ibn Ḥanbal recorded the following narration in his follow-up additions to his father's larger *Musnad* collection:

حدثنا عبد الله حدثنا سويد بن سعيد الهروي حدثنا يحيى بن سليم عن بن خثيم عن إسماعيل بن عبيد بن رفاعة عن أبيه عبيد عن عبادة بن الصامت قال سمعت أبا القاسم، صلى الله عليه وسلم، يقول سيلي أموركم من بعدني رجال يعرفونكم ما تتكرون، وينكرونكم ما تعرفون فلا طاعة لمن عصى الله تعالى، فلا تعتلوا بربكم

Abdullah narrated to us Suwayd ibn Sa'eed al-Harawi narrated to us Yaḥya ibn Sulaym narrated to us from Khaytham from Ismā'il ibn Ubayd ibn Rifā'ah from his father from 'Ubādah ibn al-Ṣāmit, he said I heard Abul'Qāsim, peace and blessings be upon him saying: *After me, there will come men who will manage your affairs: they will recognise you for what you denounce, and they will denounce you for what you recognise. Thus there is no obedience to one who disobeys Allah the Almighty - and do not use your Lord as an excuse.*⁶

The narration is cited in several collections of *aḥādīth* is both longer and abbreviated formats.⁷ Concerning the *isnād* from Imām Aḥmad is *jayyid* (good) by itself, *qawī* (strong) and valid evidence together with its follow-on corroborating channels as found in the *Zawā'id* Abdullah ibn Aḥmad ibn Ḥanbal, the *Mustadrak* of al-Ḥākim and others. The statement from 'Ubādah ibn al-Ṣāmit may Allah be pleased with him and the given context in which he reported the statement from the Prophet peace and blessings be upon him

⁶ *Zawā'id* Abdullah ibn Aḥmad ibn Ḥanbal [Vol. 5, no. 22838]

⁷ Here the Professor lists a series of additional references for this including: al-Ḥākim *Mustadrak* [Vol. 3, no. 5528, 5530], al-Ṭabarānī *Mu'jam al-Awsat* [Vol. 3, no. 2894], *Musnad* Aḥmad [Vol. 5, no. 22821], *Muṣṣanaf* Ibn Abi Shayba [Vol. 7, no. 37721]. It also appears from another pathway of reporting independent of those mentioned in relation to a story involving Uthmān ibn 'Affān and also by way of the channel from Ibn Abi Shayba it is cited in *al-Tārikh al-Kabir*, as well as the *Mustadrak* [Vol. 3, no. 5531].

are narrated via multiple channels. Therefore the *ḥadith* of ‘Ubādah ibn al-Ṣāmit is *ḥasan Ṣaḥīḥ* and provides valid evidence with the attesting narratives and corroborative channels of reporting. Al-Albānī has regarded it as being *Ṣaḥīḥ* in his works *Ṣaḥīḥ al-Jāmi’ al-Ṣaḥīḥ* as well as in *Silsilah al-Ṣaḥīḥat*. Here the Prophetic wording of ‘*there is no obedience to one who disobeys Allah the Almighty*,’ is unequivocal in its established meaning, outlawing obedience to the one who is disobeying Allah. By way of implication it invalidates and causes the authority of the one occupying a position of power to lapse, coupled with the prohibition of obedience to him.

The wording of the *ḥadith* from ‘Ubādah ibn al-Ṣāmit where he said the Prophet peace and blessings be upon him said: ‘*There will be rulers after me who will order you to do what you recognise and they will do what you denounce. Those are not your leaders*,’ was narrated by al-Ṭabarānī, its *isnād* is *Ṣaḥīḥ* upon the conditions as per Imām Ibn Ḥibbān.⁸ Regarding this al-Haythami said ‘It is narrated by al-Ṭabarānī, within its narrators is al-A’sha ibn ‘Abd al-Raḥman, I don’t know of him; the remainder of its men (in the channel) are trustworthy.’ Here I would argue that al-A’sha ibn ‘Abd al-Raḥman narrates from al-Azhar ibn Abdullah from ‘Ubādah ibn al-Ṣāmit and Uthmān ibn ‘Affān. Shareek ibn Abu Namir narrates from him. Ibn Abi Ḥātim cites an entry for him in *al-Jarḥ wa’ Ta’deel* and didn’t record either any criticism nor validation for him. Mention too is made by Ibn Ḥibbān in *al-Thiqāt* of him as well as by Abul Fidā’ Zayn al-Deen Qāsim ibn Quṭlubaghā in *al-Thiqāt Miman Lam Yaqa’ fil Kutub al-Sittah*.⁹ Consequently, this *ḥadith* decisively shows the authority of the *fāsiq* is invalid and lapses, perhaps even more so than the previous wordings mentioned thus far. Next, the following narration has been cited in the *Musnad* of Aḥmad:

حَدَّثَنَا عَبْدُ الصَّمَدِ حَدَّثَنَا حَرْبُ بْنُ شَدَّادٍ (بَصْرِيٌّ) حَدَّثَنَا يَحْيَى بْنُ أَبِي كَثِيرٍ قَالَ قَالَ عَمْرُو بْنُ رُئَيْبٍ الْعَنْبَرِيُّ إِنَّ أُنْسَ بْنَ مَالِكٍ حَدَّثَهُ أَنَّ مُعَاذًا قَالَ يَا رَسُولَ اللَّهِ أَرَأَيْتَ إِنْ كَانَ عَلَيْنَا أَمْرَاءُ لَا يَسْتَتُونَ بِسُنَّتِكَ وَلَا يَأْخُذُونَ بِأَمْرِكَ، فَمَا تَأْمُرُ فِي أَمْرِهِمْ؟ فَقَالَ رَسُولُ اللَّهِ، صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ لَا طَاعَةَ لِمَنْ لَمْ يُطِعِ اللَّهَ

⁸ Ibn Hajar also mentions this narration in *Fath al-Bāri (Kitāb al-Fitn)* [Vol. 16, p. 9 (print edition)].

⁹ The references being: Ibn Abi Ḥātim *al-Jarḥ wa’ Ta’deel* [Vol. 2, p. 339], Ibn Ḥibbān *al-Thiqāt* [Vol. 6, p. 80] and Ibn Quṭlubaghā *al-Thiqāt Miman Lam Yaqa’ fil Kutub al-Sittah* [Vol. 2, p. 437].

‘Abd al-Ṣammad narrated to us Ḥarb ibn Saddād (Basran) narrated to us Yaḥya, namely Ibn Abi Kathir narrated to us he said ‘Amr ibn Zunayb al-‘Anbari narrated to us that Anas ibn Mālik narrated it to him that Mu’ādh said, ‘O Messenger of Allah, if we have rulers upon us who don’t follow your *Sunnah* and neither take your command, what do you order (us with) concerning them? So the Messenger of Allah peace and blessings be upon him said: *There is no obedience to one who isn’t obedient to Allah*.¹⁰

In *al-Tārikh al-Kābir* of al-Bukhārī, he records similarly with a slight variance of wording, namely ‘*There is no obedience to whoever is disobedient to Allah*.’¹¹ Mention of this narrator ‘Amr ibn Zunayb, by al-Bukhārī in *al-Kābir* and not mentioning him in *al-Ḍu’afā al-Ṣaḥīḥ* provides confirmation of this man, a matter not hidden from those skilled in this art. Ibn Ḥibbān mentions him in *al-Thiqāt* and he is among the trustworthy narrators in *al-Thiqāt Miman Lam Yaqa’ fil Kutub al-Sittah* – ‘Amr ibn Zunayb narrates from Anas ibn Mālik; al-Ḥajjāj ibn al-Ḥajjāj al-Aslami narrates from him and he is the one whom Yaḥya Ibn Abi Kathir narrates from saying ‘Amr ibn Bilāl al-Ghanawī.’¹² In the print edition it appears as ‘Ibn Bilāl al-Ghanawī,’ but the correct notation is Ibn Fulān al-‘Anbari. Cited in *al-Jarḥ wa’ Ta’deel* is the following: ‘Amr ibn Zunayb narrates from Anas that the Prophet, peace and blessings be upon him said: *There is no obedience to one who is disobedient to Allah the Mighty and Sublime*. There was disagreement regarding him, I

¹⁰ *Musnad Aḥmad* [Vol. 20, no. 13225]. With a slight variance at the beginning of the *isnād* ‘Ishāq narrated to us,’ Abu Ya’la records the same including with the reported *matn* [Vol. 7, no. 4046].

¹¹ Here the Professor presents the four-channels of reporting as per al-Bukhārī’s *al-Tārikh al-Kābir* [Vol. 6, pp. 150/151 (print edition)] again narrated upon the authority of Anas may Allah be pleased with him from the channel of ‘Amr ibn Zunayb al-‘Anbari, though with the misprint of Zaynab for Zunayb. The *matn* remains the same but the four-channels are: a) Aḥmad ibn ‘Amr said my father narrated to me, he heard Ibrahim from al-Ḥajjāj ibn al-Ḥajjāj from ‘Amr ibn Zunayb hear heard Anas, may Allah be pleased with him. b) Ibn Maṣṣūr said ‘Abd al-Ṣammad narrated to us Ḥarb narrated to us Yaḥya ibn Abi Kathir narrated to us ‘Amr ibn Zunayb al-‘Anbari narrated to me he heard Anas ibn Malik may Allah be pleased with him from the Prophet, peace and blessings be upon him. c) Ibn Abi Hishām said Ibn ‘Ulaya narrated to us from Ali bin al-Mubārak, Yaḥya ibn Abi Kathir narrated to us he heard ‘Amr ibn Fulān al-‘Anbari narrate it to him, he heard Anas may Allah be pleased with him from the Prophet, peace and blessings be upon him. And finally d) Ḥajjāj said ‘Abd al-Ṣammad narrated to us Ḥarb narrated to us Yaḥya narrated to me ‘Amr ibn Zunayb narrated to us.

¹² See: Ibn Ḥibbān *al-Thiqāt* [Vol. 5, p. 174] and Ibn Quṭlubaghā *al-Thiqāt Miman Lam Yaqa’ fil Kutub al-Sittah* [Vol. 7, p. 344].

heard my father saying that.’¹³ The matter of disagreement refers actually to his name, this is because some said ‘Zabeeb,’ like Zabeeb as in dried grapes or raisins and some said it was ‘Zaynab,’ which patently is a woman’s name. Moreover, it was also said regarding his lineage ‘al-Ghanawi,’ and ‘al-Ghubari.’ Taken in the round, this *isnād* is *ḥasan bi-dhātihi*, *Ṣaḥīḥ* upon the conditions of Ibn Ḥibbān and the reported text, the *matn* is clean and upstanding. Without doubt it is *Ṣaḥīḥ* upon which substantive proof can be established, particularly when taken with its attestations and corroborative channels; al-Albani has judged it to be *Ṣaḥīḥ* in *Ṣaḥīḥ al-Jāmi’ al-Ṣaḥīḥ*.

This narration provides further unequivocal confirmation relating to obedience being void to ‘the one who does not obey Allah.’ Here again his authority in holding political office or jurisdiction is invalidated with the prohibition of obeying him, as also found in the previous *aḥādīth* covered thus far from Abdullah ibn Mas’ud and ‘Ubādah ibn al-Ṣāmit, may Allah be pleased with them. Next, we have the narration from Abu ‘Uṭba al-Khawlānī, may Allah be pleased with him, he that the Messenger of Allah, peace and blessings be upon him said:

لا تخرجوا أمتي، (قالها ثلاث مرات) اللهم من أمر أمتي بما لم تأمرهم به، فإنهم منه في حل

‘Do not put my Ummah into hardship (he said it three times). O Allah, whoever commands my Ummah with that which You have not commanded them, then they are absolved from him.’

The tradition is recorded in *Musnad al-Shāmiyān* by al-Ṭabarānī as well as that of al-Haythamī in his *Musnad*.¹⁴ Others too have cited this included Ibn Asakir and al-Khaṭīb in their respective works. The *ḥadīth* is *ḥasan*, *Ṣaḥīḥ* upon the conditions of Ibn Ḥibbān, indeed a *qawī* *Ṣaḥīḥ* when taken together with the attesting narratives as previously set out. Regarding the latter portion of the Prophetic statement, ‘then they are absolved from him,’ here this provides a clear indication for the lapse of authority as it relates to the political authority where they are *fāsiq*. In terms of its import, it relates that those subject to this rule are released from their authority, or from the terms as per the pledge of allegiance, all of which means that their rule is in effect nullified.

¹³ Ibn Abi Ḥātim *al-Jarḥ wa’ Ta’deel* [Vol. 3, p. 232].

¹⁴ References given are *Musnad al-Shāmiyān* [Vol. 2, no. 841], *al-Zawā’id* [Vol. 2, no. 610].

The Prophetic statement is also honed in on the personage of the individual ruler as shown from the wording ‘from him.’ That differs from other narrations outlining where disobedience is ordered, there is neither listening nor obedience to that required. Two further narrations are of note here, the first mentioned by Imām al-‘Uqaylī in his *Ḍu’afā al-Kabir*, the second by al-Ṭabarānī:

حدثنا جعفر بن أحمد بن عاصم الأنطاكي قال حدثنا هشام بن عمار قال: حدثنا إسماعيل بن عياش قال حدثنا عبد العزيز بن عبيد الله بن حمزة بن صهيب عن شهر بن حوشب، عن عبد الله بن عمرو بن العاص عن رسول الله صلى الله عليه وعلى آله وسلم أنه قال إنه سيكون بعدي أمراء يعرفونكم ما تنكرون، وينكرون عليكم ما تعرفون فلا طاعة لهم عليكم

Ja’far ibn Aḥmad ibn Aāṣim al-Antaki narrated to us he said Hishām ibn ‘Ammār narrated to us he said Ismā’il ibn ‘Ayyāsh narrated to us he said ‘Abd al-Aziz ibn Ubaydallah ibn Ḥamza ibn Ṣuhayb narrated to us from Shahr ibn Ḥawshab from Abdullah ibn ‘Amr ibn al-Aāṣ from the Messenger of Allah, peace and blessings be upon him he said: *There will be rulers after me who will approve for you what you disapprove of, and forbid you from what you approve of. There is no obedience due to them upon you.*¹⁵

حدثنا أحمد بن المعلى الدمشقي حدثنا هشام بن عمار حدثنا إسماعيل بن عياش عن عبد العزيز بن عبيد الله عن شهر بن حوشب عن عبد الله بن عمرو عن رسول الله صلى الله عليه وسلم قال إنه كائن بعدي أمراء يعرفون فيكم ما تنكرون وينكرون ما تعرفون فلا طاعة لهم

Aḥmad ibn al-Mu’alla al-Dimishqī narrated to us Hishām ibn ‘Ammār narrated to us Ismā’il ibn ‘Ayyāsh narrated to us from ‘Abd al-Aziz ibn Ubaydallah from Shahr ibn Ḥawshab from Abdullah ibn ‘Amr from the Messenger of Allah, peace and blessings be upon him, he said: *After me there will be rulers who will approve of things you disapprove of, and disapprove of things you approve of. There is no obedience to them.*¹⁶

However, regarding the narrator ‘Abd al-Aziz ibn Ubaydallah ibn Ḥamza ibn Ṣuhayb it has been said of him in *al-Taqrīb*: ‘*Daef*, only Ismā’il ibn ‘Ayyāsh narrated from him.’ There does seem to be unanimity upon him being *daef* as

¹⁵ al-‘Uqaylī *Du’afā al-Kabir* [Vol. 3, no. 978]

¹⁶ *Musnad al-Shāmiyān* [Vol. 2, no. 1344]

a narrator due to his *hiḏf*. And yet the reported *matn* here is plainly upstanding and attested to by the previous *Ṣaḥīḥ aḥādith* which have been set out, notwithstanding the wider corpus of texts as per the Qur’ān and the Prophetic *Sunnah*. Perhaps on this occasion ‘Abd al-Aziz ibn Ubaydallah had memorised and related this correctly on this occasion, thus the *ḥadith* would be *ḥasan li-ghayrihi*. These texts too, also show the invalidation of the *fāsiq* in ruling. Lastly, we have the following as has been mentioned in the *Tafsir* from *Sunan* Sa’eed ibn Manṣur, reported with a *Ṣaḥīḥ isnād*:

حَدَّثَنَا مَرْوَانُ بْنُ مُعَاوِيَةَ قَالَ حَدَّثَنَا إِسْمَاعِيلُ بْنُ أَبِي خَالِدٍ قَالَ حَدَّثَنَا مُصْنَعِبُ بْنُ سَعْدٍ قَالَ قَالَ عَلِيٌّ رَضِيَ اللَّهُ عَنْهُ كَلِمَاتٍ أَصَابَ فِيهِنَّ حَقٌّ عَلَى الْإِمَامِ أَنْ يَحْكُمَ بِمَا أَنْزَلَ اللَّهُ عَزَّ وَجَلَّ، وَأَنْ يُؤَدِّيَ الْأَمَانَةَ، فَإِذَا فَعَلَ ذَلِكَ فَحَقٌّ عَلَى النَّاسِ أَنْ يَسْمَعُوا لَهُ، وَأَنْ يُطِيعُوا، وَأَنْ يُجِيبُوا إِذَا دُعُوا

Marwān ibn Mu’āwiya narrated to us he said Ismā’il ibn Abi Khālīd narrated to us he said Muṣ’ab ibn Sa’d narrated to us, he said Ali, may Allah be pleased with him said, there are words in which the truth is found, ‘It is the duty of the Imām to rule by what Allah the Mighty and Sublime has revealed, and to discharge the trust. When he does that, then it is the duty of the people to listen to him, to obey, and to respond when they are called.’¹⁷

The aforementioned narrative is also found in the *Musnad* of Zayd ibn Ali by way of an additional *isnād*, but carrying an addition in wording at the end of the statement which says: ‘Any Imām who does not rule according to what Allah has revealed there is no obedience to him.’¹⁸ In conclusion I would therefore argue that there are critical implications which arise here. People are obligated to obey the legitimate Imām who occupies political power, but that is not without limitation. He has to rule by what Allah has revealed and fulfil the trust and covenant which binds the one exercising political authority. Failure to discharge this therefore shows obedience to this person is no longer required, hence his authority lapses. Indeed this was the understanding of the

¹⁷ *Sunan* Sa’eed ibn Manṣur [Vol. 4, no. 651]. Almost a dozen additional supporting references for this narration are provided in the Arabic edition, the most notable being: *Muṣṣanaḥ* Ibn Abi Shayba [Vol. 6, no. 32532], *al-Sunnah* by Abu Bakr ibn Khilāl [Vol. 12, no. 33199], *Tafsir* Ibn Abi Ḥātim [Vol. 4, no. 5557] and *Tafsir* al-Ṭabari [Vol. 8, no. 9841]

¹⁸ *Musnad* Zayd ibn Ali [Vol. 2, p. 137]. The *isnād* being, ‘Zayd ibn Ali narrated to me from his father from his grandfather from Ali.’

Imām of guidance, the rightly guided *Khalīf*, ‘*Ameer al-Mu’mineen*, Ali ibn Abi Ṭālib, may Allah be pleased with him.

11. No obedience to the created in disobedience to the Creator

Widely acknowledged as being a fundamental maxim within Islam – ‘there is no obedience to the creation in disobedience to the Creator.’ Other *aḥādith* which may carry variance of wording, but fundamentally are of the same import in terms of meaning, be they expressed as ‘Indeed, obedience is only in what is right and reasonable,’ and ‘No obedience (exists) to the creation in disobedience to the Creator.’ Channels of reporting are numerous and have been transmitted by way of *tawātur*, continuously recurrent channels of reporting.

The basis of evidence

To begin, the following has been cited in the collection of *Sunan* by Imām Abu Dāwūd al-Sijistānti, recorded upon the authority of Ali ibn Abi Tālib, may Allah be pleased with him and send him peace. The tradition is resolutely *Ṣaḥīḥ*:

حدثنا عمرو بن مرزوق أخبرنا شعبة عن زبيد عن سعد بن عبيدة عن أبي عبد الرحمن السلمي عن علي رضي الله عنه أن رسول الله صلى الله عليه وعلى آله وسلم بعث جيشاً وأمر عليهم رجلاً، وأمرهم أن يسمعوا ويطيعوا، فأجج ناراً وأمرهم أن يقتحموا فيها، فأبى قوم أن يدخلوها، وقالوا إنما فررنا من النار. وأراد قوم أن يدخلوها، فبلغ ذلك النبي صلى الله عليه وعلى آله وسلم فقال لو دخلوها، أو دخلوا فيها، لم يزالوا فيها وقال لا طاعة في معصية الله، إنما الطاعة في المعروف

‘Amr ibn Marzuq narrated to us Shu’ba reported to us from Zubayd from Sa’d ibn ‘Ubayda from Abu ‘Abd al-Raḥman al-Sulami from Ali, may Allah be pleased with him, that the Messenger of Allah, peace and

blessings be upon him sent an army and appointed a man as a commander for them and he commanded them to listen to him and obey. He kindled fire and ordered them to jump into it. A group refused to enter into it and said ‘We escaped from the fire; a group intended to enter into it.’ When the Prophet peace and blessings be upon him was informed about it, he said - *Had they entered into it, they would have remained into it. There is no obedience in matters involving disobedience to Allah. Obedience is in matters which are good and reasonable.*¹

Next, the following has been cited in the *Ṣaḥīḥ* of al-Bukhārī:

حدثنا مسدد حدثنا يحيى عن عبيد الله قال: حدثني نافع عن بن عمر رضي الله عنهما عن النبي صلى الله عليه وسلم وحدثني محمد بن صباح حدثنا إسماعيل بن زكريا عن عبيد الله عن نافع عن بن عمر رضي الله عنهما عن النبي صلى الله عليه وسلم قال السمع والطاعة حق ما لم يؤمر بالمعصية فإذا أمر بمعصية فلا سمع ولا طاعة

Musaddad narrated to us Yahya narrated to us from ‘Ubaydallah he said Nāfi’ narrated to me from Ibn Umar, may Allah be pleased with them both, from the Prophet peace and blessings be upon him; and Muḥammad ibn Ṣabbāh narrated to me Ismā’il ibn Zakariyā narrated to us from ‘Ubaydallah from Nāfi’ from Ibn Umar, may Allah be pleased with him from the Prophet peace and blessings be upon him, he said: *To listen and obey is by right, unless this involves an order by way of disobedience. If it is an order to disobedience, there is neither obedience nor listing to it.*²

Most scholars have narrated this tradition with the wording that – ‘*A Muslim must listen and obey in what he likes and dislikes, unless he is commanded to commit a sin; if he is commanded to commit a sin, then there is neither*

¹ *Sunan* Abu Dāwūd [Vol. 3, no. 2625]. More than a dozen additional references for this tradition are mentioned in the Arabic edition across the entire corpus of *aḥādith*. Notable among them are the references to the *Ṣaḥīḥ* collections of al-Bukhārī [Vol. 4, no. 4085, Vol. 6, no. 6726 and 6830] and Muslim [Vol. 3, no. 1840], as well as the *Sunan* collections of al-Nasā’i [Vol. 7, no. 4205, *Sunan al-Kubra* Vol. 4, no. 7828]. In the *Musnad* of al-Ṭayālisi [Vol. 1, no. 109], there is a slight variance of wording reported, ‘*There is no obedience to man in disobedience to Allah.*’

² *Ṣaḥīḥ* al-Bukhārī [Vol. 3, no. 2796]. Again, the Arabic edition has more than a dozen additional references for this *ḥadith* across the *Ṣaḥīḥ*, *Sunan*, *Musnad* and *Muṣṣanaḥ* collections. Notable among them are the following: *Ṣaḥīḥ* Muslim [Vol. 3, no. 1839], *Sunan* al-Tirmidhi [Vol. 4, no. 1707], and *Sunan al-Kubra* by al-Bayhaqy [Vol. 3, no. 5117].

listening nor obedience.’ A third tradition is quoted next, narrated upon the authority of Abu Sa’eed al-Khudri, as it appears in the *Sunan* of Ibn Mājah:

حدثنا أبو بكر بن أبي شيبة حدثنا يزيد بن هارون حدثنا محمد بن عمرو عن عمر بن الحكم بن ثوبان عن أبي سعيد الخدري أن رسول الله صلى الله عليه وعلى آله وسلم بعث علقمة بن مجزز على بعث، وأنا فيهم. فلما انتهى إلى رأس غزاته، أو كان ببعض الطريق، استأذنه طائفة من الجيش، فأذن لهم، وأمر عليهم، عبد الله بن حذافة بن قيس السهمي، فكننت فيمن غزا معه. فلما كان ببعض الطريق أوقد القوم ناراً ليصطلوا أو ليصنعوا عليها صنيعاً: فقال عبد الله، وكانت فيه دعابة أليس لي عليكم السمع والطاعة؟ قالوا: بلى. قال فما أنا بأمركم بشيء إلا صنعتموه؟ قالوا: نعم. قال: فأني أعزم عليكم إلا توائمت في هذه النار! فقام ناس فتحجزوا، فلما ظن أنهم واثبون، قال: أمسكوا على أنفسكم! فإنما كنت أمزح معكم! فلما قدمنا ذكرنا ذلك للنبي صلى الله عليه وعلى آله وسلم فقال رسول الله صلى الله عليه وعلى آله وسلم من أمركم منهم بمعصية الله فلا تطيعوه

Abu Bakr ibn Abi Shayba narrated to us Yazeed ibn Hārūn narrated to us Muḥammad ibn ‘Amr ibn al-Ḥakam ibn Thawbān narrated to us from Abu Sa’eed al-Khudri that the Messenger of Allah peace and blessings be upon him sent ‘Alqamah ibn Mujazziz at the head of a detachment, and I was among them. When he reached the battle site, or when he was partly there, a group of the army asked permission to take a different route, and he gave them permission, and appointed Abdullah ibn Ḥudhafah ibn Qays al-Sahmi as their leader, and I was one of those who fought alongside with him. When we were partly there, the people lit a fire to warm themselves and cook some food. Abdullah, who was a man who liked to joke, said: ‘Do I not have the right that you should listen to me and obey?’ They replied ‘Yes.’ He said: ‘And if I command you to do something, will you not do it?’ They said: ‘Of course.’ He said: ‘Then I command you to jump into this fire.’ Some people got up and got ready to jump, and when he saw that they were about to jump, he said: ‘Restrain yourselves, for I was joking with you.’ When we came to al-Medina they mentioned that to the Prophet peace and blessings be upon him and he said: Whoever among you commands you to do something that involves disobedience to Allah, do not obey him.³

³ *Sunan* Ibn Mājah [Vol. 2, no. 2863]

This tradition is also cited in the *Ṣaḥīḥ* of Ibn Ḥibbān and the *Muṣṣanaḥ* of Abu Bakr ibn Abi Shayba amongst others.⁴ Here, I would argue that this pertains to the command itself, not to the personage of the ruler. His statement ‘do not obey him,’ refers specifically to that particular command in all cases, regardless of whether the ruler remains in power or is removed. This is also the meaning of the following traditions that will be quoted. The following has been cited by Tammām in *al-Fawā’id* and it is judged to be *Ṣaḥīḥ*.

عن أبي هريرة قال قال رسول الله صلى الله عليه وسلم طاعة الإمام حق على المرء المسلم، ما لم يأمر بمعصية الله عز وجل، فإذا أمر بمعصية الله، فلا طاعة له

From Abu Hurayrah he said the Messenger of Allah, peace and blessings be upon him said: *Obedience to the Imām is a duty upon the Muslim, so long as he does not command disobedience to Allah, the Mighty and Sublime. But if he commands disobedience to Allah, then there is no obedience to him.*⁵

Further traditions

To begin, the following has been cited in the *Mustadrak* of al-Ḥākim:

حدثنا الشيخ أبو بكر أحمد بن إسحاق أخبرنا علي بن عبد العزيز حدثنا حجاج بن منهال أخبرنا حماد بن سلمة حدثنا حميد ويونس وحبيب بن الشهيد عن الحسن أن زيادا استعمل الحكم بن عمرو الغفاري على جيش فلقبه عمران بن حصين في دار الإمارة فيما بين الناس فقال له أتدري في ما جئتك؟ أما تذكر أن رسول الله، صلى الله عليه وسلم لما بلغه الذي قال له أميره قم فقع في النار فقام الرجل ليقع فيها فأدركه فأمسكه فقال النبي صلى الله عليه وسلم لو وقع فيها لدخل النار لا طاعة في معصية الله

The Shaykh Abu Bakr Aḥmad ibn Isḥāq narrated to us Ali ibn ‘Abd al-Aziz reported to us Ḥajjāj ibn Minhāl narrated to us Ḥammād ibn Salamah reported to us Ḥumayd, Yunus and Ḥabīb ibn al-Shaheed narrated to us from al-Ḥasan that Ziyād appointed al-Ḥakam ibn ‘Amr al-Ghifārī over an army ‘Imrān ibn Ḥuṣayn met him in the governor’s residence among the people and said to him, ‘Do you know why I came to you? Do you not remember when the Messenger of Allah, peace

⁴ *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 10, no. 4558], *Muṣṣanaḥ* Ibn Abi Shayba [Vol. 6, no. 33708; Vol. 7, no. 36632].

⁵ See: *al-Rawḍ al-Bisām bi-Tarteef wa-Takreej Fawā’id Tammām* [Vol. 3, p. 122, no. 914 (Shamela edition)]

and blessings be upon him, was informed of what a commander had told his soldier – “Stand up and throw yourself into the fire,” the man got up to do it, but the Prophet caught him and held him back? Then the Prophet peace and blessings be upon him said: *If he had fallen into it, he would have entered the Fire. There is no obedience in disobeying Allah.*⁶

By way of a follow on comment after citing this Imām al-Ḥākim said: ‘This *ḥadīth* has a *Ṣaḥīḥ isnād*, but they didn’t cite it.’ Indeed it is, as the Imām has said, especially when taken together with its follow-on reporting routes from various and alternate pathways of reporting.⁷ The next tradition is cited in the *Musnad* of Imām Aḥmad:

حدثنا سليمان بن حرب حدثنا حماد بن زيد عن أيوب عن محمد قال: استعمل الحكم بن عمرو الغفاري على خراسان قال: فتمناه عمران بن حصين حتى قيل له يا أبا نجيذ ألا ندعوه لك؟ قال: لا، فقام عمران بن حصين فلقه بين الناس، قال تذكروا يوم قال رسول الله صلى الله عليه وسلم لا طاعة لمخلوق في معصية الله؟ قال: نعم! قال عمران الله أكبر!

Sulaymān ibn Ḥarb narrated to us Ḥammād ibn Zayd narrated to us from Ayub from Muḥammad, he said: al-Ḥakam ibn ‘Amr al-Ghifārī was appointed over Khurasān. It was said that ‘Imrān ibn Ḥuṣayn had wanted that position, to the extent that it was asked, shall we call him for you? He replied, ‘No.’ Thereafter, ‘Imrān ibn Ḥuṣayn stood forth, meeting him among the people, he said: ‘Remember the day when the Messenger of Allah peace and blessings be upon him said: *‘There is no obedience to the creation in disobedience to Allah.*’ He replied ‘Yes.’ ‘Imrān (then) said: ‘Allah is the Greatest!’⁸

Next, the following is recorded in the *Musnad* of Abu Dāwūd al-Ṭayālīsī:

حدثنا شعبة عن قتادة سمع أبا مراية عن عمران بن حصين أن النبي صلى الله عليه وسلم، قال: لا طاعة في معصية الله عز وجل

⁶ al-Ḥākim *Mustadrak* [Vol. 3, no. 5870]

⁷ Here, three additional references are provided to *Mu’jam al-Kabir* by al- Ṭabarānī [Vol. 18, no. 324, 385; Vol. 3, no. 3159]

⁸ *Musnad* Aḥmad [Vol. 5, no. 20672]. A further ten additional references are cited in the Arabic edition for this tradition. Notable among them are *Musnad* al-Ṭayālīsī [Vol. 1, no. 856] and al-Ṭabarānī *Mu’jam al-Kabir* [Vol. 3, no. 3160]

Shub’a narrated to us from Qatādah that he heard Abu Murayah from ‘Imrān ibn Ḥuṣayn that the Prophet peace and blessings be upon him said: *There is no obedience in disobeying Allah the Mighty and Sublime.*⁹

The transmission from ‘Imrān ibn Ḥuṣayn, may Allah be pleased with him, is judged to be *tawātur*. Allah bestowed this benefit of wisdom by way of reminder upon al-Ḥakam ibn ‘Amr al-Ghifārī, as shown in the next narration which is included in the *Musnad* of al-Haythamī:

حدثنا سعيد بن عامر عن هشام عن محمد بن سيرين أن زيادا استعمل الحكم بن عمرو الغفاري على خراسان ففتح الله عليه فجاء كتاب زياد: أما بعد فإن أمير المؤمنين كتب أن يصطفى له الصفراء والبيضاء، قال فكتب إليه جاءني كتابك يذكر أن أمير المؤمنين كتب أن يصطفى له الصفراء والبيضاء، واني وجدت كتاب الله قبل كتاب أمير المؤمنين وإنه والله لو كانت السماوات والأرض على عبد ثم أتقى الله لجعل له منها مخرجا والسلام عليك ثم قال للناس اغدوا على فيكم فقسمه بينهم

Sa’eed ibn ‘Aāmir narrated to us from Hishām from Muhammad ibn Sireen that Ziyād appointed al-Ḥakam ibn ‘Amr al-Ghifārī over Khurasān. Thereafter, Allah granted him victory, and the correspondence of Ziyād arrived which said: ‘As for what follows, *Ameer al-Mu’mineen* has written that the gold and silver be set aside for him.’ He replied: ‘I have received your correspondence in which you mention that the *Ameer al-Mu’mineen* has written that the gold and silver be set aside for him. But I found the Book of Allah before the letter of *Ameer al-Mu’mineen*. And by Allah, if the heavens and the earth were to weigh upon a servant, then he feared Allah, He would make for him a way out. Peace be upon you.’ Then he said to the people: ‘Come early to me,’ and he distributed it among them.¹⁰

Recorded in the *Sunan* of al-Nasā’ī:

أخبرني أبو داود قال حدثنا عفان قال حدثنا يزيد بن زريع قال حدثنا يونس بن عبيد عن حميد بن هلال عن عبد الله بن مطرف بن الشخير عن أبي برزة الأسلمي أنه قال كنا عند أبي بكر

⁹ *Musnad* al-Ṭayālīsī [Vol. 1, no. 850]. Additional citation references which are provided are to the *Musnad* of Aḥmad [Vol. 4, no. 19837, 19845, 19918] and al-Ṭabarānī *Mu’jam al-Kabir* [Vol. 18, no. 570]

¹⁰ *Musnad* Zawā’id al-Haythamī [Vol. 2, no. 673]

الصدیق فغضب على رجل من المسلمين فاشتد غضبه عليه جداً فلما رأيت ذلك قلت: يا خليفة رسول الله أضرب عنقه فلما ذكرت القتل أضرب عن ذلك الحديث أجمع إلى غير ذلك من النحو؛ فلما تفرقنا أرسل إلي فقال: يا أبا برزة ما قلت؟ ونسيت الذي قلت، قلت: ذكرني! قال: أما تذكر ما قلت؟ قلت: لا والله! قال أريت حين رأيتني غضبت على رجل فقلت أضرب عنقه يا خليفة رسول الله أما تذكر ذلك، أو كنت فاعلا ذلك؟ قلت نعم والله، والآن إن أمرتني فعلت! قال والله ما هي لأحد بعد محمد، صلى الله عليه وسلم

Abu Dāwud reported to me, he said ‘Affān narrated to us he said Yazeed ibn ‘Zureeh’ narrated to us he said Yunus ibn ‘Ubayd narrated to us from Ḥumayd ibn Hilāl from Abdullah ibn Muṭṭarīf ibn al-Shikhkhir from Abu Barzah al-Aslami, that he said: We were with Abu Bakr al-Ṣadeeq and he got angry with a man from among the Muslims. When I saw that, I said: ‘O *Khalifah* of the Messenger of Allah, shall I strike his neck?’ When I mentioned that he stopped being angry with him and changed the subject. When we parted, he sent for me and said: ‘O Abu Barzah, what did you say?’ I said: ‘I have forgotten what I said, remind me.’ He said: ‘Do you not remember what you said?’ I said: ‘No, by Allah.’ He said: ‘Don’t you remember, when you saw me angry with a man, and said, ‘I will strike his neck O *Khalifah* of the Messenger of Allah? Don’t you remember that? Would you really have done that?’ I said: ‘Yes, by Allah, and if you tell me to do it now, I will do it.’ He said: ‘By Allah, that is not for anyone after Muḥammad, peace and blessings be upon him.’¹¹

After citing this, al-Imām Abu ‘Abd al-Raḥman al-Nasā’i said: ‘This *ḥadith* is the most excellent of *aḥādith* to be found, and Allah the Almighty knows best.’

أخبرنا معاوية بن صالح الأشعري قال حدثنا عبد الله بن جعفر قال حدثنا عبيد الله عن زيد عن عمرو بن مرة عن أبي نضرة عن أبي برزة قال غضب أبو بكر على رجل غضباً شديداً حتى تغير لونه. قلت يا خليفة رسول الله! والله، لئن أمرتني لأضرب عنقه! فكأنما صب عليه ماء بارد فذهب غضبه عن الرجل؛ قال ثكلتك أمك أبا برزة! وإنها لم تكن لأحد بعد رسول الله صلى الله عليه وسلم!

Mu’āwiya ibn Ṣāliḥ al-‘Ashari reported to us he said ‘Abdullah ibn Ja’far narrated to us he said ‘Ubaydallah narrated to us from Zayd from

¹¹ *Sunan al-Nasā’i* [Vol. 7, no. 4077], *Sunan al-Kubra* [Vol. 2, no. 3540]. Further citations of the tradition are given as per the *Sunan* of Abu Dāwud [Vol. 4, no. 4363] and the *Musnad* collections of Aḥmad [Vol. 1, no. 61] and Abu Ya’la [Vol. 1, no. 79].

‘Amr ibn Murra from Abu Naḍra from Abu Barzah, he said: Abu Bakr got very angry with a man, so much so that his colour changed. I said: ‘O *Khalifah* of the Messenger of Allah, if you tell me to, I will strike his neck.’ It was as if cold water had been poured on him and he became calm. He said: ‘May your mother be bereft of you, Abu Barzah! That is not for anyone after the Messenger of Allah, peace and blessings be upon him.’¹²

But al-Imām Abu ‘Abd al-Raḥman al-Nasā’i said: ‘This is a mistake. The correct one is Abu Naṣr, his name is Ḥumayd ibn Hilāl; Shu’ba disagreed with him.’ Imām Abu Dāwud al-Ṭayālisi records the following in his *Musnad* in an abbreviated form from an alternate reporting path which has a *Ṣaḥīḥ isnād*:

حدثنا شعبة عن توبة العنبري قال سمعت أبا السوار العدوي يحدث عن أبي برزة قال كنت عند أبي بكر رضي الله عنه وهو يوعد رجلاً فأغلظ له فقلت ألا أضرب عنقه فقال أبو بكر إنها ليست لأحد بعد النبي صلى الله عليه وسلم

Shu’ba narrated to us from Tawba al-‘Anbari he said I heard Abu al-Sawār al-‘Adawi narrate from Abu Barzah, he said: I was with Abu Bakr, may Allah be pleased with him, he was threatening a man, and being harsh with him. I said: ‘Shall I not strike his neck?’ Abu Bakr said: ‘This is not for anyone after the Prophet peace and blessings be upon him.’¹³

From a third reporting pathway, al-Ṭabarāni records the following in *Mu’jam al-Awsaṭ*:

حدثنا محمد بن احمد بن أبي خيثمة قال حدثنا محمد بن يوسف بن ابي معمر قال حدثنا عبد الله بن محمد بن المغيرة قال: حدثنا مالك بن مغول عن عمرو بن مرة عن ابي البختري عن ابي برزة الاسلمي قال غضب ابو بكر رضي الله عنه على رجل فقلت اضرب عنقه، فقال: ما كانت لأحد بعد محمد صلى الله عليه وسلم

¹² *Sunan al-Nasā’i* [Vol. 7, no. 4075], *Sunan al-Kubra* [Vol. 2, no. 3538]. Further follow-on references to this are also provided, from the *Musnad* of Abu Ya’la [Vol. 2, no. 3539] and *Mu’jam al-Awsaṭ* by al-Ṭabarāni [Vol. 2, no. 1129].

¹³ *Musnad al-Ṭayālisi* [Vol. 1, no. 4]. Further follow-on references to this are also provided, from the *Musnad* of Abu Ya’la [Vol. 1, no. 82] and *Sunan al-Kubra* by al-Bayhaqi [Vol. 7, no. 13155].

Muḥammad ibn Aḥmad ibn Abi Khaythama narrated to us he said Muḥammad ibn Yusuf ibn Abi Ma'mar narrated to us he said Abdullah ibn Muḥammad al-Mughirba narrated to us he said Mālik ibn Mighwal narrated to us from 'Amr ibn Murra from Abu al-Bukhtari from Abu Burzah al-Aslami, he said: 'Abu Bakr, may Allah be pleased with him, was angered by a man. So I exclaimed, Strike his neck! He said no, none has that right after Muḥammad, peace and blessings be upon him.¹⁴

Recorded in the *Mustadrak* of al-Ḥākim, is the next narration:

حدثنا أبو حفص أحمد بن حنبل الفقيه ببخارى حدثنا صالح بن محمد بن حبيب الحافظ حدثنا أبو بكر بن أبي شيبة حدثنا أبو أسامة قال سمعت سفيان بن سعيد يقول أنبا الأعمش أنبا أبو عمار عن صلة بن زفر عن عبد الله بن مسعود، رضي الله عنه، قال يكون عليكم أمراء يتركون من السنة مثل هذا وأشار إلى أصل إصبعه، يريد التقليل، وإن تركتموهم جاؤوا بالطامة الكبرى! وإنها لم تكن أمة إلا كان أول ما يتركون من دينهم السنة، وآخر ما يدعون الصلاة، ولولا أنهم يستحيون ما صلوا

Abu Ḥafṣ Aḥmad ibn Ḥanbal the *Faqih* narrated to us in al-Bukhāra, Ṣāliḥ ibn Muḥammad ibn Ḥabeeb al-Ḥāfiẓ narrated to us Abu Bakr ibn Abi Shayba narrated to us Abu Usāma narrated to us he said I heard Sufyān ibn Sa'eed saying, al-'Amash reports, Abu Ammār reports from Ṣillah ibn Zafar from Abdullah ibn Mas'ud, may Allah be pleased with him, he said: 'There will be rulers over you who will abandon from the *Sunnah* (something) like this,' – he pointed to the base of his finger, indicating how little. 'And if you leave them be, they will bring a great catastrophe! There has never been a nation except that the first thing they abandoned from their *Deen* was the *Sunnah*, and the last thing they gave up was the prayer. And were it not for their sense of shame, they would not (even) pray at all.'¹⁵

This *ḥadith* is *Ṣaḥīḥ*. Commenting upon this, al-Ḥākim said: 'Upon the conditions of the two-Shaykhs, but they did not cite it.' Al-Dhahabi concurred, and it is as they have said. Finally, there is also the narrative that

¹⁴ al-Ṭabarāni *Mu'jam al-Awsaṭ* [Vol. 5, no. 5392]

¹⁵ al-Ḥākim *Mustadrak* [Vol. 4, no. 8584]

is cited by al-Ṭabarāni *Mu'jam al-Kabir*, also reported on the authority of Ibn Mas'ud:

حدثنا الحسين بن جعفر القتات حدثنا منجاب بن الحارث حدثنا علي بن مسهر عن الأعمش عن أبي عمار عن صلة بن زفر عن عبد الله قال إنه سيكون أمراء يدعون من السنة مثل هذه، فإن تركتموها جعلوها مثل هذه، فإن تركتموها جاؤوا بالطامة الكبرى

al-Ḥussein ibn Ja'far al-Qattāt narrated to us Munjāb ibn al-Ḥārith narrated to us Ali ibn Mishar narrated to us from al-'Amash from Abu Ammār from Ṣillah ibn Zafar from Abdullah (Ibn Mas'ud), he said: 'There will be rulers who abandon from the *Sunnah*, (something) like this,' he gestured with something small. 'And if you let that slide, they will make it like this,' indicating something larger, 'And if you let that go, they will bring about the greatest disaster.'¹⁶

Based upon the apparent wording, this narration appears to be that which is *mawquf* only. Yet undoubtedly treated as *marfu'* – raised and attributable to the Prophet, without question. If it wasn't, then it would imply that Abdullah ibn Mas'ud was inadvertently claiming access to Prophecy or knowledge of the unseen – may Allah forbid. From the wording it is evident the narration urges taking action against rulers *at the first sign of deviation*; it is not permissible to leave them to their own devices or to tacitly approve of them in positions of authority. Otherwise, the result would be a great catastrophe, and indeed, Allah and His Messenger, peace and blessings be upon him, have spoken the truth. When the *Ummah* neglected this duty, '*Ignominy shall be their portion wheresoever they are found*,'¹⁷ and the consequences have afflicted both past and present, as you can readily see with your own eyes. It is not something merely heard in narration or received second-hand. Yet, our hope in Allah remains great, that we are not among those who have incurred the wrath of Allah, may Allah forbid that and protect us all. There are other *aḥādith* in addition to this, but what has been mentioned thus far should suffice. These evidences serve to qualify and restrict the general texts that

¹⁶ al-Ṭabarāni *Mu'jam al-Kabir* [Vol. 9, no. 9497]

¹⁷ Included from the portion of the verse found at [3: 112]. The wording in full, (taken from Pitckthall) is: '*Ignominy shall be their portion wheresoever they are found save (where they grasp) a rope from Allah and a rope from men. They have incurred anger from their Lord, and wretchedness is laid upon them. That is because they used to disbelieve the revelations of Allah, and slew the Prophets wrongfully. That is because they were rebellious and used to transgress.*'

command absolute obedience to those occupying positions of ruling and authority, a matter that the sycophants only seem to emphasise, taking one portion of the revelation while actively relegating another.

12. Opposing and reconstituting political authority

Outlining a theory of the legitimacy to oppose the ruling authorities by physical action is not something that is necessarily a mainstay of political discourse, at least not amongst most Muslim intellectual circles. Within the Western tradition while some philosophers have posited resistance to political governance where it tends towards despotism, it is rarely a feature properly embodied thereafter within constitutional frameworks. In the modern era it is perhaps best expressed within the American Declaration of Independence in 1776. Justifying armed rebellion against British colonial rule, the framers of the Declaration argued that when any form of government becomes destructive of the ‘true ends to which it is formed,’ it is a right of the people to alter or even abolish it altogether. Thereby instituting a new form of government based upon principles which are supposed to further the legitimate ends of government itself.

We have outlined a standalone chapter on the Islamic position concerning this matter in our separate book which is entitled: *Ḥākimiyyah wa-Siyādat al-Shar*. Suffice to say here though is that the Islamic position textually rests within the framework of the revealed legal texts, the Book and the Prophetic *Sunnah*. It is the latter which stipulates that this opposition arises from the ruler manifesting ‘clear and blatant disbelief,’ and/or when he abandons the establishment of *Ṣalāh*, which is namely the establishment of the *Deen* itself. Here the foundation stone rests upon the *Ṣaḥīḥ aḥādith* covering the matter of *Kufr Bawāḥ* [الكفر البواح], in particular, that narrated upon the authority of the Companion, ‘Ubādah ibn al-Ṣāmit, may Allah be pleased with him:

We took the pledge of allegiance to the Messenger of Allah, peace and blessings be upon him to listen and obey in times of hardship and ease, in what we liked and disliked, even where others were given preference over us. And that we would not dispute the authority of those in charge unless we noticed *Kufr Bawāh* for which we would have a clear proof with us from Allah. And that we speak the truth for the sake of Allah, wherever we are, without fearing the blame of the blamers.¹

The aforementioned *ḥadith* is resolutely *Ṣaḥīḥ*, indeed unanimously agreed upon in that respect. It has narrated by many scholars within their respective collections including al-Bukhārī, Muslim, Aḥmad, al-Ṭabarānī and many others through multiple reporting channels. In terms of the specific wording, of note is *Bawāh* [بواح], that which is clear, apparent and doesn't contain any concealment. It arises from the saying *bāḥa bi-shay'*, *yabuḥu bihi*, *buḥann wa bawāḥann*, conveying the meanings of he disclosed it, made it public, proclaiming the matter openly. Mentioned in other authentic channels of reporting the wording is 'Except if it is clear disobedience to Allah,' or 'Providing they don't order an open sin.'² Imām al-Nawawī said: 'What is meant by *kufr* here is *ma'ṣeeah*; the meaning of the *ḥadith* is – don't dispute the rulers regarding their authority, nor object to them, unless you see from them a confirmed and established *munkar*, something you know according to the principles of Islam.'³ Al-Ḥāfiz critiqued this in *Fatḥ al-Bārī* while explaining the *ḥadith* in the book of *Fitan*. He also mentioned other opinions regarding armed opposition against the ruler, and he also discussed the matter generally as it relates to the lapse in authority of the ruler that is *fāsiq*.⁴ This matter has also been extensively covered in our standalone work entitled *Ṭā'ah Ulil' Amr, Hududuhā wa Qayuduhā*.⁵

Another of the narrations stemming from 'Ubādah ibn al-Ṣāmit, may Allah be pleased with him, as recorded by al-Ṭabarānī contains some additional information details, namely:

¹ See chapter 9 above, the wording as reported by al-Bukhārī and Muslim in their respective collections of *Ṣaḥīḥ*.

² The former as narrated by Ibn Ḥibbān, the latter as per Aḥmad.

³ Cited in al-Nawawī's *Sharḥ Ṣaḥīḥ Muslim* [Vol. 6, p. 189], but also referred to in *Fatḥ al-Bārī* by Ibn Ḥajar.

⁴ Ibn Ḥajar *Fatḥ al-Bārī* [Vol. 16, pp. 8/10]

⁵ 'Obedience to Those in Authority: Its Limits and Conditions.' An open access version of this work in Arabic (circa 2002), is available via the *Internet Archive*.

حدثنا محمد بن أبي زرعة الدمشقي حدثنا هشام بن عمار (ح) وحدثنا بن دحيم حدثنا أبي قال حدثنا الوليد بن مسلم حدثنا بن ثوبان حدثني عمير بن هانئ عن جنادة بن أبي أمية عن عبادة بن الصامت قال: قال رسول الله صلى الله عليه وسلم عليك بالسمع والطاعة في عسرك ويسرك، ومنشطك ومكرهك، وأثرة عليك، ولا تتنازع الأمر أهله، وإن رأيت أنه لك، قال عمير فحدثني خضير أو خضير السلمي أنه سمع من عبادة بن الصامت عن النبي، صلى الله عليه وسلم، وزاد إلا أن يأمر بك باثم بواحا عندك تأويله من الكتاب، قال خضير أو خضير قلت لعبادة: فإن أنا أطعته؟ قال يؤخذ بقوائمك فتلقى في النار، وليجيء هو فلينفذك!

Muḥammad ibn Abi Zur'ah al-Dimishqi narrated to us Hishām ibn 'Ammār narrated to us (*hawala*), and Ibn Duḥaym narrated to us my father narrated to us, they said: al-Waleed ibn Muslim narrated to us Ibn Thawbān narrated to us Umayr ibn Hānī narrated to us from Junāda ibn Abi Umayya from Ubāda ibn al-Ṣāmit, he said the Messenger of Allah, peace and blessings be upon him said: 'You must listen and obey (be that) in hardship or ease; in what you like and what you dislike, even when others are given preference over you. Do not dispute the authority of the people, even if you think you have a right (to it).' Umayr said: After which Khuḍayr or Ḥuḍayr al-Sulami narrated to me that he heard from Ubādah ibn al-Ṣāmit from the Prophet, peace and blessings be upon him, and he added: 'Except if he commands you to commit a clear sin, for which you have evidence from the Book.' Khuḍayr or Ḥuḍayr said: 'I asked Ubādah, "What if I obey him (in that)?"' He said: "You will be seized by your legs and thrown into the Fire. Let him come and save you then!"⁶

I would argue that that this is *isnād* is *ḥasan jayyid bi-dhātihi* upon which substantive proofs can be established. It is *Ṣaḥīḥ* when coupled with its attesting and corroborating channels of narration, such as that brought forth by al-Bukhārī, Muslim, Aḥmad, Ibn Ḥibbān and many others too. Khuḍayr al-Sulami was from among the *Kibār al-Tābi'een*, the senior successors and there is nothing untoward with him; he is from among the trustworthy narrators according to Ibn Ḥibbān. He has narrated from 'Ubādah ibn al-Ṣāmit and Ka'b al-Aḥbār; al-Bukhārī recorded an entry for him where he referred to him as being Ḥuḍayr al-Sulami.

Obedience to the creation in disobedience to Allah is a grave crime and a tremendous evil because of the destructive corruption it inevitably brings forth

⁶ al-Ṭabarānī, *Musnad al-Shāmīyīn* [Vol. 1, p. 141, no. 665 (*Shamela* edition)]

in both abodes, or at the very least in one of them, as has been said. Needless to say, the one who obeys in this regard takes the same ruling as the one who commands; they are partners in the sin, which may even reach the level of *Riddah* and *Kufr*, and we seek refuge in Allah from such. How else has *Ḍalāl* (misguidance) and *Fasād* (corruption) spread across the far corners of the earth except through those deemed as the weak following their leaders and rulers? In the Hereafter, these followers will remember the corruption of such blind obedience, and they will realise that they were criminals acquiescing in it, just as Allah has related their final, despairing dialogue in the following verses:

وَقَالَ الَّذِينَ كَفَرُوا لَنْ نُؤْمِنَ بِهَذَا الْقُرْآنِ وَلَا بِالَّذِي بَيْنَ يَدَيْهِ وَلَوْ تَرَىٰ إِذِ الظَّالِمُونَ مَوْقُوفُونَ عِنْدَ رَبِّهِمْ يَرْجِعُ بَعْضُهُمْ إِلَىٰ بَعْضٍ الْقَوْلَ يَقُولُ الَّذِينَ اسْتُضْعِفُوا لِلَّذِينَ اسْتَكْبَرُوا لَوْلَا أَنْتُمْ لَكُنَّا مُؤْمِنِينَ، قَالَ الَّذِينَ اسْتَكْبَرُوا لِلَّذِينَ اسْتُضْعِفُوا أَنَحْنُ صَدَدْنَاكُمْ عَنِ الْهُدَىٰ بَعْدَ إِذْ جَاءَكُمْ بَلْ كُنْتُمْ مُجْرِمِينَ، وَقَالَ الَّذِينَ اسْتُضْعِفُوا لِلَّذِينَ اسْتَكْبَرُوا بَلْ مَكْرُ اللَّيْلِ وَالنَّهَارِ إِذْ تَأْمُرُونَنَا أَنْ نَكْفُرَ بِاللَّهِ وَنَجْعَلَ لَهُ أَنْدَادًا وَأَسْرُوا النَّدَامَةَ لَمَّا رَأَوُا الْعَذَابَ وَجَعَلْنَا الْأَغْلَالَ فِي أَعْنَاقِ الَّذِينَ كَفَرُوا هَلْ يُجْزَوْنَ إِلَّا مَا كَانُوا يَعْمَلُونَ، وَمَا أَرْسَلْنَا فِي قَرْيَةٍ مِّنْ نَّذِيرٍ إِلَّا قَالَ مُتْرَفُوهَا إِنَّا بِمَا أُرْسِلْتُمْ بِهِ كَافِرُونَ

The disbelievers say, 'We will believe neither this Qur'ān nor the Scriptures that came before it.' If only you could see [Prophet] how the wrongdoers will be made to stand before their Lord, hurling reproaches at one another. Those who were oppressed will say to the oppressors, 'If it were not for you, we would have been believers.' The oppressors will say to them, 'Was it we who prevented you from following right guidance after it had reached you? No! You yourselves were sinners.' The oppressed will say to them, 'No, it was your scheming, night and day, ordering us to disbelieve in Allah and set up rivals to Him.' When they see the punishment, they will fall silent with regret, and We shall put iron collars on the disbelievers' necks. Why should they be rewarded for anything other than what they have done? Never have We sent a warner to a community without those among them who were corrupted by wealth saying, 'We do not believe in the message you have been sent with.'⁷

We are again reminded of this in another set of verses together with the bitter torment:

⁷ Qur'ān, 34: 31/34

وَيَرْزُوا لِلَّهِ جَمِيعًا فَقَالَ الضُّعَفَاءُ لِلَّذِينَ اسْتَكْبَرُوا إِنَّا كُنَّا لَكُمْ تَبَعًا فَهَلْ أَنْتُمْ مُّعْتَدُونَ عَنَّا مِنْ عَذَابِ اللَّهِ مِنْ شَيْءٍ قَالُوا لَوْ هَدَانَا اللَّهُ لَهْدَيْنَاكُمْ سَوَاءٌ عَلَيْنَا أَجْرٌ عَنَّا أَمْ صَبَرْنَا مَا لَنَا مِنْ مَّجِيصٍ، وَقَالَ الشَّيْطَانُ لَمَّا قُضِيَ الْأَمْرُ إِنَّ اللَّهَ وَعَدَكُمْ وَعْدَ الْحَقِّ وَوَعَدْتُكُمْ فَأَخْلَفْتُكُمْ وَمَا كَانَ لِي عَلَيْكُمْ مِّنْ سُلْطَانٍ إِلَّا أَنْ دَعَوْتُكُمْ فَاسْتَجَبْتُمْ لِي فَلَا تَلُمُونِي وَلَوْلَا أَنفُسُكُمْ مَا أَنَا بِمُصْرِخِكُمْ وَمَا أَنْتُمْ بِمُصْرِخِيَّ إِنِّي كَفَرْتُ بِمَا أَشْرَكْتُمُونِ مِنْ قَبْلُ إِنَّ الظَّالِمِينَ لَهُمْ عَذَابٌ أَلِيمٌ

When they all appear before Him, the weak will say to the power-seekers, 'We were your followers. Can you protect us from any of Allah's punishment?' They will reply, 'If Allah had guided us, we would have guided you. It makes no difference now whether we rage or endure with patience: there is no escape.'

When everything has been decided, Satan will say, 'Allah gave you a true promise. I too made promises but they were false ones: I had no power over you except to call you, and you responded to my call, so do not blame me; blame yourselves. I cannot help you, nor can you help me. I reject the way you associated me with Allah before.' A bitter torment awaits such wrongdoers.⁸

After the bitter torment, comes the convulsing in the fire of hell:

إِنَّ اللَّهَ لَعَنَ الْكَافِرِينَ وَأَعَدَّ لَهُمْ سَعِيرًا، خَالِدِينَ فِيهَا أَبَدًا لَا يَجْدُونَ وَلِيًّا وَلَا نَصِيرًا، يَوْمَ ثَقُلَتْ وُجُوهُهُمْ فِي النَّارِ يَقُولُونَ يَا لَيْتَنَا أَطَعْنَا اللَّهَ وَأَطَعْنَا الرَّسُولَ، وَقَالُوا رَبَّنَا إِنَّا أَطَعْنَا سَادَتَنَا وَكُبَرَاءَنَا فَأَضَلُّونَا السَّبِيلَ، رَبَّنَا آتِهِمْ ضِعْفَيْنِ مِنَ الْعَذَابِ وَالْعَنَهُمُ لَعْنًا كَبِيرًا

Allah has rejected the disbelievers and prepared a blazing fire for them. There they will stay permanently, with no one to befriend or support them. On the Day when their faces are being turned about in the Fire, they will say, 'If only we had obeyed Allah and the Messenger,' and 'Lord! We obeyed our masters and our chiefs, and they led us astray. Lord! Give them a double punishment and reject them completely.'⁹

Writing in *Fath al-Qadir* Imām al-Shawkāni said: '(So) what is meant by 'masters' and 'notables' are the leaders and chiefs whose orders were obeyed in this world and whose example people followed. This is a strong warning against *taqlēd* (imitation).'¹⁰ Indeed, the strongest and starkest of warnings to take heed of.

⁸ Qur'ān, 14: 21/22

⁹ Qur'ān, 33: 64/68

¹⁰ al-Shawkāni, *Fath al-Qadir* [Vol. 2, p. 434 (print edition)]

13. Islamic law covers matters relating to international relations

There are two-prominent examples that can be marshalled to show that the *Sharī'ah* extends in scope to even cover matters as they pertain to international relations, or in other words, the relationship between governing entities. The first of these examples relates to when the Prophet Muḥammad, peace be upon him and his family, arrived in Medina, he established a covenant or 'international agreement' with the various Jewish tribes who inhabited the regions outside of the city. One of the specific clauses set out in the *Ṣaḥeefah tul-Madina* – the Constitution or Compact of Medina reads:

And if any incident or dispute occurs among the people of this compact that is feared to cause corruption, its resolution shall be referred to Allah, the Mighty and Sublime and to Muḥammad, the Messenger of Allah.¹

Woefully neglected by scholarship past and present, the Constitution of Medina drawn up by the Prophet, peace and blessings be upon him, demonstrates from the earliest epoch, that reference or referral to Allah and His Messenger was a cornerstone governing the relationship between the

¹ Lecker records this as being clause (52) in Ibn Ishāq's rendition (p. 9) and presents the text together with Abu Ubayd's slight variance (p. 30). His translation of this clause though (p. 38) is somewhat lacking: 'Every murder [or another major crime] or dispute between the people of this treaty from which evil is to be feared should be brought before Allah and Muhammad.' See Michael Lecker (2004), *The Constitution of Medina*, (The Darwin Press: Princeton).

emergent city-state of Medina under Prophetic guidance and relationships between its neighbouring polities.²

For the second example, we turn to the treaty that was concluded between the Muslims and the *kuffār* on the day of Ḥudaybiyyah. What is interesting about this specific incident is that the bulk of opinion amongst the Muslims at the time was strongly against being party to the treaty and upholding its clauses which were seen as being a humiliation. Open hostility to the agreement was displayed directly before the Messenger of Allah, peace and blessings be upon him. One such dissenter was Umar ibn al-Khaṭṭāb, may Allah be pleased with him. His articulation of the opposition to the treaty, which reflected the views of many others, was manifested in the dialogue he had with Abu Bakr, may Allah be pleased with him.

He said: 'O Abu Bakr, is he not the Messenger of Allah? Are we not Muslims? Are they not the *mushrikeen*?' Abu Bakr replied, 'Yes.' Umar then asked: 'Then why should we accept disgrace in our *Deen*?' Abu Bakr, may Allah be pleased with him, replied: 'Hold firm to his command, for I bear witness that he is the Messenger of Allah.' Umar said, 'I too bear witness.' Then he went to the Messenger of Allah, peace and blessings be upon him, and said to him: 'O Messenger of Allah, are we not Muslims? Are they not the *mushrikeen*?' The Prophet peace and blessings be upon him replied: 'Yes.' Umar asked, 'Then why should we accept disgrace in our *Deen*? The Prophet peace and blessings be upon him said: 'I am the servant of Allah and His Messenger. I will not disobey His command, and He will not forsake me.'

Details of this incident are set out across the entire corpus of *aḥādith* including the *Ṣaḥīḥ* collections produced by al-Bukhārī and Muslim.³ The stance of Umar, may Allah be pleased with him, was the most sincere expression of opposition from the nascent Muslim *Ummah* before the Messenger of Allah, peace and blessings be upon him, because he accepted what was perceived as

² Other than the Professor's own work on the Constitution of Medina, that produced by Lecker remains perhaps the only stand-alone work in English.

³ In addition to this, one can also consult the numerous collections of *Seerah* as well as *The History of al-Tabari* Vol. 8 (1997), Translated by Michael Fishbein, (State University of New York Press: Albany) for a detailed account of these events.

being humiliating conditions that the *mushrikeen* were imposing. The opposition was practically confirmed by their failure to comply with the command of the Messenger of Allah to refrain from slaughtering their sacrificial animals when he ordered them to do so. Given this response, the Messenger of Allah, peace and blessings be upon him, was angered by this. So much so to the extent that he complained to his wife, the Mother of the Believers Umm Salamah, may Allah be pleased with her, about this situation. Her counsel has also been authentically reported. She said, ‘O Messenger of Allah, go out and sacrifice (your animal), shave your head, for they will follow you.’ These actions, including his statement previously mentioned - ‘*I am the servant of Allah and His Messenger. I will not disobey His command, and He will not forsake me,*’ provides confirmation that the Treaty of Ḥudaybiyyah was not from the category of permissible treaties that the *Sharī’ah* stipulates a Muslim ruler can conclude. Whether that conclusion be based on his own *Ijtihad*, for considerations of public interest, or following wider consultation with the *Ummah*. Instead, the Treaty of Ḥudaybiyyah was by way of the command of Allah, in accordance with a specific revelation that came with it. The legal points arising here show that it is not lawful to try and make an analogy against this specific situation and argue that such treaties should be concluded in our era. Specific legal evidence and proof would need to be obtained prior to that.

Overall though, the incident shows that the emergent Muslim polity under the direct guidance of the Messenger of Allah, peace and blessings be upon him, did not resort to other than Islam or other than the final *Sharī’ah* in undertaking agreements with similar polities in the region. To reiterate in conclusion, the *Sharī’ah* extends in scope to cover matters as they pertain to international relations - the relationship between governing entities. It is not lawful for any Muslim holding a position of political power to undertake treaties or compacts that specifically flout, undermine or even work against the principles enshrined in the final revelation sent to mankind, that brought by the Messenger of Allah, peace and blessings be upon him.

14. Ultimate authority rests with Islamic law – the evidences

Here in this chapter we will detail the various aspects relating to the detailed evidences from the Book of Allah and the Prophetic *Sunnah* which stipulate the absolute limitation of sovereignty is to the *Sharī’ah*. Thus far the evidences arising from the Book of Allah are absolute and definitive, leaving no room for doubt or denial. Together they point to a single immutable truth, that sovereignty belongs to the *Sharī’ah*. It cannot reside or be assigned to human reason or abstractions like ‘the people,’ or the ‘will of the people.’ In a similar manner, the Prophetic *Sunnah* provides this confirmation too.

The first aspect: absolute obedience to Allah and His Messenger

Textually, but also by the necessity and dictates of reason, this matter is abundantly clear as well as absolute. Indeed, the obligation to obey both Allah and His Messenger in absolute terms is a judgement of reason which the *Sharī’ah* has confirmed. Numerous evidences outline this principle quite clearly, including the following:

مَنْ يُطِيعِ الرَّسُولَ فَقَدْ أَطَاعَ اللَّهَ وَمَنْ تَوَلَّى فَمَا أَرْسَلْنَاكَ عَلَيْهِمْ حَفِظًا

*Whoever obeys the Messenger obeys Allah. If some pay no heed, We have not sent you to be their keeper.*¹

قُلْ إِنْ كُنْتُمْ تُحِبُّونَ اللَّهَ فَاتَّبِعُونِي يُحْبِبْكُمُ اللَّهُ وَيَغْفِرْ لَكُمْ ذُنُوبَكُمْ وَاللَّهُ غَفُورٌ رَحِيمٌ ، قُلْ أَطِيعُوا اللَّهَ وَالرَّسُولَ فَإِنْ تَوَلَّوْا فَإِنَّ اللَّهَ لَا يُحِبُّ الْكَافِرِينَ

¹ Qur’ān 4: 80

Say, 'If you love Allah, follow me, and Allah will love you and forgive you your sins; Allah is most forgiving, most merciful.' Say, 'Obey Allah and the Messenger,' but if they turn away, [know that] Allah does not love those who ignore [His commands].²

These evidences are coupled with the warning of a severe punishment by failure to do so, namely:

وَمَا آتَاكُمُ الرَّسُولُ فَخُذُوهُ وَمَا نَهَاكُمْ عَنْهُ فَانْتَهُوا وَاتَّقُوا اللَّهَ إِنَّ اللَّهَ شَدِيدُ الْعِقَابِ

So accept whatever the Messenger gives you and abstain from whatever he forbids you. Be mindful of Allah: Allah is severe in punishment.³

وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ فَإِنَّ لَهُ نَارَ جَهَنَّمَ خَالِدًا فِيهَا أَبَدًا

Whoever disobeys Allah and His Messenger will have Hell's Fire as his permanent home.⁴

تِلْكَ حُدُودُ اللَّهِ وَمَنْ يُطِيعِ اللَّهَ وَرَسُولَهُ يُدْخِلْهُ جَنَّاتٍ تَجْرِي مِنْ تَحْتِهَا الْأَنْهَارُ خَالِدِينَ فِيهَا ذَلِكَ الْفَوْزُ الْعَظِيمُ، وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ وَيَتَعَدَّ حُدُودَهُ يُدْخِلْهُ نَارًا خَالِدًا فِيهَا وَلَهُ عَذَابٌ مُهِينٌ

These are the bounds set by Allah. Allah will admit those who obey Him and His Messenger to Gardens graced with flowing streams, and there they will stay - that is the supreme triumph! But those who disobey Allah and His Messenger and overstep His limits will be consigned by Allah to the Fire, and there they will stay - a humiliating torment awaits them!⁵

Further to this, it is also understood from the verse relating to those wielding authority, which begins with the express command, 'To obey Allah and obey the Messenger,' [4: 59]. Herein the wording expresses a decisive emphatic command, in absolute terms. The verse further links that requirement of obedience to belief overall in Allah the Exalted and the last day. There is also a matter of negation relating to faith contained by way of contrast, 'If you believe in Allah the final day.' As explained by Sayyid Quṭb may Allah have mercy upon him who argued the following:

² Qur'ān 3: 31/32

³ Qur'ān 59: 7

⁴ Qur'ān 72: 23

⁵ Qur'ān 4: 13/14

In this short text, Allah the Exalted explains the conditions of *al-Imān*, the boundary markers of Islam, and the fundamental principle underpinning the system of governance for that of the Muslim community, the basis of all judgement and the source of all authority. All these begin and end with receiving guidance from Allah alone, and, where there is no clear statement, to refer to Him in any detail that may arise in human life over which people may differ.

Indeed, *al-Ḥākimiyyah* belongs to Allah alone in all human life and all its affairs, large and small.

To obey Allah is obligatory. Allah enacts the law; implementation of this is, thus, obligatory.

al-Imān, its presence or absence is tied to this implementation and obedience, as stated explicitly in the text of the Qur'ān, 'If you truly believe in Allah and the Last Day,' [4: 59].⁶

The Imām, Ibn Abi al-'Izz al-Ḥanafī, may Allah have mercy upon him said in *Sharḥ al-Ṭahāwiyyah* regarding the directive given to this *Ummah*:

We thus single him out (i.e. the Prophet) in matters pertaining to judgment, submission, compliance and yielding; similarly, as we single out that one must worship only his Sender and surrender to Him alone, looking only to His mercy and putting one's trust only in Him. These are two aspects of *Tawḥeed*, and the person will not be saved from the hellfire unless he possesses both: the belief in the Oneness of the Sender and belief in the distinctive following of the Messenger. We do not refer judgment to anyone besides Him, nor are we content with the ruling of anyone other than Him.⁷

As will be quoted in full below, the verse concerning those 'in authority,' is one of the *Ayātul-Aḥkām* which directly applies to the system of governing,

⁶ Here, the Arabic edition doesn't carry a source reference for the quote. This is taken from Sayyid Quṭb's *Tafsir, In the Shade of the Qur'an*. English translations of the work tend to vary slightly, so we have opted here to try and stay closer to the original Arabic text, also utilising a transliteration of terms. As the quote is from various sections, we have opted to separate this out rather than linking the text into one formal block-quote. Arabic edition references also vary, although these excerpts are taken from Sayyid Quṭb's commentary upon the verse at [4: 59]. Referencing for one of the English translations is that by *The Islamic Foundation* (Markfield) [2001, Vol. 3, p. 196].

⁷ Ibn Abi al-'Izz al-Ḥanafī *Sharḥ al-Ṭahāwiyyah* [p. 200 (*Shamela* edition)].

given that it commands obedience to those who are in authority. With the express wording of absolute obedience to Allah and His Messenger, this naturally requires refraining from obedience to anything else. And that obedience is realised only by carrying out everything that the Lawgiver has commanded, together with avoiding that which He has prohibited. Hence, the *Sharī'ah* retains the role as final arbitrator, hence in modern parlance, sovereignty resides there. Ultimately that is *al-Rububiyyah* in this life and sovereignty resides nowhere else.

The second aspect: No obedience to the creation in disobedience to the Creator

The *mutawātir* texts of the Qur'ān and the Prophetic *Sunnah* show the obligation that is rendered to the legitimate political authorities, with disobedience to them being *ḥarām*. Yet this obedience is not expressed or couched in absolute terms, instead it is within the wind limits or bounds that the Lawgiver has set. He has defined what the specific limits, conditions and restrictions are contained within the framework of the *Sharī'ah*. Readers can also refer to the separate study undertaken on this entitled, 'Obedience to the Rulers.' As noted earlier, the verse in full requires obedience to the legitimate political authority, as He the Exalted says:

يَا أَيُّهَا الَّذِينَ آمَنُوا أَطِيعُوا اللَّهَ وَأَطِيعُوا الرَّسُولَ وَأُولِي الْأَمْرِ مِنْكُمْ فَإِنْ تَنَازَعْتُمْ فِي شَيْءٍ فَرُدُّوهُ إِلَى اللَّهِ وَالرَّسُولِ إِنْ كُنْتُمْ تُؤْمِنُونَ بِاللَّهِ وَالْيَوْمِ الْآخِرِ ذَلِكَ خَيْرٌ وَأَحْسَنُ تَأْوِيلًا

*O you who believe, obey Allah and the Messenger, and those in authority among you. If you are in dispute over any matter, refer it to Allah and the Messenger, if you truly believe in Allah and the Last Day: that is better and fairer in the end.*⁸

Obedience is an essential condition for the existence of order within 'the state,' or the political community, and for the preservation of unity within the *Ummah*. It would at first appear that Allah the Exalted commanded obedience without specific restriction. Yet the verse itself shows that disagreement may well arise, indeed even conflict and that these matters are clarified by reference to Allah and His Messenger. Obedience to those holding positions of authority is not for its own sake, but rather because of the verse here which

⁸ Qur'ān, 4: 59.

outlines obedience to them from Allah the Exalted. Hence it isn't a principle that stands separate on its own independent, but it is a branch of obedience to Allah. The Prophetic *Sunnah* thereafter provides additional clarification to this command of obedience and what its specific parameters entail, for example obedience does not extend to committing sin, as per the hadith narrated upon the authority of Ibn Umar where he said the Messenger of Allah, peace and blessings be upon him said:

على المرء المسلم الطاعة فيما أحب وكره، إلا أن يؤمر بمعصية، فإذا أمر بمعصية فلا سمع ولا طاعة

*A Muslim must obey in what he likes and dislikes, unless he is ordered to do something sinful. If he is ordered to do something sinful, then there is no hearing or obedience.*⁹

To reiterate, the limits to obedience which the verse sets out are set forth by Allah and His Messenger. Obedience does not go beyond the remits of what the *Sharī'ah* has defined. Moreover, there is also the *ḥadith* of Abu 'Utbah al-Khawḷānī, where he reported that the Messenger of Allah peace and blessings be upon him said:

لا تخرجوا أمتي، (قالها ثلاث مرات) اللهم من أمر أمتي بما لم تأمرهم به، فإنهم منه في حل
'Do not put my Ummah into hardship (he said it three times). O Allah, whoever commands my Ummah with that which You have not commanded them, then they are absolved from him.'¹⁰

It is not lawful for the ruler to try and impose upon this *Ummah* a law that hasn't been properly derived from the *Sharī'ah*, let alone seek to completely derogate from that and introduce man-made laws. No obedience results from contravention of this principle. Other restrictions also apply as set out in our separate works on this topic. Note well the wording as expressed in the verse

⁹ The Arabic edition doesn't carry the additional referencing for this narration. However this is reported across the well-known collections of *aḥādith*, including *Ṣaḥīḥ* al-Bukhārī and Muslim, as well as the *Sunan* collections of Abu Dāwūd and al-Nasā'ī. Many of the narrations on this topic though are already covered in chapters ten and eleven.

¹⁰ See footnote 14 from chapter 10.

cited earlier, [4: 59], inimitable in style, meaning and eloquence. Writing in *Ruḥ al-Ma'ānī* al-Alūsī commented with the following:

The verb was repeated (*sic.* obey) even though obedience to the Messenger is conjoined with obedience to Allah, out of reverence for his rank, peace and blessings be upon him, dispelling any misconception that compliance is required only with what is in the Qur'ān. It further proclaims that he peace and blessings be upon him, possesses an independent authority in obedience, a station granted to none besides him. Hence, in His saying, '*and those in authority among you,*' [4: 59] the verb was not repeated (before that wording), signalling that they hold no independent status in obedience comparable to that of the Messenger peace and blessings be upon him.¹¹

To reiterate this critical point, obedience to 'those in authority' is subordinate to obedience to Allah and His Messenger. It does not stand as an independent obedience in and of itself. Concerning obedience in matters of sin, the scholars have unanimously agreed that it is prohibited as Imām al-Nawawī recorded their *Ijmā'* in his commentary on *Ṣaḥīḥ* Muslim. The basis of this *Ijmā'* lies in both the necessity of *Sharī'ah* and sound reason. The obedience required of the *Ummah* is not unrestricted nor absolute but rather confined within the demarcated boundaries which have been set out by the Lawgiver, that is, within the limits of the *Sharī'ah*. Obedience in the context of '*those in authority,*' or political authority generally arises from the prior command issued by Allah to obey them. They reserve no independent right in themselves. By necessity that obedience is of a lower-degree than obedience to Allah and His Messenger, which is unequivocal and absolute. The *Sharī'ah* and dictates of reasons necessarily stipulate that commands emanating from a lower derivative authority fall under the commands of the higher original authority. Should a dispute or disparity arise, then without question the command of the higher original authority must prevail, and that stemming from the lower derivative authority becomes null and void, this is a clear logical imperative.

Look at the following example, if the higher authority were to say: 'Obey the lower authority, *even if* it commands you to disobey Me,' then in reality it

¹¹ al-Alūsī *Ruḥ al-Ma'ānī* [Vol. 3, p. 63]

would be setting forth a matter which is impossible by saying: 'Obey Me by disobeying Me from the very same authority upon the same matter.' Should the higher authority be the highest of all, namely Allah the Mighty and Sublime, then the severity of this impossibility becomes even more clearer. Allah is the Necessarily Existent being, the Creator of minds and Originator of all things. Such a contradiction cannot stand before His Majesty, leading to any notion that contradiction should even extend to His will, essence or attributes. Reason and sensory experience, both of which are the masterful creation of Allah would collapse, allowing the notion of doubt to creep into the most basic principles of the intellect. Allowing such an impossibility to occur would cause the intellect to crumble, undoing the *Sharī'ah* itself, all of which would be delusion and insanity. We seek refuge in Allah from all of that.

All the texts of the *Sharī'ah* must be understood in this manner. If a transmitted text cannot be understood in this way, nor interpreted in a fitting manner, then it is impossible for it to be an authentic transmission. Such a text must necessarily be judged as fabricated and its attribution being false. Given all of the above, the evidence shows that sovereignty belongs to the *Sharī'ah*, otherwise it would be lawful for a ruler to impose all manner of laws not derived from the *Sharī'ah* itself upon the *Ummah* and then claim there is a religious obligation arising from the texts to obey that. And yet we know with certitude that Islam has forbidden all its adherents from obedience to a ruler where sin and disobedience to Allah is commanded. By way of example, one can look at the incident concerning 'Alqamah ibn Mujazziz, may Allah be pleased with him, when he jokingly said to his detachment, 'I give you an order to jump into this fire.' When he heard of this, the Messenger of Allah peace and blessings be upon him said, '*Whoever among you commands you to do something that involves disobedience to Allah, do not obey him.*'¹²

Moreover, obedience is also prohibited in matters of far greater magnitude, like when a ruler is legislating without recourse whatsoever to Allah and His Messenger, or he seeks to curtail, circumvent or even abolish the *Sharī'ah* altogether. As previously explained in chapter eleven, it has been transmitted from the Messenger of Allah peace and blessings be upon him by *tawātur* that he said: '*There is no obedience to the creation in disobedience to*

¹² As recorded in the *Sunan* of Ibn Mājah

the Creator. Everything other than Allah the Mighty and Sublime is created, be that mankind, the scholarly classes and rulers which emerge from mankind, all the way to the layperson. All are the creation of Allah. Hence none of them may be obeyed should that entail disobedience to Allah the Exalted, Lord of Creation. The magnitude of this amazing *ḥadith* alone suffices to demolish the chimera which is the liberal-democratic notion of the ‘sovereignty of the people,’ uprooting it in its entirety. The one true and correct thought, the certain and established truth, is thereby realised in this matter absolutely, namely that the lawful and unlawful remain the sole criterion for deeds. On the proviso that the lawfully constituted ruler doesn’t depart from his adherence to the Book of Allah the Prophetic *Sunnah* from the Messenger of Allah, peace and blessings be upon him, the general rule of obedience would therefore apply to all Muslims.

‘*Levantine Obedience*’

Notwithstanding the absolute clarity and definitiveness of which this matter rests upon, we are still able to find some who despite professing Islam, declare the absolute opposite to it. A notable example is found in *Minḥāj al-Sunnah al-Nabawiyyah*:

In addition to that many of the supporters of Bani Umayyah – or most of them, used to believe that a leader will not be judged in the Hereafter and he will not be punished in the Hereafter and that Allah will not judge them regarding their obedience to their leaders. Nay, it is obligatory upon them to obey their leaders in all matters and that it is Allah who commanded them to do so. Their statement on this matter is well known to everybody. When Yazeed ibn ‘Abd al-Malik was appointed as Caliph, he decided to follow the conduct and footsteps of Umar ibn ‘Abd al-Aziz but a group of their Shaykhs went to him and they swore before him by Allah, who has no partner, that if Allah gives power and authority to a person upon a people He will accept from him all good deeds and forgive him all evil deeds. That is why you find most of their elders stating that an absolute obedience to a leader (with authority) is obligatory, and that whoever obeys him has obeyed Allah

and that is why a similitude was coined for them: *Tā’ah Shāmiyyah*, ‘Levantine Obedience.’¹³

There does appear to be some leniency given to this matter by Ibn Taymiyyah, and not just by way of an apologetic, for immediately after explaining this he then wrote the following:

Thus, those people are saying that their leaders are not commanding them but with the command of Allah, and there isn’t any Shia among them. Indeed, many among them hate Ali and curse him. Whoever believes that whatever his leader commands is what Allah has commanded, that Allah will recompense him for that obedience and that He will punish him for abandoning it; he will not need an infallible Imām other than his Imām.¹⁴

Thereafter Ibn Taymiyyah proceeded to express his preference for these people over the Shia who believe in the concept of the infallibility of the Imāms. Here I would argue that let us suppose for a moment that the common people are excused on the basis of profound ignorance, particularly given that historical reports do seem to indicate that many reached the level of cattle, or even perhaps were even more astray. Where does that exactly leave their scholars, as highlighted in the earlier quote, those who swore before him (e.g. Yazeed ibn ‘Abd al-Malik), by Allah with whom there is no partner, ‘if Allah gives power and authority to a person upon a people; He will accept from him all good deeds and forgive him all evil deeds.’ What about the tyrant and criminal al-Ḥajjāj ibn Yusuf, who was Ḥāfiz al-Qur’ān, who had the audacity to claim while besieging ‘Abdullah ibn al-Zubayr in Mecca, ‘O people of the Levant, Fear Allah, fear Allah concerning obedience.’¹⁵ Historical reports also show that he was hesitant concerning the matter of the *Ka’ba* until his overlord, ‘Abd al-Malik ibn Marwān ibn al-Ḥakam, the enemy of Allah, ordered him to bombard it with catapults, the artillery of that era. This is the very same ‘Abd al-Malik ibn Marwān who had sought knowledge to the point that some had compared him to the renowned seven-jurists of Medina. And

¹³ Ibn Taymiyyah *Minḥāj al-Sunnah al-Nabawiyyah* [Vol. 6, pp. 430/4311 (*Shamela* edition)].

¹⁴ Ibid.

¹⁵ See Ibn Kathir *al-Bidāyah wal’Nihāyah* [Vol. 8, p. 329].

yet, he was also the very same individual who exclaimed to a group of his entourage when the conduct of Umar ibn al-Khaṭṭāb was mentioned – ‘End the mentioning of Umar, for bitterness toward rulers is a corruption for the subjects.’¹⁶ Set out below are some of the infamous examples of the outrages committed by al-Ḥajjāj, as noted in the *Sunan* Abu Dāwud:

حَدَّثَنَا مُحَمَّدُ بْنُ الْعَلَاءِ حَدَّثَنَا أَبُو بَكْرِ عَنْ عَاصِمٍ قَالَ سَمِعْتُ الْحَجَّاجَ وَهُوَ عَلَى الْمِنْبَرِ يَقُولُ اتَّقُوا اللَّهَ مَا اسْتَطَعْتُمْ لَيْسَ فِيهَا مَثْوِيَّةٌ؛ وَاسْمَعُوا وَأَطِيعُوا لَيْسَ فِيهَا مَثْوِيَّةٌ لِأَمِيرِ الْمُؤْمِنِينَ عَبْدِ الْمَلِكِ وَاللَّهُ لَوْ أَمَرْتُ النَّاسَ أَنْ يَخْرُجُوا مِنْ بَابٍ مِنْ أَبْوَابِ الْمَسْجِدِ فَخَرَجُوا مِنْ بَابٍ آخَرَ لَخَلْتُ لِي دِمَائُهُمْ وَأَمْوَالُهُمْ؛ وَاللَّهُ لَوْ أَخَذْتُ رِبْعَةَ بِمُضَرَ لَكَانَ ذَلِكَ لِي مِنَ اللَّهِ خَلَالًا؛ وَيَا عَذِيرِي مِنْ عَبْدٍ هَذِيلٍ يَزْعُمُ أَنَّ قِرَاءَتَهُ مِنْ عِنْدِ اللَّهِ وَاللَّهُ مَا هِيَ إِلَّا رَجَزٌ مِنْ رَجَزِ الْأَعْرَابِ مَا أَنْزَلَهَا اللَّهُ عَلَى نَبِيِّهِ عَلَيْهِ السَّلَامُ؛ وَعَذِيرِي مِنْ هَذِهِ الْحُمْرَاءِ يَزْعُمُ أَخَذَهُمْ أَنَّهُ يَزِمِي بِالْحَجَرِ فَيَقُولُ إِلَى أَنْ يَقَعَ الْحَجَرُ قَدْ حَدَثَ أَمْرٌ فَوَاللَّهِ لَأَدْعِيَهُمْ كَالْأَمْسِ الدَّابِرِ؛ قَالَ أَبُو بَكْرٍ بْنُ عِيَّاشٍ فَذَكَرْتُهُ لِلْأَعْمَشِ فَقَالَ أَنَا وَاللَّهِ سَمِعْتُهُ مِنْهُ

Muḥammad ibn al-‘Alā narrated to us Abu Bakr narrated to us from Aāshim he said I heard al-Ḥajjāj say upon the *minbar*: ‘Fear Allah as much as possible; there is no exception in it. Hear and obey the *Ameer al-Mu’mineen*, ‘Abd al-Malik. There is no exception in it. I swear by Allah, if order people to come but from a certain gate of the mosque, and they come out from another gate, their blood and their properties will be lawful for me. I swear by Allah, if I seize the tribe of Rabi’ah for the tribe of Muḍar, it is lawful for me from Allah. Who will apologise to me for the slave of Hudhail (i.e. Ibn Mas’ud) who thinks that his reading of the Qur’ān is from Allah. I swear by Allah, it is a rhymed prose of the Bedouins. Allah did not reveal it to his Prophet, peace be upon him. Who will apologise to me for these clients (non-Arabs). One of them thinks that he will throw a stone and when it falls (on the ground) he says: “Something new has happened.” I swear by Allah, I shall leave them (ruined and perished) like the day that passes away.’ Abu Bakr ibn ‘Ayyāsh said: ‘I mentioned it to al-‘Amash, he replied “I swear by Allah I heard it from him”’.¹⁷

حَدَّثَنَا قُطَيْبُ بْنُ نُسَيْرٍ حَدَّثَنَا جَعْفَرُ بْنُ يَحْيَى ابْنُ سُلَيْمَانَ (ح) حَدَّثَنَا سُلَيْمَانُ بْنُ دَاوُدَ عَنْ شَرِيكِ عَنْ سُلَيْمَانَ الْأَعْمَشِ قَالَ جَمَعْتُ مَعَ الْحَجَّاجِ فَخَطَبَ فَذَكَرَ حَدِيثَ أَبِي بَكْرٍ بْنِ عِيَّاشٍ قَالَ فِيهَا

¹⁶ Ibid. [Vol. 9, p. 80]

¹⁷ *Sunan* Abu Dāwud [Vol 4, no. 4645]

فَاسْمَعُوا وَأَطِيعُوا لِخَلِيفَةِ اللَّهِ وَصَفِيهِ عَبْدِ الْمَلِكِ بْنِ مَرْوَانَ. وَسَاقَ الْحَدِيثَ قَالَ وَلَوْ أَخَذْتُ رِبْعَةَ بِمُضَرَ وَلَمْ يَذْكُرْ قِصَّةَ الْحُمْرَاءِ

Qaṭn ibn Nusayr narrated to us Ja’far, namely Ibn Sulaymān narrated to us (ḥawala) Sulaymān ibn Dāwud narrated to us from Shareek from Sulaymān al-‘Amash he said: ‘I prayed the Friday prayer with al-Ḥajjāj and he addressed us. He then mentioned the *hadith* of Abu Bakr ibn ‘Ayyāsh. He said in it: Hear and obey the Caliph of Allah and his select ‘Abd al-Malik ibn Marwān. He then transmitted the rest of the tradition, and said: If I seized Rabi’ah for Muḍar. But he did not mention the story of the clients (i.e. non-Arabs).¹⁸

حَدَّثَنَا عُثْمَانُ بْنُ أَبِي شَيْبَةَ حَدَّثَنَا ابْنُ إِدْرِيسَ عَنْ الْأَعْمَشِ قَالَ سَمِعْتُ الْحَجَّاجَ يَقُولُ عَلَى الْمِنْبَرِ هَذِهِ الْحُمْرَاءُ هَبْرٌ هَبْرٌ أَمَا وَاللَّهِ لَقَدْ قَرَعْتُ عَصَا بَعْضًا لَأَذَرَهُمْ كَالْأَمْسِ الدَّاهِبِ؛ يَغْنَى الْمَوَالِي

Uthmān ibn Abi Shayba narrated to us Ibn Idris narrated to us from al-‘Amash he said: I heard al-Ḥajjāj saying: ‘These clients (i.e., non-Arabs) are to be struck and cut off. I swear by Allah, if I strike a stick with a stick, I would annihilate them like the day that passed away.’ He meant the non-Arab clients.¹⁹

حَدَّثَنَا إِسْحَاقُ بْنُ إِسْمَاعِيلَ الطَّالْقَانِيُّ حَدَّثَنَا جَرِيرٌ (ح) وَحَدَّثَنَا زُهَيْرُ بْنُ حَرْبٍ حَدَّثَنَا جَرِيرٌ عَنْ الْمُغِيرَةِ عَنْ الرَّبِيعِ بْنِ خَالِدٍ الضَّبِّيِّ قَالَ سَمِعْتُ الْحَجَّاجَ يَخْطُبُ فَقَالَ فِي خُطْبَتِهِ رَسُولُ أَحَدِكُمْ فِي حَاجَتِهِ أَكْرَمَ عَلَيْهِ أَمْ خَلِيفَتُهُ فِي أَهْلِهِ فَقُلْتُ فِي نَفْسِي لِلَّهِ عَلَى الْأَصْلَى خَلْفَكَ صَلَاةً أَبَدًا وَإِنْ وَجَدْتُ قَوْمًا يُجَاهِدُونَكَ لِجَاهِدَتِكَ مَعَهُمْ. زَادَ إِسْحَاقُ فِي حَدِيثِهِ قَالَ فَقَاتَلَ فِي الْجَمَاعَةِ حَتَّى قُتِلَ

Ishāq ibn Ismā’il al-Ṭālqānī narrated to us Jarir narrated to us (ḥawala) and Zuhayr ibn Ḥarb narrated to us Jarir narrated to us from al-Mughira from al-Rabeeh’ ibn Khālīd al-Ḍabbi he said, ‘I heard al-Ḥajjāj saying in an address: “Is the messenger of one of you in his need more honoured to him, or his Caliph in his family?” I thought in my mind, I make a vow for Allah that I shall never pray behind you. If I find people who fight against you, I shall fight against you along with them. Ishāq added in his version: ‘He fought in the battle of al-Jamājim until he was killed.’²⁰

¹⁸ Ibid. [no. 4647]

¹⁹ Ibid. [no. 4646]

²⁰ Ibid. [no. 4644]

حَدَّثَنَا أَبُو ظَفَرٍ عَبْدُ السَّلَامِ حَدَّثَنَا جَعْفَرٌ عَنْ عَوْفٍ قَالَ سَمِعْتُ الْحَجَّاجَ يُحْطَبُ وَهُوَ يَقُولُ إِنَّ
مَثَلَ عُثْمَانَ عِنْدَ اللَّهِ كَمَثَلِ عِيسَى ابْنِ مَرْيَمَ ثُمَّ قَرَأَ هَذِهِ الْآيَةَ يَقْرُؤُهَا وَيَقْسِرُهَا ﴿إِذْ قَالَ اللَّهُ يَا
عِيسَى ابْنِ مَرْيَمَ اذْهَبْ إِلَى الْيَهُودِ الْفَاسِقِينَ الَّذِينَ يَقُولُ إِنَّ اللَّهَ بَعَثَ لَنَا طَائِفًا مِّنْ آلِ إِبْرَاهِيمَ إِنَّهُمْ
أَفْكَارٌ مُّشْوِشُونَ﴾

Abu Dhafr ‘Abd al-Salām narrated to us Ja’far narrated to us from ‘Auf he said - I heard al-Ḥajjāj addressing the people saying: ‘The similitude of ‘Uthmān with Allah is like the similitude of Jesus son of Mary. He then recited the following verse and explained it: ‘Allah said – O son of Mary I will take you back and raise you up to Me: I will purify you of the disbelievers,’ [3: 55].” He was making a sign with his hand to us and to the people of the Levant.²¹

Al-Walid bin ‘Abd al-Malik ibn Marwān was upon the *Sunnah* of his father, like father like son. It was stated in *Fath al-Bārī* by Ibn Ḥajar:

I read in *Kitāb al-Qaḍā’* by Abu Ali al-Karābīsi - al-Shafī’i reports from his uncle, he is Muḥammad ibn Ali, he said ‘Ibn Shihāb entered upon al-Walid bin ‘Abd al-Malik, and he asked him about the *ḥadith*: ‘Indeed, when Allah entrusts a servant with the *Khilāfah*, He records for him the good deeds and does not record for him the bad deeds.’ So he said to him in reply: ‘This is a lie!’ Then he recited the verse: ‘David, We have given you mastery over the land. Judge fairly between people. Do not follow your desires, lest they divert you from Allah’s path: those who wander from His path will have a painful torment because they ignore the Day of Reckoning,’ [38: 26]. Al-Walid – ‘Indeed, people are leading us away from our *Deen*.’²²

One shouldn’t be misled or deceived by al-Walid bin ‘Abd al-Malik and imagine that he somehow abandoned his vile doctrine. No, by Allah, it was nothing but embarrassment, since he found no escape and did not dare to openly declare the Qur’ān a lie. As for other cases, he was quite ready to do so. Take, for example, what is reported in *al-Aqd al-Fareed*:

al-Aṣma’i, from Ishāq ibn Yaḥyā, from ‘Aṭā ibn Yassār, he said: ‘I said to al-Walid bin ‘Abd al-Malik - Umar ibn al-Khaṭṭāb said: “I wish I

²¹ Ibid. [no. 4643]

²² Ibn Ḥajar *Fath al-Bārī* [Vol. 14, p. 98]

could leave this matter (the *Khilāfah*) having it neither for me nor against me.” So he replied: ‘You lie!’ I replied, ‘Or do you accuse him of lying?’ And I only escaped him by the skin of my teeth.

Whoever makes a *Deen* out of the accursed ‘Levantine Obedience,’ indeed has none to blame but himself when the Day of Judgement comes and his deeds are made to appear to him as the Qur’ān says:

كَسْرَابٍ بِقَيْعَةٍ يُخْسِبُهُ الظَّمَانُ مَاءً حَتَّىٰ إِذَا جَاءَهُ لَمْ يَجِدْهُ شَيْئًا وَوَجَدَ اللَّهَ عِنْدَهُ فَوَفَّاهُ حِسَابَهُ وَاللَّهُ سَرِيعُ
الْحِسَابِ

... like a mirage in a desert: the thirsty person thinks there will be water but, when he gets there, he finds only Allah, who pays him his account in full, Allah is swift in reckoning.²³

Or he finds that Allah had already brought forth his deeds and rendered them as scattered dust. As is cited by Abu Nu’aym in *Ḥilyat al-Awliyā’*:

حَدَّثَنَا عَبْدُ اللَّهِ بْنُ مُحَمَّدٍ (هُوَ عَبْدُ اللَّهِ بْنُ مُحَمَّدٍ بْنِ جَعْفَرٍ، أَبُو لَشَيْخِ الْأَصْبَهَانِيِّ) حَدَّثَنَا أَبُو عَلِيٍّ
بْنُ إِسْرَاهِيمَ، حَدَّثَنَا أُسَيْدُ بْنُ عَاصِمٍ، حَدَّثَنَا إِسْمَاعِيلُ بْنُ عَمْرٍو (هُوَ الْبَجَلِيُّ الْكُوفِيُّ)، حَدَّثَ
بِأَصْبَهَانَ حَدَّثَنَا قَيْسٌ (هُوَ بَنُ الرَّبِيعِ) عَنْ عَمَارِ الدُّهْنِيِّ عَنْ عَطِيَّةَ عَنْ أَبِي سَعِيدٍ قَالَ سَمِعْتُ
رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ يَقُولُ يَا أَيُّهَا النَّاسُ إِنَّهُ لَا دِينَ لِمَنْ دَانَ بِخُودِ آيَةٍ مِنْ كِتَابِ
اللَّهِ؛ يَا أَيُّهَا النَّاسُ: إِنَّهُ لَا دِينَ لِمَنْ دَانَ بِفِرْيَةٍ بَاطِلٍ ادَّعَاهَا عَلَى اللَّهِ؛ يَا أَيُّهَا النَّاسُ إِنَّهُ لَا دِينَ
لِمَنْ دَانَ بِطَاعَةِ مَنْ عَصَى اللَّهَ

Abdullah ibn Muḥammad narrated to us (he is Abdullah ibn Muḥammad ibn Ja’far, Abu al-Shaykh al-Aṣbahānī) Abu Ali ibn Ibrāhīm narrated to us Usayd ibn Aāsim narrated to us Ismā’il ibn ‘Amr narrated to us (he is al-Bajjalī al-Kufī, narrating in Isfahan) Qays (he is Ibn al-Rabbih) narrated to us from ‘Ammār al-Duni from ‘Aṭiyah from Abu Sa’eed he said I heard the Messenger of Allah peace and blessings be upon him saying: *O people, there is no Deen for the one who believes in denying a single verse from the Book of Allah. O people, there is no Deen for the one who believes in a falsehood he attributes to Allah. O people, there is no Deen for the one who believes in obeying those who disobey Allah.*²⁴

²³ Qur’ān, 24: 39

²⁴ Abu Nu’aym *Ḥilyat al-Awliyā’* [Vol. 10, no. 15738]

Additional references for this tradition are found in other collections; while the reported text is upright, admittedly the *isnād* isn't that good.²⁵

The third aspect: The permanent obligation coupled with the absolute prohibition

This third aspect rests upon the permanent obligation to refer to the *Sharī'ah* for judgment coupled with the absolute prohibition of referring to anything else. Earlier in chapter one we outlined the meaning of the trilateral root *ḥ/k/m* [ح ك م] and its seven-derived meanings from the Arabic language with specific reference to the Qur'ān and the Prophetic *Sunnah*.²⁶ As such, the matter of *al-Iḥtikām* [الاحتكام], or *al-Taḥākum* [التحاكم], is seeking the *ḥukm* of any type, be that in the form of passing verdict, the judicial, the implementation of such and legislation by necessity. Concerning the obligation of referring to the *Sharī'ah* exclusively, this is established by various textual evidences, such as where He the Exalted says:

فَلَا وَرَبِّكَ لَا يُؤْمِنُونَ حَتَّىٰ يُحَكِّمُوكَ فِيمَا شَجَرَ بَيْنَهُمْ ثُمَّ لَا يَجِدُوا فِي أَنفُسِهِمْ حَرَجًا مِّمَّا قَضَيْتَ وَيُسَلِّمُوا تَسْلِيمًا

*By your Lord, they will not be true believers until they let you decide between them in all matters of dispute, and find no resistance in their souls to your decisions, accepting them totally.*²⁷

فَإِنْ تَنَازَعْتُمْ فِي شَيْءٍ فَرُدُّوهُ إِلَى اللَّهِ وَالرَّسُولِ إِنْ كُنْتُمْ تُؤْمِنُونَ بِاللَّهِ وَالْيَوْمِ الْآخِرِ ذَلِكَ خَيْرٌ وَأَحْسَنُ تَأْوِيلًا

*If you are in dispute over any matter, refer it to Allah and the Messenger, if you truly believe in Allah and the Last Day: that is better and fairer in the end.*²⁸

وَمَا اخْتَلَفْتُمْ فِيهِ مِنْ شَيْءٍ فَحُكِّمُوهُ إِلَى اللَّهِ دَلِكُمُ اللَّهُ رَبِّي عَلَيْهِ تَوَكَّلْتُ وَإِلَيْهِ أُنِيبُ

²⁵ References for this include: *Tarikh Aṣṣbahān* [Vol. 1, p. 272] and in the *Shamela* copy from the *Ṭabaqāt al-Muḥadditheen bi-Aṣṣbahān* [Vol. 2, no. 598].

²⁶ See chapter 1. The Arabic edition repeats the entire section from chapter one here outlining the seven-derived meanings. For the sake of ease the repetition is omitted from the present English translation.

²⁷ *Qur'ān*, 4: 65

²⁸ *Qur'ān*, 4: 59

*Whatever you may differ about is for Allah to judge. [Say], 'Such is Allah, my Lord. In Him I trust and to Him I turn.'*²⁹

Concerning the first verse that was mentioned, undoubtedly this represents a comprehensive universal truth of Islam, which is presented in the form of a solemn oath. It is unrestricted by any condition, which negates the '*Imān*' of the one who does not refer judgement to the Prophet peace and blessings be upon him. There can be no room here for delusion or ambiguity claiming that going to judgement to the Messenger of Allah peace and blessings be upon him means going to judgement to his noble person alone (i.e. obedience to him in person when he is living), as has been falsely claimed by some of the so-called *da'wah* carriers of the supposed 'Islamic left,' or those who would call to secularism yet thinly try and veil it in a cloak of Islamic paraphernalia. Rather, the verse means by necessity, referring to judgement to his *Sharī'ah* and his methodology and not merely to his honourable self only, as is clearly evident without the need to think deeply about it. Doubters or even detractors should consider the following proofs. Firstly, to claim otherwise would mean that the *Sharī'ah* of Allah and the *Sunnah* of His Messenger would have no place after his death. In other words, the claim would be with the departure of the Prophet from this temporal world, Islam itself departs with him. The natural corollary to that would be to render the notion of the 'Seal of Prophethood' as meaningless; that he was not in fact a mercy sent to all mankind. Such arguments should be clear falsehood plain and simple for all to see. Additionally, if that line of reasoning were true, which it isn't, there wouldn't be any difference between the advent of his Prophethood and its absence. It would further call into question all that the Qur'ān mentioned, which in itself would be contrary to the established definitive proofs which we have.

Secondly, we recognise by necessity from the mass of historical reports that the Prophet peace and blessings be upon him did not undertake all aspects of ruling and judicial functions solely by himself. Rather, he appointed deputies, governors, judges, alms collectors in various places, including Mecca, Yemen and Bahrain. Individuals holding these positions of office were overseeing public affairs including the adjudication of disputes. This

²⁹ *Qur'ān*, 42: 10

fact wasn't even uncommon in the Prophetic city of Medina, with people referring to certain Companions for *legal responsa* and dispute resolution. Given all of this, the wording as carried in the two verses previously mentioned, [4: 65] and [42: 10] necessarily means that arbitration and supremacy is to the Law of Allah which His messenger, peace and blessings be upon him brought and not simply to the body or personage of the Messenger alone.

It cannot be argued that the legitimacy of going to those individuals for judgement only stems from the Prophet peace and blessings be upon him assigning them and appointing them in their tasks and that consequently, the one whom the Prophet did not appoint by text is not permitted to be sought out for judgement. This cannot be said as it contradicts the definitive texts from the Book and the *Sunnah* which command obedience to the lawfully constituted rulers. Likewise, it affirms the validity of a judge's ruling if he judges according to what Allah has revealed, without favouritism or injustice, and that he deserves reward and paradise for that, as per the saying from the Prophet, peace and blessings be upon him: '*Two judges are in the Fire, and one judge is in Paradise*,' [قاضيان في النار، وقاض في الجنة].³⁰ With regards to the validity of optional arbitration, such as arising from where He the Exalted and Majestic says: '*If you [believers] fear that a couple may break up, appoint one arbiter from his family and one from hers*,' [4: 35]. The majority of legal jurists hold that this is valid when initiated by the disputing spouses themselves, or through the intervention of their families, even if it is not by the express order, edict or even a directions notice arising from an official in a judicial capacity or even the ruler. No legal texts have reached us to censure this or require that it only arises from a judicial setting.

Given the above, any claims purporting to argue that other than the *Sharī'ah* is referred to for judgment is tantamount to denying the very essence of the final revelation as brought by the final Messenger, peace and blessings be upon him. As the saying goes, it is 'throwing the baby out with the

³⁰ As narrated in the *Sunan* collections of Ibn Mājah and al-Tirmidhi. The channel and wording which the latter records is: Muḥammad ibn Ismā'il narrated to us al-Ḥasan ibn Bishr narrated to me Shareek narrated to us from al-Amash from Sa'd ibn Ubaydah from Ibn Buraydah from his father, that the Prophet peace and blessings be upon him said: '*The judges are three: Two judges that are in the Fire, and a judge that is in Paradise. A man who judges without the truth, and he knows that - this one is in the Fire. One who judges while not knowing, ruining the rights of the people - so he is in the Fire. A judge who judges with the truth, that is the one in Paradise.*'

bathwater.' It is a denial of all the matters the Prophet peace and blessings be upon him declared prohibited; all the warnings he expressed regarding the leaders of misguidance, the evil of the sects of the *Khawārij*, and the tyranny of despotic rulers. So what benefit is there in all of that, if he is not to be referred to for judgment, meaning, if one does not return to him for *legal responsa*, adjudication, legislation, and its implementation? This view represents the denial and rejection of the *aḥādith* related to the leaders of innovation and oppressive tyranny, which in their collective are *mutawātir*, in the case where the Messenger peace and blessings be upon him stated that they would come after me (i.e. after his death) and that they would be in opposition to his *Sunnah*, in addition to explaining the manner of how they should be dealt with. We have mentioned some of these previously from the *aḥādith* of 'Ubādah ibn al-Ṣāmit, Abdullah ibn Mas'ud, Mu'adh ibn Jabal and others, may Allah be pleased with them all. And indeed, this view also represents a denial and blatant rejection of the *aḥādith* which always stipulate adherence to his *Sunnah*, especially during the times of alienation and *fitnah*, which are also in sum *mutawātir* and impossible to escape from in regards to their authenticity and certainty. Thus, this statement or viewpoint '*that referring back to the Messenger does not necessarily mean ruling by his law and methodology, but only means referring to his noble person*,' is, therefore a blatant destruction of reason and intellect. Moreover, it constitutes *Riddah* and manifest *kufir*. It is evil and even more vile than the words of the most extreme apostates during the time of Abu Bakr may Allah be pleased with him, regarding whom the Companions unanimously agreed on declaring them disbelievers and fighting them, and this too has been transmitted through *tawātur*.

The *ayah* therefore negates *al-'Imān* by way of a firm binding oath, of any human who rejects going to the *Sharī'ah* for judgement and that means the *Qur'ān* and the Prophetic *Sunnah*. Moreover, the *ayah* demands that the Muslim feels no resistance or discomfort in his being when he goes to the *Sharī'ah* for judgement, which could manifest in doubt, anger, dislike, aversion, contempt, disrespect or any other manifestation of resistance. The *ayah* is to be understood in its apparent meaning and general sense; we know of no exception or qualifier that diverts it from its clear evident meaning. Therefore, the '*Imān*' which is negated in the verse is the very foundation of

‘*Imān*’ itself, which is the opposite of *kufṛ* – disbelief; it is the ‘*Imān*’ which saves one from the eternal damnation of hell.

With all these decisive evidences we can state clearly that whoever does not judge by what Allah and His Messenger have decreed, nor refer back to them, nor seek judgment and resolution through them, and likewise, whoever feels the slightest discomfort toward their ruling, is a *kāfir* who has left the *Deen*. This may be through original *kufṛ*, in that he never truly entered into the fold of Islam, even if he outwardly displayed it in deceit and hypocrisy, knowingly and deliberately; or it may be that he was deluded, deceiving himself into thinking he is a Muslim who will be saved in the hereafter, while in reality he is not a Muslim, nor one who submits to Allah and His Messenger; or it may be through *Riddah* (apostasy) after having been a Muslim, by preferring misguidance over guidance, blindness over insight, and the worldly life over the hereafter. We seek refuge in Allah from all of that as it inevitably leads to the fire of hell, in utter disgrace and ruin.

That much is clearly shown in the wording expressed in the noble verse, where He the Exalted said: ‘*If you are in dispute over any matter, refer it to Allah and the Messenger, if you truly believe in Allah and the Last Day: that is better and fairer in the end,*’ [4: 59]. The verse is *muḥkam*, decisive, in that it clearly shows the necessity of returning to the rulings of Islamic law mentioned in the Qur’ān and Prophetic *Sunnah* in the event of any dispute. The wording of ‘*If you are in dispute over any matter,*’ is indefinite in the context of negation and includes all matters of *Deen* that believers may dispute over, whether minor or major, obvious or hidden. The obligation arising from this decisive verse provides certainty that every matter of potential disputation can be resolved by the Book of Allah and the Prophetic *Sunnah*, till the end of this temporal world. Indeed one can ponder that if these texts did not provide clarification upon all such matters, then the command to refer back to them would not have been made. It would be inconceivable that Allah would order referral back in matters of disputation to that which cannot provide resolution, whether one looks at this legally or rationally.

Looking at this matter from another aspect, one can discern that the verse has made referral back to the *Sharī’ah* as one of the conditions of ‘*Imān*’. Should that referral back not exist, then neither does ‘*Imān*’, since the wording has ‘*if you truly believe in Allah and the Last Day,*’ [4: 59]. Here arises the logical necessity that when the requisite is absent, the thing that depends on it

is also absent. The negation of ‘*Imān*’ in this context is not the negation of its obligatory or recommended completeness, but rather the negation of its very foundation, that is, the complete absence of ‘*Imān*’. This in turn, entails falling into *kufṛ* and exiting the fold of Islam. Referring back to Allah the Exalted and Majestic is referring to the *Sharī’ah*. Reference to anything *other than* Allah the Almighty, is nothing except what mankind legislates for itself. Whether that legislation arises from the Western liberal democratic maxim of ‘the rule of the people or majority,’ or it is from an appeal to abstract philosophical reasoning of the mind. That legislation and authority is not from the *Sharī’ah*. Rather, it is nothing more than an appeal to basic instincts and other nefarious concepts. The Qur’ānic texts leave no room for doubt that the *Sharī’ah* alone is sovereign, and that it is the sole reference for enacting the constitution, and any resultant laws or regulations. It is also the sole reference for all other matters too, be that in terms of customs, morals and traditions. It is the final recourse of all disputes, as Allah the Almighty says:

وَمَا اخْتَلَفْتُمْ فِيهِ مِنْ شَيْءٍ فَحُكْمُهُ إِلَى اللَّهِ ذَلِكُمُ اللَّهُ رَبِّي عَلَيْهِ تَوَكَّلْتُ وَإِلَيْهِ أُنِيبُ

Whatever you may differ about is for Allah to judge. [Say], ‘Such is Allah, my Lord. In Him I trust and to Him I turn.’³¹

In other words, here meaning that Allah is the One who is ultimate judge that decides between you and He declares what the ruling is. It is not lawful under any circumstances under the *Sharī’ah* to allow referral anything else, because it would invariably end up in *kufṛ* in Allah and His Messenger. Allah the Almighty explains clearly the response of the successful true believers in this matter:

إِنَّمَا كَانَ قَوْلَ الْمُؤْمِنِينَ إِذَا دُعُوا إِلَى اللَّهِ وَرَسُولِهِ لِيَحْكُمَ بَيْنَهُمْ أَنْ يَقُولُوا سَمِعْنَا وَأَطَعْنَا وَأُولَئِكَ هُمُ الْمُفْلِحُونَ

When the true believers are summoned to Allah and His Messenger in order for him to judge between them, they say, ‘We hear and we obey.’ These are the ones who will prosper.³²

³¹ Qur’ān, 42: 10

³² Qur’ān, 24: 51

Referring all matters to the *Sharī'ah* is a clear obligation upon the entire *Ummah* and all its constituent parts. The obligation is the cornerstone of 'Imān, its fundamental foundational essence. It is not simply that one would be sinful for non-adherence in this respect, but that it ultimately ends in becoming a *kāfir* and *murtad* (apostate), joining the ranks of the accursed *mushrikeen* and *kāfireen*. What has been outlined thus far is a core axiom of Islam and matter that wasn't unnoticed by the previous scholars either. Indeed, this is from the obvious and evident matters of Islam which the scholars have agreed upon, as Imām al-Jaṣṣās al-Ḥanafī said:

Whoever rejects something from the commands of Allah the Almighty or the commands of the Messenger of Allah, peace and blessings be upon him, is departs from (the fold of) al-Islam, regardless of whether he has rejected the matter arising from doubt in it or he has done so out of abandoning the acceptance and refraining from the submission.³³

أَلَمْ تَرَ إِلَى الَّذِينَ يَزْعُمُونَ أَنَّهُمْ آمَنُوا بِمَا أُنْزِلَ إِلَيْكَ وَمَا أُنْزِلَ مِنْ قَبْلِكَ يُرِيدُونَ أَنْ يَتَحَاكَمُوا إِلَى الطَّاغُوتِ وَقَدْ أُمِرُوا أَنْ يَكْفُرُوا بِهِ وَيُرِيدُ الشَّيْطَانُ أَنْ يُضِلَّهُمْ ضَلَالًا بَعِيدًا

*Do you not see those who claim to believe in what has been sent down to you, and in what was sent down before you, yet still want to turn to unjust tyrants for judgement, although they have been ordered to reject them? Satan wants to lead them far astray.*³⁴

Regarding the interpretation of the aforementioned verse Imām Ibn Kathir wrote the following in his acclaimed *Tafsir*:

This is a denial from Allah the Mighty and Sublime to those who claim to believe in what Allah has revealed to His Messenger and to the earlier Prophets, yet they refer to other than the Book of Allah and the *Sunnah* of His Messenger for judgment in various disputes. As has been mentioned concerning the reason of revelation for this verse that it was a man from the Anṣār and a Jew (who) had a dispute, and the Jew said, 'Let us refer to Muhammad to judge between us.' However the Anṣārī man said: 'Let us refer to Ka'b ibn al-Ashraf to judge

³³ al-Jaṣṣās *Aḥkām al-Qur'ān* [Vol. 2, p. 214]

³⁴ *Qur'ān*, 4: 60

between us.' It was also reported that the verse was revealed about some hypocrites who pretended to be Muslims, yet they sought to refer to the judgement of *Jāhiliyya*. Other reasons were also reported behind the revelation of the verse. However, the verse has a general meaning as it chastises all those who refrain from referring to the Qur'ān and *Sunnah* for judgment and prefer the judgement of whatever they chose of falsehood, which befits the description of *Tāghut* here.³⁵

I would argue that the Imām has spoken the truth in this regard, the only exception to the comment being that the verse did not only limit condemnation to those who seek *al-Taḥākum* [التحاكم] to the *Tāghut*, but rather it classified the action in two-significant ways. Firstly, '*Imān bil'Tāghut*', even though they had been commanded to specifically disbelieve in it and reject it. To submit to judgment by something is, inevitably, to have '*Imān* or 'faith' in that thing, and this 'faith' mentioned here is the opposite of *kufṛ*, which is disbelief. Hence, referring matters for judgment to Allah and His Messenger is part of the very essence of '*Imān*', while refraining from it is *kufṛ*, being utterly contradictory to Islam, taking one outside the fold of the *Deen*. It is not merely a matter of sinfulness or disobedience, as we have already explained. Secondly, the aim of the *Shayṭān* in seeking to allure them with this is not merely to lead them to sin or lessen their good deeds. It is far more insidious because he wants '*to lead them far astray*.' Such profound misguidance is *kufṛ* and the departure from Islam which would completely nullify all good deeds and we seek refuge in Allah from such evil. This is also the viewpoint of Ibn al-Qayyim and he argued: 'Whoever refers for judgment, or judges, by anything other than what the Messenger has brought, has judged by *Tāghut* and referred to it.'³⁶ Allah the Exalted has commanded us to disavow the *Tāghut*, He says:

وَالَّذِينَ اجْتَنَبُوا الطَّاغُوتَ أَنْ يَعْبُدُوهَا وَأَنَابُوا إِلَى اللَّهِ لَهُمُ الْبُشْرَىٰ فَبَشِّرْ عِبَادِ

³⁵ *Tafsir* Ibn Kathir [Vol. 2, p. 305]

³⁶ Ibn Qayyim '*Ilām al-Mu'awwaqeen* [Vol. 1, p. 57]

*And those who shun the Ṭāghut, lest they worship it, and turn to Allah in repentance, for them is good tidings. So give good tidings to My servants.*³⁷

So referring to the *Sharī'ah* of the Ṭāghut is one form of 'worship of the Ṭāghut,' which Allah has clearly commanded us to abandon and disavow. That turning away from the Ṭāghut is a prerequisite for turning towards Allah. One must ask, how can a person return to Allah and face his Lord, while he hasn't fully turned away from the Ṭāghut and forsaken it? Can one not seek that the Ṭāghut and Allah are at completely opposite poles? Allah the Exalted has commanded us with more than the mere avoidance of Ṭāghut, since He has commanded *disbelief* in it. Naturally this means a lot more than just mere avoidance, as it entails rejecting it, repudiating it, and denying it in all circumstances. If the Ṭāghut goes further and becomes aggressive, that is as an enemy or a belligerent foe, then we are commanded to despise it, loathe it, hate it, oppose it, and fight against it by every legitimate means. One can clearly discern this from the following verses, where He the Mighty and Sublime says:

لَا إِكْرَاهَ فِي الدِّينِ قَدْ تَبَيَّنَ الرُّشْدُ مِنَ الْغَيِّ فَمَنْ يَكْفُرْ بِالطَّاغُوتِ وَيُؤْمِنْ بِاللَّهِ فَقَدِ اسْتَمْسَكَ بِالْعُرْوَةِ الْوُثْقَى
لَا انْفِصَامَ لَهَا وَاللَّهُ سَمِيعٌ عَلِيمٌ؛ اللَّهُ وَلِيُّ الَّذِينَ آمَنُوا يُخْرِجُهُم مِّنَ الظُّلُمَاتِ إِلَى النُّورِ وَالَّذِينَ كَفَرُوا
أُولَئِكَ أَصْحَابُ النَّارِ هُمْ فِيهَا خَالِدُونَ

*There is no compulsion in Deen: true guidance has become distinct from error, so whoever rejects Ṭāghut and believes in Allah has grasped the firmest handhold, one that will never break. Allah is all hearing and all knowing. Allah is the ally of those who believe: He brings them out of the depths of darkness and into the light. As for the disbelievers, their allies are Ṭāghut who take them from the light into the depths of darkness, they are the inhabitants of the Fire, and there they will remain.*³⁸

Even the imitators of Ibn Taymiyyah who followed his flawed tripartite division of *Tawḥeed*, in particular the Wahhābist sect, which focuses almost entirely with its obsession upon 'graves' have come close to the truth

³⁷ *Qur'ān*, 39: 17. Here we have opted for quite a literal translation of the verse to demonstrate the wording of Ṭāghut as mentioned. Many translations have placed the wording of 'false gods,' here, such as in Abdel Haleem's rendition which is: 'There is good news for those who shun the worship of false gods and turn to Allah, so [Prophet] give good news to My servants.'

³⁸ *Qur'ān*, 2: 256/257

concerning this matter. Recall earlier the quote from Ibn Abi al-'Izz al-Ḥanafī from *Sharḥ al-Ṭahāwīyyah*.³⁹ In reply, I would argue that referring judgment to the Messenger is in its very essence referring judgment to Allah the Exalted, as have been exhaustively explained. Thus, 'referring judgment to Allah' is another expression for 'acknowledging the *Hākimiyyah* of Allah,' which is the pinnacle of divinity. And this, in itself, is the worship of Allah. Consequently there aren't two kinds of Thus, there are not two kinds of *Tawḥeed*, nor three, but only one. Yet Ibn Abi al-'Izz, though Ḥanafī in legal school, followed Ibn Taymiyyah in his flawed division of *Tawḥeed* and so he fell into confusion and failed to find the right path. 'Abd al-Raḥman ibn Ḥasan al ash-Shaykh said:

Likewise, the one who calls upon the judgement of other than Allah and His Messenger, has in fact abandoned what the Messenger peace and blessings be upon him brought, and has turned away from it and joined a partner with Allah in matters of obedience and contradicted what Allah's Messenger peace and blessings be upon him brought that is which Allah commanded him (with) when He said: 'So [Prophet] judge between them according to what Allah has sent down. Do not follow their whims,' [5: 49]. And He the Almighty says: 'By your Lord, they will not be true believers until they let you decide between them in all matters of dispute, and find no resistance in their souls to your decisions, accepting them totally,' [4: 65].⁴⁰

Shaykh Muḥammad ibn Ibrāhīm al ash-Shaykh said:

Making the judgement go to the *Sharī'ah* of Allah alone to the exclusion of all besides Him, is the brother of worshipping Allah alone to the exclusion of all besides Him. That is as the meaning of the two-testimonials is that Allah is the One who is worshipped alone without partner and that His Messenger is the one who is followed and judgement belongs only to what he came with. And the swords of

³⁹ Ibn Abi al-'Izz al-Ḥanafī *Sharḥ al-Ṭahāwīyyah* [p. 200 (*Shamela* edition)]. The Arabic edition repeats the quote in its entirety. For the translation this repetition has been omitted, see footnote 7.

⁴⁰ 'Abd al-Raḥman ibn Ḥasan al ash-Shaykh *Fath al-Majeed* [p. 392 (*Shamela* edition)]. An English version of this text is available published by *Dar al-Fikr* (1997).

Jihād are not drawn except for the sake of that (or its purpose), and its undertaking in terms of doing, abstaining and going to judgement at the occurrence of dispute or disagreement.⁴¹

In this respect the Shaykh had confusion here between *al-‘Ibādah* (worship) and *al-‘Ibādāt* (acts of worship), the latter relating to rites and ritual practices. Naturally, this is due to the primitive and degraded approach one comes to expect from the sect of Wahhābism, a reflection of their intellectual bankruptcy. Otherwise, referring judgment to the law of Allah, submitting to it with full acceptance and inner contentment, is indeed the very essence of ‘*Ibādah* and its central pillar. And Shaykh Muḥammad ibn Ibrāhīm al ash-Shaykh, may Allah have mercy on him, says in his commentary on the verse from [4: 60]:

Allah has negated *al-‘Imān* from anyone who wanted to seek *al-Taḥākum* (judgment) from other than what the Messenger peace and blessings be upon him and his family brought, among the hypocrites, as the Exalted said: ‘*Do you [Prophet] not see those who claim to believe in what has been sent down to you, and in what was sent down before you, yet still want to turn to unjust tyrants for judgement, although they have been ordered to reject them? Satan wants to lead them far astray,*’ [4: 60].’⁴²

It has been narrated from Imām Ja’far al-Ṣādiq that he said:

Even if a people worshipped Allah, established the *Ṣalāh*, gave the *Zakāt*, fasted the month of Ramaḍān and made Ḥajj to the house, and then said concerning a matter that the Messenger of Allah did ‘If only he had done other than that,’ or if they found in themselves *ḥaraj* (discomfort, unwillingness) in respect to that, they would be from the *mushrikeen*.⁴³

That is because what the Messenger of Allah, peace and blessings be upon him came with was only legislated from Allah the Exalted and because the

⁴¹ *Fatāwa’ al-Shaykh* [Vol. 12, p. 251]

⁴² Shaykh Muḥammad ibn Ibrāhīm al- ash-Shaykh *Risālah Taḥkeem al-Qawāneen* [pp. 3/4].

⁴³ The quote as it appears is in al-Shaykh al-Kulayni *al-Kāfi* [Vol. 1, p. 390]

command to obey Allah and His Messenger is a command with the obligation to follow the Book and the Prophetic *Sunnah*. It is for that reason that the foundational legal principle or maxim states: ‘Whoever accuses or doubts in the truthfulness of the Messenger of Allah peace and blessings be upon him in respect to the *Hukm* is a *kāfir*.’ Therefore, the *Sharī’ah* alone holds absolute authority over all aspects of life and human relations, and it is not permissible, according to the law to reject any part of Islam that has been established by evidence.

The fourth aspect: Every law other than the law of Allah is Kufr and every ruler who judges by other than the law of Allah is a Tāghut

Taken in the round, the texts established from the Book of Allah indicated that every law, other than that of the *Sharī’ah*, which includes man-made laws, are nothing but outright *kufṛ*. The texts did not only limit themselves to mentioning the absolute obligation of obedience to Allah and His Messenger, without any accompanying restriction or condition; that there is an outright prohibition of obedience to the creation in disobedience to the Creator, and reference and seeking judgement to any law, other than the *Sharī’ah* is likewise prohibited. Rather, the *Sharī’ah* condemned in the strongest manner appealing to the *Tāghut* by declaring that an act of *kufṛ*, which is in stark contrast to ‘*Imān* and Islam, a matter which ultimately leads to manifest misguidance and damnation in there hereafter. Laws, other than the laws of Islam are not revealed by Allah, nor are they derived from that which was sent down to the Messenger. Will and ultimately the human mind, if we are kind, are in actuality, what the law other than Islam is founded upon. Stated differently, desire and sheer tyranny drive lawmakers. Man legislates primary law, even secondary legal instruments founded upon that, which is ultimately there to govern human actions. But such legislation is *Tāghut*, because it is not engendering what will entail praise, reward or censure from Allah in this world, let alone repercussions in the hereafter. As noted previously already in this chapter, the wording of the verse at [4: 60] commands disbelief in the *Tāghut*.⁴⁴

⁴⁴ Here the Arabic edition repeats in full the verse at [4: 60] together with the *Tafsir* from Ibn Kathir. As both have already been cited (see footnotes 34/35), the repetition is omitted here from the English translation.

Moreover, the matter of *Ṭāghut* is broader than falsehood being far more insidious and atrocious. For *Ṭāghut* here means that which stands in opposition to ruling by what Allah has revealed, namely, ruling by *Jāhiliyya* and undoubtedly that is, by *kufir*. As mentioned earlier too, that is also the viewpoint held by Ibn al-Qayyim.⁴⁵ The *Ṭāghut* of every people is that to which they refer for judgment besides Allah and His final Messenger, or that which they follow without any clear guidance being derived from Allah, or that which they also worship instead of Allah. That worship is either that which is commonly viewed as partaking in rituals and veneration, or even with the worship of submission, entailing obedience and allegiance.

The *Ṭāghut* is also every caller towards falsehood and misguidance. As such, Iblees, may Allah's curse be upon him, is a *Ṭāghut*, indeed he is the head of the *Ṭawāgheet*, the high priest of *Ṭāghut* and its enchanter. A soothsayer and sorcerer are *Ṭāghut*, as is the ruler who rules and judges by other than what Allah has revealed and the one who legislates without reference to Allah, indeed he is from the heads and leaders of the *Ṭawāgheet*. Whoever were to have the audacity to call the people to worship him is also a *Ṭāghut*, among their vile heads. As is whoever is pleased to be worshiped besides Allah. One should note that this is not an exhaustive list, given that there are numerous *Ṭawāgheet*. As already outlined to date, one of the critical factors is to determine to where judgement is referred to and not necessarily to fixate on the position or office of holders of power. The system to which judgement is sought and referred to, if it is not ruling by what Allah has revealed, is a *Ṭāghut* and by necessity, it is a system of *kufir*. Such a system is therefore inherently not Islamic; every law other than the law of Allah is *kufir*, and every ruler who rules by other than what Allah revealed is by necessity, a wretched *Ṭāghut*. In *Majmu' al-Fatāwa* Ibn Taymiyyah said:

None has the right to judge between any of the creation of Allah, neither Muslims, disbelievers nor anyone else, except by the *Ḥukm* of Allah and His Messenger. Whoever seeks other than that is included in where He the Almighty said: 'Do they want judgement according to the time of pagan ignorance? Is there any better judge than Allah for those of firm faith?' [5: 50]. And He the Exalted said: 'By your Lord,

⁴⁵ The repeated quote from Ibn al-Qayyim, already mentioned (footnote 36) has been omitted.

they will not be true believers until they let you decide between them in all matters of dispute and find no resistance in their souls to your decisions, accepting them totally,' [4: 65].⁴⁶

Writing in *Minhāj al-Sunnah* Ibn Taymiyyah also said:

There is no doubt that whoever does not believe in the obligation of ruling by what Allah has revealed to His Messenger is a *kāfir*. Whoever deems it lawful [استحل] to judge between the people by what he views, and he holds as just, without following what Allah has revealed – he is a *kāfir*. There is no nation except that it orders ruling with justice and sometimes justice, as perceived by its senior leaders... So if they know that it is not lawful to rule except by what Allah has revealed and did not adhere to that but in fact declared it to be lawful for themselves to rule in opposition to what Allah has revealed, then they are *kuffār* (disbelievers).⁴⁷

There is also another quote of relevance here from Ibn Taymiyyah, where he said: 'When a person makes lawful what is unanimously agreed upon as *ḥarām*, or prohibits what is unanimously agreed upon as *ḥalāl*, or changes the unanimously agreed upon law, (then) he is a *murtad* (apostate).⁴⁸ Note the wording as expressed by Ibn Taymiyyah regarding this matter of changing the law. It is also noteworthy that he didn't expressly connect this to a matter of creedal belief. The famous Māliki scholar al-Shanqīṭi wrote the following in *Aḍwā' al-Bayān*:

Associating partners with Allah in His *Ḥukm* and associating partners with Him in '*ʾIbādah* are one and the same; there is absolutely no difference between them. Whoever follows a system other than Allah's system, or legislation other than Allah's legislation, and whoever worships an idol or prostrates before it, there is no difference between them at all. They are the same, and both are *mushrik* with respect to Allah.⁴⁹

⁴⁶ Ibn Taymiyyah *Majmu' al-Fatāwa* [Vol. 35, pp. 407/408]

⁴⁷ Ibn Taymiyyah *Minhāj al-Sunnah* [Vol. 5, p. 130].

⁴⁸ Op. Cit. [Vol. 3, p. 267]

⁴⁹ al-Shanqīṭi *Aḍwā' al-Bayān* [Vol. 7, p. 48 (*Shamela* edition)]

Since *al-Tashree* (legislation) and all *Alḥkām* (rulings), whether religious or universal decrees are among the exclusive attributes of al-Rububiyyah (Lordship), as indicated by the aforementioned verses, then whoever follows a legislation other than Allah's legislation has taken that legislator as a Lord, and has associated him with Allah.⁵⁰

The quotes from al-Shanqīṭi are noteworthy. The generality of the evidences shows the necessity of following what the Messenger, peace and blessings be upon him brought, because what was revealed to him was the only guidance. Allah the Exalted says:

ومن يشاقق الرسول من بعد ما تبين له الهدى، ويتبع غير سبيل المؤمنين، نوله ما تولى، ونصله جهنم وساءت مصيرا

*If anyone opposes the Messenger, after guidance has been made clear to him, and follows a path other than that of the believers, We shall leave him on his chosen path - We shall burn him in Hell, an evil destination.*⁵¹

Every *minhāj* other than the *minhāj* of guidance brought by the Messenger, peace and blessings be upon him and his family, is other than the way of the believers. And every way apart from this way is disbelief in Allah, for disbelief in Allah and His Messenger is contrary to the way of the believers and their *minhāj*, which in every respect is the opposite of disbelief. Similarly whoever accuses the Messenger, peace and blessings be upon him, in his judgment is a *kāfir*, because he has opposed the general evidences that link *al-Imān* to the obligation of following what Islam has brought. Writing in *al-Ittiṣām*, al-Shāṭibī said:

Every *bid'ah* (innovation), even if it is small, is either an addition to or a subtraction from the law, or an alteration of the sound foundation. All of this may be attached to what is divinely prescribed, thereby impairing what has been legislated. And if someone were to do such a thing deliberately within the very *Sharī'ah* itself, he would fall into *kufir*, for adding to it, subtracting from it, or altering it, whether greatly

⁵⁰ Ibid. [Vol. 7, p. 53 (Shamela edition)]

⁵¹ *Qur'ān*, 4: 115

or by little, is *kufir*. Hence, there isn't a difference between what is great or small.⁵²

Shaykh Muḥammad ibn Ibrāhīm said in his letter addressed to the *Ameer* of Riyadh:

And giving consideration to anything from the laws for the ruling by them, even if in the smallest amount, no doubt represents the absence of contentment with the *Hukm* of Allah and His Messenger, attributing the *Hukm* of Allah and His Messenger to that which is deficient, not undertaking the duty in respect to resolving the dispute, not delivering the rights to their *Arbāb*, not taking the ruling of the laws towards perfection and not fulfilling the duty towards the people in respect to solving their problems. The 'Itiqād (belief) in this is *kufir* removing one from the *Millah*. It represents a major and significant matter and is not from the matters of *Ijtihād*.⁵³

The words of the Shaykh are very good, however the Shaykh, may Allah have mercy upon him, tied that conclusion (i.e. of declaring disbelief) to it being representative of 'absence of contentment,' and attributing the *Hukm* to that which is deficient.' Although this is predominant, it nevertheless does not represent the reality upon which the *Hukm* is applied. That is because the mere legislation *from other than* Allah represents a contestation in His *Rububiyyah*, in the case where the one engaged in that makes of himself a *Rabb* (Lord), *Ilāh* (god) and a *Nidd* (rival) besides Allah. He is therefore a *Ṭāghut*, a *mushrik* and *kāfir*. His *kufir* is from the most repugnant forms of *kufir*, by his mere action alone, regardless of the circumstances of his heart. Otherwise, what is the judgement which is to be applied upon that man in the governate of Riyadh who is desperate to preserve his position and authority by enacting legislation that he knows for certain is in opposition to the *Sharī'ah* of Allah? That is while he is certain in himself that it is in violation to the *Sharī'ah* of Allah and that the *Sharī'ah* of Allah is best and the truth? Is he not a *Ṭāghut*? Is his love for the authority and *dunya* an excuse for him in

⁵² al-Shāṭibī *al-Ittiṣām* [Vol. 2, p. 61]

⁵³ *Majmu' Fatāwa Ash-Shaykh* [Vol. 12, p. 251 (Shamela edition)]

respect to the *kufir*? If not, we would be denying what Allah has stated and absolving the family of the Pharaoh concerning whom:

وَجَدُّوْا بِهَا وَاسْتَيْقَنْتَهَا أَنْفُسُهُمْ ظُلْمًا وَعُلُوًّا

*They denied them, in their wickedness and their pride, even though their souls acknowledged them as true.*⁵⁴

They did that in order to retain their absolute power and keep the Children of Israel in servitude.

أَنُؤْمِنُ لِبَشَرَيْنِ مِثْلِنَا، وَقَوْمِهَا لَنَا عَابِدُونَ

*(They said) 'Are we to believe in two mortals like us? And their people are our servants?'*⁵⁵

These people, who were the heads of the greatest state in the world at that time, possessed treasures, lived in their own bubble which they considered a paradise, and had rivers flowing beneath them. So, by Allah they were more deserving of an excuse! Shaykh Muḥammad Ḥāmid al-Faqī may Allah's mercy be upon him, said in his commentary upon MIAW's *Kitāb al-Tawḥeed*, regarding the one who goes to man-made law for judgment: 'Undoubtedly he is a *kāfir murtad* if he insists upon them and does not return to the ruling by what Allah has revealed. No name that he has been given and no actions from among the apparent acts of prayer, fasting, pilgrimage and so on, will benefit him (at all).'⁵⁶ Regarding referral to man-made laws for judgement, Shaykh Aḥmad Shākir, may Allah have mercy upon him, said:

This act represents aversion to the *Hukm* of Allah and to His *Deen* and means giving preference to the rulings of the people of *kufir* over the *Hukm* of Allah. None from among the people of the *Qiblah* regardless of their differences have any doubt in respect to declaring the one who states, holds or carries this disbelief, to be a *kāfir*.⁵⁷

⁵⁴ *Qur'ān*, 27: 14

⁵⁵ *Qur'ān*, 23: 47

⁵⁶ As cited in *Mughni al-Mureed al-Jāmi li-Shuruh Kitāb al-Tawḥeed li- Shaykh al-Islam Muḥammad ibn 'Abd al Wahhāb* (p. 24750). An open access version of this compendium of commentaries is available on *The Internet Archive*.

⁵⁷ Aḥmad Shākir *Umdat al-Tafsir* [Vol. 4, p. 157].

أَفَحُكْمَ الْجَاهِلِيَّةِ يَبْغُونَ وَمَنْ أَحْسَنُ مِنَ اللَّهِ حُكْمًا لِّقَوْمٍ يُوقِنُونَ

*Do they want judgement according to the time of pagan ignorance? Is there any better judge than Allah for those of firm faith?*⁵⁸

Regarding the *Tafsir* of this verse Imām Ibn Kathir famously penned the following:

Allah denounces those who deviate from Allah's commandments which include every type of righteous good thing and prohibit every type of evil, but they refer instead to opinion, desires and customs that people themselves invented, all of which have no basis in Allah's *Deen*. During the time of *Jāhiliyya* the people used to abide by the misguidance and ignorance that they invented by sheer opinion and lust. That Tartars abided by the law that they inherited from their king, Genghis Khan who wrote '*al-Yāsiq*' for them. This book contains some rulings that were derived from various religions, such as Judaism, Christianity and Islam. Many of these rulings were derived from his own opinion and desire. Later on these rulings became the followed law among his children, preferring them to the law of the Book of Allah and the *Sunnah* of His Messenger, peace be upon him. Therefore, whoever does this, he is a *kāfir*, who deserves to be fought against, until he reverts to the decisions of Allah and His Messenger, so that no law, major or minor is referred to except His Law. Allah said: '*Do they want judgement according to the time of pagan ignorance?*' Meaning, they desire and want this and ignore Allah's *Hukm*.⁵⁹

What misguidance is more abominable than the ruling by other than what Allah has revealed? And what desire is worse than to go for judgement to desires? And which *Ṭāghut* is greater than making the created human being undertake that which belongs to the Creator to establish, by making the human mind the legislator and the *Hākim*? And which *kufir* is greater in extent than that of those who are created following others who have been created like them, whilst leaving that which Allah has revealed upon His Messenger peace be upon him? Ruling by what Allah has revealed is adherence to the *Sharī'ah*,

⁵⁸ *Qur'ān*, 5: 50

⁵⁹ *Tafsir* Ibn Kathir [Vol. 5, pp. 251/252]

while ruling by other than what Allah has revealed is adherence to *kufir*. The *Sharī'ah* alone is the truth, and beyond the truth there is nothing but misguidance. Therefore it is not permissible for any human being to make something other than the *Sharī'ah* to be the foundation of judgment and ruling.

All that has been conjured from desires and misguidance including what has been called socialism, capitalism, liberal democracy, civilisational particularities, nationalistic and tribal customs and traditions, only represent the ruling by other than what Allah revealed. And for such ruling there is only the saying of the Exalted, '*Those who do not judge according to what Allah has revealed are the disbelievers*,' [وَمَنْ لَّمْ يَحْكَمْ بِمَا أَنزَلَ اللَّهُ فَأُولَٰئِكَ هُمُ الْكَافِرُونَ]. That is because every law the people go to for judgement other than Islam, as has been explicitly mentioned in the Qur'ān, is *Ṭāghut*, the *Jāhiliyya* of the ignorant, and man's return to apostacy that will make them fall into the fire of hell. This represents the pathway of *other* than the believers. As for the path of Islam, then that is the path of those who have believed and it is what provides life in the temporal domain and the hereafter. He the Exalted says:

يَا أَيُّهَا الَّذِينَ آمَنُوا اسْتَجِيبُوا لِلَّهِ وَلِلرَّسُولِ إِذَا دَعَاكُمْ لِمَا يُحْيِيكُمْ وَاعْلَمُوا أَنَّ اللَّهَ يَحُولُ بَيْنَ الْمَرْءِ وَقَلْبِهِ
وَأَنَّهُ إِلَيْهِ تُحْشَرُونَ

*O you who believe - respond to Allah and His Messenger when he calls you to that which gives you life. Know that Allah comes between a man and his heart and that you will be gathered to Him.*⁶⁰

Sayyid Quṭb said: 'There is but one *Sharī'ah*; it is the *Sharī'ah* of Islam, and everything besides it is but vain desires.'⁶¹ From the sum of these texts it is evident that the *Hukm* by other than the *Sharī'ah* of Allah represents *al-Kufir al-Ṣarāḥ al-Buwaḥ* – the clear, explicit and manifest disbelief. Every statute, law, system and constitution that does not emanate from the Islamic doctrinal creed is a *Ṭāghut* which is obligatory to disbelieve in. That is because Islam is the *Deen* which Allah revealed upon His Messenger Muḥammad, peace and blessings be upon him, and it is the complete and final Deen. As such no Deen

⁶⁰ Qur'ān, 8: 24

⁶¹ Sayyid Quṭb *Ma'ālīm fi-Ṭāriq* [p. 217, (Arabic edition)]. We have slightly curtailed the quote which continues with the mention of two-verses [5: 50] and [45: 18] that have already been covered thus far.

other than it and no *Sharī'ah* other than its *Sharī'ah* is accepted from humanity and indeed even the *Jinn*.

As for Western democracy, which at least nowadays in theory assigns sovereignty to man, then it is a system formulated by man from his deficient mind which does not encompass all matters, not to mention its exposure to whims, desires, misguidance and its subservience to self-egoism, tribalism, nationalism, factional interests, classism and prejudice. Even if we were to suppose, for the sake of argument, that Western democracy was complete, acceptable rationally, it is still nevertheless definitely not from what Allah has legislated. It is not from Islam because Islam is what Allah legislated and not the mind or any human being, regardless of the extent of its completeness, its conformity to the mind, concord with nature or the absence of all that. Similarly, in respect to whoever did that believing that leaving the *Hukm* by what Allah has revealed is allowed and permitted for him, even if in this case he believed that the *Sharī'ah* of Allah is the best, most complete and has precedence.

In addition to the one who did not rule by what Allah revealed by making light of the *Sharī'ah* and deriding it or due to his dislike, aversion, antipathy, indifference towards it, or contempt for it, or due to viewing it to be inferior, all of these are disbelievers definitely with a disbelief that removes one from the fold of Islam and makes all acts null and void. That is in accordance with the certain *ijmā'* (consensus) of the *Ummah* based upon the explicitly clear definite texts. However, what is said concerning the one who 'rules by other than what Allah has revealed' in his action alone whilst conceding that he is sinful and in the wrong but has followed his desire for the rule or authority or done so due to partiality towards a relative or friend, or because he was seduced by a financial interest or bribery. That is whilst he does not believe in anything from the aforementioned false beliefs, so he does not believe in the inappropriateness or unsuitability of Islam for life, nor the permissibility of ruling by other than what Allah has revealed. Whether he views the *Sharī'ah* of Allah to be better than other than it or does not, or in the possibility of applying it if he does not believe in it and in the case where he does not do it due to making light of the *Sharī'ah* of Allah and deriding it or due to his dislike, aversion, antipathy, indifference towards it or contempt for it or due to viewing it to be inferior. Concerning this matter there exists a difference of opinion among the scholars. Some of them said even though he is

deserving of the three labels of *kāfir*, *fāsiq* and *dhālim*, as per the Qur’ānic text, he is not altogether removed from the fold because his *kufr* is of a ‘lesser nature,’ hence the phrase - ‘*kufr duna kufr*.’ Similar has been said with inserting the other categories in this phrasing. Other scholars have said that he is only deserving of the label of the *fisq* and *dhulm* in general. As for the label of *kufr* then he is not deserving of that, except in respect to the one who is linked to a matter that makes one a *kāfir*. That is due to indications and evidences which they stated specifies the statement of Allah the Exalted in the verse at [5: 44]. This opinion, in essence does not differ from the previous one. Also, from among the scholars are those who said that he is a *kāfir*, *fāsiq* and *dhālim* as per the Qur’ānic text meaning that he is deserved of those *Sharī’ah* names and descriptions, applying to the same person at the same time. And that in its apparent meaning it removes the person from the fold of Islam, in the case where the *fisq* and the *dhulm* here remove him also by necessity. This represents the truth that we follow in our *Deen* and here we would refer the reader to the chapters in our separate standalone work on *Hākimiyyah* which cover the arguments in relation to doubts raised regarding the one who doesn’t rule by what Allah has revealed.

The fifth aspect: The obligation to abandon all matters that do not emanate from the Islamic creed

Fundamentally this is because each and every legislator *other than* Allah the Almighty is a *Tāghut*, and all *Tāghut* are to be rejected and disbelieved in, as He the Mighty and Sublime says:

لَا إِغْرَاءَ فِي الدِّينِ قَدْ تَبَيَّنَ الرُّشْدُ مِنَ الْغَيِّ فَمَنْ يَكْفُرْ بِالطَّاغُوتِ وَيُؤْمِنْ بِاللَّهِ فَقَدِ اسْتَمْسَكَ بِالْعُرْوَةِ الْوُثْقَى لَا انْفِصَامَ لَهَا وَاللَّهُ سَمِيعٌ عَلِيمٌ؛ اللَّهُ وَلِيُّ الَّذِينَ آمَنُوا يُخْرِجُهُم مِّنَ الظُّلُمَاتِ إِلَى النُّورِ وَالَّذِينَ كَفَرُوا أُولَئِكَ هُمُ الطَّاغُوتُ يُخْرِجُونَهُم مِّنَ النُّورِ إِلَى الظُّلُمَاتِ أُولَئِكَ أَصْحَابُ النَّارِ هُمْ فِيهَا خَالِدُونَ

There is no compulsion in religion: true guidance has become distinct from error, so whoever rejects false gods and believes in Allah has grasped the firmest hand-hold, one that will never break. Allah is all hearing and all knowing. Allah is the ally of those who believe: He brings them out of the depths of darkness and into the light. As for the disbelievers, their allies are

*false gods who take them from the light into the depths of darkness, they are the inhabitants of the Fire, and there they will remain.*⁶²

أَلَمْ تَرَ إِلَى الَّذِينَ يَزْعُمُونَ أَنَّهُمْ آمَنُوا بِمَا نُزِّلَ إِلَيْكَ وَمَا أَنْزَلَ مِن قَبْلِكَ يُرِيدُونَ أَن يَتَحَاكَمُوا إِلَى الطَّاغُوتِ وَقَدْ أُمِرُوا أَنْ يَكْفُرُوا بِهِ وَيُرِيدُ الشَّيْطَانُ أَنْ يُضِلَّهُمْ ضَلَالًا بَعِيدًا

*Do you not see those who claim to believe in what has been sent down to you, and in what was sent down before you, yet still want to turn to Tāghut for judgement, although they have been ordered to reject them? Satan wants to lead them far astray.*⁶³

وَالَّذِينَ اجْتَنَبُوا الطَّاغُوتَ أَنْ يَعْبُدُوهَا وَأَنَابُوا إِلَى اللَّهِ لَهُمُ الْبُشْرَىٰ ۖ فَبَشِّرْ عِبَادِ

*There is good news for those who shun the worship of false gods and turn to Allah, so give good news to My servants.*⁶⁴

From ‘Aisha, may Allah be pleased with her that she reported that the Messenger of Allah peace and blessings be upon him said: ‘*If anyone introduces into this affair of ours anything which does not belong to it, it is rejected.*’ It is narrated in the *Ṣaḥīḥ* of al-Bukhārī after which he mentioned, ‘It is narrated by Abdullah ibn Ja’far al-Makhzumi and ‘Abd al-Wāḥid ibn Abi ‘Awn from Sa’d ibn Ibrāhīm.’⁶⁵ It is also cited in the *Ṣaḥīḥ* of Muslim with the wording of ‘*Whoever does an act for which we have not commanded, thus it is rejected.*’⁶⁶ Consequently where he peace and blessings be upon him says: ‘*If anyone introduces into this affair of ours anything which does not belong to it, it is rejected,*’ this unequivocally necessitates the rejection of everything not emanating from this blessed *Deen*. Whether that is termed socialism, communism, capitalism, liberal democracy, nationalism or any other false ideology. It is rejected in totality and neither is it lawful to adhere

⁶² Qur’ān 2: 256. Abdel Haleem’s translation renders the term ‘*Tāghut*’ here as being ‘false gods.’

⁶³ Qur’ān 4: 60

⁶⁴ Qur’ān 39: 17

⁶⁵ *Ṣaḥīḥ* al-Bukhārī, [Vol. 2, no. 2550]. The *isnād* for the *ḥadīth* is ‘Ya’qub narrated to us from his father from al-Qāsim ibn Muḥammad from Aisha, may Allah be pleased with her.’ More than a dozen additional references are provided outlined in the Arabic edition for this famous tradition, among them being *Sunan* Abu Dāwūd [Vol. 4, no. 4608] and *Ṣaḥīḥ* Ibn Hibbān [Vol. 1, no. 27].

⁶⁶ *Ṣaḥīḥ* Muslim [Vol. 3, no. 1718]. That too is also reported in the *Musnad* collections of Ahmad [Vol. 5, no. 25171] and Abu Ya’la [Vol. 8, no. 4594].

to its principles. Islam is entirely based on referring back to Allah and His Messenger, and on acceptance and submission to them, it necessarily follows that everything which must be rejected and is forbidden to accept constitutes *kufir* and *Ṭāghut* in complete opposition to Islam.

A pillar among the pillars of the *Sharī'ah*, this *Ṣaḥīḥ ḥadīth* is truly foundational, serving as a primary basis for making Islam the criterion for what is lawful and unlawful. It is as though Islam were a mirror against which all rational laws, juristic efforts, and actions are to be presented - whatever of these conforms to Islam, the *Ummah* must adhere to it; and whatever lies outside of Islam, the *Ummah* must disbelieve in it, reject it, and anyone who adheres to it sins, and may even fall into *Riddah* and *kufir* from Islam. All approaches or solutions that are not founded upon the Islamic '*aqeedah* stem from *kufir* that is to be rejected, namely because it is not from what the final Messenger sent to mankind has brought. The intended meaning of his saying, peace be upon him in the aforementioned *ḥadīth*, '*into this affair of ours*,' relates to the *Sharī'ah*. Naturally, whatever is not in accordance with our matter is its opposite, its very contradiction which is *kufir* itself and *Ṭāghut* that which Allah the Exalted has commanded us to disbelieve in and reject.

The sixth aspect: The Sharī'ah remains the final arbiter even in matters of politics and international relations

Given that the final revelation sent to mankind has set out the detailed requirements of what is lawful and unlawful for human actions, be that in relation to marriage, divorce, consumption or transactions, likewise, it has also provided the framework through which foreign policy of an Islamic political entity is governed. In short, that policy is subject to the requirements as set by the Lawgiver. Whether that be for matters pertaining to war, peace or international agreements, the *Sharī'ah* has provided clarification on rulings governing each. Consequently, Muslims cannot or rather should not be entering into any international treaty or agreement that is fundamentally at odds with the requirements as set by the *Sharī'ah*.

Numerous evidences for this exist. As noted in the previous chapter, the Treaty of Ḥudaybiyyah is a case in point. Despite initial opposition from within the ranks of the Muslims at the time, the Prophet, peace and blessings be upon him was unwavering in his determination. To utilise modern

parlance, even though public opinion was vehemently opposed to what was seen as humiliating clauses being agreed to, that did not hold final sway over what was required to be undertaken. Indeed opposition to the Treaty ceased when the Prophet, peace and blessings be upon him categorically stated: '*I am the servant of Allah and His Messenger. I will not disobey His command, and He will not forsake me.*'⁶⁷ Following this opposition dissipated. As is well known, the command related to formulating this Treaty with the Quraysh was by the command of Allah the Exalted, ultimately leaving no option in the matter except to hear and obey. But it was also from the kindness, mercy, and gentleness of Allah toward them that He quickly informed them that the Treaty would not end up being in favour of the enemies of Islam but rather it would result in a crushing defeat for them. For the command of Allah must be executed, and His judgment must be obeyed. He rules, and none can overturn His ruling, nor repel His will. There is no god except Him, and no other lord besides Him. Upon Him we rely, by Him we are strengthened, and to Him we turn in repentance. What is the fundamental point underpinning this? It is that the Prophet peace and blessings be upon him, and the believers, had ultimately submitted to the ruling of the *Sharī'ah* in concluding and undertaking this Treaty. In His mercy, Allah the Almighty forgave the believers that were opposed to the Treaty and hesitating on that front.

Turning from the international to the domestic front, it is also noteworthy, as mentioned in the previous chapter and in our standalone work on the *Constitution of Medina*, is that the Prophet peace and blessings be upon him, concluded this agreement as per the requirements of the revelation. Among the many noteworthy provisions of this Constitution or Compact was the following clause:

وإنكم مهما اختلفتم فيه من شيء فإن مردده إلى الله عز وجل، وإلى محمد

Whatever you differ over in anything, its reference is to Allah the Mighty and Majestic and to Muḥammad.⁶⁸

Front and centre is the centrality of the *Sharī'ah* in the arbitration of potential differences and disputes which may arise. Be that on an individual or

⁶⁷ See the previous chapter for the referencing.

⁶⁸ Lecker records this as being clause (26) in Ibn Ishāq's rendition (p. 35). See Michael Lecker (2004), *The Constitution of Medina*, (The Darwin Press: Princeton).

collective basis, the supremacy of the *Sharī'ah* remained. Ultimate resolution was to be referred to Allah the Almighty and to Muḥammad, the Messenger of Allah, peace and blessings be upon him and his family.

Therefore in conclusion by way of both of these agreements, which have reached us by way of reports that are *tawātur*, there cannot be any doubt that the *Sharī'ah* was the sovereign determining factor, be that in domestic or international affairs. Based upon this we can certainly conclude that it is not permissible to conclude any agreement, treaty, or alliance that contravenes Islam, nor is it ever permissible to participate in any organisation, alliance, union, or international front whose charter contradicts the definitive rulings of Islam and fundamental principles of the *Sharī'ah*.

15. Inherent problems in seeking judgement in the land of *Kufr*

Although we have already addressed, or nearly completed addressing, the subject of *taḥākum* in the course of our discussion of the third aspect, *al-wajh al-thālith*, there nevertheless remains a significant issue that continues to disturb the hearts of believers in our present age, an age in which the entire world has, in effect, become *Dār al-Kufr*, governed by systems of disbelief and devoid of rulership by that which Allah has revealed, except, perhaps in some limited matters, such as what is referred to as 'personal status law,' and in voluntary arbitration between the Allah-fearing among the believers.¹

This issue is the resorting to, and litigation before, courts and legal systems whose foundations are established upon disbelief, and before judges who have not been appointed in accordance with the *Sharī'ah*. This is especially troubling when the disputing parties reside in a land where the majority of the population are from the original disbelievers, such as Britain, for instance. It is evident that the problem under discussion pertains specifically to *taḥākum* in the sense of judicial arbitration and legal enforcement. As for *fatwā*, that is, the seeking of a legal opinion or Allah's ruling on a matter in a non-binding manner, it can only be conceived through recourse to what has been revealed by Allah, namely, the Book of Allah and the *Sunnah* of His Messenger. Similarly, legislation, that is, the promulgation of statutes, regulations, and legal codes, cannot be conceived except as the prerogative of one who possesses authority or shares in governance. For a Muslim who possesses such authority, it is impermissible to legislate anything

¹ Here we have modified the chapter title slightly. Literally it reads '*Ishkāliyyat al-Taḥākum fi Dār al-Kufr*,' (The Problematics of *Taḥākum* in the Domain of Disbelief).

save that which has been soundly derived from the Book and the *Sunnah* through correct methodology; he is not permitted to legislate otherwise, particularly if he holds sole dominion. Nor is it permissible for him to accept rulership on the condition that he judges by other than what Allah has revealed under no circumstance whatsoever. Likewise, a Muslim is not permitted, of his own volition, to partake in governance based upon disbelief - *ḥukm al-kufr*, under any circumstance. The problem therefore becomes: What is the proper course of action for the individual Muslim who resides in *Dār al-Kufr*, that is, under the authority of disbelief, or under the rule of non-Muslims, when he is summoned to court by a claimant, or when he has a legitimate right against another but is unable to obtain it through reconciliation, voluntary arbitration, intercession, or any well-intentioned mediation? What if he is subjected to injustice by the ruling authorities themselves, or by another party, and he is unable to ward off the wrongdoing by any available means, except by seeking redress before the relevant court or a higher administrative authority? What, then, is to be done in such a case?

The correct position, supported by the evidences previously presented, is that it is permissible for him to do so, on the condition that he does not claim a right or seek to dismiss a claim or injustice except in accordance with the *Sharī'ah* of Allah, as he knows it with certainty, whether through his own *ijtihād* and derivation, by following another mujtahid in accordance with evidence, or by imitating someone he trusts among the people of *ijtihād* and *fatwā*. This applies equally to both form and substance; neither of the two has greater precedence in the necessity of recourse to what Allah has revealed. Thus for example, he is not permitted to contest a case on the basis of the expiration of a statutory time limit or the lapse of a procedural deadline stipulated by the legal system of disbelief, even if this facilitates or expedites the litigation process, for such provisions are impermissible in the *Sharī'ah* of Allah. In Allah's law rights are not nullified by lapse of time, nor are there prescribed time limits for the initiation of legal action. Likewise, if he is owed a debt by someone, he is permitted only to claim the principal amount from one who is solvent and capable, without any additional usurious increase - *ribā*, which the system of disbelief may deem legally due, as is the case with the overwhelming majority of such legal systems that consider *ribā* a legitimate entitlement. He is not even permitted to demand such an usurious increment by way of legal manoeuvring or 'tactical pressure' in order to

intimidate the opponent into conceding the principal and expediting its repayment in return for a so-called 'waiver' of the interest. If a judgment is passed in his favour that includes such usurious increase, it is incumbent upon him to reject it, inform the judge accordingly, and refrain from accepting or possessing it; it should be left in the custody of the court or its treasury. In all these circumstances, the believer is, in truth, seeking recourse to the law of Allah, not to the *Ṭāghut*. Were there a *Sharī'ah*-compliant judge, properly appointed and ruling by nothing but the *Sharī'ah*, he would have sought adjudication solely before him.

Thus, the claimant pursuing his rightful due in principal by necessity before a ruler or judge who is a disbeliever, or who adjudicates by a system of disbelief, or who has not been appointed through a legitimate *Sharī'ah* process, is nonetheless not seeking judgment except by what Allah has revealed. In so doing, he remains a Muslim and a believer. Whereas the judge or official who rules in his favour or enforces his right and ensures its retrieval, doing so on the basis that such is the stipulation of the law enacted by a sovereign parliament, or by a king who claims 'divine right,' or by virtue of an inherited custom long observed and accepted by the people across generations, wherein the people are regarded as the source of authority, such a person, holding to that conviction, is a *mushrik* and *kāfir*, and shall be among the inhabitants of the Fire on the Day of Resurrection, if the message of Allah had reached him and the proof was established against him, irrespective of whether his judgment in that specific matter happens to coincide with the ruling of Allah and His Messenger by chance, or whether it does not. As for the one who claims that such recourse constitutes *taḥākum* to the *Ṭāghut*, he has failed to consider the matter in its essence, with depth and precision. The entitlement of the creditor to the principal from the debtor is a matter upon which most legal systems, and perhaps all are in agreement. Thus, the one who refers the matter to the command and prohibition of Allah is the believing Muslim, whereas the one who refers it to custom, intellect, perceived benefit, parliamentary statute, or royal decree is a *mushrik* and *kāfir*. The matter then is one of belief in a specific authority and in referring judgment to it. That is to say, the issue is, firstly - the belief of the litigant and the authority to which he refers; second, the substance and content of the legal provision itself, and not, primarily, the identity of the individual implementing it, nor the excellence, or lack thereof, with which he carries out its application.

The *Ṭāghut* is not a specific individual; rather, it is a particular creed or conviction from which emerges a corresponding system. Alternatively, it may be understood as an abstract entity, one that may be represented by persons, institutions, or states. The matter, therefore, is not merely about the repayment of the principal or the lack thereof, nor is it solely about who possesses the authority to judge or the power to enforce that judgment. The same principle applies across all legal cases and matters. Among the indications of the invalidity of the position held by these individuals is their common tendency to differentiate between litigation in the courts and recourse to the police or enforcement agencies: they prohibit the former, sometimes even pronouncing *taḳfīr* on its basis, while they find no objection to the latter. It appears that they have understood *taḥākum* to refer solely to litigation or recourse to the courts, and this too is invalid, as we have clarified above, for it constitutes a delimitation without a valid textual basis. Indeed, there are distinctions between the role of the judge and that of the enforcement bodies, yet *taḥākum* remains *taḥākum*. It is the act of referring to a particular authority: to Allah and His Messenger in the case of the people of Islam, and to other than them, or to them in partnership with other sources in the case of the people of disbelief. There is no third alternative. The essential nature of the matter is not altered by the fact that what the judge undertakes differs from what the police officer performs, and that both of these are necessarily distinct from the role of the *muftī* and the legislator. For the inquiry here is not into the particularities of their respective duties or the limits of their jurisdictions, but rather: is the reference made exclusively to Allah and His Messenger, thus constituting Islam, faith, and *Tawḥeed*, or is it to other than them, either alone or jointly with them, thus constituting *Shirk* and *Kufr*? This becomes even clearer in light of the well-known *murāfaʿah* (legal address) of Jaʿfar ibn Abu Ṭālib, may Allah be pleased with him, before the Negus may Allah be pleased with him in Abyssinia; the report is transmitted by Ibn Ishāq in *al-Seerah al-Nabawiyyah* with the most authentic channels of transmission possible in this world:

حدثني محمد بن مسلم الزهري عن ابي بكر بن عبد الرحمن بن الحارث بن هشام المخزومي عن أم سلمة بنت أبي أمية بن المغيرة زوج رسول الله صلى الله عليه وسلم قالت لما نزلنا أرض الحبشة جاورنا بها خير جار، النجاشي أميًا على ديننا وعبدا الله تعالى لا نؤذي، ولا نسمع شيئًا نكرهه، فلما بلغ ذلك قريشا اتهموا بينهم أن يبعثوا إلى النجاشي فينا رجلين منهم

جلدين، فسأقت أم سلمة هند بنت أبي أمية بن المغيرة، رضوان الله وسلامه عليها، الحديث إلى أن قالت فلما جاءوا، وقد دعا النجاشي اسأفته فنشروا مصاحفهم حوله، سألهم فقال لهم ما هذا الدين الذي قد فارقت فيه قومكم، ولم تدخلوا في ديني، ولا في دين أحد من هذه الملل؟ قالت فكان الذي كلمه جعفر بن أبي طالب فقال: له أيها الملك إلخ

Muḥammad ibn Muslim al-Zuhri narrated to me from Abu Bakr ibn ʿAbd al-Raḥman ibn al-Ḥārith ibn Hishām al-Makhzumi from Umm Salamah bint Abi Umayyah ibn al-Mughira, wife of the Messenger of Allah, peace and blessings be upon him, she said: ‘When we settled in the land of Abyssinia, we found the best neighbour, the Negus. We were secure in our *Deen*, worshiping Allah the Almighty without harm or hearing anything we disliked. When the Quraysh learned of this, they conspired among themselves to send two harsh envoys to the Negus concerning us.’ Umm Salamah, Hind bint Abi Umayyah ibn al-Mughira may Allah’s peace be upon her, narrated the account until she said: ‘When they arrived, the Negus had summoned his bishops, who had spread their scriptures around him. He questioned them, saying, “What is this religion for which you have forsaken your people, entering neither my religion nor any of these other faiths?” She said: It was Jaʿfar ibn Abi Talib who responded to him, saying, ‘O King...’²

The narration is long and edifying, one can refer to it in the *Seerah* of Ibn Hishām or in the *Musnad* of Imām Aḥmad ibn Ḥanbal, and you will observe that Jaʿfar *only* litigated by the truth, and by what Allah had legislated. He did not flatter or compromise in matters of his religion, nor did he concern himself with the faith or the legal code of the Negus. Indeed, he undertook this litigation twice: once initially, and then again when the envoys of Quraysh returned and reopened the case; so Jaʿfar resumed litigation a second time, until Allah vanquished Quraysh and its delegates.

Is it conceivable then, that Jaʿfar al-Ṭayyār one of the eminent friends of Allah would have engaged in *taḥākum* to other than the law of Allah? Even if it were to be supposed that he erred in this out of ignorance or due to an interpretive mistake, did not Umm Salamah, Hind bint Abu Umayyah ibn al-Mughira al-Makhzūmiyyah, the Mother of the Believers and wife of the Messenger of Allah, upon him and his family be prayers, blessings, and salutations from Allah, inform him? She was his wife in whose house he spent

² Ibn Ishāq *al-Seerah al-Nabawiyyah* [Vol. 2, p. 177]

every ninth night, and whose bed he shared for six long years until Allah took him. And even if she had failed to inform him did not the all-Subtle, the all-Aware, who encompasses all things in knowledge, inform His Prophet and warn him through revelation from repeating such an act? Moreover, the actual condition of the Muslim in *Dār al-Kufr* is that much of the litigation before the courts and recourse to enforcement agencies occurs under coercion and duress. A Muslim may be under threat of deportation, or the termination of his right to political asylum, or he may be accused of supporting ‘terrorism,’ or something of that nature. Thus, the Muslim is *compelled by necessity* to defend himself. In such a state of *ḍarūrah mulji’ah* (absolute necessity), it is evident that there is no blame upon the Muslim for seeking judgment from the legal systems and courts of disbelief, even if those systems under review are in opposition to the *Sharī’ah*. For in that situation, the Muslim is one who is constrained and compelled and it is even permissible for him to utter words of disbelief or outwardly feign disbelief.

Some scholars have also cited, in support of the aforementioned position, the Prophet’s commendation of *Ḥilf al-Fuḍūl* (the Pact of al-Fuḍūl), and his statement that were he to be summoned to a similar pact in Islam, he would respond. We do not concur with this line of reasoning, as it constitutes a citation misplaced from its proper context, for several reasons. Firstly, his saying, peace and blessings be upon him and his family, ‘*If I were summoned to it in Islam, I would respond*,’³ is a case of a hypothetical counterfactual condition: he was not, in fact, summoned to such a pact during Islam, nor did he actually respond to one. At most, this constitutes praise for certain noble aims embodied in the pact, such as the prevention of injustice, support for the oppressed, and honourable treatment of visitors to the Sacred House, all of which are values affirmed and reinforced by Islam. However, such praise does not necessarily extend to the pact as such, as a formal *ḥilf*, i.e., a mutual contractual alliance for armed defence, or its procedures such as litigation, enforcement of rulings, and the like.

Secondly, all *aḥlāf* (alliances or pacts) were abrogated in Islam, based on the statement of the Prophet, peace and blessings be upon him and his family ‘*There is no pact in Islam*.’⁴ The Muslims are one *Ummah*, bound by one *ḥilf*.

³ Recorded for example in al-Bayhaqy *Sunan al-Kubra* [Vol. 6, no. 13080], narrated from Ṭalḥa ibn Abdullah ibn ‘Auf.

⁴ For example as recorded in the *Ṣaḥīḥ* of Muslim, narrated by Jubayr ibn Mu’ṭim.

This also applies to *taḥākum* to other than the *Sharī’ah*. Thus, it is firmly established that the very form of the pact was abrogated, along with certain of its procedures. Therefore, citing the Prophet’s commendation, peace and blessings be upon him and his family, of *Ḥilf al-Fuḍūl* is not valid, except insofar as it relates to those beautiful moral meanings that are affirmed by the *Sharī’ah* as previously mentioned. This is especially pressing given that many researchers and those who trespass upon the banquet tables of academic inquiry have turned *Ḥilf al-Fuḍūl* into something akin to Juḥā’s donkey, upon which everything is laden, or Juḥā’s nail, upon which everything is hung. Some of what they have sought to justify through *Ḥilf al-Fuḍūl* reaches the level of *kufr bawāḥ* (flagrant disbelief), Allah’s refuge is sought from such. For this reason, we have taken care here to warn against the misstep of certain scholars in their use of this pact as evidence in the issue of *taḥākum*, for they have no proof therein, none whatsoever.

16. Consensus upon the supremacy of the *Sharī'ah*

The *Ijmā'* (consensus) of the Companions was firmly established on the matter that *al-Siyādah*, sovereignty, belongs exclusively to the *Sharī'ah*. None of the Rightly Guided Caliphs ever deviated from any explicit text of the Book of Allah or the *Sunnah* of His Messenger peace and blessings be upon him, in any area of life. This adherence was grounded in their recognition that referring matters to the *Sharī'ah* is an essential condition of faith, for there is no true faith without it. Accordingly, the leaders who succeeded the Prophet peace and blessings be upon him would consult trustworthy scholars regarding permissible matters, *mubāḥāt*, so as to adopt that which was easiest for the people and most effective in achieving sound outcomes. Yet, once a text from the Qur'ān or *Sunnah* was identified, they would not deviate from it or refer to anything else, in imitation of the Prophet peace and blessings be upon him and faithful adherence to his example.

The commitment of the Rightly Guided Caliphs, and other Companions, to the *ẓāhir* (apparent), *āmm* (general), and *muṭlaq* (absolute, unrestricted) meaning of the revealed texts was particularly intense. Umar ibn al-Khaṭṭāb, for instance, ruled that a woman was not entitled to inherit from the blood-money of her deceased husband. However, when al-Ḍaḥḥāk ibn Sufyān al-Kilābī, a Bedouin from the desert informed him that the Messenger of Allah peace and blessings be upon him had written to him instructing that the wife of Ashyam al-Ḍuḍābī be granted her share of her husband's *diyyah*, Umar retracted his opinion. Concerning this, Imām al-Shāfi'i commented as follows:

When the opposing report from the Messenger of Allah peace and blessings be upon him reached him, he deferred to the ruling of the Messenger and abandoned his own judgment. This was his practice in all matters, and so too should it be the case for the rest of the people.¹

It is known by sensory perception and rational judgment that the various fingers differ in utility and function, the unique role of the thumb for example, is evident even to small children. Thus, Umar ibn al-Khaṭṭāb, Commander of the Faithful, ruled that different blood-compensations should be assigned to each finger, according to their relative value and function, a ruling seemingly in accordance with reason and public interest, *maṣlaḥah*. However, upon learning that the Messenger of Allah peace and blessings be upon him had declared equal compensation for all fingers, he discarded this *rationalist* and *utilitarian* basis altogether. He said clearly: 'Had we not received this report, we would have ruled otherwise!' or words to that effect. And many similar instances are authentically narrated from Umar may Allah be pleased with him.

The pinnacle of commitment to the *Sharī'ah* was exemplified by the first Caliph, Abu Bakr al-Ṣadeeq, may Allah's pleasure and peace be upon him, in his unwavering insistence on following what had been brought by the *Sharī'ah* and commanded by the Messenger of Allah peace and blessings be upon him even when, in contrast, there existed a seemingly reasonable opinion that appeared more suitable to the specific circumstances faced by the nascent Islamic state. When the Messenger of Allah peace and blessings be upon him passed away, and a portion of the Arabs apostatised from Islam, Abu Bakr resolved to fight those who refused to pay the *Zakāt*. At that time, Umar ibn al-Khaṭṭāb said to him: 'How can you fight them, when the Messenger of Allah peace and blessings be upon him said - *I have been commanded to fight the people until they say: Lā ilāha illa Allah (there is no god but Allah). Whoever says Lā ilāha illa Allah has protected his blood and property from me, except by its due right?*' But Abu Bakr replied: 'By Allah, I shall indeed fight those who make a distinction between that which the Messenger of Allah peace and blessings be upon him joined together.' Umar then came to agree with him and followed his position. Abu Bakr did not give weight to any

¹ al-Shāfi'i *al-Risālah* [p. 221, no. 1178/1179 (*Dar an-Nafaes*, 2010 print edition)]

contrary opinion or counsel, because he possessed a ruling from the Messenger of Allah peace and blessings be upon him concerning those who distinguish between *Ṣalāh* and *Zakāt*, who sought to alter the religion and its rulings, and who had taken a militant stand against the *Sharī'ah*.²

It is narrated that Imām Ṭāwus used to pray two *rak'ahs* after the 'aṣr prayer, and Ibn 'Abbās, may Allah be pleased with them both rebuked him. Ṭāwus responded with a personal interpretation saying: 'The prohibition only applies when one is led by it into delusion,' or words to that effect. Ibn 'Abbās replied: 'But the Prophet peace and blessings be upon him indeed forbade prayer after 'aṣr! And I do not know whether there is punishment for it or reward for Allah, Exalted is He, says: *'When Allah and His Messenger have decided on a matter that concerns them, it is not fitting for any believing man or woman to claim freedom of choice in that matter: whoever disobeys Allah and His Messenger is far astray.'*³ Imām al-Ḥākim said: 'This *ḥadith* is *Ṣaḥīḥ* according to the conditions of the two Shaykhs (*sic.* al-Bukhārī and Muslim), and it conforms to what we have previously cited concerning the emphasis upon following the *Sunnah*.⁴ Al-Dhahabī concurred with al-Ḥākim's authentication.

What is significant here is the principled stance taken by the Imām, the learned *ḥabir* and ocean of knowledge, Ibn 'Abbās may Allah be pleased with them, toward the commands and prohibitions of Allah, irrespective of whether the specific matter, in this case, the performance of *nāfilah* prayers after 'aṣr is itself subject to scholarly disagreement. In fact, the more probable view is that there is no harm in praying after 'aṣr, though it is not one of the regular supererogatory prayers. Ṭāwus had merely referred to an independent opinion and a rational explanation that was unsupported by any textual proof, and which amounted to an unacceptable speculation about the unseen. Such a referral is wholly invalid in absolute terms, and there is no doubt about this. The Companions, may Allah be pleased with them all, collectively could never have remained silent in the face of any action that contravened the *Sharī'ah*. On the contrary, their devotion to preserving the sovereignty of the

² An account of events regarding the 'wars of apostasy,' after the death of the Prophet, peace and blessings be upon him, can be reviewed in *The History of al-Ṭabari* [Vol. 10], translated by Fred Donner, [State University of New York Press: New York (1997)].

³ *Qur'ān*, 33: 36

⁴ Although not cited in the Arabic edition, this is found in the *Mustadrak* of al-Ḥākim [Vol. 1, no. 373, pp. 192/193].

Sharī'ah was unwavering. Thus, they carried out the command of the Caliph to fight those who withheld the *Zakāt*, once the evidence upon which his position rested became clear to them, and the truth, grounded in proof from revelation, became manifest. Indeed, Abu Bakr al-Ṣadeeq, may Allah be pleased with him, reached the pinnacle of strict adherence to the commands of the Messenger, peace and blessings be upon him, in another critical incident. When the matter was raised regarding halting the advance of the army of Usāmah ibn Zayd toward the lands of *al-Shām* (the Levant) which was then under Byzantine control, for the purpose of keeping the army in the capital of the Islamic state as a defensive measure. Meanwhile Khālīd ibn al-Walīd was already engaged in battle against the *al-Murtaddīn* (the apostates) in the region of al-Yamāmah, Abu Bakr stood resolute upon this point, responding with his famous declaration: 'Even if the wild dogs were to maul the anklets of the women of Madinah, I would not call back an army that was dispatched by the Messenger of Allah peace and blessings be upon him.'

Excerpt from Ibn al-Qayyim

Imām Ibn al-Qayyim cited a number of statements from the leading jurists, beginning with the era of the Companions and continuing through those who followed them, in his renowned and valuable work *I'lām al-Muwaqqi'īn*. He introduced the section under the heading 'The Statements of the Scholars on Adherence to the Texts,' writing as follows:

al-Shāfi'ī reported to us from Sufyān ibn 'Uyaynah, from Abdullah ibn Abī Yazīd, from his father, who said: Umar ibn al-Khaṭṭāb, may Allah be pleased with him summoned a Shaykh from the clan of Zuhrah who resided in our neighbourhood, and I went with him to Umar. Umar questioned him about a child born in the pre-Islamic period and the man said: 'As for legitimacy, the child belongs to such-and-such man; but as for the semen (biological paternity), it belongs to another.' Umar replied: 'You have spoken the truth, but the Messenger of Allah peace and blessings be upon him ruled by the *firāsh* (legal presumption of paternity due to lawful marital bed).'

al-Shāfi'ī further said: A trustworthy person informed me, whose integrity I do not question, that Ibn Abi Dhīb narrated to him from Mukhallad ibn Khuffāf, who said: 'I purchased a young slave boy made

use of his services, and later discovered a defect in him. I brought the matter before Umar ibn ‘Abd al-Azīz, who ruled that I should return the boy and repay the earnings I had taken from him. I then informed ‘Urwah ibn al-Zubayr, who said: “I shall visit Umar this evening and inform him that Aisha, may Allah be pleased with her, told me that the Messenger of Allah peace and blessings be upon him, ruled in such cases that the profit (or usufruct) goes to the guarantor.” Mukhallad continued: “So I went to Umar and conveyed to him what ‘Urwah narrated to me from Aisha, from the Messenger of Allah peace and blessings be upon him. Umar then said: “This is easier for me than the judgment I issued. O Allah, You know that I intended only justice in this matter, but now that a *Sunnah* from the Messenger of Allah, peace and blessings be upon him has reached me concerning it, I shall revoke my judgment and enforce the *Sunnah* of the Messenger. So ‘Urwah went to him, and Umar reversed his earlier ruling and ordered that I receive the *kharāj* from the one to whom he had initially awarded it.’

al-Shāfi‘ī said: A trustworthy person from the people of Madinah, whose integrity I do not suspect, informed me that Ibn Abi Dhīb narrated: ‘Sa’d ibn Ibrāhīm issued a judgment against a man based on the opinion of Rabī‘ah ibn Abi ‘Abd al-Raḥman. I informed him that the ruling of the Prophet peace and blessings be upon him in this matter contradicted what he had judged. Sa’d then turned to Rabī‘ah and said: ‘This is Ibn Abi Dhīb, and he is reliable in my eyes. He informs me of a report from the Prophet peace and blessings be upon him that contradicts the ruling I have issued.’ Rabī‘ah responded: ‘You exercised *ijtihād*, and the judgment has been executed.’ But Sa’d exclaimed: ‘How astonishing! Shall the judgment of Sa’d ibn Umm Sa’d be upheld while the judgment of the Messenger of Allah peace and blessings be upon him is rejected! No, by Allah, I shall revoke the judgment of Ibn Umm Sa’d and enforce the judgment of the Messenger of Allah peace and blessings be upon him!’ He then called for the document of the ruling, tore it up, and ruled in favour of the previously judged-against party.’

Abu al-Naḍr Hāshim ibn al-Qāsim said: Muḥammad ibn Rāshid narrated to us from ‘Abdah ibn Abi Lubābah, from Hishām ibn Yahyā al-Makhzūmī, that - A man from Thaqeef came to Umar ibn al-Khaṭṭāb and asked him about a woman who had menstruated after having

visited the House on the Day of Sacrifice ‘May she now depart (i.e., perform *naḥr*)?’ Umar replied: ‘No.’ The man from Thaqeef said: ‘But the Messenger of Allah peace and blessings be upon issued an edict for me in the case of a woman just like this, contrary to what you have said.’ Upon hearing this, Umar stood and struck him with a whip, saying: ‘Why do you seek a *fatwā* from me on something concerning which the Messenger of Allah peace and blessings be upon has already issued judgment?’ This narration has also been transmitted in similar form by Abu Dāwud.

Abu Bakr ibn Abī Shaybah said: Ṣāliḥ ibn Abdullah narrated to us, from Sufyān ibn ‘Āmir, from ‘Attāb ibn Maṣṣūr, who said: Umar ibn ‘Abd al-‘Azīz said: ‘I do not hold that anyone has a [legitimate] view when set against a *Sunnah* established by the Messenger of Allah peace and blessings be upon him.’

al-Shāfi‘ī said: ‘The *ijmā‘* of the people is that when the *Sunnah* of the Messenger of Allah, peace and blessings be upon him becomes manifest to someone, it is impermissible for him to abandon it in favour of the opinion of any person whatsoever.’ It has been transmitted by *tawātur*) from him that he said: ‘When a *ḥadīth* is authentic, then cast my opinion aside against the wall.’ It has also been reliably narrated from him that he said: ‘If you hear a *ḥadīth* from the Messenger of Allah peace and blessings be upon him and I have not acted in accordance with it, then know that my reason must have departed me.’ And it has been authenticated that he also said: ‘No one’s statement is to be upheld when it conflicts with the *Sunnah* of the Messenger of Allah peace and blessings be upon him.’

Isrā‘īl said: From Abu Ishāq, from Sa’d ibn Iyyās, from Abdullah ibn Mas‘ūd, that a man once asked him about a case in which a man married a woman, then saw her mother and was captivated by her, so he divorced his wife in order to marry her mother. Ibn Mas‘ūd said: ‘There is no harm in that.’ So the man married the mother. At the time, Ibn Mas‘ūd, may Allah be pleased with him was responsible for the *Bayt al-Māl* (public treasury). He used to sell its discarded items, giving much and taking little. When he arrived in al-Madinah, he consulted the Companions of Muḥammad, peace and blessings be upon him, and they informed him that: ‘This woman is not lawful for this man, and silver must not be exchanged except weight for weight.’

Upon returning, Ibn Mas‘ud went to seek the man but did not find him. He met his people instead and said: ‘What I gave as a fatwā to your companion is impermissible.’ Then he went to *al-ṣayārifah* (the money-changers) and said: ‘O community of money-changers! What I used to transact with you is impermissible. Silver is only lawful when exchanged equal in weight.’

In *Ṣaḥīḥ* Muslim, there is a narration from al-Layth from Yaḥya ibn Sa‘eed, from Sulaymān ibn Yasār, that Abū Hurayrah, Ibn ‘Abbās, and Abū Salamah ibn ‘Abd al-Raḥman were discussing the case of a pregnant widow whose husband had died. Ibn ‘Abbās said: ‘Her *‘iddah* is the longer of the two terms (i.e., delivery or four months and ten days).’ Abu Salamah said: ‘She is permitted to remarry as soon as she delivers.’ Abu Hurayrah said: ‘I am with my nephew [i.e., I support Abu Salamah].’ So they sent for Umm Salamah, who said: ‘Sabi‘ah gave birth shortly after her husband’s death, and the Messenger of Allah, peace and blessings be upon him, permitted her to remarry.’

And what has already been mentioned regarding the retraction of Umar ibn al-Khaṭṭāb, Abu Musa, and Ibn ‘Abbās, may Allah be pleased with them, from their personal *ijtihād* in favour of the *Sunnah* is sufficient as evidence.⁵

From all of this, we may deduce that there was an *ijmā‘* among the Companions that *al-Siyādah*, sovereignty, belongs exclusively to the *Sharī‘ah*, and that there is no legal legitimacy for sovereignty to reside in any other domain, whether that be the ruler or subject. This consensus of the *Ummah* remained firmly established throughout all succeeding eras, until the greater part of the Islamic world fell prey to modern Western colonialism at the beginning of the fourteenth century AH.

⁵ Ibn al-Qayyim, *I‘lām al-Muwaqqi‘īn* [Vol. 1, pp. 190/192 (print edition) *Dar al-Kotob al-Ilmiyah*, 2012]

17. Rational evidences for the supremacy of the *Sharī‘ah*

Rational inquiry establishes with certainty that sovereignty belongs to the *Sharī‘ah*, for the one who exercises *ḥukm* (judgment) over things, in terms of permissibility and prohibition, and over human actions, in terms of whether they are *wājib* (obligatory), *mandūb* (recommended), *makrūh* (disliked), or *mubāḥ* (permissible), and over matters and contracts, in terms of whether they are *asbāb* (causes), *shurūṭ* (conditions), *mawāni‘* (impediments), *ṣaḥīḥ* (valid), *bāṭil* (invalid), *fāsid* (defective), *‘azimah* (definitive rulings), or *rukhsah* (dispensations). All of this is not based on natural suitability or aversion, that is, the sensation of pleasure or pain, which may be discerned through direct experience or taste; nor is it grounded in notions of perfection or deficiency, which are also accessible through sensory perception and reason. Rather, the domain in question is that which relates to divine praise or blame, reward or punishment — in both this world and the Hereafter. In other words, the subject pertains to what arises in the Divine Essence in terms of wrath or pleasure, censure or commendation, will to punish or will to reward, in relation to specific human actions. And in this matter, reason has no capacity to issue any independent judgment, except to acknowledge that such a reality is rationally possible, and nothing more. Among the reasons for this are the following, firstly, that the actions of Allah in the realm of creation His rulings in the domain of *Sharī‘ah* are, in their final analysis, not subject to causal explanation. That is, they are not governed by any necessary causes that would *obligate* Allah to act in a specific way or rule in a particular manner. Instead, they ultimately revert, even after long causal chains and

intermediary factors, to pure will and unconditioned volition. Several verses of the Qur'ān present a clear exposition of this, namely:

فَعَالٌ لِّمَا يَرِيدُ

*He does whatever He wills.*¹

إِنَّ اللَّهَ يَحْكُمُ مَا يُرِيدُ

*Indeed, Allah commands what He wills.*²

يَخْلُقُ مَا يَشَاءُ وَيَخْتَارُ، مَا كَانَ لَهُمُ الْخِيَرَةُ، سُبْحَانَ اللَّهِ وَتَعَالَى عَمَّا يُشْرِكُونَ

*Your Lord creates what He pleases and chooses those He wills – they have no choice, so glory be to Allah, and may He be exalted above the partners they ascribe to Him.*³

لَا يَسْأَلُ عَمَّا يَفْعَلُ، وَهُمْ يُسْأَلُونَ

*He cannot be called to account for anything He does, whereas they will be called to account.*⁴

Now, the rational process is based on linking effects to causes, results to premises, and consequences to antecedents. But if the acts of Allah, Exalted is His Power and His rulings are not causally determined, then the intellect has no access to them in and of itself. All that the intellect can conclude is that such rulings are possible realities, and that it must await divine revelation to confirm their actual occurrence, should they emerge from the realm of possibility into actual existence. This applies equally to decrees related to creation and destiny - *aqḍiyah takwīniyyah taqḍīriyyah*, as well as to religious-legal rulings.

Secondly, that Allah, Exalted is His Majesty and Sublime is His Rank, is not bound to declare lawful what is pure and pleasurable, nor to prohibit that which is impure, painful, or harmful, even if this is indeed the general pattern of His rulings — especially in this blessed final *Sharī'ah* brought by Muḥammad, which was revealed as a mercy and kindness to His servants. Yet

¹ Qur'ān, 85: 16

² Qur'ān, 5: 1

³ Qur'ān, 28: 68

⁴ Qur'ān, 21: 23

this orientation does not arise from any obligation upon Him, nor from any authority above Him that commands Him — far be He exalted above that. Rather, Allah is the Absolute Master, the freely acting agent:

يَخْلُقُ مَا يَشَاءُ وَيَخْتَارُ، مَا كَانَ لَهُمُ الْخِيَرَةُ

*Your Lord creates what He pleases and chooses those He wills – they have no choice.*⁵

Nothing is impossible for Him, and nothing is beyond His capacity, except for what is necessitated by His essential truthfulness and reality that is, by His being *al-Ḥaqq* (The Truth) in His essence, His names, His attributes, and His acts. From this reality stem necessary conceptual, logical, and rational constraints, not limitations on His power, but intrinsic to His perfection. Nothing is *obligatory upon Him*, except that which He has obligated upon Himself. And nothing is *prohibited for Him*, except that which He has prohibited upon Himself, by virtue of His holiness, *al-Qudūsiyyah*, that is, by His being *al-Quddūs*, *al-Salām*: the One of absolute perfection, absolute beauty, and absolute majesty, free from all imperfection and deficiency.

Thirdly, that the acts of Allah, Blessed and Exalted is He, just like His Essence and Attributes, cannot be perceived through direct sensory experience in this world, for He, Glorified is He, remains behind the veil. Thus, no intellect or sense can independently discern His actions or intentions. There is therefore no recourse but to rely upon the truthful report from Allah concerning such matters. As He, Exalted, says:

رُسُلًا مُّبَشِّرِينَ وَمُنْذِرِينَ لِئَلَّا يَكُونَ لِلنَّاسِ عَلَى اللَّهِ حُجَّةٌ بَعْدَ الرُّسُلِ وَكَانَ اللَّهُ عَزِيزًا حَكِيمًا

*[They were] Messengers bearing good news and warning, so that mankind would have no excuse before Allah, once the Messengers had been sent. Allah is Almighty and all Wise.*⁶

And He, the Most High, also says:

⁵ Qur'ān, 28: 68

⁶ Qur'ān, 4: 165

وَكُلَّ إِنْسَانٍ أَلْزَمْنَاهُ طَائِرَهُ فِي عُنُقِهِ وَنُخْرِجُ لَهُ يَوْمَ الْقِيَامَةِ كِتَابًا يَلْقَاهُ مِنْشُورًا؛ أَفْرَأَ كِتَابَكَ كَفَىٰ بِنَفْسِكَ الْيَوْمَ عَلَيْكَ حَسِيبًا؛ مَنْ اهْتَدَىٰ فَأِنَّمَا يَهْتَدِي لِنَفْسِهِ وَمَنْ ضَلَّ فَأِنَّمَا يَضِلُّ عَلَيْهَا وَلَا تَزِرُ وَازِرَةٌ وِزْرَ أُخْرَىٰ؛ وَمَا كُنَّا مُعَذِّبِينَ حَتَّىٰ نَبْعَثَ رَسُولًا

*We have bound each human being's destiny to his neck. On the Day of Resurrection, We shall bring out a record for each of them, which they will find spread wide open. Read your record. Today your own soul is enough to calculate your account. Whoever accepts guidance does so for his own good; whoever strays does so at his own peril. No soul will bear another's burden. Nor do We punish until We have sent a Messenger.*⁷

Since legal judgment can only be affirmed on the basis of one of two sources, either the *Sharī'ah* or reason and its related faculties such as perception, taste, and so on — and since reason has no jurisdiction in this matter, it follows that the matter must be referred exclusively to the *Sharī'ah*. This is because the issue pertains to obligation and prohibition, i.e., to what Allah wills, what pleases or angers Him, and what He will hold accountable, reward, or punish for. And the intellect cannot, on its own, obligate or prohibit according to what Allah wills; it cannot know — without the truthful report, what is established in the Divine Essence. Such knowledge is not the remit of reason. It is therefore necessary that sovereignty belong to the *Sharī'ah* and that legal rulings are suspended until the coming of the Messenger, peace and blessings be upon him, with the divine message. As for the Messenger, the explicit wording of the aforementioned verse makes it clear: '*Nor do We punish until We have sent a Messenger.*' This negation of punishment prior to the sending of a Messenger peace and blessings be upon him, indicates that people were not legally bound by divine rulings or doctrinal beliefs prior to revelation. From this, the correct view emerges — that those known as *Ahl al-Fitrah* (the People of the Interval) are exempt from punishment. These are individuals who lived between the cessation of one divine message and the advent of another, and they are to be judged like those to whom no message ever reached. This includes those who lived before the Prophetic mission of the Messenger Muḥammad peace and blessings be upon him, or those to whom his message never reached. For Allah, Blessed and Exalted, does not punish anyone unless a warning precedes it, or unless clear evidence comes from

⁷ *Qur'ān*, 17: 13/15

Him. He does not punish any soul except for its own sin — and only after the warning has reached it, the proof has been established, and the truth has been made manifest. Accordingly, prior to the sending of the Messenger peace and blessings be upon him, it cannot be said that the rulings concerning things and actions are *ḥalāl* or *ḥarām* from a *Sharī'ah* standpoint, for no ruling exists at all in that state. Otherwise, we fall into contradiction.

This contradiction becomes apparent when one claims, as some have, that the *ḥukm sharī'ah* for a given matter, such as the *ḥill* (permissibility) of an act existed before the arrival of the *Sharī'ah*. Yet at the same time, they assert that *Sharī'ah* is the sole originator of rulings. But if the *Sharī'ah* had not yet been revealed, there would be no basis for any ruling. Thus, the ruling would be said to both exist and not exist at the same time, regarding one matter, under the same conditions, and this is logically impossible. Rather, prior to the arrival of the Messenger, a human being was free to act as he willed, without being bound by any ruling. There would be no liability before Allah until a Messenger was sent to him. Only then would he be obliged to act in accordance with the divine rulings conveyed to him by the Messenger, precisely as they were transmitted, without addition or omission. This remains the condition for all people after the advent of Muḥammad, peace and blessings be upon him, for the generality of Qur'ānic verses concerning *aḥkām* indicate that reference must be made exclusively to the *Sharī'ah* and full adherence is required. As Allah says:

وَمَا اخْتَلَفْتُمْ فِيهِ مِنْ شَيْءٍ فَحُكْمُهُ إِلَى اللَّهِ

*Whatever you may differ about is for Allah to judge.*⁸

فَإِنْ تَنَازَعْتُمْ فِي شَيْءٍ فَرُدُّوهُ إِلَى اللَّهِ وَالرَّسُولِ إِنْ كُنْتُمْ تُؤْمِنُونَ بِاللَّهِ وَالْيَوْمِ الْآخِرِ ذَلِكَ خَيْرٌ وَأَحْسَنُ تَأْوِيلًا

*If you are in dispute over any matter, refer it to Allah and the Messenger, if you truly believe in Allah and the Last Day: that is better and fairer in the end.*⁹

وَمَا كَانَ لِمُؤْمِنٍ وَلَا لِمُؤْمِنَةٍ إِذَا قَضَى اللَّهُ وَرَسُولُهُ أَمْرًا أَنْ يَكُونَ لَهُمُ الْخِيَرَةُ مِنْ أَمْرِهِمْ وَمَنْ يَعْصِ اللَّهَ وَرَسُولَهُ فَقَدْ ضَلَّ ضَلَالًا مُبِينًا

⁸ *Qur'ān*, 42: 10

⁹ *Qur'ān*, 4: 59

*When Allah and His Messenger have decided on a matter that concerns them, it is not fitting for any believing man or woman to claim freedom of choice in that matter: whoever disobeys Allah and His Messenger is far astray.*¹⁰

Accordingly, the sovereign authority, *al-ḥākim*, is the *Sharī'ah*, and there is no ruling before its arrival. It is the *Sharī'ah* alone that originates legal rulings upon its emergence; these rulings do not exist beforehand, they are non-existent, and have no ontological reality prior to revelation. As for what a human being legislates for himself, by his reason, or according to what is termed *natural law* or *natural rights*, or based on his passions and desires, this is not considered *Sharī'ah*, nor is it legally binding; it is merely non-obligation, meaning the absence of any *Sharī'ah* ruling, and non-existence is not a 'thing' in and of itself.

The intellect is not a sovereign authority, that is, it does not legislate in an originating or constitutive capacity, neither before the arrival of revelation nor after, nor under any circumstance whatsoever. As for the intellect's ability to affirm the existence of Allah, to know that He is the absolute sovereign, worthy of obedience, and that a specific man is a truthful Prophet sent by Allah and not a false claimant, and that such a Prophet is therefore necessarily infallible, *ma'sūm*, in what he conveys explicitly from Allah, and that truthfulness is good, falsehood is reprehensible, water is essential to life, and cold water is pleasing to the healthy thirsty person, all of these are either rational propositions, logical axioms, or empirical perceptions. They are not *aḥkām shar'iyyah* established by the *Sharī'ah* in the sense of originating new laws. Therefore, such knowledge is subject to reason and sensory perception, both before and after revelation, equally.

Thus, the intellect has defined functions, among them: rendering judgment on rational and sensory propositions; verifying the authenticity of transmission and narration, understanding texts and statements, whether religious or otherwise, and analysing concepts and meanings, whether *Sharī'ah* or not. In all this, the intellect sits sovereignly within its appointed domain, as honoured by Allah, granted free operation by His permission, and entrusted with that charge. This same intellect concluded before the arrival of revelation that Allah's will cannot be known necessarily except through truthful

¹⁰ *Qur'ān*, 33: 36

revelation. It continues to affirm this after revelation, with no alteration, no addition, and no reduction.

Hence, the claim made by some of the senior scholars that: 'The intellect is the sovereign that appoints the Prophet peace and blessings be upon him, and then abdicates,' is not valid. Indeed, this is one of the grievous slips of the scholars and a gross conceptual error, a sheer absurdity. The intellect was *never* a sovereign legislator in the detailed *Sharī'ah* sense outlined above, nor did it *appoint* the Prophets. Rather, the intellect merely recognised the truth of their persons, the substance of their call, and judged the truthfulness of their prophethood. It is Allah, Glorified are His Names and Exalted are His Attributes, who appointed them to the office of prophethood. And He is also the One who appointed the intellect to its specific role. Thus, the intellect remains in its divinely-assigned function perpetually. It is the foundation of moral responsibility. It has not abdicated, nor should it, nor can it, it is legally impermissible for it to do so. Only the one who has debased his own intellect and abandoned it altogether, from among those who disbelieve in Allah and His Messengers, such as atheists, materialists, secularists, capitalists, socialists, polytheists, dualists, and Trinitarians, has cast the intellect aside.

The true affront to the intellect, and the cause of its disempowerment, lies with those who out of injustice, rebellion, and ingratitude toward Allah's bounty, have perverted or nullified its role. Among them are the innovators and deviants, the rigid imitators among Muslims, foremost among them today being the enemies of Allah from among the *fuqahā' al-salāfīn*, government scholars; the arrogant pseudo-scholars, the stagnant conformists, the sycophants and many among the fraudulent preachers or extremist renegades, particularly the followers of the Wahhābī sect, who falsely claim *Salafīyyah*, among the followers of Ibn Bāz, Ibn 'Uthaymīn, and al-Albānī, and among the Madkhalīs and Jāmīs, such as al-Fawzān, al-Sadlān, and others of their ilk: the base, the superficial, the obscurantist, indeed, the traitors and deceivers.

And if you are in doubt concerning the accuracy of these descriptions, then examine their books, which they distribute freely, such as '*Obedying the Most Merciful through Obeying the Sultan*;' '*Qutbism is the Real Fitnah, Recognise It!*,' as well as '*al-Hākimīyyah and the Fitnah of Takfīr*,' and many others. Also consult their countless websites, which explicitly declare such positions as: 'Dividing *Tawḥeed* into a fourth category called *al-Hākimīyyah* is an invented innovation with no evidence;' 'The idea of a fourth category of

Tawḥeed was introduced by the Surūrīs and Qutbīs,’ and ‘The *bid‘ah* of *al-Ḥākimiyyah* is a crime against the Muslim Ummah,’ and so forth. May Allah disgrace them, distance them, fight them, curse them, and eradicate them.

18. What was the reality of *Shirk* for the nation of Lot?

Perhaps the best thing to conclude this present section is to revisit the previous statement that was made earlier in the present book from the chapter which covered the misguided legal edict by the so called ‘Council of Senior Scholars’ from Saudi Arabia. Within that chapter we stated that there is in fact an ugly ignorance concerning the nature and reality of the call that was made by the Prophets. It would seem that the members of this ‘Council’ can only conceive of that Prophetic call in a naïve and superficial manner. In their understanding, the call to worship Allah alone without partner doesn’t transcend the realm of rituals or ritualistic actions, being therefore limited to only matters such as prayer, sacrificial offerings, lighting candles etc. That is a manifest lie, an evil slur which levelled by their malignant tongues against the truth of their message and call. In particular, it overlooks the nature of the call made by the Prophet Luṭ (Lot) peace be upon him; one may ask – where was the issue of bowing or prostration mentioned during that narrative? In fact, the nature of his call was foremost one that centred upon the abandonment of *istiḥlāl* taking that which is prohibited and making it lawful, concerning *al-fawāḥish* (indecencies) and *al-munkarāt* (evil matters). There isn’t any reference or mention of statues, idols or prostration to a deity besides Allah or beseeching one. It would only be in the retarded mind-set of the ‘Council’ to claim that they did not perceive divinity other than Allah, except within a very limited sense.

Following on from this, by the grace of Allah, our attention was directed to reviewing in entirety, what has been mentioned concerning Luṭ and his

people, as is found in the order presented in the noble book. This is comprised into ten-sections.

First group of verses

Allah the Exalted and Majestic says:

وَلَوْطاً إِذْ قَالَ لِقَوْمِهِ أَتَأْتُونَ الْفَاحِشَةَ مَا سَبَقَكُمْ بِهَا مِنْ أَحَدٍ مِنَ الْعَالَمِينَ، إِنَّكُمْ لَتَأْتُونَ الرِّجَالَ شَهْوَةً مِنْ دُونِ النِّسَاءِ بَلْ أَنْتُمْ قَوْمٌ مُسْرِفُونَ، وَمَا كَانَ جَوَابَ قَوْمِهِ إِلَّا أَنْ قَالُوا أَخْرِجُوهُمْ مِنْ قَرْيَتِكُمْ إِنَّهُمْ أَنْفَاسٌ يَنْطَهُرُونَ، فَأَنْجَيْنَاهُ وَأَهْلَهُ إِلَّا امْرَأَتَهُ كَانَتْ مِنَ الْغَابِرِينَ، وَأَمْطَرْنَا عَلَيْهِمْ مَطَرًا فَانْظُرْ كَيْفَ كَانَ عَاقِبَةُ الْمُجْرِمِينَ

We sent Lot and he said to his people, 'How can you practise this outrage? No one in the world has outdone you in this. You lust after men rather than women! You transgress all bounds!' The only response his people gave was to say [to one another], 'Drive them out of your town! These men want to keep themselves chaste!' We saved him and his kinsfolk— apart from his wife who stayed behind - and We showered upon [the rest of] them a rain [of destruction]. See the fate of the evildoers.¹

Second group of verses

And when Our messengers came to Lot, he was anxious for them, feeling powerless to protect them, and said, 'This is a truly terrible day!' His people came rushing towards him; they used to commit foul deeds. He said, 'My people, here are my daughters. They are more wholesome for you, so have some fear of Allah and do not disgrace me with my guests. Is there not a single right-minded man among you?' They said, 'You know very well that we have no right to your daughters. You know very well what we want.'

He said, 'If only I had the strength to stop you or could rely on strong support!' They [the messengers] said, 'Lot, we are your Lord's messengers. They will not reach you. Leave with your household in the dead of night, and let none of you turn back. Only your wife will suffer the fate that befalls the others. Their appointed time is the morning: is the morning not near?' And so when what We had ordained came about, We turned their town upside down and rained down

¹ Qur'ān, 7: 80/84

stones of baked clay on it, layer upon layer, marked from your Lord. It is not far from the evildoers.²

Third group of verses

He said, 'Who but the misguided despair of the mercy of their Lord?' and then asked, 'Messengers, what is your errand?' They replied, 'We have been sent to a people who are guilty.' But We shall save the household of Lot, all except his wife: We have decreed that she will be one of those who stay behind.

When the messengers came to the household of Lot, he said, 'You are strangers.' They said, 'We have brought you what they said would never happen: we have brought you the Truth. We speak truly, so leave in the dead of the night with your household, and walk behind them. Let none of you look back. Go where you are commanded.' We made this decree known to him: the last remnants of those people would be wiped out in the morning. The people of the town came along, revelling, and he told them, 'These are my guests, do not disgrace me.

Fear Allah, and do not shame me.' They answered, 'Have we not told you not to interfere [between us and] anyone else?' He said, 'My daughters are here, if you must.' By your life [Prophet], they wandered on in their wild intoxication and the blast overtook them at sunrise: We turned their city upside down and rained on them a shower of clay stones. There truly is a sign in this for those who can learn—it is still there on the highway - there truly is a sign in this for those who believe.³

Fourth group of verses

Allah, Exalted be His Glory says:

وَلَوْطاً آتَيْنَاهُ حُكْمًا وَعِلْمًا وَنَجَّيْنَاهُ مِنَ الْقَرْيَةِ الَّتِي كَانَتْ تَعْمَلُ الْخَبَائِثَ إِنَّهُمْ كَانُوا قَوْمٍ سَوِيًّا، وَأَدْخَلْنَاهُ فِي رَحْمَتِنَا إِنَّهُ مِنَ الصَّالِحِينَ

We gave Lot sound judgement and knowledge and saved him from the community who practised obscenities - they were shameless people who broke Allah's law! We admitted him to Our mercy; he was a righteous man.⁴

² Qur'ān, 11: 77/83

³ Qur'ān, 15: 56/77

⁴ Qur'ān, 21: 74/75

Fifth group of verses

The people of Lot, too, called the Messengers liars. Their brother Lot said to them, 'Will you not be mindful of Allah? I am a faithful Messenger to you: be mindful of Allah and obey me. I ask no reward from you, for my only reward is with the Lord of the Worlds. Must you, unlike [other] people, lust after males and abandon the wives that Allah has created for you? You are exceeding all bounds,' but they replied, 'Lot! If you do not stop this, you will be driven away.'

So he said, 'I loathe what you do: Lord, save me and my family from what they are doing.' We saved him and all his family, except for an old woman who stayed behind, then We destroyed the others, and poured a rain of destruction down upon them. How dreadful that rain was for those who had been forewarned! There truly is a sign in this, though most of them will not believe: your Lord alone is the Almighty, the Merciful.⁵

Sixth group of verses

We also sent Lot to his people. He said to them, 'How can you commit this outrage with your eyes wide open? How can you lust after men instead of women? What fools you are!' The only answer his people gave was to say, 'Expel Lot's followers from your town! These men mean to stay chaste!' We saved him and his family - except for his wife: We made her stay behind - and We brought rain down on them. How dreadful that rain was for those who had been warned!⁶

Say [Prophet], 'Praise be to Allah and peace on the servants He has chosen. Who is better: Allah, or those they set up as partners with Him? Who created the heavens and earth? Who sends down water from the sky for you— with which We cause gardens of delight to grow: you have no power to make the trees grow in them— is it another god beside Allah? No! But they are people who take others to be equal with Allah. Who is it that made the earth a stable place to live? Who made rivers flow through it? Who set immovable mountains on it and created a barrier between the fresh and salt water? Is it another god beside Allah?

⁵ *Qur'ān*, 26: 160/175

⁶ *Qur'ān*, 27: 54/58

No! But most of them do not know. Who is it that answers the distressed when they call upon Him? Who removes their suffering? Who makes you successors in the earth? Is it another god beside Allah? Little notice you take! Who is it that guides you through the darkness on land and sea? Who sends the winds as heralds of good news before His mercy? Is it another god beside Allah? Allah is far above the partners they put beside him! Who is it that creates life and reproduces it? Who is it that gives you provision from the heavens and earth? Is it another god beside Allah?' Say, 'Show me your evidence then, if what you say is true.

Say, 'No one in the heavens or on earth knows the unseen except Allah.' They do not know when they will be raised from the dead: their knowledge cannot comprehend the Hereafter; they are in doubt about it; they are blind to it. So the disbelievers say, 'What! When we and our forefathers have become dust, shall we be brought back to life again? We have heard such promises before, and so did our forefathers. These are just ancient fables.' [Prophet], say, 'Travel through the earth and see how the evildoers ended up.'⁷

Seventh group of verses

And Lot: when He said to his people, 'You practise outrageous acts that no people before you have ever committed. How can you lust after men, waylay travellers,⁸ and commit evil in your gatherings?' the only answer his people gave was, 'Bring God's punishment down on us, if what you say is true.' So he prayed, 'My Lord, help me against these people who spread corruption.' When Our messengers brought the good news [of the birth of a son] to Abraham, they told him, 'We are about to destroy the people of that town. They are wrongdoers.'

Abraham said, 'But Lot lives there.' They answered, 'We know who lives there better than you do. We shall save him and his household, except for his wife: she will be one of those who stay behind.' When Our messengers came to Lot, he was troubled and distressed on their account. They said, 'Have no fear or grief: we shall certainly save you and your household, except for your wife— she will

⁷ *Qur'ān*, 27: 59/69

⁸ Literally the phrasing used is '*and you are cutting the way*.' Almost all the English translations that are available have provided an interpretation in translation by mentioning that it relates to some form of highway robbery. Although the translation here doesn't specifically help with the latter discussion to follow, it does enable an easier reading of the grouped verses that are being quoted.

be one of those who stay behind—and we shall send a punishment from heaven down on the people of this town because they violate [God's order].’ We left some [of the town] there as a clear sign for those who use their reason.⁹

Eighth group of verses

The people of Lot rejected the warnings. We released a stone-bearing wind against them, all except the family of Lot. We saved them before dawn as a favour from Us: this is how We reward the thankful. He warned them of Our onslaught, but they dismissed the warning - they even demanded his guests from him— so We sealed their eyes— ‘Taste My [terrible] punishment and [the fulfilment of] My warnings!’— and early in the morning a punishment seized them that still remains— ‘Taste My [terrible] punishment and [the fulfilment of] My warnings!’

We have made it easy to learn lessons from the Qur’ān: will anyone take heed? The people of Pharaoh also received warnings. They rejected all Our signs so We seized them with all Our might and power. ‘Are your disbelievers any better than these? Were you given an exemption in the Scripture?’ Do they perhaps say, ‘We are a great army and we shall be victorious?’ Their forces will be routed and they will turn tail and flee. But the Hour is their appointed time, the Hour is more severe and bitter.¹⁰

Ninth verse

Here, the mention of the Prophet Luṭ peace be upon him has come within the context emphasizing his message, coupled with a group of Messengers. Additionally, the torment and destruction of those people is also highlighted:

وَيَا قَوْمِ لَا يَجْرِمَنَّكُمْ شِقَاقِي أَنْ يُصِيبَكُمْ مِثْلُ مَا أَصَابَ قَوْمَ نُوحٍ أَوْ قَوْمَ هُودٍ أَوْ قَوْمَ صَالِحٍ وَمَا قَوْمَ لُوطٍ مِّنْكُمْ بِبَعِيدٍ، وَاسْتَغْفِرُوا رَبَّكُمْ ثُمَّ تُوبُوا إِلَيْهِ إِنَّ رَبِّي رَحِيمٌ وَدُودٌ

My people, do not let your opposition to me bring upon you a similar fate to the peoples of Noah or Hud or Salih; the people of Lot are not far away from you. Ask forgiveness from your Lord, and turn to Him in repentance: my Lord is merciful and most loving.¹¹

⁹ Qur’ān, 29: 28/35

¹⁰ Qur’ān, 54: 33/46

¹¹ Qur’ān, 11: 89/90

Last group of verses

Allah, the Almighty and Exalted says:

وَإِنْ يُكَذِّبُوكَ فَقَدْ كَذَّبَتْ قَبْلَهُمْ قَوْمُ نُوحٍ وَعَادٌ وَثَمُودُ، وَقَوْمُ إِبْرَاهِيمَ وَقَوْمُ لُوطٍ، وَأَصْحَابُ مَدْيَنَ وَكَذَّبَ مُوسَى فَأَمْلَيْتُ لِلْكَافِرِينَ ثُمَّ أَخَذْتُهُمْ فَكَيْفَ كَانَ نَكِيرِ، فَكَأَيِّنْ مِن قَرْيَةٍ أَهْلَكْنَاهَا وَهِيَ ظَالِمَةٌ فَهِيَ خَاوِيَةٌ عَلَى عُرُوشِهَا وَيَبْرِ مَعْطَلَةٍ وَفَصَّرِ مَشِيدٍ

If they reject you [Prophet], so did the people of Noah before them, and those of ‘Ad, Thamud, Abraham, Lot, Midian. Moses too was called a liar. I gave the disbelievers time, but in the end I punished them. How I condemned them! How many towns steeped in wrongdoing We have destroyed and left in total ruin; how many deserted wells; how many lofty palaces!¹²

وَإِنْ لُّوطًا لَّمِنَ الْمُرْسَلِينَ، إِذْ نَجَّيْنَاهُ وَأَهْلَهُ أَجْمَعِينَ، إِلَّا عَجُوزًا فِي الْغَابِرِينَ، ثُمَّ دَمَرْنَا الْآخَرِينَ، وَانْتَهَمُ لُوطًا لَّمِنَ الْمُرْسَلِينَ، وَبِاللَّيْلِ أَفْلًا تَعْقِلُونَ

Lot was also one of the Messengers. We saved him and all his Family - except for an old woman who stayed behind.¹³

Nothing is mentioned in the aforesaid verses except in relation to *al-fawāḥish* – the indecencies, that of lusting after men instead of women. There is only the addition that is made in chapter twenty-nine (*Surah al-‘Ankabut*), namely that of two crimes: committing highway robbery and undertaking evil deeds in their assemblies or councils. Indeed, nothing is to be found that mentions the wording of deities/gods, lords, statues or even idols. Neither is there any controversy in relation to bodily-resurrection (life after death and accountability), and there isn’t any wording that details any discussion concerning the essence of Allah, in either his nature or attributes. Amongst the exegetes of the previous generations, there is however disagreement about the precise meaning of the phrases used: ‘waylay travellers,’ and ‘commit evil in your gatherings?’¹⁴

Tafsir upon 29: 29

Imām al-Māwardi lucidly presented the varying viewpoints regarding the

¹² Qur’ān, 22: 42/45

¹³ Qur’ān, 37: 133/135

¹⁴ Qur’ān, 29: 29

Tafsir of this verse:

He the Exalted said: ‘*How can you lust after men,*’ which is having intercourse with men, ‘*and to waylay travellers.*’ In that, there are three-viewpoints: the first, that it (relates) to cutting the highway/pathway of the traveller, it was said by Ibn Zayd. Secondly, that they lusted for abominations with men, cutting the people from travelling cautioning about their abominable acts, that was the judgement of Ibn Shajara. Thirdly, it is the cutting (off) of offspring from women unto men. Ibn Wahb said, ‘seeking refuge from women unto men.’ ‘*And commit evil in your gatherings,*’ which is in their evil assemblies. Of this, there are four viewpoints: firstly, it is that they were breaking wind in their assemblies, as said by ‘Aisha, may Allah be pleased with her. Secondly, they were taking people along the way and mocking them, as reported by Umm Hāni from the Prophet peace be upon him. Thirdly, they were gathering upon men in their assemblies, as reported by Maṣṣūr from Mujāhid. Fourthly, it is whistling, play in the bath, throwing each other the *Julāhiq*, *Siḥāq* and the accompaniment of singing slaves in the assembly / gathering, as reported by al-Ḥākam and Mujāhid.¹⁵

The statement of Imām al-Māwardi about ‘cutting the pathway,’ in the first viewpoint, where it was stated ‘that it (relates) to cutting the highway/pathway of the traveller, it was said by Ibn Zayd’. Yet that doesn’t appear correct because it would make sense to cut off a road in the context of looting and so on, not merely the act itself. In fact, this isn’t the viewpoint of Ibn Zayd, as brought forth by the exegete Imām al-Ṭabari, he said: ‘Ibn Zayd said, concerning where he said: ‘*cutting off the highway,*’ he said: ‘*al-Sabeel,*’ (meaning) the road, which is the way of the traveller. They would intercept him and commit that indecent deed upon him.’

Therefore, the three viewpoints all of which increased and compounded their major crimes and are added to that of entering men from behind. As for

¹⁵ *Tafsir* al-Māwardi [Vol. 4, pp. 281/282]. In short, a picture of debauchery is described. The last sentence contains some Arabic words that are very rare and aren’t seen that often. For example, the word ‘*al-Julāhiq*’ relates to a small ball that is made of clay. The word ‘*Siḥāq*’ literally means rubbing or grinding, at times it is translated as being lesbianism, although more accurately it perhaps should be rendered as tribadism. The presence of the word seemingly to indicate that women were also involved as well.

what has been said of the second viewpoint in relation to the verse: ‘*And commit evil in your gatherings,*’ suggested by Imām al-Ṭabari by way of the report of Abu Ṣāliḥ Bāthām, the client of Umm Hāni, and that being reported from the Prophet peace be upon him. Abu Ṣāliḥ Bāthām, the client of Umm Hāni is not a strong channel, being singular and specifically discreet to that of Umm Hāni. He, having grown up in her household and led him to being a student of knowledge.

The fourth viewpoint, is completely fallen, (having a significant lacuna). Such pathways leading to either Mujāhid or Ibn ‘Abbās are broken-chain reports, or those which are containing narrators charged with lying and the rejected. The first viewpoint was that from the mother of the believers, ‘Aisha may Allah be pleased with her. Breaking wind in the assemblies is indeed ugly, no doubt, but that is not from amongst the noxious major sins. That would have been addressed in the call by the Prophet of Allah, Luṭ peace be upon him.

When taking all possibilities, foundations and matters into consideration, it would appear that the third viewpoint may be the most plausible. Namely, that they were they were gathering upon men in their assemblies publicly. That would be in addition to the major crime that they were committing, which was approaching men from behind, and Allah knows best. Despite the various interpretations that are offered concerning the phrases that Allah used: ‘*cutting off the highway,*’ and also ‘*and commit evil in your gatherings,*’ these are not critical to the overall point or main thrust of the argument presented here. It may be of use though to mention some of the reported narrations at this juncture to provide as fuller account as possible. Writing in his *Tafsir*, *Jāmi al-Bayān*, Imām al-Ṭabari sets out the following:

The Almighty, Exalted in His Remembrance says regarding what Luṭ said to his people: ‘*How can you*’ O people, ‘*lust after men,*’ in their behind; ‘*cutting off the highway,*’ saying – cutting the travellers and subjecting them to the acts that are filthy. That it was mentioned about them, they were doing these acts with those travellers who passed by as they were strangers to their land. Those who said that:

Yunus narrated to me he said Ibn Wahb reported to us he said Ibn Zayd said in relation to the verse ‘*cutting off the highway,*’ he

said: *‘al-Sabeel,*’ (meaning) the road, which is the way of the traveller. When the traveller, the son of the road, passed by them, they would block the road and perform with him that filthy deed.

Regarding the statement: *‘And commit evil in your gatherings,’* there is disagreement amongst the people of interpretation regarding what this evil that Allah mentioned was, that was being undertaken in their assemblies. Some of them said, it was because there was they used to break wind in their assemblies. Of those who mentioned that:

‘Abdar-Raḥman al-Aswad narrated to me he said Muḥammad ibn Rabeeh’ narrated to us he said Rawḥ ibn ‘Uṭayfa al-Thaqafi narrated to us from ‘Amr ibn Muṣ’ab from ‘Urwa ibn al-Zubayr from ‘Aisha regarding the statement: *‘And commit evil in your gatherings,’* she said: ‘breaking wind.’

(al-Ṭabari) Others said they would mock at those that passed by. Of those who mentioned that: Abu Kurayb and Ibn Waki’ narrated to us they said, Abu Usāmah narrated to us from Ḥātim ibn Abi Saghiraḥ from Simmāk ibn Ḥarb from Abu Ṣāliḥ from Umm Hāni, she said: ‘I asked the Prophet peace be upon him regarding the statement, *‘commit evil in your gatherings,’* he said: *‘They would cut-off wayfarers and mock them, and that was the evil they committed.’*

Rabeeh’ narrated to us he said Asad narrated to us Abu Usāmah narrated to us with a similar channel from the Prophet peace and blessings be upon him.

Aḥmad ibn Abda al-Dabbi narrated to us he said Sulaym ibn Akdar narrated to us he said Abu Yunus al-Qushayri narrated to us from Simmāk ibn Ḥarb from Abu Ṣāliḥ, *mawla* of Umm Hāni, that Umm Hāni asked about this verse: *‘commit evil in your gatherings,’* so she said: I asked the Messenger of Allah peace be upon him about it and he said: *‘They used to cut off wayfarers and mock them.’*

Ibn Ḥumayd narrated to us he said Yahya ibn Wāḍḍiḥ narrated to us he said Umar ibn Abi Zā’ida narrated to us he said: ‘I heard ‘Ikrimah saying in relation to the verse: *‘commit evil in your gatherings,’* it means that they used to molest wayfarers, shortening those who passed by them.

Ibn Waki’ narrated to us he said my father narrated to me from Umar ibn Abi Zā’ida he said: I heard ‘Ikrimah said: *‘al-Ḥadthaf.’*

Musa narrated to us he said ‘Amr reported to us he said Asbāt narrated to us from as- Suddi: *‘And commit evil in your gatherings,’* he said (it means) ‘Everyone who passed by them, they intercepted, and it is the *munkar* (evil).’

al-Rabeeh’ narrated to us he said Asad narrated to us he said Sa’eed ibn Zayd narrated to us he said Ḥātim ibn Abi Saghiraḥ narrated to us he said Simmāk ibn Ḥarb narrated to us from Bādthām Abu Ṣāliḥ, *mawla* of Umm Hāni – from Umm Hāni, she said: I asked the Messenger of Allah peace and blessings be upon him about this verse: *‘commit evil in your gatherings,’* he said: *‘They would sit by the road, throwing stones at passersby and mocking them.’*

(al-Ṭabari) Some have said it was the performance of obscenities and abominations - *al-fāḥishah*, in their assemblies. Of those who mentioned that:

Ibn Waki’ narrated to us he said Jarir narrated to us from Maṣṣūr from Mujāhid he said ‘They would come to each other in their assemblies (have intercourse with one another), hence the meaning where he said: *‘commit evil in your gatherings.’*

Sulaymān ibn ‘Abd al-Jabbār narrated to us he said Thābit ibn Muḥammad al-Laythi narrated to us he said Fuḍeel ibn ‘Ayyād narrated to us from Maṣṣūr ibn al-Mu’tamir from Mujāhid in relation to the verse: *‘commit evil in your gatherings,’* he said ‘They were gathered together (for that) in their assemblies.’

Ibn Ḥumayd narrated to us he said Ḥakkām narrated to us from ‘Amr from Mansur from Mujāhid (regarding the verse) *‘commit evil in your gatherings,’* he said: ‘They would come to each other in their assemblies (have intercourse with one another).’

Ibn Waki’ narrated to us he said my father narrated to me from Sufyān from Maṣṣūr from Mujāhid he said ‘They were gathering (upon) men in their assemblies (for intercourse).’

Muḥammad ibn ‘Amr narrated to me he said Abu Aāṣim narrated to us he said Esa narrated to us and al-Ḥārith narrated to me he said al-Ḥasan narrated to us he said Warqā’ narrated to us, all of them from Ibn Abi Najeeḥ from Mujāhid (regarding the verse) *‘commit evil in your gatherings,’* he said ‘The assemblies and the evil were their intercourse with men.’

Bishr narrated to us he said Yazeed narrated to us he said Sa'eed narrated to us from Qatādah, regarding the verse: '*commit evil in your gatherings*,' he said 'It means they used to commit the lewdness - *al-fāḥishah*, in their meetings.'

Yunus narrated to me he said Ibn Wahb reported to us he said Ibn Zayd said in relation to the verse: '*commit evil in your gatherings*,' he said 'Their meetings were the assemblies, and the abomination, filth – *khabeeth*, was their disgusting act which they would perform. They would accost a rider and seize him and mount him. And (Ibn Zayd) read: '*How can you commit this outrage with your eyes wide open?*' [27: 54] and he read: '*How can you practice this outrage? No one in the world has outdone you in this*,' [7: 80].

Ali narrated to me he said Abu Ṣāliḥ narrated to us he said Mu'āwiya narrated to me from Ali from Ibn 'Abbās regarding the verse: '*commit evil in your gatherings*,' he said 'In their assemblies.'

(al-Ṭabari) The first of these statements is the correct view, the ones who said that it means: in their assemblies they used to cut off anyone who passed them and mock him. That is what has been mentioned from the channels reported from the Messenger of Allah peace and blessings be upon him.¹⁶

Other accounts in the Tafsir literature

The following has been cited in the *Tafsir* of 'Abd al-Razzāq:

'Abd al-Razzāq narrated to us he said Fuḍeel reported to us from Maṣṣur from Mujāhid regarding where He the Almighty said: 'and commit evil in your gatherings,' he said 'They used to have intercourse with each other in the gatherings.'

¹⁷

Appearing in the *Tafsir* of Mujahid, there is the following:

Abdar-Raḥman reports Ibrāhim narrated to us Adam narrated to us Waraqā narrated to us from Ibn Abi Najeeḥ from Mujāhid (regarding the verse) '*commit evil in your gatherings*,' he said 'Meaning, in your

¹⁶ *Tafsir* al-Ṭabari [Vol. 10, pp. 135/137 (print edition)]

¹⁷ *Tafsir* 'Abd al-Razzāq [Vol. 2, p. 482]

councils, assemblies and the 'evil' they came upon men (i.e. had intercourse with them).'¹⁸

In the *Tafsir* of Muqātil ibn Sulaymān there is - '*commit evil in your gatherings*,' – meaning in their assemblies; the evil, which is to say the throwing of stones.¹⁹ Next, the following has been cited in the *Tafsir* of Ibn Abi Ḥātim:

حَدَّثَنَا أَبُو سَعِيدٍ الْأَشَجُّ حَدَّثَنَا أَبُو أُسَامَةَ عَنْ خَاتِمِ بْنِ أَبِي صَغِيرَةَ، عَنْ سِمَاكِ بْنِ حَرْبٍ عَنْ أَبِي صَالِحٍ عَنْ أُمِّ هَانِيٍّ ابْنَتِ أَبِي طَالِبٍ قَالَتْ: سَأَلْتُ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ عَنْ قَوْلِهِ وَتَأْتُونَ فِي نَادِيكُمْ الْمُنْكَرَ فَقَالَ كَانُوا يَحْدِفُونَ أَهْلَ الطَّرِيقِ وَيَسْخَرُونَ مِنْهُمْ

Abu Sa'eed al-Ashaj narrated to us Abu Usamah narrated to us from Ḥātim ibn Abi Ṣaghira from Simmāk ibn Ḥarb from Abu Ṣāliḥ from Umm Hāni, daughter of Abu Tālib, she said: I asked the Messenger of Allah peace and blessings be upon him about His statement: '*And commit evil in your gatherings*,' he said: *They would throw pebbles at the people on the roadside and make a mockery of them*.²⁰

That tradition is reported quite widely across various collections.²¹ Four further reports are cited in the *Tafsir* of Ibn Abi Ḥātim which are of note:

My father narrated to me Muḥammad ibn Esa al-Ṭabbā'ah narrated to us al-Qāsim ibn Mālik narrated to us Rawḥ ibn 'Aṭiyyah ibn Abi Sufyān al-Thaqafi narrated to us from Umar ibn Mus'ab ibn al-Zubayr from 'Urwa from 'Aisha (regarding where) He says: '*and commit evil in your gatherings*,' she said '(It means) flatulence, breaking wind.'

Ali ibn Ḥussain narrated to us Bukeer ibn Khalaf narrated to us Ibn Abi Uways narrated to us my father narrated to me from Yazeed ibn Bakr al-Laythi, he said - I asked al-Qāsim ibn Muḥammad about the statement of Allah '*and commit evil in your gatherings*,' – what was

¹⁸ *Tafsir* Mujāhid [p. 535]

¹⁹ *Tafsir* Muqātil [Vol. 3, p. 381]

²⁰ *Tafsir* Ibn Abi Ḥātim [Vol. 7, p. 284 (print edition)]

²¹ Over half-a-dozen references are provided for in the Arabic edition including: *Sunan* al-Tirmidhi [Vol. 5, no. 3190], *Musnad* Aḥmad [Vol. 5, no. 26935], al-Ḥākim *Mustadrak* [Vol. 2, no. 3537] and *Musnad* al-Ṭayālisi [Vol. 1, no. 1617].

that evil? He replied ‘They used to break wind in their gatherings, farting upon one another. *Al-Nādi*, means their gatherings.’

Muḥammad ibn Ismā’il al-Aḥmasi narrated to us Waki’ narrated to us from Sufyān from Mansur from Mujāhid (regarding the verse) ‘*and commit evil in your gatherings*,’ he said ‘They were having intercourse with men in their assemblies.’

al-Ḥasan ibn ‘Arafa narrated to us Muḥammad ibn Katheer narrated to us from ‘Amru ibn Qays from al-Ḥakam from Mujāhid (regarding the verse) ‘*and commit evil in your gatherings*,’ he said ‘It is whistling, playing in the bath, (and play with) the *Julāhiq*...and the unbuttoning of their clothes.’²²

Regarding this particular *isnād*, it is *munqaṭi*; all that’s from Muḥammad ibn Kathir ibn Abi Aṭā al-Thaqafī and Muḥammad ibn Kathir al-‘Abdi is not from ‘Amr ibn Qays, because they did not meet him. Hence the *matn* is *munkar* and *bāṭil*.

Analysis

Given the forgoing discussion and numerous channels presented, one should note that none of these can be attributed directly to the Prophet Luṭ peace be upon him. More importantly, aside from the truncated channels, there is no mention whatsoever of deities / gods, statues, idols or any form of controversy regarding resurrection etc., not a single word or letter. Similarly, that which is from channels that are *maqṭu* (severed-channel reports) can in no way detract from the status which Prophet Luṭ peace be upon him. Indeed he was from amongst the Messengers of which Allah has given a high-status amongst the nations. He the Exalted and Majestic says:

وَلَقَدْ بَعَثْنَا فِي كُلِّ أُمَّةٍ رَسُولًا أَنِ اعْبُدُوا اللَّهَ وَاجْتَنِبُوا الطَّاغُوتَ فَمِنْهُمْ مَّنْ هَدَى اللَّهُ وَمِنْهُمْ مَّنْ حَقَّتْ عَلَيْهِ الضَّلَالَةُ فَسِيرُوا فِي الْأَرْضِ فَانظُرُوا كَيْفَ كَانَ عَاقِبَةُ الْمُكَذِّبِينَ

We sent a Messenger to every community, saying, ‘Worship Allah and shun false gods.’ Among them were some Allah guided; misguidance took hold of others.

²² *Tafsir Ibn Abi Ḥātim* [Vol. 7, p. 284 (print edition)]

*So travel through the earth and see what was the fate of those who denied the truth.*²³

وَمَا أَرْسَلْنَا مِنْ قَبْلِكَ مِنْ رَسُولٍ إِلَّا نُوحِي إِلَيْهِ أَنَّهُ لَا إِلَهَ إِلَّا أَنَا فَاعْبُدُونِ

*We never sent any Messenger before you [Muhammad] without revealing to him: ‘There is no god but Me, so serve Me.’*²⁴

The word formulation here is instructive, as underscored in the text. It carries a linguistic form of restriction - *ṣeeghat-ḥaṣr*. The Messenger *only* being sent with this ‘*There is no god but Me, so serve Me.*’ Necessity dictates that the statement would therefore be that Allah has declared prohibited entering men from behind, so do not undertake it; painted from the picture of His saying ‘*Worship Allah and shun false gods.*’ Thus, for the people of Luṭ making licit entering men from behind, a matter of *istiḥlāl*, is worshipping the *Ṭāghut* and the abandonment of worshipping Allah. By necessity, it must be *Shirk* (polytheism). With that in tandem, bright like the burning sun, we turn to a comment that was made by Imām al-Rāzi, in the following text. As has been reported in the *Tafsir* of al-Rāzi:

And here are several issues, firstly: Ibrāhim said to his people – worship Allah. And here he said about Luṭ that he said to his people: (you) commit *fāḥishah* (obscenities, abominations). Thus, we say with what Allah mentioned to Luṭ when he mentioned Ibrāhim. Luṭ (who was) in the time of Ibrāhim, did not mention about Luṭ, that he commanded his people to *Tawḥeed*, even though the Messenger is duty-bound to convey that. So we say, the narrative of Luṭ, other than it is here, Allah mentioned the matter succinctly and limited it to what was specific to Luṭ, namely the prevention of *fāḥishah* and didn’t mention about the command to *Tawḥeed*. Although He said in another place, that ‘*Worship Allah - you have no god other than Him,*’ [7: 59] because that message was brought by Ibrāhim, who preceded him; his mission being specifically that, while Luṭ proclaimed that on Ibrāhim’s behalf. Concerning the prohibition relating to the acts undertaken by the people of Luṭ, that was

²³ *Qur’ān*, 16: 36

²⁴ *Qur’ān*, 21: 25

specifically by way of Luṭ. But Ibrāhim did not appear with that in his time and didn't prevent them (his people) from doing so. He mentioned each of them in what was specific to him and preceded him by others.²⁵

In the aforementioned quote we see Imām al-Rāzi stated referring to the verse which mentioned '*Worship Allah - you have no god other than Him.*' If the pronoun referred to 'he said' relates to Luṭ, that is a manifest error. The reason being, from the full context of the verse, that is the wording as it relates to the Prophet Nuḥ peace be upon him, together with other similarly clear verses elsewhere, referring to other Prophets besides that of Luṭ. It is true that the Qur'ān doesn't mention the 'command to *Tawḥeed*,' according to al-Rāzi, yet that seems to be in a superficial sense. In other words with the explicit linkage to the mention of gods, statues, monuments or the like, 'though the Messenger is duty-bound to convey that.'

The reference that is made to the story of Ibrāhim peace and blessings be upon him, is none other than a desperate attempt to try and solve what appeared as a difficult problem and dilemma. Yet Ibrāhim wasn't sent as a Messenger to the people of Luṭ originally, that much is clear from the established narrative. Even if that was to be argued, that he was in fact sent to them first and then they became involved in the matter of *istiḥlāl*, after he had departed, it would still leave us in much the same position – that this was a matter of *Shirk* and the worship of *Tāghut*. That is because Allah then sent them another Messenger, namely Luṭ and being from amongst the noble Prophets was bound to say unto them: '*Worship Allah and disavow the Tāghut.*'²⁶

The narrative as found in the previous scriptures

Following this, we have also undertaken to examine how this narrative is expressed in the older books for the sake of completeness, although we would

²⁵ *Tafsir* al-Rāzi [Vol. 29, p. 45 (*Shamela* edition)]

²⁶ Qur'ān, 16: 36. Here we have opted for the transliteration of the word '*Tāghut*' as it appears in the verse. Professor Abdel Haleem has translated this as 'shun false gods,' with the full verse being: 'We sent a Messenger to every community, saying, '*Worship Allah and shun false gods.*' Among them were some Allah guided; misguidance took hold of others. So travel through the earth and see what was the fate of those who denied the truth.'

hasten to add, that the matter is abundantly clear, praise be to Allah. The older works are approached as always with a degree of caution because it cannot be said that they are completely free from tampering or distortion from the rabbi's, monks and scribes. Despite this, they are still the best additional source-material that is currently available.

We have found in the Old Testament, which includes the Torah, as well as other books, mention being made of many old towns and cities of the holy land of Palestine and its environs. There is also some additional references concerning the idolatry of the time. There isn't though any mention contained therein of the order of invitation of Ibrāhim or him being sent to the people of Luṭ. This is despite the extensive journeying that Ibrāhim undertook – from the arrival in Egypt and repeated journeys to the Arabian Peninsula. No further details are mentioned about the people of Luṭ, other than the issue of lusting after men, which the Qur'ān also states. Turning to the texts now themselves, the following has been set out in the book of Genesis in chapters thirteen and fourteen, regarding the return of Ibrāhim from Egypt:

Abram and Lot Separate

1. So Abram went up from Egypt to the Negev, with his wife and everything he had, and Lot went with him.
2. Abram had become very wealthy in livestock and in silver and gold.
3. From the Negev he went from place to place until he came to Bethel, to the place between Bethel and Ai where his tent had been earlier
4. And where he had first built an altar. There Abram called on the name of the Lord.
5. And Lot, who was moving about with Abram, also had flocks and herds and tents.
6. But the land could not support them while they stayed together, for their possessions were so great that they were not able to stay together.
7. And quarrelling arose between Abram's herders and Lot's. The Canaanites and Perizzites were also living in the land at that time.
8. So Abram said to Lot, "Let's not have any quarrelling between you

and me, or between your herders and mine, for we are close relatives.

9. Is not the whole land before you? Let's part company. If you go to the left, I'll go to the right; if you go to the right, I'll go to the left."

10. Lot looked around and saw that the whole plain of the Jordan toward Zoar was well watered, like the garden of the Lord, like the land of Egypt. (This was before the Lord destroyed Sodom and Gomorrah.)

11. So Lot chose for himself the whole plain of the Jordan and set out toward the east. The two men parted company:

12. Abram lived in the land of Canaan, while Lot lived among the cities of the plain and pitched his tents near Sodom.

13. Now the people of Sodom were wicked and were sinning greatly against the Lord.

14. The Lord said to Abram after Lot had parted from him, "Look around from where you are, to the north and south, to the east and west.

15. All the land that you see I will give to you and your offspring forever.

16. I will make your offspring like the dust of the earth, so that if anyone could count the dust, then your offspring could be counted.

17. Go, walk through the length and breadth of the land, for I am giving it to you."

18. So Abram went to live near the great trees of Mamre at Hebron, where he pitched his tents. There he built an altar to the Lord.

The War of the Kings

1. And it came to pass in the days of Amraphel king of Shinar, Arioch king of Ellasar, Chedorlaomer king of Elam, and Tidal king of nations;

2. *That these* made war with Bera king of Sodom, and with Birsha king of Gomorrah, Shinab king of Admah, and Shemeber king of Zeboiim, and the king of Bela, which is Zoar.

3. All these were joined together in the vale of Siddim, which is the salt sea.

4. Twelve years they served Chedorlaomer, and in the thirteenth year they rebelled.

5. And in the fourteenth year came Chedorlaomer, and the kings that *were* with him, and smote the Rephaims in Ashteroth Karnaim, and the

Zuzims in Ham, and the Emims in Shaveh Kiriathaim,

6. And the Horites in their mount Seir, unto Elparan, which *is* by the wilderness.

7. And they returned, and came to Enmishpat, which *is* Kadesh, and smote all the country of the Amalekites, and also the Amorites, that dwelt in Hazezontamar.

8. And there went out the king of Sodom, and the king of Gomorrah, and the king of Admah, and the king of Zeboiim, and the king of Bela (the same *is* Zoar;) and they joined battle with them in the vale of Siddim;

9. With Chedorlaomer the king of Elam, and with Tidal king of nations, and Amraphel king of Shinar, and Arioch king of Ellasar; four kings with five.

Lot Seized by the Four Kings

10. And the vale of Siddim *was full of* slimepits; and the kings of Sodom and Gomorrah fled, and fell there; and they that remained fled to the mountain.

11. And they took all the goods of Sodom and Gomorrah, and all their victuals, and went their way.

12. And they took Lot, Abram's brother's son, who dwelt in Sodom, and his goods, and departed

Abram Rescues Lot

13. And there came one that had escaped, and told Abram the Hebrew; for he dwelt in the plain of Mamre the Amorite, brother of Eshcol, and brother of Aner: and these *were* confederate with Abram.

14. And when Abram heard that his brother was taken captive, he armed his trained *servants*, born in his own house, three hundred and eighteen, and pursued *them* unto Dan.

15. And he divided himself against them, he and his servants, by night, and smote them, and pursued them unto Hobah, which *is* on the left hand of Damascus.

16. And he brought back all the goods, and also brought again his brother Lot, and his goods, and the women also, and the people.

Melchizedek Blesses Abram

17. And the king of Sodom went out to meet him after his return from the slaughter of Chedorlaomer, and of the kings that *were* with him, at the valley of Shaveh, which *is* the king's dale.

18. And Melchizedek king of Salem brought forth bread and wine: and he *was* the priest of the most high God.

19. And he blessed him, and said, Blessed *be* Abram of the most high God, possessor of heaven and earth:

20. And blessed be the most high God, which hath delivered thine enemies into thy hand. And he gave him tithes of all.

21. And the king of Sodom said unto Abram, Give me the persons, and take the goods to thyself.

22. And Abram said to the king of Sodom, I have lift up mine hand unto the LORD, the most high God, the possessor of heaven and earth, 23. That I will not *take* from a thread even to a shoe latchet, and that I will not take any thing that *is* thine, lest thou shouldst say, I have made Abram rich:

24. Save only that which the young men have eaten, and the portion of the men which went with me, Aner, Eshcol, and Mamre; let them take their portion.²⁷

Consider the mention of this truthful just king, Melchizedek king of Salem (ch. 4 verse 18), which is the old name that was given to *Bayt-al-Maqdis* - Jerusalem. And the priest of the temple, the servant of Allah, to whom Ibrāhīm gave ten of the spoils or *zakāt* and received a blessing, precisely who was he? What was his name? We do not know for certain, but perhaps it is Idris (Enoch) who was mentioned only twice in the Qur'ān:

وَأَذْكُرْ فِي الْكِتَابِ إِدْرِيسَ إِنَّهُ كَانَ صِدِّيقًا نَبِيًّا

*Mention too, in the Qur'ān, the story of Idris. He was a man of truth, a Prophet.*²⁸

وَإِسْمَاعِيلَ وَإِدْرِيسَ وَذَا الْكِفْلِ كُلٌّ مِّنَ الصَّابِرِينَ

²⁷ Translations of Biblical texts vary quite considerably. For the passages cited here, we have utilised online versions, largely from the King James text. See: <<https://biblehub.com/kjv/genesis/13.htm>>

²⁸ Qur'ān, 19: 56

*And remember Ishmael, Idris, and Dhu'l-Kifl: they were all steadfast.*²⁹

Note also this featured characteristic and attribute that's given, '*a man of truth, a Prophet.*' Ibrāhīm is the only one to be given that designation in the Qur'ān as well as the other revealed books of Allah; the Qur'ān being the final revelation.

وَأَذْكُرْ فِي الْكِتَابِ إِبْرَاهِيمَ إِنَّهُ كَانَ صِدِّيقًا نَبِيًّا

*Mention too, in the Qur'ān, the story of Abraham. He was a man of truth, a Prophet.*³⁰

Note is also made of his exemplary dealings with king of Sodom, refusing to take any form of grant even though he had spoils obtained by his sword. The glory of *al-Imān* thus resides with Ibrāhīm; we beseech Allah to send prayers upon him and to his family, indeed amongst all creation, he was glorious and praiseworthy!

Sodom and Gomorrah

In the previous text, it was stated that the people of Sodom were 'wicked and were sinning greatly against the Lord.' A further explanation is also given in the story concerning the arrival of the angels to the village of Luṭ, after passing by Ibrāhīm. The texts read as follows:

Lot Welcomes the Angels

1. And there came two angels to Sodom at even; and Lot sat in the gate of Sodom: and Lot seeing *them* rose up to meet them; and he bowed himself with his face toward the ground;

2. And he said, Behold now, my lords, turn in, I pray you, into your servant's house, and tarry all night, and wash your feet, and ye shall rise up early, and go on your ways. And they said, Nay; but we will abide in the street all night.

3. And he pressed upon them greatly; and they turned in unto him, and entered into his house; and he made them a feast, and did bake unleavened bread, and they did eat.

²⁹ Qur'ān, 21: 85

³⁰ Qur'ān, 19: 41

4. But before they lay down, the men of the city, *even* the men of Sodom, compassed the house round, both old and young, all the people from every quarter
5. And they called unto Lot, and said unto him, Where *are* the men which came in to thee this night? bring them out unto us, that we may know them.
6. And Lot went out at the door unto them, and shut the door after him,
7. And said, I pray you, brethren, do not so wickedly.
8. Behold now, I have two daughters which have not known man; let me, I pray you, bring them out unto you, and do ye to them as *is* good in your eyes: only unto these men do nothing; for therefore came they under the shadow of my roof.
9. And they said, Stand back. And they said *again*, This one *fellow* came in to sojourn, and he will needs be a judge: now will we deal worse with thee, than with them. And they pressed sore upon the man, *even* Lot, and came near to break the door.
10. But the men put forth their hand, and pulled Lot into the house to them, and shut to the door.
11. And they smote the men that *were* at the door of the house with blindness, both small and great: so that they wearied themselves to find the door.

Lot Flees to Zoar

12. And the men said unto Lot, Hast thou here any besides? son in law, and thy sons, and thy daughters, and whatsoever thou hast in the city, bring *them* out of this place:
13. For we will destroy this place, because the cry of them is waxen great before the face of the LORD; and the LORD hath sent us to destroy it.
14. And Lot went out, and spake unto his sons in law, which married his daughters, and said, Up, get you out of this place; for the LORD will destroy this city. But he seemed as one that mocked unto his sons in law.
15. And when the morning arose, then the angels hastened Lot, saying, Arise, take thy wife, and thy two daughters, which are here; lest thou be consumed in the iniquity of the city.
16. And while he lingered, the men laid hold upon his hand, and upon the hand of his wife, and upon the hand of his two daughters; the LORD

- being merciful unto him: and they brought him forth, and set him without the city.
17. And it came to pass, when they had brought them forth abroad, that he said, Escape for thy life; look not behind thee, neither stay thou in all the plain; escape to the mountain, lest thou be consumed.
18. And Lot said unto them, Oh, not so, my Lord:
19. Behold now, thy servant hath found grace in thy sight, and thou hast magnified thy mercy, which thou hast shewed unto me in saving my life; and I cannot escape to the mountain, lest some evil take me, and I die:
20. Behold now, this city *is* near to flee unto, and it *is* a little one: Oh, let me escape thither, (*is* it not a little one?) and my soul shall live.
21. And he said unto him, See, I have accepted thee concerning this thing also, that I will not overthrow this city, for the which thou hast spoken.
22. Haste thee, escape thither; for I cannot do an thing till thou become thither. Therefore the name of the city was called Zoar.
23. The sun was risen upon the earth when Lot entered into Zoar.

The Destruction of Sodom and Gomorrah

24. Then the LORD rained upon Sodom and upon Gomorrah brimstone and fire from the LORD out of heaven;
25. And he overthrew those cities, and all the plain, and all the inhabitants of the cities, and that which grew upon the ground.
- Lot's Wife Looks Back
26. But his wife looked back from behind him, and she became a pillar of salt.
27. And Abraham got up early in the morning to the place where he stood before the LORD:
28. And he looked toward Sodom and Gomorrah, and toward all the land of the plain, and beheld, and, lo, the smoke of the country went up as the smoke of a furnace.
29. And it came to pass, when God destroyed the cities of the plain, that God remembered Abraham, and sent Lot out of the midst of the overthrow, when he overthrew the cities in the which Lot dwelt.³¹

³¹ See footnote 27.

Concluding remarks

After perusing all of the above, one can indeed see some of the details that are provided are not of great significance. What is significant is that there is no mention of gods, statues, monuments or idols in relation to the people of Luṭ. Consequently, it must be said that what the people of Luṭ were involved in, in relation to *Shirk* and *Kufr* was only that relating to *istiḥlāl* of *al-fāḥishah* – and perhaps also the *istiḥlāl* for the other crimes that were also mentioned. The matter of their *Shirk* was none other than that relating to *Hākimiyyah* and nothing else. Given the compelling weight of overall evidence it cannot be said that it was otherwise.

There are a couple of small remaining matters to conclude with. One of which relates to an observation regarding the mention of those from Luṭ's relatives who didn't heed the warning of impending destruction that he gave, thinking that it was but a joke. Perhaps this helps to shed some additional light upon the matter of Luṭ's spouse, where Allah the Exalted and Majestic stated:

إِلَّا عَجُوزًا فِي الْغَابِرِينَ

*Except for an old woman who stayed behind.*³²

Judging from the apparent, it would appear that she was originally from the filthy people of the town and Allah only knows best. Finally, there is the issue of what was befitting that was mentioned here originally, if I had not heard it directly in an address of one individual affiliated with '*ilm Sharī'ah*'. It was alleged that the acts of the people of Luṭ is itself an act of *kufṛ*, although different from that of *zinā*'. The point however is terribly mistaken and a clear misreading of the language used in the actual Qur'ānic text. What is correct is that the *Shirk* and *Kufr* of the people of Luṭ peace be upon him, related to the matter of their *istiḥlāl* of this act. That much is clearly shown by their reported words when Luṭ offered his daughters instead:

³² *Qur'ān*, 37: 135. For greater context, when read together from verse 133 to 138: '*Lot was also one of the Messengers. We saved him and all his family - except for an old woman who stayed behind; and We destroyed the rest. You [people] pass by their ruins morning and night: will you not take heed?*'

لَقَدْ عَلِمْتُمْ مَا لَنَا فِي بَنَاتِكُمْ مِنْ حَقٍّ وَإِنَّكَ لَتَعْلَمُ مَا نُرِيدُ

*They said, 'You know very well that we have no right to your daughters. You know very well what we want.'*³³

In other words, what this meant is that they believed that they had the right to the two guests that had come to Luṭ. Expressed differently, that this was 'their right' and what is 'right' - *ḥaqq*, is necessarily deemed valid and lawful, *ḥalāl*, in the viewpoint of the beholder.

³³ *Qur'ān*, 11: 79

Part X

The Nature of Sanctification and Devotional Rituals

1. Nature of devotion and sanctification

We have previously explained the meaning of *al-'Ibādah*, whether defined by the definite articles the *Alif* and the *Lām*, or defined by *iḍāfa* (possessive construction), or by a complete sentence, as in His saying, May His Majesty be Glorified:

وَمَا خَلَقْتُ الْجِنَّ وَالْإِنْسَ إِلَّا لِيَعْبُدُونِ

*I created jinn and mankind only to worship Me.*¹

For the meaning of '*to worship Me*' is: that they may devote '*Ibādah* to Me. We have said that: the act of '*Ibādah* directed toward a being is, in truth and without exception, 'attributing some aspect of divinity' to that 'being' or entity. For this reason, attributing *any aspect of divinity to a being* necessary and inevitably means: '*worship of that being*' even if no other act is performed for or directed toward that being in the first place. For in its essence, it is purely a matter of '*Itiqād* (belief) and '*Imān* (faith). And we have decided that this is an unquestionable certainty, necessitated by the equation previously presented and proven therein:

عبادة غير الله = نسبة شيء من الألوهية لغير الله

Worshipping other than Allah = Attributing any aspect of divinity to other than Allah.

¹ *Qur'ān*, 51: 56

Ultimately this equation is meaningless and cannot be formulated or proven at all, *unless* the nature of *al-Uluhiyyah* - 'divinity' is first defined, *before* any discussion of '*Ibādah* and its definition. For the concept of 'divinity' precedes the concept of '*Ibādah*, at the conceptual level of mental existence. Accordingly, divinity must necessarily and undoubtedly, precede the '*Ibādah* in the order of existence, if there is a *Ilāh* at all; that God is, by necessity, Allah the Almighty, the All-Wise. As for those who deny the existence of Allah, claiming the eternity of the universe and the existence of an eternal, lifeless, blind, deaf, and mute 'nature,' one that knows nothing and is unaware of itself, yet acts and creates by compulsion. This 'nature,' even if it is according to their claim, necessarily existent, eternal, and pre-eternal, certainly does not possess divinity, and does not even deserve to be called an *Ilāh* in the first place. Thereupon, they are obliged to say that '*Ibādah*, that is, the beliefs and actions of the servants, which are in fact existent, precedes the existence of God, who is in their view nothing more than a mental myth created by these beliefs and actions, just as the saying of the Wahhābi sect, whose essence is: *al-Ilāh huwal Ma'būd* [الإله هو المعبود] 'The *Ilāh* (God) is the One who is worshipped.' Thus, humans are the ones who create their gods, according to both the Wahhābis and atheists, in the same way.²

Based on that, '*Ibādāt* (acts of worship), plural of '*Ibādah* (worship), are - those words and acts related to, directed toward, or devoted to the one who is believed to be a divine being; that is, one in whom some aspects of divinity is believed to exist. Especially the words and acts that reveal or express humility, submission, surrender, obedience, reverence, veneration, trust, reliance; or fear and awe; love, intimacy, and closeness; or poverty, neediness, and similar sentiments, through which one seeks from a divine being the attainment of benefit or the removal of harm. Thus, what people refer to as '*Ibādāt* (acts of worship), and/or *sha'ā'ir* (rituals), or *manāsik* (rites) are not the essence or '*Ibādah* itself, but rather an expression, manifestation, or application of it. We might even go so far as to say that calling any state of the heart, such as *uns* (intimacy), or any emotion of the soul, such as *rahbah* (awe), or any physical reaction, such as the shivering of the skin, or any specific voluntary human act, such as prostration - 'worship' to a given being,

² Here readers should also refer back to the chapters contained in Volume 3 where these issues are analysed at length.

is, in fact, a figurative expression and a simplified expression of the idea that it derives from, or is founded upon, true *‘Ibādah*, which is: ‘attributing some form of divinity to that particular being.’

Hence it is necessary and inevitably required, taking into consideration all the aforementioned points, that the states of the heart, emotions and psychological reactions, and voluntary words and actions fall within the scope of the term *‘Ibādah*, is to be limited only to those devoted to, or directed toward, one in whom some form of divinity is believed to be, or with whom it is associated. And we elaborate further on this by examining a variety of practices that human beings commonly referred to as *‘Ibādah*, and the intentions and purposes that typically accompany such actions. So we say that the correct definition of al-*‘Ibādāt* is, necessarily and inevitably, as follows:

al-‘Ibādāt: are states of the heart, emotional and psychological reactions, outward and inward words and actions, and specific rituals (a ritual refers to a combination of actions and utterances arranged in a particular manner), associated with, directed toward, or devoted to one in whom some form of ‘divinity’ is believed to be, in order to show reverence, veneration, and sanctification for him; or to express submission, humility, and surrender before that being. Or, to seek closeness to him, intimacy in his presence, and the attainment of his pleasure and love; or to seek his kindness, grace, and bounty; or to seek his help in warding off harm or bringing about benefit; or to avert his wrath, retribution, or punishment; and perhaps even to avoid his evil or harm, and similar purposes.

It also follows as a necessary consequence of all that has been previously established, that whoever devotes any form of *‘Ibādāt* - provided that it is correctly defined as such, *to other than Allah*, is, necessarily, a *mushrik* and a *kāfir*, for such an act is, necessarily and inevitably, *preceded* by a belief that entails *Shirk* and *kufr*. The actions performed by the *mushrik*, or what he expresses verbally, are nothing but expressions, manifestations, and applications of that *Shirk* and *kufr*; they are not the *essence* of *Shirk* and *kufr*. Based upon that, it is nothing but an increase in disbelief, just like al-*Nasī*’ (postponement of sacred months), where He the Exalted says:

إِنَّمَا النَّسِيءُ زِيَادَةٌ فِي الْكُفْرِ يُضَلُّ بِهِ الَّذِينَ كَفَرُوا غَامًا يُحَرِّمُونَهُ عَامًا لِيُؤَاطِنُوا عِدَّةَ مَا حَرَّمَ اللَّهُ فَيُجْلُوا مَا حَرَّمَ اللَّهُ زَيْنَ لَهُمْ سُوءَ أَعْمَالِهِمْ وَاللَّهُ لَا يَهْدِي الْقَوْمَ الْكَافِرِينَ

*Postponing (of the sacred month) is only an addition in kufr (unbelief), wherewith those who disbelieve are led astray, violating it one year and keeping it sacred another, that they may agree in the number (of months) that Allah has made sacred, and thus violate what Allah has made sacred; the evil of their doings is made fair seeming to them; and Allah guides not the people who disbelieve.*³

Thus, there is no meaning whatsoever to the eager questioning members of the Wahhābi sect: ‘What is the ruling on the one who directs any form of *‘Ibādah* to other than Allah?’ This is a question that could only arise from one of the following, firstly, those whose thinking is superficial and thus fail to distinguish between *al-‘Ibādah* defined by the definite articles the *alif* and the *Lām*, or defined by *iqāfa*, or by a complete sentence – and *al-‘Ibādāt*, the plural of the indefinite noun *‘Ibādah*, which refers to actions, words, and emotional states that express, manifest, or apply *al-‘Ibādah*. Secondly, those who believe in the existence of an exclusive list of mere actions, sayings, and emotions that, each in itself, deserve to be called *‘Ibādah*; or lastly, those who assume that *al-‘Ibādāt* can be defined independently of the definition of *al-Uluhiyyah* – divinity. As the reader will no doubt be aware thus far in the present series, each of these phantasms has been dispelled. Hence the reason for this present chapter.

Expressed differently, the truth is that people’s positions regarding the relationship between the actions they refer to as *‘Ibādāt* – in the specific sense they intend when speaking about gods, religion, religiosity, and sanctification - and the concept of *Ilāh*, is necessarily limited, by the necessity of reason and complete logical division, to one of the following positions. Firstly, that *al-Uluhiyyah* has a definition entirely independent of the actions and positions of other beings. Based on that, whoever possesses any attribute of divinity is rightly called an *Ilāh* (god). Meanwhile, *‘Ibādāt* is merely a label coined by people to classify any action, whether outward or inward, or any utterance, whether of the heart or the tongue, that is devoted to, directed toward, or associated with the one believed to be an *Ilāh*, to express submission,

³ *Qur’ān*, 9: 37. Here we have departed from Abdel Haleem’s translation and opted for that of Shakir.

humility, obedience, or veneration; or to express fear, awe, or dread; or to express the need and the desire for benefit or protection from harm; or to express love, affection, longing, or a desire for closeness and intimacy - and anything similar, as we have exhaustively set out.

Given the underpinning truthfulness of this, as demonstrated by the definitive proofs we have presented in the preceding chapters of this present series, then it necessarily follows that there exists no statement, whether outward or inward, nor any action, whether visible or hidden; there is no difference between prostration or bowing, standing or bending or sitting, or *sa'y* and running; or slaughtering and offering sacrifices, or lighting candles and lighting incense burners; or love and hatred, veneration or will, desire and dread, hope or fear, or calling upon, seeking help or refuge, or anything similar; or a ritual composed of any combination of what can be considered or named *Ibādah* in any sense whatsoever, *unless* it is associated with or directed toward an *Ilāh*. But if the same act is associated with or directed toward something in which one does not believe any form of divinity, then it is not *Ibādah* at all, and it is not permissible to call it *Ibādah* under any circumstance. Whoever does so has denied the Qur'ān, lied against Allah, and committed a most grievous falsehood.

Second, or rather the second position, is that certain actions, considered purely as actions in themselves, are classified as *Ibādah* in and of itself, regardless of the doers' conceptual understanding or personal belief concerning the one to whom the act is devoted to, directed toward, or associated with. This, in fact, is the *true essence of the claim made by the Wahhābi sect*, once their statements are thoroughly analysed, which are typically characterised by banality, superficiality, incoherence, and ambiguity, as well as a lack of precision. This is notwithstanding their claims often falling into confusion, contradiction, and a hidden circularity.

Naturally from this position, it is not a surprise to find many who would argue the following - which is set out by way of example rather than express limitation - that the military salute and saluting the flag are *Shirk kufri* - acts borne of idolatrous disbelief, that expels one from the fold of Islam, because they imply: '*standing in complete stillness and full humility, in a specific manner*,' even if the person performing them firmly and sincerely believes that the holders of military rank or the flag itself, are created, subjugated beings who possess no power over anything; they do not act nor take any

decision except by Allah's permission, predestination, and will, and even believes that the flag is nothing but a piece of cloth tied to a pole, possessing neither life, hearing, nor sight, and unable of bringing benefit or causing harm.

In a similar manner, is the saying of those who claim that seeking help from the Prophet, peace and blessings be upon him and his family, is *Shirk Akhbar* (major polytheism) simply by saying it, regardless of the supplicant's belief concerning the Prophet, even if he firmly believes that the Prophet is a created mortal with no intrinsic power over controlling '*any harm or benefit*,' [10: 49]; nor can he control '*life, death, or resurrection*,' [25: 3], except for what Allah Has granted and enabled Him to do. Or, that *Tawāf* - circumambulation, around the grave of 'Abd al-Qādir al-Jilāni or Aḥmad al-Badawi is considered an act of *Shirk kufri* that expels one from the fold of Islam by the mere act of performing it, as in the mere act of *Tawāf*, simply because it superficially resembles the *Tawāf* around the *Ka'ba*, regardless of the inner belief of the person concerning one or both those individuals.

Accordingly, the relationship between the definition of *Uluhiyyah* (divinity) and the definition of *Ibādah* (worship) in this second approach is necessarily and inevitably that *Ibādah* is the starting point. It is defined as the performance of such-and-such actions, whereby a list of specific actions is presented and labelled as *Ibādāt*. Thus, the *Ilāh* is the one to whom these acts are devoted. In short, '*al-Ilāh huwal'Ma'bud*,' - the god is the one who is worshipped.' And this second approach, albeit free from circularity and internal contradiction, is nonetheless invalid and cannot be accepted on behalf of its proponents, by definitive proof grounded in certain authoritative Islamic texts, namely, the text of the Qur'ān and the Prophetic *Sunnah*, as these alone constitute authoritative scriptural sources. Even before that, the necessities of sense, reason, and language establish the opposite with certainty. First and foremost, as we have clarified here in general terms, for the matter has already been settled, with rigorous demonstrative precision, in favour of the first view or approach to defining *Ibādāt*. This can be supported by the following points. To begin, the statement: '*al-Ilāh huwal'Ma'bud*,' the god is the one who is worshipped, requires that divinity is not one of Allah's attributes, the Almighty and Sanctified and that He was not an *Ilāh* in pre-eternity. Indeed this is a hideous statement of *kufri*. And whoever adopts this approach cannot be saved by saying *al-Ilāh huwal'-Ma'bud bi-haqq* [الإله هو المعبود بحق], 'The *Ilāh* (god) is rightfully the object of worship, or *al-Ilāh huwal' Mustahiq lil-*

‘*Ibādah* [العبادة] – ‘the *Ilāh* (god) is the One deserving (or worthy) of worship,’ because these two sayings also require that Allah, May His Majesty be Glorified, was not an *Ilāh* in pre-eternity, and this too is a hideous statement of *kufṛ* and entails the questioning the credibility of the Qur’ān.

Next, because this second approach in itself is no more than a denial of concrete things, a contradiction of the consensus of rational people with diverse languages, and a rejection of the divine ordering He, may He be Glorified and Exalted, established by placing ‘*Ibādah* as consequent to *Uluhiyyah*. This is stated in His saying, the Almighty:

وَمَا أَرْسَلْنَا مِنْ قَبْلِكَ مِنْ رَسُولٍ إِلَّا نُوحِي إِلَيْهِ أَنَّهُ لَا إِلَهَ إِلَّا أَنَا فَاعْبُدُونِ

*We never sent any Messenger before you [Muhammad] without revealing to him: ‘There is no god but Me, so worship Me.’*⁴

إِنِّي أَنَا اللَّهُ لَا إِلَهَ إِلَّا أَنَا فَاعْبُدْنِي وَأَقِمِ الصَّلَاةَ لِذِكْرِي

*I am Allah; there is no god but Me. So worship Me and keep up the prayer so that you remember Me.*⁵

Second, we shall elaborate on parts of it in detail, particularly, concerning many of the actions that the Wahhābi sect falsely and slanderously labelled as ‘*Ibādāt* one by one, here, and throughout this present work. Thirdly, including *al-Ilāh* (god/deity) into the definition of ‘*Ibādah* as in saying, for example: ‘*al-‘Ibādah* is anything that is directed to *al-Ilāh*,’ and at the same time, including *al-‘Ibādah* into the definition of *al-Ilāh*, as in saying, for example: ‘*al-Ilāh huwal ‘Ma‘bud.*’ Based upon that, *al-‘Ibādah cannot be defined* unless *al-Ilāh* is defined, and at the same time *al-Ilāh cannot be defined* unless *al-‘Ibādah* is defined. This is a precedent circular cause that leads to the impossibility of either definition, leaving both terms unknown and undefined. The most that can be attained is: ‘*al-‘Ibādah hiya al-‘Ibādah*,’ (worshipping is worshipping), a foregone conclusion devoid of meaning and no productive outcome can be expected from it; and likewise, word for word: ‘*al-Ilāh is al-Ilāh.*’ This form of circular cause can be found, though hidden, in the words

⁴ Qur’ān, 21: 25

⁵ Qur’ān, 20: 14

of Ibn Taymiyyah, and frequently in the statements of the members of the Wahhābi sect, both hidden and evident. This comes as no surprise, for those people are entirely bankrupt in the branches of science, such as linguistics, logic, mathematics, and other rational disciplines.

Fourthly, breaking the link between the concept of *Ilāh*, so that it has an independent definition unrelated to the actions of the servants, and the concept of ‘*Ibādah*, in a way that certain actions, considered merely as abstract actions, are classified as ‘*Ibādah* in themselves. Regardless of the substance of the perception and the nature of the belief in its doer concerning the one to whom the action is devoted, or towards whom it is directed, or with whom it is associated, exactly as is the case in the second position. This necessary and inevitably results in the idea that the ‘*Ibādah* of other than Allah would not be viewed as *Shirk* unless that ‘other’ is considered a divine being. In fact, this is a perverse denial of sense, reason, natural disposition, and languages. It is a clear falsification of the Qur’ān, suggesting that the Qur’ān either failed to articulate correctly or deliberately misled its audience, for it says: ‘*Worship no one but Allah*,’⁶ implying that it should have been ‘Tell them, O Prophet, do not worship an *Ilāh* other than Allah,’ Allah forbid. It is also an outright rejection and denial of the verse below:

وَمَا أَرْسَلْنَا مِنْ قَبْلِكَ مِنْ رَسُولٍ إِلَّا نُوحِي إِلَيْهِ أَنَّهُ لَا إِلَهَ إِلَّا أَنَا فَاعْبُدُونِ

*We never sent any Messenger before you [Muhammad] without revealing to him: ‘There is no god but Me, so worship Me.’*⁷

Without equivocation that cannot be valid unless the Qur’ān was not from Allah, and this is enough for you as constituting flagrant *kufṛ*. Furthermore, I do not know of anyone in the world who has adopted this position or followed this approach explicitly without equivocation. It is only the ‘circular cause,’ whether hidden or evident, that was mentioned in point three above.

It is this ‘hidden circularity’ that al-Mu‘allimī fell into in his definition of ‘*Ibādah*. He found himself obliged to classify ‘gods’ into two categories while doing his utmost to maintain that ‘*Ibādah* remains one unified concept, for it is necessary to render the ‘*Ibādah* of other than Allah as reprehensible

⁶ Qur’ān, 11: 2

⁷ Qur’ān, 21: 25

Shirk. Yet he failed, as we have proven in the previous volumes. He ended up with two equally bitter options: either to cast aside his own definition or to redefine ‘*Ibādah*’ differently - giving each ‘type of god’ its own definition of ‘*Ibādah*. In that case, he would be forced to accept that the ‘*Ibādah*’ of other than Allah might be considered *Shirk* that is not reprehensible. This would make the entire objective of the inquiry invalid, and in any case, dismantle the entire edifice of the Wahhābi doctrine, which wasn’t his intention in the slightest. Thus, the matter reverts to the second position, presenting an exclusive list of ‘*Ibādāt*, plural of ‘*Ibādah*, whereby *al-Ibādah*’ defined by the definite articles the *Alif* and the *Lām*, or defined by *idāfa*, or by a complete sentence, is that exclusive list. An example of a potential Wahhābi list would invariably be – prostration, bowing, seeking help from the dead or the absent, circumambulation around a grave, and requesting that which none but Allah can grant, and so on and so forth. This necessitates the invalidation of the claim that each term on that list is considered a ‘*Ibādah*, and performing those acts for other than Allah leads to *Shirk* and *kufṛ*. Therefore, it will be enough to prove that not any act included in the list can always be considered *Shirk* and *kufṛ* by being devoted to other than Allah. Before proceeding to the refutation of the derivative Wahhābi statements, one by one, we begin by recalling some of the absolute and definitive principles we have previously discussed in this book, naturally the first being, in order to believe in them, and to seek closeness to Allah by affirming this belief, submitting to its implications, and surrendering to Allah thereby, this being the foremost.

Second, so that they may always be present in the mind, ready for application – that there exists no god truly deserving of this name, who is alone deserving of worship, throughout all existence, from pre-eternity to eternity, except Allah. This is an ontological absolute, and definitive Qur’ānic truth, one of the *muḥkamāt* (clear and unambiguous verses of the Qur’ān). Indeed, it is the foremost of the *muḥkamāt*, the foundation of the Islamic creed, which serves as the standard by which every other claim is judged, and to which all that is *mutashābih* (ambiguous verses) must be referred. Also, that Allah the Exalted the possessor of Lordship, the One of perfect and absolute sovereignty, and the absolute Lord with unrestricted Lordship, who forbids what He wills and permits what He wills. Indeed, in earlier times, He permitted the marriage of certain close relatives, such as siblings, but later prohibited it. He commanded Abraham, peace and blessings be upon him and

his family, to sacrifice his son, then abrogated the command before it was carried out, and so it is. Yet, Exalted is His majesty, He is also *al-Ḥaqq al-Mubeen*, *al-Quddūs* and *al-Salām*. He does not command what is intrinsically contradictory in itself, nor what conflicts with His perfection, Majesty, beauty, or ‘sanctity.’ Thus, it is utterly impossible that He would say - ‘Take another [god] besides me’ (i.e., besides Allah), or in other words: ‘Deny my testimony that I am, and I alone am, the one true god, and that there exists no god whatsoever besides me.’ Far exalted is He, glorified and sanctified, above such false contradiction. He is Allah, the Ultimate Truth. Thus, it is impossible that Allah would command *Shirk* and *kufṛ*, and He, exalted is His mention, has explicitly stated this in the Qur’ān:

وَلَا يَرْضَىٰ لِعِبَادِهِ الْكُفْرَ

*He is not pleased by ingratitude in His servants.*⁸

وَلَا يَأْمُرُكُمْ أَنْ تَتَّخِذُوا الْمَلَائِكَةَ وَالنَّبِيِّينَ أَرْبَابًا أَيَأْمُرُكُمْ بِالْكُفْرِ بَعْدَ إِذْ أَنْتُمْ مُسْلِمُونَ

*He would never command you to take angels and Prophets as lords. How could He command you to be disbelievers after you had devoted yourselves to Allah?*⁹

Allah, Glorified and Exalted, does not legislate except what He loves and is pleased with; He does not will, in terms of *irāda shar‘iyya dīniyya* (religious and prescriptive will), except what He loves and is pleased with. Even though much, very much of what He does not approve of, and what angers Him, occurs in the world, it does so by His *irāda takwīniyya qadarīyya* (creative and decretive will), *not* against His will, but in *accordance* with a profound cosmic and preordained wisdom.

Moreover, it is utterly impossible that Allah would ever command something deemed as being *al-fāḥisha* (the indecent, disgraceful), whether by making it an obligation or a recommended act, neither in any prior *Sharī‘ah* nor in this final, blessed *Sharī‘ah*. As He, blessed be His Names and Exalted His mention, stated:

⁸ Qur’ān, 39: 7

⁹ Qur’ān, 3: 80

وَإِذَا فَعَلُوا فَاجِشَةً قَالُوا وَجَدْنَا عَلَيْهَا آبَاءَنَا وَاللَّهُ أَمَرَنَا بِهَا قُلْ إِنَّ اللَّهَ لَا يَأْمُرُ بِالْفَحْشَاءِ، أَتَقُولُونَ عَلَى اللَّهِ مَا لَا تَعْلَمُونَ

Yet when [these people] do something disgraceful, they say, 'We found our forefathers doing this,' and 'Allah has commanded us to do this.' Say [Prophet], 'Allah does not command disgraceful deeds. How can you say about Allah things that you do not know [to be true]?'¹⁰

This is an absolutely certain and eternally truthful statement, and it is inconceivable in reason that anything would contradict it, and one that cannot be abrogated, for declarative statements, are not subject to abrogation. That is: 'Allah does not command disgraceful deeds,' not in any earlier times of our cosmos, nor in any possible universe. He, may His Majesty be Glorified and Exalted, also said:

يَا أَيُّهَا الَّذِينَ آمَنُوا لَا تَتَّبِعُوا خُطُوَاتِ الشَّيْطَانِ وَمَنْ يَتَّبِعْ خُطُوَاتِ الشَّيْطَانِ فَإِنَّهُ يَأْمُرُ بِالْفَحْشَاءِ وَالْمُنْكَرِ وَلَوْلَا فَضْلُ اللَّهِ عَلَيْكُمْ وَرَحْمَتُهُ مَا زَكَا مِنْكُمْ مِنْ أَحَدٍ أَبَدًا وَلَكِنَّ اللَّهَ يُزَكِّي مَنْ يَشَاءُ وَاللَّهُ سَمِيعٌ عَلِيمٌ

Believers, do not follow in Satan's footsteps if you do so, he will urge you to indecency and evil. If it were not for Allah's bounty and mercy towards you, not one of you would ever have attained purity. Allah purifies whoever He will: Allah is all hearing, all seeing.¹¹

Besides, it is utterly impossible that Allah, the Ultimate Truth, the King and Owner of Dominion would ever command what the impure, defiled, vile corrupter, the accursed Satan, the enemy of Allah, commands. It is utterly impossible that Allah, the Ultimate Truth, would make reason and free will the basis of religious duty and then say: 'Take the innocent for the crime of the guilty,' that is, to command injustice; Exalted is Allah far above that.

All such things, and all that falls under the same category of rational and logical impossibilities, or that which contradicts the sanctity of the exalted and sublime station of divinity, can never proceed from Allah, May His Majesty be Glorified and His Names be Sanctified, neither in pre-eternity nor in eternity. This is not because such acts are, in themselves, among the intrinsic

¹⁰ *Qur'ān*, 7: 28. Here Abdel Haleem gives the translation of *al-Fāḥisha* as 'disgraceful deeds.' Other translations utilise the wording of 'indecent' or 'indecency.' The latter is probably closer to the original Arabic as set in context.

¹¹ *Qur'ān*, 24: 21

impossibilities to which [Divine] power does not apply, but rather by virtue of Holiness. Holiness is defined as: absolute purity, freedom from all defects and deficiencies, and rising beyond all disgrace and dishonour. Indeed, the Lord, May He be Glorified and Exalted, has forbidden such things upon His sacred Self, and so they never occur, neither in pre-eternity nor in eternity, as though they were among the rational and logical impossibilities beyond the scope of Divine power, though, there is no difference.

2. Prostration in and of itself, is not worship

Having clarified the foregoing, we may now proceed to refute the false Wahhābi claim, namely, the assertion that *sujūd*, ‘prostration’ constitutes an act of worship toward the one to whom it is directed, *simply by virtue of the act itself*, and irrespective of the belief which the one prostrating has in relation to the one prostrated to. We affirm, by the grace and guidance of Allah, that there exists definitive proofs, established from both the Qur’ān and the *mutawātir Sunnah*, the denial of which constitutes *kufir* and *riddah*, that Allah Himself *commanded* the angels to prostrate to the father of mankind, Adam peace be upon him. Thus, based on the crumbling and incoherent Wahhābi premise that *sujūd*, in and of itself and without any preceding belief, constitutes worship it would follow, absurdly, that Allah the Exalted and Transcendent commanded His angels to worship Adam, i.e., in their viewpoint, to take him as a *Ilāh*, a god/deity besides or alongside Allah. In other words, they must conclude that Allah commanded *Shirk* and *kufir*! Let the Wahhābis take heed of the absurdities of their adopted line of ‘reasoning.’

It is likewise established by conclusive and binding evidence from the Qur’ān and the *mutawātir Sunnah* that whoever denies it is guilty of outright unbelief, that the family of Ya‘qub fell prostrate before Yusuf. Yusuf, upon him and upon his forefathers be peace, responded with gratitude to Allah, who had fulfilled his vision in truth. According to the Wahhābi sect’s contradictory and invalid view, this would imply that Yusuf thanked Allah for the act of *kufir* and apostasy committed by his own household in performing an act of major *Shirk*. And indeed, Ya‘qub peace be upon him was undoubtedly among the prostrators, for he was symbolised by the sun in the vision. By such logic,

he would be rendered an apostate, having betrayed the very divine knowledge bestowed upon him. As the Qur’ān says:

وإنه لذو علم لما علمناه

*He knew well what We had taught him, though most people do not.*¹

So wretched indeed is any ‘knowledge’ whose outcome is *Shirk* and *kufir*. Whosoever speaks in this manner about Allah and His Prophets has indeed rendered vain the very basis for further conversation. Yes, they will swiftly claim: ‘The *sujūd* of the angels to Adam was not a prostration of ‘*Ibādah*’ (worship), nor was that of the family of Ya‘qub to Yusuf; rather, it was a prostration of honour.’ In reply we would argue, then your assertion that prostration, by virtue of being merely a prostratory act, is ‘inherently worship’ is therefore utterly invalidated. For here, *at the very least*, is one instance of *sujūd* which is not ‘*Ibādah*’. It therefore becomes necessary to clarify: when is prostration worship, and when is it not? Your position, O Wahhābis, stands refuted in all circumstances; it has been torn apart, unravelled, and collapsed with resounding force its matter now concluded and nullified.

Perhaps you will argue: ‘Rather, the *sujūd* was to Allah and Adam was merely a *qiblah* for that prostration, just as the *Ka’ba* is.’ We respond: congratulations on your attribution to Allah of falsehood, ineloquence, and inability to articulate. For He speaks of His angels, those who glorify Him with praise, saying: ‘and to Him they prostrate,’ employing the verb of *sujūd* with the preposition ‘*li-*’ (to/for). He then employs the very same construct in commanding the angels: *usjudū li-Adam* ‘Prostrate to Adam,’ again with the preposition ‘*li-*.’ And He commands among countless other examples:

فاسجدوا لله واعبدوا

*So bow down before Allah and worship [Him].*²

Are we to believe, then, that He the Majestic and Exalted is He was incapable of saying: ‘Prostrate towards Adam,’ or ‘Prostrate to Me, facing Adam,’ or ‘Take Adam as your *qiblah* in a single prostration,’ or ‘Turn your faces toward

¹ Qur’ān, 12: 68

² Qur’ān, 53: 62

Adam and prostrate?’ Or are you actually claiming that He the Exalted lied in this instance? Or are you so audacious to claim that He deceived us by veiling the truth? That would be a slander of the greatest magnitude. If this is your claim, then suffice it for you to join the ranks of the deranged, or the disbelieving idolaters. And whosoever speaks thus concerning his Lord, then indeed we are relieved of the burden of responding to him - praise be to Allah, Lord of the Worlds.

Some among the Wahhābis have attempted to escape the impasse by claiming that the *sujūd* of the angels to Adam, and that of the family of Ya’qub to Yusuf, *did not* involve placing the forehead upon the ground, but was merely a form of *inḥinā* [انحناء] - ‘bowing,’ and nothing more. I would argue that this, if we are to be charitable, is a jest that would cause even a bereaved mother to laugh; indeed, it is the marvel of the age. True it may be that the angels, and Allah knows best, do not possess foreheads upon which to prostrate, as they are not constituted of flesh, blood, or bone. But then what endowed them with backs and spinal columns that would permit bending? Moreover, He who encompasses them, and the modality of their creation, and who encompasses the Arabic language, and encompasses all things in knowledge expressed the matter in His wise Book, in a clear Arabic tongue, using the term ‘*sujūd*,’ [سجود]. So how have you then rendered it as mere ‘*inḥinā*’? This is a blatant denial of the very words of Allah, or an attribution to Him of ineloquence and poor expression sufficient therein is falsehood and *kufir*! This feeble and laughable sophistry may perhaps serve as your excuse for this vain falsehood with regard to the angels. Yet it is not merely a risible and false claim, but in reality, it constitutes one of the statements of *kufir*. No one persists in it, after clarification and the establishment of proof except one who is a *kāfir*. So what, then, is the excuse in the case of the family of Ya’qub - human beings of flesh, blood, and bone, with heads, foreheads, backs, and vertebrae? Moreover, what, precisely, is it that renders *sujūd* (prostration) and *rukū* (bowing) acts of worship, while *inḥinā* (bending) is not deemed worship? And yet you yourselves assert that *rukū* is an act of worship, even though *rukū* is naught but a specific form among the ‘various types of bending.’ So then, what is the permissible degree of inclination according to your claim that does not yet constitute an act of worship? Ten degrees of angular tilt? Twenty degrees? Why, then, do you not station yourselves beside every Muslim who bends, measuring his angle with a divider or an

astrolabe, so as to warn him when he approaches the ‘critical angle,’ lest he stray from Islam into disbelief? And were you to wax impudent and propose a specific angle as the threshold, we would demand from you both rational and scriptural proof for it. And you will find no path to either ever, for eternity. But should you persist in obstinacy and arbitrariness, and propose a threshold from your own whims, we would incrementally increase it by an infinitesimal amount say, one-thousandth of a degree until such bending became *rukū*, and you would be compelled either to abandon your doctrine regarding *rukū*, or else to relinquish this vile assertion entirely, or indeed to take your place among the madmen!

Likewise, Mu’adh ibn Jabal who was among the foremost of the Companions, and among the most knowledgeable of them in matters of the lawful and the unlawful, and of Islam and *kufir* prostrated before the Prophet peace and blessings be upon him and his family upon his return from the Levant as an act of reverence and honour. Yet the Prophet peace and blessings be upon him and his family did not go beyond saying to him: ‘*What is this, O Mu’adh?*’ granting, for the sake of argument, that this constitutes a rebuke and not merely a question. The soundest narration and the most complete in wording is the one that appears in *Kashf al-Astār ‘an Zawā’id al-Bazzār*:

حَدَّثَنَا مُحَمَّدُ بْنُ بَشَّارٍ حَدَّثَنَا مُعَاذُ بْنُ هِشَامٍ حَدَّثَنَا أَبِي حَدَّثَنَا الْقَاسِمُ بْنُ عَوْفٍ مِنْ أَهْلِ الْكُوفَةِ مِنْ بَنِي مُرَّةَ بْنِ هَمَّامٍ عَنْ عَبْدِ الرَّحْمَنِ ابْنِ أَبِي لَيْلَى عَنْ أَبِيهِ عَنْ مُعَاذِ بْنِ جَبَلٍ أَنَّهُ أَتَى الشَّامَ فَرَأَى النَّصَارَى يَسْجُدُونَ لِأَسَاقِفَتِهِمْ وَبَطَارِقَتِهِمْ وَرُهْبَانِهِمْ، وَرَأَى الْيَهُودَ يَسْجُدُونَ لِأَخْبَارِهِمْ وَعُلَمَائِهِمْ وَفُقَهَائِهِمْ، فَقَالَ: لَأَيِّ شَيْءٍ تَفْعَلُونَ هَذَا؟ قَالُوا هَذِهِ تَحِيَّةُ الْأَنْبِيَاءِ، قُلْنَا: فَتَحْنُ أَحَقُّ أَنْ نَصْنَعَ بِنَبِيِّنَا صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، فَلَمَّا قَدِمَ عَلَى نَبِيِّ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ سَجَدَ لَهُ، فَقَالَ مَا هَذَا يَا مُعَاذُ؟ فَقَالَ إِنِّي أَتَيْتُ الشَّامَ، فَرَأَيْتُ النَّصَارَى يَسْجُدُونَ لِأَسَاقِفَتِهِمْ وَقِسْيَسِهِمْ وَرُهْبَانِهِمْ وَبَطَارِقَتِهِمْ، وَرَأَيْتُ الْيَهُودَ يَسْجُدُونَ لِأَخْبَارِهِمْ وَفُقَهَائِهِمْ وَعُلَمَائِهِمْ، فَقُلْتُ: لَأَيِّ شَيْءٍ تَصْنَعُونَ هَذَا؟ أَوْ تَفْعَلُونَ هَذَا؟ قَالُوا هَذِهِ تَحِيَّةُ الْأَنْبِيَاءِ، قُلْتُ: فَتَحْنُ أَحَقُّ أَنْ نَصْنَعَ بِنَبِيِّنَا صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَقَالَ نَبِيُّ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ إِنَّهُمْ كَذَبُوا عَلَى أَنْبِيَائِهِمْ كَمَا حَرَفُوا كِتَابَهُمْ، لَوْ أَمَرْتُ أَحَدًا أَنْ يَسْجُدَ لِأَحَدٍ، لَأَمَرْتُ الْمَرْأَةَ أَنْ تَسْجُدَ لِزَوْجِهَا مِنْ عِظَمِ حَقِّهِ، وَلَا تَجِدُ امْرَأَةً خَلَاوَةَ الْإِيمَانِ حَتَّى تُؤَدِّيَ حَقَّ زَوْجِهَا وَلَوْ سَأَلَهَا نَفْسَهَا وَهِيَ عَلَى ظَهْرِ قَتَبٍ

Muḥammad ibn Bashār narrated to us Mu’adh ibn Hishām narrated to us my father narrated to us al-Qāsim ibn ‘Auf from the people of Kufa narrated to us from Bani Murra ibn Hammām from ‘Abd al-Raḥman ibn Abi Layla from his father from Mu’adh ibn Jabal, that he had gone to the Levant wherein he witnessed that the Christians there prostrated to their bishops, monks and patriarchs; that the Jews would prostrate to

their rabbis, scholars and jurists. (Witnessing this) he enquired of them – ‘Why do you do this?’ They replied, ‘This is the greetings of the Prophets.’ He said: ‘(Surely) we are more deserving of doing this for our Prophet, peace and blessings be upon him.’

When he returned to the Messenger of Allah, peace and blessings be upon him he prostrated before him. Seeing this, the Prophet, peace and blessings be upon him said, ‘O Mu’adh, what is this?’ He replied, ‘I went to the Levant where I saw the Christians there prostrated to their bishops, monks and patriarchs; that the Jews would prostrate to their rabbis, scholars and jurists. I asked them – ‘Why do you do this?’ They replied, ‘This is the greetings of the Prophets.’ He said: ‘(Surely) we are more deserving of doing this for our Prophet, peace and blessings be upon him.’ The Prophet, peace and blessings be upon him said: ‘*They have lied about their Prophets, just like they have altered their Book. Had I commanded anyone to prostrate to another, I would have commanded the woman to prostrate to her husband due to the greatness of his right over her. And no woman will truly taste the sweetness of faith until she fulfils the right of her husband, even if he asks her for himself while she is on the back of a camel saddle.*’³

Al-Ḥākim also cites this in his *Mustadrak*, thereafter commenting: ‘This *ḥadith* is *Ṣaḥīḥ* upon the conditions of the two-Shaykhs but they did not record it.’⁴ Here I would argue at most, it would meet the conditions as set by Imām Muslim; a separate study has been undertaken to analyse the alleged or purported semblance of disturbance in the *isnād*. Cited in the *Musnad* of Aḥmad, there is the following in its complete wording:

حَدَّثَنَا عَلِيُّ بْنُ أَبِي الْمَدِينِ حَدَّثَنَا مُعَاذُ بْنُ هِشَامٍ حَدَّثَنِي أَبِي عَنْ الْقَاسِمِ بْنِ عَوْفٍ رَجُلٍ مِنْ أَهْلِ الْكُوفَةِ أَحَدِ بَنِي مُرَّةَ بْنِ هَمَّامٍ عَنْ عَبْدِ الرَّحْمَنِ بْنِ أَبِي لُبَيْلٍ عَنْ أَبِيهِ عَنْ مُعَاذِ بْنِ جَبَلٍ قَالَ إِنَّهُ أَتَى الشَّامَ فَرَأَى النَّصَارَى فَذَكَرَ مَعْنَاهُ؛ إِلَّا أَنَّهُ قَالَ فَقُلْتُ لِأَيِّ شَيْءٍ تَصْنَعُونَ هَذَا؟ قَالُوا: هَذَا كَانَ تَحِيَّةَ الْأَنْبِيَاءِ قَبْلَنَا، فَقُلْتُ نَحْنُ أَحَقُّ أَنْ نَصْنَعَ هَذَا بِنَبِيِّنَا. فَقَالَ نَبِيُّ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ إِنَّهُمْ كَذَّبُوا عَلَى أَنْبِيَائِهِمْ كَمَا حَرَّفُوا كِتَابَهُمْ، إِنَّ اللَّهَ عَزَّ وَجَلَّ أَبْدَلَنَا خَيْرًا مِنْ ذَلِكَ السَّلَامِ تَحِيَّةَ أَهْلِ الْجَنَّةِ

³ *Kashaf al-Astār ‘an Zawā’id al-Bazzār* [Vol. 2, no. 1461 (Shamela edition)]

⁴ al-Ḥākim *Mustadrak* [Vol. 4, no. 7325], the *isnād* being: ‘Abu Abdullah Muḥammad ibn Abdullah al-Ṣaffār narrated to us Aḥmad ibn Mahdī ibn Ristam al-Asbahānī narrated to us Mu’adh ibn Hishām al-Distaw’ee narrated to us, with it.’

Ali, he is Ibn al-Madini narrated to us Mu’adh ibn Hishām narrated to us my father narrated to me from al-Qāsim ibn ‘Auf, a man from the people of Kufa, one of the Bani Murra ibn Hammām from ‘Abd al-Raḥman ibn Abi Layla from his father from Mu’adh ibn Jabal, he said: ‘I went to the Levant and saw the Christians,’ he mentioned the substance (of the report), except that he also said: ‘Why do you do this?’ They replied, ‘This used to be the greeting of the prophets before us.’ Hence, I said: ‘(Surely) we are more deserving of doing this for our Prophet.’ Then the Prophet, peace and blessings be upon him said: ‘*They have lied about their Prophets just as they have distorted their Book. Indeed, Allah, the Mighty and Sublime has given us something better than that - the greeting of peace, the greeting of the people of Paradise.*’⁵

This is supported by the *ḥadith* of Mu’adh mentioned above, and the *ḥadith* of Qays ibn Sa’d ibn ‘Ubādah, and that of Abu Hurayrah. There are also other transmissions though their *isnāds* may not attain the same level of rigour narrated from six other Companions, may Allah be pleased with them all: Aishah, Anas ibn Mālīk, Suraqah ibn Mālīk, Jābir ibn Abdullah, Buraydah, and Ghilān ibn Salamah, may Allah's good pleasure and peace be upon them. This thus amounts to a *tawātur* which obligates certainty and the impermissibility of its rejection or neglect. Some, among them Shaykh ‘Abd al-Qādir Shaybah al-Ḥamd, have attempted to refute these *aḥādith* by reasoning – *dirāyah*, despite their establishment *by transmission, riwāyah*, under the pretext that prostration to other than Allah constitutes *Shirk*. I say: this is a circular argument, and in itself a false claim. For there remains no escape from the conundrum of the prostration of the angels to Adam, and the prostration of the House of Ya’qub to Yusuf, both of which have already been discussed. We have demonstrated with decisive proof that prostration, in and of itself as a mere physical act, does not constitute worship; and it is both rationally and legally impossible that it be considered an act of worship. There is no means to refute that *by reasoning* except through denial of the Qur’ān so

⁵ *Musnad Aḥmad* [Vol. 14, no. 19299 (print edition)]

felicitations to Shaykh ‘Abd al-Qādir Shaybah al-Ḥamd for such a form of *dirāyah*!⁶

Mu‘ādh ibn Jabal may Allah be pleased with him was among the firmly grounded scholars, one of the most learned of people in matters of *Tawḥeed* and *Shirk*, and in discerning that which constitutes ‘*Ibādah* and that which does not. The Prophet, peace and blessings be upon him, approved of his understanding, that is, his comprehension of the meaning of ‘*Ibādah*, while expressing disapproval of the action itself in the mildest of terms, no more than by asking: ‘*What is this, O Mu‘ādh?*’ assuming, for the sake of argument, that this constitutes rebuke at all. Moreover, this incident makes clear that the *Sharī‘ah* of Islam has ruled to restrict the act of *sujūd* solely to Allah the Exalted even when such prostration is intended as an expression of honour, veneration, or salutation, *rather than* as an act of worship. For indeed, the obligation of dedicating all acts of worship exclusively to Allah, Glorified and Exalted is He, is a matter known even to those less learned and virtuous than Mu‘ādh ibn Jabal. It had become firmly rooted in the knowledge of the Companions during the Meccan period, such that there was no longer a pressing need for reiteration thereof in the Madinan period, except on rare occasions, particularly not to the jurists and scholars among the Companions, such as Mu‘ādh.

Had the act of Mu‘ādh constituted *Shirk* or *kufr* in and of itself, the Prophet peace and blessings be upon him would have undoubtedly clarified the matter, called it by its proper name, and censured it explicitly, just as he did in the well-known episode of *Dhāt al-Anwāt*, wherein the Prophet peace and blessings be upon him rebuked a group among his Companions who were newly removed from disbelief and the customs of *Jāhiliyya*. He reproached them severely, saying: ‘*You have said, as the Children of Israel said to Moses: Make for us a god as they have gods,*’ as in the verse:

وَجَاوَزْنَا بِبَنِي إِسْرَائِيلَ الْبَحْرَ فَأَتَوْا عَلَى قَوْمٍ يَعْكُفُونَ عَلَى أَصْنَامٍ لَهُمْ قَالُوا يَا مُوسَى اجْعَلْ لَنَا إِلَهًا كَمَا لَهُمْ آلِهَةٌ قَالَ إِنَّكُمْ قَوْمٌ تَجْهَلُونَ

⁶ *Dirāyah* [دراية], in classical Islamic scholarly terminology, refers to rational discernment or analytical reasoning, especially in contrast to *riwāyah* [رواية], which pertains to the transmission of texts, particularly *ḥadīth*. Scholars traditionally balanced *riwāyah* with *dirāyah* to ensure both accurate narration and sound understanding. In this context, the term is employed polemically to critique the misuse or superficial application of rational judgment in opposition to textually grounded evidence.

*And We made the Children of Israel to pass the sea; then they came upon a people who kept to the worship of their idols. They said: O Moses - make for us a god as they have (their) gods. He said: Surely you are a people acting ignorantly.*⁷

This rebuke was necessarily issued at the moment the offence occurred, for that was the time when clarification was most required. It is impermissible either for Allah or for His Messenger to delay clarification beyond the moment of necessity. Far be it from Allah, Exalted is He, to break His promise, as He states:

فَإِذَا قَرَأْنَاهُ فَاتَّبِعْ قُرْآنَهُ، ثُمَّ إِنَّ عَلَيْنَا بَيَانَهُ

*Therefore when we have recited it, follow its recitation. Again upon us (devolves) the explanation of it.*⁸

Upon our examination of the various chains of transmission and verbal formulations of the episode concerning Mu‘ādh ibn Jabal may Allah be pleased with him along with the parallel accounts such as that of Qays ibn Sa‘d ibn ‘Ubādah, the prostration of the camel to the Prophet and the incident involving the Bedouin, and others of like nature, in all their various transmissions and narrations, whether *Ṣaḥīḥ*, *ḍa‘if*, or even *mawḍū‘*, we have not encountered a single report in which the Prophet peace and blessings be upon him and his family described Mu‘ādh’s act as *Shirk* or *kufr*. Nor did he say to him: ‘You have made me a *rabb* or a *Ilāh*,’ or: ‘You have worshipped me besides Allah,’ or: ‘You have set me up as a rival to Allah,’ or any such statement bearing a similar juridical implication, or even one remotely close to it. And yet the Prophet peace and blessings be upon him was the most eloquent of the Arabs, one who was granted *Jawāmi‘ al-Kalīm* and whose speech was divinely abridged for clarity and effectiveness. He employed such formulations in many other instances, such as his statement: ‘Have you made a rival to Allah? Uttered in stern rebuke of the man who had said, ‘What Allah wills and you will.’ As reported in *Adab al-Mufrad* by Imām al-Bukhārī with a *Ṣaḥīḥ isnād*:

⁷ *Qur‘ān*, 7: 138. Here we have opted for Shakir’s translation of the verse.

⁸ *Qur‘ān* 75: 18/19

حدثنا أبو نعيم قال حدثنا سفيان عن الأجلح عن يزيد بن الأصم عن بن عباس قال قال للنبي صلى الله عليه وسلم ما شاء الله وشئت قال جعلت لله ندا، ما شاء الله وحده

Abu Nu'aym narrated to us he said Sufyan narrated to us from al-Ajlah from Yazeed ibn al-Asam from Ibn 'Abbas, he said 'A man said to the Prophet, peace and blessings be upon him – as (what) you and Allah will.' He replied, 'You have made a rival to Allah, it is what Allah alone wills.'⁹

Nor for that matter did he say sternly 'This is like what the people of Moses said,' as per the famous *ḥadith* narrated by al-Tirmidhi in his *Sunan*:

Sa'eed ibn 'Abd al-Rahman al-Makhzumi narrated to us Sufyān narrated to us from al-Zuhri from Sinān ibn Abi Sinān from Abu Wāqid al-Laythy, that the Messenger of Allah, peace and blessings be upon him went out to the battle of Ḥunayn, he passed a tree that was called 'Dhāt Anwāt,' which belonged to the *mushrikeen* upon which they would hang their weapons. The people asked him to make for them *Dhāt Anwāt* just as they had one. Upon which the Messenger of Allah, peace and blessings be upon him replied: *Glory be to Allah! This is like what the people of Moses said - 'Make for us a god like they have gods,' [7: 59] by Him in whose hand my soul is, you will certainly follow the practices of your predecessors.*¹⁰

I would argue that the *isnād* for this is incredibly authentic and it has been reported by many scholars in their respective collections.¹¹ Nor did He command him to utter the two testimonies of faith, nor any other expiation, as

⁹ al-Bukhārī *Adab al-Mufrad* [Vol. 1, no. 783]. Just over half-a-dozen additional references are provided for this *ḥadith*, including al-Bayhaqy *Sunan al-Kubra* [Vol. 3, no. 5603], *Musnad* Aḥmad [Vol. 1, no. 1839] and al-Ṭabarānī *Mu'jam al-Kabir* [Vol. 12, no. 13005].

¹⁰ *Sunan* al-Tirmidhi [Vol. 4, no. 2180]. Al-Tirmidhi (Abu Esa) said of this narration: 'This *ḥadith* is *ḥasan Ṣaḥīḥ*; (regarding) Abu Wāqid al-Laythy, his name is al-Ḥārith ibn 'Auf. There are other narratives upon this matter from Abu Sa'eed and Abu Hurayrah.'

¹¹ Almost a dozen additional references are provided for this narration here, among the most prominent are: *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 15, no. 6702], *Musnad* Aḥmad [Vol. 5, no. 21947] and *Musnad* Abu Ya'la [Vol. 3, no. 1441]. Readers should refer to Volume 2 of this series [Part 5, ch. 9] for the complete discussion of this together with analysis of all channels of reporting. There are multiple reporting channels through which the incident relating to the 'Dhāt Anwāt' occurred. These authentic channels are narrated from Mālik, Sufyān ibn Uyayna, Ibrāhīm ibn Sa'd, Yunus ibn Yazeed, Ma'mar ibn Rāshid 'Uqayl ibn Khālid and Muḥammad ibn Ishāq.

He commanded someone whose tongue slipped and he swore by the false goddesses of al-Lāt and al-Uzza, as was their custom in the pre-Islamic era, as narrated by Imām Aḥmad ibn Ḥanbal in his *Musnad*:

حدثنا يحيى بن آدم حدثنا إسرائيل عن أبي إسحاق عن مصعب بن سعد عن أبيه قال حلفت باللات والعزى فقال أصحابي قد هُجرا فأتيت النبي صلى الله عليه وسلم فقلت ان العهد كان قريبا وإني حلفت باللات والعزى فقال الرسول صلى الله عليه وسلم قل: لا إله إلا الله وحده، ثلاثا؛ ثم انفت عن يسارك ثلاثا وتعوذ؛ ولا تعد

Yaḥya ibn Adam narrated to us Isrā'il narrated to us from Abu Ishāq from Muṣ'ab ibn Sa'd from his father, he said: 'I swore an oath by al-Lāt and al-Uzza, and my companions said – "You have said something unseemly." So I went to the Prophet, peace and blessings be upon him and said – 'I am newly Muslim, and I swore an oath by al-Lāt and al-Uzza.' The Messenger of Allah, peace and blessings be upon him and said – *Say Lā ilāha illa Allah Waḥdahu, three-times and then blow to your left side three-times. Seek refuge with Him and do not do it again.*¹²

There is no cause for concern regarding any possible *tadlees* (misrepresentation in reporting) from Abu Ishāq as other reporting channels show an explicit mention of hearing; he is also known for narrating from Muṣ'ab ibn Sa'd frequently. Recorded in the *Sunan* of Imām al-Nasā'i there is the following narration which is resolutely *Ṣaḥīḥ*:

أخبرنا أبو داود الحراني قال حدثنا الحسن بن محمد (وهو بن أعين: ثقة) قال حدثنا زهير قال حدثنا أبو إسحاق عن مصعب بن سعد عن أبيه قال كنا نذكر بعض الأمر وأنا حديث عهد بالجاهلية فحلفت باللات والعزى فقال لي أصحاب رسول الله بنس ما قلت: انت رسول الله فأخبره، فإننا لا نراك إلا قد كفرت؛ فأتيت فأكبرته فقال لي قل لا إله إلا الله وحده لا شريك له، ثلاث مرات؛ وتعوذ بالله من الشيطان ثلاث مرات؛ واتفل عن يسارك ثلاث مرات؛ ولا تعد له

¹² *Musnad* Aḥmad [Vol. 1, no. 1590]. For newly available translations of the *Musnad* in English, this is in the *Musnad* of Sa'd ibn Abi Waqqāṣ [Vol. 2, no. 1590, pp. 96/97]. Thereafter, the Arabic edition includes just over half-a-dozen additional references for this *ḥadith* together with the accompanying channels of transmission. For the sake of brevity, the most prominent among them are: *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 10, no. 4633], *Sunan* Ibn Mājah [Vol. 1, no. 2097] and *Musnad* Abu Ya'la [Vol. 2, no. 736].

Abu Dāwud al-Ḥirānī reported to us he said al-Ḥasan ibn Muḥammad narrated to us (and he is Ibn Ayan, *thiqa*, trustworthy) he said Zuhayr narrated to us he said Abu Ishāq narrated to us from Muṣ'ab ibn Sa'd from his father, he said: We were talking about something, and I had only recently left *Jāhiliyya* behind, so I swore by al-Lāt and al-'Uzza. The Companions of the Messenger of Allah said to me: What a bad thing you have said! Go to the Messenger of Allah and tell him, for we think that you have committed Kufr! So I went to him and told him, and he said to me: *Say: Lā ilāha illallahu Wahdahu lā Sharika lahu - three times, and seek refuge with Allah from the Shayṭān three times, and spit dryly to your left three times, and do not say that again.*¹³

The ahādith regarding a wife prostrating before her husband

Indeed, the Prophet peace and blessings be upon him declared explicitly: *'If I were to command anyone to prostrate before another, I would have commanded the wife to prostrate before her husband.'* This of course represents a conditional impossibility, articulated through the rhetorical device of 'impossible upon impossible.' Yet can it be conceivable that *Shirk* or *kufr* should ever be commanded in the first place? We have already clarified that it is inconceivable for Allah the Exalted to approve of or to command either *Shirk* or *kufr*. Is it possible, then, that the Seal of the Prophets, the most eloquent of the Arabs, endowed with *Jawāmi' al-Kalim* would have failed to state more directly: 'Were it not that prostration before other than Allah constitutes *Shirk* (or *kufr*), I would have commanded the wife to prostrate before her husband?' Indeed it is necessary to issue a decisive judgment of falsehood upon the statement of the sect of Wahhābism in general, and upon the false and heinous claim made by the so-called 'Ali al-Ḥalabī, a student of al-Albānī who stated in his commentary upon the aforementioned narratives regarding Mu'adh: 'The Messenger peace and

¹³ *Sunan* al-Nasā'i [Vol. 7, no. 3776]. In the Arabic edition almost twenty additional references for this *ḥadīth* are outlined together with their respective *isnād*'s. Given this very large body of reference material and additional pathways of reporting, we have limited the recording here to only the following references *Ṣaḥīḥ* al-Bukhārī [Vol. 1, no. 1262, Vol. 4, no. 4579 and Vol. 5, no. 5942], *Sunan* Abu Dāwud [Vol. 3, no. 3247], al-Bayhaqī *Sunan al-Kubra* [Vol. 1, no. 666] and *Sunan* al-Tirmidhī [Vol. 4, no. 1545].

blessings be upon him, did not declare him a *kāfir*; rather, he explained to him that this was *kufr*, and that no one should prostrate to another.'¹⁴

Even if we were to concede hypothetically that Mu'adh did not in fact prostrate, as some sceptics of this particular aspect of the narration maintain, but merely contemplated the act and asked the Prophet about it, as is reported in another sound transmission, albeit in abbreviated form, in which there is no explicit statement that he actually performed the prostration, nor a clear indication that he only considered it and asked, the report remains as such. As al-Ṭabarānī records in his *al-Mu'jam al-Kabir*, here abridged, but with a *Ṣaḥīḥ isnād*:

حَدَّثَنَا مُوسَى بْنُ هَارُونَ حَدَّثَنَا أَحْمَدُ بْنُ حَفْصٍ حَدَّثَنِي أَبِي حَدَّثَنَا إِبْرَاهِيمُ بْنُ طَهْمَانَ عَنْ الْحَجَّاجِ بْنِ الْحَجَّاجِ عَنْ قَتَادَةَ عَنْ الْقَاسِمِ الشَّيْبَانِيِّ عَنْ زَيْدِ بْنِ أَرْقَمٍ أَنَّ مُعَاذًا قَالَ يَا رَسُولَ اللَّهِ أَرَأَيْتَ أَهْلَ الْكِتَابِ يَسْجُدُونَ لِأَسَاقِفِهِمْ وَبَطَارِقَتِهِمْ؟ أَفَلَا نَسْجُدُ لَكَ؟ قَالَ لَوْ كُنْتُ أَمِيرًا أَحَدًا أَنْ يَسْجُدَ لِأَحَدٍ لَأَمَرْتُ الْمَرْأَةَ أَنْ تَسْجُدَ لِزَوْجِهَا، وَلَا تُؤَدِّي الْمَرْأَةُ حَقَّ زَوْجِهَا حَتَّى لَوْ سَأَلَهَا نَفْسَهَا عَلَى قَتَبٍ لَأَعْطَتْهُ

Musa ibn Hārūn narrated to us Aḥmad ibn Ḥafṣ narrated to us my father narrated to me Ibrāhīm ibn Ṭah'mān narrated to us from al-Ḥajjāj ibn al-Ḥajjāj from Qatādah from al-Qāsim ibn Shaybānī from Zayd ibn Arqam that Mu'adh said, O Messenger of Allah, 'Have you seen the People of the Book prostrating to their bishops and patriarchs? Should we not prostrate to you?' He replied: *If I were to command anyone to prostrate to anyone, I would command the woman to prostrate to her husband. A woman should fulfil her husband's rights, to the point that if he asked her for herself while riding a camel, she would oblige.*¹⁵

Similar has also been narrated by way of Qays ibn Sa'd may Allah be pleased with him:

حَدَّثَنَا عَمْرُو بْنُ عَوْنٍ أَخْبَرَنَا إِسْحَاقُ بْنُ يُونُسَ عَنْ شَرِيكَ عَنْ حَصِينٍ عَنِ الشَّعْبِيِّ عَنْ قَيْسِ بْنِ سَعْدٍ قَالَ: أَتَيْتُ الْحِيرَةَ فَرَأَيْتُهُمْ يَسْجُدُونَ لِمَرْزَبَانَ لَهُمْ فَقُلْتُ رَسُولَ اللَّهِ أَحَقُّ أَنْ يَسْجُدَ لَهُ قَالَ: فَأَتَيْتُ النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، فَقُلْتُ: إِنِّي أَتَيْتُ الْحِيرَةَ فَرَأَيْتُهُمْ يَسْجُدُونَ لِمَرْزَبَانَ لَهُمْ، فَأَنْتَ يَا رَسُولَ اللَّهِ، أَحَقُّ أَنْ يَسْجُدَ لَكَ؟ قَالَ: أَرَأَيْتَ لَوْ مَرَرْتُ بِقَبْرِى أَكُنْتُ تَسْجُدُ لَهُ؟ قَالَ قُلْتُ

¹⁴ Mentioned as per an interview with *al-Hady al-Nabawī* magazine [9th edition, p. 24, (Issue) Ramadan 1417AH].

¹⁵ al-Ṭabarānī *al-Mu'jam al-Kabir* [Vol. 5, no. 5116]

لا! قال: فلا تفعلوا، لو كنت أمرا أحدا أن يسجد لأحد لأمرت النساء أن يسجدن لأزواجهن لما جعل الله لهم عليهن من الحق

‘Amr ibn ‘Awn narrated to us Ishāq ibn Yusuf narrated to us from Shareek from Ḥuṣayn from al-Sha’bi from Qays ibn Sa’d, he said: ‘I went to al-Ḥirah and saw them (the people) prostrating themselves before a satrap of theirs, so I said – The Messenger of Allah has more right to have prostration made before him. When I came to the Prophet peace and blessings be upon him, I recounted: ‘I went to al-Hirah and saw them prostrating themselves before a satrap of theirs, but you have the most right, Messenger of Allah, to have (people) prostrating themselves before you. He said: *Tell me, if you were to pass my grave, would you prostrate yourself before it?* I said: ‘No.’ He then said: *Do not do so. If I were to command anyone to make prostration before another, I would command women to prostrate themselves before their husbands, because of the special right over them given to husbands by Allah.*¹⁶

Thus, even if we were to concede hypothetically both of these points, and also concede that *sujūd* (prostration), in and of itself as a mere physical act, constitutes an act of worship, and that its performance for other than Allah amounts to *Shirk* as some claim, this would not have been hidden from

¹⁶ *Sunan* Abu Dāwūd [Vol. 2, no. 2140]. Here the Professor adduces an additional reference to the *Mustadrak* of al-Ḥākim [Vol. 18, no. 895], with the *isnād* ‘Muḥammad ibn Ṣāliḥ ibn Hāni narrated to us al-Faḍḍāl ibn Muḥammad ibn al-Mussayib narrated to us ‘Amr ibn ‘Amr narrated to us Shareek narrated to us, with it.’ Thereafter, al-Ḥākim comments: ‘This *ḥadīth* has a *Ṣaḥīḥ* *isnād* but they did not cite it.’ Following which the Professor says: ‘I would argue that this *isnād* is *ḥasan* and a good discourse as it relates to Shareek al-Qāḍi, but the *ḥadīth* is *Ṣaḥīḥ* when taken with that which was recorded by al-Bayhaqy and also al-Ṭabarāni in his *Mu’jam al-Kabir* [Vol. 18, np. 895] with the *isnād* Ali ibn ‘Abd al Aziz narrated to us ‘Amr ibn ‘Awn al-Wāsiṭi narrated to us Ishāq al-Azraq narrated to us from Shareek, et al. Also it is cited in *al-Aḥad wal Mathāni* [Vol. 4, no. 2023]. Al-Bayhaqy has a narration in his *Sunan al-Kubra* [Vol. 7, no. 14482] for the corroboration of what Shareek has narrated: Muḥammad ibn Muḥammad ibn Muḥamish al-Ziyādi reported to us Abu Bakr Muḥammad al-Ḥussein al-Qaḥṭān reported to us Aḥmad ibn Yusuf al-Salami narrated to us ‘Abd al Raḥman ibn Abi Bakr al-Nakhi narrated to us, my father narrated to me Ḥusayn ibn ‘Abd al Raḥman al-Salami narrated to us from ‘Aāmir al-Sha’bi from Qays, he said: I arrived in Ḥirah and saw its people prostrating to their margrave. I said, ‘We were more deserving to prostrate to the Messenger of Allah, peace and blessings be upon him.’ When I came to him, I informed him of what I had seen and said, ‘We were more deserving to prostrate to you.’ He replied, *Don’t do that. If you were to pass by my grave, would you prostrate?* ‘I said, No.’ He said: *Then do not do it. For if I were to command anyone to prostrate to anyone else, I would have commanded women to prostrate to their husbands due to the rights that Allah has given men over them.*

Mu‘ādh ibn Jabal, who on the Day of Resurrection is counted among the leaders of the learned. Nor would it have occurred to him to pose such a question to the Prophet. The same applies to Qays ibn Sa’d: though not equal to Mu‘ādh in knowledge, he was comparable in length of Companionship and precedence in support of Islam; both were firmly established in the faith, far removed from the vestiges of *Shirk*. If *sujūd* in and of itself were worship, and its performance for other than Allah outright *Shirk* as is claimed, then the Prophet peace and blessings be upon him would have rebuked it most severely. Yet, the established report is only that he said: ‘*If I were to command anyone to prostrate to another, I would have commanded women to prostrate to their husbands...*’ And perhaps he also said: ‘*Do not do so,*’ if this additional phrase is soundly established. Thus, Imām Ibn Kathir, in his *Tafsir* upon the verse: ‘*And they fell down before him in prostration,*’ [12:100], states the following:

This prostration before others was permissible in their religious laws: when they greeted a great person, they would prostrate to him. This remained permissible from the time of Adam peace be upon him until the legislation of Jesus peace be upon him. In this religious dispensation [i.e. that of Muḥammad, blessings and peace be upon him], however, it was prohibited, and prostration was made exclusive to the Divine Majesty, Exalted be He.¹⁷

The Imām thus makes clear that it had been permitted, yet he does not state that it was ever transformed into *Shirk* or *kufr*, as is alleged. Rather, in his view, within our religious law it is *ḥarām*, akin to theft or fornication, which are not in themselves *Shirk* or *kufr* except in the case of one who denies their prohibition or declares them lawful, in which case unbelief arises from such denial or legitimisation, not from the mere performance of the act. Moreover, a number of jurists have disputed even the categorical nature of this prohibition, some holding it to amount only to *karāhah*, disapproval.

The return of al-Mu‘allimī

¹⁷ *Tafsir* Ibn Kathir [Vol. 2, p. 645]

Before leaving this chapter, it is necessary to address a striking problem found in the writings of Shaykh ‘Abd al-Raḥman ibn Yaḥyā al-Mu‘allimī, namely:

Ibn Ḥajar al-Haytamī, in his *al-‘Ilām bi-Qawāṭi‘ al-Islam*, reports: al-‘Izz ibn ‘Abd al-Salām found it problematic to distinguish between *sujūd* before a *Ṣanam* (idol) and the case where a child prostrates to his father in veneration, without thereby falling into unbelief. For just as *sujūd* before one’s father may be intended as an act of drawing nearer to Allah, so too may prostration before a *Ṣanam* be intended, as Allah, Exalted is He, has said: ‘We only worship them because they bring us nearer to Allah,’ [39: 3]. It cannot, then, be claimed that Allah legislated this in respect of scholars and fathers but not in respect of *Aṣnām*. Al-Qarāfī, in his *Qawā‘id*, observes that al-‘Izz found this matter highly problematic and gave it great weight. Al-Zarkashī and others transmitted the same difficulty without providing a resolution. It may be answered, however, that the father is one whom the revealed law has commanded to be venerated, and in previous dispensations prostration before one’s father was legislated, as in the verse: ‘*And they fell down before him in prostration,*’ [12:100]. Thus, there was a mitigating pretext preventing the act from constituting unbelief.

(al-Mu‘allimī himself comments): This contains a degree of inattention, for the verse does not in fact speak of *sujūd* before the father, but rather of the prostration of Yusuf’s brothers and his parents before him. Admittedly, one might infer the permissibility of *sujūd* before the father by *qiyās* (analogy), and it has also been mentioned with regard to prostration before a scholar that this is established for his kind in previous dispensations, namely in the prostration of the angels before Adam.¹⁸

Here I would argue that inherently there is no problem at all in our doctrine, which we have established with certain evidence: because prostrating to an idol is ‘*Ibādah*, that is, one of the actions included in the phrase: ‘We worship them,’ and this is inevitably preceded by a belief in some form of divinity in or related to the idol itself, as we detailed in the discussion of such matters

¹⁸ *Āthār al-Shaykh al-‘Allāmah ‘Abd al-Raḥman ibn Yaḥyā al-Mu‘allimī al-Yamānī* [Vol. 3, p. 746].

previously. That aspect of *Uluhiyyah*, divinity which the one undertaking the prostration believed to exist in the *Ṣanam* (idol) and in the case of this particular verse, it is the belief that the supposed divine being, whom the *Ṣanam* represented, was ‘a son of God.’ Exalted and sanctified is our Lord above that. For the complete context says:

تَنْزِيلُ الْكِتَابِ مِنَ اللَّهِ الْعَزِيزِ الْحَكِيمِ، إِنَّا أَنْزَلْنَا إِلَيْكَ الْكِتَابَ بِالْحَقِّ فَاعْبُدِ اللَّهَ مُخْلِصاً لَهُ الدِّينَ، أَلَا لِلَّهِ الدِّينُ الْخَالِصُ، وَالَّذِينَ اتَّخَذُوا مِنْ دُونِهِ أَوْلِيَاءَ مَا نَعْبُدُهُمْ إِلَّا لِيُقَرِّبُونَا إِلَى اللَّهِ زُلْفَى؛ إِنَّ اللَّهَ يَحْكُمُ بَيْنَهُمْ فِي مَا هُمْ فِيهِ يَخْتَلِفُونَ إِنَّ اللَّهَ لَا يَهْدِي مَنْ هُوَ كَاذِبٌ كَفَّارٌ، لَوْ أَرَادَ اللَّهُ أَنْ يَتَّخِذَ وَلَدًا لَاصْطَفَى مِمَّا يَخْلُقُ مَا يَشَاءُ سُبْحَانَهُ هُوَ اللَّهُ الْوَاحِدُ الْقَهَّارُ

*This Scripture is sent down from Allah the Mighty, the Wise. It is We who sent down the Scripture to you [Prophet] with the Truth, so worship Allah with your total devotion. True devotion is due to Allah alone. [As for] those who choose other protectors beside Him, saying, ‘We only worship them because they bring us nearer to Allah,’ Allah Himself will judge between them regarding their differences. Allah does not guide any ungrateful liar. Allah could have chosen any of His creation He willed for offspring, but He is far above this! He is the One, the Almighty.*¹⁹

And here follows the resolution proposed by Shaykh al-Mu‘allimī to this problematic issue:

The truth is that the statement of the scholars of the *madhhab*, that *sujūd* to one’s parents and the like does not constitute *Riddah* (apostasy), must be understood in the sense that such *sujūd* occurs from one who does not perform it as an act of religion, nor claims that it brings about a hidden, unseen benefit. Rather, he prostrates under the influence of a natural or customary inclination, or for a worldly purpose, such as one who prostrates before a ruler in order to seek his appointment or to secure wealth from him or the like. Such a case bears no resemblance to the *sujūd* of the *mushrikeen* before their deities, as is evident. However, should one prostrate to his parents in a manner of religious devotion, seeking thereby an unseen benefit, then this is precisely the practice of the *mushrikeen*.²⁰

¹⁹ *Qur’ān*, 39: 1/4.

²⁰ Op. Cit [Vol. 3, p. 747]

Whereupon the editor hastened to annotate, on the same page:

It was set forth in the definition of ‘*Ibādah* [pp. 733–734] that prostration to an idol does not necessitate the seeking of a hidden, unseen benefit. Even if one were to prostrate out of sheer obstinacy, or in hope of a worldly gain such as being promised a great sum of money in return for prostrating before an idol - the act would still entail *Riddah* (apostasy). Likewise, should one prostrate in jest or mockery, this too would render him an apostate; and the jurists affirm *Riddah* on these grounds, as is explicitly stated in the text. It appears that the author does not consider the act of prostration *per se*, but rather directs attention to the object of prostration. Thus he distinguishes between the idol, to whose worshippers it is customary to seek by it some hidden, unseen benefit, and the earthly king, to whom prostration is not habitually directed with the intention of such unseen benefit. Accordingly, he stipulates that apostasy occurs when one prostrates to the king with the intent of seeking an unseen benefit, but he does not make this a condition in the case of prostration to an idol.²¹

And al-Mu‘allimī continues:

What indicates this distinction is that which Ibn Ḥajar al-Haytamī has transmitted in his aforementioned work from the *Rawḍah* (*Rawḍat al-Ṭālibīn*, 1/326), in the words: ‘And this is not like what is done by many of the ignorant wrongdoers who prostrate before the Shaykhs; for that is categorically forbidden under all circumstances, whether towards the *qiblah* or otherwise, and whether the intent is prostration to Allah or not. In some of its forms, it amounts to unbelief - may Allah protect us from that.’ As for the prostration of the angels before Adam, and that of the family of Ya‘qub before Yusuf, that was an act of obedience to Allah, Exalted is He, for they possessed from Allah clear authority for it. If you should ask: How can an act constitute unbelief, when something like it had once constituted faith? I reply: Prostration to a created being is not of one single kind, but is of three types: if it is commanded by Allah, it is faith; if it is not commanded by Him and is not intended as an act of religion, it is disobedience; but if it is intended

²¹ *Āthār al-Mu‘allimī* [Vol. 3, pp. 733/734]

as an act of religion, then it is a false claim against Allah Most High and constitutes *Shirk*.²²

We say in reply, have you not observed the extent of confusion and perplexity arising from ignorance of the true nature of the *Aṣnām* (the idols), and from ignorance of the fact that *Uluhiyyah* (divinity) possesses a conceptual priority over ‘*Ibādah* (worship) and exists independently of it such that ‘*Ibādah* is in essence directed only towards a *Ilāh*? Let us concede, for the sake of argument, that prostration to one’s parents merely as an expression of reverence is a sin. The question remains: Is the statement of al-Mu‘allimī, ‘And if it is intended as *tadayyun* (religious devotion), then it is a falsehood against Allah, Exalted is He, and constitutes *Shirk*,’ valid and precise? It appears that by *tadayyun* he intends *taqarrub* (seeking nearness) and *zulfa* (access) to Allah, as indicated in the Qur’anic verse. This, however, admits of several possible meanings. Firstly, that the one to whom prostration is directed by his very being and his own action brings one nearer to Allah, as a beneficence and as gratitude for the prostrator’s veneration through the act of prostration. This may be in what the prostrator believes, whether by supplicating on his behalf in this world, or by interceding for him on the Day of Judgement should intercession be permitted. This would constitute *tawassul* - intercessionary mediation, and is conceivable only for one who already believes in the permissibility of prostration in the first place. The matter in this case is a question of permissibility or prohibition a juristic inquiry with no relation to ‘*Imān* and *kufīr*. Some remarks touching upon this were mentioned previously, though not with comprehensive treatment.

Alternatively, it may be that the prostrator believes the one to whom he prostrates possesses the power of intercession before Allah, an intercession that is never refused, and that requires no prior permission whatsoever; or that he can grant him protection from Allah; or that he is able to shield him from the punishment of Allah. It makes no difference here whether he believes this because the one prostrated to possesses an exalted divine lineage such being the prevalent belief among the idol-worshippers or because he attributes to him a power parallel to that of Allah, even in some matters, such that Allah must accommodate him and avoid confrontation with him; or due to any other

²² Ibid. [Vol. 3, p. 748]

justification one might propose. In such a case, the prostrated-to has been made a deity alongside Allah: the prostration is then, of necessity, worship of him. The prostrator is thus a *mushrik* and *kāfir*. This is, without doubt, the very condition of the *mushrikeen* who prostrated to *Aṣnām* (idols).

Secondly, that the prostration itself that is, the act of the one prostrating is what draws one nearer to Allah, just like other righteous deeds beloved and accepted by Him. This *presumes* that he believes prostration to be recommended or obligatory, a) if by virtue of an actual proof, or under the influence of a mistaken proof such as the prostration of the angels before Adam - then excellent, though at most it would be deemed a juristic error. Or b) if by mere arbitrariness, though we do not suppose this to be found among the people of Islam, then it would constitute an innovation in religion. Such an act in itself amounts to *kufir*, though its doer is not individually declared an unbeliever on account of the ambiguity of his intention of *taqarrub* (seeking nearness to Allah), as is the case with most innovations. However, if he is made to understand, the proof is established against him, and yet he persists in such practice, he is then a *mushrik* and *kāfir*, not because he 'worshipped' the one to whom he prostrated (far be it from Allah), but because he legislated in religion without Allah's sanction, thereby making his own desire his deity: he has, in reality, worshipped his passion.

And perhaps we may now return to the case of prostration to one's parents, merely as an act of reverence, which we have for the sake of argument, conceded to be sinful. Al-Haytamī, however, asserted that it is categorically forbidden, as mentioned above by al-Mu'allimī. We would argue that these are merely unsubstantiated claims, unsupported by evidence, resting upon the confusion in the minds of those eminent figures between prostration before an idol and prostration before human beings, and upon their failure to properly define the nature of idols and images. They imagined them to be nothing more than statues or stone carvings. Yet prostration in that context was without question *preceded by the belief* in some form of divinity within the idol, or more precisely: preceded by the belief in some aspect of divinity within the celestial, spiritual, or even demonic being represented by the idol, which the idol embodied and stood in place of. Nevertheless, it is exceedingly difficult to conceive of prostration to parents, or to revered Shaykhs, or even at their graves, as being undertaken purely as an act of honour, without any trace of religious devotion or of drawing near to Allah,

on the pretext that such prostration has been made obligatory or recommended. The only exception might be in the case of one returning from a distant journey or after a long absence, where the prostration might be considered a gesture of welcome or salutation. In this instance, the matter reverts to what we have already analysed: an innovation in religion, which does not amount to *Shirk* or *kufir* except in specific cases, already mentioned earlier.

In any case, the foregoing discussion demonstrates that the statement of al-Mu'allimī, namely, 'As for one who prostrates to his parents out of religious devotion, seeking through it an unseen benefit, this is the very practice of the *mushrikeen*,' is devoid of clear meaning, and yields little of substance. Moreover, it suffers from obscurity, such that it requires explanation to unravel its ambiguities. What, indeed, is the meaning of 'out of *tadayyun* - religious devotion? It is inconceivable that such an expression could arise from reflection upon the Qur'ān, which Allah revealed in a clear Arabic tongue and made supremely easy for remembrance. Moreover, al-Mu'allimī has contradicted himself, as was observed by the editor of *Āthār al-Shaykh*, who noted in a marginal annotation the quote previously mentioned.²³ The page in question confirms the editor's understanding, particularly in his statement: 'Or it may be deemed as though he were seeking, if the customary meaning of the act is that it is performed in order to obtain an unseen benefit.' For indeed it is recorded elsewhere in *Āthār al-Shaykh al-Mu'allimī*:

The precise formulation of the definition of '*Ibādah*' is to say: 'It is voluntary submission by which an unseen benefit is sought.' His words 'submission' (*khudū*) include both that which occurs by way of obedience and that which occurs by way of reverence. His words 'voluntary' exclude compulsion and the like, as will be detailed in the section on excuses, God willing. His words 'by which is sought' mean: of such a nature that it is characteristically employed for that end. Thus it includes cases where the one submitting is actually a seeker, in that he holds a belief, or a supposition, or even a possibility that such submission is a means of obtaining an unseen benefit.

²³ Here the Arabic edition re-quotes in entirety the excerpt from the editor. For the translation here, this repetition is omitted entirely (see quote corresponding to footnote 19 in this chapter.)

Or it may be deemed as though he were seeking, if the customary meaning of the act is that it is performed in order to obtain an unseen benefit, as in the case of prostration before an idol, even if the one submitting performs it out of obstinacy as was the case with Pharaoh and his people or out of fear of harm that does not reach the level of compulsion, as mentioned earlier in the *Risālah* concerning those who exposed themselves to the risk of being compelled to unbelief because they shrank from undertaking the migration, which would have meant abandoning their homes, wealth, and families; or out of flattery, which is even more reprehensible than the foregoing. This is indicated by the words of Allah, Exalted is He: ‘*As He has already revealed to you [believers] in the Scripture, if you hear people denying and ridiculing God’s revelation, do not sit with them unless they start to talk of other things, or else you yourselves will become like them: God will gather all the hypocrites and disbelievers together into Hell,*’ [4: 140].

Or it may be out of desire for some worldly benefit, as in the case of one who is promised a great sum of money in return for prostrating before an idol—and this is more reprehensible than the case of fear; or out of mockery and jest, as is indicated by the verse concerning compulsion, as mentioned earlier in the *Risālah*. And the jurists affirm apostasy on such grounds. His words ‘benefit’ are intended in the inclusive sense that encompasses the removal of harm. His words ‘unseen’ (*ghaybī*) have already been explained. This is, then, the definition of ‘*Ibādah* in the abstract. If the intention is to define the worship of Allah, Exalted is He, then there is to be added: ‘with divine authority (*bi-sulṭān*)’; and if the intention is to define the worship of other than Him, then there is to be added: ‘without divine authority (*bi-ghayr sulṭān*).’ An act may, therefore, constitute worship of other than Allah, Exalted is He, while its doer is excused; hence he is not to be judged as a *mushrik*, as will be explained, God willing.²⁴

The statement of al-Mu‘allimī ‘or it may be deemed as though he were seeking, if the customary meaning of the act is that it is performed in order to obtain an unseen benefit,’ is nothing but an attempt to evade speaking of the one prostrated to, or to phrase it more precisely, the *belief* of the one

²⁴ Op. Cit. [Vol. 3, p. 733]

prostrating concerning the one to whom he prostrates. For such a discussion would inevitably demolish all that he has built, after long exertion and the production of more than six hundred pages, in order to arrive at a definition of ‘*Ibādah* limited solely to the act and its intentions, and devoid of any reference to the attributes of the one worshipped. He knew well that to admit this would necessarily lead to circularity and the invalidity of the definition, something which he himself had pointed out at the beginning of his book. As for his statement ‘and the jurists affirm apostasy thereby,’ I do not know whether this is a firmly established *ijmā*’ of the entire community of Islam, or the position of the majority of the jurists, excluding a minority. For the overwhelming majority of jurists followed Umar ibn. al-Khaṭṭāb in affirming the continuance of stoning even though he himself, in the well-known narration concerning *al-Saqīfah*, responded to those who said: ‘We do not find stoning in the Book of Allah,’ with a reply which, upon fair reflection, must be taken as testimony to the abrogation of stoning.

Now, let us consider the example of a Muslim who is asked to prostrate before an idol in return for a vast sum of money. This prostrator did not seek an ‘unseen benefit,’ whatever definition one may give to that odious phrase, but rather sought present, immediate wealth. He does not believe in the divinity of the idol at all, but considers it to be nothing more than a stone statue; indeed, perhaps he even laughs inwardly at the foolish custodians of the idol who offered him such immense wealth. What then, is the reality of his *kufṛ* and his *Shirk*, if indeed we concede that he is a *mushrik* and *kāfir*? The truth is that such a person may fall under one of the following conditions: Firstly, He knows and acknowledges that prostration to the idol is, in itself, an act of *kufṛ*, except in cases where a valid impediment to *takfeer* applies. He also knows that the pursuit of great wealth is not among the impediments to *takfeer*. In such a case, he is indifferent to committing an act of *kufṛ*, and thus is among those who have expanded their breast to *kufṛ*. Yet the reality in this case is that this prostrator did not in fact worship the idol at all, nor did he take it as a deity besides Allah. Rather, he legislated for himself and made his own desire his deity.

Secondly, he knows and acknowledges that prostration to the idol is, in itself, an act of *kufṛ*, except in cases where a valid impediment to *takfeer* applies. Yet he interprets that acquiring such great wealth will benefit the Muslims, for instance by enabling him to purchase arms for them, or to hire

criminal bands from among the enemy for assassinations and acts of sabotage in the abode of war. Indeed, he believes this to be even more beneficial to the Muslims than the Muslim spy in the land of war, who is permitted to simulate unbelief, including prostration to idols.

Third, he does not acknowledge that prostration to the idol is, in itself, an act of *kufṛ*, because of his extreme adherence to *irjā'* that he does not declare *kufṛ* on the basis of actions, but only of belief. He scorns the idol and its worshippers, mocking them and deceiving them. Lastly, he is ignorant of the ruling, being illiterate, or newly entered into Islam. Accordingly, the jurists' ruling of *Riddah* in such a case, without qualification or differentiation, cannot be accepted. And far be it from Allah that the community should have unanimously agreed upon an unexamined position, for it may prove to be invalid or at least some of its particulars invalid as only becomes apparent after precision and careful clarification. Previously the matter of a person prostrating to Jesus, son of Mary was discussed within the framework of our examination and refutation of the definition of '*Ibādah*' given by Shaykh al-Mu'allimī - let the reader refer to it again.

In any case, prostration, in itself, is not '*Ibādah*' of the one to whom it is directed, and therefore does not constitute *Shirk* or *kufṛ*. Yet it is without doubt, *kufṛ*, *Shirk*, and *Ibādah* of the one prostrated to, if the prostrator attributes to him any aspect of *Uluhiyyah* (divinity). It may also amount to *Shirk* and *kufṛ* for other reasons, such that it becomes worship of one's own desire; or worship of the one who commanded that prostration, if the prostrator believes that such a commander possesses the right of absolute obedience, that is, if he ascribes to him some aspect of *Hākimiyyah*. This constitutes *Shirk* and *kufṛ* if the commander is other than Allah. But if the prostrator believes that the commander is Allah Himself, then it is worship of Allah. Such worship is praiseworthy and accepted if it is supported by direct evidence, or by a semblance of evidence relied upon by the prostrator. It is worship of Allah but innovated (*bid'ah*), if the prostrator has no evidence at all. And innovation may usually through obstinacy and stubbornness reach the level of *kufṛ*, so that the prostrator becomes either a worshipper of his own desire, or, if he is a blind follower, a worshipper of the one who gave him such a legal opinion, having taken him as a lord besides Allah. In both cases, the act of worship is nullified, for the worship of Allah is rendered void by *Shirk*.

3. Standing with humility and silence is not by default 'worship'

This applies to prostration, bowing, and bending. As for standing, it is known that there are three types of standing for creatures: standing *towards* someone, standing *for* someone, and standing *over* someone. The first type is permissible, it is the standing done for the purpose of greeting, showing respect, embracing, welcoming someone who has arrived, and similar matters. Numerous authentic transmitted texts that provide certain knowledge, whose combined evidence leads to certainty, indicate that the Prophet peace and blessings be upon him and his family, used to do this for some of his Companions and relatives and that some of the Companions, may Allah be pleased with them, used to do it for one another.

Examples of this include, as per the *ḥadith* which is narrated by al-Bukhārī and Muslim upon the authority of Abu Sa'eed al-Khudri, may Allah be pleased with him, that the Prophet, peace and blessings be upon him, said to the Anṣār at Banū Qurayẓah when Sa'd ibn Mu'adh came: '*Stand up for your Sayyid.*'¹ Also cited in the *Ṣaḥīḥayn* appearing in the long *ḥadith* narrated by Ka'b ibn Mālīk regarding the story of the three who were left behind, about the action of Ṭalḥa ibn Ubaydallah, who stood up to congratulate and greet him after Allah turned to him in repentance. This happened in the assembly of the Prophet and in his presence, without any objection being raised. Ka'b would constantly recall that incident to Ṭalḥa, may Allah be pleased with them both. In his collection of *Sunan* al-Tirmidhi

¹ The Arabic edition doesn't carry specific references to the examples of the *aḥādith* which are quoted here. However these are fairly accessible in English. Al-Bukhārī has this recorded in his *Ṣaḥīḥ* in *Kitāb al-Maghāzī*; it is also reported across many other collections.

narrated a tradition upon the authority of ‘Aisha, may Allah be pleased with her, that the Prophet peace be upon him, stood to embrace Zayd ibn Ḥāritha. Elsewhere, in the *Sunan* collections of al-Tirmidhi, al-Nasā’i and Abu Dāwud, it is further narrated that the Prophet peace and blessings be upon him, stood up for Fāṭima whenever she came to visit him, she also reciprocated this when he visited her. Lastly, one can consider also the narration recorded by al-Bayhaqy regarding the Prophet peace and blessings be upon him standing up for Ikrimah ibn Abi Jahl when he migrated to him, among other narrations which are *mutawātir ma’nawīyan*, continuously recurrent narrations by meaning, thereby indicating definitiveness and certainty.

As for the two remaining types of standing namely, standing *for* someone, and standing *over* someone, they are either *ḥarām* or *makrūh* (disliked), according to a difference of opinion among the jurists. This type of standing is done out of veneration, not with the intention of greeting, or anything of that sort. It is of two forms: standing *over* a man while he is sitting, as done by the king’s attendants out of veneration, without any other reason justifying this act. As for the guards, the police, etc., whose job or security roles require them to perform it while standing, then there shall be no blame upon them, for in this case standing is to perform a job that cannot be properly performed except while standing, meaning it is a necessary condition for them to appropriately execute their responsibilities. This is called ‘standing *over* someone,’ which is most likely *ḥarām*. As for standing for someone who enters or passes by out of veneration, without shaking hands, embracing, or greeting them, it is most likely not forbidden, and it is called: standing *for* someone. As for these two types, the texts have come prohibiting them and informing that they resemble the practices of the non-Muslims in their veneration of others besides Allah, the Glorified and Exalted. As cited in the *Musnad* of Imām Aḥmad ibn Ḥanbal:

حدثنا أبو كامل حدثنا حماد مرة عن ثابت عن أنس ومرة عن حميد عن أنس بن مالك قال ما كان أحد من الناس أحب إليهم شخصاً من رسول الله صلى الله عليه وسلم، كانوا إذا رأوه لا يقوم له أحد منهم، لما يعلمون من كراهيته لذلك

Abu Kāmil narrated to us Ḥammād Murra narrated to us from Thābit from Anas and Murra from Ḥumayd from Anas ibn Mālīk, he said – ‘None was more beloved to them than the Messenger of Allah, peace

and blessings be upon him; (yet) when they saw him, none of them would stand up for him, because they knew he hated that.’²

It is also narrated in the *Musnad* of ‘Abd ibn Ḥumayd, with a *Ṣaḥīḥ isnād*:

أخبرنا أبو أسامة عن حبيب بن الشهيد عن أبي مجلز لاحق بن حميد قال دخل معاوية بيتاً فيه عبد الله بن عامر وعبد الله بن الزبير، فقام عبد الله بن عامر ولم يقم عبد الله بن الزبير، فقال معاوية لعبد الله بن عامر: اجلس فإني سمعت رسول الله صلى الله عليه وسلم يقول من سره أن يمثل الرجال له قياماً فليتبوأ مقعده من النار

Abu Usāma reported to us from Ḥabeeb ibn al-Shaheed from Abu Mijlāz Lāḥiq ibn Ḥumayd, he said: ‘Mu’āwiya entered a house in which Abdullah ibn ‘Aāmir and Abdullah ibn Zubayr were. Abdullah ibn ‘Aāmir stood up, (whereas) Abdullah ibn Zubayr didn’t. Mu’āwiya said to Abdullah ibn ‘Aāmir, “Sit, for I heard the Messenger of Allah, peace and blessings be upon him saying: *Let him who likes people to stand up before him prepare his place in the fire.*”³

Further to this, cited from a second pathway of reporting, al-Ṭabarāni has recorded the following in *Mu’jam al-Awsaf*:

حدثنا علي بن إبراهيم الخزاعي الأهوازي قال حدثنا عبد الله بن داود بن دلهات قال حدثني أبي عن أبيه دلهات عن أبيه اسماعيل عن أبيه أن أباه مسرع بن ياسر حدثه عن عمرو بن مرة الجهني قال قال النبي صلى الله عليه وسلم من أحب أن يتمثل له الرجال بين يديه قياماً فليتبوأ مقعده من النار

Ali ibn Ibrāhīm al-Khuzā’i al-Ahwāzi narrated to us he said Abdullah ibn Dāwud ibn Dalhāt narrated to us he said my father narrated to me from his father, Dalhāt from his father Ismā’il from his father, that his father, Misrah’ ibn Yassār narrated it from ‘Amr ibn Murra al-Juhani, he said that the Prophet peace and blessings be upon him said:

² *Musnad* Aḥmad [Vol. 3, no. 12393]. Additional references cited for this include that of al-Bukhārī, as per *Adab al-Mufrad* [Vol. 1, no. 946], *Sunan* al-Tirmidhi [Vol. 5, no. 2754], and *Musnad* Abu Ya’la [Vol. 6, no. 3784]. The follow-on comment which Abu Esa al-Tirmidhi provides after citation is: ‘This *ḥadīth* is *ḥasan Ṣaḥīḥ*, *ghareeb* from this pathway of reporting.’

³ *Musnad* ‘Abd ibn Ḥumayd [Vol. 1, no. 413]. Almost a dozen additional references for this tradition are provided in the Arabic edition. Notable among them are that cited from *Adab al-Mufrad* by al-Bukhārī [Vol. 1, no. 977], the *Sunan* collections of Abu Dāwud [Vol. 4, no. 5229] and al-Tirmidhi [Vol. 5, no. 2755] and *Muṣṣanaḥ* Ibn Abi Shayba [Vol. 5, no. 25582].

*Whomsoever loves for men to stand before him, let him take his seat in the fire.*⁴

Contained here, there is a warning is only for the one *who loves that people stand up for him*; a person's love for others to stand for him is, without a doubt, prohibited. This ultimately stems from arrogance and self-conceit, and it is one of the destructive diseases of the heart. The infallible and final Prophet, peace and blessings be upon him and his family, was the farthest of people from such noxious behaviour. Hence that is why his noble Companions, may Allah be pleased with them, refrained from standing up for him, even though he never explicitly forbade them from doing so, unless it was in imitation of the non-Arabs. Next, the following is cited in the *Musnad* of Imām Aḥmad:

حدثنا بن نمير حدثنا مسعر عن أبي العنّيس عن أبي الغدّيس عن أبي مرزوق عن أبي غالب عن أبي أمامة قال خرج علينا رسول الله صلى الله عليه وسلم وهو متوكئ على عصا، فقمنّا إليه فقال لا تقوموا كما تقوم الأعاجم يعظم بعضها بعضاً! قال فكأنّا اشتبهنا أن يدعو الله لنا فقال اللهم اغفر لنا وارحمنا وارض عنا وتقبل منا وأدخلنا الجنة ونجنا من النار، وأصلح لنا شأننا كله، فكأنّا اشتبهنا أن يزيدنا فقال قد جمعت لكم الأمر

Ibn Numayr narrated to us Mis'ar narrated to us from Abul'Anbas from Abu al-'Adabbas from Abu Mazruq from Abu Ghālib from Abu Usāma, he said: 'The Messenger of Allah peace and blessings be upon him came out to us leaning upon a staff, so we stood up for him. He said: *Do not stand up as foreigners do for showing respect to one another*. Then it was as if we wished he would supplicate for us, so he said: *O Allah, forgive us, have mercy on us, be pleased with us, accept from us, admit us into Paradise, save us from the Fire, and set right all our affairs*. Then it was as if we wished he would ask for even more, so he said: *I have encompassed for you everything (in this)*.⁵

While the *isnād* for this may not be particularly strong, the reported text is upstanding. Like the previous narration, there is no mention or discussion of matters pertaining to *Shirk* or *kufr*. Rather, it is limited to that of a dislike of imitating foreigners only. As per the *Ṣaḥīḥ ḥadīth* which is narrated by Imām

⁴ al-Ṭabarānī *Mu'jam al-Awsat* [Vol. 4, no. 4208].

⁵ *Musnad* Aḥmad [Vol. 5, no. 22235]. Among the follow-on references for are *Sunan* Abu Dāwud [Vol. 4, no. 5230], *Sunan* Ibn Mājah [Vol. 2, no. 3836] and *Muṣṣanaḥ* Ibn Abi Shayba [Vol. 5, no. 25581].

Muslim in his collection of *Ṣaḥīḥ*, namely:

حدثنا قتيبة بن سعيد حدثنا ليث (ح) وحدثنا محمد بن رمح أخبرنا الليث عن أبي الزبير عن جابر قال اشتكى رسول الله، صلى الله عليه وسلم، فصلينا وراءه وهو قاعد وأبو بكر يسمع الناس تكبيره فالتفت إلينا فرأنا قياماً فأشار إلينا فقعدنا فصلينا بصلاته قعوداً فلما سلم قال إن كدتم أنفأ لتفعلوا فعل فارس والروم يقومون على ملوكهم وهم قعود فلا تفعلوا؛ إنتموا بأنتمكم إن صلى قائماً فصلوا قياماً وإن صلى قاعداً فصلوا قعوداً

Qutayba ibn Sa'eed narrated to us Layth narrated to us, (*ḥawala*) and Muḥammad ibn Rumḥ narrated to us; Layth reported to us from Abul'Zubayr from Jābir, he said: 'The Messenger of Allah peace and blessings be upon him was ill and we said the prayer behind him as he was sitting. Abu Bakr was making audible to the people his *takbir*. As he paid his attention towards us, he saw us standing and (directed us to sit down) with a gesture. So we sat down and said our prayer with his prayer in a sitting posture. After uttering salutation he said: *You were at this time about to do an act like that of the Persians and the Romans. They stand before their kings while they sit, so don't do that; follow your Imāms. If they say prayer standing, you should do so, and if they say it sitting, you should also do so*.⁶

Nothing within the previous paragraph contains any mention of *Shirk* or *kufr*; rather, it is a dislike of imitating the Persians and Romans in that specific act, and nothing more. Accordingly, it is understood that standing for a created being carries a severe warning only for those who love that to be done for them. Besides, it is considered a form of imitating the disbelievers. Imitating the disbelievers and adopting from their practices, those that are unique to their disbelief or mark them as disbelievers, has come with a severe warning. It was narrated by Aḥmad and Abu Dāwud upon the authority of Ibn Umar, may Allah be pleased with them, that the Prophet peace and blessings be upon him, said: 'Whoever imitates a people is one of them.'⁷ Also, narrated by al-Tirmidhi upon the authority of Abdullah ibn 'Amr ibn al-'Aās that the Prophet peace and blessings be upon him, said: 'He is not one of us who imitates

⁶ *Ṣaḥīḥ* Muslim [Vol. 1, no. 413]. Once again, almost a dozen follow-on references are provided for this particular narration. Notable among them are: *Ṣaḥīḥ* Ibn Ḥibbān [Vol. 5, no. 2122/2123], *Ṣaḥīḥ* Ibn Khuzaymah [Vol. 1, no. 486] and *Sunan* al-Nasā'i [Vol. 3, no. 1200], *Sunan* al-Kubra [Vol. 1, no. 535].

⁷ *Sunan* Abu Dāwud, [*Kitāb al-Libas*, no. 4031]

others; do not imitate the Jews or the Christians.’⁸ There are other explicit or implicit authentic texts related to the same topic.

The Prophet, peace and blessings be upon him and his family, did not call these two disliked or prohibited types of standing ‘*Ibādah*, nor did he assume that this act is considered *Shirk*. The Prophet did not say ‘You have made me a lord or a god,’ nor did he say that ‘You worshipped me besides Allah,’ or that ‘You have set me up as a rival to Allah,’ or anything similar to that, or even close to it, or a statement similar in judgment, taking into consideration that he prohibited them from these two acts, as we have discussed in detail.

Notwithstanding the above, it is essential to recognise that the Islamic prayer is in contrast, a *ritual of worship*, and that standing during it is ‘*Ibādah*, which remains so under all circumstances; even if it is not performed as it should be, namely with total humility and complete devotion. However, it is ‘*Ibādah* in all cases, including the bowing and prostration that it contains. And what we have mentioned in this chapter regarding ‘standing with humility and stillness in a specific manner,’ and what we have mentioned in a previous chapter regarding prostration applies, all the more so to bowing, bending, and greeting through lowering the head and placing the hands on the chest, and other bodily postures similar to that. None of these bodily postures in and of itself qualify as acts of ‘*Ibādah* in the first place, therefore, we shall not elaborate on it or attempt to prove it.

⁸ Al-Tirmidhi records this in his collection of *Sunan* under the chapter of ‘What has been related about it being disliked to gesture With the hand when giving Salam.’ The *isnād* he presents is: ‘Qutayba narrated to us Ibn Lahiyah narrated to us from ‘Amr ibn Shu’ayb from his father from his grandfather, that the Messenger of Allah peace and blessings be upon him said.’ However after citing this he comments: ‘The *isnād* for this *ḥadīth* is *ḍa‘īf*; Ibn al-Mubarak narrated this *ḥadīth* from Ibn Lahiyah but not in *marfū‘* form.’

4. Other *ḥadīth* on standing, not seeking help

Following on from the discussion in the previous chapter regarding ‘standing’ being a matter intrinsic as an act of worship, there is a particular *ḥadīth* that is of note to discuss. While it may not, in and of itself, be construed as being definitive proof – this is due to the presence of a *mubham* narrator in the channel of transmission, it does provide some supporting corroborative evidence to the arguments we have been setting out.¹ Naturally, it provides a stern slap to the bizarre claims asserted by the Wahhābi sect and this has been included here, albeit as a separate chapter, but can be taken as a corollary or appendix to the previous one.

The narrations in question

The first is cited in the *Tafsīr* of Ibn Abi Ḥātim:

It was mentioned on the authority of Zayd ibn al-Ḥubāb, Ibn Lahiyah narrated to us al-Ḥārith ibn Zayd al-Ḥaḍrami from Ali ibn Rabbāḥ al-Lakhmi - someone who witnessed ‘Ubādah ibn al-Ṣāmit narrated to me, saying: We were in the mosque, and among us was Abu Bakr al-Ṣadeeq, may Allah be pleased with him, and some of us were reciting

¹ We have left the technical term ‘*mubham*’ (plural, *mubhamāt*) as a transliteration. Essentially this refers to the ambiguity over the identity and name of a given narrator, which is under the broader classification of narrators who are deemed as unknown/anonymous, *majhūl*. Ibn Ḥajar writes in *Nukhbāt al-Fikr*: ‘Or he may be left unnamed out of brevity. Concerning this (they compiled) the anonymous mentions, *mubhamāt*. The *mubham* narrator is not accepted, even if he is mentioned anonymously with a grading of commendation, *ta’dīl*, according to the soundest opinion.’

the Qur’ān to one another. Then Abdullah ibn Ubayy ibn Salul came, carrying a cushion and a mat, placed them down, and reclined. He was eloquent, articulate, and argumentative. He said, ‘O Abu Bakr, tell Muḥammad to bring us a verse like those brought by the earlier Prophets. Moses came with the tablets, David came with the Psalms, Ṣāliḥ came with the she-camel, and Jesus came with the Gospel and the table (from heaven).’ Abu Bakr, may Allah be pleased with him, wept. Then the Messenger of Allah, peace and blessings be upon him, came out, and Abu Bakr said, ‘Rise for the Messenger of Allah, peace and blessings be upon him, so we may seek refuge with him from this *munāfiq* (hypocrite). The Messenger of Allah, peace and blessings be upon him, said: *People should not stand up for me; they should only stand for Allah, the Mighty and Sublime* [إِنَّهُ لَا يَقَامُ لِي، إِنَّمَا يَقَامُ لِلَّهِ عَزَّ وَجَلَّ]. So we replied, ‘O Messenger of Allah, we have been troubled by this *munāfiq*.’ In reply, he said: *Indeed, (the angel) Jibreel said to me: ‘Go forth and proclaim the favours of Allah that He has bestowed upon you and the excellence with which He has favoured you.’ He gave me glad tidings that I have been sent to all of mankind, (to the) red and the black. He commanded me to warn the jinn; granted me His Book while I was unlettered, forgave my past and future sins, and mentioned my name in the adthān.*

*He supported me with angels, granted me victory, placed fear of me in the hearts of my enemies, gave me al-Kawthar and made my Ḥawḍ the greatest of all on the Day of Judgment. He promised me the al-Maqām al-Maḥmūd, while people will be rushing with their heads bowed. He placed me among the first group to emerge from mankind and included seventy thousand of my followers in my intercession, admitting them into Paradise without reckoning. He granted me authority and dominion, elevated me to the highest chamber in the gardens of paradise, with none above me except the angels who carry the Throne. He made the spoils of war lawful for me, though they were not lawful for anyone before me.*²

² *Tafsir* Ibn Abi Ḥātim [Vol. 6, pp. 219/220 (print edition, 2006)]. [يَقَامُ] is the present tense (passive) third person of the (Form IV) verb [أَقَامَ]. Given the length of the narrative, the Arabic text has been omitted, bar the key wording included above in brackets.

It is also set out in the *Tafsir* of Ibn Kathir, beginning with the wording, ‘Ibn Abi Ḥātim, may Allah be pleased with him, said.’ After which Ibn Kathir commented by saying: ‘This *ḥadith* is *ghareeb jiddan*.’³ After citing this Imām Ibn Kathir said: ‘It has been narrated by Aḥmad ibn Ali from a man from Ubādah, as will be mentioned in the matter of *mubhamāt* from him.’ It is missing from the manuscripts that are currently in circulation today. It is also cited in the *Tafsir al-Qur’ān min al-Jāmi*’ of Ibn Wahb. The original is from a poor-quality manuscript; the *isnād* is present as having a series of blanks then [عَنْ] ‘from’ Ibn Lahiyah from al-Ḥārith ibn Yazeed from Ali ibn Rabbāḥ from a man who heard ‘Ubādah (ibn al-Ṣāmit saying): ‘We used to gather in the mosque to recite (the Qur’ān), and among us was Abu Bakr al-Ṣadeeq,’ etc. Essentially the reported wording is largely the same as the previous narration, including mention of the entry of Abdullah ibn ‘Ubayy ibn Salul and his obnoxious comments. Another core aspect of the narration has the wording purportedly from Abu Bakr where he says: ‘Let us rise and seek refuge with the Prophet of Allah from this *munāfiq*,’ and the Prophetic reply set out as being:

إِنَّهُ لَا يَقَامُ لِي، إِنَّمَا يَقَامُ لِلَّهِ، إِنَّ جِبْرِيلَ أَتَانِي فَقَالَ اخْرُجْ فَحَدَّثَ بِنِعْمَةِ اللَّهِ الَّتِي أَنْعَمَ بِهَا عَلَيْكَ وَبِفَضِيلَتِهِ الَّتِي فَضَّلْتَ بِهَا

*No one stands for me, they stand only for Allah. Indeed, Jibreel came to me and said: ‘Go forth and proclaim the favour of Allah that He has bestowed upon you and the distinction He has granted you...’*⁴

A brief mention of the narration appears in the *Musnad* of Aḥmad, essentially carrying the narration in an abbreviated form:

حَدَّثَنَا مُوسَى بْنُ دَاوُدَ حَدَّثَنَا ابْنُ لَهْيَعَةَ عَنْ الْحَارِثِ بْنِ يَزِيدَ عَنْ عَلِيِّ بْنِ رَبَاحٍ أَنَّ رَجُلًا سَمِعَ عَبْدَ اللَّهِ بْنَ الصَّامِتِ يَقُولُ خَرَجَ عَلَيْنَا رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ فَقَالَ أَبُو بَكْرٍ رَضِيَ اللَّهُ

³ *Tafsir* Ibn Kathir [Vol. 9, pp. 391/392 (print edition)], mentioned in relation to the *Tafsir* of *Surah al-Anbiyā* (ch. 21). The Professor adduces an additional reference here which is to *Futuḥ Miṣr wa Akhbārūha* by Abul Qāsim ‘Abd al-Raḥman ibn Abdullah ‘Abd al-Ḥakam ibn Ayan al-Qurashi al-Miṣri [p. 298].

⁴ Ibn Wahb *Tafsir al-Qur’ān min al-Jāmi* [Vol. 3, p. 6, no. 3 (*Shamela* edition)]. Departing from the Arabic text, we have presented this in summary to its most essential points. The Arabic edition has the complete wording.

عَنْهُ قَوْمُوا نَسْتَعِثُ بِرَسُولِ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، مِنْ هَذَا الْمُنَافِقِ فَقَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ لَا يُقَامُ لِي إِلَّا يُقَامُ لِلَّهِ تَبَارَكَ وَتَعَالَى

Musa ibn Dāwud narrated to us Ibn Lahiyah narrated to us from al-Ḥārith ibn Yazēed from Ali ibn Rabbāḥ that a man heard Ubādah ibn al-Ṣāmit saying: ‘The Messenger of Allah, peace and blessings be upon him, came out to us, and Abu Bakr, may Allah be pleased with him, said: Let us stand to seek help from the Messenger of Allah, peace and blessings be upon him, against this *munāfiq*. The Messenger of Allah, peace and blessings be upon him, then said: *Do not stand for me - indeed, standing is only for Allah, the Blessed and Almighty.*’⁵

These are three trustworthy narrators, the first being Imām Abdullah ibn Wahb, he is considered the most reliable in narration from Ibn Lahiyah, highly accurate in *ḥadith* transmission, and also among those who are the earliest to hear from him being in possession of his original manuscripts. Next is Zayd ibn Ḥubāb, again being among those who heard from Ibn Lahiyah in the early period, and lastly, Musa ibn Dāwud, all of them reporting the purported Prophetic wording as being, ‘*Do not stand for me - indeed, standing is only for Allah, the Blessed and Almighty.*’ All these narrators have attributed to this to a *mubham* narrator from ‘Ubādah ibn al-Ṣāmit. However there is also the attribution that it is reported by al-Ṭabarānī, as we find this cited in *Jāmi’ al-Masāneed wal’-Sunan* by Ibn Kathir, he records:

قال الطبراني حدثنا أحمد بن حماد بن رغبة المصري حدثنا سعيد بن عفير حدثنا ابن لهيعة عن الحارث بن يزيد عن علي بن رباح عن عبادة قال قال أبو بكر قوما نستغيث برسول الله صلى الله عليه وسلم، من هذا المنافق، فقال رسول الله صلى الله عليه وسلم إِنَّهُ لَا يُسْتَعَاثُ بِي، إِلَّا يُسْتَعَاثُ بِاللَّهِ، عَزَّ وَجَلَّ

al-Ṭabarānī said: Aḥmad ibn Ḥammād ibn Zughba al-Miṣri narrated to us Sa’eed ibn ‘Ufayr narrated to us Ibn Lahiyah narrated to us from al-Ḥārith ibn Yazēed from Ali ibn Rabbāḥ from ‘Ubādah he said, Abu Bakr said: ‘Stand up and seek help from the Messenger of Allah peace and blessings be upon him against this hypocrite.’ The Messenger of

⁵ *Musnad Aḥmad* [Vol. 37, no. 22706 (*Shamela* edition)]. Here the Professor provides two additional follow-on references for the narration, the first by Ibn Sa’d in *Ṭabaqāt al-Kubra* [Vol. 1, p. 387], the second in *Jāmi’ al-Masāneed wal’-Sunan* [Vol. 4, no. 5875], with Ibn Kathir’s comment thereafter being: ‘They did not cite it (in their collections), although al-Ṭabarānī narrated it from Ali from Ubādah without an intermediary, and Allah knows best.’

Allah peace and blessings be upon him said: *I’m not the one to be sought for help, but rather help is to be sought from Allah the Mighty and Sublime.*⁶

Again here, Imām Ibn Kathir commented with: ‘It has been narrated by Aḥmad ibn Ali from a man from ‘Ubādah, as will be mentioned in the matter of *mubhamāt* from him.’ It is missing from the manuscripts that are currently in circulation today. Al-Haythami makes mention of this in *Majmu al-Zawā’id* beginning with ‘and from ‘Ubādah ibn al-Ṣāmit, he said.’ The purported Prophetic wording though is different and is expressed as:

إِنَّهُ لَا يُسْتَعَاثُ بِي إِلَّا يُسْتَعَاثُ بِاللَّهِ عَزَّ وَجَلَّ

*Indeed, help is not sought from me; rather, help is sought from Allah, the Mighty and Sublime.*⁷

After mentioning this al-Haythami said, ‘It is narrated by al-Ṭabarānī, its men (in the channel of transmission) are the men of *Ṣaḥīḥ*, other than Ibn Lahiyah; it is a *ḥasan ḥadith*. And it has been narrated by (Imām) Aḥmad in a different context, concerning mannerisms in the chapter related to standing.’ In response, we would argue that decisively, this is *bāṭil*, without a shadow of a doubt. It would be difficult to argue that this is a typographical error made by the scribe in dictation, given that there is a clear disparity in the reported wording, from *yu’qāmu* [يُقَامُ] to *yustaghāthu* [يُسْتَعَاثُ]. Responsibility for that error would seem to reside with either Aḥmad ibn Ḥammād ibn Zughba al-Miṣri or Sa’eed ibn Kathir ibn ‘Ufayr, the latter perhaps more likely given that he would read the books of people, as it is as per *Tārikh al-Islam*.⁸ Concerning the writing as per the latter narrations from Ibn Lahiyah, they are not

⁶ Ibn Kathir *Jāmi’ al-Masāneed wal’-Sunan* [Vol. 4, no. 5780]

⁷ al-Haythami *Majmu al-Zawā’id* [Vol. 10, no. 17276 (print edition)]. Here the wording of *yustaghāthu* [يُسْتَعَاثُ] is used, which is the present tense (passive) third person of the (Form VIII) verb [اِسْتَعَاثَ], which is to beseech, to implore, to call out for help.

⁸ al-Dhahabī *Tārikh al-Islam* [Vol. 5, p. 578 (*Shamela* edition), ed. Bashār]

considered reliable, containing a great deal of confusion.⁹ Again, as noted in *Tārīkh al-Islām* ‘Ibn Yunus said in another place – this *ḥadīth* is among those which were criticised regarding (the presence of) Sa’eed ibn ‘Ufayr, no one narrated it from Ibn Lahiyah bar him. Similarly, another *ḥadīth* he narrated from Ibn Lahiyah was also subject to criticism.’¹⁰ Given this, I would also argue that by Allah, there is no god/deity besides Him, the Seal of Prophethood never once said, ‘Indeed, help is not sought from me; rather, help is sought from Allah.’ Such a phrase wasn’t sent down to him, neither in the night or the day!

Catastrophically, this *bāṭil ḥadīth* suited the inclination of Ibn Taymiyyah, matching his innovation. He thus relied upon it and spread it, as it has been mentioned in *Jāmi‘ al-Rasā’il* of Ibn Taymiyyah:

The one who requests *du‘ā’* from another falls into two categories. First: that his request arises from a *need* for the other; this is analogous to seeking from others the fulfilment of personal needs. Second: that he seeks from the other a *supplication*, whereby the supplicator benefits the requester by his *du‘ā’*, and Allah benefits both thereby. This is like requesting from a created being that which the created being is capable of doing, such as supplicating Allah or offering assistance. Such a request is permissible, akin to seeking help in that which lies within his power. However, if what is sought is that which no one has power over save Allah, then it is impermissible to ask for it from any other than Allah. Neither from the angels, nor the Prophets,

⁹ Ibn Lahiyah (d. 790 CE), a judge in Egypt and prolific transmitter, but despite that, his reliability was questioned by many scholarly authorities. For example, Ibn Sa’d noted in *Ṭabaqāt al-Kubra* ‘He was *ḍa‘if* and had many *aḥādīth*. Those who listened to him at the beginning of his affair have a better state in his transmission than those who listened to him at the end of it.’ [Vol. 7, p. 358 (print edition)]. In more than one place in his *Sunan*, al-Tirmidhi said: ‘Ibn Lahiyah is considered *ḍa‘if* by the scholars of *ḥadīth*. Yahya ibn Sa’eed al-Qaṭṭān judged him to be *ḍa‘if*, as well as others, on account of his *ḥifẓ*.’ Ibn Ṣalāḥ writes: ‘Abdullah ibn Lahiyah al-Miṣri was a lax transmitter. Despite his augustness, citing his narratives as proof was rejected on account of his laxity. It was said that Yahya ibn Ḥassan saw a group of people who had a personal collection of *ḥadīth* which they heard from Ibn Lahiyah. He examined the text and not a single *ḥadīth* in it belonged to Ibn Lahiyah. He went to Ibn Lahiyah and told him that. He replied, “What can I do? They bring a book and say – this contains your *ḥadīth*, so I transmit it to them.” See: *An Introduction of the Science of Ḥadīth* (2006) - *Kitāb Ma’rifat Anwā’ Ulum al-ḥadīth*, translated by Dr Eerik Dickinson (Reading: Garnet Publishing), [pp. 147/148].

¹⁰ Op Cit.

nor from anyone else. (Hence) it isn’t lawful to say to any other than Allah, ‘forgive me,’ or ‘send us rain,’ or the like thereof.

For this reason, al-Ṭabarānī narrated in his *Mu‘jam* that during the time of the Prophet peace and blessings be upon him, there was a hypocrite who used to harm the believers. So al-Ṣadeeq (*sic.* Abu Bakr) said: ‘Come, let us seek the Prophet’s help against this hypocrite.’ So they went to him, and he said: *Indeed, help is not sought from me; rather, help is sought from Allah* [إنه لا يستغاث بي إنما يستغاث بالله]. This is in matters of seeking aid, and it applies in the same way.¹¹

Given the aforementioned citation by their totem Ibn Taymiyyah, the sect of Wahhābism seized upon this, building their illusory theories upon this house of cards, their books constantly mentioning and emphasising it. At times they’ve gone to great mental acrobatics in his defence and purported meaning, including seeking to shield the channel of transmission from any criticism. In contrast to their acrobatics in trying to level criticism against any *Ṣaḥīḥ aḥādīth* that doesn’t fall in line with their temperament of deviancy and vain desires. One can see this clearly in the following set of quotations, which we begin by presenting the rationale of Ṣāliḥ ibn ‘Abd al-Aziz Āl al-Shaykh on this:

1) The Prophet, peace and blessings be upon him, said: ‘*Indeed, help is not sought from me; rather, help is sought from Allah.*’ The Companions request to seek help from the Prophet, peace be upon him, was permissible because they asked for assistance in something within his power. Thus, when they said, ‘*Let’s go and seek help from the Messenger of Allah,*’ they were seeking help from the Prophet regarding what was within his ability. However, the Prophet, peace be upon him, taught them the proper etiquette and the highest form of seeking help by saying: ‘*Indeed, help is not sought from me; rather, help is sought from Allah.*’ The Companions request did involve a turning to the Prophet in matters within his capacity, but he clarified that their obligation is first and foremost to seek help from Allah. He said, ‘*help is not sought from me,*’ and this phrase contains a

¹¹ Ibn Taymiyyah *Jāmi‘ al-Rasā’il* [p. 7 (*Shamela* edition)]

prohibition, meaning: do not seek help from me in this matter; rather, seek help from Allah.

2) Some scholars have said that in the *isnād* of this *ḥadīth* is Ibn Lahiyah, and his condition is known. The reason behind (why) the scholars of *ḥadīth* sometimes report narrations whose channels of transmission may be questionable is as follows: this is considered acceptable if the meaning of the *ḥadīth* is supported by evidence from the Qur’ān or the *Sunnah*. What is mentioned in this *ḥadīth*, in the words of the Prophet, peace be upon him, ‘*Indeed, help is not sought from me; rather, help is sought from Allah,*’ is corroborated by verses previously cited.

This is the approach of the people of *ḥadīth* - the approach of those firmly grounded in knowledge among the people of *ḥadīth*, as Shaykh al-Islam Ibn Taymiyyah stated in one of his discussions in *al-Fatāwa*: ‘The people of *ḥadīth* don’t use *ḍaef ḥadīth* to evidence matters of Uṣūl, rather they utilise it to support a principle already established, or in matters (relating to) subsidiary rulings.’ This is the approach of the Shaykh, may Allah have mercy on him, in this book. That is, they refer to *aḥādīth* in terms of the meaning they convey, rather than necessarily their exact strength in terms of transmission.¹²

It may well be a tall order to try and argue that the approach Ṣāliḥ ibn ‘Abd al-Aziz Āl al-Shaykh is that which is based upon a method or approach ‘of those firmly grounded in knowledge.’ Next, Sulaymān ibn Saḥmān went substantially overboard with the following comments made in the work *al-Ḍiyyāh* ‘*al-Shāriq fī Radd Shubuhāt al-Mādhiq al-Māriq*:

(The narrator) Ibn Lahiyah was cited by al-Bukhārī and Muslim, and he crossed the threshold (*sic* of their criteria). Only one that is ignorant of the science and terminology of *ḥadīth* would find fault in what Ibn Lahiyah narrated. Whoever criticises Ibn Lahiyah based on the words

¹² The Arabic edition presents two sizeable quotes here but only saying, ‘It has been mentioned by Ṣāliḥ ibn ‘Abd al-Aziz Āl al-Shaykh,’ without specific reference to the name of the work. The quotations are taken from *al-Tamheed li-Sharḥ Kitāb al-Tawḥeed* by Ṣāliḥ ibn ‘Abd al-Aziz Āl al-Shaykh [pp. 187/188 (*Shamela* edition)]. Each of the quotes has been shortened to the most relevant parts pertinent to the discussion of this chapter. Repetition of the background behind the *ḥadīth* is omitted for the sake of brevity.

of some people would then have to criticise many great *ḥadīth* scholars...In any case, Ibn Lahiyah was better than those who permitted seeking help from the Messenger of Allah peace and blessings be upon him and was more knowledgeable of the Book of Allah, the *Sunnah* of His Messenger, and the statements of the scholars than they were.¹³

However, the editor of that work by Ibn Saḥmān, ‘Abd al-Salām ibn Barjas ibn Nāsir ibn ‘Abd al-Karīm, fundamentally did not agree with this extremism and attempted to ‘soften’ the stance he took. The footnote to the aforementioned quote that he provides in the work reads as follows:

This is the inclination of the esteemed author may Allah have mercy on him regarding the narration of Ibn Lahiyah, and he has mentioned his basis for it. However, his viewpoint that he crossed the threshold (*sic* meeting their criteria) with al-Bukhārī and Muslim narrating from him isn’t accepted. This is because (Imām) Muslim *only* cited him alongside others, specifically the narrator ‘Amr ibn al-Ḥārith. It is well-established that when narrators are cited in supporting or corroborating channels of transmission (*shawāhid wal mutābi’āt*) rather than as the root underlying source, this doesn’t constitute authentication, serves a subtle or attesting purpose for which they were included, this is in relation to Muslim’s inclusion of Ibn Lahiyah in the *Ṣaḥīḥ*.

With regards to (Imām) al-Bukhārī, this is in *Kitāb al-Fitan* of the *Ṣaḥīḥ*: from al-Muqri from Ḥaywa ‘and other than him,’ [وغیره] from Abul’Aswad, he said ‘A detachment was recruited from the people of Medina...’ (e.g.) the *ḥadīth* narrated from ‘Ikrimah from Ibn ‘Abbās. He narrated this *ḥadīth* by this channel of reporting in (the books of) *al-‘Itisām*, *Tafsir Surah al-Nisā*’ and in another place (the book of) *Ṭalāq* without naming the parallel narrator alongside Ḥaywa. Ibn Ḥajar said: ‘There is no doubt that this is Ibn Lahiyah.’ However, this

¹³ Sulaymān ibn Saḥmān *al-Ḍiyyāh* ‘*al-Shāriq fī Radd Shubuhāt al-Mādhiq al-Māriq* [p. 476 (*Shamela* edition)]. Here again, we have abbreviated the lengthy quote from Ibn Saḥmān (d. 1930 CE) to its most relevant parts. The remainder portion outlines some of the background of Ibn Lahiyah and who he narrated from and those who narrated from him, essentially arguing that any criticism of him as a narrator inadvertently is criticism of them.

does not count as strengthening the narrator, let alone authenticating him or deeming him to have ‘crossed the threshold.’

Regarding the authors comment that ‘Only one that is ignorant of the science and terminology of *ḥadith* would find fault in what Ibn Lahiyah narrated,’ he does not mean to disparage the early scholars as some have misunderstood, as evidenced by his acknowledgment of the differing opinions about Ibn Lahiyah, mentioned at the end of this section and the beginning of the third section. Rather, in his view, he is referring to those who fail to properly apply the principles of *al-Jarḥ wa’ Ta’del* to the statements of the early scholars. Undoubtedly, the author’s stance here is incorrect on this matter, though he is not the first to unconditionally authenticate Ibn Lahiyah, as many earlier and later scholars have done so before him.

What appears most accurate regarding the *ḥadith* Ibn Lahiyah is in relation to *al-Shawāhid wal Mutābi’āt*.¹⁴

The following has been cited in *Fatāwa’ al-Lajna al-Dā’imah*:

This *ḥadith* explicitly states that one should not seek help from the Prophet peace and blessings be upon him or anyone lesser than him. The Prophet peace and blessings be upon him disliked such wording being used for him, even though he was capable of being sought for help in his lifetime, in order to safeguard the sanctity of *Tawḥeed*, blocking the means to *Shirk*, maintain humility before his Lord, and warn the *Ummah* against the means of *Shirk* in words and deeds. If this was the case during his lifetime when he was capable of being sought for help, then how can it be permissible to seek beseech him after his death and ask him for matters that only Allah, the Almighty, has power over? And if this applies to the Messenger peace and blessings be upon him then what about those lesser than him? With regards to *ijmā*, the *Ummah* is unanimous that *du’ā* is exclusive to Allah the Almighty, directing it to anyone else is *Shirk*.¹⁵

¹⁴ Ibid. We have slightly abbreviated the comments in part where they are not relevant to the discussion at hand.

¹⁵ *Fatawā’ al-Lajna al-Dā’imah* [Vol. 1, pp. 121/122 (*Shamela* edition)]

Here observe this brazen lie, the appeal to *ijmā* – consensus. By the Lord of the *Ka’ba* this is falsehood; perhaps the Wahhābi sect means by this consensus, that it is built exclusively by them and for them, because they consider everyone else to be *mushrik* and *kāfir*! Next, the following has been mentioned in *Fatāwa’ al-Shabka al-Islamiyyah*:

We have previously explained the cases in which the phrase *Ya’Rasul-Allah* (O Messenger of Allah,’ may be used, and the ruling for each case, in Fatwa No. 14616, so refer to it. Regarding the phrase *Ya Muḥammad* ‘O Muḥammad,’ it is not among the expressions of exclamation; rather, it is most commonly used by the general public as a way of seeking help from the Prophet, peace and blessings be upon him. For this reason, it should be avoided as an expression of astonishment, in order to block the means [إسدا للزريعة] and to avoid resembling those who say it as a form of seeking aid.¹⁶

Shaykh al-Islam Ibn Taymiyyah said in *Kitāb al-Istighāthah* (*sic.* regarding the narration) ‘It is suitable for supporting evidence, and its meaning is indicated by the Qur’ān and the *Sunnah*.’ He elaborated in *Talkhiṣ Kitāb al-Istighāthah* in clarifying the soundness of its meaning.

Shaykh Sulaymān ibn ‘Abdullah said in *Tayseer al-‘Azeer al-Hameed*: ‘What is meant by this is guidance toward proper wording and protection by him peace and blessings be upon him of the cause of *Tawḥeed* and the exaltation of Allah, Blessed and Exalted. So if this was his peace and blessings be upon him statement regarding seeking help from him in matters he is able to do, then how much greater (is the prohibition) in seeking help from him, or from anyone else, in major matters that none is capable of except Allah? Yet this is what is often found on the tongues of many poets and others, and few people recognize that this is *munkar*, let alone realizing that it constitutes *Shirk*.’ For further benefit, see Fatwa No. 31789.¹⁷

Al-Ghunaymān took a philosophical stance in his commentary on *Fatḥ al-Majeed* where he said:

¹⁶ At this juncture, the *ḥadith* purportedly from al-Tabarāni is mentioned together with the follow-on comment of al-Haythami. This is omitted for the sake of brevity as it is extensively covered already in this chapter.

¹⁷ *Fatāwa’ al-Shabka al-Islamiyyah* [Vol. 9, p. 2101 (*Shamela* edition)]

And similar to that is the aforementioned *ḥadīth* in which a man from among the Companions was harmed by a hypocrite, so he said: ‘Let us go to the Messenger of Allah and seek his help...’

And it is known that the Messenger of Allah, peace and blessings be upon him, could have commanded that he be killed, and if he had said to one of the Companions: ‘Execute him,’ they would have hastened eagerly to carry it out—indeed, they would have raced to do so. But he, peace and blessings be upon him, intended to block the means that could open avenues to what is impermissible. Similar examples, very many of them, have been clarified in the *aḥādīth* of the Prophet, peace and blessings be upon him.¹⁸

However, Ali ibn Ḥussein Faqihī was in a somewhat better state when he philosophised in *Arsheef Multaqa Ahl al-Ḥadīth*:

The *ḥadīth* is ḍaʿif (weak); and the *khabr*, if authentic, could be understood in one of two ways: First, that the Prophet, peace and blessings be upon him, said: ‘Indeed, help is not sought from me,’ because he was not able to kill Abdullah ibn Ubayy, since he peace and blessings be upon him, was prevented from doing so lest people say that ‘Muḥammad kills his companions.’ Secondly, that he, peace and blessings be upon him, said this as a way of blocking the means [سداً للنزعة] even though he was able to execute him, imprison him, or expel him from the land. Rather, he said it as a precautionary measure, so that people would not become lax in such speech and make it a habit, thereby falling into what is forbidden.’

Finally, al-Ālusi said the following in his *Tafsīr Rūḥ al-Maʿānī*:

The second point is that people have become excessively engaged in invoking other than Allah, Exalted is He, among the *awliyāʾ* (saints), whether living or deceased, or others, such as saying: ‘O Sayyidī Fulān, help me!’ This is in no way among the categories of permissible *tawassul* (intercession). What befits a believer is to refrain from

¹⁸ Abdullah ibn Muḥammad al-Ghunaymān *Kitāb Sharḥ Faṭḥ al-Majeed* [Vol. 2, p. 134 (Shamela edition)]. Again, for the sake of brevity, repetition of the *ḥadīth* is omitted from the quote.

uttering such words, and not to linger near its precincts. Some among the scholars have deemed it *Shirk*, and even if it is not explicitly so, it certainly approaches it. I do not believe that *anyone* who says such things does so unless he harbours a belief that the one called upon whether a living absentee or a veiled deceased possesses knowledge of the unseen, or hears the call, or is capable, either independently or through another, of bringing benefit or averting harm. Otherwise, he would not have called out to him, nor opened his mouth with such utterance. Indeed, therein lies a severe trial from your Lord. Prudence dictates to avoid that, not asking except from Allah the Almighty, the Doer of what He wills [1].

And whoever discovers the secret [ومن وقف على سر] of what al-Ṭabarānī narrated in his *Muʿjam* that a hypocrite was abusing the Muslims and al-Ṣadeeq said: ‘Let’s go and seek help from Allah’s Messenger against this hypocrite,’ so when they came to him he said: ‘Indeed, help is not sought from me; rather, help is sought from Allah, the Almighty,’ [إنه لا يستغاث بي إنما يستغاث بالله تعالى]. One who understands the wisdom in this will not doubt that *istighāthah* [الاستغاثة] from the occupants of graves – who are either felicitous, occupied by blessings and freely moving in gardens to pay attention to what is in this word, or are wretched, distracted by punishment and entrapment in fire from answering their callers and listening to people of their assembly – is something that must be avoided and is unsuited for possessors of sound minds to be engaged in. Let it not delude you that the one seeking help from creation at times has his need fulfilled and his objective accomplished, for that is a trial and a tribulation from Him (Great and Glorious is He). At times the devil takes the form to the one asking help of the one he asked help from, so he believes it to be a miracle of the one he asked help from. Far, very far! Indeed, it is only the devil misguiding him and turning him astray. Some ignoramuses say this is part of the growth of the soul of the one asked for help or an angel appearing in his form as his miracle. Evil is their judgement! Although the soul’s growth and an angel’s appearance are possible, it won’t be in such a situation and when committing such a crime. We ask Allah, Exalted is He, with His names to protect us from this. We take as an

intermediary His grace to [ask Him to] make us and you walk on the best of paths.¹⁹

All praise is due to Allah. The *bāṭil ḥadīth* which is not *ṣaḥīḥ* now by some miraculous intervention contains ‘a secret’ within it? To Allah we belong and unto Him shall we all return. To be completely fair to al-Ālusi, may Allah have mercy upon him, he wasn’t strictly speaking a pure adherent to the sect of Wahhābism, rather he could be viewed as being ‘semi-Wahhābi.’ The editor of the work, Ali ‘Abd al-Bāri ‘Aṭṭiya added a footnote to the text, which is marked in parentheses as [1]. It seems he couldn’t allow the comments made by al-Ālusi to pass without adding his word of caution, which was ‘This is the truth, which is that one completely avoids that. What the author inclined to before, regarding permissibility, is his own opinion and is not acceptable, so take heed.

¹⁹ al-Ālusi *Tafsīr Rūḥ al-Ma‘ānī* [Vol. 3, p. 297 (Shamela edition)]

5. Circumambulating around a grave is not ‘worship’ of it

As for the claim of the Wahhābi sect that *ṭawāf* - circumambulation, around graves, such as the grave of ‘Abd al-Qādir al-Jilāni or Aḥmad al-Badawī, is to be considered an act of *Shirk kufrī* - idolatrous disbelief, that expels one from the fold of Islam by the mere act of performing it; as in, the mere act of *ṭawāf*, simply because it imitates or resembles the *ṭawāf* around the *Ka‘ba* in form, regardless of the inner belief of the person concerning those individuals. Notwithstanding the intention behind the act, they typically put it concisely as being: ‘*ṭawāf* around graves is ‘*Ibādah* (worship) of the graves.’ Their statement, besides being a pure mistake and a baseless accusation, reveals the lack of intellectual substance of the Wahhābi sect. It is evidence of their superficial approach to actions, and their confusion concerning the dimensions of those actions. Nor are their opponents, I mean the opponents of the Wahhābi sect, deeper in thought or better than them, with very few exceptions. For instance, when one of them says: ‘*ṭawāf* around graves is not necessarily *Shirk*, nor is it an act of ‘*Ibādah*. It is like *ṭawāf* around *al-Bayt al-Ḥarām*, just as *ṭawāf* around *al-Bayt* is not an act of ‘*Ibādah* directed to *al-Bayt* itself, likewise, *ṭawāf* around a grave is not an act of ‘*Ibādah* directed to the grave.’

Yes, *ṭawāf* is performed *with* something, or *around* something; it is done with a particular *intention* in mind. The following can serve as a few examples, namely, an athlete preparing for a long-distance race (e.g., a 10,000-meter race) might train by running dozens of times around the centre of a large stadium. The purpose here is to strengthen the muscles and achieve physical fitness. This is, undoubtedly, considered *ṭawāf* around the centre of

the stadium, yet it is not *directed* toward anything in particular; it is neither an act of *Ibādah* to the stadium nor is it an act of *Ibādah* to anything else whatsoever. Another example is, a Muslim performs *Tawāf* around the *Ka'ba* with firm certainty that Allah is the One and Only God, seeking closeness to Him and obeying His command. This is a *Tawāf* of *Ibādah* directed to Allah, while at the same time, it is considered *Tawāf* around the *Ka'ba*, not an act of *Ibādah* directed to the *Ka'ba* as an object itself. A person may also perform *Tawāf* around an architectural structure or a work of art to appreciate all its aesthetic dimensions. The *purpose* here is aesthetic appreciation. This is *Tawāf* around the building or the artwork, yet it is not an act of worship of the structure or the piece, nor is it an act of worship directed to anything else whatsoever. The devotees who believe in the divinity of Krishna in India perform *Tawāf* around every temple dedicated to Krishna, seeking closeness to this false deity and idol. This is *Tawāf* of *Ibādah* directed to Krishna, and at the same time, it is *Tawāf* around the walls of the temple; it is not an act of *Ibādah* to the temple itself, nor to its walls.

It is then an established fact that a person's *Tawāf* around a grave is not, in its essence a mere act of *Tawāf*, an act of worship directed to the grave. The real question is - what is the actual intention of the one performing this *Tawāf* around the grave? He must have an intention; otherwise, he would be considered insane, and the pen would be lifted from him, or perhaps a blind man whose cane has failed him, and who, by mere coincidence, stumbles along a path that happens to resemble *Tawāf* in its form. Is the intention to seek closeness to Allah, believing with firm certainty that He is the One and the Only, by performing *Tawāf* around the grave of one of His Prophets or one of His *Awliyā'*, in honour and veneration towards the saint as a form of devotion to Allah? Accordingly, *Tawāf* around the grave would be an act of *Ibādah* directed to Allah, certainly, not an act of worship to the grave itself, as the Wahhābi sect has crudely claimed. Nevertheless, it is an invalid and innovated *Ibādah*, for there is undisputed consensus that Allah has not commanded *Tawāf* around a specific point or place, neither as an obligation nor as a recommendation, except for *Tawāf* around the *Ka'ba*. And whoever seeks closeness to Allah through that for which there is absolutely no established evidence of its obligation or recommendation, he has ordained some polytheistic beliefs, which Allah has not authorised. And this, in itself,

is a heinous innovation, meaning it represents *Shirk* and *kufir* in its essence. Its doer is among those about whom Allah has said:

أَفَرَأَيْتَ مَنِ اتَّخَذَ إِلَهَهُ هَوَاهُ وَأَضَلَّهُ اللَّهُ عَلَى عِلْمٍ وَخَتَمَ عَلَى سَمْعِهِ وَقَلْبِهِ وَجَعَلَ عَلَى بَصَرِهِ غِشَاوَةً فَمَنْ يَهْدِيهِ مِنْ بَعْدِ اللَّهِ أَفَلَا تَذَكَّرُونَ

*Have you seen the one who has taken his own desire as a god, whom Allah allows to stray in the face of knowledge, sealing his ears and heart and covering his eyes— who can guide such a person after Allah [has done this]? Will you [people] not take heed?'*¹

Thus, such a person is a *mushrik* and *kāfir*, he is not a 'grave worshipper,' rather he worships his own desires, except for those who are excused due to ignorance or misinterpretation (and this, Allah willing, is the case of most Muslims who fall into such practices), or compulsion, or other impediments to *takfir*. Or is the intention merely to honour and revere the occupant of the grave? We say: it is difficult to conceive it without it being mixed with a form of seeking closeness to Allah. The occupant of the grave would not have deserved, from the one performing the *Tawāf*, such reverence and honour in this specific manner, *except* due to their status with Allah. Honouring and revering the Prophets of Allah is, undoubtedly, a means of seeking closeness to Allah. So how, then, can one imagine a heart and mind completely devoid of any intention of seeking closeness to Allah?

This then, and Allah knows best, seems to fall into the previous category. Especially when we take into consideration that honouring a living person is expressed through greeting them face-to-face, embracing them, kissing their hands, and perhaps even their feet. So if this person had abandoned his *Tawāf* and instead thrown himself upon the grave, embracing and kissing it, this might have been understandable, and would not create serious issues. Besides, we have never seen a living person perform *Tawāf* around another living person unless he intended to attack him or assassinate him! Or perhaps the one performing *Tawāf* believes that the occupant of the grave possesses some aspect of divinity, such as believing that Allah has indwelt him, or that he has evolved or ascended into a divine being (following the way of the Indian sage *Durvasa*), or that Allah has truly associated him in His divine

¹ *Qur'ān*, 45: 23

sovereignty, in such a way that Allah is unable to restrain his actions or invalidate what has been confirmed. Accordingly, there is no need for deep analysis or extensive reflection: this undoubtedly is *Ṭawāf* of *ʿIbādah* directed toward ‘the occupant of the grave,’ or *ʿIbādah* of the buried individual in the grave. It is, at the same time, *Ṭawāf* ‘around the grave.’

It is incorrect to say: ‘*ʿIbādah* of the grave,’ but this saying comes from the ignorant masses and those who call each other by offensive nicknames. As for the people of knowledge and serious inquiry, they only say: ‘*ʿIbādah* of the occupant of the grave,’ or ‘*ʿIbādah* to the buried individual.’ And perhaps there are other types of *Ṭawāf*, with other purposes. The discerning reader will be capable of evaluating them properly if he examines them with enlightened insight and analyses them in detail with utmost precision and care. And what we have mentioned in this chapter regarding ‘*Ṭawāf* around the grave,’ as well as what we have mentioned in a previous chapter about standing with humility and stillness in a specific manner, and likewise about *sujūd* - ‘prostration,’ also applies to crawling, creeping, walking, jogging, or performing *Saʿy* (the ritual of walking between *Safa* and *Marwah*) in a specific manner at a specific place. None of these actions constitute ‘acts of *ʿIbādah*’ in the first place. Therefore, we shall not elaborate on it or attempt to prove it.

6. The nature of *Duʿāʾ*

In this chapter we will provide an exhaustive examination of the nature of *duʿāʾ*, covering both the supposed dichotomy of *duʿāʾ al-Masʿāla* [دعاء المسألة], the ‘supplication of request,’ and *duʿāʾ al-ʿIbādah* [دعاء العبادة], the ‘supplication as it pertains to worship.’ The Wahhābī sect has fallen into confusion on the matter of *duʿāʾ* just as it has in the matters of *sujūd* (prostration), *qiyām* (standing), and *ṭawāf* (circumambulation); indeed, its confusion here may be even more severe and reprehensible. Consider the following examples – to begin, it is stated in *Uṣūl al-ʿImān fī Ḍawʾ al-Kitāb wa-l-Sunnah* a work authored by ‘a group of scholars,’ the Najdi clerical establishment and published by the ‘Ministry of Islamic Affairs, Endowments, Daʿwah and Guidance’ in what is known as the Kingdom of Saudi Arabia:

Whoever supplicates to other than Allah, Exalted is He, for something that only Allah has the power to do, is a *mushrik* and *kāfir*, whether the one being called upon is alive or deceased. However, whoever supplicates to a living person for something they are capable of doing, such as saying: ‘O so-and-so, feed me,’ or ‘O so-and-so, give me water,’ and the like, there is no blame upon him. But whoever calls upon a deceased or absent person with such a request, then he is a *mushrik*, because the deceased and the absent cannot perform such acts.¹

¹ *Uṣūl al-ʿImān fī Ḍawʾ al-Kitāb wa-l-Sunnah*, Ministry of Islamic Affairs, Endowments, Daʿwah and Guidance [1421 hijri (2000 CE), p. 83]

The following has been cited in *Sharḥ Thalāth al-Uṣul* by Ṣāliḥ al-Shaykh:

This issue is established in the books of the people of knowledge, that the saying of the Almighty: ‘*And that the mosques are Allah’s, therefore call not upon any one with Allah,*’ [72: 18] includes both types of *du‘ā*, (namely), *du‘ā al-Mas‘āla* [دعاء المسألة] and *du‘ā al-‘Ibādah* [دعاء العبادة]. As has been cited in the *Ṣaḥīḥ ḥadīth* narrated by al-Nu‘mān ibn Bashir that the Prophet, peace and blessings be upon him said: ‘*Du‘ā is worship,*’ [الدعاء هو العبادة]; a narration with a similar meaning is narrated from Anas in *marfu* form, ‘*Du‘ā is the essence (or pith) of worship,*’ [الدعاء مخ العبادة].²

Next, there is a question and answer as it appears in *al-Liqā’ al-Shahrī* by Ibn Uthaymeen:

Question: Honourable Shaykh, I kindly ask you to clarify the difference between *du‘ā al-Mas‘āla* and *du‘ā al-‘Ibādah*?

Answer: All acts of worship that a person performs are *Du‘ā’ al-‘Ibādah*. Prayer is *Du‘ā’ al-‘Ibādah*, charity is *Du‘ā’ al-‘Ibādah*, fasting is *Du‘ā’ al-‘Ibādah*, pilgrimage is *Du‘ā’ al-‘Ibādah*, honouring one’s parents is *Du‘ā’ al-‘Ibādah*, seeking knowledge is *Du‘ā’ al-‘Ibādah* - because, if you were to ask such a worshipper: “What do you intend by this act of worship?” he would say: “I intend nearness to Allah and to attain His abode of honour.” Thus, he is indeed one who supplicates (*dā’*) through the state of his tongue (*lisān al-ḥāl*). As for *du‘ā al-Mas‘āla*, it is that a person explicitly asks Allah for what he wants, saying: “O God (Allah), forgive me,” “O Allah, have mercy on me,” “O Allah, guide me,” and the like. This is the distinction: every worshipper of Allah is a supplicant through the state of his tongue (*dā’ bi-lisān al-ḥāl*), and everyone who requests is a supplicant... etc.³

² Ṣāliḥ al-Shaykh *Sharḥ Thalāth al-Uṣul* [p. 21]. The translation of the verse is by Shakir. Ibn Ḥajar records both narrations in his *Bulugh al-Marām (Kitāb al-Jāmi’)*, noting the first being recorded by the four-Imām’s (al-Tirmidhi, Abu Dāwūd, al-Nasā’i and Ibn Mājah), with al-Tirmidhi grading this as *Ṣaḥīḥ*. The latter from Anas (*al-Du‘ā mukḥul ‘Ibādah*) although this has been queried as being *daef* (weak); al-Tirmidhi’s comment on this was: ‘Abu Esa said – This *ḥadīth* is *Ghareeb* from this pathway of reporting. We don’t know of this *ḥadīth* except by way of Ibn Lahiyah.’

³ *al-Liqā’ al-Shahrī* [Vol. 22, p. 47 (Shamela edition)]

Fourth in this series of citations is what has been outlined in *Fatāwa’ Nūr ‘alā al-Darb al-Naṣṣiyyah*:

This is a question sent by both brother Sulaymān and Muḥammad from Ḥaḍramawt: “The scholars have said that *du‘ā’* is divided into two categories: *Du‘ā’ al-‘Ibādah* and *Du‘ā’ al-Mas‘āla*. What is meant by each of them?”

He (may Allah have mercy on him) replied: The scholars may Allah have mercy on them intend by the division of *du‘ā’* into two categories, namely *Du‘ā’ al- al-Mas‘āla* (supplication of request) and *Du‘ā’ al-‘Ibādah* (supplication through worship), what Allah the Exalted has indicated in His saying: ‘*And your Allah says: Call on Me, and I will answer you. Indeed, those who are too proud to serve Me will enter Hell humiliated,*’ [40: 60]. Thus, *Du‘ā’ al-Mas‘āla* is that one asks Allah the Exalted for one’s needs, saying, for example: “My Allah, forgive me, have mercy upon me, provide for me, grant me well-being, support me,” and the like.

As for *Du‘ā’ al-‘Ibādah*, it is that one worships Allah, Blessed and Exalted, through the legislated acts such as prayer, almsgiving, fasting, pilgrimage, and doing good, since the worshipper in this case intends nothing but the pleasure of Allah and His reward. Thus, he is a supplicant to Allah through the state of his tongue (*lisān al-ḥāl*) rather than through the tongue of speech (*lisān al-maqāl*). It should also be noted that some of these acts of worship include within them *Du‘ā’ al-Mas‘āla*, as in the prayer for example. In the prayer, the worshipper says: ‘*Guide us to the straight path,*’ [1: 4] this is *Du‘ā’ al-Mas‘āla*. He also says: ‘My Allah, forgive me,’ this is *Du‘ā’ al-Mas‘āla*. He says: ‘Peace be upon you, O Prophet; peace be upon us and upon the righteous servants of Allah,’ and: ‘O Allah, send blessings upon Muḥammad, O Allah, bless Muḥammad,’ and: ‘I seek refuge in Allah from the punishment of Hell,’ - all of these are forms of *Du‘ā’ al-Mas‘āla*.

The difference between the two, then, is as follows: *Du‘ā’ al-Mas‘āla* consists of directly asking Allah for something, whether it be the attainment of a desired matter or protection from a feared one. *Du‘ā’ al-‘Ibādah*, on the other hand, is that one worships Allah, the Exalted, through what He has legislated, out of hope for His reward and fear of His punishment. This is the meaning intended by the

scholars may Allah have mercy on them in their classification of *du‘ā’*.⁴

The next citation is taken from *Ajwibah Muḥīdah ‘an As’ilah ‘Adīdah* by ‘Abd al-Aziz al-Rājiḥi:

The *Sharḥ* is upon a well-known *ḥadīth* narrated by Ibn ‘Abbās, reported in al-Bukhārī and other collections, in which the Prophet peace and blessings be upon him would say during times of distress:

لَا إِلَهَ إِلَّا اللَّهُ الْعَلِيمُ الْخَلِيمُ لَا إِلَهَ إِلَّا اللَّهُ رَبُّ الْعَرْشِ الْعَظِيمِ لَا إِلَهَ إِلَّا اللَّهُ رَبُّ السَّمَوَاتِ
وَرَبُّ الْأَرْضِ رَبُّ الْعَرْشِ الْكَرِيمِ

‘There is no god but Allah, the all-Knowing, the Forbearing. There is no god but Allah, the Lord of the Magnificent Throne. There is no god but Allah, the Lord of the heavens and the earth, the Lord of the Noble Throne.’⁵

This is a *du‘ā’* - supplication, to be invoked in times of hardship and severe difficulty. This *du‘ā’* is a form of *Du‘ā’ al-‘Ibādah*, and it includes within it *Du‘ā’ al-Mas’āla*. For the supplicant mentions Allah, praises Him, affirms His Oneness, and intends by that that Allah relieve his distress and remove from him hardship. Thus, it is *du‘ā’* in meaning and also a form of *Du‘ā’ al-‘Ibādah*, similar to prayer, almsgiving, fasting, and other righteous acts. For the one who performs prayer seeks reward from Allah, and likewise the one who fasts.

As for *Du‘ā’ al-Mas’āla*, it refers to when a person verbally calls upon Allah, saying: ‘O Allah, forgive me,’ ‘O Allah, have mercy on me,’ and similar expressions. In fact, all acts of worship performed by a person fall under *Du‘ā’ al-Mas’āla*, because the worshipper is, in essence, a petitioner—even if not explicitly speaking. Therefore, the statement ‘*Lā ilāha illā Allah al-‘Aleem al-Ḥaleem*’ is *Du‘ā’ al-‘Ibādah*, because the intention behind it is that Allah relieve the affliction.⁶

⁴ *Fatāwā Nūr ‘alā al-Darb al-Naṣṣiyyah* [Vol. 2, p. 4 (Shamela edition)]

⁵ To avoid the repetition, here we have omitted the *isnād* and *matn* bar this wording of the *ḥadīth* given that it already appears in the *Sharḥ*.

⁶ ‘Abd al-Aziz al-Rājiḥi *Ajwibah Muḥīdah ‘an As’ilah ‘Adīdah* (Beneficial Answers to Numerous Questions) [Vol. 8, no. 7426].

It is stated in *al-Qawā‘id al-Ḥisān fī Tafsīr al-Qur’ān* by ‘Abd al-Raḥman al-Sa’di:

His statement, the Exalted: ‘And whoever calls upon another god alongside Allah, one for whom he has no proof, his reckoning is with his Lord. Indeed, the disbelievers will never succeed,’ [23: 117]. And likewise: ‘Therefore call not upon any one with Allah,’ [72: 18]. ‘And do not call upon another god alongside Allah,’ [28: 88]. These verses encompass both *Du‘ā’ al-Mas’āla* and *Du‘ā’ al-‘Ibādah*. Just as one who asks something of other than Allah, a matter which none can fulfil except Him, is deemed a *mushrik* and *kāfir*, likewise, one who worships alongside Allah another entity is likewise a *mushrik* and a *kāfir*.⁷

It is stated by Ṣāliḥ ibn ‘Abd al-Aziz Āl al-Shaykh in *al-Tamheed li-Sharḥ Kitāb al-Tawḥeed*:

He said: ‘Have you then considered what you invoke besides Allah?’ [39: 38]. *Tad’ūna*, [تَدْعُونَ] that is, ‘you worship.’ Worship may take the form of *Du‘ā’ al-Mas’āla* or it may consist of other types of devotional acts. Alternatively, the word - *tad’ūna*, may be understood as encompassing both *Du‘ā’ al-Mas’āla* and *Du‘ā’ al-‘Ibādah* since it refers to two distinct modes found among the people of *Shirk*.⁸

It is stated in *al-‘Ilām bi-Tawḥīd Nawāqiḍ al-Islām* by ‘Abd al-‘Aziz ibn Marzūq al-Ṭarfī:

al-Shirk al-Akhbar (major *Shirk*) is divided into four categories. The first: *Shirk al-Da’wah*, namely *du‘ā’* [شُرْكُ الدَّعْوَةِ أَيْ الدَّعَاءِ] (*Shirk* related to calling, supplication). This refers to a servant invoking other than Allah in the manner that Allah alone is to be invoked, whether in the form of *Du‘ā’ al-Mas’āla* or *Du‘ā’ al-‘Ibādah*. Whoever supplicates to other than Allah in a manner comparable to supplicating to Allah

⁷ ‘Abd al-Raḥman al-Sa’di *al-Qawā‘id al-Ḥisān fī Tafsīr al-Qur’ān* [Vol. 1, p. 87]. Similar appears in the *Tafsīr* of al-Sa’di [Vol. 1, p. 228 (English edition)]: ‘Calling or supplication is of two types: supplication of worship and supplication of asking. And Allah’s closeness is of two types: closeness to all of His creation by His knowledge and closeness to those who worship Him and call upon Him by responding, helping and guiding.’

⁸ Ṣāliḥ ibn ‘Abd al-Aziz Āl al-Shaykh *al-Tamheed li-Sharḥ Kitāb al-Tawḥeed* [p. 96].

has committed *Shirk*. Concerning this type of *Shirk*, Allah the Exalted states: 'So when they embark on a ship, they call upon Allah, being sincere in their devotion to Him alone; but when He delivers them safely to land, behold, they associate others with Him,' [29: 65]. That is: they commit *Shirk* in *du'ā'*. If the intent behind the supplication is the seeking of benefit or the repelling of harm, then this constitutes *Du'ā' al-Mas'āla*. If the intent is submission, humility, and brokenness before the majesty of Allah, then it is *Du'ā' al-Ibādah*. In both of its forms - *Du'ā' al-Mas'āla* and *Du'ā' al-Ibādah*, supplication is not permitted to be directed to other than Allah. Supplication is among the greatest acts of worship, the most virtuous of devotional acts, and one of the highest forms of nearness (*qurb*) to Allah. Allah the Exalted says: 'And if My servants ask you about Me, I am indeed near. I respond to the invocation of the supplicant when he calls upon Me. So let them respond to Me and believe in Me, that they may be rightly guided,' [2: 186].⁹

Analysis

In the round, the aforementioned citations should be sufficient. Regretfully people seem to have nothing more than to repeat and regurgitate this bile, on some occasions abbreviating it, on others, lengthening it with additional examples. The reader shouldn't also be surprised by the plethora of questions that have arisen which seek to tease out some kind of clarification as to exactly what the difference between *du'ā' al-Mas'āla* [دعاء المسألة], and *du'ā' al-Ibādah* [دعاء العبادة], actually is. The general public may well be forgiven for being confused, even on occasion confounded by this, not to mention the clerical establishment!

As for the term '*al-du'ā'*,' [الدعاء] and '*al-da'wah*,' [الدعوة] both deriving from the trilateral root *da, ah, wa* [د ع و] *da'ā, yad'ū, du'ā' (an)* or *da'wah* - and their various morphological forms (such as *dā'ī* or *dā'*), the most appropriate method for precisely defining their meanings is through a comprehensive inductive reading of the verses of the noble Qur'ān. This we have undertaken exhaustively, to the extent that we do not believe any verse

⁹ 'Abd al-'Aziz ibn Marzūq al-Ṭarīfī *al-Ilām bi-Tawḥīd Nawāqid al-Islām* [p. 6]. Two-further verses are quoted in evidence but here omitted for the sake of brevity, [40: 60] and [4: 32]. For the verse at [29: 65] we have utilised the translation of Shakir.

on the matter has eluded us. The full listing appears below, though it is admittedly extensive. We found that the usage of these terms is exclusively confined to the following core meanings.

The first meaning

The first meaning to be covered, which is perhaps the original one, relates to simply *addressing* someone. It includes calling out or exclaiming, in the sense of saying: 'Listen,' 'Come forth,' 'Approach,' or 'Join us,' without necessarily requesting anything specific from the person being addressed other than to make him hear, catch his attention, or perhaps invite him to attend or witness something. It may also denote summoning for the purpose of attendance or witnessing. This is most often accompanied by a raised voice or other such emphasis. For the first meaning, there are fourteen different Qur'ānic verses which are of note, all containing various forms of the verb:

وَيَوْمَ يَقُولُ نَادُوا شُرَكَائِيَ الَّذِينَ زَعَمْتُمْ فَدَعَوْهُمْ فَلَمْ يَسْتَجِيبُوا لَهُمْ وَجَعَلْنَا بَيْنَهُمْ مَوْبِقًا

On the Day Allah will say, 'Call upon those you claimed were My partners,' they will call them but they will not answer; We shall set a deadly gulf between them.¹⁰

As per the aforementioned verse, '*fa-da-uw-hum*' [فَدَعَوْهُمْ] 'Call upon those you claimed...' Here there is the prefixed resumption particle of *fā* [الفاء] and the verb form is third-person perfect, masculine plural, attached with the third-person plural pronoun of '*hum*.' The phrase '*fa-da-uw-hum*' here means: *they called out to them*, i.e., *they summoned them vocally*. The same or closely related meaning is found in the following verses as well:

وَقِيلَ ادْعُوا شُرَكَاءَكُمْ فَدَعَوْهُمْ فَلَمْ يَسْتَجِيبُوا لَهُمْ وَرَأَوُا الْعَذَابَ لَوْ أَنَّهُمْ كَانُوا يَهْتَدُونَ

It will then be said to them, 'Now call upon those you worshipped as partners,' and they will call them but receive no answer. They will see the suffering and wish they had followed guidance.¹¹

¹⁰ Qur'ān, 18: 52

¹¹ Qur'ān, 28: 64

Here though, there is a second-person masculine plural imperative verb at the beginning of the verse – *ad'uw* [ادْعُوا], 'call them.' That form of the verb also appears in several other verses, which are: [7: 195], [17: 56], and [34: 22]. The verse at [7: 194] has the wording of *ad'uw-hum* [فَادْعُوهُمْ], 'call upon them,' which has the prefixed resumption particle of *fā*, the second-person masculine plural imperative form of the verb and the third-person masculine object pronoun of *hum* [هُم]. Other verses in this same theme are [25: 13/14], containing *da-uw* [دَعُوا] 'they will call out,' and *Lā tad-uw* [لَا تَدْعُوا] 'do not call out,' the former, third-person perfect/present tense, masculine plural, the latter, carrying the negating particle *Lā*, followed by the imperfect second-person masculine plural. This is *majāz*, as if they are calling upon destruction and ruin to come and deliver them from the torment they are experiencing.¹² Other verses of note are also:

- *Yad'u al-dā'i*, [يَدْعُ الدَّاعِ] 'On the Day the Summoner will summon them to a horrific event,' [54: 6]. First word being the third-person masculine singular present tense form of the verb, the latter, the nominative masculine active participle.
- *Wa-yud'uwna* [وَيُدْعَوْنَ] and *yud-uwna* [يُدْعَوْنَ], '...they will be invited to prostrate themselves but will be prevented from doing so... they were invited to prostrate themselves when they were safe [but refused],' [68: 42/43]. The first word containing the conjunction particle of *wa* [الواو] [عاطفة], followed by the verb in the third-person masculine plural passive present tense form. The latter, without the conjunction particle.
- *al-Dā'iya* [الدَّاعِي] 'On that Day, people will follow the summoner from whom there is no escape...' [20: 108]; the noun being the accusative masculine active participle.
- *Da'wā-hum* [دَعْوَاهُمْ] 'And that call of theirs did not cease until We made them burnt-off stubble,' [21: 15]. Also as per the verses at [7: 5] and [10: 10]. Here the nominative masculine noun is joined with the third-person masculine plural possessive pronoun of 'hum.'
- *Da-uw-tu-kum* [دَعَوْتُكُمْ] 'I had no power over you except to call / invite you, and you responded to my call,' [14: 22] referring to what the

¹² The full wording of the verses [25: 13/14] being: 'And when they are hurled into a narrow part of it, chained together, they will cry out for death. 'Do not cry out this day for one death, but for many.'

Shaytān will say on the Day of Judgment. Here, the verb is in the first-person singular past tense, with the masculine plural pronoun of *kum* [كُمْ].

Also expressed in the general meaning as they appear in over twenty-six additional verses, examples of which are:

وَمِنْ آيَاتِهِ أَنْ تَقُومَ السَّمَاءُ وَالْأَرْضُ بِأَمْرِهِ ثُمَّ إِذَا دَعَاكُمْ دَعْوَةً مِنَ الْأَرْضِ إِذَا أَنْتُمْ تَخْرُجُونَ

And one of His signs is that the heaven and the earth subsist by His command, then when He calls you with a (single) call from out of the earth, behold, you come forth.¹³

وَلَا يَأْبُ الشُّهَدَاءُ إِذَا مَا دُعُوا وَلَا تَسْأَمُوا أَنْ تَكْتُبُوهُ صَغِيرًا أَوْ كَبِيرًا إِلَىٰ أَجَلِهِ

Let the witnesses not refuse when they are called upon. Do not disdain to write the debt down, be it small or large, along with the time it falls due.¹⁴

relates to hosting and asking the invitee to say and do things in the form of advice and guidance.

The second meaning

The second meaning *al-Istidāfah*, [الاستضافة] that is invitation, alongside a demand placed upon the one invited to respond through speech or action, generally in the form of advice, exhortation, or moral guidance. The most well-known instance of this meaning is the *invitation to faith in Allah* and the like. This form of usage typically appears transitive with the preposition (*ilā*) [إلى] when followed by nouns, or with (*li-*) when governing verbs. Examples include the verse:

ادْعُ إِلَى سَبِيلِ رَبِّكَ بِالْحُكْمِ وَالْمَوْعِظَةِ الْحَسَنَةِ وَجَادِلْهُمْ بِالَّتِي هِيَ أَحْسَنُ

¹³ *Qur'ān*, 30: 25. Here we have opted for Shakir's translation which better reflects the highlighted wording in Arabic.

¹⁴ *Qur'ān*, 2: 282. In the original Arabic edition the Professor quotes the additional verses as evidences, together with the highlighted form of the verb as it appears in each verse. For the sake of brevity, this has been abbreviated here in the translation for the entire section. References as it pertains to meaning one, are: [28: 64] [24: 48], [24: 51], [84: 10/12], [28: 68], [34: 22], [35: 18], [70: 15/17], [72: 73], [3: 61], [96: 17/18], [17: 71], [2: 260], [3: 153], [17: 52], [33: 53], [54: 6/8], [2: 171], [24: 63], [21: 45], [27: 80], [30: 52], [35: 14], [46: 5], and [30: 25].

*Call [people] to the way of your Lord with wisdom and good teaching; argue with them in the most courteous way.*¹⁵

وَمَنْ أَحْسَنُ قَوْلًا مِّمَّنْ دَعَا إِلَى اللَّهِ وَعَمِلَ صَالِحًا

*Who speaks better than someone who calls people to Allah, does what is right.*¹⁶

يَا أَيُّهَا الَّذِينَ آمَنُوا اسْتَجِيبُوا لِلَّهِ وَلِلرَّسُولِ إِذَا دَعَاكُمْ لِمَا يُحْيِيكُمْ

*Believers, respond to Allah and His Messenger when he calls you to that which gives you life.*¹⁷

The third meaning

A request or petition accompanied by a sense of elevation or entitlement, that is, a form of seeking (*ṭalab*) characterised by a tone of assertion or claim to right. This usage is rare in the Qur'ān, and we have found it only in the following instances, a) occurring with the transitive preposition (*bi-*), i.e. *yad'ū bi* [يدعو بـ] in two places in the Qur'ānic text:

مُتَكِنِينَ فِيهَا يَدْعُونَ فِيهَا بِفَاكِهَةٍ كَثِيرَةٍ وَشَرَابٍ

*Reclining therein, they will call for abundant fruit and drink.*¹⁸

يَدْعُونَ فِيهَا بِكُلِّ فَاكِهَةٍ آمِنِينَ

*They will call for every kind of fruit therein, secure [and content].*¹⁹

The other, b) appearing in the derived verbal form on the morphological pattern *ifta'ala*, [افتعل]²⁰ as in *idda'a* [ادعى] - to claim, derived from *da'a*, just as one might say *iktataba* [اكتب] from *ka/ta/ba* [كتب], occurring in three places in the Qur'ān:

¹⁵ Qur'ān, 16: 125

¹⁶ Qur'ān, 41: 33

¹⁷ Qur'ān, 8: 24. Abbreviated here, the additional references provided are: [7, 193, 198], [71: 5, 7], [42: 13, 15], [40: 10, 41/43], [47, 35, 38], [11: 62], [41: 5, 10], [14: 9/10], [6: 71], [2: 221], [28: 41], [10: 25], [57: 8], [3: 23, 104], [12: 33], [68: 43], [31: 21], [35: 6], [46: 31], [28: 25], [45: 28], and [48: 16].

¹⁸ Qur'ān, 38: 51

¹⁹ Qur'ān, 44: 55

²⁰ Form VIII

لَهُمْ فِيهَا فَاكِهَةٌ وَلَهُمْ مَا يَدْعُونَ

*Therein they will have fruit, and they will have whatever they ask for.*²¹

نَحْنُ أَوْلِيَاؤُكُمْ فِي الْحَيَاةِ الدُّنْيَا وَفِي الْآخِرَةِ وَلَكُمْ فِيهَا مَا تَشْتَهُي أَنْفُسُكُمْ وَلَكُمْ فِيهَا مَا تَدْعُونَ

*We are your allies in this world and in the Hereafter. Therein you shall have whatever your souls desire, and therein you shall have whatever you claim.*²²

وَيَقُولُونَ مَتَى هَذَا الْوَعْدُ إِنْ كُنْتُمْ صَادِقِينَ؛ قُلْ إِنَّمَا الْعِلْمُ عِنْدَ اللَّهِ وَإِنَّمَا أَنَا نَذِيرٌ مُبِينٌ؛ فَلَمَّا رَأَوْهُ زُلْفَةً سَيِّئَتْ وُجُوهُ الَّذِينَ كَفَرُوا وَقِيلَ هَذَا الَّذِي كُنْتُمْ بِهِ تَدْعُونَ

*And they say, 'When will this promise be fulfilled, if you are truthful?' Say: 'Knowledge thereof is only with Allah; I am but a clear warner.' But when they see it drawing near, the faces of those who disbelieved will be darkened, and it will be said: 'This is what you used to claim.'*²³

The fourth meaning

The fourth meaning relates to attribution, assignment, and designation, that is, to attribute *ja'ala* [جعل], to name, *samma* [سمى], and the like. This usage is rare in the Qur'ān.

قَالُوا اتَّخَذَ الرَّحْمَنُ وَلَدًا، لَقَدْ جِئْتُمْ شَيْئًا إِدًّا، تَكَادُ السَّمَاوَاتُ يَتَفَطَّرْنَ مِنْهُ وَتَنْشَقُّ الْأَرْضُ وَتَخِرُّ الْجِبَالُ هَدًّا، أَنْ دَعَوْا لِلرَّحْمَنِ وَلَدًا، وَمَا يَنْبَغِي لِلرَّحْمَنِ أَنْ يَتَّخِذَ وَلَدًا

*They say: 'The Most Merciful has taken a son!' Indeed, you have brought forth a monstrous claim, at which the heavens are almost torn, the earth splits asunder, and the mountains collapse in devastation that they should attribute a son to the Most Merciful. It is not befitting for the Most Merciful to take a son.*²⁴

The phrase '*an da'aw lil-Raḥmān waladan*' - that they called to the Most Merciful a son, means: '*they attributed to the Most Merciful a son.*'

وَمَنْ يَدْعُ مَعَ اللَّهِ إِلَهًا آخَرَ لَا بُرْهَانَ لَهُ بِهِ فَإِنَّمَا حِسَابُهُ عِنْدَ رَبِّهِ إِنَّهُ لَا يُفْلِحُ الْكَافِرُونَ

²¹ Qur'ān, 36: 57

²² Qur'ān, 41: 31

²³ Qur'ān, 67: 25/27

²⁴ Qur'ān, 19: 88/92

*Whoever prays to another god alongside Allah, a god for whose existence he has no evidence, will face his reckoning with his Lord. Those who reject the truth will not prosper.*²⁵

The phrasing of '*Yad'uw ma'a Allāhi Ilāhan akhara*' - *Whoever prays to another god alongside Allah* here means to make or set up alongside Allah another god. Expressed in other words, to *attribute* divinity of some sort to *other than Allah*. It is possible that this falls under the fifth category, which will be mentioned shortly

وَأَنَّ الْمَسَاجِدَ لِلَّهِ فَلَا تَدْعُوا مَعَ اللَّهِ أَحَدًا

*And that the mosques are for Allah, so do not call upon anyone alongside Allah.*²⁶

The phrase '*fa-lā tad'ū ma'a Allāh aḥadan*,' that is: *do not associate with Allah anyone in divinity*, or, phrased differently: *do not attribute any aspect of divinity to other than Allah*. However, this usage most likely belongs to the fifth category of meanings.

The fifth meaning

The fifth meaning is to request, and petition made with humility and submissiveness, typically expressed in a soft, reverent, and subdued voice. This is the usage that the Wahhābis designate as *Du'ā' al-Mas'āla* [دعاء المسألة] or supplication of request. It constitutes the predominant usage in the Qur'ān and is the locus of the present investigation and disputation.

وَقَالَ رَبُّكُمْ ادْعُونِي أَسْتَجِبْ لَكُمْ إِنَّ الَّذِينَ يَسْتَكْبِرُونَ عَنْ عِبَادَتِي سَيَدْخُلُونَ جَهَنَّمَ دَاخِرِينَ

*Your Lord has said: 'Call upon Me, and I will respond to you. Indeed, those who are too proud to worship Me shall enter Hell in humiliation.'*²⁷

²⁵ Qur'ān, 23: 117

²⁶ Qur'ān, 72: 18. The translation is from Shakir. The additional references in this section are: [33: 4/5, 37], [26: 213], [28: 88], and [25: 68]

²⁷ Qur'ān, 7: 55

The phrase *ud'ūnī* here means: *seek from Me, and ask of Me, with humility and submissiveness*.

ادْعُوا رَبَّكُمْ تَضَرُّعًا وَخُفْيَةً إِنَّهُ لَا يُحِبُّ الْمُعْتَدِينَ

*Call upon your Lord in humility and privately. Truly, He does not love the transgressors.*²⁸

The phrase *ud'ū rabbakum* here likewise means: *seek from your Lord and ask of Him with humility and brokenness*. This usage meaning or one closely related to it also occurs in the following verse and others of similar tenor:

وَإِذَا سَأَلَكَ عِبَادِي عَنِّي فَإِنِّي قَرِيبٌ أُجِيبُ دَعْوَةَ الدَّاعِ إِذَا دَعَانِ

*If My servants ask you concerning Me, then indeed I am near. I respond to the call of the suppliant when he calls upon Me.*²⁹

Moreover it is also the case that this is conveyed in the generality of around thirty-verses that come in the form: '*you call upon other than Allah*,' which may be subject to certain objections. Examples of this being:

حَتَّىٰ إِذَا جَاءَهُمْ رَسُولُنَا يُتَوَفَّوْنَهُمْ قَالُوا أَيُّنَ مَا كُنْتُمْ تَدْعُونَ مِنْ دُونِ اللَّهِ قَالُوا ضَلُّوا عَنَّا

*When Our angels arrive to take them back, saying 'Where are those you used to call on beside Allah?' they will say, 'They have deserted us.'*³⁰

ذَٰلِكَ بِأَنَّ اللَّهَ هُوَ الْحَقُّ وَأَنَّ مَا يَدْعُونَ مِنْ دُونِهِ هُوَ الْبَاطِلُ

*So it will be, because it is Allah alone who is the Truth, and whatever else they invoke besides Him is sheer falsehood.*³¹

²⁸ Qur'ān, 7: 55

²⁹ Qur'ān, 2: 186. After which the following additional references are adduced: [7: 29, 55/56, 134, 180], [40: 12, 49/50, 65], [13: 14], [14: 39/41], [41: 47/51], [19: 2/4, 48], [17: 11], [25: 77], [3: 38], [21: 89/90], [10: 89], [72: 19], [39: 8], [44: 22], [54: 10], 2: 61, 68/70, [43: 49], [10: 12], [27: 62], [29: 65], [30: 33], [31: 32], [6: 40/41, 52], [18: 28], [17: 110], [40: 49], and [52: 27].

³⁰ Qur'ān, 7: 37

³¹ Qur'ān, 22: 62. The remainder references quoted in the Arabic edition are: [6: 56, 71, 108], [17: 56/57], [7: 194], [19: 48], [22: 13/14, 73], [35: 13, 40], [39: 13/14, 40], [16: 20, 86], [18: 14], [10: 66, 106], [29: 41/42], [11: 101], [13: 14], [43: 86], [30: 30], [46: 5/6], [40: 20, 66], and [4: 117]

Thus we assert: In none of the above verses when read in their proper context is there any necessity to interpret the term *yad'ūn* [يدعون], 'they call' as meaning *ya'būdūn* [يعبدون], 'they worship.' Hence there is therefore no justification whatsoever for the false distinction made by the Wahhābi sect between *du'ā' al-Mas'āla* [دعاء المسألة], the 'supplication of request,' and *du'ā' al-'Ibādah* [دعاء العبادة], the 'supplication as it pertains to worship.' As for the statement of the Wahhābīs regarding the verse:

قُلْ أَفَرَأَيْتُمْ مَا تَدْعُونَ مِنْ دُونِ اللَّهِ إِنْ أَرَادَنِيَ اللَّهُ بِضُرٍّ هَلْ هُنَّ كَاشِفَاتُ ضُرِّهِ أَوْ أَرَادَنِي بِرَحْمَةٍ هَلْ هُنَّ مُمْسِكَاتُ رَحْمَتِهِ

Say: Have you considered what you call upon besides Allah? If Allah intended me with harm, could they remove His harm? Or if He intended me with mercy, could they withhold His mercy?³²

In their view, that namely, that *tad'ūn* here means *ta'būdūn* as noted in the earlier quote from Ṣāliḥ ibn 'Abd al-'Aziz Āl al-Shaykh,³³ this is an affront to the Arabic language and to the Qur'ān, for it compromises the miraculous eloquence of its rhetoric. The proof of this is that, were we to replace the term *tad'ūn* in this very verse with the term *ta'būdūn*, we would obtain the following sentence: 'Say: Have you considered what you worship besides Allah? If Allah intended me with harm, could they remove His harm? Or if He intended me with mercy, could they withhold His mercy?' Yet such a substitution would nullify the exquisite coherence of the meanings. For the original intent is clearly: Do you truly believe that your supposed gods/deities - those to whom you direct your pleas, from whom you seek benefit and the removal of harm, are actually capable of benefiting me by removing a harm which Allah has afflicted me with, or capable of harming me by withholding the mercy of Allah from reaching me? The speech here, then, pertains to *supplication*, *petition*, and *entreaty marked by humility and desperation*, to seek benefit or ward off harm, not to other categories of *'ibādāt* (ritual acts of worship). And this is the case with all the verses we have cited above from the noble Qur'ān which contain the phrase *yad'ū min dūni Allah* [يدعو من دُونِ] 'he calls upon besides Allah,' or any of its verbal forms. Were we to

³² Qur'ān, 39: 38

³³ In the Arabic edition, the earlier quote, marked at footnote 8 is repeated. Here, the repetition is omitted for ease of reading.

replace *yad'ū* and its derivatives with *ya'būd*, worship, the core semantic intent would be lost. If it should be absolutely necessary to divert the term or some of its instances away from this fifth meaning - *supplication marked by humility and entreaty*, then it would be more appropriate to interpret it according to the fourth meaning, *attribution* and *designation*. In that case, the meaning of Allah's saying 'Say: Have you considered what you call upon besides Allah?' would be: 'Have you considered those to whom you attribute divinity besides Allah?' This first expression is in perfect harmony with the saying of Allah Exalted is His Majesty:

وَمَنْ يَقُلْ مِنْهُمْ إِنِّي إِلَهٌ مِنْ دُونِهِ فَذَلِكَ نَجْزِيهِ جَهَنَّمَ كَذَلِكَ نَجْزِي الظَّالِمِينَ

If any among them were to say, 'I am a god besides Him,' We would requite him with Hell. Thus do We recompense the wrongdoers.³⁴

Alternatively, one might render the phrase as: 'Have you considered what you make to be a god alongside Allah?' This second formulation is in full accord with His statement:

لَا تَجْعَلْ مَعَ اللَّهِ إِلَهًا آخَرَ فَتَقْعُدَ مَذْمُومًا مَكْذُوبًا

Set up no other god beside Allah, or you will sit disgraced and forsaken.³⁵

Among this same category are also the *aḥādith* concerning 'Unq min al-Nar,' the neck emerging from the fire on the Day of Judgment, in which it is stated that a voice will emerge saying: 'I have been commanded, or assigned, with three,' among them: 'Whoever called upon another god/deity alongside Allah.'³⁶ Some transmissions render this with the wording: 'Whoever claimed another deity alongside Allah,' [من ادَّعى مع الله إلها آخر] where *idda'ā*, derived from *da'ā* in the *ifta'ala* [افتعل] form is used. Other narrations mention: 'Whoever made another deity alongside Allah,' [من جعل مع الله إلها آخر]. This demonstrates the semantic equivalence in the minds of the narrators among the Companions, their Successors, and their Followers, unless indeed these variant phrasings reflect intentional variation in the Prophet's own

³⁴ Qur'ān 21: 29

³⁵ Qur'ān 17: 22

³⁶ Some of the *aḥādith* regarding this are outlined in the first volume of this series, see: [Vol. 1, pp. 209/210].

wording, peace and blessings be upon him. Also belonging to this category is the well-known *ḥadīth* of Abu Bakr al-Ṣādeeq, may Allah be pleased with him, which has been cited on numerous occasions. The rendition here has also come down in the form: ‘And what is *Shirk* except calling upon another god alongside Allah?’ as transmitted by Imām Abu Ya‘la in his *Musnad*, which again affirms the semantic equivalence in the understanding of the Successors and their followers.

حَدَّثَنَا مُوسَى بْنُ مُحَمَّدٍ بْنِ حَيَّانَ حَدَّثَنَا رَوْحُ بْنُ أَسْلَمٍ وَفَهْدٌ قَالََا حَدَّثَنَا عَبْدُ الْعَزِيزِ بْنُ مُسْلِمٍ حَدَّثَنَا
لَيْثٌ عَنْ أَبِي مُحَمَّدٍ عَنْ مَعْقِلِ بْنِ يَسَارٍ، قَالَ شَهِدْتُ النَّبِيَّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ، مَعَ أَبِي بَكْرٍ أَوْ
قَالَ حَدَّثَنِي أَبُو بَكْرٍ عَنِ النَّبِيِّ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ أَنَّهُ قَالَ الشِّرْكُ أَخْفَى فَيُكْرَهُ مِنْ دَيْبِ النَّعْلِ،
فَقَالَ أَبُو بَكْرٍ وَهَلِ الشِّرْكُ إِلَّا مَنْ دَعَا مَعَ اللَّهِ إِلَهًا آخَرَ؟ فَقَالَ رَسُولُ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَسَلَّمَ
الشِّرْكُ أَخْفَى فَيُكْرَهُ مِنْ دَيْبِ النَّعْلِ، ثُمَّ قَالَ: أَلَا أَدُلُّكُمْ عَلَى مَا يَذْهَبُ عَنْكَ صَغِيرَ ذَلِكَ وَكَبِيرُهُ؟
قُلْ: اللَّهُمَّ إِنِّي أَعُوذُ بِكَ أَنْ أَشْرِكَ بِكَ وَأَنَا أَعْلَمُ، وَأَسْتَغْفِرُكَ مِمَّا لَا أَعْلَمُ

Musa ibn Muḥammad ibn Ḥayyān narrated to us Rawḥ ibn Aslam and Fahd narrated to us, they said ‘Abd al-Aziz ibn Muslim narrated to us Layth narrated to us from Abu Muḥammad from Ma‘qil ibn Yassār, he said ‘I witnessed the Prophet peace and blessings be upon him with Abu Bakr,’ or he said ‘Abu Bakr narrated to me from the Prophet peace and blessings be upon him, that he said: *Shirk is more concealed among you than the creeping of ants*. Abu Bakr replied: ‘Is *Shirk* anything other than someone who calls upon another god along with Allah?’ So the Messenger of Allah, peace and blessings be upon him said: *Shirk is more concealed among you than the creeping of ants. Shall I not guide you to something that will remove from you its lesser and greater forms? Say - O Allah, I seek refuge in You from associating partners with You knowingly, and I seek Your forgiveness for what I do unknowingly.*³⁷

Only at this point when such semantic equivalences are established on the basis of evidence, and not upon unsubstantiated assertions and unfounded claims, can one reasonably substitute *tad‘ūn* ‘you call upon’ in the verse: ‘Say: *Have you considered what you call upon besides Allah?*’ with *ta‘budūn* - ‘you worship,’ based on the previously established equation:

³⁷ *Musnad* Abu Ya‘la [Vol. 1, no. 61].

عبادة غير الله = نسبة شيء من الألوهية لغير الله = أن تجعل مع الله إلهاً آخر

Worshipping *other* than Allah = Attributing divinity to other than Allah =
Making another god alongside Allah

Only then, and only on this evidentiary basis and with the correct understanding of the term ‘*Ibādah*, not as distorted by Wahhābī anxieties may we state that:

مَا تَدْعُونَ مِنْ دُونِ اللَّهِ = مَا تَعْبُدُونَ مِنْ دُونِ اللَّهِ

That which you call upon besides Allah = That which you worship besides Allah

It is thus unsurprising that the supposed distinction between *Du‘ā al-Mas‘āla* and *Du‘ā al-Ibādah* has confounded many people, and failed to align with their sound natural dispositions. For, as demonstrated above, the truth is that such a dichotomy does not exist in any definitive sense. Rather, the term *da‘ā* [دعا] ‘to call upon’ occurs with various meanings, including those outlined above, depending upon the context. It very rarely carries the meaning of ‘*abada* [عبد] ‘to worship,’ and when it does, it is almost exclusively within the highly specific formulation: *da‘ā min dūni Allah* [دعا من دُونِ اللَّهِ] ‘to call upon besides Allah,’ or *da‘ā ma‘a Allah* [دعا مع اللَّهِ] ‘to call upon alongside Allah.’ The esteemed Shaykh, ‘Abd al-Raḥman ibn Yaḥya al-Mu‘allimī noticed this, as documented in his collected works.

It has been reported from some of the *Salaf* that they interpreted the word *du‘ā* [دعاء] in some instances as being ‘*Ibādah* – worship’. This interpretation was almost universally adopted by later *mufasssireen*, but this interpretation is debatable as it is not recognised in the Arabic language. This is why many linguists, including those who deal with figurative language, such as the author of *al-Qāmus*, the author of *al-Asās*, and that of *al-Misbāḥ*, didn’t mention it. Even al-Rāghib, whose book focuses on the unique expressions of the Qur’ān, did not mention it. Those who did mention it, like the author of *Lisān al‘Arab*, did so only in the context of interpreting specific Qur’ānic words.

This is one of the most significant flaws in linguistic books: they adopt certain words that appear in the Qur’ān, interpret them based on the understanding of some of the *Salaf* or their own inferences from

context, and then establish these interpretations as part of the language. The *Salaf* were lenient in their expressions, relying on the understanding of the listener. They might interpret a word by its implication, by something that falls under its general meaning, or by other contextual indications, as noted by meticulous scholars. This approach has led to a great deal of variance in their interpretations. As for what they inferred from context, they might have been mistaken. Therefore, it is inappropriate to assert that such interpretations represent the (language). When a reader of linguistic books encounters a definition like *al-Ḥard: al-Manah* (الحرْد: المنع) '*Ḥard*' means 'prevention'. They take it as a certain transmission, not realising that the author might have understood it from the context of the verse. This situation has its own implications.

The most that they [i.e., those who interpret the relevant Qur'ānic verses as acts of *Shirk*] can argue is that construing the word in those passages according to its literal sense i.e., mere invocation or calling is untenable, since the Qur'ān describes it in those very places as *Shirk*. They maintain that interpreting it as *petition* or *entreaty* (*raghbah wa-su'āl*) is also invalid, for such is due exclusively to Allah, Glorious and Exalted is He. Later commentators add that it has been transmitted from some of the early generations of the *Salaf* that they interpreted *du'ā'* in some of these passages as '*Ibādah*'.³⁸

Here I would argue, regarding the claim that interpreting it merely as *nidā'* 'calling' in those contexts is invalid, there is no objection. But to assert that it cannot be construed as *petition and entreaty* in the sense of supplicating Allah, Exalted is He, that is, in need of reconsideration. As for when *du'ā'* 'supplication' signifies *petition and entreaty marked by humility and subservience*, that which the Wahhābis term *Du'ā' al-Mas'āla* and when this is to be regarded as an act of '*Ibādah*' such that directing it to other than Allah constitutes *Shirk* and *kufṛ*, then this, without doubt, is a matter of grave consequence. In it, the renegade Muḥammad ibn 'Abd al-Wahhāb (MIAW), the founder of the bloody and deviant Wahhābi sect, stumbled most egregiously. Numerous refutations were issued against him in this regard,

³⁸ Shaykh 'Abd al-Raḥman ibn Yaḥya al-Mu'allimi *Jami' Shamila* [Vol. 3, p. 755]. Readers may be familiar that this quote already appears in the earlier volume [Vol. 3, p. 19]. There is an additional paragraph included here relevant to the discussion at hand.

until the matter was ultimately 'defined' for them by Imām Muḥammad ibn Ali al-Shawkāni. Indeed, Imām al-Shawkāni made an effort to further refine the discourse on *du'ā'*, endeavouring to move beyond the objections and ambiguities raised by the noble Sayyid and 'Allāmah Muḥammad ibn Ismā'īl al-Amīr al-Ṣan'āni. Al-Shawkāni states in his *Risālah fī Wujūb Tawḥeed Allāh*:

Verily, the one who calls upon the dead, invokes them during times of hardship, circumambulates their graves, and seeks from them that which none has power over save Allah (Exalted is He) this can only proceed from a belief akin to that of the people of *Jāhiliyya* had with regards to their *Aṣnām* (idols). If what is intended from the deceased, whom he venerates, is akin to what the pagans of *Jāhiliyya* sought from their *Aṣnām*, namely, nearness to Allah, then there is no distinction between the two. And if he intends that the one invoked among the dead possesses independent power to fulfil that which none but Allah, the Mighty and Sublime, can fulfil, then even the people of *Jāhiliyya* did not reach such a claim.³⁹

Here Imām al-Shawkāni, himself a prominent Zaydi jurist, and perhaps a *mujtahid muṭlaq* sought to resolve the issue by introducing a new *criterion* based upon '*Itiqād*', and not upon mere external acts and utterances, qua acts and utterances. One can see from his comments that in his own estimation, he was delivering a decisive blow against the so-called *Qubūriyyūn* – 'grave-venerators/worshippers,' pronouncing against them the verdict of major *Shirk*, that of *kufṛ*, thereby expelling them from the fold of Islam, and laying to rest the objections raised by the noble Sayyid al-Amīr al-Ṣan'āni, may Allah Most High have mercy upon him. It is more likely, however, that this principle was not al-Shawkāni's own innovation, but rather borrowed from the writings of Ibn Taymiyyah, who states explicitly:

The one who requests *du'ā'* from another falls into two categories. First: that his request arises from a *need* for the other; this is analogous to seeking from others the fulfilment of personal needs. Second: that he seeks from the other a *supplication*, whereby the supplicator

³⁹ al-Shawkāni *Risālah fī Wujūb Tawḥeed Allāh* [p. 80 (print edition)]

benefits the requester by his *du'ā'*, and Allah benefits both thereby. This is like requesting from a created being that which the created being is capable of doing, such as supplicating Allah or offering assistance. Such a request is permissible, akin to seeking help in that which lies within his power. However, if what is sought is that which no one has power over save Allah, then it is impermissible to ask for it from any other than Allah.⁴⁰

However, this too is invalid and of no avail for this so-called *dābiṭ* (criterion) is not sound. It was presented without proper definition, and its intended referent remains unknown: do Ibn Taymiyyah and al-Shawkāni mean by the phrase: *mā lā yaqdiru 'alayhi illā Allah* 'that which none has power over save Allah,' as it is in reality and in the ontological order of things, based upon definitive rational and scriptural proofs? Or do they mean it according to the belief of the *Qubūri* (grave-venerator) making the request? As for the former, it is of no probative value. For we know with certainty through decisive rational, historical, and religious evidences that 'al-Lāt' is nothing but a name ascribed to a fictitious female entity that has no real existence. Yet, whosoever believes in her existence, and that she is among the daughters of Allah, or His consort, is without doubt a *mushrik kāfir*, let alone being in manifest error and delusion.

Therefore, what must necessarily be taken into consideration is the *belief of the supplicant himself*, i.e., the individual under discussion whom al-Shawkāni described as: 'one who calls upon the dead, invokes them during times of hardship, circumambulates their graves, and seeks from them that which none has power over save Allah.' What is relevant is the content of this belief, and the internal mental conception that motivates such acts and utterances not the mere presence of a belief in the abstract, as has been thoroughly investigated and substantiated previously. Only then can one legitimately pass judgment on such belief, declaring it to be akin to the belief of the *mushrikeen* of the *Jāhiliyya*, or even Allah forbid, viler and more reprehensible, as was asserted by Imām al-Shawkāni. By necessity, it is evident that the supplicant holds some form of *belief* and *conception*, for he would not turn with his petition except to one whom he believes hears him, or

⁴⁰ Ibn Taymiyyah *Jāmi' al-Rasā'il* [p. 7]

to whom his invocation can be conveyed, and whom he considers capable of answering the plea and fulfilling the need. Otherwise, he would necessarily be insane, mentally deranged, and unfit to be addressed by the obligations of the *Sharī'ah*. The inquiry then, must be directed to the *nature* and *content* of the belief held by the supplicant: if he believes concerning the one whom he invokes a belief that entails *Shirk* and contradicts the established fundamentals of Islam, then his supplication constitutes *Ibādah* and is therefore an act of *Shirk* and *kufir* that expels one from the fold of the religion. If not, then it does not. For instance, if a supplicant calls upon one for a matter which *you* believe to be something 'that none has power over save Allah,' it becomes necessary to inquire regarding *his* belief. His answer will inevitably fall into one of the following categories, firstly, that this matter is indeed something 'which none has power over save Allah.' In such a case, he must then affirm one of the following, a) the one being called upon is Allah Himself, or that Allah has united with him or indwelt within him or that he is 'a part' of Allah, or that he is an illusory image without real existence, created by Allah in the perceptual faculties of onlookers, or something similar to such claims that were made concerning the Messiah, Jesus the son of Mary, upon him and his mother be peace. All such positions constitute *Shirk* and *kufir* in belief, for they entail that the supplicant has deified the one invoked, considering him according to his claim as being the very essence of Allah, or a part of Allah, or an incarnation of Allah, or the image of Allah, or one in whom Allah has indwelt, or something analogous thereto. In such cases, the invocation is necessarily an act of *Ibādah*, and the supplicant, by means of his invocation, becomes a worshipper of the one invoked. This view, inherently one of *kufir*, is exceedingly rare, and its proponents often declare it openly from the outset (as do the Trinitarian Christians), and thus the matter rarely requires protracted disputation.

Next, or b) that the one invoked is *wāsiṭah*, an indispensable intermediary to Allah, for Allah according to this claim does not have knowledge of particulars and hence there is no meaning in addressing Him directly; it becomes necessary, therefore, to invoke one who will convey the needs to Him. This is a statement of *Shirk* and *kufir*, unambiguously so. The 'intermediary' in this case has been made a god and a *nidd*, rival alongside Allah.

After this, c) that the one invoked is a necessary intermediary for executing the decree of Allah, because Allah according to this conception does not condescend to involve Himself with the defilement of the world of corruption and occurrences, and so requires an assistant in implementation, or one who executes on His behalf. This too is a statement of *Shirk* and *kufṛ*, manifestly so, and the “intermediary” has thus been made a god and a rival (*nidd*) alongside Allah.

Finally, d) that the one invoked is an essential intermediary both *from* and *to* Allah, because Allah, according to this view, is proud and exalted beyond concern for His servants, showing no care for them whatsoever; thus, there is no point in addressing Him directly. One must instead call upon one who will raise the petition to Him and carry it out in His stead. This too is a statement of *shirk* and *kufṛ*, plainly so, and the ‘intermediary’ has been made a god and a rival alongside Allah.

Secondly, there are other considerations, such as that he responds by saying that the matter in question lies within the power of a being other than Allah. This is conceivable in various situations, such as, a) that the one invoked possesses a power that rivals, approximates, or equals the power of Allah, even if only with respect to that specific matter or discrete instance. In such a belief, the supplicant has made the one invoked a rival to Allah and an equal to Him, or at least has placed him on the same level—even if in one single aspect or affair. This is *Shirk* and *kufṛ* in belief, for the supplicant has deified the one called upon as a god besides Allah. The act of *du'ā'* in this context is necessarily an act of *Ibādah* and through such invocation, the supplicant becomes a worshipper of the one invoked besides Allah. We hasten to add that this is, in and of itself, a statement of outright *kufṛ*, and no one can escape its consequence by claiming that such a power, equal, rivalling, or approximating the power of Allah is created by Allah. Such a claim contradicts definitive, unequivocal scriptural texts and, prior to that, is intrinsically impossible according to reason. For it would entail, by necessity, that Allah Majestic and Exalted is not the Truth nor the First nor the Self-Subsisting, nor the One who is absolutely Self-Sufficient, nor the Necessary Existent, nor the Pre-Eternal. And that He is so, and simultaneously not so, entails contradiction, collapses rationality, and nullifies the very basis of divine legislation. We seek refuge in Allah from such a blasphemy. This is clear-cut *kufṛ* and clear-cut *Shirk* as well, for it renders anything potentially

divine at the same time, thereby producing an endless sequence of contradictions and impossibilities.

Next, which is b), that the one invoked who is a being other than Allah - possesses power over that affair such that the claim ‘this is something that none has power over save Allah’ would not apply. This power does not rival the power of Allah, but is self-subsistent and independent: it is neither created nor decreed by Allah; or it is a supernatural power attained through strenuous asceticism or mystical devotion in an occult or esoteric manner (as was alleged in the tale of the Indian sage Durvāsā); or it is from the creation and decree of Allah, but the one so empowered is independent in his actions from Allah, requiring neither His permission nor His will, similar to the belief held by the Quraysh of old, and by many of the pagan Africans today concerning the *jinn*, who are thought to belong to a divine species, albeit of a different ‘tribe’ from that of Allah, Most High and Most Exalted. Likewise concerning the angels, who are seen by such groups as belonging to the same divine tribe, and perhaps even as the sons and daughters of Allah, Exalted is He far above such vile utterances and repugnant conjectures. Such a belief, too, constitutes *Shirk* and *kufṛ* in doctrine, for the supplicant has deified the one invoked as a god besides Allah. The invocation, in this instance, is necessarily an act of worship and the supplicant becomes, thereby, a worshipper of the one invoked besides Allah, and hence, necessarily, a polytheist of the gravest kind: a *mushrik* guilty of *al-Shirk al-Akhbar*.

And finally c), that the one being invoked who is a being other than Allah possesses power over that matter, and thus the objection, ‘This is something that none has power over except Allah,’ does not apply. However, this power does not rival or equal the power of Allah. Rather, it is not intrinsic to the invoked being; rather, he is a creature of Allah, and his power is created and decreed by Allah. Moreover, he is unable to exercise this power except by the permission and will of Allah. He is therefore not independent in action from Allah, but rather acts by Allah’s enabling and permission. In this case, the matter may fall into one of two possible categories, firstly, that the supplicant is mistaken in attributing such power to the one invoked, whereas in truth, the latter does not possess it. This may amount to an error in judgement or an expression of delusion, but it is not necessarily *Shirk*. Indeed, keep in mind the dictum, that *every instance of Shirk is falsehood and myth, but not every falsehood and myth is necessarily Shirk*. If such a person is properly

instructed, corrected, and made to realise that he is acting upon a delusion or falsehood, he will either desist from such supplication, or he will—by necessity be classified under one of the aforementioned or forthcoming categories.

Second, that he is in error or imprecise in his wording, such as one who says: 'O my master, Messenger of Allah, I ask for your companionship in Paradise,' or "O my master, 'Abd al-Qādir, assist me.' Yet what he truly intends is: 'O my master, Messenger of Allah, pray to Allah that I may be granted companionship with you in Paradise,' or 'O my master, 'Abd al-Qādir, pray to Allah that He may assist me with strength and resolve.' At this point, an objector may interject hastily: 'But how can one call upon the absent or the dead? Is this not, in itself, a polytheistic belief?' We reply: Certainly not. The living person who is present only hears by that which Allah has created in him of instruments and faculties of hearing, and only by Allah's permission and will—not by any independent or intrinsic capacity. For this reason, that select body of scholars refrained from restricting al-Shawkānī's *ḍābiṭ* 'criterion' to the invocation of the deceased specifically. Instead, they stated: 'Whoever calls upon other than Allah, Mighty and Majestic, with respect to that which none can perform except Allah, is a *mushrik* and *kāfir* whether the one invoked is living or deceased.' Thus it is stated in *Uṣūl al-Imān fī Ḍaw' al-Kitāb wa-l-Sunnah*, a passage which we have cited in full above. And indeed, this statement would be sound if the criterion itself were properly defined and regulated. But regrettably, such is not the case.

And as for the statement of the *nukhbah min al-ulamā'* 'the elite body of scholars,' that reads: 'And whoever calls upon a living person with respect to that which he is capable of such as saying, 'O so-and-so, feed me,' or 'O so-and-so, give me drink,' and the like - then there is nothing upon him.' Clearly this is not entirely precise, even though it may be tolerated out of leniency. However, what is properly incumbent to state is the following: 'And whoever calls upon a living person who is present, with respect to that which he is capable of such as saying, 'O so-and-so, feed me,' or 'O so-and-so, give me drink,' and the like, then there is nothing upon him, *provided* that he holds with resolute conviction that the one being called upon is a created and subjugated being, possessing no power save what Allah has enabled him with and that he in no wise escapes the all-encompassing dominion of Allah's cosmic sovereignty: he cannot flee Allah's grasp, nor evade Him through any

means.' As for their statement: 'And whoever calls upon the dead or the absent with such requests, then he is a *mushrik*, for neither the dead nor the absent is capable of such deeds,' this is sheer falsehood and a naked fabrication. For the ability of the dead or the distant to hear by Allah's enabling of them is not something beyond Allah's power, nor does affirming this ability entail attributing deficiency to Allah or committing deviation in relation to His Names. It is merely something contrary to customary norms and thus requires demonstrative proof either from sensory experience and rational analogy (as with the telephone or wireless transmission, for example), or from textual revealed evidence. Therefore, to assert such a claim without substantiating it with proof is invalid and a form of delusion, though it does not constitute *Shirk*. As we have established earlier by the dictum, 'Every instance of *Shirk* is myth and falsehood, but not every myth or falsehood is necessarily *Shirk*.'

Some individuals are of the opinion that the Prophet may Allah's peace and blessings be upon him and his noble family upon his death and the liberation of his soul from the constraints of the body, transitioned into a state of greater perfection and potency. Consequently, they believe that he now hears from afar and exercises powers he was not capable of during his earthly life. All of this, *they claim*, occurs by Allah's enablement and permission, through the bestowal of particular faculties and a uniquely elevated station granted to him by Allah. Nevertheless, they maintain that he has not transcended the degrees of createdness: he remains a servant, created and subjugated, possessing no power to harm or benefit himself save what Allah wills. Such a view, in this generalised and absolute formulation, is in the soundest and most correct opinion a false belief, intrinsically untrue and not conforming to reality. Yet it is, without doubt, *not* something that expels one from the *Deen* per se. Nor does it entail any deficiency or diminution in Allah's omnipotence or His exclusive sovereignty over creation, governance, and ordinance. Nor does it constitute rejection of anything transmitted from Allah or His Messenger. As such, *du'ā'* directed under such a presumption does not fall under the category of *Ibādah*, nor does it amount to *Shirk* or *kufir* in any sense. Indeed, it may well be *ḥarām* if it takes on a form contravening the dictates of sacred law or due to other legal considerations, and it may, alternatively, not be so. It is perhaps evident from the foregoing discussion concise though it may be that the oft-repeated phrase, '*Du'ā'*' only constitutes

'*Ibādah* if the supplicant requests from *other than* Allah that which none but Allah is capable of,' is in need of explanation, elaboration, division, and qualification. Without these, it becomes of little utility and negligible consequence. And such vagueness is impermissible in matters as grave as those which pertain to Islam and disbelief, *Tawḥeed* and *Shirk*, issues that are, indeed, matters of *life and death*.

Therefore, it cannot rightly be termed a *dābiṭ* (decisive criterion), as claimed by the blind imitators of MIAW. Rather, it is itself in urgent need of regulating criteria and explanatory commentary in order to render it meaningful. So, wretched indeed is this so-called criterion' which is itself devoid of all regulation! As for the statement of Imām al-Shawkāni: 'And if he intends that the one invoked among the dead possesses independent power to fulfil that which none but Allah, the Mighty and Sublime, can fulfil, then even the people of *Jāhiliyya* did not reach such a claim,' this is an uncorroborated assertion, indeed a reprehensible presumption that stands in stark contradiction to categorical evidence that the *mushrikeen* the idolaters of the pre-Islamic era did in fact attribute *Uluhiyyah*, divinity to their idols, or to be more precise, to the being which the idol was held to represent. Such attribution implies a variety of doctrinal positions many of which necessarily entail the belief in *independent agency* of the deities, even if only in a single specific domain or limited capacity. It seems that Imām al-Shawkāni took at face value the legend of al-Lāt who was said to have kneaded the *saweeq* (gruel) for pilgrims and relied upon the false claims of the renegade MIAW that the *mushrikeen* 'believed in the dead and the righteous' as though it were an uncontested matter. Yet all of this is, as has been demonstrated in earlier chapters, complete falsehood refuted by decisive and incontrovertible proofs. We have already cited the statement of al-Ālusi in his *Tafsir Rūḥ al-Ma'ānī* where he says:

The second point is that people have become excessively engaged in invoking other than Allah, Exalted is He, among the saints, whether living or deceased, or others, such as saying: 'O Sayyidī Fulān, help me!' This is in no way among the categories of permissible *tawassul* (intercession). What befits a believer is to refrain from uttering such words, and not to linger near its precincts. Some among the scholars have deemed it *shirk*, and even if it is not explicitly so, it certainly

approaches it. I do not believe that *anyone* who says such things does so unless he harbours a belief that the one called upon whether a living absentee or a veiled deceased possesses knowledge of the unseen, or hears the call, or is capable, either independently or through another, of bringing benefit or averting harm. Otherwise, he would not have called out to him, nor opened his mouth with such utterance. Indeed, therein lies a severe trial from your Lord.⁴¹

To this we respond that this statement is indeed more rational and significantly more balanced. Here al-Ālusi does not categorically declare such supplication to be *Shirk*; he asserts that such utterances by the supplicants necessarily stem from *mu'taqadāt* – 'specific beliefs' concerning those being invoked such as their knowledge of the unseen, their ability to hear the call, or their capacity, either independently or otherwise, to confer benefit or avert harm. To this we say: al-Ālūsī has spoken truthfully, yet what he enumerates of beliefs does not, in and of itself, render the one attributed with them a *divine being*.

As for what is referred to as 'the unseen' it is a relative matter: what is hidden from me may be manifest to you. The crux of the matter is whether the one being invoked is believed to possess knowledge obtained through independent, self-sustaining power i.e., *without* the permission *or will* of Allah; in other words, whether he knows without being taught by Allah, or knows even if Allah willed to withhold such knowledge. If such a belief is affirmed, then this is indeed a belief in a divine entity; otherwise, it is not.

The same applies to *hearing* as was stated regarding *knowledge* letter for letter. As for al-Ālusi's phrase 'either independently or through another,' it is void of precision. For either the power attributed is independent and self-sustained which is an attribute of divinity, or it is not; and if it is not, then it cannot constitute *ilāhiyyah*, godhood. It is apparent that the notion of 'divine essence' or 'divine lineage' never even crossed al-Ālusi's mind. On the other hand, the 'calling upon' of the saints and the righteous may indeed constitute *Shirk* and *kufir*—what the Wahhābis term major *Shirk* *if* the caller has attributed to them any element of *Uluhiyyah* (divinity), in a general and unrestricted sense, as has already been exhaustively clarified in the preceding chapters. This would then, and only then, render the act of *calling* in such a

⁴¹ al-Ālusi *Tafsir Rūḥ al-Ma'ānī* [Vol. 3, p. 297]

case a form of *'Ibādah* as the Wahhābis assert. However, the act may also fall short of constituting *Shirk*, and be merely *ḥarām* and *ithm* (sinful), without entailing apostasy or exiting the fold of Islam. In this case, we do not permit the use of the label minor *Shirk* (*al-* except with explicit textual evidence affirming such a designation, as has been stated by the noble scholar al-Sayyid al-‘Allāmah Muḥammad ibn Ismā‘īl al-Amīr, may Allah have mercy upon him.

Alternatively, it may not fall into either of the aforementioned categories, as in the case of the Companion Bilāl ibn al-Ḥārith al-Muzani, may Allah be pleased with him, who, during the Year of Drought came to the grave of the Prophet peace and blessings be upon him and said, ‘O Messenger of God, seek rain for your *Ummah*, for they are perishing!’⁴² This matter has been addressed in a separate study which was undertaken and is entitled: ‘*Tawassul: The ḥadīth of Mālik al-Dār and what is similar to it.*’ All of this hinges upon the content and nature of the *belief* held by the supplicant not merely upon the presence of any belief whatsoever, nor upon its emotional intensity or degree of conviction, nor even upon the urgency or sincerity of the call or the specific subject matter invoked, whether it be *isti‘ānah* – ‘seeking aid,’ *isti‘ādḥah* – ‘seeking refuge,’ *istighāthah* – ‘pleading for rescue,’ *istisqā’* – the seeking of rain, or *istimdād*, seeking spiritual strength

Likewise, judgment must be grounded in the evidentiary foundations of the revealed texts not upon putrid analogies, wild conjectures, or sweeping baseless generalisations. Hence, what the rebellious *Khārijī* MIAW termed *Shirk al-Qubur* or the supposed *Shirk* associated with ‘graves,’ is in its very essence and principle, a myth – a fictional construct that exists only within his own diseased imagination. When tied to the rulings concerning *kufṛ* and ‘*Imān*, this innovation is a monstrous heresy and a blinding misguidance one that ultimately led its adherents to draw the sword against the people of Islam. Such conduct falls under the category of *kufṛ ‘amalī* – practical disbelief, for ‘*Reviling a Muslim and fighting him are acts of kufṛ.*’ And it is to be feared that if they persist in this path, they may fall into the abyss of *theological Shirk*

⁴² The ‘Year of Drought’ was in 18 AH (639 CE). Al-Ṭabari has a detailed account of this in his history, [Vol. 13, pp. 151/159 (English translation)]. Accounts also appear in the *ḥadīth* corpus, notably recorded in the *Muṣṣanaf* of Ibn Abi Shayba [Vol. 11, no. 32528]; Ibn Ḥajar comments on this in *Fath al-Bārī* saying its *isnād* is *Ṣaḥīḥ* [Vol. 3, p. 430].

and *kufṛ* leading to eternal damnation and unending fire. We ask, indeed beseech Allah seeking refuge in Him from such a damning fate.

7. Divergence of divine laws and its relationship to acts of worship

Some proponents of the Wahhābi sect have endeavoured to circumvent the argument we previously set forth by asserting the following:

With every divinely revealed message and *Sharī'ah*, there necessarily emerges a set of commands and prohibitions, along with criteria for *kufr* and *Imān*. It is in accordance with these criteria, delineated in the revealed dispensation from Allah, Exalted is He, that conceptual frameworks, and even terminologies are shaped. Thus, the conception of disbelief in the *Sharī'ah* brought by the Chosen One, Muḥammad peace and blessings be upon him, differs from that which was conveyed by Jesus peace be upon him, despite the fact that the theological foundation of all messages remains unified: namely, the testimony that *Lā ilāha illā Allah* - there is no god/deity except Allah.

They further advanced this view by providing examples, such as the claim that: 'Drinking wine is a *kabā'ir* (one of the major sins) in the *Sharī'ah* of Muḥammad peace and blessings be upon him, whereas it may have been among the most permissible of acts in the legal code of other Prophets.' Our response is as follows: your statement is overly general, containing a perilous, indeed, ruinous, conceptual conflation. Hence, it comprises both truth and falsehood, as shall become evident in the following clarification. Indeed, the final and sealing *Deen* has abrogated all previous dispensations. Consequently, what was prohibited therein is no longer prohibited, and what was obligatory is no longer deemed obligatory. Any rulings within our own *Sharī'ah* that coincide with, or even exactly match, those of a prior

dispensation are nonetheless to be regarded as a newly legislated provision, renewed and independent, despite their congruence with previous laws. They are not to be viewed as affirmations of the former. In any case, such an understanding is necessitated by both the dictates of revelation and reason.

However, abrogation pertains *exclusively* to al-*Aḥkām al-Taklīfiyyah* - prescriptive legal rulings, namely: *wājib*, i.e., *fard* (obligated), *mustahabb* (recommended), *ḥalāl* or *mubāḥ* the purely permissible, the *makrūh* (disliked), and the *ḥarām*. Also, as well as to al-*Aḥkām al-Waḍ'īyyah* - the declaratory rulings: *ṣiḥḥah* (validity), *buṭlān* (invalidity), *fasād* (corruption), *sabab* (cause), *shart* (condition), and other such categories. It is indeed true that terms and conceptual categories of this sort vary across the different divine laws. Yet there also exist objective terms and conceptual frameworks that pertain to specific ontological realities, either as descriptions thereof or as judgements upon them. These fall within *akhbār*, the domain of reports, and it is both rationally and theologically impossible for such reports to be subject to abrogation. A report is either true or false, nothing beyond that.

Indeed there may exist statements that are not precisely delineated, and thus cannot be categorised simply as true or false, for they are composite some of their components are true, while others are false - such as this very statement of yours, which we are now analysing and discussing in its various parts. Once it is refined and broken down into its constituent elements, it becomes possible, in principle, to judge it accordingly. Yes, this may be difficult for me or for you, but it is theoretically possible; or, if you wish, say: as it is in the knowledge of Allah, the Almighty, the All-Wise.

There are also linguistic utterances that may appear to be propositions subject to truth or falsehood, while in reality they are void of content such as the statement: 'The human soul is green in colour.' For the soul does not belong to the category of corporeal entities to which the concept of colour can be meaningfully applied. The correct response in such cases is to say: this is a meaningless statement, for colour concepts do not apply to the soul in any way whatsoever. For if one were to say, 'The human soul is not green in colour,' one might mislead the listener into imagining that it is, for instance, red. Let us not prolong this matter further, for it ought to be self-evident. It is known through both sensory perception and reason prior to the advent of revealed law, as it is embedded within the very structure of the intellect *qua* intellect, and was granted to man before he was addressed with the obligations

of divine legislation. For the imposition of legal responsibility is inconceivable in the absence of reason. The Exalted, blessed are His Names and Exalted is His station has said:

وَعَلَّمَ آدَمَ الْأَسْمَاءَ كُلَّهَا، ثُمَّ عَرَضَهُمْ عَلَى الْمَلَائِكَةِ

*And He taught Adam all the names [of things], then He presented them to the angels.*¹

As for the examples you have cited, they constitute a proof against you, not in your favour. Note the earlier example mentioned concerning drinking wine, to that I reply: you have spoken truthfully, and your justification is sound and commendable. However, wine is still wine, and it refers to any intoxicating substance. This is an objective reality, apprehended through sensory perception, empirical experience, and rational discernment. Yet the legal ruling concerning it differs from one dispensation to another. The concept of wine, in our law and in previous dispensations, remains the same—insofar as it is a material substance that is drunk or eaten, inhaled, or smoked, leading to intoxication, which is a well-known alteration in the state of mind and soul. However, the legal ruling regarding its consumption differs according to the specific *Shari'ah*. When the Prophet peace and blessings be upon him and his family said: *'Whatever intoxicates in large quantity* (in another narration: *a farq of it*), *then a small amount of it* (in another narration: *even a palmful of it*) *is forbidden*,² he referred to a tangible reality; things that are named or described as *muskirāt* – intoxicants, a term well-established in the Arabic language, known to the Arabs prior to the advent of revelation, and whose reality is apprehended through the necessities of sense and reason. Then, a legal ruling was issued concerning it: namely, that it is prohibited.

We have stated repeatedly that the concept of *'Ibādah* likewise possesses an objective reality, one that is necessarily apprehended in its essence, by the faculties of sense and reason, prior to the advent of the revealed laws. Otherwise, the proclamation of the Prophets to their peoples *'Worship none but Allah*,³ would be devoid of meaning, for the people would have responded: *'What is this term ta'budū, or its equivalent in our languages? We do not know*

¹ *Qur'ān*, 2: 31

² For example see: Ibn Hajar *Bulugh al-Marām*, *Kitāb al-Hudud*. The traditions are narrated from Aḥmad and the four-Imām's; graded *Ṣaḥīḥ* by Ibn Hibbān.

what it means.' Yet the empirical reality, the testimony of historical continuity, and the unequivocal texts of the *Qur'ān* all indicate that they immediately understood what was being demanded of them, and the majority of them hastened to express rejection and protest:

ما نحن بتاركي آلِهتنا عن قولك

*'We will not forsake our gods merely on account of what you say.'*³

أَجْعَلِ الْآلِهَةَ إِلَٰهًا وَاحِدًا إِنَّ هَذَا لَشَيْءٌ عَجَابٌ

*'Has he made the gods into one god? This is indeed a strange thing!'*⁴

The people understood immediately and instinctively the intent of the Prophets peace be upon them and recognised it as the greatest calamity, the complete negation, and the total demolition of their inherited traditions. For it necessarily entailed the nullification of their supposed gods/deities and the assertion that they were but myths with no existence in reality. The essential question, then, is: what is the concept of *'Ibādah* (worship), or the concept of *Ilāh* (god/deity), around which the dispute between the Prophets and their peoples revolved? And what is the relationship between these two concepts? It is therefore necessary to define precisely the concept of *'Ibādah* and that of *Ilāh*, and to clarify which of the two is primary and which is derivative. This is what we have previously set forth, and that clarification and exposition shall be further reinforced through the refutation of any arising objections and specious arguments or by demonstrating that they lie outside the scope of the matter under discussion, as has already been shown and will be further demonstrated, by the will of Allah, step by step. This then is what must be first clarified - before anything else, just as it is necessary to determine whether the beverage being consumed, or the herb being smoked, or the pills being swallowed, fall under the category of *muskirāt* (intoxicants) or not. The legal ruling regarding the smoking of that herb or the ingestion of that pill is a separate matter that comes afterwards, in due course.

The issue here, as in other actions, concerns the nature and essence of the act itself, that is, the *māhiyyah* (essence) of the act, including, where

³ *Qur'ān*, 11: 53

⁴ *Qur'ān*, 38: 5

applicable, any beliefs or conceptions that precede or accompany it. It is not a matter of the degree, intensity, or manner of the act. For instance, a drowning person in desperate need who calls upon those standing on the shore for help has not worshipped them besides Allah, regardless of the intensity of his call and the desperation of his plea. This is agreed upon by us, by you, and by the consensus of all rational individuals. Likewise, those who shrank from battle despite it having been made obligatory upon them out of fear of people, and dread of death, injury, pain, and hardship, whose fear of mankind reached the level of, or even exceeded, their fear of Allah, as explicitly stated in the Qur'ān, were never declared by any scholar of Islam to have thereby become, through such a blameworthy and reprehensible stance, though undoubtedly indicative of weakness of faith, worshippers of mankind besides Allah, or *mushrikeen* whose act constituted disbelief that expels one from the *Deen* itself.

Indeed we could fill hundreds of pages here in demonstrating that there exists no act among the acts of created beings in the world whether bodily and physical actions such as prostration and bowing, or inward actions or emotional states of the heart such as love, fear, and awe that can, *in and of itself and merely as an act*, be rightly classified as *'Ibādah*. Rather, in order for it to be rightly designated as *'Ibādah*, it must be preceded by a particular belief or conception concerning *al-maf'ūl bihi* – *the object of the action*, or *al-maf'ūl li-ajlih* – *the intended purpose*, or the *one toward whom the action is directed*, within the mind of *al-fā'il* – *the actor or the doer*. It is this belief, which is the actual subject under scrutiny, that serves as the motive for the act, such as prostration or bowing or as the stimulus for the feeling or emotional state, such as love, fear, or awe. Were we to choose, we could author hundreds of pages, by analysing each act individually, to establish this point. However, in the preceding examples of prostration, bowing, inclining, standing, and supplication, there is sufficiency, and no need for further elaboration or tedious repetition. Through this discussion, in addition to the necessary evidences presented in previous chapters, it becomes clear that it is invalid to label or regard any action or emotional state of the soul as *'Ibādah* – merely on account of it being an act or emotion, without the presence of the relevant belief, or without considering the *content* of the belief regarding the one to whom the act is directed, connected, or performed for. What has been stated thus far is sufficient, Allah willing, to demolish the false proposition, one that

is at once innovated, misguided, and destructive – that *certain acts are by their very nature* are to be classified as being *'Ibādah*, in abstraction from the belief held by the doer concerning the entity to whom the action is directed, or for whom it is performed, or upon whom it is enacted. Nevertheless, we may return to this point with further clarification and examples whenever occasion permits.

As for the *type* of belief or conception upon which an act must be based in order for it to be classified as *'Ibādah* toward *al-maf'ūl bihi* – the object of the act, or *al-maf'ūl li-ajlih* – the one for whom it is done; it is by both theological and rational necessity, none other than *Uluhiyyah* (divinity), including within it *Rububiyyah* (lordship), or *Nidiyyah lillāh* (association as rival to Allah), as we have detailed in earlier chapters and discussions of this book. No alternative is permissible, and it is inconceivable that the matter be otherwise. Therefore, we reiterate the following important principle: no action of the heart, emotional state of the soul, utterance of the tongue, or bodily act may rightly be called *'Ibādah* in the correct sense employed by the eloquent, pure-blooded Arabs in their discourse about gods and religions at the time of the Qur'ān's revelation, unless it is preceded by and founded upon a belief in *Uluhiyyah*, *Rububiyyah*, or *Nidiyyah lillāh*, even in a single aspect or particular meaning thereof concerning the one to whom the act is directed, for whom it is done, or toward whom it is intended as a means of nearness. The concept of *Uluhiyyah*, including *Rububiyyah* and *Nidiyyah lillāh*, is thus necessarily prior to the concept of *'Ibādah*; and acts of *'Ibādah* can only ever be directed toward a *Ilāh*, god/deity.

We have previously presented, in a previous chapter the case of the worship of the *Jinn* as an example illustrating the correct definition of the term *'Ibādah*. There we stated: whoever believes that the *Jinn* are capable of hiding from Allah, or that they can escape His grasp, evading and overpowering Him by flight, such a person, by virtue of this belief, is a *mushrik* and a *kāfir*, an apostate from Islam, should he have previously entered into its fold validly. It follows, then, that his fear of the *Jinn* is *'Ibādah*, even if that fear be feeble, despite his belief that he may overpower them, or outwit them, or manipulate them through sorcery, talismans, and incantations.

This stands in stark contrast to the fear of a Muslim fleeing from a lion as it attacks him. For although the fear in such a case may be overwhelming, seizing his entire being such that his heart and mind are consumed by terror,

and although he may flee in panic, falling into a ravine without even perceiving it, nonetheless, his fear is not *‘Ibādah*. Far be it from Allah that such fear be deemed *‘Ibādah*, and far be it from Allah that he should die a *mushrik* and a *kāfir* were he to perish in that fall. Whoever claims this, or anything akin to it, has indeed abandoned reason and departed from Islam. So let such a one rejoice in his ruin. These examples also demonstrate through a different lens than that previously presented, the grave error in the definition proposed by Imām Ibn Taymiyyah, who defined *‘Ibādah* as ‘the utmost humility combined with the utmost love.’

Indeed, such is the proper *state* of one who worships Allah, but it is not the *essence* of the worship of Allah, and hence cannot serve as its definition. Yes, this is the state of one who truly worships Allah, Exalted is He, if the worshipper is sincere and truthful. Otherwise, it is a deficient or rejected act of worship, but it nevertheless remains deserving of the name *‘Ibādah*, and does not thereby become mere physical exercise or a commercial transaction due to its shortcomings. The *mushrikeen* worship multiple deities, and in most cases, the chief among them, such as the ‘god of the town,’ the tribe, the family, or its patron, receives the greatest share of love and humility. Does this mean, then, that the other gods *were not worshipped* because the love or humility shown to them did not reach its utmost extent? Are they, therefore, monotheists? This line of analysis also reveals that the adversaries of the Wahhābi sect among the *Ṣūfīs*, *Barelwīs*, and others who share their fierce opposition to the Wahhābis, are not in a better position, nor do they exhibit greater intellectual depth, in their response to the matter especially when they present *niyyah* (intention) or the actor’s *purpose* as the central issue and the decisive factor in this question.

The invalidity of assigning *niyyah* or *qaṣd* as the determining criterion in this matter becomes evident upon reflection. Fear for instance, arises in most cases involuntarily within the soul, without the intervention of will, intent, or conscious decision. Hence, it cannot be said that such fear becomes *‘Ibādah* merely by intent, nor can it be classified as instinctual fear by intent. When Qays ibn Sa’d ibn ‘Ubādah wished to prostrate before the Prophet peace and blessings be upon him and his family, his intent was *taḥiyyah* and *ta’zīm* (salutation and reverence) for one whom he believed to be a revered Prophet. Similarly, when a pagan sees an idol of one of his gods on the roadside, he may prostrate before it, intending *taḥiyyah* and *ta’zīm* for one whom he

believes to be a revered deity. In both cases, the *intent* is the same - *salutation and reverence*, and the *act* is the same - *prostration*. Yet the *belief* concerning the one prostrated to differs entirely: the *mushrik* believes in the *divinity* of the object, and thus his prostration is *‘Ibādah*; while the Companion attributes no divinity whatsoever to the one he prostrates before, and thus his act is not *‘Ibādah*. The *intent* is the same, and the *act* is the same, yet the *classification* differs due to the belief concerning the recipient.

Intention, though it plays a role in determining whether an action is blameworthy and punishable, or praiseworthy and rewardable, for ‘*actions are but by intentions, and each person shall have only what he intended*,’⁵ it has no bearing whatsoever on the classification or nature of the act itself. One who kills in error is still called a ‘killer,’ even if he is not held accountable and is not deserving of the punishment assigned to intentional murder. Yet the reality remains: he is a ‘killer,’ and he does not suddenly become a ‘laugher’ or a ‘merchant’ due to a change in intent. Thus, all parties are entangled in confusion and contradiction. There is no meaningful difference between the proponents of the Wahhābi sect and their adversaries in this regard. Most of them, particularly the adherents of the Wahhābi sect, reject deep thought and critical, enlightened reasoning, and instead immerse themselves in reviling, cursing, and pronouncing *takfīr*, or in elevating earlier scholars to the ranks of the infallible and saintly, and in filling pages, even volumes, with accounts of their exploits, virtues, and intellectual brilliance whether rightly or wrongly, persisting stubbornly in their mistakes instead of correcting them, and invoking Allah’s mercy and reward for their efforts.

However, the Wahhābi sect is distinguished by an even more entrenched hostility to intellectual engagement and reflection, to the point of intellectual bankruptcy. They fall into statements akin to those of the deranged, accompanied by arrogance, self-admiration, and self-righteousness, along with excess in polemics, obstinacy, and alienation. It is therefore imperative to uproot this Wahhābi falsehood from its very foundations in order to halt the ongoing process of undermining Islam, a fear once voiced by the Commander of the Faithful, Umar ibn al-Khaṭṭāb, may Allah be pleased with him, when he said: ‘Verily, Islam is only destroyed by the slip of a scholar, the

⁵ Agreed upon. As per the famous *ḥadīth* narrated by Umar ibn al-Khaṭṭāb and appearing across the corpus of *aḥādīth*.

disputation of a hypocrite with the Book, and the rulings of misguided Imāms.’⁶ And this most noble statement was not a product of his own reflection alone, may Allah’s good pleasure and peace be upon him, but was something he had received from the Seal of the Prophets, upon him and his family be Allah’s prayers, peace, and blessings in abundance.

⁶ As recorded in the *Sunan* of al-Dārimi [Vol. 1, no. 295]

8. Invalidity of the definition of worship by Shaykh Sa’di

Of the many comments upon this topic by Shaykh ‘Abd al-Raḥman al-Sa’di may Allah have mercy on him, the following, appears in his book entitled *al-Qawl al-Sadeed*, is of particular note.¹ This work is an explanation, or *Sharḥ*, of the well-known *Kitāb al-Tawḥeed* by MIAW. It has been published in many editions.² He writes:

فإن حد الشرك الأكبر، وتفسيره الذي يجمع أنواعه: أن يصرف العبد نوعاً أو فرداً من أفراد العبادة لغير الله. فكل اعتقاد أو قول أو عمل ثبت أنه مأمور به من الشارع فصرفه لله وحده توحيد وإيمان وإخلاص، وصرفه لغيره شرك وكفر. فعليك بهذا الضابط للشرك الأكبر فإنه لا يشذ عنه شيء

(Regarding) the definition of *Shirk al-Akhbar* (major *Shirk*), its interpretation that covers all of its types is – ‘That the servant directs any type or specific act of worship to other than Allah.’ Thus, every belief, statement, or act, established to be commanded by the Lawgiver, when directed solely to Allah, is *Tawḥeed*, ‘*Imān*, and *Ikhhlās* (sincerity). Directing it to other than Him is *Shirk* and *kufr*. Therefore, adhere to this criterion for *Shirk al-Akhbar*, for indeed nothing falls outside of it.³

¹ Famously known for his contemporary *Tafsir*, al-Sa’di [1889 / 1957 CE] was born in the town of ‘Unaizah in al-Qaṣīm, Saudi Arabia. Multiple brief biographies of al-Sa’di are available by way of internet search.

² At this juncture the Professor mentions the physical booklet edition that he had at the time of writing: no. 27, published by ‘*The Office of Da’wah in Britain*,’ from the series entitled *Rasā’il al-Islāh wal’Fiqh*.

³ al-Sa’di *al-Qawl al-Sadeed Sharḥ Kitāb al-Tawḥeed* [p. 54 (*Shamela* edition)]

Looking at the wording as expressed, the Shaykh does not make any differentiation between the *al-‘Ibādah*, expressed as carrying the definite article *al*, by *idāfa* (possessive construction) or by complete phrasing such as *al-‘Ibādāt* (acts of worship). Regarding the proof of the matter, it is that *Shirk* with Allah is undoubtedly, by unanimous agreement, ‘worshipping other than Allah.’ Yet the Shaykh expressed his view of the matter utilising the phrase ‘That the servant directs any type or specific act of worship to other than Allah.’ Yet *al-‘Ibādah*, whether expressed with the definite article, by *idāfa* or by complete phrasing is but a single matter. It is not composed of varying parts. He doesn’t make a distinction between *al-‘Ibādah* and *al-‘Ibādāt*.

For al-Sa’di, *al-‘Ibādāt* comprises the comprehensive set of every belief, statement, or action that has been established as being commanded by the Divine Lawgiver. Therefore, altogether they form a defined and restricted category that can only be fully known *after* the revelation of divine law. At least in theory, it isn’t possible for acts of worship to vary between different laws that have been revealed. Yet this notion is based upon falsehood, being an impossibility, as has been demonstrated elsewhere in this present work. As has been reiterated thus far, emphasis has been placed upon the notion that the very concept of *‘Ibādah* has an objective reality, which is necessarily understood through the medium of reason and sense of perception, even prior to the advent of the revelation of divine laws. If that wasn’t the case, then the statements which were made by the Prophets to their respective peoples would be rendered meaningless; statements such as ‘Don’t worship any but Allah.’ Their people would have retorted, ‘But what is this word – worship? We don’t understand what it even means!’ However the historical reality together with the unequivocal texts of the Qur’ān all confirm that these people *immediately* understood what was being asked of them. Most of them reacted with rejection and protest, as evident from the following verses by way of example:

وَمَا نَحْنُ بِتَارِكِي آلِهَتِنَا عَنْ قَوْلِكَ وَمَا نَحْنُ لَكَ بِمُؤْمِنِينَ

‘We will not forsake our gods on the strength of your word alone, nor will we believe in you.’⁴

أَجْعَلِ الْآلِهَةَ إِلَهًا وَاحِدًا إِنَّ هَذَا لَشَيْءٌ عَجَابٌ

⁴ Qur’ān, 11: 53

‘How can he claim that all the gods are but one God? What an astonishing thing [to claim]!’⁵

Many other verses readily attest to this. People immediately and intuitively understood what the Prophets meant by their conveyance, peace be upon them all. They realised that it would result in enormous upheaval for them; a complete contradiction to the established ways, and the total destruction of their corrupted inherited beliefs, because it necessitated the invalidation of their gods/deities, revealing them to be mere myths with no real existence whatsoever. Earlier in the present work we provided cogent evidence for the veracity of the following equation:

الشرك بالله = عبادة غير الله = أن تجعل مع الله إلهاً آخر

Shirk with Allah = Worshipping other than Allah = That you make another god alongside (or besides) Allah.

Further flaws with the definition of al-Sa’di

Furthermore, there are a number of clear and evident flaws which rest in the definition which Shaykh ‘Abd al-Raḥman al-Sa’di formulated. He made the matter of belief, *al-‘Itiqād*, upon the same level as actions, *al-‘Amāl*, whereas our present research cogently shows that belief, or to be more precise, a belief in *al-Uluhiyyah* (divinity) is a fundamental pillar in defining *al-‘Ibādah*. In fact, the very concept of *al-Uluhiyyah* actually *precedes* the matter of *al-‘Ibādah*. Concerning the matter of *Shirk Akhbar* – major *Shirk*, it is realised by the belief that *any* aspect of *al-Uluhiyyah* belongs (or is attributed to) other than Allah. This is irrespective of any additional belief or even resultant actions, including speech, or seeking to draw close to such an entity, which could be construed or classified as being ‘worship.’

All acts which are intended to express the matter of reverence, humility, drawing closer to, seeking benefit and averting harm etc., when directed toward something believed to possess *al-Uluhiyyah* (divinity) are necessarily understood as being ‘acts of worship.’ This is by universal acknowledgement, notwithstanding any objections posed by the sect of Wahhābism or any others.

⁵ Qur’ān, 38: 5

Many examples can be marshalled to show this. For instance, many *mushrikeen* perform ritual dances before their ‘deities,’ and it is considered as being worship. This is despite the fact that there is no actual legal evidence to show that dancing is a form of worship for Allah. Similar can be said of clapping and even whistling, which aren’t seen as being worship amongst Muslims, yet for some *mushrikeen* they are taken to be ‘religious practices’ before their idols. In India, followers of the false goddess ‘Durga’ consider it worship for a woman to offer herself to men. Such a phenomenon is not isolated – the notion of ‘temple prostitution’ has featured in other *mushrik* societies, where devotee women offer themselves to men for money, that payment then being given or dedicated to the idol, as occurred among the worshippers of Baal.⁶ Evidently, none of the aforementioned practices would be considered as legitimate or lawful ‘worship’ in Islam, they would be grave acts of immorality and sin.

There are many acts which are performed in Islam as acts of worship for Allah, such as *sujūd* (prostration), *ruku’* (bowing) and *qiyām* (upright standing). In and of themselves though, they are not *inherently* acts of worship. They *become* acts of worship when preceded by a specific perception and belief. If not, they remain neutral human acts, neither being inherently of one form or another. Some of these points have been elucidated previously. Making *sujūd* to Allah is a legitimate and recommended act of worship, at times obligation, such as in the prayer. Despite this, it was a permitted form of greeting in previous *Sharī’ah*’s, the most obvious example being where this occurred during the time of the Prophet Yusuf, peace be upon him.⁷

Love, for the sake of Allah, is rightly considered an act of worship, indeed one of the greatest. At the same time, expressing love for the believers and showing allegiance to them is not taken to be a matter of *Shirk*, but rather a fundamental Islamic duty. By way of another example, obeying the righteous and just political leaders in matters that are lawful is an obligation, yet this does not contradict the fact that obedience to Allah is the highest form of

⁶ Academic literature on ancient Baal worship is extensive. Mention of this false deity also appears in the Qur’ān, [see: 37: 123/127] - ‘Elijah too was one of the Messengers. He said to his people, ‘Have you no fear of God? How can you invoke Baal and forsake the Most Gracious Creator, God, your Lord and the Lord of your forefathers?’ But they rejected him. They will be brought to punishment as a consequence.’

⁷ See *Qur’ān*: 12: 100

worship. From all of this it is clear that love, prostration and obedience, in and of themselves, as abstract acts, are not inherently construed as being *acts of worship*, therefore, they cannot be defined as such. That only comes about when coupled with a belief that precedes it. Otherwise, such actions remain within the domain of being human acts.

Minor Shirk

Following on from the previous analysis, we can also firmly conclude that the definition of minor *Shirk*, *Shirk al-Aṣghar* which Shaykh ‘Abd al-Raḥman al-Sa’di penned, is also invalid. In this respect, he argued ‘As for the matter of *Shirk al-Aṣghar*, it is every means and pathway that leads to *Shirk Akbar*, (arising) from intentions, statements or acts which have not reached the level of *al-‘Ibādah*.’⁸ Once again, this definition contains several fatal flaws. Firstly, the definitions which al-Sa’di provided for *Ibādah* and *Shirk Akbar* are incorrect and inconsistent, as previously shown. Fatally, he also includes that *within* his definition of *Shirk al-Aṣghar*, rendering this ultimately of little to no utility. Secondly, the matter of *Shirk al-Aṣghar* is a designation made by the *Sharī’ah*, it wasn’t something that was even known to the Arabs at the time when the revelation mentioned it. In other words, it wasn’t a natural or readily understood matter on a purely linguistic basis.

As a term, this was introduced to denote or refer to a specific set of actions. The legal texts themselves did not outline an underlying *ratio legis*, or ‘illah that would even allow for some form of structural analogy to be made to extend the definition further. Therefore, when al-Sa’di makes that generalisation by arguing ‘it is every...’ then that naturally leads to labelling particular acts as being within the realm of *Shirk*, even though Allah and His Messenger did not designate them as such. Consequently, this is precisely the definition of *bid’ah* – innovation, in matters concerning the *Deen* of Allah; placing one’s judgement *ahead* of Allah and His Messenger, and no doubt, this is a very serious matter! The bitter irony is that people from this sect regard themselves as being the vanguard of tradition against unlawful innovation. Some have even dedicated their lives to campaigning against what they perceive to be wrong and ‘innovation, such as utilising prayer beads,

⁸ al-Sa’di *al-Qawl al-Sadeed Sharḥ Kitāb al-Tawḥeed* [p. 54 (Shamela edition)]

or even joining the *Tablighi Jammāt* for three-days!’ As noted in the previous volume (3), the following examples of the astonishment shown by some of the *Ṣahāba* and the *Tābi’een* when they heard the term *Shirk* being used to describe what was termed *al-Shirk al-Khafī* – the hidden or latent *Shirk*. The first, as recorded in al-Bukhārī’s *Adab al-Mufrad* from Ma’qil ibn Yassār:

قال سمعت معقل بن يسار يقوله انطلقت مع أبي بكر رضي الله عنه، إلى النبي صلى الله عليه وعلى آله وسلم، فقال يا أبا بكر! للشرك فيكم أخفى من دبيب النمل. فقال أبو بكر وهل الشرك إلا من جعل مع الله إلهاً آخر؟ فقال النبي صلى الله عليه وعلى آله وسلم والذي نفسي بيده، للشرك أخفى من دبيب النمل، ألا أدلك على شيء إذا فعلته ذهب قليله وكثيره؟ قال قل اللهم إني أعوذ بك أن أشرك بك وأنا أعلم، وأستغفرك لما لا أعلم

I heard Ma’qil ibn Yassār saying that he came to the Prophet, peace and blessings be upon him, with Abu Bakr, may Allah be pleased with him. He said: ‘O Abu Bakr, *Shirk* is more concealed among you than the movement of ants.’ Thereafter Abu Bakr replied, ‘Is *Shirk* anything other than attributing another god besides Allah?’ The Prophet peace and blessings be upon him replied and said: ‘By Him who has my soul in His hand, *Shirk* is more concealed than the movement of ants. Shall I not teach you something which if you say it, it will eliminate its minor or major forms? Thereafter he said: ‘Say - O Allah! I seek refuge in you lest I associate anything with you while I know it, and I seek your forgiveness for what I do not know.’⁹

The statement of Abu Bakr al-Ṣadeeq may Allah be pleased with him, an eloquent Arab from the Quraysh, nay, a man at the pinnacle of eloquence, in this tradition - ‘Is *Shirk* anything other than attributing another god besides Allah,’ is precisely our statement that we have previously elaborated. No other meaning of *Shirk* had formed in his mind *except taking* another god/deity alongside Allah, that is, attributing something of divinity to *other* than Allah. The remainder Prophetic reply regarding the hidden latency of *Shirk* is a new legal terminology brought by the final revelation. This wasn’t previously known to the Arabs up to that moment, nor known to Abu Bakr and the other Companions, may Allah be pleased with them all. Just as Abu Bakr al-Ṣadeeq

⁹ al-Bukhārī *Adab al-Mufrad* [Vol. 1, no. 716]. See also the discussion and analysis as set out in the previous book regarding this [Vol. 3, pp. 105/106 (English)].

may Allah be pleased with him was surprised, others were too, for example, the following is cited in the *Musnad* of Aḥmad:

حدثنا عبد الله بن نمير حدثنا عبد الملك يعني بن أبي سليمان العزرمي عن أبي علي رجل من بني كاهل قال خطبنا أبو موسى الأشعري فقال يا أيها الناس اتقوا هذا الشرك فإنه أخفى من دبيب النمل! فقام إليه عبد الله بن حزن وقيس بن المضارب فقالا والله لتخرجن مما قلت أو لنأتين عمر مآذون لنا أو غير مآذون! قال بل أخرج مما قلت خطبنا رسول الله صلى الله عليه وسلم، ذات يوم فقال أيها الناس اتقوا هذا الشرك فإنه أخفى من دبيب النمل فقال له من شاء الله أن يقول وكيف نتقيه وهو أخفى من دبيب النمل يا رسول الله؟ قال قولوا اللهم انا نعوذ بك من أن نشرك بك شيئاً نعلمه، ونستغفرك لما لا نعلم

Abdullah ibn Numayr narrated to us ‘Abd al-Malik, namely Ibn Abi Sulaymān al-‘Azrami narrated to us from Abu Ali, a man from the tribe of Kāmil, he said, Abu Musa al-‘Ash’ari addressed us and said ‘O people - beware of this *Shirk*, for indeed it is more incipient than the crawling of ants!’ Abdullah ibn Ḥazn and Qays ibn al-Muḍārib stood forth and they both said: ‘By Allah, explain what you just said, or we will go to Umar irrespective of having permission or not!’ (Abu Musa) said: ‘I will explain what I’ve said. The Messenger of Allah, peace and blessings be upon him delivered a sermon to us one day and said: *O people, beware of this Shirk, for it is more concealed than the creeping of ants.* Someone whom Allah willed to speak asked (him) – How can we guard against it when it is more concealed than the creeping of ants, O Messenger of Allah? He (the Prophet) replied, ‘Say: *O Allah, we seek refuge in You from knowingly associating anything with You, and we ask Your forgiveness for what we do not know.*’¹⁰

¹⁰ *Musnad* Aḥmad [Vol. 4, no. 19622]. Here the Arabic edition has a follow-on reference for the narration as it appears in the *Mu’jam al-Awsat* of al-Ṭabarānī; the variance in the *isnād* though is slight.

9. Understanding the meaning of the verse at 39: 3

Ardent defenders of the sect of Wahhābism are prone to citing a plethora of weak reports having no solid textual or factual basis. However from the Qur'ānic text we do find them quoting a particular verse very frequently. This verse is taken from [39: 3] – '[As for] those who choose other protectors beside Him, saying, *'We only worship them because they bring us nearer to Allah,'*¹ and it is often marshalled to present a justification for the positions their sect has adopted. Yet the verse is almost always quoted partially or in a truncated manner, which isn't a surprise given their proclivity for severing texts generally and taking them out of context specifically.

Given this, we would argue that truncating the verse in this manner doesn't help them nor does it support the positions of falsehood that they are entrenched upon. Although to begin a full analysis of this matter, some core principles should be outlined. Firstly, and all success is from Allah the Exalted, when citing a particular Qur'ānic or *Ṣaḥīḥ ḥadīth*, some critical elements of the upmost importance need to be observed. Included among them are the following, firstly, especially in cases where citations are made directly from the text of the Qur'ān, it is critical to quote the verse in its entirety so that the context is known. More often than not, this may also include mentioning the verses that come immediately before and after it. Failure to do this can often result in the heinous crime of '*distorting words*

¹ In full, the verse reads as: 'True devotion is due to Allah alone. [As for] those who choose other protectors beside Him, saying, 'We only worship them because they bring us nearer to Allah,' Allah Himself will judge between them regarding their differences. Allah does not guide any ungrateful liar.'

from their proper places,' [4: 46] which can reach the level of disbelief as the act wrenches a verse from its proper context. Secondly, is to be fully cognisant that Allah the Almighty and Majestic didn't *only reveal* that particular verse, but a great many others too. Moreover, the Prophetic *Sunnah* contains thousands of *Ṣaḥīḥ aḥādīth*. Taken as a whole, the entirety of that revelation, the final revelation sent to mankind, requires obedience, reverence, to be believed in and acted upon. Thus it is heinous crime and manifest ignorance to limit a discussion to only *a single* verse or *ḥadīth* when in actuality there may be many upon that given topic. All texts upon a particular subject have to be marshalled together in line with the established principles that relate to *Uṣūl al-Fiqh* and the proper rules of legal deduction. What may be mentioned in a brief concise manner can often be found detailed elsewhere; sometimes the general may be specified in other places, some matters expressed without conditions may have specified restrictions in another. This is notwithstanding recognising the rules as they relate to the abrogating and abrogated texts. Failure to adhere to these rules can inevitably result in one falling into the category of '*Those who abuse the Qur'ān,'*² meaning fragmenting it and apportioning it into divisions. Those guilty of this, like the people of the previous Scripture, take only what pleases them, discarding all that doesn't match their own vain desires. Naturally as we are repeatedly warned, taking one part of the revelation and disbelieving in another part is catastrophic, resulting in disgrace in both this life and the hereafter, coupled with a severe punishment. As will be quoted shortly, Ibn 'Abbās, may Allah be pleased with him provides us a sound attestation to this.

Thirdly, reference to the classical and authoritative works of *Tafsīr* (exegesis) are imperative, particularly those that have preserved the narratives from the earliest generations of Islam, the *Salaf* regarding the interpretation of Qur'ānic verses. *Tafsīr* literature in this regard includes that of the notable Imām's like al-Ṭabari, Ibn Abi Ḥātim, 'Abd al-Razzāq, followed by al-Baghawi, al-Wāḥidi, Ibn Kathir, and others too. If there exists *ḥadīth marfū'* (raised and attributable) with a *Ṣaḥīḥ isnād* and *matn* that provides an

² Qur'an 15: 91. Abdel Haleem's translation has been slightly modified to explicitly include the word *aladhina* (الذين). Shakir's translation of the verse is: '*Those who made the Qur'an into shreds.*' Abdel Haleem provides a short footnote comment on wording here (p. 165) and says: 'There are two interpretations of the word *idina* given by Razi. One is 'parts / shreds', the other is 'lies/inventions': 'abuse' covers both.'

explanation to the verse, part of it, or even a single word within the verse, then by default, it is *al-Hujjah al-Qāṭi'ah* (decisive proof/evidence) which it is not permissible to disregard except with compelling textual evidence to do so.

Next, one cannot disregard the broad outlines of the historical record or context of the people at the time the Qur'ān was revealed, particularly regarding their practices, including worship, and systems of life. Moreover, it is extremely useful to know the *Asbāb al-Nuzul* – the circumstances behind the revelation, or reasons for revelation in relation to a specific issue. For example, as cited in *Ansāb al-Ashraf* by al-Balādhuri:

حدثنا خلف بن هشام حدثنا هشيم عن العوام بن حوشب عن إبراهيم التيمي قال خلا عمر بن الخطاب يوماً ففكر كيف تختلف الأمة ونبيها واحد وقيلتها واحدة وكتابتها واحد، فدعا ابن عباس فسأله عن ذلك فقال ابن عباس أنزل القرآن علينا فقرأناه، وعلمنا فيما نزل؛ وسيكون بعدنا أقوام يقرؤونه ولا يدرون فيما نزل: فيكون لهم فيه رأي فإذا كان ذلك اختلفوا، فزبره عمر، ثم إنه أرسل إليه فقال أعذ علي قولك، فأعاده فعرف عمر صوابه وأعجبه

Khalaf ibn Hishām narrated to us Hushaym narrated to us from al-'Awwām ibn Ḥawshab from Ibrāhīm al-Taymī he said: 'One day Umar ibn al-Khaṭṭāb was on his own contemplating (the thought) – How can difference arise in the *Ummah* while its Prophet is one, its *qiblah* is one and its book is (also) one? So he called upon Ibn 'Abbās to ask him about that. Ibn 'Abbās said: "The Qur'ān was revealed to us, and we recited it, and we knew the circumstances in which it was revealed. But after us there will come people who will recite it without knowing the circumstances in which it was revealed. So each will have his own opinion about it, and when that happens, they will invariably differ." Upon hearing this Umar rebuked him. Later though, Umar sent for him and said "Repeat (back) to be what you previously said." Ibn 'Abbās repeated the previous statement and (thereafter) Umar recognised the correctness of his statement and agreed upon it.³

Given this, readers can refer to the previous volumes in this series to review the nature of *Shirk* as it existed among the Arabs prior to and including at the advent of Islam. By way of attestation to the aforementioned narrative by Ibn 'Abbās the following also was recorded in the *Ṣaḥīḥ* of al-Bukhārī:

³ al-Balādhuri *Ansāb al-Ashraf* [Vol. 4, p. 52 (print edition)]

حدثني يعقوب بن إبراهيم حدثنا هشيم أخبرنا أبو بشر عن سعيد بن جبير عن ابن عباس رضي الله عنهما (الذين جعلوا القرآن عضين) قال هم أهل الكتاب جزؤوه أجزاء، فأمّنوا ببعضه، وكفروا ببعضه

Ya'qub ibn Ibrāhīm narrated to us Hushaym narrated to us Abu Bishr reported to us from Sa'eed ibn Jubayr from Ibn 'Abbās, may Allah be pleased with them both, (*sic* regarding the verse): 'Those who abuse the Qur'an,'⁴ he said: 'Those who have made their Scripture into parts are the People of the Book, who divided it into portions and believed in a part of it and disbelieved the other.'⁵

Recorded in the *Mustadrak* of al-Ḥākim is the following:

أخبرنا أبو زكريا العنبري حدثنا محمد بن عبد السلام حدثنا إسحاق بن إبراهيم أنبا جرير عن الأعمش عن أبي ظبيان عن ابن عباس في قوله عز وجل (كما أنزلنا على المقتسمين، الذين جعلوا القرآن عضين)، قال المقتسمون اليهود والنصارى، وقوله: (جعلوا القرآن عضين)، قال آمنوا ببعض وكفروا ببعض

Abu Zakariyā al-Anbari reported to us Muḥammad ibn 'Abd al-Salām narrated to us Ishāq ibn Ibrāhīm narrated to us Jarir reports from al-'Amash from Abu Zubyān from Ibn 'Abbās in relation to where He the Mighty and Sublime says: 'Like the [warning] We have sent down for those who divide themselves into bands and those who abuse the Qur'an,' he said 'al-Muqtasimeen,' are the Jews and the Christians, and He says: *Those who abuse the Qur'an*, believing in some of it, disbelieving in some of it.'⁶

Thereafter al-Ḥākim said: 'This *ḥadith* is *Ṣaḥīḥ* upon the conditions of the two-Shaykhs, but they did not cite it.' I would argue that this comment is slightly amiss because al-Bukhārī did record this in his *Ṣaḥīḥ* in abbreviated form: 'Ubaydallah ibn Musa narrated to me from al-'Amash from Abu Zubyān from Ibn 'Abbās (regarding the verse): *Like the [warning] We have sent down for those who divide themselves into bands*, he said believing in

⁴ Qur'an 15: 91.

⁵ *Ṣaḥīḥ* al-Bukhārī [Vol. 4, no. 4428], also recorded at [Vol. 3, no. 3729] with a slight variation of *isnād*.

⁶ al-Ḥākim *Mustadrak* [Vol. 2, no. 3354]

some of it, disbelieving in some of it, the Jews and the Christians.’⁷ In *Mu’jam al-Awsaṭ* al-Ṭabarānī records the following:

حدثنا محمد بن أحمد بن كسا الواسطي قال حدثنا محمد بن معمر البحراني قال حدثنا حميد بن حماد قال: حدثنا حبيب بن حسان بن أبي الأشرس عن أبي ظبيان عن ابن عباس قال سأل رجل رسول الله صلى الله عليه وسلم قال رأيت قول الله عز وجل ﴿كما أنزلنا على المقتسمين﴾، من المقتسمين؟ قال اليهود والنصارى، قال ﴿الذين جعلوا القرآن عضين﴾، ما عضين؟ قال آمنوا ببعض وكفروا ببعض

Muḥammad ibn Aḥmad ibn Kussā al-Wāsiti narrated to us he said Muḥammad ibn Ma’mar al-Bah’zānī narrated to us he said Ḥumayd ibn Ḥammād narrated to us he said Ḥabeeb ibn Ḥassān ibn Abi al-Ashras narrated to us from Abu Dhubyān from Ibn ‘Abbās, he said: ‘A man asked the Messenger of Allah, peace and blessings be upon him, enquiring – have you seen the speech of Allah the Mighty and Sublime, *Like the [warning] We have sent down for those who divide themselves into bands*, who are the *Muqtasimeen*? He replied: *The Jews and the Christians*. He said: *Those who abuse the Qur’ān*, who are ‘*aḍeen*? He replied, *They believe in some (of it), and they disbelieve in some*.⁸

After mentioning this narration al-Ṭabarānī said:

(Here) this *ḥadīth* wasn’t narrated from Ḥabeeb ibn Ḥassān except by way of Ḥumayd ibn Ḥammād ibn Khawār; it is not known from Abu Dhubyān except by way of Ḥabeeb ibn Ḥassān and it is narrated by al-‘Amash from Abu Dhubyān from Ibn ‘Abbās in *mawqūf* form.

I would argue that the *Ṣaḥīḥ* narrative is the *mawqūf*. Also it is said, Ḥabeeb ibn Ḥassān ibn Abi al-Ashras al-Kufī as Ḥabeeb ibn Ḥassān ibn Abi al-Mukhāriq as if they agreed to leave him out. However, Ibn ‘Adī said in *al-Kāmil fī al-Ḍu’afā’*:

Ḥabeeb ibn Ḥassān has other *ḥadīth* than what I have mentioned. As for his *aḥādīth* and channels of narration, I have closely examined them and see nothing untoward in them. With regards to the quality of his

⁷ *Ṣaḥīḥ* al-Bukhārī [Vol. 4, no. 4429]

⁸ al-Ṭabarānī *Mu’jam al-Awsaṭ* [Vol. 6, no. 6204]

Deen being poor, as reported by way of Yaḥya ibn al-Qaṭṭān and ‘Amr ibn Ali from al-Aftas, they are more knowledge about the matters they mention, what they said, being possible. As for the chapter on narratives (though), I didn’t see anything (there) untoward of him.⁹

Understanding the verses

We return now to the matter of interpreting the wording from the blessed verses where He the Exalted says:

وَالَّذِينَ اتَّخَذُوا مِنْ دُونِهِ أَوْلِيَاءَ مَا نَعْبُدُهُمْ إِلَّا لِيُقَرِّبُونَا إِلَى اللَّهِ زُلْفَىٰ

‘[As for] those who choose other protectors beside Him, saying, ‘We only worship them because they bring us nearer to Allah.’¹⁰

Concerning the interpretation of “‘[As for] those who choose other protectors beside Him,’ it is that they have no excuse or argument except the retort in which they said: ‘*We only worship them because they bring us nearer to Allah*.’ Ibn Mas’ud used to recite *awliyā’*, *qālu mā ‘nabudu-hum* [أُولِيَاءَ، قالوا]، ‘*protectors, they said – we do not worship them*,’ which is an irregular reading that is not permissible to recite with. It is possible that he only recited it as an interpretation, and not as a recitation in prayer and Allah ultimately knows best.

There is a clear and explicit clarification contained within the verse that they had ‘worshipped them,’ providing the acknowledgment that the actions being undertaken were, categorically, ‘*Ibādah* - worship. Indeed, Allah the Exalted confirms the reality of the situation, that it is worship. The *mushrikeen* are called, by day and by night, by the Messenger of Allah and the believers of his time to abandon such worship and they are in receipt of a severe reproach. There is no doubt that they have been truthful in this matter, acknowledging their worship as it expresses their particular belief which in turn corresponds to the reality of the matter. Yet according to the sect Wahhābism, that matter of their ‘*Ibādah* exclusively means that it relates to a specific set of acts (be that bowing, prostrating, slaughtering etc.), irrespective of the belief which the one performing the act or actions has. In the Wahhābist

⁹ Ibn ‘Adī *al-Kāmil fī al-Ḍu’afā’* [Vol. 2, no. 512]

¹⁰ *Qur’ān*, 39: 3

mindset, those actions as a collective, irrespective of any underlying belief constitute *‘Ibādah*, even if the individual firmly believed that they are created beings, owned and sustained by Allah, possessing nothing for themselves; that they have no power over death, life, or resurrection; that they have no ability or will except by Allah’s decree and permission; and that they have no intercession with Allah except by His leave; and so on.

Previously in the chapter relating to *sujūd* (prostration) we have categorically argued that the bare act, in and of itself, is not *‘Ibādah*. That refutation set out previously will be strengthened in due course. Hence in our view, referring to the matter of the aforementioned verse categorically stating that they worshipped them, means that they took them as gods/deities, *believing* them to worthy and/or deserving of acts of submission, sanctification, veneration and the like, all of which resulted in calling it *‘Ibādah* – worship. They regarded these false deities as being intermediaries of the nearness to Allah, for reasons that the Qur’ān expounds in several other places, and a matter detailed in previous volume of this series dealing with the historic reality of paganism in Arabia. By way of a summary to reiterate here once again, there were several reasons underpinning this, including the following – firstly, they held that those purposed gods/deities, or some of them, were ‘the daughters of Allah,’ or ‘the sons of Allah,’ thereby possessing some kind of inherent ‘divine nature.’ In other words, they were of ‘divine’ substance, lineage or essence. All of that was deemed a sufficient justification in their minds. Secondly, they or some of them are *Andād* ‘rivals,’ who can shield against Allah, or that Allah needs to appease them, winning their allegiance. Or perhaps even they considered it like they did *Iblees*, viewing the matter as duality, a god of good versus a god of evil or darkness, the latter who is to be warded against to avert harm. Thirdly, that they held the view that Allah doesn’t know the minutiae of creation except by these supposed godly intermediaries, He is thus poor in need of them, and they provide him the intelligence needed. Lastly, comes the view that they can, in some sense ‘escape Allah by flight,’ a viewpoint not uncommon among the Arabs regarding the *Jinn* and other entities from the ‘tribe of *Iblees*,’ or even other considerations not summarised here. Allah, the Exalted and Majestic is far and away above all such falsehoods being attributed to Him. Again, as has been outlined in previous volumes of this series with definitive proofs, at the

very least *some of this* was held as sacred beliefs by the Quraysh. Other groups too held similar viewpoints and beliefs, be that whole or in part.

The falsity of the beliefs underpinning the Wahhabi doctrine have been exhaustively set out. Their claims regarding this verse fall by the wayside. By the mercy of Allah, our position becomes clear and definitive, from that which is decisively established, the *muḥkamāt*. As such, other matters are indeed referred back to it and built upon it, including seeking clarity on that which is from the *mutashābihāt*, lest we fall into the peril of deviation and misguidance. Therefore, we categorically reassert the falsity, once again of the Wahhābi understanding as it is applied to this verse. Note well the verse in its context, coupled with the correct interpretation as transmitted by the Imām’s from the early predecessors, the *Salaf*. The verse is not from among the *mutashābihāt*:

تَنْزِيلُ الْكِتَابِ مِنَ اللَّهِ الْعَزِيزِ الْحَكِيمِ، إِنَّا أَنْزَلْنَاهُ بِالْحَقِّ فَاذْكُرُوا اللَّهَ مُخْلِصِينَ لَهُ الدِّينَ، أَلَا لِلَّهِ الدِّينُ الْخَالِصُ؛ وَالَّذِينَ اتَّخَذُوا مِنْ دُونِهِ أَوْلِيَاءَ مَا نَعْبُدُهُمْ إِلَّا لِيُقَرِّبُونَا إِلَى اللَّهِ زُلْفَى؛ إِنَّ اللَّهَ يَحْكُمُ بَيْنَهُمْ فِي مَا هُمْ فِيهِ يَخْتَلِفُونَ إِنَّ اللَّهَ لَا يَهْدِي مَنْ هُوَ كَاذِبٌ كَفَّارٌ، لَوْ أَرَادَ اللَّهُ أَنْ يَتَّخِذَ وَلَدًا لَاصْطَفَىٰ مِمَّا يَخْلُقُ مَا يَشَاءُ سُبْحَانَهُ هُوَ اللَّهُ الْوَاحِدُ الْقَهَّارُ

This Scripture is sent down from Allah the Mighty, the Wise. It is We who sent down the Scripture to you [Prophet] with the Truth, so worship Allah with your total devotion. True devotion is due to Allah alone. [As for] those who choose other protectors beside Him, saying, ‘We only worship them because they bring us nearer to Allah,’ Allah Himself will judge between them regarding their differences. Allah does not guide any ungrateful liar. Allah could have chosen any of His creation He willed for offspring, but He is far above this! He is the One, the Almighty.¹¹

Then he added some of the attributes and actions of *al-Wāḥid al-Qaḥḥār*, [الْوَاحِدُ الْقَهَّارُ] ‘the One, the All-Prevailing,’ and that He is independent of them, but He is not pleased with their *kufṛ* so He said:

¹¹ Qur’ān, 39: 1/4. Shakir has a slightly different rendition of verses 3 and 4 in this opening Surah. His translation reads as follows: ‘(3) Sincere obedience is due to Allah (alone) and (as for) those who take guardians besides Him, (saying), We do not serve them save that they may make us nearer to Allah, surely Allah will judge between them in that in which they differ; surely Allah does not guide him aright who is a liar, ungrateful. (4) If Allah desired to take a son to Himself, He will surely choose those He pleases from what He has created. Glory be to Him: He is Allah, the One, the Subduer (of all).’

خَلَقَ السَّمَاوَاتِ وَالْأَرْضَ بِالْحَقِّ يُكَوِّرُ اللَّيْلَ عَلَى النَّهَارِ وَيُكَوِّرُ النَّهَارَ عَلَى اللَّيْلِ وَسَخَّرَ الشَّمْسَ وَالْقَمَرَ كُلٌّ يَجْرِي لِأَجَلٍ مُّسَمًّى أَلَا هُوَ الْعَزِيزُ الْغَفَّارُ، خَلَقَكُمْ مِنْ نَفْسٍ وَاحِدَةٍ ثُمَّ جَعَلَ مِنْهَا زَوْجَهَا وَانزَلَ لَكُمْ مِنَ الْأَنْعَامِ ثَمَانِيَةَ أَزْوَاجٍ يَخْلُقُكُمْ فِي بُطُونِ أُمَّهَاتِكُمْ خَلْقًا مِنْ بَعْدِ خَلْقٍ فِي ظُلُمَاتٍ ثَلَاثَ ذَلِكُمْ اللَّهُ رَبُّكُمْ لَهُ الْمُلْكُ لَا إِلَهَ إِلَّا هُوَ فَاتَى نُصْرَفُونَ، إِنْ تَكْفُرُوا فَإِنَّ اللَّهَ غَنِيٌّ عَنْكُمْ وَلَا يَرْضَى لِعِبَادِهِ الْكُفْرَ وَإِنْ تَشْكُرُوا يَرْضَهُ لَكُمْ وَلَا تَزِرُ وَازِرَةٌ وِزْرَ أُخْرَى ثُمَّ إِلَىٰ رَبِّكُمْ مَرْجِعُكُمْ فَيُنَبِّئُكُمْ بِمَا كُنْتُمْ تَعْمَلُونَ إِنَّهُ عَلِيمٌ بِذَاتِ الصُّدُورِ

He created the heavens and earth for a true purpose; He wraps the night around the day and the day around the night; He has subjected the sun and moon to run their courses for an appointed time; He is truly the Mighty, the Forgiving. He created you all from a single being, from which He made its mate; He gave you four kinds of livestock in pairs; He creates you in your mothers' wombs, in one stage after another, in threefold depths of darkness. Such is Allah, your Lord; He holds control, there is no god but Him. How can you turn away? If you are ungrateful, remember Allah has no need of you, yet He is not pleased by ingratitude in His servants; if you are grateful, He is pleased [to see] it in you. No soul will bear another's burden. You will return to your Lord in the end and He will inform you of what you have done: He knows well what is in the depths of [your] hearts.¹²

Regarding the *Tafsir* of the opening verses of this *Surah*, Imām al-Ṭabari sets out the following in his acclaimed work:

He, the Exalted in His Remembrance says ‘*sent down the Scripture*,’ which We have revealed it to you O Muḥammad, ‘*from Allah the Mighty, the Wise*,’ mighty in exacting retribution against His enemies; ‘*the Wise*’ in controlling and disposing of the affairs of His creation. From none other than Him, so don’t have any doubt regarding that. The phrasing of *Tanzeel* (revealed, sent down) is raised grammatically by the phrase, ‘*from Allah*.’ And the interpretation of the statement is, from Allah, *al-Aziz al-Ḥakeem* revealer of the Book.

He says: ‘*It is We who sent down the Scripture to you [Prophet] with the Truth*,’ He the Exalted in His remembrance (sent this) to his Prophet Muḥammad, peace and blessings be upon him; indeed we revealed this unto you O Muḥammad, the Book, namely the Qur’ān, ‘*with the Truth*,’ with justice. He says, We revealed unto you this

¹² Qur’ān, 39: 5/7.

Qur’ān which enjoins the truth and justice. And (arising) from that truth and justice, is that you worship Allah, making the *Deen* sincerely for Him. (This is) because the *Deen* belongs to Him, and not to the *Awthān* (the idols), which can neither (bring) harm nor benefit. Similar to that which we have said was also statement by the exegetes regarding the meaning of ‘the Book.’ Among those who mentioned that: Bishr narrated to us he said Yazeed narration to he us said Sa’eed narrated to us from Qatādah (*sic.* regarding the verse) ‘*It is We who sent down the Scripture to you [Prophet] with the Truth* [39: 1], namely, the Qur’ān.’

(al-Ṭabari) He says: ‘*So worship Allah with your total devotion*,’ the Almighty in His Remembrance says, humble yourself before Allah O Muḥammad, through obedience; dedicate (the matter of) divinity purely to Him. Single Him out in worship and don’t make in your worship of Him any partner, as the ‘*Abdatul-Awthān* (worshippers of idols) have. Similar to what we have said regarding the this, the people of *Ta’weel* (interpretation) have said:

Muḥammad narrated to us he said Aḥmad narrated to us he said Asbāṭ narrated to us from al-Suddi, regarding (where) He says: *Mukhliṣan lahu-Deen* (sincerity to Him in the *Deen*), it (means) *Tawḥeed*. And *Deen* is *manṣub* (accusative case) as it is governed by the word *Mukhliṣan*.

(al-Ṭabari) And He said: ‘*True devotion is due to Allah alone*,’ [39: 3]. He the Exalted in His Remembrance says to Allah alone belongs *al-Tbādah* (worship) and *al-Ṭā’ah* (obedience), without any partner; purely and sincerely without any partner concerning this. Bar Him, all are His possession, it is required to obey the owner of all. The exegetes have said something akin to what we have expressed concerning that. Those who mentioned that (include): Bishr narrated to us he said Yazeed narration to he us said Sa’eed narrated to us from Qatādah (*sic.* regarding the verse) ‘*True devotion is due to Allah alone*,’ [39: 3], (he said): ‘Testifying that there is no god except Allah.’ And He says: ‘*[As for] those who choose other protectors beside Him, saying, ‘We only worship them because they bring us nearer to Allah*,’ [39: 3]. He the Exalted in His remembrance says, and those who have taken protectors besides Allah, worshipping them and befriending them besides Allah, they tell them, “We do not worship you, O gods, except so that you

may bring us nearer to Allah in closeness and rank, and intercede for us with Him [ما نعبدكم أيها الآلهة إلا لتقربونا إلى الله زُلْفَى] regarding our needs.” It is mentioned in the reading of Ubay, ‘*We do not worship you,*’ [ما نَعْبُدُكُمْ] and in the reading of Abdullah, ‘*They said, We don’t worship them,*’ [قالوا ما نعبدهم]. The variation is acceptable because when a statement is reported, whether the speech verb is explicit or implicit, sometimes the absent (third person) is treated as if addressed (second person), and sometimes it remains as the absent form. I have explained this in its place earlier.

Muḥammad ibn al-Ḥussain narrated to us he said Aḥmad ibn al-Mufaḍḍal narrated to us he said Asbāṭ narrated to us from al-Suddi, he said, ‘In the reading of Abdullah, it is - *They said, We don’t worship them,* [قالوا ما نعبدهم].’

(al-Ṭabari) The exegetes have mentioned that which is similar to what we have, among those who said that (include):

Muḥammad ibn ‘Amr narrated to us he said Abu ‘Aāṣim narrated to us he said Esa narrated to us, and al-Ḥārith narrated to us he said al-Ḥasan narrated to us he said Waraqā’ narrated to us, all of them from Ibn Abi Najih from Mujāhid in relation to where He says: ‘*We only worship them because they bring us nearer to Allah,*’ he said ‘The Quraysh say it to the *Awthān* (idols) and those prior to them say it to the angels, to Jesus the son of Mary and to Ezra.

Bishr narrated to us he said Yazeed narration to he us said Sa’eed narrated to us from Qatādah in relation to where He says: ‘*We only worship them because they bring us nearer to Allah,*’ he said: ‘They said – We only worship those that may bring us closer to Allah, so that they may intercede for us with Allah.’

Muḥammad narrated to us he said Aḥmad narrated to us he said Asbāṭ narrated to us from al-Suddi, in relation to where He says, ‘*We only worship them because they bring us nearer to Allah,*’ he said ‘It is a rank (or status).’

Yunus narrated to us he said Ibn Wahb reported to us he said Ibn Zayd said, in relation to where He says, ‘*We only worship them because they bring us nearer to Allah,*’ he said: ‘They said – “They are our intercessors with Allah,” they will bring us closer to Allah on the Day of Judgement, (namely) the *Awthān* (idols). And (the word) *zulfa* means closeness.’

[4] (al-Ṭabari) Regarding the interpretation of where He the Exalted says: ‘*Allah does not guide any ungrateful liar. Allah could have chosen any of His creation He willed for offspring, but He is far above this! He is the One, the Almighty,*’ [39: 3/4]. He the Exalted in His Remembrance says, ‘*Allah does not guide*’ to the truth and His *Deen*, namely, Islam, and the recognition of His Oneness, ‘*any ungrateful liar*’ who slanders against Allah and fabricates falsehood concerning Him. And he (who) ascribes to Him what is not of His attributes, claiming that He has a son - fabricating lies against Him, (being) ungrateful for His blessings, and denying His Lordship. And He says: ‘*Allah could have chosen any of His creation He willed for offspring,*’ He the Exalted in His Remembrance says – if Allah had wanted to take a child / offspring, He could have chosen from among whatever He willed from among His creation; meaning, He would have selected from among the creation whatever He willed. And He says: ‘*but He is far above this! He is Allah the One, the Almighty,*’ (here) meaning, the declaration that Allah is far above having a son (or offspring) and far and away from what the *mushrikeen* ascribe to Him. ‘*He is Allah,*’ He is the One whom all things worship. Even if He had a son, He wouldn’t be beholden to him. All things belong to Him in His dominion, so how could He have a son? He is the One, who has no partner in His dominion or authority; the Subduer of His creation by His power, before whom everything is humbled and to whose might all are subdued.¹³

Note well the interpretation of verse four that al-Ṭabari provides above, marked in the previous long-quotation with the numbering [4] and duly highlighted therein.¹⁴ One should also note the statements from the early exegetes, all of which are from the *Ṣaḥāba* and the *Tābi’een*, namely: ‘We do not worship you, O gods, except so that you may bring us nearer to Allah in closeness and rank, and intercede for us with Him regarding our needs.’ This

¹³ *Tafsir* al-Ṭabari [Vol. 10, pp. 610/612 (print edition)]. For the translation here, we have slightly abbreviated this very large block quote from the Arabic edition to the most relevant parts which are pertinent to the discussion of the chapter at hand. The highlighted portions from al-Ṭabari remain largely the same.

¹⁴ The Arabic edition re-quotes that section prior to the analysis. The unnecessary repetition is therefore omitted entirely for the present translation.

is an explicit declaration of their express belief in the *Uluhiyyah*, divinity of these supposed gods/deities. Likewise, as previously highlighted from the long excerpt by al-Ṭabari, ‘The Quraysh say it to the *Awthān* (idols) and those prior to them say it to the angels, to Jesus the son of Mary and to Ezra,’ the attribution of *Uluhiyyah* was made to all of them as clearly shown by the texts of the Qur’ān and Prophetic *aḥādith* as well as the works of *Seerah* and history. One can refer to the previous volume in this series which exhaustively deals with the nature of paganism among the Arabs.

Thus, I would argue that the entire text as shown from al-Ṭabari demonstrates that the subject of the verse is the supposed gods/deities of the Quraysh, namely, the angels, whom the Quraysh believed to be ‘the daughters of Allah.’ Exalted is Allah far above such nonsense and absurdity. Within the same context, note the explicit wording of the verse which says:

لَوْ أَرَادَ اللَّهُ أَنْ يَتَّخِذَ وَلَدًا لَاصْطَفَىٰ مِمَّا يَخْلُقُ مَا يَشَاءُ سُبْحَانَهُ هُوَ اللَّهُ الْوَاحِدُ الْقَهَّارُ

*Allah could have chosen any of His creation He willed for offspring, but He is far above this! He is the One, the Almighty.*¹⁵

One may reasonably ask, so what makes the second verse more worthy of consideration than the third? When it is cited in its full context and understood in the language of the eloquent Arabs at the time of the revelation of the Qur’ān it is *muḥkam*, definitive. It can only appear as being ambiguous to those who seek to divide the Qur’ān into parts, or those who prefer slavish *taqlēd* bordering on sycophancy, in truth not a great deal of difference exists between them and the predecessors of old:

إِنَّ الْبَقَرَ تَشَابَهَ عَلَيْنَا، وَإِنَّا إِنْ شَاءَ اللَّهُ لَمُهْتَدُونَ

*[They said] ‘Call on your Lord for us, to show us [exactly] what it is - all cows are more or less alike to us. With Allah’s will, we shall be guided.’*¹⁶

But their condition can be far worse for they stubbornly persist in their obstinance, retorting that ‘nothing is unclear for us, we are the rightly guided.’ Surely it would be bizarre, an absurdity, that any individual would seek to ask

¹⁵ Qur’ān, 39: 4

¹⁶ Qur’ān, 2: 70

or beseech anything from a lifeless stone, believing it to be just that – an inanimate object that neither sees, nor hears or understands. But the ‘*Abdatul Aṣnām*,’ the worshippers of idols worship false gods/deities that are symbolised by these *Aṣnām*, in some instances believing that they are resident or manifest within them, the *ṣanam* (idol) at times even serving as a conduit. Adherents of these false gods or deities attribute many things to them by their own supposed inherent or even independent power, be that creation, control and governance, or even the ability to intercede with Allah or provide shelter against Him contrary to His permission. They’ve even gone as far as to believe that they are some form of species of the *Jinn*, rebels against the cosmic order, or ‘gods of evil,’ opposing the good and acting against the will of Allah. Some have regarded them as having kinship with Allah, believing them to be either divine offspring or consorts and cohorts who may be brought near to the diving realm. All of this and other such outrageous viewpoints have been thoroughly analysed at an earlier juncture of this work.

Hence this is why Abu Sufyān said on the day of Uḥud – ‘Exalt Hubal,’ with the Muslims replying, ‘Allah is far Exalted and Majestic.’ The exclamation which Abu Sufyān made was not merely to a lifeless stone statue of Hubal which was located far away in Mecca at the *Ka’ba*. What he was referring to was the *deity called Hubal* – which is most likely an Arabised form of the Greek god Apollo, symbolised by the idol held in Mecca at the time.¹⁷ It may not be unlikely that the belief which the Quraysh held about this false deity was or may have been similar to that of the Greeks, that he was ultimately a planet, Mars, the ‘god of war,’ described as being ‘chief of the gods.’

Again, as exhaustively outlined earlier in this series, most of the *Shirk* as it related to the simple-minded *mushrikeen*, be that the Greeks, Hindus or even the Quraysh, arose from the belief that the matter of divinity is akin to humanity, a genus consisting of multiple kinds and individuals and also producing offspring, but in this instance, of divine nature or essence. They may differ in rank, lineage or pedigree, hence the notion of ‘greater and lesser gods,’ and it isn’t uncommon, much like human history, for them to perceive some supposed deities as being in command of others. It should therefore

¹⁷ The comment of Abu Sufyān is well recorded in the corpus of *aḥādith* as well as *Seerah* literature, for example, in the history of al-Ṭabari (English, Volume 7). For further discussion regarding ‘Hubal’ readers should refer back to Volume 2 in this series.

come as no surprise that they might have as invocation - ‘At Your service, You have no partner except a partner who is Yours, You own him and what he owns.’¹⁸

The notion of pre-existing or timelessness wasn’t a necessary consideration for the *mushrik* conceptualisation of godhood or divinity. In their worldview, gods can arise into being or even be born, some could even perish in battle at the clutches of higher gods. Notions relating to perfection or even ultimate freedom of will or action aren’t necessarily required for them. Taking a global view it is noted that in some traditions of the *mushrikeen* their ‘gods’ are blighted by scandals and other shameful deeds; some held no central deity to exist, while others clearly did, like the Greeks and the *mushrik* Arabs of the Quraysh, who believed in ‘Allah’ as being the supreme chieftain of the gods; a father or father of angelic female beings. Allah the Mighty and Sublime branded these individuals categorically as being liars not to mention disbelievers. One may legitimately enquire, what were they actually lying about? There was an element of truth regarding their statement that ‘We worship them,’ as noted previously. In the long excerpt from al-Ṭabari outlined earlier, he stated the following:

He the Exalted in His Remembrance says, ‘*Allah does not guide*’ to the truth and His *Deen*, namely, Islam, and the recognition of His Oneness, ‘*any ungrateful liar*’ who slanders against Allah and fabricates falsehood concerning Him. And he (who) ascribes to Him what is not of His attributes, claiming that He has a son - fabricating lies against Him, (being) ungrateful for His blessings, and denying His Lordship.

Objectively al-Ṭabari considered them liars outright, because Allah the Majestic has no consort, son, daughter nor any form of offspring, while the *mushrikeen* may have argued they were truthful, albeit subjectively, in expressing their own beliefs on these matters. Yet there is another critical point here to consider in relation to their lying, which is their claim that their only motivation and considered goal of ‘their worship’ was in seeking closeness or proximity to Allah Himself. The phrasing of the verse at [39: 3] shows this by way of the preposition *illā* (only or except) which is a form of

¹⁸ Readers can refer back to Volume 3 in this series where the matter of the pagan Arab *Talbiyyah* is analysed [Vol. 3, pp. 259/267]

exclusivity - [مَا نَعْبُدُهُمْ إِلَّا] ‘*We only worship them.*’ Arguably it is more likely that they were deeply insincere in that too, seeking to portray themselves as somehow being devoted to Allah, their only objective being to draw near to Him and thus ultimately or inadvertently worship Him too. The retort to the call of Islam and *Tawḥeed* in their view would have been there was no need to trouble them with these matters since they weren’t far away outwardly from this. However, they very well knew deep in their hearts that they had other sinister motives and beliefs. They held the belief that the supposed gods/deities they worshipped *could* decide on many matters absolutely without reference to Allah whatsoever. The worship of Allah for them being far too distant, remote or meaningless.

Yet contrary to the reality of the beliefs held by the *mushrikeen*, the sect of Wahhābism has exceeded all bounds, for example claiming that the statements made regarding the ‘partner’ in the pre-Islamic Arab *Talbiyyah* was entirely true. They exacerbated this falsehood against Allah by asserting that the *mushrikeen* firmly believed that the ‘partner’ was nothing more than a ‘slave or owned creature, created and subjugated, who neither harms nor benefits, and possesses no power over intercession, death, life, or resurrection,’ or perhaps even a dead corpse residing in a grave, a stone idol, or a piece of dry wood, who neither hears, sees, nor even understands.

10. Can *Shirk* be purely based on action without belief?

There is no doubt that the confusion in arranging the concepts of *Uluhiyyah* (divinity) and *Ibādah* (worship), namely, which of them is prior and foundational, and which is consequent and derivative as well as the failure to relate them correctly to one another, in addition to the entanglement in circular reasoning and contradiction, as previously noted, constitutes the principal reason for the persistence of the intense dispute and conflict between the sect of Wahhābism and their critics and opponents up to the present day. For example, we find Shaykh ‘Abdullah ibn Muḥammad al-Qarni, one of the adherents of the Wahhābi sect writing in his valuable treatise *Ḍawābiṭ al-Takfīr ‘inda Ahl al-Sunnah wa-l-Jamā‘ah* slipping into a most egregious misstep, when he states concerning what he calls *Shirk al-Nusuk wal-Taqrarub*,¹ - *Shirk* of ritual devotion and seeking proximity, he writes:

Everything that is established as an act of worship, whether obligatory or recommended, when directed to other than Allah, constitutes *Shirk* in *Ubudiyyah* (servitude). Whoever is found to have engaged in such is deemed a *mushrik*, whether he believes that the object of his worship deserves devotion independently of Allah, or believes that it does not inherently deserve worship, but is merely a means or intercessor to Allah. For *Shirk al-Ibādah* does not entail *Shirk al-Rububiyyah*, since the former pertains to volition and the actions that follow therefrom,

whereas *Shirk al-Rububiyyah* pertains to belief and the affirmation of perfection in Allah’s Essence, Attributes, and Acts.¹

Here once again, we observe the erroneous claim that there exist actions which, in and of themselves, merit the designation of *Ibādah*. We have demonstrated with certitude that this is incorrect. There exists no definitive list of actions, each of which may be independently and inherently classified as *Ibādah*, for acts of worship are but deeds, utterances, and rituals that are contingent upon being directed toward one believed to possess *Uluhiyyah* (divinity). Thus, the statement of Shaykh al-Qarni regarding the direction of acts constituting *Shirk* and whosoever is found to have done so is a *mushrik* is devoid of meaning and yields no substantive content. These acts are not deemed worship in the first place *unless* they are directed toward one in whom *Uluhiyyah* is affirmed. That is to say, there must necessarily be a *prior* belief in *Uluhiyyah*; the concept of divinity must therefore be pre-existent, defined beforehand, and only thereafter can the definition of worship be properly derived.

We also observe here the grave consequences of the invalid and ominous bifurcation into *Shirk al-Rububiyyah* and *Shirk al-Uluhiyyah* in accordance with the methodology of Ibn Taymiyyah, while as is their wont the proponents have conspicuously neglected *Shirk* pertaining to *al-dhāt*, the Divine Essence, Names, and Attributes in a most suspicious manner. Nor does it avail Shaykh al-Qarni that he attempts to delimit this list by the phrase: ‘Everything that has been established as legislated worship, whether obligatory or recommended,’ under the impression that thereby he has attained a definitive and conclusive inventory of what intrinsically merits the name *Ibādah* irrespective of belief, conception, or intention. All of this is illusion and fantasy. No such exclusive or conclusive list exists whatsoever, as has been rigorously demonstrated in the totality of what we have previously expounded upon in this present volume and throughout the series as a whole.

As for the statement of Shaykh al-Qarni: ‘Whether he believes that the object of worship deserves worship apart from Allah,’ this must either entail a circular contradiction of the sort that posits: ‘The deity is that which is

¹ Abdullah ibn Muḥammad al-Qarni, *Ḍawābiṭ al-Takfīr ‘inda Ahl al-Sunnah wa-l-Jamā‘ah*, (*Dār al-Risāla* edition). The section in questions runs from [pp. 129/136], and the Professor quotes directly from these pages in what follows in this chapter.

worshipped, and worship is only to be directed to a deity,' and we have previously demonstrated the invalidity and internal contradiction of such a formulation or it constitutes a negation of his earlier assertion that belief in the *Uluhiyyah* of the recipient of certain acts is not a prerequisite for such acts to be deemed '*Ibādah*'. Yet he contradicts himself once again when he states: 'Or he believes that the object of worship does not deserve worship in and of itself, but rather is a mediator and intercessor with Allah.' For how can it be conceivable in any rational mind or even imaginable in one's speculative fancy that one might offer rituals of veneration, submission, sanctification, and love to something while simultaneously holding that it *does not deserve* such devotion?

As for his rhetorical safeguard through the phrase: 'in and of itself, but rather as a mediator and intercessor with Allah,' this neither nourishes nor suffices. For the one who believes in the capacity of another to mediate or intercede before Allah must, of necessity, attribute to such a being certain intrinsic qualities or qualifications that render it worthy of such a function. The ritual expressions of love, submission, and veneration directed toward that being are based upon a belief in its aptness and fitness to serve as intercessor or mediator before Allah. And we extend the benefit of the doubt to Shaykh al-Qarni, and presume that what fell from his wording is something akin to: 'an intercession or mediation which Allah is obligated to accept and cannot reject, or one that is presented without divine permission,' or the like. For mere intercession with Allah by His permission is indeed possible as an honour bestowed by Allah upon some of His creation, as has been established by definitive textual proofs. Attributing such intercession to someone on the basis detailed by the revealed texts does not elevate that individual from the station of servitude – *Ubudiyyah*, to the status of *nid* (peer or rival) with Allah even in that limited and specific matter and thus does not render him a second *Ilāh* (deity) alongside Allah.

As for Shaykh al-Qarni's subsequent statement: 'For indeed, *Shirk* in worship does not entail *Shirk* in lordship...' this is invalid, due to what we have already established: that the concept of '*Ibādah*' is necessarily preceded by the concept of *Uluhiyyah*. Hence, *Shirk* necessarily entails the belief in the *Uluhiyyah* of other than Allah, or expressed differently, the attribution of *Rububiyyah* besides Allah, even if only in a particular aspect of the meanings of *Uluhiyyah*. Thereafter, acts of sanctification, veneration, submission, love,

expressing poverty and humility, and seeking the fulfilment of needs ensue - acts which then rightly bear the designation of '*Ibādah*'. Thus, what the Shaykh refers to as *Shirk al-'Ibādah* is, in fact, contingent upon belief, and conditional upon it, just as the category he termed *Shirk al-Rububiyyah* is likewise belief-based. There is, in truth, no difference between the two.

As is normally expected, Shaykh al-Qarni repeated the trite Wahhābi lie that the Arab *mushrikeen* did not have any form of *Shirk* within what he called *al-Rububiyyah*, citing as purported evidence the usual verses in this respect as well as others with the phrasing of '*la-yaqūlunna*,' [لَيَقُولُنَّ] and '*fa-sa-yaqūlūna*,' [فَسَيَقُولُونَ]² to try argue that *they believed* that Allah was the only One who was the disposer and manager of affairs, and that the *mushrikeen* only associated partners with Allah when it came to having mediators in relation to seeking requests or in matters of worship, as explicitly stated in the aforementioned work. In the previous volume of this series we have uprooted this concept in its entirety, demonstrating that it is built upon clearly faulty reasoning, readers can refer back to that to review it.³ Secondly, the Qur'ānic verses do not contain any indication that they (i.e., the *mushrikeen*) believed that the object of their worship possessed *exclusive* authority in that regard, nor does it utilise the wording he used of [المتفرد]. This interpretation is extraneous to the text and imposes upon the Lord, Glorified is He, what He did not declare. This is an egregious assertion, and we regard it, Allah willing as an unintentional slip on the part of Shaykh al-Qarni; otherwise, it would constitute *kufṛ ṣarīḥ bawāḥ* - explicit and manifest disbelief, seek refuge in Allah from that. You can discern in this brief passage the sheer magnitude of contradiction and the terrifying disarray that arises from the latent circular reasoning embedded within the definitions of '*Ibādah*' and *Uluhiyyah*. To this must be added the chaos, confusion, and grievous inadequacy stemming from the flawed tripartite-division of *Tawḥeed* into: *Tawḥeed al-Rububiyyah*, *Tawḥeed al-Uluhiyyah* and *Tawḥeed al-Asmā' wa'l-Ṣifāt*. Verily, it is a most unjust and ominous division, from which it is imperative to disavow oneself, and which must be cast aside wholesale, rejected entirely, and abstained from henceforth without exception.

² The verses quoted include that of: [29: 29, 61, 63], [31: 25], [39: 38], [10: 31] and [43: 87].

³ This is in relation to Vol. 2 [Part 5] of the series.

Shaykh al-Qarni continued with statements and phrases that merely reiterate what preceded, albeit in alternative formulations, more grievous in error and more egregious in falsehood. Among these is his claim: ‘It becomes clear that *Shirk* of *taqarrub* (devotional proximity) and worship of other than Allah is not doctrinal shirk which necessitates that the object of worship...’ etc. Here again appears the latent circularity and the confusion surrounding the very concept of *Ibādah*. Here, once more, is a purported list of outward and inward acts which are classified as ‘worship,’ irrespective of any belief and this, as we have previously shown, is false. And again we are confronted with a conceptual absurdity that cannot be coherently formed in the mind of any sound intellect: ‘a being that is worshipped, yet is not according to the one who worships it, deserving of worship.’ Indeed, the legends of the Phoenix and the Roc, the fables of ‘Ūj ibn ‘Unuq, and the myths of Mount Qāf are closer to reason than this nonsense. To be sure, the phrase ‘a being worshipped, though not believed by the worshipper to be worthy of worship’ is grammatically correct, it is a nominal sentence comprising a subject and predicate. Yet it is utterly devoid of meaning, indeed self-contradictory, akin to saying ‘a square circle.’ It is a nominal construction, certainly, but it is devoid of semantic coherence and is, in essence, sheer contradiction. All such ‘linguistic acrobatics’ and rational impossibilities are but attempts to salvage error by force, evasion, or sophistry and convert it, against all measure, into truth. Then Shaykh al-Qarni compounded the matter further by conflating this issue with that of *Imān*, and by asserting that it is not merely belief, saying:

But the *Murji’ah* among the *mutakallimūn*, having imagined that *Tawḥeed* is merely the belief in the oneness of Allah in His Essence, Attributes, and Acts and that this is the very definition of *Uluhiyyah* were thereby compelled to affirm that there can be no *Shirk* in *taqarrub* to other than Allah through acts of worship unless this includes the belief that the object of worship is deserving of worship apart from Allah, and that said object is alone in creation and governance.

Just as they claimed here that *Tawḥeed* is the belief in the unity of the Lord so too did they maintain that adherence to the *Sharī’ah* is merely

the belief in its truth by virtue of belief in the Prophet, peace and blessings be upon him.⁴

Here, once again, the earlier problem concerning the definition of *Ibādah* and the latent circularity reemerge yet Shaykh al-Qarni seems oblivious to it. How, indeed, can one offer worship to one whom he does not deem worthy of worship? I do not know; how can outward and inward words and actions be designated as *Ibādah*, without being *preceded* by the belief in *Uluhiyyah* of the one to whom such acts are directed? Likewise do not know. Note once more the latent circularity in al-Qarni’s statement: ‘They maintained that there is no *Shirk* in drawing near to other than Allah through acts of worship.’ By Allah, besides whom there is no deity, they never affirmed such a thing, indeed, there is unanimous agreement that worship of other than Allah is *Shirk*. So what exactly did they maintain? They maintained that acts of reverence and devotional approach such as *sujūd* (prostration), *rukū’* (bowing), and *ṭā’a* (obedience) are not to be termed *Ibādah* at all, and that their performance toward other than Allah does not constitute shirk unless it is preceded by a belief in the *istiḥqāq* – worthiness, of the object acted upon or acted for. And such an object ought not, in the first instance, be designated a *ma’būd* (object of worship); rather, he is to be described, provisionally, as one *prostrated to*, *bowed to*, *obeyed*, and so forth, by virtue of being, in the view of the actor, intrinsically characterised by certain attributes of *Uluhiyyah*.

Likewise, there is a false assertion embedded in the phrase: ‘and that the object of worship must be solely responsible for creation and governance.’ First, the term *munfarid*, ‘solely responsible,’ is entirely meaningless in this context, and I know of no *mushrik* who ever affirmed such a notion in any absolute sense. For had they done so, they would be monotheists. Rather, it suffices for them that the *ma’bud* possesses power of creation and governance independently even if only in a limited or specific sense. Second, the term *munfarid* lacks definitional utility, and I know of no *mutakallim* who has made it a condition in defining the terms *Ilāh* (deity) or *ma’bud* (object of worship). Rather, the theologians adduce by means of the argument from mutual hindrance or otherwise that the true *Ilāh* must necessarily be One alone, and

⁴ See footnote (1).

that any other posited gods or deities are but mental fictions constructed by the *mushrikeen*, with no ontological reality. Indeed, there is a minor error in the way those referred to by him as the ‘*Murji’at al-Mutakallimīn*,’ have restricted *Tawḥeed* to the bare affirmation of the oneness of the Lord. Perhaps they adopted this approach for the purposes of theoretical investigation into the particulars and doctrinal questions of *Tawḥeed*. But the truth is that human beings were not created for the mere intellectual affirmation of divine unity in an abstract, theoretical, or philosophical manner.

Rather, the ‘*Ibādah* of Allah consists in bearing witness and making declaration of His exclusive *Hākimiyyah* as we have established with decisive evidences in this series. From this necessarily follows by absolute necessity, submission and humble surrender to Him alone, without partner. For the ‘*Ibādah* of Allah is fundamentally negated and vitiated by *Shirk* as has been rigorously demonstrated in the aforementioned discussions. Thus, their minor error in this instance is less grievous than their more consequential mistake in construing *Imān shar’ī*, salvific faith in the Hereafter, as mere firm assent and pure belief, whereas it is in reality far more than that. Nevertheless, this misstep does not in any way justify the egregious error committed by Shaykh al-Qarni in his claim that ‘*Ibādah* can occur devoid of belief, specifically the belief in the intrinsic worthiness of the one to whom worship is directed; in other words, belief in their *Uluhiyyah*. That salvific *Imān* in the *shar’ī* sense is not limited to mere belief that is, firm assent to theoretical propositions, but entails also volitional acts, most important among them: submission, surrender and acknowledgment of the heart; as well as verbal attestation, save in cases of valid excuse, this, coupled with the fact that Islam, which grants salvation in the Hereafter, is not reducible to abstract theological *Tawḥeed* alone, but must be accompanied by acts of ‘*Ibādah*, none of this entails, by necessity that action is conceivable in the absence of belief, or that worship can occur without being preceded by doctrinal conviction. The one matter is categorically distinct from the other; indeed, it is its very antithesis and opposite. Glory be to Him who has inverted the ordering of categories in the mind of Shaykh al-Qarni, such that in fleeing from the relatively minor errors of the *Murji’a* in their definition of *Imān*, he has plunged into an even more calamitous and grievous error, namely, the error of the extremist *Khawārij*, the renegades, and this is a ruinous and destructive misguidance.

The truth, established by self-evident experiential awareness, is that every volitional act is necessarily preceded by will and intention, and that will and intention are themselves preceded by cognition and belief. This is known to every individual by necessary introspection by reflecting upon the inner process that unfolds when one hesitates, then resolves, and finally acts. As for the citation employed by Shaykh al-Qarni and others among the figures of the Wahhābi sect of the Divine Word: ‘*Most of them will only believe in Allah while also joining others with Him.*’⁵ Along with other similar verses, this too avails them nothing. For such verses indicate that these individuals affirm certain aspects of what ought to be believed regarding the Exalted One, such as His existence, His divinity, His creatorship, His provision, yet they conjoin with this belief certain forms of *Shirk*, by ascribing *Uluhiyyah* to others besides Him, and by directing acts of reverence, humility, exaltation, and love to them whether that be through fear, dread, or otherwise on the basis of affirming in them some realisation or instantiation of the meanings or dimensions of divinity. What must be noted here is that the context under discussion pertains primarily to ‘*Imān* - that is, belief and conviction toward which the mind naturally inclines when the term is mentioned, even if in its fuller reality ‘*Imān* encompasses more than mere conceptual assent. It is not immediately a discourse on ‘*Ibādah*, which the mind may associate with ritual acts and outward behaviours though, in truth, even ‘*Ibādah* ultimately returns to specific cognitive conceptions and doctrinal convictions, as has already been explicated above.

In an earlier volume of this series detailing the historic reality of paganism in Arabia we outlined the statements of many of the earliest commentators, particularly that of al-Ṭabari on this matter. Suffice here is to provide a short summary of that, which deserves to be perused with the utmost diligence:

Abu Ja’far (al-Ṭabari) said: Regarding where He the Exalted in His remembrance said, and most of those who He the Mighty and Sublime said of when saying ‘*And there are many signs in the heavens and the earth that they pass by and give no heed to,*’ [12: 105]. While they may claim that Allah is the Creator and provider of sustenance, Creator of everything ‘*except that they are mushrikeen,*’ in relation to their

⁵ *Qur’ān*, 12: 106

worship of *Awthān* and *Asnām* and taking other lords besides Him, claiming that He has a son. Far is Allah the Exalted above what they claim. This is similar to what we have mentioned before, as the people of interpretation have said.⁶

⁶ *Tafsīr* al-Ṭabari [Vol. 16, p. 286]. Readers can also refer to an earlier volume in this series which details the narrative taken from his *Tafsīr* at length, see [Vol. 2, pp. 565/568].

11. Placing an intermediary with Allah

Is the person who places an intermediary between himself and Allah, calling upon them, asking for their *Shafā'ah* (intercession), necessarily a disbeliever – *kāfir*? Stated differently, is the matter sufficiently clear that the person doing this is automatically and necessarily a *kāfir*? What seems to have gained prevalence in our era is derived from the mixture and obsession arising from the mind of Imām Ibn Taymiyyah. In *Majmu' al-Fatāwa* he said:

He the Almighty said: 'No person to whom Allah had given the Scripture, wisdom, and Prophethood would ever say to people, 'Be my servants, not Allah's.' [He would say], 'You should be devoted to Allah because you have taught the Scripture and studied it closely.' He would never command you to take angels and Prophets as lords. How could he command you to be disbelievers after you had devoted yourselves to Allah?' [3: 79/80]. So the Exalted explained that taking the angels and Prophets as *Arbāb* (lords) is *kufṛ*. Whoever makes the angels and Prophets *wasā'it* (intermediaries), calling upon them, relying on them, and asking them to bring about benefit, to ward off harm, such as asking them to forgive sins, guide hearts, relieve distress, and fulfil needs, is a *kāfir* as per the *ijmā'* of the Muslims.¹

In response to the wording of Ibn Taymiyyah 'taking the angels and Prophets as *Arbāb* (lords) is *kufṛ*,' we would say indeed this is the *ḥaqq* (truth) with certainty, bearing no doubt therein, as it is expressed by way of the clear *naṣṣ*

¹ Ibn Taymiyyah *Majmu' al-Fatāwa* [Vol. 1, p. 127 (print edition)]

of the noble verse itself. However the latter portion of what he argued as cited above, is *not* the exact wording as expressed in the infallible Qur’ān. Rather, the explicit mention is regarding taking the angels and Prophets as *Arbāb*. It refers to the language of the Arabs; other Qur’ānic verses and explanations derived from the Prophet *Sunnah* provide completion to undertaking what this means in terms of ‘taking’ and ‘*Arbāb*,’ which is the heart of the matter here. The matter of *kufir* is expressly connected to ‘taking as lords,’ and not something other than that.

Without doubt, the mere belief in *al-Rububiyyah* – which from the correct standpoint is a part of *al-Uluhiyyah*, for *any other than Allah is kufir*. That is proven by the definitive evidences established from the Qur’ān, the Prophetic *Sunnah* and *ijmā’*. Similar applies to those who would worship *other than Allah*, given that it necessarily implies that they believe in the object of worship as having some aspect of *al-Rububiyyah* or *al-Uluhiyyah*. As set out exhaustively thus far, acts and words, in and of themselves, cannot be said to be construed as being worship or non-worship per se. Belief must be taken into account. Acts of worship are made up of bodily acts and words, be they internal, relating to the sayings and actions of the heart, or externally realised, expressed on the tongue and carried out by the limbs of the body. All are *directed towards* or *devoted to* someone or something which is believed to have *al-Rububiyyah* or *al-Uluhiyyah* besides Allah or alongside Allah, even if that were only in a single aspect.

As for where the Shaykh said: ‘Whoever makes the angels and Prophets *wasā’it* (intermediaries), calling upon them...’ to the end of the quotation as set out above, this was his *Tafsir* upon the wording of the verse which stated ‘*He would never command you to take angels and Prophets as lords.*’ It is not more fitting than the one who said ‘He does not command you to make a kinship between Allah and the angels or for that matter the Prophets.’ Rather, this viewpoint is more apt due to the deep overview already mentioned which highlighted the belief of the Quraysh regarding the angels, as they said they were ‘the daughters of Allah.’ Also, in this regard, the belief of the Christians as it concerns Jesus, the son of Mary, peace be upon him and his mother. It is well known that they regard him as the ‘son of God’; they also had beliefs which related to the Holy Spirit, Jibreel, that he is one of the hypostases of Allah. In other words, bearing something of the same essential essence or

nature. Particularly relevant here, is the context of the verses and fully wording, which is set out as follows:

وَإِنْ مِنْهُمْ لَفَرِيقًا يَلُونُ السِّتْرَ بِالْكِتَابِ لِيَخْسَبُوهُ مِنَ الْكِتَابِ وَمَا هُوَ مِنَ الْكِتَابِ وَيَقُولُونَ هُوَ مِنْ عِنْدِ اللَّهِ وَمَا هُوَ مِنْ عِنْدِ اللَّهِ وَيَقُولُونَ عَلَى اللَّهِ الْكَذِبَ وَهُمْ يَعْلَمُونَ، مَا كَانَ لِبَشَرٍ أَنْ يُؤْتِيَهُ اللَّهُ الْكِتَابَ وَالْحُكْمَ وَالنَّبُوءَ ثُمَّ يَقُولَ لِلنَّاسِ كُونُوا عِبَادًا لِي مِنْ دُونِ اللَّهِ وَلَكِنْ كُونُوا رَبَّاتِيِّنَ بِمَا كُنْتُمْ تُعَلِّمُونَ الْكِتَابَ وَبِمَا كُنْتُمْ تَدْرُسُونَ، وَلَا يَأْمُرُكُمْ أَنْ تَتَّخِذُوا الْمَلَائِكَةَ وَالنَّبِيِّينَ أَرْبَابًا أَيَأْمُرُكُم بِالْكُفْرِ بَعْدَ إِذْ أَنْتُمْ مُسْلِمُونَ، وَإِذْ أَخَذَ اللَّهُ مِيثَاقَ النَّبِيِّينَ لَمَا آتَيْنَاكُمْ مِنْ كِتَابٍ وَحِكْمَةٍ ثُمَّ جَاءَكُمْ رَسُولٌ مُصَدِّقٌ لِمَا مَعَكُمْ لَتُؤْمِنُنَّ بِهِ وَلَتَنْصُرُنَّهُ قَالَ أَأَقْرَرْتُمْ وَأَخَذْتُمْ عَلَىٰ ذَٰلِكُمْ إِصْرِي قَالُوا أَقْرَرْنَا قَالَ فَاشْهَدُوا وَأَنَا مَعَكُمْ مِنَ الشَّاهِدِينَ، فَمَنْ تَوَلَّىٰ بَعْدَ ذَٰلِكَ فَأُولَٰئِكَ هُمُ الْفَاسِقُونَ

There are some who twist the Scripture with their tongues to make you [people] think that what they say is part of the Scripture when it is not; they say it is from Allah when it is not; they attribute lies to Allah and they know it. No person to whom Allah had given the Scripture, wisdom, and Prophethood would ever say to people, ‘Be my servants, not Allah’s.’ [He would say], ‘You should be devoted to Allah because you have taught the Scripture and studied it closely.’ He would never command you to take angels and Prophets as lords. How could he command you to be disbelievers after you had devoted yourselves to Allah?

Allah took a pledge from the Prophets, saying, ‘If, after I have bestowed Scripture and wisdom upon you, a messenger comes confirming what you have been given, you must believe in him and support him. Do you affirm this and accept My pledge as binding on you?’ They said, ‘We do.’ He said, ‘Then bear witness and I too will bear witness.’ Those who turn away after this are the ones who break pledges.²

All of this came within the context of an argument and prelude to the delegation of Najrān and the challenge from that famous incident. Thus He said, may He be Glorified and Exalted:

مَا كَانَ لِبَشَرٍ أَنْ يُؤْتِيَهُ اللَّهُ الْكِتَابَ وَالْحُكْمَ وَالنَّبُوءَ ثُمَّ يَقُولَ لِلنَّاسِ كُونُوا عِبَادًا لِي مِنْ دُونِ اللَّهِ وَلَكِنْ كُونُوا رَبَّاتِيِّنَ بِمَا كُنْتُمْ تُعَلِّمُونَ الْكِتَابَ وَبِمَا كُنْتُمْ تَدْرُسُونَ

No person to whom Allah had given the Scripture, wisdom, and Prophethood would ever say to people, ‘Be my servants, not Allah’s.’ [He would say], ‘You

² Qur’ān, 3: 78/82

*should be devoted to Allah because you have taught the Scripture and studied it closely.*³

Here, this is a clear declaration of the innocence of Christ, the son of Mary peace be upon him and his mother, from what the Christians claimed and attributed to them, be that a claim of divinity for himself, or that relating to the Holy Spirit. Hence the verse which follows expressly says: *‘He would never command you to take angels and Prophets as lords. How could he command you to be disbelievers after you had devoted yourselves to Allah?’* Given this, the statement made by the Shaykh Ibn Taymiyyah as previously quoted ‘Whoever makes the angels and Prophets *wasā’it* (intermediaries), calling upon them...’ etc. is evidently not an accurate *Tafsir* of the meaning of the verse. Compounding this, it contains terms and expressions that are ambiguous, being neither precise nor self-evident. The ‘intermediary’ could be a divine being, or in fact otherwise. Calling or invoking could be directed toward someone *believed* to possess divinity, in which case it would be considered ‘*Ibādah*’ worship.’ However, if it is directed toward someone *not believed to possess divinity*, then it is not considered ‘*Ibādah*’ and it is impossible for it to be as such.

Without doubt some of the matters which are given such as the forgiveness of sins, the guidance pertaining to the hearts, a relief from distress as well as the fulfilment of needs, are not sought, not always or by necessity, except with the accompaniment of a particular belief regarding the one being asked, that they are perceived as a divine being. Therefore that makes the one seeking this a *mushrik* and a *kāfir*. For the sake of completeness and to stress emphatically, it is typically, but not always, or by necessity. By way of a simple example, a Muslim may say to a friend – ‘I’m really distressed, suffering from serious hardship. I beseech you to help relieve my distress, rescuing me from the current predicament.’ By saying that, *he does not* become a *mushrik* and a *kāfir*. There must be a certain belief present, which as shown by the context, is absent. By way of comparison, this is completely unlike someone from the Quraysh, either in the pre-Islamic era or during the advent of revelation, who addresses the idol Hubal and says - ‘I’m really distressed, suffering from serious hardship. I beseech you to help relieve my

³ *Qur’ān*, 3: 79

distress, rescuing me from the current predicament.’ Evidently that person is a *mushrik* and a *kāfir*, as the context would clearly show; ‘Hubal’ was one of the false deities of the Quraysh. Although the wording expressed is the same, the judgment and outcome are vastly different.

One should therefore see quite clearly that the statement made by Imām Ibn Taymiyyah as quoted above, is neither precise nor well-defined. Repetition of such in his works is highly problematic. Moreover, it strongly suggests that his analysis in approach *only* focused on a superficial and outward appearance of the act or statement, without due consideration of any belief underpinning or accompanying it. Naturally, the approach is flawed, with conclusions built upon it even more so. As we have shown throughout this work, it leads to devastating consequences. Invoking a claim that there is an *ijmā’* – consensus, upon the matter from all Muslims is not uncommon. In many instances he has done this and without proper justification. It is an assertion that is unfounded. We ask Allah, praying to Him that this wasn’t a deliberate lie. If it was an *ijmā’*, it would be built upon falsehood, and the *Ummah* conferring upon misguidance, may Allah forbid that.

Regarding the correct and accurate meaning, which makes belief, specifically, belief in *al-Uluhiyyah* (divinity) or *al-Rububiyyah* (lordship) besides Allah, even if it were in a single aspect, the actual basis for judgment – this is the correct and precise meaning. It is manifestly established by the verse which Ibn Taymiyyah cited, bolstered by a plethora of other verses in the Qur’ān, established from the *Ṣaḥīḥ* Prophetic *Sunnah*, as well as from the historical record. Hence, all that is definitely established is thus necessarily subject to *ijmā’*. Any who oppose that would land themselves in disbelief and outside the fold of Islam.

12. Revisiting the Arab *Mushrikeen* and *Tawheed al-Rububiyyah*

Although Shaykh al-Qarni had erred in utilising the term [المتفرد] ‘*al-Mutafarid*,’ in the text cited earlier, a term which we reiterate is not found in the corpus of the Qur’ānic text, instead it was coined from his unbridled imagination to support his erroneous doctrine. Far worse though and more serious was the error in utilising the wording ‘*Wa’dahu la Shareeka lahu*,’ by Muḥammad ibn ‘Abd al-Wahhāb (MIAW). As already covered in an earlier chapter of the present work, this can be gleaned from the corpus of his collected writings:

If you reflect on this great matter and know that the *kuffār* acknowledge all of this to Allah - ‘*Wa’dahu la Shareeka lahu*,’ alone, He who has no partner, and that they only believed in their gods to seek intercession and draw closer to Allah, as the Most High said: ‘*They worship alongside Allah things that can neither harm nor benefit them, and say, ‘These are our intercessors with Allah,’* [10: 18]. And in another verse: ‘*[As for] those who choose other protectors beside Him, saying, ‘We only worship them because they bring us nearer to Allah,’* [39: 3]. If this becomes clear to you and you understand it well, the *mushrikeen* have another argument, which is that they say it is truth – ‘but the *kuffār* believe in *al-Aṣnām*.’ (In response) the definitive answer is thus: to be told that the *kuffār* in his time, peace and blessings be upon him, there were among them those who believed in idols. (Yet) some of them believed in the grave of a righteous man, like al-Lāt.

Among them, are those that believed in the *Ṣāliheen* (the righteous), they are the ones referred to by Allah, when He the Mighty and

Sublime said: ‘*Those they pray to are themselves seeking a way to their Lord, even those who are closest to Him. They hope for His mercy and fear His punishment,*’ [17: 57]. He the Almighty said that those whom they call the *kuffār* and claim to love them, are (in fact) righteous people who are in obedience to Allah, having hope and fear. If you discern the truth that He the Almighty, the Blessed, mentioned in His Book that they believed in the *Ṣāliheen* and that they only wanted to gain intercession with Allah by drawing near to Him, believing in those *Ṣāliheen*, and you discerned the truth that Muḥammad peace and blessings be upon him, he did not differentiate between those who believed in *al-Aṣnām* (the idols) and those who believed in the *Ṣāliheen*, rather he fought all of them, judging them as *kuffār*.¹

Some additional analysis of the errors made by MIAW

The aforementioned quotation from MIAW is nothing but a litany of lies, fabrications, distortions and wading through a pit of darkness. First and foremost, describing ‘that the *kuffār* acknowledge all of this to Allah - ‘*Wa’dahu la Shareeka lahu*,’ alone, He who has no partner,’ is a manifest falsehood. It is even worse than the mistake Shaykh al-Qarni made in utilising the term [المتفرد] ‘*al-Mutafarid*.’ None of the texts of revelation support his contention that the all of this was acknowledged by the *kuffār* in general.

Secondly, the claim, that ‘they only believed in their gods to seek intercession,’ is totally false, as exhaustively outlined in previous volumes of this present work. The most which could be said, is that this was partially a believe as it related to some of their supposed gods. Clearly it wasn’t a matter that encompassed all their believes regarding all their false deities. That generalisation has no basis. Specifically concerning the matter of intercession, what they believed in was intercession ‘*independent of god*,’ an intercession that is guaranteed, or that requires no permission; an intercession that can only be conceived of from an entity or being that is divine in the first place. Evidently it was not a matter of intercession by way of Allah’s permission, which He has affirmed in the texts of revelation. Thus this matter needs to be addressed specifically and explicitly without equivocation.

¹ *Mu’walifāt al-Shaykh al-Imām Muḥammad ibn ‘Abd al-Wahhāb* [Vol. 1, p. 146]. The quote as presented here, is a repetition of that outlined already in Volume 2 [Part 5, pp. 420/421] of this series.

There is a clear misunderstanding of the wording as expressed in the Qur’ānic verse at [10: 18]. MIAW mistakenly thought that the *mushrikeen* believed that their gods had no power over harm or benefit, but the truth of the matter, is that the belief that the *mushrikeen* held is limited to what is mentioned about them: ‘*These are our intercessors with Allah,*’ [10: 18]. Where the verse states: ‘*They worship alongside Allah things that can neither harm nor benefit them,*’ that is a statement from Allah the Exalted outlining the reality of the beings that are worshipped besides Him; that in actuality, they bring neither benefit nor harm, nor have they any power of intercession. This is the direct opposite of what the *mushrikeen* held as beliefs. Naturally MIAW has confused the reality of the beliefs of the *mushrikeen* with the actual truth as expounded by Allah, Lord of all Creation. Moreover, he also overlooked the fact that such a notion is inherently impossible; an intercessor must have the power to help or harm. And indeed, the *mushrikeen* firmly believed that these beings are intercessors for them before Allah, offering intercession that either does not require permission or cannot be refused. By any measure, is an immense and serious form of benefit. One can therefore see the catastrophic intellectual failure that has fallen MIAW, a ruinous and disgraceful blunder!

As outlined at length in the present volume in addition to contained in this, there is an abject failure in the excerpt from MIAW to define ‘*Ibādah* (worship) with a proper definition. ‘*Ibādah* is always preceded by the belief in *al-Uluhiyyah* – divinity, wherever it appears in the Qur’ān in reference to false gods or anything that is worshipped besides Allah. That much is clearly evident from the verse at [10: 18]. Regarding the verse at [39: 3], yet again, there are serious and grave misunderstandings of this. These matters have already been discussed in this volume and earlier in this work.

A cornerstone of the beliefs from the sect of Wahhābism has been this notion that during the time of the Prophet, peace and blessings be upon him, there were some that ‘believed in the grave of a righteous man, like al-Lāt,’ as MIAW phrases this. As outlined in Volume 2 of this series, without doubt this is a manifest lie. That assertion, without evidence, contradicts the clear text of the Qur’ān which demarcates al-Lāt, al-‘Uzza and Manāt as the false female goddesses worshipped by the Quraysh; they believed they were the ‘daughters of Allah,’ or alternatively, that al-Lāt was Allah’s consort, with the other two as offspring. We have clearly shown by way of the *mutawātir*

aḥādith from the Seal of Prophethood, peace and blessings be upon him, that the first person who altered the *Deen* of Ismā’il was ‘Amr ibn Luḥayy al-Khuzā’i, may Allah curse him. He was the first to import idols to Arabia and summoned the tribes to worship them. Our readers should now be familiar with our extensive analysis and critique of this issue. The fabled story of the man mixing the *saweeq* (gruel) for the pilgrims, who was worshipped when he allegedly died, is *mawqūf* to Mujāhid – and not connected to Ibn ‘Abbās. Even if there were some historical basis to support the mythical belief of al-Lāt being a man, it wouldn’t be valid as evidence. Such narrations, albeit faulty, state that he was worshipped only *after* he had died or had disappeared. That would imply that after that event, he was deified. They could have perhaps believed that this transformation to a divine being was a result of incarnation or union with the divine – concepts that are *Shirk* and utterly false. Alternatively, some could have argued that ‘the goddess’ as al-Lat was referred to by the people of al-Ṭā’if, chose this fabled person as a consort, elevating his status to be included among ‘the gods.’ If that was the case, then devotion, rituals, offerings, and any other such acts *would be* construed as ‘*Ibādah*, because it is preceded by the belief in the purposed divinity of this being.

Graves

A point that many from the sect of Wahhābism, and indeed others, tend to overlook, is that among the pre-Islamic Arabs, there didn’t exist a concept such as ‘veneration related to graves,’ at least not in a ‘religious sense.’ What there *is evidence for*, albeit limited and exceptional, is the honour being given to the gravesites of certain tribal leaders of chieftains, such as ‘Aāmir ibn al-Ṭufayl or Tameem ibn Murr. Yet despite this, there is no evidence whatsoever to support the assertion that they ‘worshipped them’ or even held the belief that they were deified. They were considered as respected leaders and at most, some form of sanctuary. As has been lucidly put by Dr Jawād Ali in his seminal work, *al-Muffaṣṣal fī Tārīkh al-Arab Qablal’Islam*:

It is not a condition of *jiwār* (seeking protection) that it be with the living; a person may seek refuge with a grave, thereby coming under its protection and the sanctity of that grave. The caretakers or guardians of that grave are then obligated to defend and protect the one

who has sought refuge therein. An example of this is people seeking refuge at the grave of ‘Aāmīr ibn al-Ṭufayl. It is reported that his tribe, Bani Aāmīr, placed boundary markers around his grave at a certain distance. If someone in need crossed those markers and entered the sanctuary surrounding the grave, he became secure in his life and property, fearing no harm from anyone who might wish to do him so. They even forbade animals from entering it or riders from passing through it, out of reverence for the sanctity of the person buried there. A similar case is that of the grave of Tameem ibn Murr, the ancestor of the Tameem tribe, as known to genealogists.²

Secondly, the Arabs didn’t as a matter of routine, custom, or even ‘religiousness,’ make *sujūd* (prostration) at their graves, not even as a form of salutation and greeting. In fact, the idea would have been a complete anathema to them, such a conception didn’t even enter their minds. Here one should note the tradition as recorded in the *Sunan* of Abu Dāwūd:

حدثنا عمرو بن عون أخبرنا إسحاق بن يوسف عن شريك عن حصين عن الشعبي عن قيس بن سعد قال: أتيت الحيرة فرأيتهم يسجدون لمرزبان لهم فقلت رسول الله أحق أن يسجد له قال: فأتيت النبي صلى الله عليه وسلم، فقلت: إني أتيت الحيرة فرأيتهم يسجدون لمرزبان لهم، فأنت، يا رسول الله، أحق أن نسجد لك؟ قال: رأيت لو مررت بقبري أكنت تسجد له؟ قال: قلت: لا! قال: فلا تفعلوا، لو كنت أمرا أحدا أن يسجد لأحد لأمرت النساء أن يسجدن لأزواجهن لما جعل الله لهم عليهن من الحق

‘Amr ibn ‘Awn narrated to us Ishāq ibn Yusuf narrated to us from Shareek from Ḥuṣayn from al-Sha’bi from Qays ibn Sa’d, he said: ‘I went to al-Ḥirah and saw them (the people) prostrating themselves before a satrap of theirs, so I said – The Messenger of Allah has more right to have prostration made before him. When I came to the Prophet peace and blessings be upon him, I recounted: ‘I went to al-Hirah and saw them prostrating themselves before a satrap of theirs, but you have the most right, Messenger of Allah, to have (people) prostrating themselves before you. He said: *Tell me, if you were to pass my grave, would you prostrate yourself before it?* I said: ‘No.’ He then said: *Do not do so. If I were to command anyone to make prostration before another I would command women to prostrate themselves before their*

² Dr Jawād Ali (1968), *al-Mufaṣṣal fi Tārikh al-‘Arab Qablal-Islam* [Vol. 4, p. 362 (print edition)]

*husbands, because of the special right over them given to husbands by Allah.*³

This particular narration is also recorded by al-Ḥākim in his *Mustadrak*, after which he comments ‘The *isnād* of this *ḥadith* is *Ṣaḥīḥ*, but they did not cite it.’⁴ We would argue that the *isnād* is deemed a good channel of reporting from Shareek al-Qāḍi, however overall the *ḥadith* is *Ṣaḥīḥ* by way of the additional corroborative reporting as per al-Bayhaqi. The narration is brought to us by way of Qays ibn Sa’d ibn ‘Ubadah al-Khazraji al-Anṣārī, may Allah be pleased with him, for whom the very concept of prostration by a grave was an anathema to him. We can thus conclude that there was a complete absence of such a practice in the lands of Arabic and their environs despite the widespread practice of prostration to monarchs / rulers, and other figures as noted elsewhere.

But they forgot the most important part here and allowed it to fade into insignificance. There are many reports indicating that the grave of Ismā’il, son of Ibrāhīm, peace and blessings be upon them both, is actually located in the Ḥijr, under *mizāb*, and perhaps his mother grave is beside his. Based on this, the grave would have been *inside* the structure of the *Ka’ba*, because the Ḥijr is part of it. However, the Quraysh were unable to complete the full reconstruction of the *Ka’ba* when they rebuilt it, as they ran out of funds, and so they settled for its current form. Inevitably the Wahhābis will rush to say: ‘This is an obliterated grave, its exact location lost, and burial there was in accordance with a previous, now-abrogated, religious law, so it carries no weight.’ Despite this, I would argue in response - we already know that geniuses, that is not the point of our discussion. Rather, we are asking - *how* did this grave survive for thousands of years, and yet we have never heard of *anyone worshipping* it? Ismā’il was never counted among ‘the gods’ of the Quraysh. He had no idol, nor even a standalone image inside the *Ka’ba*, which was unlike Ibrāhīm, whom they falsely depicted as practicing divination with

³ *Sunan* Abu Dāwūd [Vol. 2, no. 2140]

⁴ al-Ḥākim *Mustadrak* [Vol. 2, no. 2763], the *isnād* being: ‘Muḥammad ibn Ṣāliḥ ibn Hāni narrated to us al-Faḍl ibn Muḥammad ibn al-Musayyib narrated to us ‘Amr ibn ‘Awn narrated to us Shareek narrated to us, with it.’

arrows.⁵ Then the physical site of the grave was lost, to the point that Abdullah ibn al-Zubayr nearly uncovered it by accident when rebuilding the Ka'ba after it was burned. How could this be, if they were truly 'grave-worshippers,' as you so stubbornly claim?

The 'Righteous'

As noted in the long quote at the beginning of this chapter, MIAW claimed that there were those which 'believed in the *Ṣāliḥeen* (the righteous),' and that the verse, [17: 57] was directly related to them.⁶ Tragically though, he mixed up two matters which are fundamentally different, namely, a) the actuality of the situation, as Allah informed us that the ones being invoked, are in fact His righteous honoured servants. They reject that they should be worshipped, and the acts of those who are or were, worshipping them. That will be made plain on the day of resurrection for all to see. The second matter, or b), is the belief of the *mushrikeen*; in their minds, they believed they are 'gods' who are pleased by the acts of worship from their devotees, in some sense, thinking that it is rewardable or commendable. The profound ignorance of MIAW led to him conflating the false beliefs of the *mushrikeen* with what the actual reality of the situation was, as explained by Allah the Exalted. Indeed it is a dreadful blunder with devastating consequences.

The matter isn't altogether different from the obsessive phantasms which are found in MIAW's most famous work, *Kitāb al-Tawhīd* where he says: 'Including the verse of (*Surah*) *al-Isrā'*, in which the response to the *mushrikeen* who call upon the *Ṣāliḥeen* (righteous) is explained, as it states that this is the greatest form of *Shirk*. The verse being, 'Those whom they call upon, themselves seek the means of access to their Lord - whoever of them is

⁵ There are several authentic narrations on this matter, reported in the *Ṣaḥīḥ* of al-Bukhārī as well as *Musnad* Aḥmad. One such is example, is that narrated by Ibn 'Abbās as recorded by al-Bukhārī in his *Ṣaḥīḥ*: 'Ibrāhīm ibn Musa narrated to us Hishām narrated to us from Ma'mar from Ayub from 'Ikrimah from Ibn 'Abbās, may Allah be pleased with him, that the Prophet, peace and blessings be upon him saw pictures in the House (the Ka'ba) and he didn't enter it until he ordered their erasure. When he saw the images with Ibrāhīm and Ismā'il carrying arrows in their hands he said: *May Allah curse them* (the pagans). *By Allah, neither Ibrāhīm nor Ismā'il, peace be upon them, practiced divination by arrows.*'

⁶ Here the repetition of the verses at [17: 56/57] are omitted for the sake of brevity as they will be quoted again for emphasis shortly.

nearest.'⁷ For the sake of clarity and completeness, one should peruse the verses again, in complete form, with a meticulous eye:

قُلِ ادْعُوا الَّذِينَ زَعَمْتُمْ مِنْ دُونِهِ فَلَا يَمْلِكُونَ كَشْفَ الضُّرِّ عَنْكُمْ وَلَا تَحْوِيلًا، أُولَئِكَ الَّذِينَ يَدْعُونَ يَبْتَغُونَ إِلَىٰ رَبِّهِمُ الْوَسِيلَةَ أَيُّهُمْ أَقْرَبُ وَيَرْجُونَ رَحْمَتَهُ وَيَخَافُونَ عَذَابَهُ إِنَّ عَذَابَ رَبِّكَ كَانَ مَحْذُورًا

Say, 'Call upon those you claim to be deities beside Allah: they have no power to remove or avert any harm from you.' Those whom they call upon, themselves seek the means of access to their Lord - whoever of them is nearest - and they hope for His mercy and fear His chastisement; surely the chastisement of your Lord is a thing to be cautious of.⁸

One must ask where did MIAW find the word *al-Ṣāliḥeen* [الصالحين], (the righteous) in the aforementioned verses? In reference to those being called upon, the ones whom the *mushrikeen* are directing their prayers to, the Qur'ān uses the phrasing of 'those you claim beside Allah,'⁹ in other words, meaning those whom you have taken to be gods/deities besides Him. That much is affirmed by many other verses, as well as from the wider corpus of revelation, the authentic Prophet *aḥādith*, and other historical evidences, many of which have been covered in previous volumes of this work. Further clarification is thus given that many of the supposed 'gods' which the *mushrikeen* invoke besides Allah, are in actual fact, righteous servants, angels and Prophets, who are not associating partners with their Lord; 'Those whom they call upon, themselves seek the means of access to their Lord.'

Here the critical difference is that the *mushrikeen* never believed that they were *merely* 'righteous servants' who were seeking closeness to their Lord, by way of righteous deeds and every means of drawing near, while being between hope in His mercy and fear of His punishment. The fact of the matter is that *they believed in their divinity*, even if it was only in a single aspect. Thus, the *duā'* (supplication/invocation) to them, was the *duā'* of '*Ibādah* (worship); by definition that is major *Shirk*. The Qur'ānic verses provide an unequivocal clarification from Allah the Exalted that the supposed 'gods' of the *mushrikeen*, whether that is - al-Lāt, al-'Uzza, Manāt, the *Jinn*, the angels,

⁷ MIAW *Kitāb al-Tawhīd* [p. 25 (*Shamela edition*)]

⁸ *Qur'ān*, 17: 56/57. For the latter verse, 57, (*Those whom they call upon*) we have opted for Shakir's translation.

⁹ The translation of Abdel Haleem has used the word 'deities' explicitly for clarity.

whom *they believed* to be sons and daughters of Allah; the Messiah, whom *they believed* to be the son of Allah, Ezra, whom *they also believed* to be the son of Allah, and any others of the same like, have no actual existence in this divine capacity at all. Rather these are the phantasms of warped misguided minds, born of a diseased imagination resulting in the absurdity of claiming multiple divinities. With regards to the angels and the Messiah, Jesus the son of Mary, they are in reality, the righteous servants of Allah. They are not gods, so no form of worship is allowed to be directed to them in any shape or form.

If MIAW had undertaken a proper study of these matters with diligent contemplation, reviewed the statements from the earlier scholars and liberated himself from the slavish imitation of Ibn Taymiyyah, whom he took as a lord by adopting every innovation he introduced, he would have arrived at the truth. But the pitfall was similar to that of the previous nations, as Allah informed us, *‘They take their rabbis and their monks as lords besides Allah,’*¹⁰ and not entirely different to how the Arabs took the evil *Shayṭān* ‘Amr ibn Luḥayy as a lord – every twisted misguided innovation he brought, they adopted it, hook, line and sinker.

Tafsir of the verses

At this juncture let us consider the *Tafsir* of the verses from *Surah Isrā’*. The following is recorded in the seminal *Tafsir* of Imām al-Ṭabari:

Allah, Exalted in His Remembrance says to His Prophet Muhammad, peace be upon him, ‘Say O Muḥammad to the *mushrikeen* of your people who worship some of His creation instead of Allah, ‘Call upon those who you claim to be lords and gods besides Him [أرباب وآلهة من دونه]. Then, if harm should befall you, see whether they can remove that harm from you or redirect it to someone else. So, do you still call them gods? [فتدعوهم آلهة] They are unable to do so and have no power over any matter. Only your Creator and theirs possesses (such power) and is capable of that.’ It was said that those whom the Prophet peace be upon him was commanded to address with this statement were

¹⁰ *Qur’ān*, 9: 31

people who worshiped the angels, Ezra, the Messiah (Jesus), and (there were) some of them who worshipped a group of the *Jinn*.

Muḥammad ibn Sa’d narrated to me he said my father narrated to me, he said my uncle narrated to me, he said my father narrated to me from his father from Ibn ‘Abbās (regarding the verse in which) He says: *Say, ‘Call upon those you claim to be deities beside Allah: they have no power to remove or avert any harm from you,’* [17: 56]; he said: ‘The people of *Shirk* used to say – “We worship the angels, and Ezra,” and they are the ones who they call upon, namely, the angels, the Messiah (Jesus) and Ezra.’

Regarding the interpretation of where He the Almighty says: *‘Those whom they call upon, themselves seek the means of access to their Lord - whoever of them is nearest - and they hope for His mercy and fear His chastisement; surely the chastisement of your Lord is a thing to be cautious of,’* [17: 57]. He the Exalted in His mention says: ‘Those upon whom the *mushrikeen* call upon as ‘*Arbāb* (lords) are themselves seeming a means of closeness to their Lord.’ That is to say, those who are being called upon as gods/deities are actually seeking closeness and proximity to their Lord, because they are believers in Him, while the *mushrikeen* worship them instead of Allah. ‘*Those who are closest to Him,*’ here meaning, which of these called-upon beings is closer to Allah through righteous deeds and diligence in worship. They hope through these actions for His mercy, and they fear His punishment for disobedience; *‘The punishment of your Lord is much to be feared.’*¹¹

After discussing these points Imām al-Ṭabari then says:

There’s disagreement about those who were called upon. Some argued, ‘they were a group of the *Jinn*.’ Regarding those who said that:

Abu al-Sā’ib narrated to me he said Abu Mu’āwiya narrated to us from al-Amash from Ibrāhīm from Abdullah, (regarding where) He says: *‘Those whom they call upon, themselves seek the means of access to their Lord,’* [17: 57]; he said: ‘There were people from among mankind who used to worship a group from the *Jinn*. A group of them

¹¹ *Tafsir* al-Ṭabari [Vol. 8, pp. 93/95 (print edition)]

(from the *Jinn*) embraced Islam but the people remained in their *kufir*, thus Allah the Almighty revealed (the verse): *‘Those whom they call upon, themselves seek the means of access to their Lord,’* meaning, the *Jinn*.

Ibn al-Muthanna narrated to us he said Abu al-Nu’mān al-Ḥakam ibn Abdullah al-‘Ijli narrated to us he said Shu’ba narrated to us from Sulaymān from Ibrāhīm from Abu Ma’mar, he said (that) Abdullah said regarding this verse: *‘Those whom they call upon, themselves seek the means of access to their Lord,’* [17: 57], ‘A tribe from among the *Jinn* were worshipped (but they) embraced Islam.’

‘Abd al-Wārith ibn ‘Abd al-Ṣamad narrated to me he said my father narrated to me he said al-Ḥussain narrated to me from Qatādah from Ma’bad ibn Abdullah al-Zamāni from Abdullah ibn ‘Utba ibn Mas’ud from Ibn Mas’ud, (regarding the verse) in which He says: *‘Those whom they call upon, themselves seek the means of access to their Lord,’* [17: 57]; he said: (The verse was) revealed concerning a group from the Arabs who used to worship some of the *Jinn*. They embraced Islam, but the people who were worshipping them were unaware of this, thus the verse was revealed.¹²

Bishr narrated to us he said Yazeed narrated to us he said Sa’eed narrated to us from Qatādah from Abdullah ibn ‘Utba ibn Mas’ud, narrating upon the authority of his uncle, Ibn Mas’ud, he said: ‘This verse (in question) was revealed concerning a group of the Arabs who used to worship a group of *Jinn*. The latter embraced Islam, but the group of Arabs were unaware of that.’

Ibn ‘Abd al-‘Alā narrated to us he said Muḥammad ibn Thawr narrated to us from Ma’mar from Qatādah (regarding the verse): *‘Those whom they call upon, themselves seek the means of access to their Lord,’* [17: 57]; (he said it concerns) ‘A group of people who worshipped the *Jinn* and those *Jinn* converted to Islam, thus Allah, Exalted in His remembrance said: *‘Those whom they call upon, themselves seek the means of access to their Lord.’*

Muḥammad ibn Bashār narrated to us he said ‘Abd al-Raḥman narrated to us he said Sufyān narrated to us from al-Amash from

¹² Here, the repetition of the verse has been omitted from the narrative.

Ibrāhīm from Abu Ma’mar from Abdullah (regarding the verse): *‘Those whom they call upon, themselves seek the means of access to their Lord,’* he said: ‘A group of people used to worship some of the *Jinn*; the latter embraced Islam, but the people continued in clinging to worshipping them, thus He said *‘Those whom they call upon...’*

al-Ḥassan ibn Yahya narrated to us he said ‘Abd al-Razzāq reported to us he said Ibn ‘Uyayna reported to us from al-Amash from Ibrāhīm from Abu Ma’mar, he said Abdullah said ‘Some people used to worship a group of *Jinn*. Those *Jinn* embraced Islam, but people remained firm in worshipping them. Thus Allah the Blessed and Exalted said: *‘Those whom they call upon, themselves seek the means of access to their Lord.’*

al-Ḥassan narrated to us he said ‘Abd al-Razzāq narrated to us he said Ma’mar reported to us from Qatādah in relation to (where) He says: *‘Those whom they call upon, themselves seek the means of access to their Lord,’* he said: ‘There were people from those in *Jāhiliyya* who used to worship a group of the *Jinn*. But when the Prophet peace and blessings be upon him was sent, they embraced Islam (e.g. those *Jinn*) and the people began seeking which of them was closer (to Allah).

(al-Ṭabari) Others argued, that rather (this group) was the angels.

al-Ḥussein ibn Ali al-Ṣudā’i narrated to me he said Yahya ibn Muwaṭṭā’ narrated to us he said Abul’Awwām reported to us he said Qatādah reported to us from Abdullah ibn Ma’bad al-Zamāni from Abdullah ibn Mas’ud he said: ‘There were clans among the Arabs who used to worship a class from among the angels they called them the *Jinn*. And they said they were “the daughters of Allah.” So Allah the Mighty and Sublime revealed: *‘Those whom they call upon,’* (referring to these) Arab clans, *‘themselves seek the means of access to their Lord.’*

Yunus narrated to me he said Ibn Wahb reported to us he said Ibn Zayd said (regarding the verse) *‘Those whom they call upon, themselves seek the means of access to their Lord,’* (It refers to) those who invoked the angels (yet they) themselves seek means of access to their Lord, as to which of them is closest, and they hope for His mercy. Until He said about the punishment of your Lord is a matter to be

feared. These are the ones who worshipped the angels from among the *mushrikeen*.

(al-Ṭabari) Others said, rather (this matter refers to) Ezra, Jesus and his mother. Among those who said that:

Yahya ibn Ja'far narrated to me he said Yahya ibn Muwaṭṭā' reported to us he said Shu'ba reported to us from Ismā'il al-Suddi from Abu Ṣāliḥ from Ibn 'Abbās regarding (where) He says: '*Those whom they call upon, themselves seek the means of access to their Lord,*' he said: 'Jesus and his mother, and Ezra.'

Muḥammad ibn al-Muthanna narrated to us he said Abu al-Nu'mān al-Ḥakam ibn Abdullah al-'Ijli narrated to us he said Shu'ba narrated to us from Ismā'il al-Suddi from Abu Ṣāliḥ from Ibn 'Abbās, he said: Jesus son of Mary, his mother and Ezra in relation to this verse: '*Those whom they call upon, themselves seek the means of access to their Lord.*'

Muḥammad ibn 'Amr narrated to me he said Abu 'Aāsīm narrated to us he said Esa narrated to us, and al-Ḥārith narrated to me he said al-Ḥasan narrated to us he said Waraqā' narrated to us, all of them from Ibn Abi Najih from Mujāhid (regarding the verse) '*themselves seek the means of access to their Lord,*' he said 'Jesus son of Mary, Ezra and the angels.'

al-Qāsim narrated to us he said al-Ḥussein narrated to us he said Ḥajjāj narrated to me from Ibn Jurayj from Mujāhid, narrating similarly.

Ibn Ḥumayd narrated to us he said Jarir narrated to us he said from Mughira from Ibrāhīm he said 'Ibn 'Abbās was saying in relation to where He says - *Those whom they call upon, themselves seek the means of access to their Lord,* he said – It is Ezra and the Messiah, and the Sun and the Moon.'

(al-Ṭabari) The *Ta'weel* of this verse that is most fitting is the viewpoint (stemming from) Abdullah ibn Mas'ud, which we have narrated by way of Abu Ma'mar. That is because Allah, Exalted in His Remembrance, reported that those whom the *mushrikeen* invoke as 'gods' [يدعوهن المشركون آلهة] are themselves seeking means of nearness to their Lord during the time of the Prophet peace be upon him. It is known that Ezra wasn't present during his epoch (e.g. the Prophet), to

be seeking nearness to his Lord; Jesus had (already) been raised up. Only one who is alive and able to act in obedience to Allah and draw near to Him through righteous deeds can seek nearness to Him. But as for one who has no means to act, how can he seek nearness to his Lord? So, since this *Ta'weel* holds no meaning, there remains no *Ta'weel* except that of the one who said what we have preferred, or the one who said: they are the angels. Both interpretations are supported by the outward wording of the revelation.¹³

One can discern here that the statements from Imām al-Ṭabari are, at its core, matching our own in this respect. Fundamentally, they believed in *al-Rububiyyah* (Lordship) and *al-Uluhiyyah* (divinity) of the beings or entities that they called upon. Hence, they made *duā'* (supplication) to them, the *duā'* being that of *Ibādah* (worship). Evidently this is *Shirk Akbar* – major *Shirk*. Allah informed them that those upon whom they were invoking, were in actuality, righteous servants, either inherently like the angels, Jesus and Ezra, or they later became so given their embrace of Islam and abandonment of *Shirk*, and misguiding people into worshipping them. One can refer to the contents of *Surah al-Jinn* (chapter 72) where these matters are lucidly explained. A group from among the *Jinn* embraced Islam, completely disassociated themselves from the humans that worshipped them, after mistakenly believing in their former cursed leader, *Iblees*. They used to believe falsely that they could escape Allah by flight, implying in some sense that they are on the same plain of existence as Him, and they were rejoicing when some people sought refuge with them, yet it only increased them in ignominy.

The stronger viewpoint is that the verse was revealed originally concerning the *Jinn* who accepted Islam. That fits the reality of the situation perfectly and primarily. However, its core message would also apply to anyone who is believed to possess *al-Rububiyyah* (Lordship) and *al-Uluhiyyah* (divinity), while their true nature is actually more fitting as the righteous servants of Allah, those who seek closeness to Him through every lawful means. Here this would include the Messiah, Jesus son of Mary and his mother, peace and blessings be upon them both, as well as Ezra and anyone

¹³ *Tafsir al-Ṭabari* [Vol. 8, pp. 95/97 (print edition)]

else who has falsely attributed to them aspects of *al-Rububiyyah* and *al-Uluhiyyah*.

Hence with certitude, the unsubstantiated claims made by Muḥammad ibn ‘Abd al-Wahhāb (MIAW) about the *mushrikeen* and their beliefs in ‘the righteous’ in the long quote at the beginning of this chapter are utterly invalid. Similarly, other statements of his are equally invalid, such as that found in his *Kitāb al-Tawḥeed*, where he says: ‘Including the verse of (*Surah*) *al-Isrā*’, in which the response to the *mushrikeen* who call upon the *Ṣāliḥeen* (righteous) is explained, as it states that this is the greatest form of *Shirk*.’¹⁴ During the era of the Prophet, peace and blessings be upon him, there wasn’t anyone who believed in either the inhabitants or the graves or the ‘the righteous’ as MIAW falsely claimed, together with the adherents of his sect. Given this, the claim that the Prophet, peace and blessings be upon him ‘fought all of them, judging them as *kuffār*,’ is fallacious.¹⁵ With the foundational premise of his arguments deconstructed and demonstrably shown to be false, the opposition that MIAW had to those he called ‘*mushrikeen*,’ is also invalid. As noted earlier, he argued:

The *mushrikeen* have another argument, which is that they say it is truth – ‘but the *kuffār* believe in *al-Aṣnām*.’ (In response) the definitive answer is thus: to be told that the *kuffār* in his time, peace and blessings be upon him, there were among them those who believed in idols. (Yet) some of them believed in the grave of a righteous man, like al-Lāt. Among them, are those that believed in the *Ṣāliḥeen* (the righteous)...’¹⁶

While MIAW claimed that this was the ‘definitive answer,’ it turns out it was but a house of cards. It is the exact opposite of anything reaching decisiveness or definitiveness. Broken, cut-off and refuted in totality, it is a collection of pure errors and utter falsehoods. All of that built upon that which is imaginary, having no basis in historic reality and tied to grossly inaccurate misinterpretations of the Qur’ān and the Prophetic *Sunnah*. This is notwithstanding being neglectful of a substantial body of the revelation and

¹⁴ MIAW *Kitāb al-Tawḥeed* [p. 25 (*Shamela edition*)]

¹⁵ See footnote 1

¹⁶ As per footnote 1.

the historical record. Far more egregious and uglier than all of this, is what MIAW set out in his work entitled *Kashf al-Shubuhāt*:

If you wish to know the proof that those who Messenger of Allah peace and blessings be upon him fought, used to testify to all of this, then read what He the Almighty says: ‘Say [Prophet], ‘Who provides for you from the sky and the earth? Who controls hearing and sight? Who brings forth the living from the dead and the dead from the living, and who governs everything?’ They are sure to say, ‘Allah.’ Then say, ‘So why do you not take heed of Him?’ [10: 31]. And He says: ‘Say [Prophet], ‘Who owns the earth and all who live in it, if you know [so much]?’ and they will reply, ‘Allah.’ Say, ‘Will you not take heed?’ Say, ‘Who is the Lord of the seven heavens? Who is the Lord of the Mighty Throne?’ and they will reply, ‘Allah.’ Say, ‘Will you not be mindful?’ Say, ‘Who holds control of everything in His hand? Who protects, while there is no protection against Him, if you know [so much]?’ And they will reply, ‘Allah.’ Say, ‘Then how can you be so deluded?’ [23: 84/89]. And other than those verses.

If you have confirmed that they believed and admitted in all of this, and yet this belief did not enter them into the *Tawḥeed* that the Prophets called them to, and specifically what the Messenger of Allah peace and blessings be upon him called them to, then you will realise that the *Tawḥeed* that they rejected as the *Tawḥeed al-‘Ibādah*, which is called by the *mushrikeen* of our time *al-‘Itiqād*. They called upon Allah the Glorious and Almighty night and day, but some of them called out to the angels along with Allah due to the fact that these angels are pious, and that they are close to Allah, so that these angels can intercede on their behalf in front of Allah to grant their requests. Or they called along with Allah upon a righteous man like al-Lāt, or a Prophet, like Jesus. And you must understand that the Messenger of Allah peace and blessings be upon him fought them because of this *Shirk*, and called them to make their worship sincere for Allah alone, for Allah the Almighty says: ‘So do not pray to anyone other than Allah,’ [72: 18].

And He said: ‘The only true prayer is to Him.’ [13: 14]. It is imperative you recognise that the Messenger of Allah peace and blessings be upon him fought them so that *du‘ā* be made only to Allah,

and sacrifice be made only in His Name, and vows be enacted only by His Name, and supernatural help be sought only from Him – in fact, all types of worship be performed only to Him and for Him. So if you understand that their belief in *Tawheed al-Rububiyyah* did not enter them into Islam, and that their turning to the angels, or Prophets, or the *awliyā* in order to obtain their intercession or to come closer to Allah through them, that it was this fact that made their life and property permissible. Then and only then will you realise the exact meaning of the *Tawḥeed* that the Prophets called them to, yet the *mushrikeen* arrogantly rejected.¹⁷

Readers may be forgiven for being taken aback, or at least, the discerned readers of this series, with the utterly baseless and fabricated claims which were made by MIAW in this long quote. Calling upon the angels by the Arab *mushrikeen* had nothing to do with their ‘righteousness’ or proximity to Allah. Rather, the *mushrikeen* believed, as attested to by the clear text of the Qur’ān, that they were perceived as being the daughters of Allah – being of divine essence, lineage and nature. As we have exhaustively outlined previously,¹⁸ the Prophet Jesus was not called upon because of him being a Prophet or even mortal, rather, the disbelievers called upon him as being ‘the son of God.’ In their view, the Messiah, was a divine heavenly being, equal to the Father in essence. As for the nonsense regarding al-Lāt, that myth should be completely done away with. In all likelihood, such a person never existed; even if he did, he was most likely a custodian at one of the pagan temples dedicated to their false gods. As such, he could never have been a ‘righteous man,’ more likely a corrupt *kāfir* and a *mushrik*.

¹⁷ Readers may recall that the longer version of this quote appears in Volume 2 [pp. 561/564] of this series. See: Muḥammad ibn ‘Abd al-Wahab, *Kashf al-Shubuhāt*, [p. 3]. For the English reader, a full translation of this work is available: Abu Ammar Yasir Qadhi (2003), *An Explanation of Muḥammad ibn ‘Abd al-Wahhāb’s Kashf al-Shubuhāt: A critical analysis of Shirk*, (Al-Hidaayah Publishing: Birmingham). We have opted for a more literal translation of the wording as expressed by MIAW. For a more interpretative translation one can consult Yasir Qadhi’s work in this respect [pp. 81, 90/92, 98].

¹⁸ Again, readers should refer back to the chapters on these matters which are in Volume 2 of this series.

The remaining analysis of MIAW’s comments have been analysed elsewhere in this present work.¹⁹ Suffice is to conclude here by stating that the *mushrikeen* never acknowledged *Tawheed al-Rububiyyah*, irrespective of how one may seek to define it, and the *mushrikeen* never worshipped any Prophet - had they truly believed in the Prophethood of even a single Prophet, they would not have been *mushrikeen* in the first place!

¹⁹ The highlighted portions of the long quote from MIAW are restated at this juncture by the Professor after which he provides his concluding analytical points. For the translation here, the repetition of these highlighted portions is omitted for ease of reading.

13. The 'ten nullifiers' formulated by MIAW

As already elucidated earlier, it is highly unfortunate that Muḥammad ibn 'Abd al-Wahhāb (MIAW) took the viewpoint of Imām Ibn Taymiyyah, with all its ambiguities and flaws, as if it were somehow the revealed wording of the Qur'ān, and made it from among his 'ten nullifiers.' This is set out in his collected works:

Know, that the *Nawāqid al-Islam* (nullifiers of Islam) are ten:

Firstly: *Shirk* in the worship of Allah alone; He has no partner. The evidence being, where He says: '*Allah does not forgive the joining of partners with Him; anything less than that He forgives to whoever He wills*,' [4: 48]. From this, is offering a sacrifice for other than Allah, like the one who sacrifices to the Jinn or to (the one in) the grave.

Second: *Wasā'it* (intermediaries) between himself and Allah, calling upon them and asking them for intercession, (it) is *kufr* by *ijmā'*.

Third: Whoever doesn't declare the *mushrikeen*, or has doubts regarding their *kufr* or considers their *madthab* correct, (it) is *kufr* by *ijmā'*.

Fourth: Whoever believes that the guidance of someone other than the Prophet peace and blessings be upon him is more perfect than his guidance. Or, that the *Hukm* (judgement) of other than him is better than his *Hukm*, like those who prefer the rule of the *Ṭāghut* over his rule, he is a *kāfir*.

Fifth: Whoever hates something that the Messenger, peace and blessings be upon him brought, even if he acts upon it, (it) is *kufr* by *ijmā'*. The evidence, (is) He the Almighty says: '*It is because they hate*

what Allah has sent down that He has caused their deeds to go to waste,' [47: 9]

Sixth: Whoever mocks anything regarding the *Deen* of Allah, its reward, or its punishment, (it) is *kufr*. The evidence, (is) He the Almighty says: '*Say, "Were you making jokes about Allah, His Revelations, and His Messenger? Do not try to justify yourselves; you have gone from belief to disbelief"*,' [9: 65/66].

Seventh: *Sihr* (magic, sorcery) which includes *al-Ṣarf* and *al-ʿAṭaf*. Whoever practices it or is pleased with it, (it) is *kufr*. The evidence, (is) He the Almighty says: '*(They) never taught anyone without first warning him, "We are sent only to tempt—do not disbelieve"*,' [2: 102].¹

Eighth: Backing or supporting the *mushrikeen* and aiding them against the Muslims. The evidence, (is) He the Almighty says: '*Anyone who takes them as an ally becomes one of them—Allah does not guide such wrongdoers*,' [5: 51].

Ninth: Whoever believes that some people should not follow him, peace and blessings be upon him, and that they can leave his *Sharī'ah* just as al-Khidr was able to leave the *Sharī'ah* of Moses, peace be upon them both, he is a *kāfir*.

Tenth: Disregard (or turning from) the *Deen* of Allah, neither learning nor acting upon it. The evidence, (is) He the Almighty says: '*Who does more wrong than someone who, when messages from his Lord are recited to him, turns away from them? We shall inflict retribution on the guilty*,' [32: 22].

There is no difference – in respect of (the commission of) these nullifiers - between the one in jest, the studious or one who fears. The exception to this is the one under duress. All of these (nullifiers) are of the most dangerous matters and the most common in occurrence. Hence, a Muslim should be cautious about them and fear for himself

¹ This is only a snippet from the entire verse at [2: 102] which is much longer and reads as follows: '*And followed what the evil ones had fabricated about the Kingdom of Solomon instead. Not that Solomon himself was a disbeliever; it was the evil ones who were disbelievers. They taught people witchcraft and what was revealed in Babylon to the two angels Harut and Marut. Yet these two never taught anyone without first warning him, "We are sent only to tempt—do not disbelieve."* From these two, they learned what can cause discord between man and wife, although they harm no one with it except by God's leave. They learned what harmed them, not what benefited them, knowing full well that whoever gained [this knowledge] would lose any share in the Hereafter. Evil indeed is the [price] for which they sold their souls, if only they knew.'

(from falling into them). We seek refuge in Allah from the causes of His wrath and a painful punishment; and may the prayers and blessings of Allah be upon Muḥammad.²

We notice, first of all that restricting the major nullifiers to these ten alone has no evidence to support it; rather, it is a mere assertion. MIAW is not known for complete inductive reasoning or for meticulous precision. In fact, he is as far from them as East is from West, as has become evident, and will become even more so, through our present discussion. As for the first nullifier, it is poorly formulated. For it ought to be said: ‘associating partners with Allah,’ or ‘worshipping other than Allah.’ The appended phrase: ‘*Alone, with no partner*’ following the Majestic Name is devoid of meaning in this context; this man was unaware of the thoughts that come from his mind, nor of what he set down with his pen. Nonetheless, the first nullifier may be accepted, by way of leniency, on the condition that the term ‘*Ibādah*’ is correctly defined, as we have clarified it, and not as the definition he alluded to in his saying: ‘slaughtering for shrines,’ which is a meaningless expression. For there exists no one in the world who slaughters for shrines; rather, the slaughter is directed to the *occupant of the shrine*, i.e., the buried individual. Then what is the belief regarding the buried individual? Is it a belief that makes him a god besides Allah? Or is it a different type of belief, one which might be invalid and based on superstition, yet does not render him a god besides Allah?

Then what does it mean to slaughter for someone? And what is the intention behind it? Perhaps it is a sacrificial offering or a charitable act on his behalf, or a banquet for the visitors to his shrine. Yet people may have been imprecise in the way they express it, saying slaughtered *for him* instead of the more precise phrase: slaughtered *on his behalf*. Likewise, ‘one who slaughters for the *Jinn*,’ what is his belief regarding the *jinn* and their nature? Does he, for example, believe that they are evil creatures who do not go beyond Allah’s decree and dominion, have no ability to escape Him, nor can

² See: *Mu’wallafāt al-Shaykh al-Imām Muḥammad ibn ‘Abd al-Wahhāb* [Vol. 1, p. 212 (onwards)]. Readers in English can access the text as it is widely published, often with extended commentaries, as ‘*The Ten Nullifiers in Islam*.’ While we have had due regard to the various published translations, we have a) introduced referencing for the verses in parentheses and b) tried to stick as closely to the Arabic wording as originally presented. Readers will note that many of the terms are left transliterated rather than opting for introducing formal translation that may require additional explanation or annotation.

they elude His control? Accordingly, when a human being offers them a sacrifice, it is to protect himself from their harm, just as one protects himself from the harm of the wild beast by throwing it a carcass to distract it, allowing the person who offered it to flee. This is delusion, not *Shirk*. Indeed, the devotees of MIAW may argue, ‘What he intended was a devotional slaughter or sacrificial slaughter; he did not intend any of the things you mentioned.’ So we say: The matters of Islam and disbelief, of *Tawḥeed* and *Shirk* are too grave to be left at the mercy of speculation, assumptions, doubts, and baseless claims; perhaps he intended this, or maybe he meant that. Moreover, what do you mean by saying: ‘He intended a devotional slaughter?’ Then, what does the ‘*Ibādah*’ mean? And so we go around in endless circles of baseless claims and presumptions, until you define ‘*Ibādah*’ correctly in accordance with its reality, free of contradiction, comprehensive and exclusive. There exists no precise definition in the world that meets this standard except our definition: worshipping other than Allah is only attributing any aspect of divinity to other than Allah, according to the well-known equation:

عبادة غير الله = نسبة شيء من الألوهية لغير الله

Worshipping other than Allah = Attributing any aspect of divinity to other than Allah

This necessarily requires that the states of the heart, emotions and psychological reactions, and voluntary words and actions fall within the scope of the term ‘*Ibādah*’ defined by the definite articles the *alif* and the *lām*, or by possessive construction, or by a complete sentence, is to be limited only to those associated with, devoted to, or directed toward one in whom some form of divinity is believed. Based on that, the correct definition of *al-‘Ibādāt* (acts of worship), plural of ‘*Ibādah*’ (act of worship), is, necessarily and inevitably, as follows:

al-‘Ibādāt: are states of the heart, emotional and psychological reactions, outward and inward words and actions, and specific rituals (a ritual refers to a combination of actions and utterances arranged in a particular manner), associated with, directed toward, or devoted to one in whom some form of ‘divinity’ is believed, in order to show reverence, veneration, and sanctification for him; or to express

submission, humility, and surrender before him; or to seek closeness to him, intimacy in his presence, and the attainment of his pleasure and love; or to seek his kindness, grace, and bounty; or to seek his help in warding off harm or bringing about benefit; or to avert his wrath, retribution, or punishment; and perhaps even to avoid his evil or harm, and similar purposes.

Thus, what people refer to as ‘*Ibādāt* (acts of worship), *sha‘ā’ir* (rituals), or *manāsik* (rites) are not the essence or ‘*Ibādah* itself, but rather an expression, manifestation, or application of it. As for the remaining nullifiers he mentioned, some of them require further elaboration and refinement, with particular regard to ‘The Third Nullifier,’ for it is, as mentioned there, dangerously ambiguous. Especially given that he falsely accused certain individuals of *Shirk* though they are among the people of Islam. Accordingly, his third nullifier is rendered invalid and refuted, most regrettably. It appears that he formulated this nullifier in such a manner only to demonise his opponents, declare them disbelievers, and slaughter them. Indeed, this occurred historically: a grave crime repeatedly perpetrated, step by step, by the criminal state in Iraq and the Levant - *Daesh*!

The fourth and tenths ‘Nullifiers’ both derive from a single principle: the obligation to follow Muḥammad, the Messenger of Allah and Seal of the Prophets; that is, the testimony that Muḥammad is the Messenger of God. Hence, there is no need to treat them separately. Likewise, the fifth and tenth nullifiers are not properly formulated, for the matter of *karāhiyyah*, ‘hatred’ mentioned in the verse refers to the hatred of rejection and denial, and not the hatred of fighting, which is a natural, instinctive hatred. The same applies to *i‘rāḍ*, ‘turning away’; it must be defined as the turning away of rejection and denial. Once this is established, there remains no need to distinguish between the two alleged nullifiers; it is nothing but a single matter: the disbelief of rejection and denial, which appears sometimes as hatred, at other times as arrogance, and at others as turning away, and so on.

Concerning nullifier seven, *al-Siḥr*, magic or sorcery, it is, in its absolute form, a pure mistake. The eighth nullifier is extremely serious, for it is not limited to belligerent disbelievers, nor to incitement of disbelievers to engage in war against Muslims, nor even to supporting the disbelievers against Muslims by disclosing military and security secrets to them. Such

specification is necessary, as we have thoroughly examined and analysed, praise be to Allah, in our book *al-Muwālāt wal-Mu‘ādāt*, which the esteemed reader can refer to. The analysis of this matter is critically important in general, and particularly so in our times, as Muslims are facing one of the fiercest and most malicious attacks by the belligerent, aggressing disbelieving enemy: namely, the attack of the United States of America, Israel, and their allies. Then this heretic *Azraqi* went so far as to conclude his brief text with more mistakes: he made a serious and destructive mistake by limiting the excuse to the compelled individual only, without mentioning the additional grounds for declaring a specific individual an unbeliever, *takfīr al-mu‘ayyan*, such as *jahl* (ignorance), *ta‘weel* (misinterpretation), *riwāyah* (transmission of a report), *ḥikāyah* (quotation), *shahādah* (testimony), and similar causes. However, analysing this matter is to be elsewhere. The problematic consequences resulting from this outrageous chaos in defining *al-‘Ibādah* are brought to light again in another statement found in the text, *al-Risālah al-Sunniyyah*:

If during the time of the Prophet peace and blessings be upon him, there were those who claimed affiliation with Islam yet apostatized from it despite their great acts of ‘*Ibādah*. Then, it should be recognised that one who claims affiliation to Islam and the *Sunnah* in these times may also apostatize from Islam, and this is caused by various reasons, among them *ghulūw* (excessiveness) which Allah has condemned in His Book, where He says: ‘*People of the Book, do not go to excess in your religion*,’ [4: 171]. Likewise is the case of *ghulūw* regarding certain scholars or even excessiveness concerning Ali ibn Abi Ṭālib, or the Messiah, peace be upon him. Indeed, whoever goes to excess in regard to a Prophet or a righteous man, attributing to him any aspect of divinity, such as saying: ‘O my master so-and-so, grant me victory, or rescue me, or provide for me, or mend me, or I am under your protection,’ and similar expressions.

All of that is considered *Shirk* and *Ḍalāl* (misguidance). Its perpetrator is to be called to repent; if he does not repent, he is to be put to death. For Allah only sent the Messengers and revealed the scriptures so that He be worshipped alone, and that no other god be called upon with Him. Those who invoke other gods besides Allah, such as the Messiah, the angels, or *Aṣnām* (idols), did not believe that

these beings brought creation into existence, or that they sent down the rain, or caused vegetation to grow. Rather, they worshipped them, or worshipped their graves, or worshipped their images, saying: '*We only worship them because they bring us nearer to Allah*,' [39: 3] and saying: '*These are our intercessors with Allah*,' [10: 18]. Therefore, Allah sent His Messengers to forbid calling upon anyone besides Him, whether through the invocation of '*Ibādah*' or the invocation of help.³

Here, the author corrected himself and expressed well when going to excess in relation to the Prophet or righteous man by including reference to any aspect of divinity. He explained that the destructive excessiveness, condemned by the verse, is to attribute some aspect of divinity to the one in whom the excessiveness occurred. Then it is as though he could not remain patient upon the truth except for a brief moment, so he quickly tore down what he had just established, like the one who unravels her yarn after it was spun strong into strands, when he explained divinity as: 'Attributing to him any aspect of divinity, such as saying: 'attributing to him any aspect of divinity, such as saying: 'O my master so-and-so, grant me...' considering all of this as *Shirk* and *Ḍalāl*. Thus, he considered just *saying* one of those phrases equivalent to declaring the one being called upon, or from whom something is requested or sought, a god. Indeed, By Allah, the matter of 'divinity' has been trivialised, if this is what it supposedly means!

Had Allah enlightened the author and guided him toward careful reflection, and had he recited the verse to its end and considered other verses of the Qur'ān that address the same subject, he would have realised that the excessiveness of the Christians regarding the Messiah is that they attributed to him, i.e., believed about him what is contrary to the truth, namely, that he is god, or the son of god, or one of a Trinity, and that, in any case, he is a fully divine god, equal to the father in essence - true god from true god, light from light. So how does this compare to the weak expression that was utilised: 'O

³ The text has been attributed to Ibn Taymiyyah, as the Professor discusses later on. In the Arabic edition these references to this are included at a later juncture. For the translation they are included here immediately after the quote: *al-Dorar al-Soniyyah fī al-Ajwiba al-Najdiyyah*, compiled by 'Abd al-Rahman ibn Muḥammad ibn Qāsim [Vol. 1, p. 425, Vol. 8, p. 213 and Vol. 10, pp. 164, 518], and in *Mufīd al-Mustafīd fī Kufr Tārik al-Tawḥeed* - published within *Mu'allafāt al-Shaykh Muḥammad ibn 'Abd al-Wahhāb*, [Vol. 1, p. 291]; in *Minhāj al-Ta'sīs wal-Taqdīs fī Kashf Shubuhāt* by Dāwūd ibn Jurjīs [p. 249] as well as many others.

my master, I am under your protection,' or 'O Jesus, I am under your protection?' Yes, this expression *may* come from one who holds, concerning Jesus, son of Mary, peace be upon him and his mother, the blasphemous beliefs we have mentioned. Hence, it would be considered an act of worship directed toward him, an act of *kufr*, *Shirk* against Allah and a reflection of that malicious belief which, as a mere belief in itself, is *Shirk* and *kufr*. This expression, along with similar statements, may be made without such a belief, or may reflect an inaccurate expression of a correct meaning. All of the aforementioned would not fall under the category of *Shirk* and *kufr* but rather would be subject to examination in terms of what is permissible and forbidden recommended and disliked or wrong and right and similar matters. Moreover, the author, may Allah forgive him, went further in error; in fact, he exceeded all limits and made the most offensive claim when he said: 'Those who invoke other gods besides Allah, such as the Messiah, the angels, or *Aṣṇām* (idols), did not believe that these beings brought creation into existence....' as already mentioned above. These are wild, baseless claims; rather, they are undeniable errors, definitively established as errors from various angles.

Firstly, the Messiah, being considered 'as god;' the creator, the one who sends down rain and causes vegetation to grow, and being considered as the son of god, he is some part of god, or a person of the Trinity, or the third person of the three, necessarily participates in that, in one way or another, and being considered 'the word of god;' he is the 'instrument' of creation (if the expression may be permitted), for god creates by means of the 'word.' Calling upon or worshipping the Messiah, herein, is directed to him in himself, because he is, in himself, a true god deserving of that. Besides, such worship is pleasing to the other persons (of the Trinity, for they are three-in-one and one-in-three. They are, according to the Trinitarian Christians, a 'blessed and harmonious communion' that has reached the utmost degree of unity and love: they love one another with complete love, and each is pleased for the other with what he is pleased for himself, to the utmost degree of satisfaction!

Second, with regards to the angels, according to Quraysh, they are divine beings, the daughters of god from his essence, whose mothers are the female jinn, and this is enough for you as *Shirk* and *kufr*. We do not know whether Quraysh *believed* that they participated in the creation of creatures, or in sending down the rain, or in causing vegetation to grow. However, we know with certainty that they held that they are the beloved and pampered ones, who

intercede with their Father, absolutely without permission, an intercession that is never refused, or it would hardly be refused, as they belong to a divine and heavenly 'essence' and 'lineage.' This, in itself, constitutes doctrinal *Shirk* and *kufṛ*. Yes, the predominant belief in this matter seems to have been that the calling upon and worship of these beings was due to the fact that they grant nearness to god and intercede with him by an intercession that would not be rejected and required no permission, for they are the favoured daughters, the beloved and pampered ones!

As for the angels, according to the star-worshippers they are celestial intellects, souls, or spirits - divine beings serving as intermediaries between god (whom they refer to as the first intellect or the first cause), rank by rank up to the lunar sphere, which is the lowest of these celestial intellects of divine essence, and the lower world: the world of created beings, the world of death, corruption, and decay, both directions, ascending and descending. For Allah, May His Majesty be Glorified, does not act directly, if He acts at all (some of their doctrines maintain that He is conscious only of His own essence and perceives nothing other than Himself. Supplication does not ascend to Him directly, but rather passes through the lower intellects, rank by rank, then each sphere executes its designated function according to its specialization. Afterwards, it 'raises' the rest upward. What, then, a hierarchical divine dominion this is! And this is enough for you as falsehood, *Shirk* and *kufṛ*. In this type of belief, supplicating and worshipping them is not only because they bring one closer to Allah and intercede before Him with an intercession that cannot be rejected, but also because they possess authoritative powers and exercise absolute final judgment over certain matters, without any referral to a higher authority at all. Therefore, they have a degree of agency and autonomy that cannot be found among the pitiable 'Angels of Quraysh,' whose powers are limited!

Next, there has never existed, anywhere in the world, a grave that has been worshipped; rather, the one worshipped, if it was worshipped at all, is the buried individual. It is necessarily known that whoever calls upon him or requests something from him does so based on the belief that he is alive, present, hearing, seeing, and responding. This belief, although it is entirely invalid, does not constitute a belief in the *Uluhiyyah* (divinity) of the buried individual, neither in its fullest nor in its partial sense. If there exists any belief of 'divinity,' in its correct definition, in the buried individual, then calling

upon and requesting from him becomes '*Ibādah* and *Shirk* that expels one from the fold of Islam. If such a belief entailing unbelief is absent, then there is no *Shirk Akhbar* that would expel one from the fold of Islam. Yes, there may be a sin or a prohibited innovation, or even *Shirk 'Amālī Aṣghar* (minor practical polytheism), which does not expel one from the religion. Nonetheless, all of the aforementioned belong to a different chapter, entirely distinct from *Shirk Akhbar* the *Shirk* of disbelief that is in complete contradiction to Islam, the one that expels from the religion, and leads to eternal damnation and everlasting fire, and which alone is the subject of our discussion in this context.

There has never existed, anywhere in the world, someone who worships images; rather, the '*Ibādah*, if it is true '*Ibādah*, is directed toward the person or essence it represents. As for the image, considered as such, it has never been worshipped. However, the worshippers of idols, representing a *specific* category of statues and images, believe that gods indwell them, are intrinsically connected to them, that the idol serves as god's complete representative, or that it functions as the god's body. Based on that, it is permissible here, and only in this case, to say: 'this individual worships the idol,' as used in the Qur'ān, and who delivers a more perfect discourse as Allah? In fact, this is a figurative expression, as a brief summary of the lengthy sentence: 'A given individual worships a certain god, which has inhabited, indwelt, or united with the idol. Consequently, the idol has become its symbol, called by its name, occupying its position, as though it were the god itself! This was accompanied by a serious inaccuracy in expression, as in his saying: 'they worship their graves, or they worship their images.' Such phrasing might, with difficulty, be accepted by the ignorant common folk or among disputatious individuals who call each other by offensive nicknames. As for scholars engaged in authoring works - surely to Allah we belong and to Him we will return!

Therefore, you can see the extent of the grave flaw and fatal error in this brief text, entitled *al-Risālah al-Sunniyyah* and has been attributed to Imām Ibn Taymiyyah. Although I find it extremely difficult to accept the attribution of this debased thought and unsound speech to the author of *Dar' Ta'āruḍ al-'Aql wal-Naql* and *al-Radd 'Alā al-Manṭiqiyyīn*, who was acknowledged by both followers and opponents as a genius among the most intelligent scholars of the world! We would thus argue that if this nonsense is *confirmed* to have

come from Ibn Taymiyyah, then perhaps it is an instance of the saying: ‘Between genius and madness is a hair’s breadth.’ So, when a genius errs, especially when driven by passion and the desire to guard the faith and defend the sanctuary of *Deen*, it could lead to what may resemble the ravings of the insane! Protection from such obsession and madness is realized through the firm conviction that Allah has guaranteed the preservation of the revelation and manifestation of the *Deen*. Consequently, there is no justification for pathological fear regarding this matter; rather, the proper way to protect it is through listening to and obeying His commands:

يَا أَهْلَ الْكِتَابِ لَا تَغْلُوا فِي دِينِكُمْ، وَلَا تَقُولُوا عَلَى اللَّهِ إِلَّا الْحَقَّ إِنَّمَا الْمَسِيحُ عِيسَى ابْنُ مَرْيَمَ رَسُولُ اللَّهِ وَكَلِمَتُهُ أُلْقَاهَا إِلَى مَرْيَمَ وَرُوحٌ مِنْهُ فَآمِنُوا بِاللَّهِ وَرَسُولِهِ وَلَا تَقُولُوا ثَلَاثَةً انْتَهُوا خَيْرًا لَكُمْ إِنَّمَا اللَّهُ إِلَهٌ وَاحِدٌ سُبْحَانَهُ أَنْ يَكُونَ لَهُ وَلَدٌ لَهُ مَا فِي السَّمَاوَاتِ وَمَا فِي الْأَرْضِ وَكَفَى بِاللَّهِ وَكِيلًا

*People of the Book, do not go to excess in your religion, and do not say anything about Allah except the truth: the Messiah, Jesus, son of Mary, was nothing more than a Messenger of Allah, His word, directed to Mary, a spirit from Him. So believe in Allah and His messengers and do not speak of a ‘Trinity’ – stop [this], that is better for you, Allah is only one God, He is far above having a son, everything in the heavens and earth belongs to Him and He is the best one to trust.*⁴

And as he, peace and blessings be upon him and his family, commanded: ‘Beware of excessiveness in *Deen*; for those before you were only destroyed by excessiveness in *Deen*.’⁵ However we find the following cited in the *Sharḥ Kitāb al-Tawḥeed*:

He the Almighty said: ‘He would never command you to take angels and Prophets as lords. How could he command you to be disbelievers after you had devoted yourselves to Allah,’ [3: 80]. And this exactly is what is believed by those who call [دعا] upon the Prophets and *al-Ṣāliḥeen* (the righteous). For this reason, they ask them to fulfil needs,

⁴ *Qur’ān*, 4: 171

⁵ As per the famous authentic *ḥadīth* narrated by Ibn ‘Abbās which appears across the corpus of *aḥādīth*.

relieve distress, and heal the sick and the afflicted; it is thus established that it is *Shirk*.⁶

Here I would argue that the error which the author makes is slightly less severe, given that he has attributed everything to what they believe in. Yet despite this, he claims that the belief of the one who calls upon the Prophets and the righteous is *exactly* what the verse refers to regarding ‘taking them as lords.’ This isn’t necessarily the case. What he mentioned of statements and types of supplication does not necessarily imply that, even if it happens rarely in some cases, as we have previously stated. And if the discussion is about the people of Islam, the foundational certainty is that it is not the case, unless decisive and conclusive evidence has been established, because whoever levels the charge of being a *kāfir* at his brother and he actually isn’t, then it returns back upon him.

It seems to us that the honourable readers may well have grown weary of the repeated citation of these texts and of the continual responses to them. The texts resemble one another, and the responses are similar, most of which are direct quotations of Imām Ibn Taymiyya’s words in their original phrasing. Even where there is editing or refinement by the Wahhābis, it tends toward further exaggeration of error, at times reaching the level of absurdity, and the excess in religion to the point of obsession and madness. Perhaps it suffices to stop here, which, for the seeker of truth, is more than sufficient, Allah willing. We also hope that the matter has become so clear in the minds of the

⁶ Unfortunately the Professor doesn’t clarify specifically which *Sharḥ*, or commentary on MIAW’s book this is taken from, given that there are many. We have located this as a statement stemming from Sulaymān al-Shaykh. This is found in: *Mughni al-Mureed al-Jāmi’ li-Shuruḥ Kitāb al-Tawḥeed li-Shaykh al-Islam Muḥammad ibn ‘Abd al-Wahhāb* [online edition, *The Internet Archive*, p. 1194 (accessed 25 Jul-2025)]. The concept features in many of the English publications related to the commentary of MIAW’s book, for example: ‘Intercession: ‘The author only mentions intercession among these chapters because the *mushrikin* defended their *Shirk* and their calling upon the angels, prophets and *awliyā*’ by saying, “We know that they are just creatures without authority, but since they are honoured for their sake by Allah, and granted a high position, we call on them to bring us nearer to Allah, and so that they will intercede for us with Him. Just like one would do with the advisors of the kings and sultans, requesting them to mediate in order that their needs be taken care of and their problems solved.” This is the greatest of falsehoods.’ See: Allamah ‘Abd al-Rahman al-Sa’di (2003), *An Explanation of Muḥammad ibn ‘Abd al-Wahhab’s Kitāb al-Tawḥid*, Translated by Abu Khaliyl (al-Hidayah Publishing: Birmingham) [pp. 105/106].

readers to the extent that it feels almost tangible, physically perceptible, and not merely apprehended by the intellect.

14. Scholarly controversies

As has to date been exhaustively set out, ultimately what is truly significant is the nature, essence and reality of conceptual content, irrespective of varying names and expressions that may be attached to them. Therefore, we note with a sense of clarity, precision and poignancy that whoever believes in the following, be it part of it or whole, or even something similar, has attributed some of the qualities of *Uluhiyyah* - divinity, thereby namely conferring a deservingness of *‘Ibādah*, has made another god or deity alongside or besides Allah. Examples indeed abound, but these can be summarised here as they relate to claims that someone or another being / entity *other than* Allah manages the universe independently of the will, decree and permission of Allah; or that this being or entity possesses power and control comparable or rivalling that Allah, even if only in a single matter. That certain beings or entities have the power to escape Allah by flight, or that they have the ability to provide protection against Allah, which some of the pagan Arabs believed regarding the *Jinn*. Or that any besides Allah has the right of intercession with Him that must be accepted, without His express permission, perhaps even arising from claiming that this is due to beings or entities being His ‘offspring,’ again like the pagan Arabs claimed. Or the attribution to other than Allah the matter of creation, bringing existence into being, as the dualists claimed with regard to what they termed as the ‘god of evil,’ Ahriman.

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Even where there is editing or refinement by the Wahhābis, it tends toward further exaggeration of error, at times reaching the level of absurdity, and the excess in religion to the point of obsession and madness. Perhaps it suffices to stop here, which, for the seeker of truth, is more than sufficient, Allah willing. We also hope that the matter has become so clear in the minds of the readers to the extent that it feels almost tangible, physically perceptible, and not merely apprehended by the intellect.

Whoever ascribes to any being or entity such qualities, or anything comparable to them, has thereby attributed to it some of the characteristics of *Uluhiyyah* that is, entitlement to *'Ibādah*. By so doing, he has made it, alongside Allah, another *Ilāh*. This holds irrespective of his other doctrinal assumptions concerning it. It is not required that he believe it to be *Azalī* (pre-eternal), *Wājib al-Wujūd* (necessary in existence), or that it subsists in a divine *'unṣur* (element), *jawhar* (substance), or *jins* (genus). Rather, it is entirely conceivable that it is contingent and created, as with the supposed 'god of evil' posited by some sects of the Magians. Nor is it required that he hold it to be the product of *ittiḥād* (union), *tajassud* (incarnation), or *ḥulūl* (indwelling) of Allah in a creature. It is even conceivable that it attained the rank of divinity through *taraqqī* (ascent or progression), having transformed into a divine being after not being so. Nor is it necessary that he ascribe to it *khāliqiyyah* (creativity), *rāziqiyyah* (provision), or positive efficacy. It suffices that he attribute to it an independent negative efficacy: such as the capacity to hide from God or to render Him incapable by escape.

Secondly, regardless of its designation, whether he calls it an *Ilāh* (god), *Shayṭān* (devil), *Malak* (angel), a 'celestial intellect,' a higher or lower spirit or anything else. It is also regardless of his affective stance towards it, whether he loves it, detests it, or is indifferent, or whether or not he offers *sha'ā'ir* (rituals) or *qarābīn* (sacrifices) to it. Moreover, it is also regardless of the nomenclature given to such acts: whether explicitly termed *'Ibādah* or described as *du'ā'* (supplication), *nidā'* (invocation), *takrīm* (honouring), *iḥtirām* (respect), *tawassul* (intercessory mediation), *wasāṭah* (intermediation), or *istishfā'* (seeking intercession). The decisive factor lies in the substance and reality of the belief itself, and not necessarily in the terminologies employed. Every act of *tadhallul* (abasement) and *khudū'* (submission) constitutes genuine worship, irrespective of the label applied to

it. It is worship in reality, even if denominated *nidā'*, *takrīm*, *iḥtirām*, *tawassul*, or *wasāṭah wa-istishfā'*.

Likewise, whoever claims that there exists for other than Allah the right of *tashrī'* (legislation), whether he calls that *Uluhiyyah* (divinity), or *Rububiyyah* (lordship), or names it the exercise of sovereignty and freedom, or attributes it to the sovereignty of the people or the state, or traces it back to the 'divine right of kings,' or to a *tafwīd* (delegation) from Allah to the 'College of Cardinals,' or lies against Allah by naming it 'legitimate obedience to those in authority,' such as the accursed 'Levantine obedience.' Whoever asserts any such claim and attributes it to other than Allah has thereby made that entity a *Sayyid* (master) and a *Rabb* (lord) besides Allah. By virtue of that belief, he is a *mushrik kāfir*, a worshipper of that entity besides Allah; his deeds are nullified and his striving brought to ruin. If he obeys such an authority on the basis of that belief, then that obedience constitutes *'Ibādah*; it is an increase in *kufr* and *Shirk*. Thus the decisive factor, always and forever, is the content and reality of the belief, not necessarily the terminologies employed. Every act directed towards such an entity of *ṭā'ah* (obedience), *ittibā'* (following), and *iltizām* (commitment) to its commands and prohibitions, is genuine *'Ibādah*, regardless of the label its practitioner applies to it. It is *'Ibādah* in reality, even if denominated *takrīm* (honouring), *iḥtirām* (respect), 'respect for the law,' or *khudū' li-l-nizām* (submission to the system).

Thus, *al-'Ibādāt* 'acts of worship,' are therefore: *aqwāl wa-af'āl zāhirah wa-bāṭinah* (external and internal words and deeds) intended for the purpose of: manifesting *tadhallul* (abasement) and *khudū'* (submission), *sam'* (hearing) and *ṭā'ah* (obedience); or expressing *ta'zīm* (veneration) and *iḥtirām* (respect); or showing *tawaddud* (affection), *taqarrub* (seeking nearness), and manifesting *maḥabbah* (love); or requesting the attainment of *jalb al-manāfi'* (benefits) and the repulsion of *daf' al-maḍār* (harms), and showing *khashyah* (awe), *faqr* (poverty), and *ḥājah* (need) towards one believed to be inherently deserving of that - that is, the one believed to possess some of the characteristics of *Uluhiyyah* (divinity), among them *Rububiyyah* (lordship) and supreme inherent *Sayādah* (sovereignty). The decisive criterion in all of this is the *nature and content of belief* and the essence of the conceptual content, not necessarily the terminologies and expressions employed.

Fatal errors

The error of Imām Ibn Taymiyyah, and that of the misguided preacher, Muḥammad ibn ‘Abd al-Wahhāb (MIAW), and of those who imitated them from among the followers of the Wahhābi sect, lies in their falling into the same mistake as the *Khawārij al-Azāriqah* and *al-Najdāt* did, namely their failure to take ‘*Itiqād* (belief) into account in defining ‘*Ibādah*. They supposed it to be merely external and internal words and deeds, having no connection to the belief of the one who speaks or acts. This is a grave lapse and a fatal error. Nor is that all, it is also an abominable innovation, for they made that novel and fabricated definition the very intent of the Lawgiver, i.e., that it is the legitimate definition. This abominable innovation is in itself a major innovation - *bid’ah kubrā*, namely a *bid’at kufr* (innovation of unbelief). If its adherent persists in it after the clarification has been understood and the proof established, he is a disbeliever and ultimately departs from Islam. We seek refuge in Allah from such ignominy.

The principal error of the opponents, the opponents of the Wahhābi sect is either in their focus upon *al-qasḍ* (intention) and *al-niyyah* (motive), whereas these have no place here in the definition of ‘*Ibādah*, their place being rather in the determination of reward and punishment; or in their reliance upon names and expressions, whereas what is obligatory is to consider solely the reality of the belief and the essence of the conceptual content, nothing besides. For example, one of them might object by saying: ‘The *mushrikeen* made idols into gods whereas the Muslims only believed in one God; and in their view, the Prophets are merely Prophets, and the *awliyā*’ are merely as such, nothing more, they did not make them into gods like the *mushrikeen* did.’ The response to this is as follows - this is merely an attachment to names and expressions without inquiry into the substance of the belief. Naming the *Walī*, for example a *Walī*, does not necessarily mean that some who are affiliated to Islam do not hold concerning him a belief of *kufr*, which, in reality, renders him one taken as an *Ilāh* besides Allah. Yes, if the discussion concerns the *mushrikeen* then carrying their words and deeds upon *Shirk* and *kufr* at the outset and at first glance, is the foundational rule until proof arises to the contrary. Indeed, they usually declare explicitly with the words of ‘*Ibādah* and *Uluhiyyah* (divinity), though not always. For instance, one scarcely finds a secular Westerner who calls ‘the people’ a *Rabb* (Lord) or even an *Ilāh* (a

god); yet he grants them the right of *tashrī‘* (legislation), thereby making them, in effect, an *Ilāh* and a *Rabb* besides Allah. Such a person is thus a *mushrik kāfir*, his *Shirk* being *Shirk al-kufr* (polytheism of unbelief), wholly contrary to Islam, nullifying his deeds in their entirety, past and future, and expelling from the *millah* anyone who had previously been a Muslim among its people. Equally obligatory is to carry what appears from those affiliated to Islam of actions that may be thought to be ‘*Ibādah* directed to other than Allah as having been performed without a belief in *Uluhiyyah* in respect of the one to whom they are directed, at the outset and at first glance, until proof arises to the contrary.

Secondly, that the *mushrikeen* believed those *āliha* (gods) to be *mustaḥiqqūn li-l-Ibādah* ‘deserving of worship,’ whereas the Muslims did not believe that any of those through whom they seek *tawassul* (intercessory mediation) is deserving of even the least act of ‘*Ibādah*. In their view, none is deserving of ‘*ibādah* except Allah alone, exalted and glorified. And the response to this is: the *Ilāh* (deity) is the one *mustaḥiq li-l-‘Ibādah* (deserving of worship). Thus the statement: ‘The *mushrikeen* believed those *āliha* (gods) to be *mustaḥiqqūn li-l-‘ibādah* (deserving of worship), is a case of redundancy, of no benefit like saying, ‘The gods are gods,’ or ‘Water is water.’ It is a correct utterance, but devoid of substance. Therefore, it is necessary to specify the particular attributes that render one who possesses them an *Ilāh* besides Allah, and then the actions directed towards him thereby constitute ‘*Ibādah*. And perhaps here lies that hidden and pernicious circularity: the *Ilāh* (deity) is the *Ma’būd* (object of worship), and ‘*Ibādah* (worship) is everything that is directed towards the *Ilāh*.

Thirdly, that the *mushrikeen* in fact worshipped those *āliha*, as the Exalted has said, reporting from them: ‘*We only worship them because they bring us nearer to Allah*,’ [39: 3] whereas the Muslims, in their *tawassul* (intercessory mediation) by means of the Prophets and the *Ṣāliḥeen* (the righteous), fundamentally did not worship them. And the response to this is: this is once again that hidden circularity. For we cannot know concerning those actions which some of those affiliated with Islam directed towards the Prophets and the righteous, are they ‘*Ibādah* or not? Merely naming them *tawassul* (intercessionary mediation) does not resolve the problem. This is reliance upon names and expressions alone, and that is not permissible. There is no escape, therefore, but to adopt a sound definition of ‘*Ibādah* free of circularity

and contradiction. As for the vicious circle of statements that are either contradictory or mere redundancy, it is of no benefit and yields no result.

Following this comes the notion that the *mushrikeen* intended by their ‘*Ibādah* of *Aṣnām* (the idols) to seek *taqrīb* (nearness) to Allah, Exalted is He. As for the Muslims, they did not intend by their *tawassul* (intercessory mediation) through the Prophets and others to seek *taqrīb* to Allah, for *taqrīb* to Allah is only attained through ‘*Ibādah*. Hence Allah, Exalted is He, said, reporting from the *mushrikeen*: ‘*We only worship them because they bring us nearer to Allah*,’ [39: 3]. Rather, the Muslims intended *tabarruk* (seeking blessing) and *istishfā* (seeking intercession) through them. And *tabarruk* (seeking blessing) by means of a thing is not the same as seeking *taqrīb* by it, as is clear.

The response - this is not clarified unless we first establish that *tawassul* (intercessory mediation) is not ‘*Ibādah*. This however requires that we define *Ibādah* with a correct definition, free of circularity and contradiction. For if the one engaging in *tawassul* were to believe that the one through whom he seeks mediation or the one through whom he seeks intercession intercedes without need of permission; or that he has with Allah an intercession which cannot be refused; or that he can grant protection against Allah; or that he can escape from the grasp of Allah; or that he can render Allah incapable by flight - then he has made him a *nidd*, ‘a rival, peer’ in a rank equivalent to Allah, even if only in that particular respect. He has thereby taken him as an *Ilāh* besides Allah. By this mere belief, he is a *mushrik kāfir*; and his *tawassul* is then ‘*Ibādah* of other than Allah. It is, therefore, an additional increase in *Shirk* and *kufr*.

Blunders

In any case, al-Sayyid al-‘Allamah Muḥammad ibn Ismā‘il al-Amīr al-Ṣan‘ānī (d. 1768 CE) may Allah have mercy upon him, who was a contemporary of MIAW the founder of the Wahhābi sect, raised an objection regarding his ruling on those whom he called *al-Qubūriyyūn* – the ‘grave worshippers,’ namely, that they had fallen into *al-Shirk al-Akhbar* (major *Shirk*), the *Shirk* of unbelief and thus exited from the fold of Islam. Al-Ṣan‘ānī decisively rejected this, classifying them instead among the sinful people of Islam, for in his view they had fallen only into *al-Shirk al-Aṣghar* (minor *Shirk*).

As is found in *al-Fatḥ al-Rabbānī min Fatāwa’ al-Imām al-Shawkānī*:

What concerns us here is this - if it should be hidden from some of the people of knowledge what we have mentioned and established regarding those who hold beliefs about the dead due to some cause of obscurity previously noted, and he does not comprehend what we have presented of Qur’ānic and rational demonstrative proofs, then it is necessary to ask him: What is *al-Shirk*? If he replies: ‘It is to take along with Allah another, just as the (people of) *jāhiliyya* took *al-Asnām* (the idols) as gods along with Allah, Exalted is He,’ then say to him: And what did the *jāhiliyya* do for those *Aṣnām* which they took, such that they became *mushrikeen*? If he replies: They venerated them, offered sacrifices to them, *istighāthah* - sought aid through them, called upon them in times of need, slaughtered sacrificial animals for them, and other such acts included under the designation of ‘*Ibādah*, then say to him: For what reason did they do such acts for them?

If he replies: Because they believed them to be the *Khāliq* (creator), *Rāziq* (provider), *Muḥyī* (giver of life), or *Mumīt* (causer of death), then recite to him what we have already presented to you of Qur’ānic proofs declaring explicitly that they confessed that Allah alone is the *Khāliq*, *Rāziq*, *Muḥyī* and *Mumīt* and that they only worshipped them to bring them nearer to Allah. They said: ‘They are our intercessors with Allah.’ They did not worship them for any reason other than that. In such case he will agree with you inevitably, if he believes that the speech of Allah is true. And after he agrees with you, explain to him that those who hold beliefs concerning ‘the graves’ have done these very acts, or some of them, in the manner that we have established and reiterated in this treatise. Then if there remains in him any remnant of fairness, any glimmer of knowledge, and any portion of reason, he will inevitably agree with you; the obscurity will be removed from him, the clouds of heedlessness will dissipate from his heart, and he will confess that he was veiled from the meaning of *al-Tawḥeed* with which the *Sunnah* and the Book came.¹

Also from the same work:

¹ *al-Fatḥ al-Rabbānī min Fatāwa’ al-Imām al-Shawkānī* [Vol. 1, pp. 361/362 (*Shamela* edition)]

Among the doubts that presented themselves to some of the people of knowledge is what al-Sayyid al-‘Allamah Muḥammad ibn. Ismā‘il al-Amīr, may Allah have mercy upon him, asserted in his commentary on the verses, in which he begins: ‘I have retracted from the poem which I composed concerning the Nadji.’ For he said: the *kufr* of these who hold beliefs concerning the dead is *kufr ‘amalī* (practical unbelief), not *kufr juḥūdī* (unbelief of denial). He then cited what has been reported concerning the *kufr* of the one who abandons the prayer, as occurs in the sound *aḥādīth*, and the *kufr* of the one who abandons the pilgrimage in the saying of the Exalted: ‘Those who reject this [should know that] Allah has no need of anyone,’ [3: 97].

Then he commented: ‘Its clarification is that *kufr* is of two kinds: *kufr ‘amal* (practical unbelief) and *kufr juḥūd wa-‘inād* (unbelief of denial and obstinacy). *Kufr juḥūd* is that one rejects what he knows the Messenger has brought from Allah, out of denial and obstinacy; and this kind of *kufr* opposes ‘*Imān* in every respect. As for *kufr ‘amal* (practical unbelief), it is of two types: one that contradicts ‘*Imān*, and one that does not.’ He then transmitted the words of Ibn al-Qayyim concerning this matter. Then al-Sayyid mentioned said: ‘I say: and among this, that is, *kufr ‘amalī* is the one who calls upon the *awliyā*’ (saints), and invokes them in times of distress, and circumambulates around their graves, and kisses their walls, and makes vows to them of part of his wealth. For this is *kufr ‘amalī* not ‘*Itiqādī* (doctrinal unbelief), for he believes in Allah, His Messenger peace and blessings be upon him and the Last Day. But Satan has adorned for him the belief that these righteous servants of Allah benefit, intercede, and cause harm, and so they believed that, just as the people of *Jāhiliyya* believed that concerning the idols. But these affirm the *Tawḥeed* of Allah, not making the *awliyā*’ into *āliha* (gods/deities), as the unbelievers said in their denial of the Messenger of Allah peace and blessings be upon him when he called them to the word of *Tawḥeed* - ‘How can he claim that all the gods are but one God? What an astonishing thing [to claim]!’ [38: 5].

For those [disbelievers] truly made partners for Allah, and said in their *Talbiyah*: ‘*Labbayka lā sharīka laka illā sharīkan huwa laka tamlikuhu wa-mā malak*, (Here we are, You have no partner except a

partner who belongs to You, You own him and what he owns). Thus they affirmed for the idols partnership with the Lord of creation, even though their misguided phraseology implied that He has no partner, for if He owns that partner and what he owns, then he is not a partner of the Exalted but a mere possession. Hence the idol-worshippers who made *Andād* (peers/rivals) for Allah and took partners besides Him, and at times called them intercessors to bring them near to Allah, are in contrast to the ignorant Muslims who believed concerning their *awliyā*’ in benefit and harm. For they confess Allah’s Oneness, affirming His sole *Uluhiyyah* and they believed in His Messengers. What they did in their veneration of the *awliyā*’ is thus *kufr ‘amalī*, not ‘*Itiqādī*.

Therefore, it is obligatory to admonish them, to make them aware of their ignorance, and to restrain them, even by means of *ta‘zīr* (disciplinary punishment), just as we have been commanded to apply the *ḥadd*-penalties for the fornicator, the wine-drinker, and the thief - these being of the people of practical unbelief.’ To the point where he said: These are all prohibited abominations) from the practices of *Jāhiliyya* and are forms of *kufr ‘amalī*. And it is established that this *Ummah* engages in matters from the practices of *Jāhiliyya* which are *kufr ‘amalī* such as in the *ḥadīth*: ‘Four things in my *Ummah* are from the affairs of *Jāhiliyya* which they will not abandon: boasting of lineages, disparaging pedigrees, seeking rain by the stars, and wailing [for the dead].’ This was related by Muslim in his *Ṣaḥīḥ* from the *ḥadīth* of Abu Mālik al-Ash‘arī. These are forms of *kufr ‘amalī* which do not expel the *Ummah* from the *millah*. Rather, despite their committing these pagan traits, he attributed them to himself, saying: ‘from my *Ummah*.’

If you should say: the people of *Jāhiliyya* would say concerning their *Aṣnām* that ‘they bring us near to Allah,’ just as the *qubūriyyūn* (grave-worshippers/venerators) say, ‘These are our intercessors with Allah,’ as the *qubūriyyūn* declare, I reply: it is not the same. For the *qubūriyyūn* affirm *al-Tawḥeed* declaring that ‘there is no *ilāh* (god/deity) but Him.’ Even were his neck struck, he would not say otherwise. He holds that the *walī* (saint), by virtue of his obedience to Allah, has attained thereby a station of honour before Him, such that his intercession is accepted and his benefit hoped for, not that he is an

Ilāh (deity) alongside Allah. In contrast, the pagan-idolater refused to utter *Lā ilāha illā Allāh* – there is no god but Allah, even until his neck was struck, claiming that his idol is an *Ilāh* with Allah, and calling it a *Rabb* (Lord) and an *Ilāh* (god).

Yusuf, peace be upon him, said: ‘*Fellow prisoners, would many diverse gods be better than Allah the One, the All Powerful? [No indeed!]*,’ [12: 39]. He named them *Arbāb* (lords) because they themselves called them thus. Likewise, al-Khalil (Abraham) said: ‘*This is my Lord,*’ [6: 76/78], in three verses, interrogatively, reproaching them, speaking in their idiom, because they called the celestial bodies *Arbāb*. They also said: ‘*How can he claim that all the gods are but one God?*’ [38: 5]. And the people of Abraham said: ‘*Who has done this to our gods?...Was it you, Abraham, who did this to our gods?*’ [21: 59, 62]. Abraham said: ‘*How can you choose false gods instead of the true God?*’ [37: 86]. From this it is known that the *kuffār* did not affirm *Tawḥeed al-Uluhiyyah* nor *Tawḥeed al-Rububiyyah* as some have mistakenly supposed from His words...’² This is acknowledgment of *Tawḥeed al-Khāliqiyyah* (the Oneness of Creatorship) and *al-Rāziqiyyah* (the Oneness of Provision), and the like, (clearly) not acknowledgment of *Tawḥeed al-ālihah* (the Oneness of Divinity). For they made their idols *Awthān* (idols) *Arbāb* (lords), as you have seen. Thus this pagan *kufir* is *kufir ‘Itiqād* and from it necessarily follows *kufir ‘amal*. This is in contrast to one who believes concerning the *awliyā’* in benefit and harm, while affirming Allah’s *Tawḥeed* believing in Him, His Messenger, and the Last Day. This is *kufir ‘amal* (practical unbelief). This then, is a precise clarification and elucidation of what is the truth, without excess or deficiency.’ And here ends the words of the aforementioned al-Sayyid, may Allah have mercy upon him.³

Response and analysis

² Here the verses mentioned are those from the standard Wahhābist response, including [43: 87], [31: 25], [29: 61] and famously, [10: 31]. For the sake of brevity these are omitted to just the references included here, given the already exceedingly long citation.

³ Ibid [pp. 362/366]

In light of the above I would argue that the words of al-Sayyid al-‘Allamah Muḥammad ibn Ismā‘il al-Amīr, may Allah have mercy upon him, are generally sound, albeit with some notable exceptions. Foremost, he was not granted success in perceiving the true operative cause of the difference in ruling between the two cases, namely: the difference in the essence of the belief, and the fundamental divergence in conceptual content. For the people of *Jāhiliyya* believed concerning their *āliha* (gods) certain matters which rendered them *āliha* and *Arbāb* (lords) besides Allah. A small portion of this might have been related to *al-Khāliqiyyah* and *al-Rāziqiyyah* and the like; but much of it concerned *other* important and essential matters beyond these. Among the most significant being their supposed constitution stemming from a ‘divine genus’ or ‘divine lineage.’ We have already given in detail a full exposition of most of this. This is what matters, and this is the crux of the matter. It is not their naming of those objects of worship as *āliha* or *Arbāb*, nor their acknowledgment of partnership with Allah, as in the wording of the pagan *Talbiyyah*. Though these names and expressions are usually and, in most cases, though not necessarily strong indications of the presence of such unbelieving beliefs. As for the belief of those affiliated to Islam, concerning those among the dead or the *awliyā’* whom they call upon, it is fundamentally different or so it ought to be presumed of them, at first glance. What passes upon their tongues of names and expressions suggests that their beliefs are not necessarily unbelieving beliefs, even if it is possible that in some rare circumstances, they might be so which we pray to Allah are indeed rare. Thus the decisive factor is the essence of the belief and the conceptual content, not names and designations, nor merely affiliation to Islam or verbal utterance of the two testimonies.

Secondly, he erred in classifying some of the acts performed by those affiliated to Islam as, in their entirety, *kufir ‘amalī* (practical unbelief) or *kufir Aṣghar* (minor unbelief), without consideration of the conceptual and doctrinal content, and without consideration of the *Aḥkām Shari’*. For some of these may not constitute *kufir* whether practical or doctrinal at all, but are merely acts of disobedience, or even only disliked acts. And some of them, though rare and exceptional, may indeed constitute *kufir* expelling from the *millah*. As for *al-Kufir al-Aṣghar* (minor unbelief), as well as *al-Shirk al-Aṣghar* (minor polytheism), these are only classifications given by the Islamic Lawgiver and nothing else. For the designation may be applied to matters that

are in fact minor sins as will be demonstrated in the chapters on ethics and subsidiary matters. Meanwhile, certain grave and destructive major sins which approximate *al-Shirk al-Akhbar* (major polytheism) and *al-Kufr* that expels from the *millah* in their degree of sin, such as consuming the wealth of the orphan unjustly, false testimony, and the false oath, have not been named by the Lawgiver as *kufr* or *Shirk*, even if He has made them comparable to *Shirk* in sin and evil. Then the author of *al-Fatḥ al-Rabbānī* attempted to reply to al-Sayyid al-‘Allamah Muḥammad b. Ismā‘il al-Amīr, may Allah have mercy upon him, by saying:

I say: this statement, in precise analysis, is not a thorough clarification, but rather a contradictory and inconsistent discourse. Its explanation is that there is no doubt that *kufr* is divided into *kufr ‘Itiqād* (unbelief of belief) and *kufr ‘amal* (unbelief of action). But the claim that what the ‘those who hold beliefs concerning the dead’ do is *kufr ‘amal* (unbelief of action) is utterly corrupt. For he [al-Amīr] mentioned in this inquiry that the *kufr* of the one who believes concerning the *awliyā*’ is *kufr ‘amal* (practical unbelief) and this is astonishing. How can one say: the *kufr* of one who believes concerning the *awliyā*’, and then call this ‘*Itiqād* and yet afterwards say it is *kufr ‘amal* (practical unbelief)? Is this not sheer contradiction and pure inconsistency?

Observe how he mentioned at the beginning of the inquiry that everyone who calls upon the *awliyā*’ invokes them in times of distress, circumambulates their graves, kisses their walls, and makes vows to them from his wealth is committing *kufr ‘amal*. But I ask: what drives him to such *du‘ā*’, *istighāthah* (seeking of aid), kissing of the walls, and making of vows? Is it merely play and frivolity without any belief? Such a thing would only be done by a madman. Or is the cause that which impels him belief in the dead? How then can this not be *kufr ‘Itiqād* (doctrinal unbelief), without which none of those actions would ever have been performed?

Then observe how he himself admitted, after having ruled that this *kufr* is *kufr ‘amal* and not *kufr ‘Itiqād*, by saying: ‘But Satan has adorned for them that these are the righteous servants of Allah who benefit and intercede.’ Thus he [al-Amīr] acknowledged this belief and excused them by saying it was the belief of ignorance, just as the people of *Jāhiliyya* held concerning the idols. Consider how he ruled that this

is *kufr ‘Itiqād* like the *kufr* of the people of *Jāhiliyya*, affirming the belief, and then excusing it as a belief of ignorance. And what benefit is there in its being a belief of ignorance? For the various sects of unbelief and all the people of *Shirk* were only driven to unbelief, rejection of the truth, and persistence upon falsehood by a belief held in ignorance. Can anyone say that the utterance of the *Kalimat al-Tawḥeed* alone, without consideration of the actions that contradict it, and without regard for the beliefs from which those actions concerning the dead arise, suffices? Such a consideration should not be relied upon or occupied with. For Allah, Exalted is He, only looks to the hearts and to what actions proceed therefrom as a consequence of belief, not to mere words. Otherwise there would be no distinction between the believer and the hypocrite.⁴

I would argue that this is a strong rejoinder, formally speaking, wherein the author of *al-Fatḥ al-Rabbānī* succeeded in ‘twisting the arm’ of al-Sayyid al-‘Allamah Muḥammad ibn. Ismā‘il al-Amīr, may Allah have mercy upon him, casting him into a measure of contradiction. For these who are affiliated to Islam did not call upon the *awliyā*’ except that they necessarily possessed a certain belief as appears clearly from his words: ‘What drives him to such supplication and seeking of aid...’⁵ Moreover, he (al-Shawkānī) did well in clarifying that ignorance even if it may perhaps excuse from ultimate accountability in the Hereafter, does not alter the realities of things in themselves. A *mushrik* remains a *mushrik*, even if we were to suppose that he is excused by ignorance or by non-reception of the message. And superstition remains superstition, even if one supposes on account of some doubt or misconception that has occurred to him that it is a truth in conformity with reality.

Yet the argument of the author of *al-Fatḥ al-Rabbānī* must inevitably turn against him, for he did not perceive that there are idolatrous beliefs entailing disbelief) and others which are not so, even if they are perhaps false. He supposed that the matter was merely some kind of belief, any ‘*Itiqād* concerning the attainment of benefit or the repulsion of harm and the like,

⁴ Ibid. [pp. 367/368]

⁵ Here the paragraph from the citation above is repeated in the Arabic edition. For brevity this is omitted to just the first opening line.

rather than the type of belief, its subject, and its content. And we have already established that the mere belief that ‘such and such’ causes benefit or harm has nothing to do with *kufṛ* and *Islam* nor with *Shirk* and *Tawḥeed*. Otherwise, every person who believes that his donkey or his car is useful and beneficial would be declared a *mushrik* and *kāfir*. Yes, the disputants will hasten to say: ‘This is not, self-evidently, the kind of benefit and harm we mean!’ We then reply: well said, excellent, and just. Then show us the correct and precise distinction between every person’s belief in the benefit of a ‘car,’ or a ‘donkey,’ or a ‘bundle of wood,’ and the belief of the *mushrikeen* of the Quraysh in the benefit of al-Lāt, al-‘Uzza, and Manāt.

The author of *al-Fatḥ al-Rabbānī* continued his discussion of al-Sayyid al-‘Allamah Muḥammad ibn Ismā‘il al-Amīr al-Ṣan‘ānī, may Allah have mercy upon him, citing statements of Imām Ibn al-Qayyim, which indicate that he ruled those whom he called *al-Qubūriyyūn* – the ‘venerators or worshippers of graves,’ to be guilty of *al-Shirk al-Akhbar*, contrary to what Imām al-Ṣan‘ānī may have supposed of Ibn al-Qayyim’s words. But all of this, by the praise of Allah, does not concern us. For whether Ibn al-Qayyim said such a thing, or whether the understanding of Imām al-Ṣan‘ānī of his words was the correct one, since when have the statements of Imām Ibn al-Qayyim become authoritative divine texts?

The manifest truth by which we worship Allah is what we have already established with decisive proofs, through certain demonstrative arguments together with the refutation of the words of the opponents after having first clarified them with precision. Indeed, by the grace of Allah, we have even refined their statements and reformulated them better than they themselves expressed them. Then Allah bestowed His favour and opened the way for their refutation, statement by statement - all of this by the bounty of Allah and His grace, and by the blessing of the noble Qur’ān, when it is reflected upon with true reflection.

15. The Wahhabi sect’s distortion of the concept of worship

In conclusion to this present volume, we emphasise the fact that claiming certain acts, considered merely as such, deserve to be called ‘*Ibādah*, regardless of the perception or belief that precedes or accompanies them regarding the *maf’oul-bih* (the direct object of the action) or the *maf’oul-li-ajlih* (the intended purpose behind it), is not only a serious and deadly mistake but also a heinous innovation. Indeed, it is a religious ordinance that which Allah did not permit, and a great misguidance. All of this has resulted in catastrophic and disastrous consequences.

Firstly, this has resulted in attributing the labels of *Shirk* and *kufṛ* to many Muslims, and claiming that they have departed from the creed and they have severed ties with Islam. Thereupon, hatred was declared against them, the sword was unsheathed upon them, they started fighting them, and made their blood and wealth lawful. This is a great evil and a grave flaw that makes its perpetrator not only one of the heretic *khawārij*, but also the worst type and the most bloodthirsty of them: the *Azāriqah* and the *Najdiyyah*, who kill the people of Islam and spare the *mushrikeen* or, at the very least, oppose the people of Islam and form bonds with the *mushrikeen*. Indeed, this is what has manifested by the majority of states, formations, tribes, and groups that have adopted this malicious Wahhābi doctrine.

Secondly, this has also resulted in the distortion of the concept of ‘*Ibādah* until it was turned into a collection of ‘mere rituals,’ that are almost devoid of any substance which paved the way for absurd ‘obsessive’ discussions revolving around graves, shrines, and ‘saints.’ Unsurprisingly, al-Albānī for instance, would refer to the state of *al-Saud* as ‘the state of *Tawḥeed*,’ in the

same cassette tape in which he severely criticised it for bringing the American forces in to fight Iraq during the Kuwait Crisis, and the first Gulf War in 1991. According to him, it remains ‘the state of *Tawḥeed*’ while it allies with the disbelievers and fights under their banner in a devastating and decisive war against Muslims. Indeed, this is an act of disbelief, by which its perpetrator becomes an apostate and disbeliever if the impediments to *taḳfīr* are absent. Along with other acts of disbelief, such as changing the divine laws, and showing blatant disbelief as seen in the Saudi *Tabi‘iyyah* system (nationality laws) that evil, racist, blasphemous, and cursed system. Furthermore, permitting usury by licensing banks who deal in this, and membership in aggressive and anti-Islamic international organisations, such as the United Nations. Then we found him naming it as such in his letter entitled ‘*Taḥdhīr al-Sājid, min Ittikhādh al-Qubūr Masājīd*,’ where he states: ‘At that time, I was amazed at how this idolatrous phenomenon had remained until the era of ‘the state of *Tawḥeed*.’¹ Why did he call it the ‘state of *Tawḥeed*,’ and how did it deserve this great honour? In his view, because there are no constructed graves and monumental shrines in Saudi Arabia, just like that with all absurdity, foolishness, insignificance, and shallow thinking. Glory be to Allah, this is a great slander!

Thirdly, this has resulted in the most heinous of them from a doctrinal and intellectual perspective, even if it does not appear easily in practice, which is claiming that Allah, may His Majesty be Glorified, was not an *Ilāh* (god) in pre-eternity, but rather *became an Ilāh* after He was worshipped; i.e., after He found someone to worship Him.² This is sufficient as an act of *kufr*; it is, indeed, the worst type of it. Yes, people will hasten to say: ‘Allah forbid!’ Rather, He is an *Ilāh* eternally and forever –that is to say, He is the One deserving of worship of anyone capable of worship, for He is in Himself distinguished by the attributes of *Kamāl* (perfection), *Jamāl* (beauty), and *Jalāl* (majesty). Accordingly, we say, despite the defects, objections and dangers embedded in this ‘lame definition’ of the *Ilāh* – which we already mentioned in the previous volume of this series, we shall accept it from you.

¹ Translated as ‘Warning the One who Prostrates against Taking the Graves as Mosques.’ The Arabic edition carries the references for this as: *al-Maktab al-Islami*, [1403 AH (1983, CE), 4th edition, p. 68].

² Here readers should refer back to the previous volume, volume 3 in the series, which covers this matter in extensive detail.

Rather, we say no problem, well done, indeed, it is so. But based upon that, then define for us the ‘*Ibādāt* (acts of worship)! Are they not, by necessity and intuitive knowledge, every act intended to glorify Allah, or seek closeness to Him, for He is, in Himself, deserving of them – that is, based on the doer’s belief that Allah in Himself is deserving of those acts by virtue of His attributes and power? So how did you reduce it to a restricted list of acts? Be that prostration, bowing, lighting candles, offering sacrifices, slaughtering sacrificial animals, fulfilling vows, etc., as abstract actions, not preceded by this specific belief? Perhaps some people would rush to argue that ‘Rather because Allah allowed it only for Himself and prohibited it to others. Based on that, we called it ‘*Ibādah* and considered the one who performs it for other than Him a *mushrik* and *kāfir*.’

Therefore, in reply we say - this reflects your ignorance, or that was an outright fabrication, because we have proven, in the case of prostration for example, that Allah did not classify it as ‘*Ibādah* if it was performed for other than Him, nor did He consider anyone who did so a *kāfir*. He commanded His angels (who glorify Him) with an uncompromising order that left no room for leniency. And when *Iblees* refused, acted arrogantly, and rejected the command, He cursed and expelled him. Thus, by that rejection, due to his ego and arrogance – he became one of the *mushrikeen* and *kāfireen*. Indeed, it is considered forbidden (or merely disliked, according to some jurists) in this final Divine Law, and it is neither considered *Shirk* nor *kufr* unless it is accompanied by a belief that entails *kufr*. You legislate according to your whims and give things names you have invented, for which Allah has never authorised. Besides, your statements are contradictory, and you are falling into an evident circular cause at some points, and a hidden circular cause at others.

It comes as no surprise, then, that the frenzied campaigns of the agents of al-Saud against ‘*Tālibān*,’ when their master America ordered them to do so focused on the issue of ‘shrines’ and ‘graves,’ then the defence offered by the well-meaning and naïve youth was limited to providing evidence that they were striving to demolish them to the best of their ability?! As for the non-Islamic tribal customs which *Tālibān* remained silent about out of ignorance or inability, if we think well of them; and as for the blind imitation and jurisprudence stagnation to the interpretations, analogies, jurists’ sayings from the ages of decline, which reached the level of ‘obscurantism;’ and as for the

extremism and wrongful practices in which *Tālibān* were involved, which distorted the pure image of Islam; and as for the oppression and confiscation of people's legitimate rights. This is not a matter for research and discussion, nor should *Tālibān* be criticised, denounced, or advised to correct it. And why not? Isn't 'the *Shirk* of graves,' the greatest calamity and the gravest disaster that should be focused on and addressed before anything else? Indeed, perhaps it is the only flaw, as it seems to be in the wild and sick imagination of these poor, misguided claimants of 'Salafism,' the so-called people of 'the true *aqeedah*' as they claim? It also comes as no surprise to hear one of the Imām's of the Wahhābi sect in this era, namely Shaykh Muḥammad ibn Ibrāhīm ash-Shaykh, may Allah have mercy on him, state:

The implementation of Allah's law alone without any other laws is linked to worshipping Allah alone, without associating anyone with Him. The essence of the two testimonies is that Allah alone is the One who is worshipped with no partner and that His Messenger is the one to be followed and whose teachings alone are to be judged by. Verily, swords of *Jihād* were unsheathed for the sake of this and to establish it in practice by action and abstention, and to implement it in times of dispute.³

It comes as no surprise that such mere rhetoric and inaccurate statements – despite their undeniable positive aspects – would come from the Shaykh, may Allah have mercy on him, as they stem from the false and contradictory concept of '*Ibādah*' within the Wahhābi sect: particularly that it is merely a collection of formal rituals and abstract actions, whether apparent or hidden, such as standing, sitting, bowing, prostrating, fasting, performing Hajj, lighting incense burners, offering sacrifices and offerings, and similar practices. The truth is that implementing the law of Allah is the *essence* of worshipping Him; it is not something else that could be described as '*shaqiq al-'Ibādah*,' (the twin of worship); for the acts of devotion –that is, '*Ibādāt*' (ritual acts of worship) are not, in themselves, '*Ibādah*' defined by the definite articles the *alif* and the *lām*, or defined by *idāfa*, as in the saying: 'worshipping Allah,' for which He created jinn and mankind:

³ Cited in *Fatwa ash-Shaykh* [Vol. 12, p. 251].

وَمَا خَلَقْتُ الْجِنَّ وَالْإِنْسَ إِلَّا لِيَعْبُدُونِ

*I created jinn and mankind only to worship Me.*⁴

Rather, the '*Ibādah*' is obedience to the One who commands it, grounded in the firm belief and unwavering faith that the one who commands it is the possessor of intrinsic Lordship and ultimate, supreme sovereignty; the true God, the One Who commands with truth. This is the exact text of the final Prophet, peace and blessings be upon him and his family, when he said: '*That is their worship*,' [فتلك عبادتهم] and he did not say: 'That is similar, or twin, or equivalent to their worship,' as an instruction to 'Adī ibn Ḥātim when he was confused about the Almighty's saying:

اتَّخَذُوا أَحْبَارَهُمْ وَرُهْبَانَهُمْ أَرْبَابًا مِّن دُونِ اللَّهِ

*They take their rabbis and their monks as lords besides Allah.*⁵

In reply, 'Adī ibn Ḥātim had said 'we don't worship them,' then the Messenger of Allah, peace and blessings be upon him asked him: '*Do they not forbid what Allah has permitted, so you forbid it? And do they not permit what Allah has forbidden, so you permit it?*' At that moment, 'Adī ibn Ḥātim was rendered speechless and admitted: 'Yes indeed!' This is the certain truth established by definitive proofs, and it is not permissible for anyone who believes in Allah and the Last Day to believe otherwise:

وَمَن كَفَرَ فَإِنَّ اللَّهَ غَنِيٌّ عَنِ الْعَالَمِينَ

*Those who reject this [should know that] Allah has no need of the creation.*⁶



⁴ *Qur'ān*, 51: 56

⁵ *Qur'ān*, 9: 31

⁶ *Qur'ān*, 3: 97